PENNSYLVANIA BULLETIN

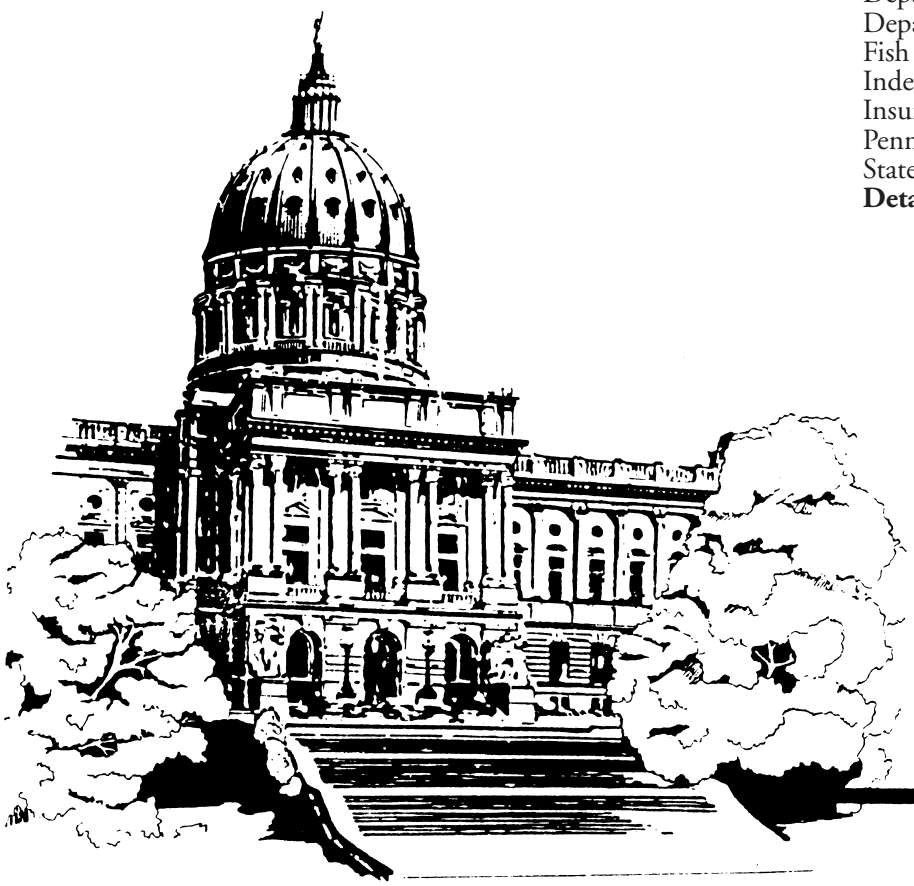
Volume 56 Number 19
Saturday, May 9, 2026 • Harrisburg, PA
Pages 2489—2794

See Part II page 2595
for the
Proposed Rulemaking

See Part III page 2697
for the Notices

Part I

Agencies in this issue
The Courts
Department of Banking and Securities
Department of Environmental Protection
Department of General Services
Department of Health
Department of Human Services
Department of Transportation
Fish and Boat Commission
Independent Regulatory Review Commission
Insurance Department
Pennsylvania Public Utility Commission
State Board of Nursing
Detailed list of contents appears inside.





Latest Pennsylvania Code Reporter (Master Transmittal Sheet):

No. 618, May 2026

CUT ON DOTTED LINES AND ENCLOSE IN AN ENVELOPE

CHANGE NOTICE/NEW SUBSCRIPTION

If information on mailing label is incorrect, please email changes to info@pabulletin.com or mail to:

FRY COMMUNICATIONS, INC.
Attn: *Pennsylvania Bulletin*
800 W. Church Rd.
Mechanicsburg, PA 17055-3198

CUSTOMER NUMBER (6 digit number above name on mailing label)

NAME OF INDIVIDUAL

OFFICE NAME—TITLE

ADDRESS (Number and Street)

(City) (State) (Zip Code)

TYPE OR PRINT LEGIBLY

PENNSYLVANIA BULLETIN

(ISSN 0162-2137)

The *Pennsylvania Bulletin* is published weekly by Fry Communications, Inc. for the Commonwealth of Pennsylvania, Legislative Reference Bureau, 641 Main Capitol Building, Harrisburg, Pennsylvania 17120, under the policy supervision and direction of the Joint Committee on Documents under 45 Pa.C.S. Part II (relating to publication and effectiveness of Commonwealth documents). The subscription rate is $87.00 per year, postpaid to points in the United States. Individual copies are $2.50. Checks for subscriptions and individual copies should be made payable to "*Fry Communications, Inc.*" Periodicals postage paid at Harrisburg, Pennsylvania.

Postmaster send address changes to:

FRY COMMUNICATIONS, Inc.
Attn: *Pennsylvania Bulletin*
800 West Church Road
Mechanicsburg, Pennsylvania 17055-3198
(717) 766-0211 ext. 2340
(800) 334-1429 ext. 2340 (toll free, out-of-State)
(800) 524-3232 ext. 2340 (toll free, in State)

Orders for subscriptions and other circulation matters should be sent to:

Fry Communications, Inc.
Attn: *Pennsylvania Bulletin*
800 West Church Road
Mechanicsburg, Pennsylvania 17055-3198

Copyright © 2026 Commonwealth of Pennsylvania

Editorial preparation, composition, printing and distribution of the *Pennsylvania Bulletin* is effected on behalf of the Commonwealth of Pennsylvania by FRY COMMUNICATIONS, Inc., 800 West Church Road, Mechanicsburg, Pennsylvania 17055-3198.

CONTENTS

THE COURTS

APPELLATE PROCEDURE

Order adopting Rules 550 and 1614; amending Rules 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804; and rescinding Rules 555, 556 and 561 of the Pennsylvania Rules of Appellate Procedure; No. 318 appellate procedural rules docket 2515

Order amending Sections 6 and 7 of the Supreme Court Internal Operating Procedures; No. 658 judicial administration docket 2530

DISCIPLINARY BOARD OF THE SUPREME COURT

List of financial institutions 2588

JUDICIAL SYSTEM GENERAL PROVISIONS

Order amending the Case Records Public Access Policy of the Unified Judicial System; No. 656 judicial administration docket 2509

JUVENILE RULES

Order adopting Rules 142 and 1142 of the Pennsylvania Rules of Juvenile Court Procedure; No. 1048 Supreme Court rules docket 2564

LOCAL COURT RULES

Franklin County

Adoption of 39th Jud. Dist. Rules Crim.P. 135, 460, and 547. electronic transmittal of transcriptions and associated documents; misc. doc. No. AD: 24-2026 2586

Lancaster County

Addition of local rule 547 of criminal procedure; No. 14 AD 2026 2586

Montgomery County

Prohibition on Smart/Meta/AI glasses in any judicial facility; administrative order 2026-00001 2587

York County

Amendment of local rule of criminal procedure 706; CP-67-AD-18-2026 2587

MINOR COURT CIVIL RULES

Order adopting Rule 206.1; and amending Rules 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020 of the Pennsylvania Rules of Civil Procedure governing actions and proceedings before Magisterial District Judges; No. 560 magisterial rules docket 2569

RULES OF CIVIL PROCEDURES

Order amending Rule 1.40 of the Pennsylvania Rules of Orphans' Court Procedure; No. 1049 Supreme Court rules docket 2546

Order amending Rules 240, 1308, and 1313 of the Pennsylvania Rules of Civil Procedure; No. 778 civil procedural rules docket 2530

Order amending Rules 1920.62 and 1940.5 of the Pennsylvania Rules of Civil Procedure; No. 779 civil procedural rules docket 2541

RULES OF CRIMINAL PROCEDURE

Order amending Rules 124, 316, 704, 708, 720, 900, 902, 903, 904, 906, and 907 of the Pennsylvania Rules of Criminal Procedure; No. 563 criminal procedural rules docket 2555

Proposed amendment of PA.R.Crim.P. 150 2552

RULES OF JUDICIAL ADMINISTRATION

Order adopting Rule 1990 of the Pennsylvania Rules of Judicial Administration; No. 655 judicial administration docket 2497

Order amending Rules 4007, 4008, 4009, and 4011 of the Pennsylvania Rules of Judicial Administration; No. 657 judicial administration docket 2505

SUPREME COURT

Financial institutions approved as depositories for fiduciary accounts; No. 268 disciplinary rules docket. 2590

EXECUTIVE AND INDEPENDENT AGENCIES

DEPARTMENT OF BANKING AND SECURITIES

Notices

Actions on applications (Part III) 2697

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Notices

Applications, actions and special notices (Part III) . . 2698

Bid opportunity (2 documents) (Part III) 2755

Climate Change Advisory Committee meeting reschedule and cancellation (Part III) 2756

Interstate pollution transport reduction: final 2026 ozone season nitrogen oxide emission limits for nonelectric generating units (Part III). 2756

Water quality certification under section 401 of the Federal Clean Water Act for the Christopher M. Crane Clean Energy Center restart (Part III). 2758

DEPARTMENT OF GENERAL SERVICES

Notices

Exempt machinery and equipment steel products (Part III) 2759

DEPARTMENT OF HEALTH

Notices

Ambulatory surgical facilities; requests for exceptions (Part III). 2761

Decisions on requests for exceptions to health care facility regulations (Part III). 2762

Hospitals; requests for exceptions (Part III). 2763

DEPARTMENT OF HUMAN SERVICES

Proposed Rulemaking

Residential services for children and youth (Part II). . . 2596

Notices

Payments to nonpublic and county nursing facilities; final rates for State Fiscal Year 2025-2026 (Part III) 2764

Available Online at http://www.pacodeandbulletin.gov

Peer groups, peer group medians and peer group prices for nonpublic nursing facilities including hospital-based nursing facilities and special rehabilitation facilities for State Fiscal Year 2025-2026 (Part III) 2765

DEPARTMENT OF TRANSPORTATION

Notices

Public-Private Partnerships Board meeting (Part III) 2783
State Transportation Commission meeting (Part III) 2783
Technical guidelines for the use of illuminated signs on public transportation vehicles (Part III) 2783

FISH AND BOAT COMMISSION

Notices

Changes to list of Class A wild trout streams; April 2026 (Part III) 2784
Changes to list of wild trout streams; April 2026 (Part III) 2784
Special regulation designation; addition of Hammond Lake Panfish Enchancement Program for crappies (Part III) 2784

INDEPENDENT REGULATORY REVIEW COMMISSION

Notices

Actions taken by the Commission (Part III) 2784
Notice of comments issued (Part III) 2785

INSURANCE DEPARTMENT

Notices

Appeal of D.K. under the Quality Health Care Accountability and Protection Article; UPMC Community HealthChoices; doc. No. HC26-03-016 (Part III) 2787
Appeal of D.K. under the Quality Health Care Accountability and Protection Article; UPMC Community HealthChoices; doc. No. HC26-03-017 (Part III) 2787
Appeal of L.V. under the Quality Health Care Accountability and Protection Article; Capital Blue Cross; doc. No. HC26-04-008 (Part III) 2787
Application for merger of West Branch Mutual Insurance Company with and into Millville Mutual Insurance Company (Part III) 2788

PENNSYLVANIA PUBLIC UTILITY COMMISSION

Notices

Service of notice of motor carrier applications (Part III) 2788
Service of notice of motor carrier formal complaints (Part III) 2789
Water service; telephonic prehearing conference (Part III) 2793

STATE BOARD OF NURSING

Proposed Rulemaking

Licensed practical nurse pronouncement of death (Part II) 2595

READER'S GUIDE TO THE *PENNSYLVANIA BULLETIN* AND THE *PENNSYLVANIA CODE*

Pennsylvania Bulletin

The *Pennsylvania Bulletin* is the official gazette of the Commonwealth of Pennsylvania. It is published weekly. A cumulative subject matter index is published quarterly.

The *Pennsylvania Bulletin* serves several purposes. It is the temporary supplement to the *Pennsylvania Code*, which is the official codification of agency rules and regulations, Statewide court rules, and other statutorily authorized documents. Changes in the codified text, whether by adoption, amendment, rescission, repeal or emergency action, must be published in the *Pennsylvania Bulletin*.

The following documents are published in the *Pennsylvania Bulletin*: Governor's Executive Orders; Summaries of Enacted Statutes; Statewide and Local Court Rules; Attorney General Opinions; Motor Carrier Applications before the Pennsylvania Public Utility Commission; Applications and Actions before the Department of Environmental Protection; Orders of the Independent Regulatory Review Commission; and other documents authorized by law.

The text of certain documents published in the *Pennsylvania Bulletin* is the only valid and enforceable text. Courts are required to take judicial notice of the *Pennsylvania Bulletin*.

Adoption, Amendment or Repeal of Regulations

Generally an agency wishing to adopt, amend or rescind regulations must first publish in the *Pennsylvania Bulletin* a Proposed Rulemaking. There are limited instances when the agency may omit the proposal step; it still must publish the adopted version.

The Proposed Rulemaking contains the full text of the change, the agency contact person, a fiscal note required by law and background for the action.

The agency then allows sufficient time for public comment before taking final action. A Final Rulemaking must be published in the *Pennsylvania Bulletin* before the changes can take effect. If the agency wishes to adopt changes to the Proposed Rulemaking to enlarge the scope, it must repropose.

Citation to the *Pennsylvania Bulletin*

Cite material in the *Pennsylvania Bulletin* by volume number, a page number and date. Example: Volume 1, *Pennsylvania Bulletin*, page 801, January 9, 1971 (short form: 1 Pa.B. 801 (January 9, 1971)).

Pennsylvania Code

The *Pennsylvania Code* is the official codification of rules and regulations issued by Commonwealth agencies, Statewide court rules and other statutorily authorized documents. The *Pennsylvania Bulletin* is the temporary supplement to the *Pennsylvania Code*, printing changes when they are adopted. These changes are then permanently codified by the *Pennsylvania Code Reporter*, a monthly, loose-leaf supplement.

The *Pennsylvania Code* is cited by title number and section number. Example: Title 10 *Pennsylvania Code* § 1.1 (short form: 10 Pa. Code § 1.1).

Under the *Pennsylvania Code* codification system, each regulation is assigned a unique number by title and section. Titles roughly parallel the organization of Commonwealth government.

How to Find Rules and Regulations

Search for your area of interest in the *Pennsylvania Code*. The *Pennsylvania Code* is available at www.pacodeandbulletin.gov.

Source Notes give the history of regulations. To see if there have been recent changes not yet codified, check the List of *Pennsylvania Code* Chapters Affected in the most recent issue of the *Pennsylvania Bulletin*.

A chronological table of the history of *Pennsylvania Code* sections may be found at www.legis.state.pa.us/cfdocs/legis/CH/Public/pcde_index.cfm.

A quarterly List of *Pennsylvania Code* Sections Affected lists the regulations in numerical order, followed by the citation to the *Pennsylvania Bulletin* in which the change occurred.

The *Pennsylvania Bulletin* is available at www.pacodeandbulletin.gov.

Subscription Information: (717) 766-0211
General Information and Finding Aids: (717) 783-1530

Printing Format

Rules, Regulations and Statements of Policy in Titles 1—107 of the Pennsylvania Code

Text proposed to be added is printed in **underscored bold face**. Text proposed to be deleted is enclosed in brackets **[ ]** and printed in **bold face**.

Proposed new chapters and sections are printed in regular type to enhance readability. Final rulemakings and statements of policy are printed in regular type.

Ellipses, a series of five asterisks, indicate text that is not amended.

In Proposed Rulemakings and proposed Statements of Policy, existing text corresponds to the official codified text in the *Pennsylvania Code*.

Court Rules in Titles 201—246 of the Pennsylvania Code

Added text in proposed and adopted court rules is printed in **underscored bold face**. Deleted text in proposed and adopted court rules is enclosed in brackets **[ ]** and printed in **bold face**.

Proposed new chapters and rules are printed in regular type to enhance readability.

Ellipses, a series of five asterisks, indicate text that is not amended.

Fiscal Notes

Section 612 of The Administrative Code of 1929 (71 P. S. § 232) requires the Governor's Budget Office to prepare a fiscal note for regulatory actions and administrative procedures of the administrative departments, boards, commissions and authorities receiving money from the State Treasury. The fiscal note states whether the action or procedure causes a loss of revenue or an increase in the cost of programs for the Commonwealth or its political subdivisions. The fiscal note is required to be published in the *Pennsylvania Bulletin* at the same time as the change is advertised.

A fiscal note provides the following information: (1) the designation of the fund out of which the appropriation providing for expenditures under the action or procedure shall be made; (2) the probable cost for the fiscal year the program is implemented; (3) projected cost estimate of the program for each of the 5 succeeding fiscal years; (4) fiscal history of the program for which expenditures are to be made; (5) probable loss of revenue for the fiscal year of its implementation; (6) projected loss of revenue from the program for each of the 5 succeeding fiscal years; (7) line item, if any, of the General Appropriation Act or other appropriation act out of which expenditures or losses of Commonwealth funds shall occur as a result of the action or procedures; and (8) recommendation, if any, of the Secretary of the Budget and the reasons therefor.

The omission of an item indicates that the agency text of the fiscal note states that there is no information available with respect thereto. In items (3) and (6) information is set forth for the first through fifth fiscal years, following the year the program is implemented, which is stated. In item (4) information is set forth for the current and two immediately preceding years. In item (8) the recommendation, if any, made by the Secretary of the Budget is published with the fiscal note. "No fiscal impact" means no additional cost or revenue loss to the Commonwealth or its local political subdivision is intended. See 4 Pa. Code Chapter 7, Subchapter R (relating to fiscal notes).

Reproduction, Dissemination or Publication of Information

Third parties may not take information from the *Pennsylvania Code* and *Pennsylvania Bulletin* and reproduce, disseminate or publish information except as provided by 1 Pa. Code § 3.44:

§ 3.44. General permission to reproduce content of *Code* and *Bulletin*.

Information published under this part, which information includes, but is not limited to, cross references, tables of cases, notes of decisions, tables of contents, indexes, source notes, authority notes, numerical lists and codification guides, other than the actual text of rules or regulations may be reproduced only with the written consent of the [Legislative Reference] Bureau. The information which appears on the same leaf with the text of a rule or regulation, however, may be incidentally reproduced in connection with the reproduction of the rule or regulation, if the reproduction is for the private use of a subscriber and not for resale. There are no other restrictions on the reproduction of information published under this part, and the Commonwealth hereby consents to a reproduction.

List of Pa. Code Chapters Affected

The following numerical guide is a list of the chapters of each title of the *Pennsylvania Code* affected by documents published in the *Pennsylvania Bulletin* during 2026.

4 Pa. Code (Administration)
Adopted Rules
91 791
99 791
105 791
161 1672
163 1672
165 1672
167 1672

Statements of Policy
9 ..... 366, 886, 1282, 1572, 2107

10 Pa. Code (Banking and Securities)
Adopted Rules
5 481

25 Pa. Code (Environmental Protection)
Adopted Rules
977 363

34 Pa. Code (Labor and Industry)
Statements of Policy
6 1139
13 1139
19 1139
21 1139
23 1139
25 1139
29 1139
35 1139
39 1139
41 1139
43 1139
45 1139
47 1139

37 Pa. Code (Law)
Adopted Rules
481 885

Statements of Policy
471 797

49 Pa. Code (Professional and Vocational Standards)
Adopted Rules
16 2230
17 2230
18 2230
25 2237
27 1980
37 793

Proposed Rules
16 2089
17 2089
18 2089
21 2595
29 1006
36 ..... 2364, 2368
39 1815
47 ..... 209, 1115
48 ..... 209, 1115
49 ..... 209, 1115

51 Pa. Code (Public Officers)
Proposed Rules
11 2372
13 2372
15 2372
17 2372
19 2372
21 2372
23 2372
25 2372

52 Pa. Code (Public Utilities)
Proposed Rules
57 1985

55 Pa. Code (Human Services)
Adopted Rules
1101 16
1121 16
1141 16
1142 16
1144 16

Proposed Rules
3800 2596
3900 2596
3910 2596
3920 2596

58 Pa. Code (Recreation)
Adopted Rules
53 1422
135 1811
147 ..... 1812, 1813
617b 2244
625b 2244
633b 2244
641b 2244
643b 2244
649b 2244
653b 2244
655b 2244
657b 2244
672b 2244
674b 2244
692 2244
696 2244

Proposed Rules
51 1571
135 1819
137 1820
139 ..... 1823, 1830
141 ..... 1830, 1831, 1834, 1835
143 1836
147 ..... 1837, 1838

67 Pa. Code (Transportation)
Adopted Rules
83 1692
173 1113

201 Pa. Code (Rules of Judicial Administration)
Adopted Rules
19 2497
40 2505

204 Pa. Code (Judicial System General Provisions)
Adopted Rules
71 1809
83 ..... 1104, 1809
85 2358
89 2358
91 788
93 788
213 2509
221 1556

210 Pa. Code (Appellate Procedure)
Adopted Rules
5 2515
9 2515
16 2515
17 2515
21 2515
25 2515
27 2515
37 2515
38 2515
63 2530

Proposed Rules
1 590
9 590
11 590

231 Pa. Code (Rules of Civil Procedure)
Adopted Rules
200 ..... 351, 2530
1000 1106
1300 2530
1910 351
1920 2541
1940 2541
1960 351
2120 1106
2150 1106
2170 1106
Part II 2546

Proposed Rules
400 1564
1000 997
4000 1000

234 Pa. Code (Rules of Criminal Procedure)
Adopted Rules
1 2555
3 2555
7 2555
9 2555

Proposed Rules
1 2552
7 8

237 Pa. Code (Juvenile Rules)
Adopted Rules
1 2564
2 1108
3 1108
6 1108
11 2564

246 Pa. Code (Minor Court Civil Rules)
Adopted Rules
200 2569
300 2569
500 2569
1000 2569

Proposed Rules
300 1969
400 1969
500 ..... 594, 1969
1200 1565

249 Pa. Code (Philadelphia Rules)
Unclassified 10, 1977

255 Pa. Code (Local Court Rules)
Unclassified 11, 12, 14, 357, 358, 477, 479, 596, 789, 885, 1001, 1419, 1420, 1568, 1570, 1670, 2088, 2226, 2229, 2359, 2361, 2586, 2587

THE COURTS

Title 201—RULES OF JUDICIAL ADMINISTRATION

[201 PA. CODE CH. 19]

Order Adopting Rule 1990 of the Pennsylvania Rules of Judicial Administration; No. 655 Judicial Administration Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, the proposal having been published for public comment at 50 Pa.B. 4023 (August 8, 2020) and 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rule 1990 of the Pennsylvania Rules of Judicial Administration is adopted in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Annex A

TITLE 201. RULES OF JUDICIAL ADMINISTRATION

CHAPTER 19. MISCELLANEOUS ADMINISTRATIVE PROVISIONS

APPLICATION TO WAIVE FEES AND COSTS (*IN FORMA PAUPERIS*)

(This is an entirely new rule.)

Rule 1990. Application to Waive Fees and Costs (*In Forma Pauperis*).

(a) *Scope.* To the extent authorized by procedural rule, this rule shall govern the procedure for waiving the initial filing fee and such other fees and costs associated with a legal action:

(1) imposed or authorized by an Act of Assembly or general rule, and payable to a court, filing office, or public officer or employee; or

(2) required for the posting of a bond or other security for costs as a condition for commencing a legal action.

(b) *Information.* If a party is unable to pay the initial filing fee and such other fees and costs associated with a legal action, the payee shall provide the party with information about seeking a waiver of fees and costs pursuant to this rule.

(c) *Eligibility.* A party may seek a waiver of the initial filing fee and such other fees and costs associated with a legal action on any of the following bases:

(1) *Without Financial Resources.* A party seeking a waiver shall complete and submit an application so the court can determine whether the party is without financial resources to pay the fees and costs associated with the legal action. A party shall be deemed without financial resources if the party:

(i) Receives needs-based public assistance (including, but not limited to, Supplemental Nutrition Assistance Program (SNAP), Medicaid, Supplemental Security Income (SSI), or Temporary Assistance to Needy Families (TANF)); or

(ii) Meets the following income and asset requirement:

(I) gross income (*i.e.*, before taxes and other deductions) that is 200% or less than the federal poverty guidelines for the party's household size; and

(II) assets less than $10,000, excluding the party's home and one vehicle.

(2) *Substantial Financial Hardship.* A party seeking a waiver shall complete and submit an application so the court can determine whether the party will suffer a substantial financial hardship, which means the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need, by paying the fees and costs associated with the legal action based upon:

(i) the party's gross income, assets, and expenses;

(ii) the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation;

(iii) employment history;

(iv) other available financial resources, including resources from individuals who have a duty of support to the party; and

(v) other factors affecting the party's income, assets, or expenses.

(3) *Representation of Counsel.* A party represented by counsel practicing in a legal aid organization or providing the party with free legal services shall receive a waiver from the filing office upon *praecipe* of counsel stating that counsel reasonably believes the party is unable to pay the fees and costs associated with the legal action.

(d) *Timing.*

(1) The application or *praecipe* shall be filed at the same time as or after the commencement of the legal action, not before.

(2) The filing office shall docket the legal action and the application or *praecipe* without the party paying the filing fee.

(3) If the court denies the application, the party shall pay the filing fee for commencing the action within 30 days of notification of the denial. The party may not proceed in the action, so long as the fee remains unpaid, except that the party may appeal the denial or obtain permission from the court to proceed.

(4) If a party commences an action and later files an application or *praecipe* to waive fees and costs, the filing office shall not refund the fees and costs previously paid.

(e) *Court Action.* The court or an individual designated by the court shall review all applications to determine immediate eligibility. The court should enter its order determining the application within 20 days of its filing date.

(1) If a party is deemed eligible for a waiver, the court shall grant the application without a hearing.

(2) If the court cannot determine eligibility solely on the application, then the court may direct the party to submit supplemental information to complete or substantiate the application.

(3) The court may deny an application without argument or a hearing.

(4) The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information.

(5) The court may vacate its order granting an application if the court later finds that the application or supplemental information was materially inaccurate or the party is able to pay the fees and costs.

(6) If the court denies an application, or modifies or vacates an order previously granting an application, the court shall state in its order:

(i) the reason for its decision; and

(ii) that the party has 30 days to pay the filing fees or the action will be terminated without further notice.

(7) Upon *praecipe* of counsel pursuant to subdivision (c)(3), a party shall be deemed to have received a waiver without further action of the court.

(f) *Notice. Termination. Reinstatement*.

(1) The filing office shall serve the court's order upon the party.

(2) If at least 30 days have passed after the filing office has served an order denying the application, the fee remains unpaid, and an appeal has not been filed, the filing office shall enter an appropriate order terminating the legal action.

(3) The court may reinstate the legal action for good cause shown.

(g) *Recovery of Fees and Costs.*

(1) If the party receiving a waiver obtains a money judgment or settlement, the court shall order the party paying the judgment or settlement to pay the previously waived fees and costs to the filing office as part of the litigation's taxed costs.

(2) Under no circumstances shall taxed costs for the waived fees and costs be paid to the party who has received a waiver.

(h) *Continuing Obligation and Waiver.*

(1) A party or counsel receiving a waiver of fees and costs has a continuing obligation to inform the court of an improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

(2) A waiver obtained on the basis of subdivision (c)(1) or (c)(2) shall continue throughout the litigation of the legal action, including any appeals, unless the duration of the waiver is specifically limited in the order granting the waiver or the order is modified or vacated by a subsequent order.

(3) A court may order a party to re-apply for a waiver on the basis of subdivision (c)(1) or (c)(2) and modify or vacate an existing waiver.

(4) Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

(i) *Application Form.* The application required by subdivision (c) shall be substantially in the following form:

(Caption)

APPLICATION TO WAIVE FEES AND COSTS

Party Name: _____
First Middle Last

Residence: _____

City, State, Zip: _____

☐ Check the box if you are currently without a house or apartment.

Do you currently receive one or more of the following public benefits?

- Supplemental Nutrition Assistance Program (SNAP) (food stamps)
- Medicaid
- Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))
- Temporary Assistance to Needy Families (TANF)
- Public Housing or Section 8 Housing
- Needs-based VA Pension
- Low-Income Energy Assistance
- Special Supplemental Nutrition Program for Women, Infants, and Children (WIC)
- Other need-based federal, state, or local program: _____ (*name of program*)

☐ Yes ☐ No

If you answered "Yes," skip the remainder of the form and sign/date the VERIFICATION

I am providing the following information about people who live with me:

I support ___ adult children, who are incapable of self-support due to a physical or mental disability.

I support ___ children under 18.

GROSS MONTHLY INCOME (income before paying taxes and other deductions):

$ _____ monthly gross wages. I work as a __(*job title/description*)__ for _____(*name of employer*)_____.

$ _____ unemployment compensation. I have been unemployed since _____(*date*)_____. My last employer was ____(*name of employer*)____.

$ _____ money received from other people.

$ _____ ☐ Retirement/Pension ☐ Disability
☐ Workers Comp ☐ Social Security
☐ Child/Spousal support ☐ Other sources:
_____(*describe sources*)_____

$ _____ Total monthly gross income

ASSETS (Current Value):

$_____ Cash

$ _____ Bank accounts or other financial assets

$ _____ Primary vehicle

$ _____ Other vehicles

$ _____ House

$ _____ Other real estate

$ _____ Other property: _____(*describe)_____

$ _____ Total value of property

MONTHLY EXPENSES YOU PAY:

$ _____ Rent/mortgage payment

$ _____ Food and household supplies

$ _____ Utilities, including cell phone

$ _____ Clothing and other personal expenses

$ _____ Medical and dental expenses/insurance

$ _____ Child care

$ _____ Transportation, including car payments and repairs

$ _____ Child and spousal support or alimony

$ _____ Other expenses: _____(*describe*)_____

$ _____ Total monthly expenses

Are there other facts that you would like the court to know about your circumstances that may help the court decide whether to grant your application, such as you are experiencing homelessness or you have health issues?

_____

_____

_____

_____

VERIFICATION

I understand that I have a continuing obligation to inform the court of an improvement in my financial circumstances that would permit me to pay the fees and costs in this case. If I fail to inform the court of any changes in my circumstances, I understand that the court may rescind the waiver of fees and costs and order me to pay those fees and costs.

I verify that the statements made in this application are true and correct. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

_____ _____

Date Party's Signature

(j) *Praecipe Form.* The *praecipe* required by subdivision (c)(3) shall be substantially in the following form:

(Caption)

***PRAECIPE* TO WAIVE FEES AND COSTS**

Kindly allow_____ to proceed without paying fees and costs.

I, _____, am the attorney for the party requesting a waiver of fees and costs, providing free legal services to the party, and reasonably believe the party is unable to pay the fees and costs.

_____

Attorney for _____

_____

Comment:

This rule is intended to establish criteria and procedures for the application and *praecipe* seeking a waiver of fees and costs for indigent parties that would otherwise operate to limit access to the courts. *See* Pa. Const. art. I, § 11. The type of legal action, fees, and costs to which this rule applies is determined by procedural rule.

For a waiver of transcript fees, *see* Pa.R.J.A. 4007(E) and 4008(B).

The information required pursuant to subdivision (b) to be given to a party unable to pay the initial filing fee and such other fees and costs associated with a legal action is located at: https://www.pacourts.us/forms/for-the-public. "Payee," as used in subdivision (b), means persons or entities collecting a fee under the scope of this rule, including, but not limited to, magisterial district court staff, clerks of courts, prothonotaries, court reporters, or sheriffs.

A party represented by counsel providing the party with free legal services in subdivision (c)(3) is intended to include public defenders and court-appointed counsel.

The judicial determination of an application is *ex parte*, see subdivision (e)(4). As such, the party is not required to serve the application on any other party. Nothing in this rule is intended to provide standing to any other party to participate in the determination of an application. Notwithstanding, the application and order are publicly accessible at the filing office pursuant to the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania*.

"Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

Counsel filing a *praecipe*, as permitted by subdivision (c)(3), has a continuing obligation under subdivision (h)(1) to advise the court of any material improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs, unless permitted to withdraw.

An order denying an application that puts a party "out of court" is a final, appealable order. *See Grant v. Blaine*, 868 A.2d 400 (Pa. 2005). An appeal of magisterial district judge's denial of an application should proceed in accordance with Pa.R.Civ.P.M.D.J. 1016-1020. All other appeals should proceed in accordance with Pa.R.A.P. 1614 (petition for specialized review).

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804 Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1 Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e., in forma pauperis* (IFP). The Rules Committees have prepared this Adoption

Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an applica-

tion, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see, e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

> Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support __ adults (not counting myself) who live with me" and "I support __ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied application. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996, Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012, correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997, amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000, amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002, amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005, amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011, revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-637. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 201—RULES OF JUDICIAL ADMINISTRATION

[201 PA. CODE CH. 40]

Order Amending Rules 4007, 4008, 4009, and 4011 of the Pennsylvania Rules of Judicial Administration; No. 657 Judicial Administration Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Administrative Office of Pennsylvania Courts, it is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rules 4007, 4008, 4009 and 4011 of the Pennsylvania Rules of Judicial Administration are amended in the attached form.

To the extent that notice of proposed rulemaking may be required by Pa.R.J.A. 103(a), adoption of these amendments is hereby found to be in the interest of efficient administration.

This Order shall be processed in accordance with Pa.R.J.A. 103(b) and shall be effective on November 1, 2026.

Additions are shown in bold and are underlined.

Deletions are shown in bold and brackets.

Annex A

TITLE 201. RULES OF JUDICIAL ADMINISTRATION

CHAPTER 40. UNIFORM RULES GOVERNING COURT REPORTING AND TRANSCRIPTS

Rule 4007. Requests for Transcripts.

(A) All requests for transcripts shall be set forth on a standardized form provided by the Court Administrator or a form prepared by the judicial district and approved by the Court Administrator. The form shall indicate the current rates authorized to be charged for transcripts under these rules.

(B) For an ordinary transcript, the party requesting a full or partial transcript of a trial or other proceeding shall file the original request with the district court administrator or other appropriate **court** filing office **[of the court]**. The requesting party shall also serve copies of the formal request to:

(1) the judge presiding over the matter;

(2) the court reporter, court recorder**,** or transcriptionist;

(3) the district court administrator or his or her designee (if not filed with the district court administrator); and

(4) opposing counsel, but if not represented, the opposing party.

The provisions of subsection (B) do not apply to requests by the Judicial Conduct Board.

(C) In courts where daily, expedited, or same-day transcripts are available, requests for these transcripts shall be made as provided for in local rule. In the event of an emergency, a party may request **[by oral motion]** a daily, expedited, or same-day transcript **by oral motion**.

(D) When a party requests a transcript,

(1) the party ordering a transcript shall make partial payment in an amount established by local rule. Deposit checks are to be made payable to the judicial district or county, as set by local rule, and shall be delivered to the district court administrator or other court designee.

(2) the court reporter or transcriptionist shall prepare the transcript upon direction of the court's designee.

(3) the court reporter, court recorder, or transcriptionist shall notify the ordering party and the court's designee of the completion of the transcript and deliver a copy of the transcript to the judge presiding over the matter.

(4) upon payment of any balance owed, the court reporter, court recorder, or transcriptionist shall deliver the original transcript to the appropriate filing office and copies to the parties. Checks for the final balance are to be made payable to the judicial district or county, as set by local rule, and shall be delivered to the district court administrator or other court designee.

(E) **[When a party requests a transcript, but cannot pay for the transcript because of alleged economic hardship, the court shall determine economic hardship, pursuant to the procedure set forth in Rule 4008(B). In cases of economic hardship where the matter is under appeal or a transcript is necessary to advance the litigation, the costs of procuring the transcript shall be waived or otherwise adjusted by the court. In cases of economic hardship where there is no appeal pending or there exists no obvious need for the transcript to advance the litigation, the requesting party must demonstrate reasonable need before the court shall waive or adjust the cost of obtaining the transcript.]**

If a party requests a transcript but cannot pay for the transcript because of alleged inability to pay, the court shall approve the request if:

(1) the request is for an ordinary transcript and the matter is under appeal, or a transcript is necessary to advance the litigation; and

(2) the party has obtained a waiver pursuant to Pa.R.J.A. 1990.

(F) When a transcript is requested for which the court or county is responsible for the cost, the court reporter, court recorder, or transcriptionist shall prepare the transcript without the necessity of a deposit.

Comment

Nothing in this rule prevents a local court from adopting an electronic filing request procedure, provided the request is effectively communicated to the listed persons.

Within the framework of these rules, the particular methods and logistics for receiving and accounting for costs shall be left to the discretion of the president judge and district court administration. Note, however, that deposit checks and final payment checks are to be made payable to the judicial district or county, not to the individual court reporter or transcriptionist preparing the transcript.

It is anticipated that court reporters shall continue to be compensated for the preparation of transcripts pursuant to local rule or practice. It is not contemplated that this rule shall interfere with or otherwise limit the income of court reporters. In this regard, in certain jurisdictions, court reporters earn a substantial portion of their income through the preparation of transcripts. It shall remain the duty of the president judge and district court administrator to **[assure]** **ensure** that the implementation of these rules does not unfairly limit the ability of court reporters to be properly compensated for their professional services.

The rule also recognizes that unreasonable demands for free **[or reduced-cost]** transcripts can result in a significant economic burden on the court system; for this reason, the rule attempts to distinguish **between** necessary and nonessential requests.

Requests for transcripts of sentencing hearings required by law under 42 Pa.C.S.**[A.]** § 9764(b)(5)(ii) are not subject to the transcript request provisions of this Rule.

Rule 4008. Transcript Costs Payable by a Requesting Party Other Than the Commonwealth or a Subdivision Thereof.

(A) *Costs*

(1) The costs payable by a requesting party, other than the Commonwealth or a subdivision thereof, for an original transcript in an electronic format shall not exceed:

(a) for a transcript for which an accelerated delivery is not requested, $2.50 per page;

(b) for an expedited transcript, $3.50 per page;

(c) for a daily transcript, $4.50 per page; and

(d) for same-day delivery, $6.50 per page.

(2) When the transcript is prepared in bound paper format, the costs shall be in accordance with paragraph (1) relating to electronic format plus a surcharge of $0.25 per page.

[Comment

The first requestor of a transcript is obligated to pay for the original transcript, which is filed with the court, plus the copy rate if the requestor desires a personal copy (subject to any cost sharing with additional parties.)

Many attorneys/parties prefer to read paper transcripts, including condensed transcripts, and these rules do not inhibit the practice. However, when a condensed paper transcript is ordered by a party, the surcharge of $0.25 per page in Rule 4008(A)(2) shall refer to $0.25 per sheet of paper, regardless of the number of pages of transcript on the sheet.

There is no entitlement to expedited, daily, or same-day delivery of transcripts. Those services are only available where provided by the judicial district and when the court reporter has that capability.]

(B) **[*Economic hardship—minimum standards*]** ***Waiver of Costs.***

[(1) Transcript costs for ordinary transcripts in matters under appeal or where the transcript is necessary to advance the litigation shall be waived for a party who has been permitted by the court to proceed *in forma pauperis* or whose income is less than 125 percent of the poverty line as defined by the U.S. Department of Health and Human Services (HHS) poverty guidelines for the current year.

(2) Transcript costs for ordinary transcripts in matters under appeal or where the transcript is necessary to advance the litigation shall be reduced by one-half for a party whose income is less than

200 percent of the poverty line as defined by the HHS poverty guidelines for the current year.]

(**[3]** **1**) Transcript costs for ordinary transcripts in matters that are not subject to an appeal, where the transcript is not necessary to advance the litigation, or for expedited, daily, or same-day transcripts may be waived at the court's discretion for parties who qualify for **[economic hardship under subdivision (B)(1) or (B)(2)]** **a waiver of fees and costs pursuant to Pennsylvania Rule of Judicial Administration 1990 under subdivision (B)** and upon good cause shown.

[(4) The application to waive all or a portion of costs for ordinary transcripts shall be supported by an affidavit substantially in the form required by Rule 240(h) of the Pennsylvania Rules of Civil Procedure.]

(2) Transcript costs shall be waived if a transcript request is approved pursuant to Pa.R.J.A. 4007(E).

[Comment

Transcript costs can be quite expensive. By establishing minimum standards, subdivision (B) is intended to ensure that costs do not effectively deny access to the court system to impoverished persons and persons of limited financial means when further proceedings necessitate a transcript. The rule also recognizes that unreasonable demands for free or reduced-cost transcripts can result in a significant economic burden on the court system; for this reason, the rule attempts to distinguish necessary and nonessential requests. Procedures for waiving or reducing transcripts costs must be published by the court and clearly communicated to parties.

Parties who have been approved for representation by legal aid services are not required to prove economic hardship. Legal aid clients shall be entitled to obtain ordinary transcripts for no cost.]

(C) *Assignment and allocation of transcript costs*

(1) *Assignment of costs.* The requesting party or the party required by general rule to file a transcript shall be responsible for the cost of the original transcript. Costs shall not be assessed against any party for transcripts prepared at the initiation of the court.

(2) *Allocation of costs.* When more than one party is to receive the transcript**[,]** or is required by general rule to file the transcript, the cost of the original transcript shall be divided equitably among the parties, taking into account any **[reduced fee or]** free transcripts.

[Comment

It is the intent of this provision that all parties who receive a transcript should share equitably in the costs. If two parties receive the transcript, they would each pay their share of the cost of the original transcript that is filed with the court, with each party paying for their copy. In cases where a party qualifies for a free or reduced-price transcript, any other party paying full price pays only their proportionate share of the full price, with the judicial district absorbing the cost of the free or reduced-price transcript.]

(D) *Copies of transcript*

(1) A request for a copy of any transcript previously ordered, transcribed, and filed of record shall not exceed:

(a) $0.75 per page bound, paper format; and,

(b) $0.50 per page electronic copy.

(2) A request for a copy of an expedited transcript shall not exceed:

(a) $1.00 per page bound, paper format; and,

(b) $0.75 per page electronic copy.

(3) A request for a copy of a daily transcript shall not exceed:

(a) $1.25 per page bound, paper format; and,

(b) $1.00 per page electronic copy.

(4) A request for a copy of a same-day transcript shall not exceed:

(a) $1.50 per page bound, paper format; and,

(b) $1.25 per page electronic copy.

[Comment

With respect to a non-party (*i.e.*, general public) request for a copy of a transcript, Rule 4007(D)(4) anticipates that the filing offices of the judicial district are the proper custodians of court case records and transcripts. Rule 4008(D)(1) provides that the cost charged to the public for a transcript copy that has been filed of record shall not exceed $0.75 per page, regardless of the form or location in which the transcript is filed or stored. The copy rates in Rule 4008(D)(2), (3), and (4) reflect the additional work necessary to deliver a transcript on an expedited schedule, but once the original transcript is filed with the appropriate filing office, the copy rate in (D)(1) is to apply.]

(E) *Additional Costs*

No transcript or related costs may be charged to the parties or the public other than those listed in subdivisions (A), (B)**,** and (D) without the written approval of the Court Administrator, except that a judicial district may enact a local rule that permits a trial judge to impose a reasonable surcharge in cases such as mass tort, medical malpractice or other unusually complex litigation, where there is a need for a court reporter to significantly expand his/her dictionary.

[Comment

Pursuant to local rule, a reasonable fee may be charged for a secure electronic feed which instantaneously delivers the translated notes from the court reporter to a laptop, tablet, phone, or other portable electronic device via cable, wifi, router, or Bluetooth to parties, the media, or other interested individuals. There shall be no fee charged to the court for such a connection.]

(F) *Requests for Rate Increases*

The president judge of a judicial district may request an increase in the rates prescribed in subdivision (A) or (D) by submitting a written request to the Court Administrator. Prior to submission, **a** notice of the proposed increase shall be published for public comment for at least thirty days. Any comments received must be forwarded to the Court Administrator with the request. The request shall only be approved where it is established that the judicial district faces an economic hardship

caused by the current rates and that the requested rates are reasonable. If the Court Administrator determines that the increase is necessary, the request shall be forwarded to the Supreme Court.

[Comment

These rules do not supersede any existing Pennsylvania Rule of Court regarding the delivery of court transcripts. If there appears to be a conflict with an existing Pennsylvania Rule of Court, such rule remains in full force and effect. However, if there appears to be a conflict with any local rule of court for the delivery of transcripts, these rules take precedence.]

Comment

The first requestor of a transcript is obligated to pay for the original transcript, which is filed with the court, plus the copy rate if the requestor desires a personal copy (subject to any cost-sharing with additional parties.)

Many attorneys and parties prefer to read paper transcripts, including condensed transcripts, and these rules do not inhibit the practice. However, when a condensed paper transcript is ordered by a party, the surcharge of $0.25 per page in Rule 4008(A)(2) shall refer to $0.25 per sheet of paper, regardless of the number of pages of transcripts on the sheet.

There is no entitlement to expedited, daily, or same-day delivery of transcripts. Those services are only available when provided by the judicial district and when the court reporter has that capability.

Transcript costs can be quite expensive. Subdivision (B) is intended to ensure that costs do not effectively deny access to the court system to impoverished persons and persons of limited financial means when further proceedings necessitate a transcript. Procedures for waiving transcript costs must be published by the court and clearly communicated to parties.

It is the intent of this provision that all parties who receive a transcript should share equitably in the costs. If two parties receive the transcript, they will each pay their share of the cost of the original transcript that is filed with the court, with each party paying for their copy. In cases where a party qualifies for a free transcript, any other party paying full price pays only their proportionate share of the full price, with the judicial district absorbing the cost of the free transcript.

With respect to a non-party (*i.e.*, general public) request for a copy of a transcript, Rule 4007(D)(4) anticipates that the filing offices of the judicial district are the proper custodians of court case records and transcripts. Rule 4008(D)(1) provides that the cost charged to the public for a transcript copy that has been filed of record shall not exceed $0.75 per page, regardless of the form or location in which the transcript is filed or stored. The copy rates in Rule 4008(D)(2), (3), and (4) reflect the additional work necessary to deliver a transcript on an expedited schedule, but once the original transcript is filed with the appropriate filing office, the copy rate in (D)(1) is to apply.

Pursuant to local rule, a reasonable fee may be charged for a secure electronic feed that instantaneously delivers the translated notes from the court reporter to a laptop, tablet, phone, or other portable electronic device via cable, Wi-Fi, router, or Bluetooth to parties, the media, or other interested individuals. There shall be no fee charged to the court for such a connection.

These rules do not supersede any existing Pennsylvania Rule of Court regarding the delivery of court transcripts. If there appears to be a conflict with an existing Pennsylvania Rule of Court, such rule remains in full force and effect. However, if there appears to be a conflict with any local rule of court for the delivery of transcripts, these rules take precedence.

Rule 4009. Fees and Procedures. Local Rule.

Each judicial district shall promulgate and publish a local rule **of judicial administration** establishing the fees to be paid for all court reporting products**[,]** **and** the procedure for requesting a transcript**[, and the procedure for requesting a full or partial fee waiver pursuant to Rule 4008(B)]**.

[*Official Note*] **Comment**

For rules governing the promulgation of local rules, see Pa.R.J.A. **[No.]** 103.

Rule 4011. Deadline for Delivery of Transcript.

(A) Unless otherwise ordered by the court, the court reporter or transcriptionist shall deliver the transcript for those cases under appeal within 14 days of receiving notice from the district court administrator or the court's designee, as required by Pa.R.A.P. 1922(a).

(B) The court reporter or transcriptionist shall deliver transcripts for all other requests within 30 calendar days of receiving notice from the district court administrator or the court's designee, as provided by Rule 4007, unless an accelerated time frame is mandated by court order, law, or local rule.

(C) For requests made by a party required to post a deposit under Rule 4007, the 30-day period for delivery of the transcript shall not commence until the Rule 4007 deposit is received by the court. In those cases involving **[economic hardship]** **waiver of costs** under Rule **[4008]** **4007(E)**, the 30-day period for delivery of the transcript shall not commence until disposition of the application**. [for waiver or reduction of costs. In cases where a reduction of costs is granted, the time frame commences once the reduced deposit is received by the court.]**

(D) The court reporter or transcriptionist, upon a showing of good cause to the president judge, may request an extension of the deadline for a period of time not to exceed an additional 30 days. In no case shall more than one extension be granted.

(E) Transcripts prepared pursuant to the Children's Fast-Track Appeal program shall be given priority.

[*Official Note*: For rules governing children's fast-track appeals, see Pa.R.A.P. 102 *et seq.*]

(F) Requests for transcripts unrelated to cases under appeal or in cases where no court order has been entered directing transcription shall not be given priority. However, in any event, such transcripts shall be filed and delivered within 45 days, absent an extension for good cause approved by the President Judge.

Comment

These rules do not supersede any existing Pennsylvania Rule of Court regarding the delivery of court transcripts. If there appears to be a conflict with an existing Pennsylvania Rule of Court, such Rule remains in full force and effect. However, if there appears to be a conflict with any local rule of court for the delivery of transcripts, these Rules take precedence.

For rules governing children's fast-track appeals, see Pa.R.A.P. 102 *et seq*.

[Pa.B. Doc. No. 26-638. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 204—JUDICIAL SYSTEM GENERAL PROVISIONS

PART VII. ADMINISTRATIVE OFFICE OF PENNSYLVANIA COURTS

[204 PA. CODE CH. 213]

Order Amending the Case Records Public Access Policy of the Unified Judicial System; No. 656 Judicial Administration Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Administrative Office of Pennsylvania Courts, it is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that:

1) The Case Records Public Access Policy of the Unified Judicial System (Policy) is amended in the attached form.

2) The Administrative Office of Pennsylvania Courts shall publish the amended Policy on the Unified Judicial System's website.

3) Every court and custodian's office, as defined by the Policy, shall continuously make available for public inspection a copy of the amended Policy in appropriate physical locations as well as on their website.

This Order shall be processed in accordance with Pa.R.J.A. 103(b) and shall be effective on November 1, 2026.

Additions are shown in bold and are underlined.

Deletions are shown in bold and brackets.

Annex A

TITLE 204. JUDICIAL SYSTEM GENERAL PROVISIONS

PART VII. ADMINISTRATIVE OFFICE OF PENNSYLVANIA COURTS

CHAPTER 213. COURT RECORDS POLICIES

Subchapter D. CASE RECORDS PUBLIC ACCESS POLICY OF THE UNIFIED JUDICIAL SYSTEM OF PENNSYLVANIA

§ 213.81. Case Records Public Access Policy of the Unified Judicial System of Pennsylvania.

Section 1.0. Definitions.

A. "Abuse Victim" is a person for whom a protection order has been granted by a court pursuant to Pa.R.C.P. No. 1901 et seq. and 23 Pa.C.S. §§ 6101 et seq. or Pa.R.C.P. No. 1951 et seq. and 42 Pa.C.S §§ 62A01 et seq., as well as Pa.R.C.P.M.D.J. No. 1201 et seq.

B. "Case Records" are (1) documents for any case filed with, accepted and maintained by a court or custodian; (2) dockets, indices, and documents (such as orders, opinions, judgments, decrees) for any case created and maintained by a court or custodian. This term does not include notes, memoranda, correspondence, drafts, worksheets, and work product of judges and court personnel. Unless otherwise provided in this policy, this definition applies equally to case records maintained in paper and electronic formats.

C. "Clerical errors" are errors or omissions appearing in a case record that are patently evident, as a result of court personnel's action or inaction.

D. "Court" includes the Supreme Court, Superior Court, Commonwealth Court, Courts of Common Pleas, Philadelphia Municipal Court, and Magisterial District Courts.

E. "Court of Record" includes the Supreme Court, Superior Court, Commonwealth Court, Courts of Common Pleas, and Philadelphia Municipal Court.

F. "Court Facility" is the location or locations where case records are filed or maintained.

G. "Custodian" is any person responsible for maintaining case records or for processing public requests for access to case records.

H. "Docket" is a chronological index of filings, actions, and events in a particular case, which may include identifying information of the parties and counsel, a brief description or summary of the filings, actions, and events, and other case information.

I. "Financial Account Numbers" include financial institution account numbers, debit and credit card numbers, and methods of authentication used to secure accounts such as personal identification numbers, user names and passwords.

J. "Financial Source Documents" are:

1. Tax returns and schedules;

2. W-2 forms and schedules including 1099 forms or similar documents;

3. Wage stubs, earning statements, or other similar documents;

4. Credit card statements;

5. Financial institution statements;

6. Check registers;

7. Checks or equivalent; and

8. Loan application documents.

K. "Medical/psychological records" are records relating to the past, present, or future physical or mental health or condition of an individual.

L. "Minor" is a person under the age of eighteen.

M. "Party" is one who commences an action or against whom relief is sought in a matter.

N. "Public" is any person, member of the media, business, non-profit entity, organization or association. The term does not include a party to a case; the attorney(s) of record in a case; Unified Judicial System officials or employees if acting in their official capacities; or any

federal, state, or local government entity, and employees or officials of such an entity if acting in their official capacities.

O. "Remote Access" is the ability to electronically search, inspect, print or copy information in a case record without visiting the court facility where the case record is maintained or available, or requesting the case record from the court or custodian pursuant to Section 4.0.

Commentary

Regarding Subsection B, "documents for any case filed with, accepted and maintained by a court or custodian" are those not created by a court or custodian, such as pleadings and motions. Indices are tools for identifying specific cases.

Regarding Subsection C, examples of clerical errors are the docket entry links to the wrong document or court personnel misspells a name in the caption.

Regarding Subsection G, the definition of "custodian" includes clerks of court, prothonotaries, clerks of orphans' court and magisterial district judges, for example. The definition does not include those entities listed in Pa.R.A.P. 3191 who receive copies of briefs filed in an appellate court or a register of wills.

Regarding Subsection K, this definition is derived from the definition of "health information" provided in 45 C.F.R. § 160.103 (HIPAA). Examples of case records that would fall within this exclusion are: drug and alcohol treatment records, psychological reports in custody matters, and DNA reports.

Regarding Subsection M, *amici curiae* are not parties. *See* Pa.R.A.P. 531.

Regarding Subsection N, Unified Judicial System officials or employees include: judicial officers and their personal staff, administrative staff and other central staff, prothonotaries, clerks of the courts, clerks of the orphans' court division, sheriffs, prison and correctional officials, and personnel of all the above.

Section 2.0. Statement of General Policy.

A. This policy shall govern access by the public to case records.

B. Security, possession, custody, and control of case records shall generally be the responsibility of the applicable custodian and designated staff.

C. Facilitating access by the public shall not substantially impede the orderly conduct of court business.

D. A court or custodian may not adopt more restrictive or expansive access protocols than provided for in this policy. Nothing in this policy requires a court or custodian to provide remote access to case records. However, if a court or custodian chooses to provide remote access to any of its case records, access shall be provided in accordance with Section 10.0.

Commentary

The *Electronic Case Record Public Access Policy of the Unified Judicial System of Pennsylvania* provides for access to the statewide case management systems' web docket sheets and requests for bulk data.

Section 3.0. Access to Case Records.

All case records shall be open to the public in accordance with this policy.

Section 4.0. Requesting Access to Case Records.

A. When desiring to inspect or copy case records, a member of the public shall make an oral request to the applicable custodian, unless otherwise provided by a local rule or an order issued by a court of record.

B. When the information that is the subject of the request is complex or voluminous, the custodian may require a written request. If the requestor does not submit a written request when required, access may be delayed until the written request is submitted or a time when an individual designated by the custodian is available to monitor such access to ensure the integrity of the case records is maintained.

C. Requests shall identify or describe the records sought with specificity to enable the custodian to ascertain which records are being requested.

Commentary

Public access requests to the courts and custodians are routinely straightforward and often involve a limited number of records. Therefore, artificial administrative barriers should not be erected so as to inhibit making these requests in an efficient manner.

This policy provides the courts and custodians latitude to establish appropriate administrative protocols for viewing/obtaining case records remotely. However, the definition of "remote access" in Section 1.0 clarifies that a request under this section is neither necessary nor expected under this policy.

Nonetheless, Subsection B provides a custodian with the flexibility to require that a more complex request be submitted in writing to avoid misunderstandings and errors that can often result in more time being expended to provide the requested information than is necessary. This approach is not novel; submission of a written request form has been a longstanding practice under the Unified Judicial System's *Electronic Case Record Public Access Policy of the Unified Judicial System of Pennsylvania*.

Subsection C does not require a requestor to identify a case by party or case number in order to have access to the files, but the request shall clearly identify or describe the records requested so that court personnel can fulfill the request.

Written requests should be substantially in the format designed and published by the Administrative Office of Pennsylvania Courts.

Section 5.0. Responding to Requests for Access to Case Records.

A. A custodian shall fulfill a request for access to case records as promptly as possible under the circumstances existing at the time of the request.

B. If a custodian cannot fulfill the request promptly or at all, the custodian shall inform the requestor of the specific reason(s) why access to the information is being delayed or denied.

C. If a custodian denies a written request for access, the denial shall be in writing.

D. Except as provided in Subsection E, relief from a custodian's written denial may be sought by filing a motion or application with the court for which the custodian maintains the records.

E. Relief from a magisterial district court may be sought by filing an appeal with the president judge of the judicial district or the president judge's designee. Relief

from a written denial by the Philadelphia Municipal Court may be sought by filing a motion with the president judge of Philadelphia Municipal Court or the president judge's designee.

Commentary

Given that most public access requests for case records are straightforward and usually involve a particular case or matter, custodians should process the same in an expeditious fashion.

There are a number of factors that can affect how quickly a custodian may respond to a request. For example, the custodian's response may be slowed if the request is vague, involves retrieval of a large number of case records, or involves information that is stored off-site. Ultimately, the goal is to respond timely to requests for case records.

In those unusual instances in which access to the case records cannot be granted in an expeditious fashion, the custodian shall inform the requestor of the specific reason(s) why access to the information is being delayed or denied, which may include:

• the request involves such voluminous amounts of information that the custodian is unable to fulfill the same without substantially impeding the orderly conduct of the court or custodian's office;

• records in closed cases are located at an off-site facility;

• a particular file is in use by a judge or court staff. If a judge or court staff needs the file for an extended period of time, special procedures should be considered, such as making a duplicate file that is always available for public inspection;

• the requestor failed to pay the appropriate fees, as established pursuant to Section 6.0 of this policy, associated with the request;

• the requested information is restricted from access pursuant to applicable authority, or any combination of factors listed above.

With respect to Subsection D, an aggrieved party may seek relief from a denial of a written request for access consistent with applicable authority (for example, in an appellate court, Pa.R.A.P. 123 sets forth procedures for applications for relief under certain circumstances, or pertinent motion practice at the trial court level).

Section 6.0. Fees.

A. Unless otherwise provided by applicable authority, fees for duplication by photocopying or printing from electronic media or microfilm shall not exceed $0.25 per page.

B. Except as provided in Subsection C, a custodian shall establish a fee schedule that is (1) posted in the court facility in an area accessible to the public, and (2) posted on the custodian's website.

C. Any fee schedule for a magisterial district court shall be established by the president judge of the judicial district by local rule pursuant to Pa.R.J.A. No. 103(c). The fee schedule shall be publicly posted in an area accessible to the public.

Commentary

Reasonable fees may be imposed for providing public access to case records pursuant to this policy and in accordance with applicable authority. This section does not authorize fees for viewing records that are stored at the court facility.

To the extent that the custodian is not the court, approval of the fee schedule by the court may be necessary.

An example of applicable authority setting forth photocopying fees is 42 Pa.C.S. § 1725(c)(1)(ii) that provides the Clerk of Orphans' Court of the First Judicial District shall charge $3 per page for a copy of any record. *See also* 42 P.S. § 21032.1 (providing authority for the establishment of fees in orphans' court in certain judicial districts). In addition, the copying fees for appellate court records are provided for in 204 Pa. Code § 155.1. However, copies of most appellate court opinions and orders are available for free on the Unified Judicial System's website, www.pacourts.us.

Section 7.0. Confidential Information.

A. The following information is confidential and shall not be included in any document filed with a court or custodian, except on a Confidential Information Form filed contemporaneously with the document:

1. Social Security Numbers;

2. Financial Account Numbers, except an active financial account number may be identified by the last four digits when the financial account is the subject of the case and cannot otherwise be identified;

3. Driver License Numbers;

4. State Identification (SID) Numbers;

5. Minors' names and dates of birth except when a minor is charged as a defendant in a criminal matter (see 42 Pa.C.S. § 6355); and

6. Abuse victim's address and other contact information, including employer's name, address and work schedule, in family court actions as defined by Pa.R.C.P. No. 1931(a), except for victim's name.

This section is not applicable to cases that are sealed or exempted from public access pursuant to applicable authority.

B. The Administrative Office of Pennsylvania Courts shall design and publish the Confidential Information Form.

C. Reserved.

D. Parties and their attorneys shall be solely responsible for complying with the provisions of this section and shall certify their compliance to the court. The certification that shall accompany each filing shall be substantially in the following form: "I certify that this filing complies with the provisions of the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania* that require filing confidential information and documents differently than non-confidential information and documents." The certification language may be inserted in the document to be filed, thereby obviating the need for a separate certification form.

E. A court or custodian is not required to review or redact any filed document for compliance with this section. A party's or attorney's failure to comply with this section shall not affect access to case records that are otherwise accessible.

F. If a filed document fails to comply with the requirements of this section, a court of record may, upon motion or its own initiative, with or without a hearing, order the

filed document sealed, redacted, amended or any combination thereof. A court of record may impose sanctions, including costs necessary to prepare a compliant document for filing in accordance with applicable authority.

G. If a filed document fails to comply with the requirements of this section, a magisterial district court may, upon request or its own initiative, with or without a hearing, order the filed document redacted, amended or both.

H. This section shall apply to all documents for any case filed with a court or custodian on or after the effective date of this policy.

Commentary

This section is not applicable to cases that are sealed or exempted from public access pursuant to applicable authority, for example, cases filed under the Juvenile Act that are already protected by 42 Pa.C.S. § 6307, and Pa.Rs.J.C.P. 160 and 1160.

Attorneys are reminded that Rules 1.1 and 1.6 of the Rules of Professional Conduct require familiarity and compliance with this policy.

While Pa.R.C.P. No. 1931 is suspended in most judicial districts, the reference to the rule is merely for definitional purposes.

Unless constrained by applicable authority, court personnel and jurists are advised to refrain from inserting confidential information in court-generated case records (e.g., orders, notices) when inclusion of such information is not essential to the resolution of litigation, appropriate to further the establishment of precedent or the development of law, or necessary for administrative purposes. For example, if a court's opinion contains confidential information and, therefore, must be sealed or heavily redacted to avoid release of such information, this could impede the public's access to court records and ability to understand the court's decision.

When using a Confidential Information Form, the drafter shall indicate where in the document confidential information has been omitted by use of an alternative reference. For example, the drafter could insert minors' initials in the document, while listing full names on the Confidential Information Form. If more than one child has the same initials, a different moniker should be used (e.g., child one, child two, etc.). The Confidential Information Form published by the Administrative Office of Pennsylvania Courts includes alternative references that should be used by the drafter.

Most filings in magisterial district courts are completed on statewide forms designed by the Administrative Office of Pennsylvania Courts. Safeguarding the information set forth in this Section for magisterial district courts is achieved through the use of a Confidential Information Form in tandem with other administrative protocols (e.g., a public access copy page that shields confidential information was added to the citation form set).

With regard to Subsection D, the certification of compliance is required whether documents are filed in paper form or via an e-filing system. Moreover, the certification is required on every document filed with a court or custodian regardless of whether the filing contains "confidential information" requiring safeguarding under this policy. The certification is included on many forms that parties and attorneys file with the magisterial district courts. For documents e-filed through PACFile, available in the appellate courts and some common pleas courts, the filer can certify compliance by checking a box. In addition, the Administrative Office of Pennsylvania Courts included the certification on the Confidential Information Form, as well as created a sample standalone certification form that parties and attorneys may use or simply incorporate the language into their filed documents. This form may be found on the Unified Judicial System's website, www.pacourts.us.

With regard to Subsection E, a court or custodian is not required to review or redact documents filed by a party or attorney for compliance with this section. However, such activities are not prohibited.

With regard to Subsection F, any party may make a motion to the court of record to cure any defect(s) in any filed document that does not comport with this section.

With regard to Subsection G, any party may file a request form designed and published by the Administrative Office of Pennsylvania Courts with a magisterial district court when there is an allegation that a filing was made with that court that does not comply with this policy.

With regard to Subsection H, the policy was amended in 2021 to implement the Confidential Information Form as the single statewide method to safeguard the information identified in Subsection A. Prior to this amendment, an appellate or trial court could permit the filing of any document in two versions, a "Redacted Version" and "Unredacted Version," rather than require the use of the Confidential Information Form.

Section 8.0. Confidential Documents.

A. The following documents are confidential and shall be filed with a court or custodian under a cover sheet designated "Confidential Document Form":

1. Financial Source Documents;

2. Minors' educational records;

3. Medical/Psychological records;

4. Children and Youth Services' records;

5. Marital Property Inventory and Pre-Trial Statement as provided in Pa.R.C.P. No. 1920.33;

6. Income and Expense Statement as provided in Pa.R.C.P. No. 1910.27(c); and

7. Agreements between the parties as used in 23 Pa.C.S. § 3105.

This section is not applicable to cases that are sealed or exempted from public access pursuant to applicable authority.

B. The Administrative Office of Pennsylvania Courts shall design and publish the Confidential Document Form.

C. Confidential documents submitted with the Confidential Document Form shall not be accessible to the public, except as ordered by a court. However, the Confidential Document Form or a copy of it shall be accessible to the public.

D. Parties and their attorneys shall be solely responsible for complying with the provisions of this section and shall certify their compliance to the court. The certification that shall accompany each filing shall be substantially in the following form: "I certify that this filing complies with the provisions of the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania* that require filing confidential information and documents differently than non-confidential information and

documents." The certification language may be inserted in the document to be filed, thereby obviating the need for a separate certification form.

E. A court or custodian is not required to review any filed document for compliance with this section. A party's or attorney's failure to comply with this section shall not affect access to case records that are otherwise accessible.

F. If confidential documents are not submitted with the Confidential Document Form, a court of record may, upon motion or its own initiative, with or without a hearing, order that any such documents be sealed. A court of record may also impose appropriate sanctions for failing to comply with this section.

G. If a filed document fails to comply with the requirements of this section, a magisterial district court may, upon request or its own initiative, with or without a hearing, order that any such documents be sealed.

H. This section shall apply to all documents for any case filed with a court or custodian on or after the effective date of this policy.

Commentary

This section is not applicable to cases that are sealed or exempted from public access pursuant to applicable authority, such as Juvenile Act cases pursuant to 42 Pa.C.S. § 6307, and Pa.Rs.J.C.P. 160 and 1160.

Attorneys are reminded that Rules 1.1 and 1.6 of the Rules of Professional Conduct require familiarity and compliance with this policy.

Unless constrained by applicable authority, court personnel and jurists are advised to refrain from attaching confidential documents to court-generated case records (e.g., orders, notices) when inclusion of such information is not essential to the resolution of litigation, appropriate to further the establishment of precedent or the development of law, or necessary for administrative purposes. For example, if a court's opinion contains confidential information and, therefore, must be sealed or heavily redacted to avoid release of such information, this could impede the public's access to court records and ability to understand the court's decision.

Examples of "agreements between the parties" as used in Subsection (A)(7) include the following types of agreements: marital settlement, post-nuptial, pre-nuptial, and property settlement. See 23 Pa.C.S. § 3105 for more information about agreements between parties.

With regard to Subsection D, the certification of compliance is required whether documents are filed in paper form or via an e-filing system. Moreover, the certification is required on every document filed with a court or custodian regardless of whether the filing contains a "confidential document" requiring safeguarding under this policy. The certification is included on many forms that parties and attorneys file with the magisterial district courts. For documents e-filed through PACFile, available in the appellate courts and some common pleas courts, the filer can certify compliance by checking a box. In addition, the Administrative Office of Pennsylvania Courts included the certification on the Confidential Document Form, as well as created a sample stand-alone certification form that parties and attorneys may use or simply incorporate the language into their filed documents. This form may be found on the Unified Judicial System's website, www.pacourts.us.

With regard to Subsection E, if the party or party's attorney fails to use a cover sheet designated "Confidential Document Form" when filing a document deemed confidential pursuant to this section, the document may be released to the public.

With regard to Subsection F, any party may make a motion to the court of record to cure any defect(s) in any filed document that does not comport with this section.

With regard to Subsection G, any party may file a request form designed and published by the Administrative Office of Pennsylvania Courts with a magisterial district court when there is an allegation that a filing was made with that court that does not comply with this policy.

Section 9.0. Limits on Public Access to Case Records at a Court Facility.

The following information shall not be accessible by the public at a court facility:

A. Case records in proceedings under 20 Pa.C.S. § 711(9), including but not limited to case records with regard to issues concerning recordation of birth and birth records, the alteration, amendment, or modification of such birth records, and the right to obtain a certified copy of the same, except for the docket and any court order or opinion;

B. Case records concerning incapacity proceedings filed pursuant to 20 Pa.C.S. §§ 5501—5555, except for the docket and any final decree adjudicating a person as incapacitated;

C. Any Confidential Information Form as set forth in Section 7.0;

D. Any document filed with a Confidential Document Form as set forth in Section 8.0;

E. Information sealed or protected pursuant to court order;

F. Information to which access is otherwise restricted by federal law, state law, or state court rule; and

G. Information presenting a risk to personal security, personal privacy, or the fair, impartial and orderly administration of justice, as determined by the Court Administrator of Pennsylvania with the approval of the Chief Justice. The Court Administrator shall publish notification of such determinations in the *Pennsylvania Bulletin* and on the Unified Judicial System's website.

H. The Unredacted Version of any document filed in accordance with prior versions of this policy.

Commentary

Unless constrained by applicable authority, court personnel and jurists are advised to refrain from inserting confidential information in or attaching confidential documents to court-generated case records (e.g., orders, notices) when inclusion of such information is not essential to the resolution of litigation, appropriate to further the establishment of precedent or the development of law, or necessary for administrative purposes. For example, if a court's opinion contains confidential information and, therefore, must be sealed or heavily redacted to avoid release of such information, this could impede the public's access to court records and ability to understand the court's decision.

With respect to Subsection F, Pennsylvania Rule of Appellate Procedure 104(a), Pa.R.A.P. 104(a), provides that the appellate courts may make and amend rules of court governing their practice. The Administrative Office of Pennsylvania Courts shall from time to time publish a list of applicable authorities that restrict public access to

court records or information. This list shall be published on the Unified Judicial System's website and in the *Pennsylvania Bulletin*. In addition, all custodians shall post this list in their respective court facilities in areas accessible to the public and on the custodians' websites.

With respect to Subsection G, the Administrative Office of Pennsylvania Courts shall include any such determinations in the list of applicable authorities referenced above. The same provision appears in the *Electronic Case Record Public Access Policy of the Unified Judicial System of Pennsylvania*. The provision is intended to be a safety valve to address a future, extraordinary, unknown issue of statewide importance that might escape timely redress otherwise. It cannot be used by parties or courts in an individual case.

With regard to Subsection H, the policy was amended in 2021 to implement the Confidential Information Form as the single statewide method to safeguard the information identified in Subsection A. Prior to this amendment, an appellate or trial court could permit the filing of any document in two versions, a "Redacted Version" and "Unredacted Version," rather than require the use of the Confidential Information Form.

Section 10.0. Limits on Remote Access to Case Records.

A. The following information shall not be remotely accessible by the public:

1. The information set forth in Section 9.0;

2. In criminal cases, information that either specifically identifies or from which the identity of jurors, witnesses (other than expert witnesses), or victims could be ascertained, including names, addresses and phone numbers;

3. Transcripts lodged of record, excepting portions of transcripts when attached to a document filed with the court;

4. **Applications to Waive Fees and Costs (***In Forma Pauperis***) [petitions]**;

5. Case records in family court actions as defined in **[Pa.R.C.P. No.] Pa.R.Civ.P.** 1931(a), except for dockets, court orders and opinions;

6. Case records in actions governed by the Probate, Estates and Fiduciaries Code, Adult Protective Services Act and the Older Adult Protective Services Act, except for dockets, court orders and opinions; and

7. Original and reproduced records filed in the Supreme Court, Superior Court or Commonwealth Court as set forth in Pa.R.A.P. 1921, 1951, 2151, 2152, and 2156.

B. With respect to Subsections A(5) and A(6), unless otherwise restricted pursuant to applicable authority, dockets available remotely shall contain only the following information:

1. A party's name;

2. The city, state, and ZIP code of a party's address;

3. Counsel of record's name and address;

4. Docket number;

5. Docket entries indicating generally what actions have been taken or are scheduled in a case;

6. Court orders and opinions;

7. Filing date of the case; and

8. Case type.

C. Case records remotely accessible by the public prior to the effective date of this policy shall be exempt from this section.

Commentary

Remote access to the electronic case record information residing in the Pennsylvania Appellate Court Case Management System (PACMS), the Common Pleas Case Management System (CPCMS) and the Magisterial District Judges System (MDJS) is provided via web dockets, available on https://ujsportal.pacourts.us/, and is governed by the *Electronic Case Record Public Access Policy of the Unified Judicial System of Pennsylvania*.

Depending upon individual court resources, some courts have posted online docket information concerning civil matters. If a court elects to post online docket information concerning family court actions and actions governed by the Probate, Estates and Fiduciaries Code, Adult Protective Services Act and the Older Adult Protective Services Act, the docket may only include the information set forth in Subsection B. This information will provide the public with an overview of the case, its proceedings and other pertinent details, including the court's decision. Release of such information will enhance the public's trust and confidence in the courts by increasing awareness of the procedures utilized to adjudicate the claims before the courts, as well as the material relied upon in reaching determinations. This provision does not impact what information is maintained on the docket available at the court facility.

Access to portions of transcripts when attached to a document filed with the court in family court actions is governed by Subsection A(5). While Pa.R.C.P. No. 1931 is suspended in most judicial districts, the reference to the rule is merely for definitional purposes.

Section 11.0. Correcting Clerical Errors in Case Records.

A. A party, or the party's attorney, seeking to correct a clerical error in a case record may submit a written request for correction.

1. A request to correct a clerical error in a case record of the Supreme Court, Superior Court, or Commonwealth Court shall be submitted to the prothonotary of the proper appellate court.

2. A request to correct a clerical error in a case record of a court of common pleas, the Philadelphia Municipal Court, or a magisterial district court shall be submitted to the applicable custodian.

B. The request shall be made on a form designed and published by the Administrative Office of Pennsylvania Courts.

C. The requestor shall specifically set forth on the request form the information that is alleged to be a clerical error and shall provide sufficient facts, including supporting documentation, that corroborate the requestor's allegation that the information in question is in error.

D. The requestor shall provide copies of the request to all parties to the case.

E. Within 10 business days of receipt of a request, the custodian shall respond in writing to the requestor and all parties to the case in one of the following manners:

1. The request does not contain sufficient information and facts to determine what information is alleged to be in error, and no further action will be taken on the request.

2. The request does not concern a case record that is covered by this policy, and no further action will be taken on the request.

3. A clerical error does exist in the case record and the information in question has been corrected.

4. A clerical error does not exist in the case record.

5. The request has been received and an additional period not exceeding 30 business days is necessary to complete a review of the request.

F. A requestor may seek review of the custodian's response under Subsections E(1)—(4) within 10 business days of the mailing date of the response.

1. The request for review shall be submitted on a form that is designed and published by the Administrative Office of Pennsylvania Courts.

2. The request shall be reviewed by the judge(s) who presided over the case. However, if the request for review concerns a magisterial district court's decision, it shall be reviewed by the president judge or his/her designee.

Commentary

Case records are as susceptible to clerical errors and omissions as any other public record. The power of the court to correct errors in its own records is inherent. *E.g., Jackson v. Hendrick*, 746 A.2d 574 (Pa. 2000). It is important to emphasize that this section does not provide a party who is dissatisfied with a court's decision, ruling or judgment a new avenue to appeal the same by merely alleging there is an error in the court's decision, ruling or judgment. Rather, this section permits a party to "fix" information that appears in a case record which is not, for one reason or another, correct.

Particularly in the context of Internet publication of court records, a streamlined process is appropriate for addressing clerical errors to allow for prompt resolution of oversights and omissions. For example, to the extent that a docket in a court's case management system incorrectly reflects a court's order, or a scanning error occurred with regard to an uploaded document, such clerical inaccuracies may be promptly corrected by the appropriate court staff, upon notification, without a court order. Since 2007, the *Electronic Case Record Public Access Policy of the Unified Judicial System of Pennsylvania* has provided a similar procedure for any errors maintained on the web docket sheets of the PACMS, CPCMS and MDJS. The procedure has successfully addressed clerical errors on docket entries in a timely and administratively simple manner.

A party or party's attorney is not required to utilize the procedures set forth in this section before making a formal motion for correction of a case record in the first instance. Alleged inaccuracies in orders and judgments themselves must be brought to the attention of the court in accordance with existing procedures.

This section is not intended to provide relief for a party's or attorney's failure to comply with Sections 7.0 and 8.0 of this policy. Sections 7.0 and 8.0 already provide for remedial action in the event that non-compliance occurs.

With respect to this section, a custodian includes, but is not limited to, the county prothonotaries, clerks of orphans' court, clerks of the court, and magisterial district judges.

A log of all corrections made pursuant to this section may be maintained by the custodian, so that there is a record if an objection is made in the future. Such a log should remain confidential. It is suggested that custodians include a registry entry on the case docket when a request is received and a response is issued.

Section 12.0. Continuous Availability of Policy.

A copy of this policy shall be continuously available for public inspection in every court and custodian's office and posted on the Unified Judicial System's website.

[Pa.B. Doc. No. 26-639. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 210—APPELLATE PROCEDURE

PART I. RULES OF APPELLATE PROCEDURE

[210 PA. CODE CHS. 5, 9, 16, 17, 21, 25, 27, 37 AND 38]

Order Adopting Rules 550 and 1614; Amending Rules 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804; and Rescinding Rules 555, 556 and 561 of the Pennsylvania Rules of Appellate Procedure; No. 318 Appellate Procedural Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Appellate Court Procedural Rules Committee; the proposal having been published for public comment at 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rules 550 and 1614 of the Pennsylvania Rules of Appellate Procedure are adopted; Rules 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804 of the Pennsylvania Rules of Appellate Procedure are amended; and Rules 555, 556 and 561 of the Pennsylvania Rules of Appellate Procedure are rescinded, in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Additions to the rule are shown in bold and are underlined.

Deletions from the rule are shown in bold and brackets.

Annex A

TITLE 210. APPELLATE PROCEDURE

PART I. RULES OF APPELLATE PROCEDURE

ARTICLE I. PRELIMINARY PROVISIONS

CHAPTER 5. PERSONS WHO MAY TAKE OR PARTICIPATE IN APPEALS

FORMA PAUPERIS

(The following is an entirely new rule.)

Rule 550. Waiver of Fees and Costs Required under Chapter 27.

The fees and costs required under Chapter 27 (Fees and Costs in Appellate Courts and on Appeal), Pa.R.A.P. 2701—2771, may be waived for a party by continuing an existing waiver or obtaining a new waiver, as provided in these rules.

Comment:

A party continuing or obtaining a waiver is commonly described as "proceeding *in forma pauperis*."

Relief from requirements for posting a supersedeas bond in civil matters must be sought under Pa.R.A.P. 1732 (application for stay or injunction pending appeal) and relief from bail requirements in criminal matters must be sought as prescribed by Pa.R.A.P. 1762 (release in criminal matters). Under Pa.R.A.P. 123 (applications for relief), applications for relief pursuant to Pa.R.A.P. 552 (new waiver of fees and costs for purposes of appeal) and other rules may be combined into a single document.

Rule 551. Continuation of **[*In Forma Pauperis* Status]** **Prior Waiver of Fees and Costs** for Purposes of Appeal.

[(a) *General rule.*—A party who has been granted leave by a trial court to proceed *in forma pauperis* may proceed *in forma pauperis* in an appellate court upon filing with the clerk of the trial court two copies of a verified statement stating:

(1) The date on which the trial court entered the order granting leave to proceed *in forma pauperis*.

(2) That there has been no substantial change in the financial condition of the party since such date.

(3) That the party is unable to pay the fees and costs on appeal.

(b) *Effect on filing fees.*—A verified statement conforming to paragraph (a) of this rule, papers transmitted therewith, and papers subsequently tendered by a party which has filed such a verified statement, shall be filed by any clerk who has notice of such filing without the payment of any fee required under Chapter 27 (fees and costs in appellate courts and on appeal).

***Official Note*: Ordinarily the copies of the verified statement under this rule would be filed with the clerk of the trial court at the time copies of the notice of appeal are filed under Pa.R.A.P. 905 (filing of notice of appeal).]**

(The following is entirely new rule text.)

(a) *General Rule.* A previously granted waiver of fees and costs pursuant to Pa.R.J.A. 1990 (application to waive fees and costs) shall continue in an appeal of the same case in the appellate court.

(b) *Verified Statement.* A court may, by order or rule, require a party previously granted a waiver to file a verified statement setting forth:

(1) The date on which the trial court entered the order granting the waiver;

(2) There has been no substantial change in the financial condition of the party since such date; and

(3) The party is unable to pay the fees and costs on appeal.

(c) *Effect on Fees and Costs.* The waiver continued pursuant to subdivision (a) shall permit the filing of an appeal and any related documents without the payment of any fees or costs required under Chapter 27.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1979

In forma pauperis rules are revised to permit the appellate prothonotary to permit an appeal to be taken without payment of fee where the IFP documentation is completed promptly after demand therefor, to reflect the integration (by the amendments to Rules 905 and 907) of appellate docketing and the filing of the notice of appeal in the lower court, and to conform the procedures on nonpayment of required filing fees with the general requirements of Chapter 27.

Rule 552. **[Application to Trial Court for Leave to Appeal *In Forma Pauperis*]** **New Waiver of Fees and Costs for Purposes of Appeal**.

[(a) *General rule.*—A party who is not eligible to file a verified statement under Pa.R.A.P. 551 (continuation of in forma pauperis status for purposes of appeal) may apply to the trial court for leave to proceed on appeal *in forma pauperis*. The application may be filed before or after the taking of the appeal, but if filed before the taking of the appeal, the application shall not extend the time for the taking of the appeal.

(b) *Accompanying verified statement.*—Except as prescribed in paragraph (d) of this rule, the application shall be accompanied by a verified statement substantially conforming to the requirements of Pa.R.A.P. 561 (form of IFP verified statement) showing in detail the inability of the party to pay the fees and costs provided for in Chapter 27 (fees and costs in appellate courts and on appeal).

(c) *No filing fee required.*—The clerk of the trial court shall file an application under this rule without the payment of any filing fee.

(d) *Automatic approval in certain cases.*—If the applicant is represented by counsel who certifies on the application or by separate document that the applicant is indigent and that such counsel is providing free legal service to the applicant, the clerk of the trial court shall forthwith enter an order granting the application. The clerk may accept and act on an application under this paragraph without an accompanying verified statement by the party.

(e) *Consideration and action by the court.*—Except as prescribed in paragraph (d) of this rule, the application and verified statement shall be submitted to the court, which shall enter its order thereon within 20 days from the date of the filing of the application. If the application is denied, in whole or in part, the court shall briefly state its reasons.

(f) *Certificate of compliance with Case Records Public Access Policy of the Unified Judicial System of Pennsylvania.*—An application filed under this Rule shall contain the certificate of compliance required by Pa.R.A.P. 127.

***Official Note*: Extends the substance of former Supreme Court Rule 61(b) (part) and 61(c) (part) to the Superior and Commonwealth Courts and provides for action by the clerk in lieu of the court. It is anticipated that an application under this rule ordinarily would be acted upon prior to the docketing of the appeal in the appellate court and the transmission of the record.**

Relief from requirements for posting a supersedeas bond in civil matters must be sought

under Pa.R.A.P. 1732 (application for stay or injunction pending appeal) and relief from bail requirements in criminal matters must be sought as prescribed by Pa.R.A.P. 1762 (release in criminal matters), but under Pa.R.A.P. 123 (applications for relief) and applications under Pa.R.A.P. 552 (or 553) and other rules may be combined into a single document.]

(The following is entirely new rule text.)

(a) *General Rule.*

(1) *Notice of Appeal.* An appellant who was not previously granted a waiver of fees and costs by the trial court may seek a waiver of fees and costs by filing an application or *praecipe* of counsel pursuant to Pa.R.J.A. 1990 in the trial court at the same time as the filing of the notice of appeal or any time thereafter during the pendency of the appeal. Any application to waive fees and costs filed with the appellate court shall contain the certificate of compliance required by Pa.R.A.P. 127 (confidential information and confidential documents; certification).

(2) *Petition or Other Initiating Document.* A petitioner who was not previously granted a waiver of fees and costs may seek a waiver of fees and costs by filing an application or *praecipe* of counsel pursuant to Pa.R.J.A. 1990 in the appellate court at the same time as the filing of the petition or other initiating document or any time thereafter. Any application to waive fees and costs filed with the appellate court shall contain the certificate of compliance required by Pa.R.A.P. 127 (confidential information and confidential documents; certification).

(b) *Remand.* An appellate court may remand an application and any supplemental information to a court of record for an *ex parte* hearing and decision. The decision by the court of record shall be rendered within 30 days of the date of the remand order unless otherwise directed by the appellate court.

(c) *Unemployment Compensation Cases.* Any fees and costs required under Chapter 27 shall be deemed waived for a petitioner in an unemployment compensation matter without the need for an application or *praecipe*.

Comment:

If an application or *praecipe* is not filed when an action is commenced, the action will be docketed but all applicable fees and costs will be required to be paid before proceeding. *See generally* Pa.R.A.P. 902 (manner of taking appeal).

In subdivision (a)(2), "other initiating document" includes, but is not limited to, a petition for allowance of appeal, a petition for permission to appeal, petition for review, a petition for specialized review, an application for leave to file original process, and an application for extraordinary relief. *See* Chapter 11 (petition for allowance of appeal), Chapter 13 (petition for permission to appeal), Chapter 15 (petition for review), Chapter 16 (petition for permission to appeal), Pa.R.A.P. 3307 (application for leave to file original process), and Pa.R.A.P. 3309 (application for extraordinary relief).

A record hearing is necessary when an application cannot be granted based upon the application and any supplemental information submitted to the appellate court. Subdivision (b) authorizes an appellate court to remand the application to a court of record, if necessary.

The judicial determination of an application is *ex parte*, see subdivision (b). As such, the party is not required to serve the application on any other party. The application and order are publicly accessible pursuant to the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania*.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1979

In forma pauperis rules are revised to permit the appellate prothonotary to permit an appeal to be taken without payment of fee where the IFP documentation is completed promptly after demand therefor, to reflect the integration (by the amendments to Rules 905 and 907) of appellate docketing and the filing of the notice of appeal in the lower court, and to conform the procedures on nonpayment of required filing fees with the general requirements of Chapter 27.

Rule 553. **[Application in Appellate Court]** **Obligation to Inform of Improved Financial Circumstances**.

[(a) *General rule.*—A party who has been denied relief under Pa.R.A.P. 552, or who has been unable to file an application under such rule because the matter is an original action in the appellate court, or a petition for review or petition for specialized review proceeding relating to a government unit other than a court, or for any other reason, may apply to the appellate court for leave to proceed *in forma pauperis* in the appellate court.

(b) *Form and procedure.*—An application under this rule shall be governed by Pa.R.A.P. 552 so far as it may be applied.

***Official Note*: Unlike the prior rule, this rule makes clear that an application may be made in the appellate court even if it has been denied in the trial court.]**

(The following is entirely new rule text.)

A party or counsel receiving a waiver of fees and costs has a continuing obligation to inform the court of an improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Comment:

For eligibility of a waiver, see Pa.R.J.A. 1990(b).

Rule 554. **[Effect of Application and Approval Thereof]** **Appellate Review**.

[(a) *Appeal taken before application filed.*—If an application under Rule 552 (application to lower court for leave to appeal in forma pauperis) or Rule 553 (application in appellate court) is not filed before an appeal is taken, all applicable filing fees which are due before such an application is filed shall be treated as unpaid for purposes of Chapter 27 (fees and costs in appellate courts and on appeal).

(b) *Appeal taken before application acted upon.*—If an application under Rule 552 or Rule 553 has been filed but has not been acted upon any clerk who has notice of such filing shall accept any papers relating to the appeal without the payment of any fees required under Chapter 27. Transmission of a copy of the application under Rule 552

pursuant to Rule 905(b) (transmission to appellate court) or otherwise shall constitute notice to an appellate prothonotary of the pendency thereof for the purposes of this rule. If the application under Rule 552 or Rule 553 is thereafter denied the applicant shall pay all applicable filing fees required under Chapter 27.

(c) *Appeal taken after application granted.*—If an appeal is taken after an application under Rule 552 has been granted, the party shall proceed under Rule 551 (continuation of in forma pauperis status for purposes of appeal), except that a copy of the order granting the application may be substituted for the verified statement required by Rule 551.

***Official Note*: In addition to its elimination of the requirement for the payment of fees, IFP status eliminates the requirement of reproducing the record, see Rule 2151(b) (in forma pauperis), and reduces the number of copies of the brief required to be served and filed. See Rule 2187(c) (in forma pauperis).]**

(The following is entirely new rule text.)

Appellate review of an application to waive fees and costs denied in a court of record shall be initiated by petition for specialized review in accordance with Pa.R.A.P. 1601—1606, subject to the procedures set forth in Pa.R.A.P. 1614.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1979

In forma pauperis rules are revised to permit the appellate prothonotary to permit an appeal to be taken without payment of fee where the IFP documentation is completed promptly after demand therefor, to reflect the integration (by the amendments to Rules 905 and 907) of appellate docketing and the filing of the notice of appeal in the lower court, and to conform the procedures on nonpayment of required filing fees with the general requirements of Chapter 27.

Rule 555. **[Obligation to Inform of Improved Financial Circumstances]** **Reserved**.

[A party permitted to proceed in forma pauperis has a continuing obligation to inform the appellate court of improvement in the financial circumstances of the party. Counsel for a party shall likewise be under a continuing obligation to inform the appellate court of such improvement within a reasonable time after counsel learns of it.

***Note*: Extends former Supreme Court Rule 61(e) to the Superior and the Commonwealth Courts.]**

Rule 556. **[Unemployment Compensation Cases]** **Reserved**.

[A claimant-appellant in an unemployment compensation matter may proceed in forma pauperis without applying for leave to do so. The petition for review, papers transmitted therewith and papers subsequently tendered by the party in such a matter shall be filed by the clerk without the payment of any fee required under Chapter 27 (fees and costs in appellate courts and on appeal).

***Note*: A claimant-appellant in a workers' compensation matter, who was within the scope of the former version of this Rule, remains free to apply for leave to proceed in forma pauperis pursuant to Rule 553.]**

Rule 561. **[Form of IFP Verified Statement]** **Reserved**.

[A verified statement under this chapter in support of an application for leave to proceed in forma pauperis shall be in substantially the following form:

[Caption]

_____ (Insert name of applicant) states under the penalties provided by 18 Pa.C.S. § 4904 (unsworn falsification to authorities) that:

1. I am the _____ (plaintiff or defendant) in the above action and because of my financial condition am unable to pay the following fees and costs:
(state with particularity the relief requested, e.g., appellate filing fees, costs of reproducing records or briefs, or filing of supersedeas security if irreparable harm would result if not waived.)

2. My responses to the questions below relating to my ability to pay the fees and costs of prosecuting an appeal are true and correct.

(a) Are you presently employed?

(1) If the answer is yes, state the amount of your salary or wages per month and give the name and address of your employer.

(2) If the answer is no, state the date of your last employment and the amount of the salary and wages per month which you received.

(b) Have you received within the past twelve months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends, pensions, annuities, social security benefits, support payments or other source?

If the answer is yes, describe each source of income, and state the amount received from each during the past twelve months.

(c) Do you own any cash or checking or savings account?

If the answer is yes, state the total amount of the items owned.

(d) Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)?

If the answer is yes, describe the property and state its approximate value and the amount of any encumbrances.

(e) List the persons, if any, who are dependent upon you for support and state your relationship to those persons.

(f) List all your debts and obligations.

3. I understand that a false statement or answer to any question in this verified statement will subject me to the penalties provided by law (misdemeanor of the second degree).

Signature of Applicant

***Note*: Extends former Supreme Court Rule 61 (form) to the Superior and Commonwealth Courts and makes no change in substance other than the substitution of the statutory verification for an affidavit.]**

ARTICLE II. APPELLATE PROCEDURE

CHAPTER 9. APPEALS FROM LOWER COURTS

Rule 905. Filing of Notice of Appeal.

(a) *Filing with* **[*clerk*]** ***Clerk***.

(1) Two copies of the notice of appeal, the order for transcript, if any, and the proof of service required by Pa.R.A.P. 906, shall be filed with the clerk of the trial court. If the appeal is to the Supreme Court, the jurisdictional statement required by Pa.R.A.P. 909 shall also be filed with the clerk of the trial court.

(2) If the appeal is a children's fast track appeal, a concise statement of errors complained of on appeal as described in Pa.R.A.P. 1925(a)(2) shall be filed with the notice of appeal and served on the trial judge in accordance with Pa.R.A.P. 906(a)(2).

(3) Upon receipt of the notice of appeal, the clerk shall immediately stamp it with the date of receipt, and that date shall constitute the date when the appeal was taken, which date shall be shown on the docket.

(4) If a notice of appeal is mistakenly filed in an appellate court, or is otherwise filed in an incorrect office within the unified judicial system, the clerk shall immediately stamp it with the date of receipt and transmit it to the clerk of the court which entered the order appealed from, and upon payment of an additional filing fee the notice of appeal shall be deemed filed in the trial court on the date originally filed.

(5) A notice of appeal filed after the announcement of a determination but before the entry of an appealable order shall be treated as filed after such entry and on the day thereof.

(b) *Transmission to* **[*appellate court.*—]** ***Appellate Court.*** The clerk shall immediately transmit to the prothonotary of the appellate court named in the notice of appeal a copy of the notice of appeal and all attachments, as well as a receipt showing collection of any docketing fee in the appellate court required under **[paragraph] subdivision** (c). If the appeal is a children's fast track appeal, the clerk shall stamp the notice of appeal with a "Children's Fast Track" designation in red ink, advising the appellate court that the appeal is a children's fast track appeal, and the clerk shall also transmit to the prothonotary of the appellate court named in the notice of appeal the concise statement of errors complained of on appeal required by **[subparagraph] subdivision** (a)(2) **[of this rule]**. The clerk shall also transmit with such documents:

(1) copies of all orders for transcripts relating to orders on appeal;

(2) a copy of any verified statement, application, or other document filed under **[Pa.R.A.P. 551—561 relating to in *forma pauperis*] Pa.R.J.A. 1990 and Pa.R.A.P. 550—554 relating to a waiver of fees and costs**; and

(3) if the appeal is to the Supreme Court, the jurisdictional statement required by Pa.R.A.P. 909.

(c) *Fees.***[—]**The appellant upon filing the notice of appeal shall pay any fees therefor (including docketing fees in the appellate court) prescribed by Chapter 27.

[*Official Note*:] Comment:

To preserve a mailing date as the filing date for an appeal as of right from an order of the Commonwealth Court, **[*see*] see** Pa.R.A.P. 1101(b).

To determine the number of copies to be filed, see Pa.R.A.P. 124(c) and its Official Note. The appellate court portion of the filing fee will be transmitted pursuant to regulations adopted under 42 Pa.C.S. § 3502.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1979

The appellate prothonotaries have reported that on numerous occasions an appeal is taken in the lower court, the appellant fails to docket the appeal, the appellee fails to move for dismissal under Rule 1971, and a record arrives in the appellate court without prior notice to the court. Hereafter a duplicate set of appeal papers will be filed in the lower court and the clerk of the lower court will collect the appellate docketing fee and notify the appellate prothonotary of the taking of an appeal by transmitting one copy of the appeal papers. The appeal will thus be self-docketing and Rule 1971 is rescinded as obsolete. Among other things, this procedure will facilitate the sua sponte dismissal of out of time appeals, since the appellate court will immediately know the date the appeal was taken. In order to permit the appellate prothonotary to contact the parties or counsel, a new requirement is added that copies of the proof of service be furnished to the clerk of the lower court at the time the appeal is filed. A related temporary provision governing the internal transmission of the docketing fee to the appellate prothonotary is included in the Order adopting the amendments.

CHAPTER 16. SPECIALIZED REVIEW

SPECIFIC PETITIONS FOR SPECIALIZED REVIEW

Rule 1612. Review of Out-of-Home Placement in Juvenile Delinquency.

(a) *General* **[*rule.*—]** ***Rule.*** If a court under the Juvenile Act, 42 Pa.C.S. §§ 6301 *et seq.*, enters an order after an adjudication of delinquency of a juvenile pursuant to Pa.R.J.C.P. 409(A)(2) and 515, which places the juvenile in an out-of-home overnight placement in any agency or institution that shall provide care, treatment, supervision, or rehabilitation of the juvenile, the juvenile may file a petition for specialized review. The petition shall be filed within ten days of the order.

(b) *Content.***[—]**

(1) A petition for specialized review under **[paragraph] subdivision** (a) shall contain:

(i) a specific description of any determinations made by the juvenile court;

(ii) the matters complained of;

(iii) a concise statement of the reasons why the juvenile court abused its discretion in ordering the out-of-home placement;

(iv) the proposed terms and conditions of an alternative disposition for the juvenile;

(v) a request that the official court reporter for the juvenile court transcribe the notes of testimony as required by **[paragraph]** **subdivision** (g) **[of this rule]**; and

(vi) the certificate of compliance required by Pa.R.A.P. 127.

(2) Any order(s) and opinion(s) relating to the out-of-home placement and the transcript of the juvenile court's findings shall be attached as appendices.

(3) The petition shall be supported by a certificate of counsel to the effect that it is presented in good faith and not for delay.

(c) *Scope of* **[*review*]** ***Review***.

(1) The reviewing court shall not consider any challenge to the juvenile court's selection of a specific agency or specific institution as the site of the out-of-home placement and instead may consider only a challenge to the fact that the placement is out-of-home.

(2) The reviewing court shall not consider any challenge to the underlying adjudication of delinquency.

(d) *Response.***[—]**Any response shall be filed within ten days of service of the petition, and no other pleading is authorized.

(e) *Service.***[—]**A copy of the petition for specialized review and any answer thereto shall be served on the judge of the juvenile court and the official court reporter for the juvenile court. All parties in the juvenile court shall be served in accordance with Pa.R.A.P. 121.

(f) *Opinion of* **[*juvenile court.—]** ***Juvenile Court.*** Upon receipt of a copy of a petition for specialized review under **[paragraph]** **subdivision** (a), if the judge who made the disposition of the out-of-home placement did not state the reasons for such placement on the record at the time of disposition pursuant to Pa.R.J.C.P. 512(D), the judge shall file of record a brief statement of the reasons for the determination or where in the record such reasons may be found, within five days of service of the petition for specialized review.

(g) *Transcription of Notes of Testimony.***[—]** Upon receipt of a copy of a petition for specialized review under **[paragraph]** **subdivision** (a), the court reporter shall transcribe the notes of testimony and deliver the transcript to the juvenile court within five business days. If the transcript is not prepared and delivered in a timely fashion, the juvenile court shall order the court reporter to transcribe the notes and deliver the notes to the juvenile court, and may impose sanctions for violation of such an order. **[If the juvenile is proceeding *in forma pauperis*]** **If a waiver of fees and costs has been granted**, the juvenile shall not be charged for the cost of the transcript.

(h) **[*Non-waiver of objection to placement.—]** ***Non-Waiver of Objection to Placement.*** A failure to seek review under this rule of the out-of-home placement shall not constitute a waiver of the juvenile's right to seek review of the placement in a notice of appeal filed by the juvenile from a disposition after an adjudication of delinquency.

[*Official Note*:] Comment:

This rule provides a mechanism for the expedited review of an order of out-of-home placement entered pursuant to Pa.R.J.C.P. 515. Pa.R.J.C.P. 512(D) requires the judge who made the disposition of an out-of-home placement to place the reasons for the out-of-home placement on the record at the time of the disposition, and **[paragraph]** **subdivision** (f) of this rule is applicable only in the exceptional circumstance where the judge who made the disposition of an out-of-home placement fails to comply with Pa.R.J.C.P. 512(D). The Juvenile Act, 42 Pa.C.S. § 6352, sets forth the considerations for a dispositional order following an adjudication of delinquency and the alternatives for disposition. The standard for review of a dispositional order is an abuse of discretion. *See In the Interest of A.D.*, 771 A.2d 45 (Pa. Super. 2001) (*en banc*).

(The following is an entirely new rule.)

Rule 1614. Review of Orders Denying Waiver of Fees and Costs.

Appellate review of an order denying an application for a waiver of fees and costs by a court of record pursuant to Pa.R.J.A. 1990 shall be initiated by petition for specialized review pursuant to Pa.R.A.P. 1601—1606 subject to the following:

(a) *Time for Filing.* A petition for specialized review shall be filed within 30 days after the entry of the order denying an application for the waiver of fees and costs by a court of record. The filing office shall docket the legal action and the application or *praecipe* without the party paying the filing fee.

(b) *Ex Parte Review.* Appellate review shall be conducted in an *ex parte* manner. As such, no other party shall be named as respondent, only the court of record denying the application shall be served the petition, and no response to the petition by any other party shall be permitted.

(c) *Contents.* In addition to the content requirements of Pa.R.A.P. 1603(c)(1)—(c)(5) and (c)(7)-(c)(8), the requirement of Pa.R.A.P. 1603(c)(6) shall be satisfied with a concise statement of the reasons why the court of record that denied the application erred.

Comment:

See Pa.R.A.P. 701 (petitions for specialized review shall be filed in the appellate court having jurisdiction of final orders in such matters).

Subdivision (b) continues the *ex parte* procedure of Pa.R.J.A. 1990(e)(4) to appellate review. The proscriptions of subdivision (b) are intended to limit the application of Pa.R.A.P. 1603(a) (captions and parties), Pa.R.A.P. 1604 (service), and Pa.R.A.P. 1605 (response to petition).

See Pa.R.A.P. 1701(e) for the ability to seek a stay or supersedeas of a trial court order under Chapter 17 upon the filing of a petition for specialized review.

To determine the number of copies to be filed, see Pa.R.A.P. 124(c) and its Official Note.

CHAPTER 17. EFFECT OF APPEALS; SUPERSEDEAS AND STAYS

IN GENERAL

Rule 1701. Effect of Appeal Generally.

(a) *General* **[** ***rule.—*** **]** ***Rule.*** Except as otherwise prescribed by these rules, after an appeal is taken or review of a quasijudicial order is sought, the trial court or other government unit may no longer proceed further in the matter.

(b) *Authority of a* **[** ***trial court or other government unit after appeal.—*** **]** ***Trial Court or Other Government Unit After Appeal.*** After an appeal is taken or review of a quasijudicial order is sought, the trial court or other government unit may:

(1) Take such action as may be necessary to preserve the status quo, correct formal errors in papers relating to the matter, cause the record to be transcribed, approved, filed, and transmitted, grant **[leave to appeal *in forma pauperis*] a waiver of fees and costs for purposes of appeal**, grant *supersedeas*, and take other action permitted or required by these rules or otherwise ancillary to the appeal or petition for review proceeding.

(2) Enforce any order entered in the matter, unless the effect of the order has been superseded as prescribed in this chapter.

(3) Grant reconsideration of the order which is the subject of the appeal or petition, if:

(i) an application for reconsideration of the order is filed in the trial court or other government unit within the time provided or prescribed by law; and

(ii) an order expressly granting reconsideration of such prior order is filed in the trial court or other government unit within the time prescribed by these rules for the filing of a notice of appeal or petition for review of a quasijudicial order with respect to such order, or within any shorter time provided or prescribed by law for the granting of reconsideration.

A timely order granting reconsideration under this **[paragraph] subdivision** shall render inoperative any such notice of appeal or petition for review of a quasijudicial order theretofore or thereafter filed or docketed with respect to the prior order. The petitioning party shall**,** and any party may**,** file a *praecipe* with the prothonotary of any court in which such an inoperative notice or petition is filed or docketed and the prothonotary shall note on the docket that such notice or petition has been stricken under this rule. **[Where] If** a timely order of reconsideration is entered under this **[paragraph] subdivision**, the time for filing a notice of appeal or petition for review begins to run anew after the entry of the decision on reconsideration, whether or not that decision amounts to a reaffirmation of the prior determination of the trial court or other government unit. No additional fees shall be required for the filing of the new notice of appeal or petition for review.

(4) Authorize the taking of depositions or the preservation of testimony where required in the interest of justice.

(5) Take any action directed or authorized by an appellate court.

(6) Proceed further in any matter in which a nonappealable interlocutory order has been entered, notwithstanding the filing of a notice of appeal or a petition for review of the order.

(c) *Limited to* **[** ***matters in dispute.—*** **]** ***Matters in Dispute.*** **[Where] If** only a particular item, claim, or assessment adjudged in the matter is involved in an appeal, or in a petition for review proceeding relating to a quasijudicial order, the appeal or petition for review proceeding shall operate to prevent the trial court or other government unit from proceeding further with only such item, claim, or assessment, unless otherwise ordered by the trial court or other government unit or by the appellate court or a judge thereof as necessary to preserve the rights of the appellant.

(d) *Original* **[** ***jurisdiction petitions for review.—*** **]** ***Jurisdiction Petitions for Review.*** The filing of an original jurisdiction petition for review shall not affect the power or authority of the government unit to proceed further in the matter, but the government unit shall be subject to any orders entered by the appellate court or a judge thereof pursuant to this chapter.

(e) *Petitions for* **[** ***specialized review—*** **]** ***Specialized Review.*** The filing of a petition for specialized review under Chapter 16 shall not affect the power or authority of the trial court or other government unit to proceed further in the matter, but the provisions of this chapter relating to *supersedeas* of the order of the trial court or other government unit shall apply.

[***Official Note*****:** **] Comment:**

The following statutory provisions relate to *supersedeas* generally:

42 Pa.C.S. § 702(c) (*supersedeas*) provides that, except as otherwise prescribed by general rule, a petition for permission to appeal under that section shall not stay the proceedings before the trial court or other government unit, unless the trial court or other government unit or the appellate court or a judge thereof shall so order. *See also* Pa.R.A.P. 1313 (effect of filing petition).

42 Pa.C.S. § 5105(e) (*supersedeas*) provides that an appeal shall operate as a *supersedeas* to the extent and upon the conditions provided or prescribed by law, and that unless a *supersedeas* is entered, no appeal from an order concerning the validity of a will or other instrument or the right to the possession of or to administer any real or personal property shall suspend the powers or prejudice the acts of the appointive judicial officer, personal representative, or other person acting thereunder.

[Paragraph] Subdivision (a) codifies a well-established principle. *See*, for example, *Merrick Estate*, 247 A.2d 786, 787 (Pa. 1968); *Corace v. Balint*, 210 A.2d 882, 889 (Pa. 1965). Pa.R.A.P. 5102 saves the provisions of Section 426 of the Pennsylvania Workers' Compensation Act, 77 P.S. § 871, which permit a rehearing by the agency under certain circumstances during the pendency of an appeal. Pa.R.A.P. 311(h) (further proceedings in trial court) provides that **[paragraph] subdivision** (a) is not applicable where an appeal as of right is taken from interlocutory orders relating to attachments, custodianships, receiverships, and injunctions, and that when such matters are appealed, the trial court may nonetheless proceed with the underlying case.

[Subparagraph] Subdivision (b)(1) sets forth an obvious power of the trial court or other government unit under these rules to take actions to preserve the *status quo* and to clarify or correct an order or verdict. The power to clarify or correct does not extend to substantive modifications. *See Pa. Indus. Energy Coalition v. Pennsylvania PUC*, 653 A.2d 1336, 1344-45 (Pa. Cmwlth. 1995),

aff'd, 670 A.2d 1152 (Pa. 1996). Examples of permissible actions to preserve the *status quo* are those "auxiliary to the appellate process, such as a supersedeas or injunction." *Id.* Examples of permissible corrections are "nonsubstantial technical amendments to an order, changes in the form of a decree, and modification of a verdict to add prejudgment interest." *Id.* at 1344. "Such actions have no effect on the appeal or petition for review and cannot prompt a new appealable issue." *Id.* at 1345.

Among the permissible "corrections" is the addition or modification of contractual or statutory prejudgment interest, which is an element of contract damages. In such cases, the award of such interest is mandatory and not discretionary. *TruServ Corp. v. Morgan's Tool & Supply Co. Inc.*, 39 A.3d 253, 264 (Pa. 2012). Accordingly, even though the amount of a verdict is changed by the addition of prejudgment interest, the verdict has been "corrected" and not "modified."

The Supreme Court has held that, so long as a motion for attorneys' fees has been timely filed, a trial court may act on that motion under **[subparagraph]** **subdivision** (b)(1) even after an appeal has been taken. *Samuel-Bassett v. Kia Motors Am., Inc.*, 34 A.3d 1, 48 (Pa. 2011). Thus, unlike the court actions discussed in *Pennsylvania Industrial Energy Coalition*, an award of attorneys' fees constitutes a separately appealable order that would be reviewable upon filing of a timely separate notice of appeal, measured from the date the fee award order was entered.

Generally an appeal does not operate as a *supersedeas* of an order of a government unit.

[Subparagraph] **Subdivision** (b)(3) is intended to address the troublesome question of the effect of an application for reconsideration on the appeal process. By statute, a trial court has only 30 days from the entry of a final order to "modify or rescind" its order. 42 Pa.C.S. § 5505; *see also Key Automotive Equip. Specialists v. Abernethy*, 636 A.2d 1126, 1128 (Pa. Super. 1994) (recognizing that the statute does not apply to limit reconsideration of interlocutory orders). Under this rule, an express determination by a trial court or other government unit within 30 days that it is reconsidering its earlier order satisfies the statutory requirement; the trial court or other government unit does not need to grant the relief sought in the application for reconsideration within the 30 days. The 30-day period protects against the risk that someone could take a "snap" appeal and foreclose reconsideration, but, because the clock is running on the appeal period and the period for reconsideration simultaneously, filing the notice of appeal at the same time as or shortly after the motion for reconsideration will protect against waiver of the appeal if the trial court or other government unit fails to act.

[Subparagraph] **Subdivision** (b)(3) provides that: "**[[W]here]** **If** a timely order of reconsideration is entered under this **[paragraph]** **subdivision**, the time for filing a notice of appeal or petition for review begins to run anew after entry of the decision on reconsideration." Pursuant to **[Pa.R.C.P.]** **Pa.R.Civ.P.** 1930.2, if reconsideration from a domestic relations order has been timely granted, a reconsidered decision or an order directing additional testimony must be entered within 120 days of the entry of the order granting reconsideration or the motion shall be deemed denied. *See* **[Pa.R.C.P.]** **Pa.R.Civ.P.** 1930.2(c), (d), and (e). The date from which the appeal period will be measured following a reconsidered decision in a domestic relations matter is governed by **[Pa.R.C.P.]** **Pa.R.Civ.P.** 1930.2(d) and (e).

Pa.R.Crim.P. 720 and 721 set fixed times for reconsideration of a decision on a defendant's post-sentence motion or on a Commonwealth motion to modify sentence, and reconsideration of a deemed denial is prohibited. The judge may not vacate sentence or "grant reconsideration" pursuant to **[subparagraph]** **subdivision** (b)(3) in order to extend the time limits for disposition of those motions.

[Paragraph] **Subdivisions** (d) and (e) explain that original jurisdiction petitions for review and petitions for specialized review do not come within Pa.R.A.P. 1701; accordingly, any stay or *supersedeas* must be sought under other provisions of Chapter 17.

[Subparagraph] **Subdivision** (b)(5) recognizes the authority that an appellate court has to retain jurisdiction while asking a trial court or other government unit to engage in factfinding, an authority that is particularly important when questions arise in an appellate court about the course of events in the trial court or when representation by counsel becomes an issue on appeal.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1979

The note is expanded to describe the effect of failure of a lower court or other government unit to grant reconsideration within the appeal period.

CHAPTER 21. BRIEFS AND REPRODUCED RECORD

CONTENT OF REPRODUCED RECORD

Rule 2151. Consideration of Matters on the Original Record without the Necessity of Reproduction.

(a) *General* **[*rule.—*]** ***Rule.*** An appellate court may by rule of court applicable to all cases, or to classes of cases, or by order in specific cases under **[Subdivision]** **subdivision** (d) of this rule, dispense with the requirement of a reproduced record and permit appeals and other matters to be heard on the original record, with such copies of the record, or relevant parts thereof, as the court may require.

(b) **[*In forma pauperis.*—If leave to proceed in forma pauperis has been]** ***Waiver of Fees and Costs.*** **If a waiver of fees and costs is** granted to a party, such party shall not be required to reproduce the record.

(c) *Original* **[*hearing cases.—*]** ***Hearing Cases.*** When under the applicable law the questions presented may be determined in whole or in part upon the record made before the appellate court, a party shall not be required to reproduce the record.

(d) On **[*application to the court.—*]** ***Application to the Court.*** Any appellant may within 14 days after taking an appeal file an application to be excused from reproducing the record for the reason that the cost thereof is out of proportion to the amount involved, or for any other sufficient reason. Ordinarily leave to omit reproduction of the record will not be granted in any case where the amount collaterally involved in the appeal is not out of proportion to the reproduction costs.

[*Official Note*:] Comment:

Based on former Supreme Court Rules 35D, 35E and 61(f), former Superior Court Rules 51 (last sentence) and 52 and former Commonwealth Court Rules 81, 110B and 111A. Subdivision (a) is new and is included in recognition of the developing trend toward sole reliance on the original record.

See **[Rule] Pa.R.A.P.** 2189 for **the** procedure in cases involving the death penalty.

FILING AND SERVICE

Rule 2187. Number of Copies to be Filed and Served.

(a) *Filing.***[—]** To determine the number of copies to be filed, see Pa.R.A.P. 124(c) and its Official Note.

(b) *Service.*

(1) **[*General rule.*—] *General Rule.*** A party shall serve one copy of its definitive brief and reproduced record on every other party separately represented.

(2) **[*In forma pauperis.*—] *Waiver of Fees and Costs.*** A party **[proceeding *in forma pauperis*] granted a waiver of fees and costs** shall only serve one copy of each definitive brief on every other party separately represented. Pursuant to Pa.R.A.P. 2151(b), a party **[proceeding *in forma pauperis*] granted a waiver of fees and costs** is not required to reproduce the record.

(3) **[*Advance text of briefs.*—] *Advance Text of Briefs.*** If the record is being reproduced pursuant to Pa.R.A.P. 2154(b) (large records), one copy of each brief without definitive reproduced record pagination shall be served on each party separately represented. Proof of service showing compliance with this rule, but not including the advance text of the brief, shall be filed with the prothonotary of the appellate court.

[*Official Note*:] Comment:

At the request of the appellate prothonotaries, it will no longer be necessary to file advance copies (*e.g.*, page proof) of the brief when service is made on the opposing party, but the requirement for the filing of a proof of such service is retained.

[*See*] See Pa.R.A.P. 2189 for **the** procedure in cases involving the death penalty.

Rule 2189. Reproduced Record in Cases Involving the Death Penalty.

(a) *Number of* **[*copies.*—] *Copies.*** Any provisions of these rules to the contrary notwithstanding, in all cases involving the death penalty, the entire record shall be reproduced and filed with the prothonotary of the Supreme Court. To determine the number of copies to be filed, see Pa.R.A.P. 124(c) and its Official Note.

(b) *Costs of* **[*reproduction.*—] *Reproduction.*** The appellant, or, in cases where the appellant has been **[permitted to proceed *in forma pauperis*] granted a waiver of fees and costs**, the county where the prosecution was commenced, shall bear the cost of reproduction.

(c) *Prior* **[*rules superseded.*—] *Rules Superseded.*** To the extent that this rule conflicts with provisions of Pa.R.A.P. 2151(a), (b) (relating to necessity of reproduction of records); Pa.R.A.P. 2152 (relating to content of reproduced records); Pa.R.A.P. 2154(a) (relating to designation of contents of reproduced records); and Pa.R.A.P. 2155 (allocating costs of reproduction of records), the same are superseded.

[*Official Note*:] Comment:

The death penalty statute, 42 Pa.C.S. § 9711, provides that the Supreme Court Prothonotary must send a copy of the lower court record to the Governor after the Supreme Court affirms a sentence of death. The statute does not state who is responsible for preparing the copy. This amendment provides for preparation of the Governor's copy of the record before the record is sent to the Supreme Court.

CHAPTER 25. POST-SUBMISSION PROCEEDINGS

IN GENERAL

Rule 2521. Entry of Judgment or Other Order.

(a) *General* **[*rule.*] *Rule.*** Subject to the provisions of **[Rule] Pa.R.A.P.** 108 (date of entry of orders), the notation of a judgment or other order of an appellate court in the docket constitutes entry of the judgment or other order. The prothonotary of the appellate court shall prepare, sign, and enter the judgment following receipt of the opinion of the court unless the opinion is accompanied by an order signed by the court, or unless the opinion directs settlement of the form of the judgment, in which event the prothonotary shall prepare, sign, and enter the judgment following settlement by the court. If a judgment is rendered without an opinion or an order signed by the court, the prothonotary shall prepare, sign, and enter the judgment following instruction from the court. The prothonotary shall, on the date a judgment or other order is entered, send by first class mail to all parties a copy of the opinion, if any, or of the judgment or other order if no opinion was written, and notice of the date of entry of the judgment or other order.

(b) *Notice in* **[*death penalty cases.*] *Death Penalty Cases.*** Pursuant to Pa.R.Crim.P. 900(B), in all death penalty cases upon the Supreme Court's affirmance of the judgment of a death sentence, the prothonotary shall include in the mailing required by subdivision (a) of this **[Rule] rule** the following information concerning the Post Conviction Relief Act and the procedures under Chapter 9 of the Rules of Criminal Procedure. For the purposes of this notice, the term "parties" in subdivision (a) shall include the defendant, the defendant's counsel, and the attorney for the Commonwealth.

(1) A petition for post-conviction collateral relief must be filed within one year of the date the judgment becomes final, except as otherwise provided by statute.

(2) As provided in 42 Pa.C.S. § 9545(b)(3), a judgment becomes final at the conclusion of direct review, which includes discretionary review in the Supreme Court of the United States and the Supreme Court of Pennsylvania, or at the expiration of time for seeking the review.

(3) **[(A) If the defendant fails to file a petition within the one-year limit, the action may be barred. *See* 42 Pa.C.S. § 9545(b).**

(B) Any issues that could have been raised in the post-conviction proceeding, but were not, may be waived. *See* 42 Pa.C.S. § 9544(b).]

If the defendant fails to file a petition within the one-year limit, the action may be barred. *See* 42 Pa.C.S. § 9545(b). Any issues that could have been

raised in the post-conviction proceeding, but were not, may be waived. *See* 42 Pa.C.S. § 9544(b).

(4) Pursuant to **[Rule]** **Pa.R.Crim.P.** 904 (**Entry of Appearance and** Appointment of Counsel; **[*In Forma Pauperis*] Waiver of Fees and Costs**), the trial judge will appoint new counsel for the purpose of post-conviction collateral review, unless:

[(A)] **(i)** the defendant has elected to proceed *pro se* or waive post-conviction collateral proceedings, and the judge finds, after a colloquy on the record, that the defendant is competent and the defendant's election is knowing, intelligent and voluntary;

[(B)] **(ii)** the defendant requests continued representation by original trial counsel or direct appeal counsel, and the judge finds, after a colloquy on the record, that the petitioner's election constitutes a knowing, intelligent and voluntary waiver of a claim that counsel was ineffective; or

[(C)] **(iii)** the judge finds, after a colloquy on the record, that the defendant has engaged counsel who has entered, or will promptly enter, an appearance for the collateral review proceedings.

[*Official Note*:] Comment:

See Pa.R.Crim.P. 900(B), which also includes the identical requirement in death penalty cases that notice of the information concerning the statutory time limitations for filing petitions for post-conviction collateral relief and the right to counsel enumerated in subdivision (b) of this rule be sent by the prothonotary with the order or opinion sent pursuant to subdivision (a) of this rule. Because of the importance of this notice requirement to judges, attorneys and defendants, the requirement that the Supreme Court Prothonotary mail the aforesaid notice has been included in both the Rules of Criminal Procedure and the Rules of Appellate Procedure.

CHAPTER 27. FEES AND COSTS IN APPELLATE COURTS AND ON APPEAL

FEES

Rule 2701. Payment of Fees Required.

(a) *General* **[*rule.*]** ***Rule.*** A person upon filing any paper shall pay any fee therefor prescribed by law.

(b) *Appeals by* **[*allowance or permission; petitions for review.*]** ***Allowance or Permission and Petitions for Review.*** The fee for filing a petition for allowance of appeal, a petition for permission to appeal or a petition for review shall, except as otherwise required by statute, be the same as the fee payable under **[Rule]** **Pa.R.A.P.** 907 (docketing of appeal). Where a petition for allowance of appeal or a petition for permission to appeal has been filed under these rules and is granted, no additional fee, except as otherwise required by statute, shall be payable upon docketing the appeal in the appellate court.

(c) *Temporary* **[*fee for filing notice of appeal.*]** ***Fee for Filing Notice of Appeal.*** Until otherwise provided by law, the clerk upon filing a notice of appeal under **[Rule]** **Pa.R.A.P.** 905 (filing of notice of appeal) shall be entitled to receive an amount equal to the fee otherwise payable, if any, upon the filing of a writ issued out of the Supreme Court of Pennsylvania evidencing the fact that an appeal has been taken to the Supreme Court.

[*Official Note*:] Comment:

Former Supreme Court Rule 70 (first sentence), former Superior Court Rule 61 and former Commonwealth Court Rule 117 (first sentence) **[literally]** required the payment of the fee in advance of filing. In view of the filing by mail procedures instituted by these rules, a limited opportunity is afforded to permit the prompt correction of the failure to include a check with the letter of transmittal or the failure to draw the check in the proper amount.

A party who intends to **[proceed in forma pauperis]** **seek a waiver of fees and costs** should transmit a copy of **[his application under Rule 552 (application to lower court for leave to appeal in forma pauperis) to the appellate prothonotary so that Rule 554(b) (appeal taken before application acted on)]** **the application filed under Pa.R.A.P. 552 (new waiver of fees and costs for purposes of appeal) to the appellate prothonotary so that Pa.R.A.P. 1614(d)(3)** will operate to defer the requirement for fees in the appellate court. ***See also* Pa.R.A.P. 551(a) (continuation of waiver).**

The fees in appellate courts are temporarily continued by Section 24(a) of the Judiciary Act of 1976, act of July 9, 1976 (P.L. 586, No. 142), by reference to the former provisions of law, which were as follows: The fees of the Commonwealth Court were prescribed by 204 Pa. Code § 155.203. The docketing fee in the Supreme and Superior Court was fixed at $12 by the act of May 19, 1897 (P.L. 67, No. 53), § 3 (former 12 P.S. § 1135), and the fee for issuing writs for the enforcement of the duty to file the records in such courts and the fee for filing a petition for allowance of appeal from the Superior Court was fixed by § 18 (second and third sentences) of the act (former 12 P.S. § 1156) at $3.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1979

Language implying that the clerk or prothonotary of a court as a matter of course may extend credit for a filing fee is deleted. Such credit may be extended in extraordinary circumstances, however, as was the practice prior to 1976.

ARTICLE III. MISCELLANEOUS PROVISIONS

CHAPTER 37. BUSINESS OF THE COMMONWEALTH COURT

THE COMMONWEALTH COURT

Rule 3707. Preargument Matters; Applications and Motions.

Prior to filing an application or a motion with the Court, a party shall confer with all counsel of record and any unrepresented parties to determine their position. Applications and motions shall include a paragraph indicating whether the other parties concur with the relief sought. If the other party does not respond to an inquiry regarding concurrence within a reasonable time, the party filing the application or motion shall set forth in detail the efforts made to obtain a response and that no response was received. This requirement shall not apply to preliminary objections, motions for judgment on the pleadings, motions for summary judgment or summary relief, motions to dismiss or quash, petitions to open or strike judgments, applications for **[supersedeas, petitions to proceed in forma pauperis]** ***supersedeas*, applications to waive fees and costs**, motions for admission *pro hac vice*, and motions for post-trial relief.

This requirement also shall not apply to actions involving incarcerated individuals or fugitives.

CHAPTER 38. APPEALS PURSUANT TO SECTION 3206 OF THE ABORTION CONTROL ACT

SUPERIOR COURT

Rule 3804. Transcription of Notes of Testimony.

Upon receipt of a notice of appeal to the Superior Court, the court reporter shall transcribe the notes of testimony and deliver the transcript to the Clerk of the Court of Common Pleas by 5:00 p.m. on the following business day. If the transcript is not prepared and delivered in a timely fashion, the appellate court may order the court reporter to transcribe the notes and deliver the notes to the appellate court and may impose sanctions for violation of such an order. It being presumed that a pregnant woman under Section 3206 of the Abortion Control Act **[is proceeding in forma pauperis], 18 Pa.C.S. § 3206, has been granted a waiver of fees and costs, accordingly**, she shall not be charged for the cost of the transcript. Chapter 19 of the Rules of Appellate Procedure shall not otherwise apply to appeals under this Chapter.

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614 Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804 Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1 Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e., in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the

filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see, e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

> Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support __ adults (not counting myself) who live with me" and "I support __ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the

applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied application. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a

waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996 Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012 correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997 amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000 amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002 amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005 amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011 revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-640. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 210—APPELLATE PROCEDURE

PART II. INTERNAL OPERATING PROCEDURES

[210 PA. CODE CH. 63]

Order Amending Sections 6 and 7 of the Supreme Court Internal Operating Procedures; No. 658 Judicial Administration Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, it is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Sections 6 and 7 of the Supreme Court Internal Operating Procedures are amended in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Additions to the rule are shown in bold and are underlined.

Deletions from the rule are shown in bold and brackets.

Annex A

TITLE 210. APPELLATE PROCEDURE

PART II. INTERNAL OPERATING PROCEDURES

CHAPTER 63. INTERNAL OPERATING PROCEDURES OF THE SUPREME COURT

§ 63.6. Allowance of Appeal.

A. *Duties of Prothonotary.*

(1) The Prothonotary shall initially screen petitions for allowance of appeal for compliance with the applicable appellate rules. The Prothonotary shall note if the following defects are present:

(a) whether the petition violates the prohibition against hybrid representation;

(b) whether the petitioner has not provided proper proof of service;

(c) whether the petitioner has not paid the required filing fee or submitted **[a petition to proceed *in forma pauperis*]** **an application to waive fees and costs**; and

(d) whether the petition exceeds the permissible word count limit.

Where any of these four defects are present, the Prothonotary shall notify the petitioner and afford an opportunity for correction, while preserving the filing date based upon the initial submission. If the identified defects are not corrected, the Prothonotary may refuse the petition for filing without further action of the Court.

* * * * *

§ 63.7. Motions, Miscellaneous Petitions, and Applications for Relief.

A. *Duties of Prothonotary.* All assignments of motions, miscellaneous petitions and applications for relief, including emergency motions and those requesting the exercise of King's Bench powers, extraordinary jurisdiction and original jurisdiction, shall originate in the Prothonotary's office. No motions, petitions or applications will be considered which were not first filed in the Prothonotary's office and thence assigned. Documents may be filed in paper format, or by electronic or facsimile transmission. Once received, motions, petitions and applications will be monitored by the Prothonotary's office for compliance with applicable appellate rules. Proposed filings that are not in compliance will not be docketed. Proposed filings that are in compliance will be docketed and a response will be allowed. At the expiration of the response period the documents will be forwarded to the Court.

Procedural motions (*e.g.*, first requests for extension of time for not more than thirty days, requests to exceed page limits, and requests to **[proceed in forma pauperis]** **waive fees and costs**) may be resolved by the Prothonotary without further action of the Court.

* * * * *

[Pa.B. Doc. No. 26-641. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 231—RULES OF CIVIL PROCEDURE

PART I. GENERAL

[231 PA. CODE CHS. 200 AND 1300]

Order Amending Rules 240, 1308, and 1313 of the Pennsylvania Rules of Civil Procedure; No. 778 Civil Procedural Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Civil Procedural Rules Committee; the proposal having been published for public comment at 50 Pa.B. 4023 (August 8, 2020) and 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rules 240, 1308, and 1313 of the Pennsylvania Rules of Civil Procedure are amended in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Additions to the rule are shown in bold and are underlined.

Deletions from the rule are shown in bold and brackets.

Annex A

TITLE 231. RULES OF CIVIL PROCEDURE

PART I. GENERAL

CHAPTER 200. BUSINESS OF COURTS

(*Editor's Note*: Rule 240 as printed in 231 Pa. Code reads "Official Note" rather than "Note.")

Rule 240. **[*In Forma Pauperis.*]** **Application to Waive Fees and Costs.**

[(a) This rule shall apply to all civil actions and proceedings except actions pursuant to the Protection From Abuse Act and Protection of Victims of Sexual Violence or Intimidation Act.

***Note*: The term "all civil actions and proceedings" includes all domestic relations actions except those brought pursuant to the Protection From Abuse**

Act, 23 Pa.C.S. § 6106, and Protection of Victims of Sexual Violence or Intimidation Act, 42 Pa.C.S. §§ 62A01—62A60.

(b) A party who is without financial resources to pay the costs of litigation is entitled to proceed *in forma pauperis*.

(c) Except as provided by subdivision (d), the party shall file a petition and an affidavit in the form prescribed by subdivision (h). The petition may not be filed prior to the commencement of an action or proceeding or the taking of an appeal.

(1)(i) If the petition is filed simultaneously with the commencement of the action or proceeding or with the taking of the appeal, the prothonotary shall docket the matter and petition without the payment of any filing fee.

(ii) If the court shall thereafter deny the petition, the petitioner shall pay the filing fee for commencing the action or proceeding or taking the appeal. A party required to pay such fee may not without leave of court take any further steps in the action, proceeding or appeal so long as such fee remains unpaid. Not sooner than ten days after notice of the denial of the petition pursuant to Rule 236, the prothonotary shall enter a judgment of *non pros* in the action or proceeding or strike the appeal if the fee remains unpaid. The action, proceeding or appeal shall be reinstated only by the court for good cause shown.

(2) If the action or proceeding is commenced or the appeal is taken without the simultaneous filing of a petition, the appropriate filing fee must be paid and shall not be refunded if a petition is thereafter filed and granted.

(3) Except as provided by subdivision (j)(2), the court shall act promptly upon the petition and shall enter its order within twenty days from the date of the filing of the petition. If the petition is denied, in whole or in part, the court shall briefly state its reasons.

(d)(1) If the party is represented by an attorney, the prothonotary shall allow the party to proceed *in forma pauperis* upon the filing of a *praecipe* which contains a certification by the attorney that he or she is providing free legal service to the party and believes the party is unable to pay the costs.

(2) The *praecipe* shall be substantially in the form prescribed by subdivision (i).

(e) A party permitted to proceed *in forma pauperis* has a continuing obligation to inform the court of improvement in the party's financial circumstances which will enable the party to pay costs.

(f) A party permitted to proceed *in forma pauperis* shall not be required to

(1) pay any cost or fee imposed or authorized by Act of Assembly or general rule which is payable to any court or prothonotary or any public officer or employee, or

(2) post bond or other security for costs as a condition for commencing an action or proceeding or taking an appeal.

(g) If there is a monetary recovery by judgment or settlement in favor of the party permitted to proceed *in forma pauperis*, the exonerated fees and costs shall be taxed as costs and paid to the prothonotary by the party paying the monetary recovery. In no event shall the exonerated fees and costs be paid to the indigent party.

(h) The affidavit in support of a petition for leave to proceed *in forma pauperis* shall be substantially in the following form:

(Caption)

1. I am the (plaintiff) (defendant) in the above matter and because of my financial condition am unable to pay the fees and costs of prosecuting or defending the action or proceeding.

2. I am unable to obtain funds from anyone, including my family and associates, to pay the costs of litigation.

3. I represent that the information below relating to my ability to pay the fees and costs is true and correct:

(a) Name: _____

Address: _____

(b) *Employment*

If you are presently employed, state

Employer: _____

Address: _____

Salary or wages per month: _____

Type of work: _____

If you are presently unemployed, state

Date of last employment: _____

Salary or wages per month: _____

Type of work: _____

(c) *Other income within the past twelve months*

Business or profession: _____

Other self-employment: _____

Interest: _____

Dividends: _____

Pension and annuities: _____

Social security benefits: _____

Support payments: _____

Disability payments: _____

Unemployment compensation and supplemental benefits: _____

_____

Workers' compensation: _____

Public assistance: _____

Other: _____

(d) *Other contributions to household support*

(Wife) (Husband) Name: _____

If your (wife) (husband) is employed, state

Employer: _____

Salary or wages per month: _____

Type of work: _____

Contributions from children: _____

Contributions from parents: _____

Other contributions: _____

(e) ***Property owned***

Cash: _____

Checking account: _____

Savings account: _____

Certificates of deposit: _____

Real estate (including home): _____

Motor vehicle: Make _____ , Year _____ ,

Cost _____ , Amount Owed $ _____

Stocks and bonds: _____

Other: _____

(f) ***Debts and Obligations***

Mortgage: _____

Rent: _____

Loans: _____

Other: _____

_____

(g) ***Persons dependent upon you for support***

(Wife) (Husband) Name: _____

Children, if any:

Initials: _____

Age: _____

Other Persons:

Name: _____

Relationship: _____

4. I understand that I have a continuing obligation to inform the court of improvement in my financial circumstances which would permit me to pay the costs incurred herein.

5. I verify that the statements made in this affidavit are true and correct. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

Date: _____ _____

Petitioner

(i) The praecipe required by subdivision (d) shall be substantially in the following form:

(Caption)

PRAECIPE* TO PROCEED *IN FORMA PAUPERIS

To the Prothonotary:

Kindly allow _____ , (Plaintiff) (Defendant) to proceed *in forma pauperis*.

I, _____ , attorney for the party proceeding *in forma pauperis*, certify that I believe the party is unable to pay the costs and that I am providing free legal service to the party.

_____

Attorney for

(j)(1) If, simultaneous with the commencement of an action or proceeding or the taking of an appeal, a party has filed a petition for leave to proceed *in forma pauperis*, the court prior to acting upon the petition may dismiss the action, proceeding or appeal if the allegation of poverty is untrue or if it is satisfied that the action, proceeding or appeal is frivolous.

***Note*: A frivolous action or proceeding has been defined as one that "lacks an arguable basis either in law or in fact." *Neitzke v. Williams*, 490 U.S. 319, 109 S.Ct. 1827, 104 L.Ed.2d 338 (1989).**

(2) If the petitioner commences the action by writ of summons, the court shall not act on the petition for leave to proceed *in forma pauperis* until the complaint is filed. If the complaint has not been filed within ninety days of the filing of the petition, the court may dismiss the action pursuant to subdivision (j)(1).

***Note*: The filings required by this rule are subject to the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania*. *See* Rule 205.6.]**

(This is entirely new text.)

(a) *General Rule.* Except as provided in subdivision (b), the procedure for requesting waiver of fees and costs in all civil actions is set forth in Pennsylvania Rule of Judicial Administration 1990.

(b) *Commencing Action by Writ of Summons.* If a party commences a civil action by a writ of summons and the party seeks a waiver of fees and costs:

(1) The court shall not act on the application to waive fees and costs until the party files a complaint.

(2) If the party has not filed a complaint within 90 days of the application's filing date, the court may deny the application.

(c) *Dismissal for Frivolous Action.* Nothing in Pa.R.J.A. 1990 shall preclude the court from *sua sponte* dismissing an underlying action, which is filed contemporaneously with an application to waive fees and costs, as frivolous.

Comment:

The filings required by this rule are subject to the *Case Records Public Access Policy of the Unified Judicial System of Pennsylvania*. *See* Pa.R.Civ.P. 205.6.

Subdivision (b) addresses additional requirements when a party commences a civil action via the issuance of a writ of summons and seeks waiver of fees and costs. Within 90 days of filing the application, the party must file the complaint. Once the complaint is filed, the court may act on the application. If a party fails to file timely the complaint, the action may be dismissed.

Subdivision (c) enables the courts of common pleas to eliminate frivolous lawsuits involving a party who is requesting a waiver of fees and costs. The effect of such lawsuits on the judicial system was stated by the Supreme Court of the United States in *Neitzke v. Williams*, 490 U.S. 319 (1989):

> We recognize the problems in judicial administration caused by the surfeit of meritless *in forma pauperis* complaints in the federal courts, not the least of which is the possibility that meritorious complaints will receive inadequate attention or be difficult to identify amidst the overwhelming number of meritless complaints.

Id. at 326. This definition is virtually identical in its statement with the definition of the Supreme Court of Pennsylvania in *Robinson v. Com., Pa. Board of Probation and Parole*, 582 A.2d 857, 860 (Pa. 1990) defining the

term "frivolous" as used in Pa.R.A.P. 2744 as "an appeal which lacks any basis in law or fact."

See Pa.R.Civ.P.M.D.J. 1016—1020 for the procedures governing reconsideration in the court of common pleas of the denial of an application to waive fees and costs by a magisterial district judge.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1991

The Judiciary Act Repealer Act (JARA) became law in 1978, repealing literally thousands of statutory provisions governing civil practice and procedure and amending many others. The Rules of Civil Procedure contained many references to these repealed and amended statutes.

The recent Order of the Supreme Court deletes several notes which are obsolete either because they refer to statutes which have been repealed or amended or because they are no longer of benefit to the bench and bar. Other notes have been amended to refer to current statutory provisions or other rules.

The following rules have been amended:

* * * * *

There are two housekeeping amendments. Rule 240 governing proceedings *in forma pauperis* has been amended by deleting the opening phrase of subdivision (c)(3). The language was surplusage and had no relevance to the subdivision.

Second, Rule 1041.1(b) governing asbestos litigation was amended by deleting the second paragraph. The second paragraph repeated the text of Rule of Judicial Administration 1902 verbatim and was unnecessary here. No change in practice results from the deletion of the second paragraph.

The amendments are of a technical nature only and do not result in any change in practice or procedure.

New subdivision (i) of Pennsylvania Rule of Civil Procedure 240 governing proceedings *in forma pauperis* enables the courts of common pleas to eliminate frivolous *in forma pauperis* lawsuits. The effect of such lawsuits on the judicial system was stated by the Supreme Court of the United States in *Neitzke v. Williams*, 490 U.S. 319, 326, 109 S.Ct. 1827, 1831, 104 L.Ed.2d 338, 347 (1990):

> We recognize the problems in judicial administration caused by the surfeit of meritless in forma pauperis complaints in the federal courts, not the least of which is the possibility that meritorious complaints will receive inadequate attention or be difficult to identify amidst the overwhelming number of meritless complaints.

New Rule 240(i) would allow the court to dismiss an action in which a petition for leave to proceed *in forma pauperis* has been filed and either "the allegation of poverty is untrue" or "the court is satisfied that the action, proceeding or appeal is frivolous." The court may dismiss a suit under this rule only where the petition for *in forma pauperis* status is filed simultaneously with the commencement of the suit and the court has taken no action on the petition. Once the petition has been granted and the petitioner has taken steps to prosecute the suit, the traditional remedies of preliminary objections, judgment on the pleadings and summary judgment are available to the defending party.

The subject of the rule is the "frivolous" lawsuit. A note has been added to the rule calling attention to a definition of that term by the Supreme Court of the United States. That definition is virtually identical in its statement with the definition of the Supreme Court of Pennsylvania in *Robinson v. Com., Pa. Board of Probation and Parole*, 525 Pa. 505, 512, 582 A.2d 857, 860 (1990) defining the term "frivolous" as used in Pennsylvania Rule of Appellate Procedure 2744 as "an appeal which lacks any basis in law or fact."

Explanatory Comment—1994

It had been suggested that there was a problem in clearing the docket when, upon commencing an action or taking an appeal from the judgment of a district justice, the party commencing the action or taking the appeal petitioned the court for leave to proceed *in forma pauperis* but the petition was denied and the required fee was never paid. Rule 240(c)(1) has been amended to correct the problem.

Subdivision (c)(1) governs the filing of a petition "simultaneously with the commencement of the action or with the taking of the appeal". Initially, the prothonotary must docket the petition and the action or appeal without the payment of a filing fee. The previous rule simply provided that if the petition is denied, the petitioner must pay the required filing fee and cannot without leave of court take any further step in the action as long as the fee is not paid. The rule did not specify a time within which the fee must be paid or provide a remedy to the prothonotary for an action or appeal stalled by the nonpayment of the filing fee.

Revised Rule 240(c)(1) has been divided into two subparagraphs. Subparagraph (i) consists of the first sentence of previous Rule 240(c)(1) without change and requires the prothonotary to docket the petition and the action or appeal without the payment of a filing fee. Subparagraph (ii) consists of the remaining two sentences of previous Rule 240(c)(1) without change and two new sentences:

> (ii) If the court shall thereafter deny the petition, the petitioner shall pay the filing fee for commencing the action or taking the appeal. A party required to pay such fee may not without leave of court take any further steps in the action or appeal so long as such fee remains unpaid. Not sooner than ten days after notice of the denial of the petition pursuant to Rule 236, the prothonotary shall enter a judgment of non pros in the action or strike the appeal if the fee remains unpaid. The action or appeal shall be reinstated only by the court for good cause shown.

The new language permits the prothonotary to clear the docket for the non payment of the filing fee no sooner than ten days after denial of the petition to proceed *in forma pauperis*. By allowing the prothonotary to proceed, the rule encourages the petitioner to pay the required fee promptly, i.e., within ten days. Two points are to be noted. First, the amended rule does not require the prothonotary to act immediately upon the expiration of the ten day period. The prothonotary is merely directed to act no sooner than ten days after denial of the petition. Second, the prothonotary is directed to enter a judgment of non pros or to strike the appeal only "if the fee remains unpaid." Consequently, once the fee has been paid the prothonotary may not take any action even though the ten day period has expired.

Explanatory Comment—2001

Prior to the present amendment, Rule 240(d) provided for a party represented by an attorney to proceed in forma pauperis upon the filing of a praecipe. The rule prescribed two requirements for the praecipe. First, the praecipe must have contained "a certification by the attorney that he or she is providing free legal service to the party and believes the party is unable to pay the costs". Second, the praecipe must have been "accompanied by the affidavit required by subdivision (c)" which is filed in support of a petition for leave to proceed in forma pauperis and which demonstrates the party's inability to pay the costs of litigation.

Subdivision (d) has been amended by deleting the requirement that the affidavit accompany the praecipe. As amended, the rule provides for the prothonotary to allow a party to proceed in forma pauperis solely upon a praecipe containing the certification of the party's attorney. A conforming amendment to the form of the praecipe in subdivision (i) deletes the reference to the accompanying affidavit. These amendments bring the rule into conformity with Rule 552(d) of the Pennsylvania Rules of Appellate Procedure and Rule 206 E. (iii) of the Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings before District Justices.

Explanatory Comment—2009

There has been an increase in the concern about the use of social security numbers in court paper records. Consequently, the Supreme Court of Pennsylvania has amended Rule 240(h) governing the form for the petition to proceed in forma pauperis by deleting the requirement for a petitioner to supply his or her social security number.

Explanatory Comment—2012

Present subdivision (j) provides for a court, prior to acting on a petition to proceed in forma pauperis, to dismiss an action, proceeding, or appeal if the allegation of poverty in the petition is untrue, or if the court is satisfied that the action, proceeding, or appeal is frivolous. However, subdivision (j) did not consider the situation where an action is commenced by the issuance of a writ of summons. The amendment to subdivision (j) requires the party commencing an action by writ of summons and seeking to proceed in forma pauperis to file the complaint within ninety days of filing the petition. The court would not make a determination on the petition until the complaint is filed. If the complaint is not filed within the ninety-day time period, the court may dismiss the action pursuant to procedures set forth in subdivision (j)(1).

Explanatory Comment—2018

On January 6, 2017, the Supreme Court of Pennsylvania adopted the *Public Access Policy: Case Records of the Appellate and Trial Courts* (Policy), which will become effective January 6, 2018. To provide guidance to practitioners regarding the Policy, new Rule 205.6 has been adopted and provides that absent any applicable authority that constrains public access, all civil filings must comply with the Policy. Of particular importance are the requirements of Sections 7.0 and 8.0 of the Policy governing confidential information and confidential documents. In addition, the rule provides that all practitioners and unrepresented parties must certify that a filing is compliant with the Policy.

Conforming amendments have been made to Rule 229.2 governing the petition to transfer structured settlement payment rights, Rule 240 governing the petition to proceed *in forma pauperis*, Rule 1018 governing captions, and Rule 2028 governing the naming and caption of minor children's names in actions by and against a minor. Section 7.0(A)(5) of the Policy prohibits the disclosure of the names of minor children in a filing unless the minor is charged as a defendant in a criminal matter. Both Rule 229.2 and Rule 240 require the filing of an affidavit in support of the petition. The form affidavit currently requires the disclosure of the full names of any minor children of the petitioner. *See* Rule 229.2(f) and 240(h). The amendment requires a petitioner to provide the initials only of any minor children. For Rule 2028, the amended rule requires that minor's initials only be provided in the caption. A cross-reference to Rule 2028 has been added to the note to Rule 1018. In addition, a note cross-referencing new Rule 205.6 has been added to Rules 229.2, 240, and 2028. Stylistic amendments to Rule 240 have also been made.

CHAPTER 1300. ARBITRATION

Subchapter A. COMPULSORY ARBITRATION

(*Editor's Note*: Rule 1308 as printed in 231 Pa. Code reads "Official Note" rather than "Note.")

Rule 1308. Appeal. Arbitrators' Compensation. Notice.

(a) **General Rule.** An appeal from an award shall be taken by**:**

(1) filing a notice of appeal in the form provided by Rule 1313 with the prothonotary of the court in which the action is pending not later than thirty days after the day on which the prothonotary makes the notation on the docket that notice of entry of the arbitration award has been provided as required by Rule 1307(a)(3), and

(2) payment to the prothonotary of the compensation of the arbitrators not exceeding fifty percent of the amount in controversy, which shall not be taxed as costs or be recoverable in any proceeding; provided that the court, in an appropriate case, upon petition may permit the appellant to **[proceed in forma pauperis]** **waive fees and costs**.

[*Note*: Subdivision (a)(1) incorporates the holding of *Stellar Construction Inc. v. Ronald Sborz et al, individually and trading as Keystone Meats*, 748 A.2d 667 (Pa. 2000) with respect to the date upon which the appeal period begins to run.]

(b) ***Notice.*** The appellant shall provide the prothonotary with the required notice for mailing and properly stamped and addressed envelopes. The prothonotary shall give notice to each other party of the taking of the appeal. Failure to give the notice shall not invalidate the appeal.

(c) ***No Bond or Other Security Required.*** The appellant shall not be required to post any bond, recognizance**,** or other security or to pay any record costs which have accrued in the action. All record costs shall abide the event.

Comment:

Subdivision (a)(1) incorporates the holding of *Stellar Construction Inc. v. Sborz*, 748 A.2d 667 (Pa. 2000) with respect to the date upon which the appeal period begins to run.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1981

The form of appeal is simplified by the Rules. A simple notice of appeal substantially in the form prescribed by Appellate Rule 904 is all that is now required. The form appears in Rule 1313. The archaic oath or affirmation that the appeal is not for the purpose of delay but because the affiant firmly believes injustice has been done was abolished by Rule 247.1, effective February 2, 1980, and is not included in the form. Subdivision (c) abolishes the historic practice, mandated by Section 27 of the Act of 1836, of requiring the appellant to pay the costs accrued and to file a bond for further costs to accrue. Failure to pay the costs in full and post the bond as required by Sections 27 and 30 of the Act of 1836 and the Act of March 20, 1845, P.L. 188, 42 P.S. § 921, have been the subject of continual litigation and often resulted in quashing of the appeal.

In Oakley, Inc. v. School District of Philadelphia, 464 Pa. 330, 346 A.2d 765 (1975), the Supreme Court reversed previous decisions of the Superior Court holding that the statutory requirement of payment of costs was discretionary and not mandatory. Oakley held that the statutory requirements for the perfecting of an appeal are jurisdictional and mandatory, unless fraud or some breakdown in the court's operation causes the failure to comply with the statutory requirements. It therefore remanded to permit the lower court to determine whether the prothonotary's docket notation of the costs had been so confusing and misleading that it led to a $10 underpayment.

There were many decisions on the effect of defects in the bond on the validity of the appeal.

The abolition of payment of accrued costs and the filing of bond will relieve the courts of much litigation without substantial impairment of the rights of litigants. The amount of accrued costs is in most cases not significant and if a monetary award is made and the losing party owns real estate, the award will constitute a lien continuing during pendency of appeal. The abolition of these prerequisites should not substantially increase the number of appeals.

The effect of this will be that payment of the compensation of the arbitrators will be the only financial burden on the appeal, other than the filing fee, if any, which may be established by legislation or general rule. The provision of subdivision (a)(2) as to repayment of arbitrators' fees follows prior practice without change.

The thirty-day period for appeal prescribed by subdivision (a)(1) follows the directive of Rule 247.1 and Sections 7361(d) and 5571 of the Judicial Code. Rule 247.1 is no longer needed and is rescinded.

Subdivision (a) also contains a concluding clause confirming the power of the court to permit the appellant to proceed in forma pauperis, namely, without prepaying the compensation of the arbitrators or paying the filing fee, if any.

Subdivision (b) changes prior practice under existing local rules which require the appellant to serve a copy of the appeal on all other parties to the action. It requires the prothonotary to give the notice, which the appellant must furnish him, postage prepaid.

Subdivision (b) settles the problem of whether failure of an appellant to give notice of the appeal required by a local rule warrants the dismissal of the appeal with prejudice. Mikita v. Bailey Homes, Inc., 265 Pa.Super. 399, 401 A.2d 1367 (1979), upheld the power of a local court to promulgate such a rule. Subdivision (a)(3) now prescribes that failure to give the notice shall not invalidate the appeal. Local rules to the contrary are no longer applicable.

In addition to the right of appeal de novo, Section 26 of the Act of 1836, 5 P.S. § 57, provided for setting aside an award if the arbitrators misbehaved or the award was obtained by corruption or other undue means. The Act did not place any time limit on the filing of the petition, but many local rules which incorporated Section 26 of the Act of 1836 provided the same time limit as the time for appeal. This raised problems if both an appeal and a petition to set aside the award were filed within the time for appeal. In Township of Hampden, Cumberland County v. Tenny, 32 Pa.Cmwlth. 301, 379 A.2d 635 (1977), the court held that dismissal of the petition to set aside the award was interlocutory and in effect was made moot by the appeal for trial de novo.

The Rules do not continue the practice of petitioning to set aside an award for corruption or misbehavior. Hearings or depositions on the petition proceedings could delay the proceedings. Rule 1311(b) creates quasi-judicial immunity for the arbitrators with respect to their official actions and they cannot be called to testify. As a practical matter, if the fraud or corruption were proved, remand and the appointment of a new panel could be the only relief. Trial de novo is preferable since it expedites the proceedings. The court would, of course, have power to punish the attorney-arbitrators involved for any professional misconduct that could be proved.

Explanatory Comment—2000

Rule 1308 governing compulsory arbitration has been amended in two respects. First, subdivision (a)(1) governs the filing of a notice of appeal from an award of arbitrators and previously provided that the notice of appeal must be filed not later than thirty days "after the entry of the award on the docket". That provision has now been revised to incorporate the holding of *Stellar Construction, Inc. v. Ronald Sborz et al, individually and trading as Keystone Meats*, 748 A.2d 667, 669 (Pa. 2000):

In furtherance of clarity, certainty and ease of determination, see *Frazier*, 557 Pa. at 621-22, 735 A.2d at 115, we hold that the date of entry of an order for purposes of Pennsylvania Rule of Civil Procedure 1308 shall mean the day on which the prothonotary fulfills its duty to make the required notation on the docket reflecting that notice of entry of the arbitration award has been provided as required by Rule 1307(a)(3).

Second, the note following subdivision (c) of the rule has been deleted as obsolete.

(*Editor's Note*: Rule 1313 as printed in 231 Pa. Code reads "Official Note" rather than "Note.")

Rule 1313. Form of Notice of Appeal.

(a) ***Form.*** The notice of appeal shall be in substantially the following form:

(Caption)

NOTICE OF APPEAL

FROM AWARD OF BOARD OF ARBITRATORS

TO THE PROTHONOTARY:

Notice is given that _____ appeals from the award of the board of arbitrators entered in this case on _____ .

A jury trial is demanded. ☐ (Check box if a jury trial is demanded. Otherwise, jury trial is waived.)

I hereby certify that:

(1) the compensation of the arbitrators has been paid, or

(2) application has been made for permission to **[proceed in forma pauperis]** **waive fees and costs**.

(Strike out the inapplicable clause.)

Appellant or Attorney for Appellant

[*Note*: The demand for jury trial on appeal from compulsory arbitration is governed by Rule 1007.1(b).]

(b) ***No Verification Required.*** No affidavit or verification is required.

Comment:

The demand for jury trial on appeal from compulsory arbitration is governed by Rule 1007.1(b).

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

Explanatory Comment—1981

This form is adapted from Appellate Rule 904(a). It eliminates the statutory form of affidavit, variance from which caused much litigation in prior practice. A place for the demand for jury trial by the appellant (see Rule 1007.1(b)) is provided, as well as notation of compliance with the requirements of Rule 1308(a) respecting payment of the arbitrators' compensation.

The form makes it clear that the appeal may be taken without payment of the arbitrators' compensation if proceedings in forma pauperis have only been requested but not yet authorized. If the application is rejected, the appellant would have to pay the compensation promptly; otherwise the appeal will be quashed.

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804 Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1

Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e., in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that

the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see, e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so

that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

> Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support __ adults (not counting myself) who live with me" and "I support __ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants

because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied application. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is ex parte. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority.

Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996 Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012 correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997 amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000 amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002 amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005 amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011 revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an

updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-642. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 231—RULES OF CIVIL PROCEDURE

PART I. GENERAL

[231 PA. CODE CHS. 1920 AND 1940]

Order Amending Rules 1920.62 and 1940.5 of the Pennsylvania Rules of Civil Procedure; No. 779 Civil Procedural Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Domestic Relations Procedural Rules Committee; the proposal having been published for public comment at 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rules 1920.62 and 1940.5 of the Pennsylvania Rules of Civil Procedure are amended in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Additions to the rule are shown in bold and are underlined.

Deletions from the rule are shown in bold and brackets.

Annex A

TITLE 231. RULES OF CIVIL PROCEDURE

PART I. GENERAL

CHAPTER 1920. ACTIONS OF DIVORCE OR FOR ANNULMENT OF MARRIAGE

Rule 1920.62. Proceedings by Indigent Parties.

The procedures set forth in **[Rule 240]** **Pa.R.J.A. 1990** are incorporated herein and shall govern proceedings by indigent parties in divorce and annulment.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

EXPLANATORY COMMENT—1995

The procedure for obtaining leave to proceed *in forma pauperis* in divorce and annulment matters as set forth in rescinded Rule 1920.62 was considerably less detailed than the procedure set forth in Rule 240, and did not prescribe a form petition for leave to proceed *in forma pauperis*. Practice is simplified by rescinding old Rule 1920.62 and directing indigent litigants in divorce and annulment matters to use the procedure and form petition set forth in Rule 240.

CHAPTER 1940. VOLUNTARY MEDIATION IN CUSTODY ACTIONS

(*Editor's Note*: Rule 1940.5 as it appears in 231 Pa. Code shows "Official Note" rather than "Note.")

Rule 1940.5. Duties of the Mediator. Role of the Mediator.

(a) As part of the orientation session, the mediator must inform the parties in writing of the following:

(1) the costs of mediation;

[*Official Note*: Pa.R.C.P. No. 240 sets forth the procedures for obtaining leave to proceed *in forma pauperis* when the parties do not have the financial resources to pay the costs of litigation. This rule applies to court-connected mediation services as well, so that parties without sufficient resources may file a petition seeking a waiver or reduction of the costs of mediation.]

(2) the process of mediation;

(3) that the mediator does not represent either or both of the parties;

(4) the nature and extent of any relationships with the parties and any personal, financial, or other interests that could result in a bias or conflict of interest;

(5) that mediation is not a substitute for the benefit of independent legal advice; and

(6) that the parties should obtain legal assistance for drafting any agreement or for reviewing any agreement drafted by the other party.

(b) When mediating a custody dispute, the mediator shall ensure that the parties consider fully the best interests of the child or children.

(c) With the consent of the parties, the mediator may meet with the parties' children or invite other persons to participate in the mediation.

(d) The role of the mediator is to assist the parties in identifying the issues, reducing misunderstandings, clarifying priorities, exploring areas of compromise, and finding points of agreement.

Comment:

Pa.R.J.A. 1990 provides procedures for obtaining leave to waive fees and costs when the parties do not have the financial resources to pay the costs of litigation. That rule applies to court-connected mediation services as well, so that parties without sufficient resources may file an application seeking a waiver or reduction of the costs of mediation.

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

EXPLANATORY COMMENT—1999

Rule 1940.5 sets forth the mediator's responsibilities to the parties. Subdivision (c) permits the participation of third persons with the consent of both parties. Such persons would include attorneys, other family members, mental health professionals or any other person who may be of assistance in resolving the disputed issues.

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804

Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1

Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e.*, *in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward

the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see*, *e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a

certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support ___ adults (not counting myself) who live with me" and "I support ___ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied applica-

tion. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renum-

bered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996 Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012 correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997 amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000 amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002 amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005 amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011 revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-643. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 231—RULES OF CIVIL PROCEDURE

PART II. ORPHANS' COURT RULES

[231 PA. CODE PART II]

Order Amending Rule 1.40 of the Pennsylvania Rules of Orphans' Court Procedure; No. 1049 Supreme Court Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Orphans' Court Procedural Rules Committee; the proposal having been published for public comment at 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rule 1.40 of the Pennsylvania Rules of Orphans' Court Procedure is amended in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b) and shall be effective on November 1, 2026.

Additions to the rules are shown in bold and are underlined.

Deletions from the rules are shown in bold and brackets.

Annex A

TITLE 231. RULES OF CIVIL PROCEDURE

PART II. ORPHANS' COURT RULES

CHAPTER 1. PRELIMINARY RULES

Rule 1.40. **[** ***In Forma Pauperis*** **]** **Application to Waive Fees and Costs (*In Forma Pauperis*).**

(a) [Pa.R.C.P. No. 240 shall apply in every action or proceeding before a court covered by these Rules.] A party who is without financial resources may seek or obtain a waiver of certain fees and costs pursuant to Pa.R.J.A. 1990.

(b) ***Dismissal for Frivolous Action.*** **Nothing in Pa.R.J.A. 1990 shall preclude the court from *sua sponte* dismissing an underlying action, which is filed contemporaneously with an application to waive fees and costs, as frivolous.**

[Explanatory] Comment:

[Under Pa.R.C.P. No. 240, a party who is found by the court to be without financial resources to pay the costs of filing a legal paper or other costs of an action or proceeding before the court shall have such costs waived.] Pennsylvania Rule of Judicial Administration 1990 (Application to Waive Fees and Costs (*In Forma Pauperis*)) sets forth the procedure for seeking or obtaining a waiver of the payment of certain fees and costs. *See* Pa.R.J.A. 1990(a). The eligibility criteria at Pa.R.J.A. 1990(c) should inform the party whether to proceed by application or *praecipe*. This **[Rule] rule** does not apply in matters before a Register of Wills.

Subdivision (b) enables the court to eliminate frivolous lawsuits involving a party who is requesting a waiver of fees and costs. The effect of such lawsuits on the judicial system was stated by the Supreme Court of the United States in *Neitzke v. Williams*, 490 U.S. 319 (1989):

> **We recognize the problems in judicial administration caused by the surfeit of meritless *in forma pauperis* complaints in the federal courts, not the least of which is the possibility that meritorious complaints will receive inadequate attention or be difficult to identify amidst the overwhelming number of meritless complaints.**

***Id.* at 326. This definition is virtually identical in its statement with the definition of the Supreme Court of Pennsylvania in *Robinson v. Com., Pa. Board of Probation and Parole*, 582 A.2d 857, 860 (Pa. 1990) defining the term "frivolous" as used in Pa.R.A.P. 2744 as "an appeal which lacks any basis in law or fact."**

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804 Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1 Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e., in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised

Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion

as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see, e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

> Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a

party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support __ adults (not counting myself) who live with me" and "I support __ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied application. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996, Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012, correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997, amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000, amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002, amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005, amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011, revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of

court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "in *forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-644. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 234—RULES OF CRIMINAL PROCEDURE

[234 PA. CODE CH. 1]

Proposed Amendment of Pa.R.Crim.P. 150

The Criminal Procedural Rules Committee is considering proposing to the Supreme Court of Pennsylvania the amendment of Pa.R.Crim.P. 150 for the reasons set forth in the accompanying publication report. Pursuant to Pa.R.J.A. 103(a)(1), the proposal is being published in the *Pennsylvania Bulletin* for comments, suggestions, or objections prior to submission to the Supreme Court.

Any report accompanying this proposal was prepared by the Committee to indicate the rationale for the proposed rulemaking. It will neither constitute a part of the rules nor be adopted by the Supreme Court.

Deletions to the text are bolded and bracketed; Additions to the text are designated as such.

The Committee invites all interested persons to submit comments, suggestions, or objections in writing to:

Mark A. Merdinger, Counsel
Criminal Procedural Rules Committees
Supreme Court of Pennsylvania
Pennsylvania Judicial Center
PO Box 62635
Harrisburg, PA 17106-2635
FAX: (717) 231-9521
criminalrules@pacourts.us

All communications in reference to the proposal should be received by July 8, 2026. E-mail is the preferred method for submitting comments, suggestions, or objections; any e-mailed submission need not be reproduced and resubmitted via mail. The Committee will acknowledge receipt of all submissions.

By the Criminal Procedural Rules Committee

DAVID R. CROWLEY, ESQ.,
Chair

Annex A

TITLE 234. RULES OF CRIMINAL PROCEDURE

CHAPTER 1. SCOPE OF RULES, CONSTRUCTION AND DEFINITIONS, LOCAL RULES

PART E. Miscellaneous Warrants

Rule 150. Bench Warrants.

[(A) In a court case when a bench warrant is executed, the case is to proceed in accordance with the following procedures.

(1) When a defendant or witness is arrested pursuant to a bench warrant, he or she shall be taken without unnecessary delay for a hearing on the bench warrant. The hearing shall be conducted by the judicial officer who issued the bench warrant, or, another judicial officer designated by the president judge or by the president judge's designee to conduct bench warrant hearings.

(2) In the discretion of the judicial officer, the bench warrant hearing may be conducted using two-way simultaneous audio-visual communication.

(3) When the individual is arrested in the county of issuance, if the bench warrant hearing cannot be conducted promptly after the arrest, the defendant or witness shall be lodged in the county jail pending the hearing. The authority in charge of the county jail promptly shall notify the court that the individual is being held pursuant to the bench warrant.

(4) When the individual is arrested outside the county of issuance, the authority in charge of the county jail promptly shall notify the proper authorities in the county of issuance that the individual is being held pursuant to the bench warrant.

(5) The bench warrant hearing shall be conducted without unnecessary delay after the individual is lodged in the jail of the county of issuance on that bench warrant.

(a) When the bench warrant is issued by the supervising judge of a "multi-county" investigating grand jury, the individual shall be detained only until the supervising judge is available to conduct the bench warrant hearing.

(b) In all other cases, the individual shall not be detained without a bench warrant hearing on that bench warrant longer than 72 hours, or the close of the next business day if the 72 hours expires on a non-business day.

(6) At the conclusion of the bench warrant hearing following the disposition of the matter, the judicial officer immediately shall vacate the bench warrant.

(7) If a bench warrant hearing is not held within the time limits in paragraph (A)(5)(b), the bench warrant shall expire by operation of law.

(B) As used in this rule, "judicial officer" is limited to the magisterial district judge or common pleas court judge who issued the bench warrant, or the magisterial district judge or common pleas court judge designated by the president judge or by the president judge's designee to conduct bench warrant hearings, or in Philadelphia, trial commissioners and Philadelphia Municipal Court judges.

Comment

This rule addresses only the procedures to be followed after a bench warrant is executed, and does not apply to execution of bench warrants outside the Commonwealth, which are governed by the extradition procedures in 42 Pa.C.S. § 9101 *et seq.*, or to warrants issued in connection with probation or parole proceedings.

For the bench warrant procedures when a witness is under the age of 18 years, see Rule 151.

Paragraph (A)(2) permits the bench warrant hearing to be conducted using two-way simultaneous audio-visual communication, which is a form of advanced communication technology. *See* Rule 103. Utilizing this technology will aid the court in complying with this rule, and in ensuring individuals arrested on bench warrants are not detained unnecessarily.

Once a bench warrant is executed and the defendant is taken into custody, the bench warrant no longer is valid.

To ensure compliance with the prompt bench warrant hearing requirement, the president judge or the president judge's designee may designate only a magisterial district judge to cover for magisterial district judges or a common pleas court judge to cover for common pleas court judges. *See also* Rule 132 for the temporary assignment of magisterial district judges. In Philadelphia, the current practice of designating trial commissioners and Philadelphia Municipal Court judges to conduct bench warrant hearings is acknowledged in paragraph (B).

It is expected that the practices in some judicial districts of a common pleas court judge (1) indicating on a bench warrant the judge has issued that the bench warrant is a "judge only" bench warrant, or (2) who knows he or she will be unavailable asking another common pleas court judge to handle his or her cases during the common pleas court judge's absence, would continue.

Paragraph (A)(5)(a) recognizes the procedural and substantive differences between "multi-county" investigating grand jury proceedings and all other proceedings in the court of common pleas, including a county investigating grand jury, by eliminating the time limit for conducting the bench warrant hearing when the bench warrant is issued by the multi-county investigating grand jury supervising judge. *See* Rules 240—244 and 42 Pa.C.S. § 4544. When the supervising judge issues a bench warrant, the bench warrant hearing must be conducted expeditiously when the supervising judge is available.

Paragraph (A)(6) requires the judicial officer to vacate the bench warrant at the conclusion of the bench warrant hearing. The current practice in some judicial districts of having the clerk of courts cancel the bench warrant upon receipt of a return of service is consistent with this paragraph, as long as the clerk of courts promptly provides notice of the return of service to the issuing judge.

It is incumbent upon the president judge or the president judge's designee to establish procedures for the monitoring of the time individuals are detained pending their bench warrant hearing.

For the procedures concerning violation of the conditions of bail, see Chapter 5 Part C.

As used in this rule, "court" includes magisterial district judge courts.

For the bench warrant procedures in summary cases, see Rules 430(B) and 431(C).

For procedures for the detention of witnesses, see Rule 522.

For the arrest warrants that initiate proceedings in court cases, see Chapter 5, Part B(3)(a), Rules 513, 514, 515, 516, 517, and 518. For the arrest warrants that initiate proceedings in summary cases, see Chapter 4, Part D(1), Rules 430(A) and 431(B).

***Official Note*: Adopted December 30, 2005, effective August 1, 2006; Comment revised October 24, 2013, effective January 1, 2014; amended December 7, 2018, effective April 1, 2019.**

***Committee Explanatory Reports*:**

Final Report explaining new Rule 150 providing procedures for bench warrants published with the Court's Order at 36 Pa.B. 184 (January 14, 2006).

Final Report explaining the October 24, 2013 Comment revision adding a cross-reference to new Rule 151 published with the Court's Order at 43 Pa.B. 6655 (November 9, 2013).

Final Report explaining the December 7, 2018 amendment regarding procedures for the detention of witnesses pursuant to Rule 522 published with the Court's Order at 48 Pa.B. 7749 (December 22, 2018).]

—The following text is entirely new—

(a) *Hearing Required.*

(1) In a court case, when a defendant or witness is arrested pursuant to a bench warrant, the individual shall be taken without unnecessary delay for a hearing on the bench warrant.

(2) The hearing shall be conducted by the judicial officer who issued the bench warrant, or another judicial officer designated by the president judge or by the president judge's designee to conduct bench warrant hearings.

(3) At the conclusion of the bench warrant hearing following the disposition of the matter, the judicial officer immediately shall vacate the bench warrant.

(b) *Manner of Hearing—Use of Advanced Communication Technology.*

(1) In the discretion of the judicial officer, the bench warrant hearing may be conducted using two-way simultaneous audio-visual communication.

(2) In the discretion of the judicial officer, the bench warrant hearing may be conducted by two-way simultaneous audio communication if the individual is detained outside the county of issuance, two-way simultaneous audio-visual communication is not available, and the individual agrees.

(c) *Pre-Hearing Detention.*

(1) If the individual is arrested in the county of issuance and the bench warrant hearing cannot be conducted promptly, then the individual shall be lodged in the county jail pending the hearing. The authority in charge of the county jail promptly shall notify the court that the individual is being held pursuant to the bench warrant.

(2) If the individual is arrested outside the county of issuance and a bench warrant hearing cannot be held promptly, then the individual shall be lodged in the arresting county's jail pending a hearing or transfer to the county of issuance. The authority in charge of the arresting county's jail shall promptly notify the proper authorities in the county of issuance that the individual is being held pursuant to the bench warrant.

(d) *Time Limitations—General Rule.*

(1) If the bench warrant was issued by a judicial officer other than the supervising judge of a multi-county investigating grand jury, then the individual may be detained pursuant to subdivision (c) for up to 72 hours, or the close of the next business day if the 72 hours expires on a non-business day.

(2) Unless extended pursuant to subdivision (d)(3), the bench warrant will expire by operation of law if the bench warrant hearing is not held within 72 hours.

(3) A judicial officer in the county of issuance may issue an order articulating good cause extending the bench warrant for one additional period of time not to exceed 72 hours.

(e) *Time Limitations—Multi-County Investigating Grand Jury Warrants.* If the bench warrant is issued by the supervising judge of a multi-county investigating grand jury, the individual shall be detained pursuant to subdivision (c) only until the supervising judge is available to conduct the bench warrant hearing.

(f) *Definitions.* As used in this rule, "judicial officer" is limited to the magisterial district judge or common pleas court judge who issued the bench warrant, or the magisterial district judge or common pleas court judge designated by the president judge or by the president judge's designee to conduct bench warrant hearings, or in Philadelphia, trial commissioners and Philadelphia Municipal Court judges.

Comment:

This rule addresses only the procedures to be followed after a bench warrant is executed, and does not apply to execution of bench warrants outside the Commonwealth, which are governed by the extradition procedures in 42 Pa.C.S. §§ 9101 *et seq.*, or to warrants issued in connection with probation or parole proceedings.

For the bench warrant procedures when a witness is under the age of 18 years, see Rule 151.

Subdivision (a)(3) requires the judicial officer to vacate the bench warrant at the conclusion of the bench warrant hearing. The current practice in some judicial districts of having the clerk of courts cancel the bench warrant upon receipt of a return of service is consistent with this subdivision, if the clerk of courts promptly provides notice of the return of service to the issuing judge.

Subdivision (b)(1) permits the court to conduct the bench warrant hearing using two-way simultaneous audio-visual communication, which is a form of advanced communication technology. *See* Pa.R.Crim.P. 103. Subdivision (b)(2) further provides the court with a limited ability to conduct the bench warrant hearing using two-way simultaneous audio-only communication, *e.g.* telephone. Utilizing this technology will aid the court in complying with the time requirements of this rule.

Once a bench warrant is executed and the defendant is taken into custody, the bench warrant no longer is valid.

To ensure compliance with the prompt bench warrant hearing requirement, the president judge or the president judge's designee may designate only a magisterial district judge to cover for magisterial district judges or a common pleas court judge to cover for common pleas court judges. *See also* Pa.R.Crim.P. 132 (temporary assignment of magisterial district judges). In Philadelphia, the current practice of designating trial commissioners and Philadelphia Municipal Court judges to conduct bench warrant hearings is acknowledged in subdivision (f).

Nothing in this rule is intended to preclude a common pleas court judge from either indicating on a bench warrant that it is a "judge only" bench warrant, or asking another common pleas court judge to handle his or her cases when he or she will be unavailable.

Subdivision (e) recognizes the procedural and substantive differences between multi-county investigating grand jury proceedings and all other proceedings in the court of common pleas, including a county investigating grand jury, by eliminating the time limit for conducting the bench warrant hearing if the bench warrant is issued by the multi-county investigating grand jury supervising judge. *See* Pa.R.Crim.P. 240—244; and 42 Pa.C.S. § 4544. If the supervising judge issues a bench warrant, the bench warrant hearing must be conducted expeditiously when the supervising judge is available.

It is incumbent upon the president judge or the president judge's designee to establish procedures for the monitoring of the time individuals are detained pending their bench warrant hearing.

For the procedures concerning violation of the conditions of bail, see Chapter 5 Part C.

As used in this rule, "president judge," as it pertains to Philadelphia, is intended to include the Administrative Judge of the Court of Common Pleas—Trial Division or the Administrative Judge of Municipal Court.

As used in this rule, "court" includes magisterial district judge courts.

For the bench warrant procedures in summary cases, see Pa.R.Crim.P. 430(B) and 431(C).

For procedures for the detention of witnesses, see Rule 522.

For the arrest warrants that initiate proceedings in court cases, see Pa.R.Crim.P. 513—518. For the arrest warrants that initiate proceedings in summary cases, see Pa.R.Crim.P. 430(A) and 431(B).

SUPREME COURT OF PENNSYLVANIA
CRIMINAL PROCEDURAL RULES COMMITTEE

PUBLICATION REPORT

Proposed Amendment of Pa.R.Crim.P. 150

Currently, Pa.R.Crim.P. 150 (Bench Warrants) requires a hearing within 72-hours when a defendant or a witness is detained on a bench warrant that was issued in a court case. However, that time does not commence until the individual is detained in the jail of the county that issued. There is no time limit on pre-hearing detention if the individual is detained in another county's jail waiting to be transported back to the county of issuance. Concern was expressed over potentially indefinite periods of pre-hearing detention simply due to the county of arrest. There is a risk that individuals will be detained for periods of time that are longer than necessary. This can have detrimental effects on the individual's employment, housing, and other vital aspects of life.

Accordingly, the Committee previously published a proposal to amend Pa.R.Crim.P. 150 (Bench Warrants) by requiring a bench warrant hearing within 72 hours of detention regardless of the county in which the individual is detained, unless the warrant was issued by the supervising judge of a multi-county investigating grand jury. *See* 55 Pa.B. 5101 (August 2, 2025). While developing that proposal, the Committee noted that Pa.R.Crim.P. 150(A)(2) currently allows judicial officers to conduct bench warrant hearings remotely using two-way simultaneous audio-video communication. Believing that such technology had become ubiquitous since the rule's initial adoption in 2005, the Committee concluded that the 72-hour time limit could be expanded without undue strain on judges or the courts.

The Committee has now made further amendments to the proposal. Those amendments are substantive, organizational, and stylistic. As proposed, the entirety of the existing rule text and commentary would be replaced.

With respect to the substantive amendments, the Committee retained the previous 72-hour time limitation on pre-hearing detention regardless of the county in which the individual is detained, unless the individual is detained on a warrant issued by a supervising judge of a multi-county investigating grand jury. However, to address concerns that a timely bench warrant hearing through simultaneous two-way audio-visual communication is not always possible, the Committee is proposing two revisions.

First, proposed subdivision (b)(2) would permit a bench warrant hearing to be conducted using two-way simultaneous audio-only technology, *e.g.*, telephone. This is intended to give courts and jails more flexibility to conduct hearings remotely when audio-video technology systems malfunction or when counties have incompatible audio-visual communication technology systems. It is also intended to give more flexibility to accommodate the schedules of staff in two different counties. However, proceeding by audio-only technology would be at the judicial officer's discretion and if the individual agrees.

Second, proposed subdivision (d)(3) would provide a mechanism for a judicial officer in the county of issuance to extend a bench warrant for an additional 72 hours upon a finding of good cause. The judicial officer would also have to issue an order setting forth the good cause. Only one such extension would be permitted. As proposed, subdivision (d)(3) would apply to any bench warrant subject to the 72-hour time limit, even when the individual is detained in the county of issuance. If the warrant is extended, the court would have a combined total of six days to hold a hearing. The Committee believes that this is sufficient time to hold a bench warrant hearing, either in-person or remotely, regardless of the place of arrest.

As with the original proposal, bench warrants issued by the supervising judge of a multi-county investigating grand jury would not be subject to the 72-hour limitation. Pursuant to proposed subdivision (e), individuals in those cases could be detained "only until the supervising judge is available to conduct the bench warrant hearing." This requirement mirrors the existing rule. *See* Pa.R.Crim.P. 150(A)(5)(a).

With respect to the Comment, the Committee has revised the sixth paragraph which addresses the practice in some judicial districts of issuing "judge only" bench warrants. "Judge only" warrants are those in which the issuing judge has specified that he or she must conduct the bench warrant hearing. The proposed revision was included in the previous publication and is intended only to improve the readability of the existing commentary. The Committee specifically requests comments on the application of proposed Pa.R.Crim.P. 150(d) to "judge only" warrants.

The eleventh paragraph of the proposed comment is new. It provides: "As used in this rule, 'president judge,' as it pertains to Philadelphia, is intended to include the Administrative Judge of the Court of Common Pleas—Trial Division or the Administrative Judge of Municipal Court." This has been added to reflect present operations in the Philadelphia County Court System.

Finally, the remaining organizational and stylistic amendments found in proposed Pa.R.Crim.P. 150 are intended to improve readability and clarity.

The Committee invites all comments, concerns, and suggestions.

[Pa.B. Doc. No. 26-645. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 234—RULES OF CRIMINAL PROCEDURE

[234 PA. CODE CHS. 1, 3, 7, AND 9]

Order Amending Rules 124, 316, 704, 708, 720, 900, 902, 903, 904, 906, and 907 of the Pennsylvania Rules of Criminal Procedure; No. 563 Criminal Procedural Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Criminal Procedural Rules Committee; the proposal having been published for public comment at 52 Pa.B. 2561 (April 30, 2022) and 53 Pa.B. 1790 (April 1, 2023):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rules 124, 316, 704,

708, 720, 900, 902, 903, 904, 906, and 907 of the Pennsylvania Rules of Criminal Procedure are amended in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Additions to the rule are shown in bold and are underlined.

Deletions from the rule are shown in bold and brackets.

Annex A

TITLE 234. RULES OF CRIMINAL PROCEDURE

CHAPTER 1. SCOPE OF RULES, CONSTRUCTION AND DEFINITIONS, LOCAL RULES

PART B. Counsel

Rule 124. **[In Forma Pauperis. [Reserved].]** **Waiver of Fees and Costs.**

(a) *General Rule.* A defendant may seek or obtain a waiver of any fees or costs pursuant to Pa.R.J.A. 1990 that would otherwise operate to impede access to the courts.

(b) *Exception.* This rule shall not apply to restitution or to fees, costs, or other financial assessments imposed as a result of conviction.

Comment:

Subdivision (a) is intended to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11. The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(a)(2).

Fees, costs, or other financial assessments imposed as a result of conviction are excepted from this rule pursuant to subdivision (b) but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Per subdivision (b), restitution, either as a condition of an accelerated rehabilitative disposition program or imposed as a result of a conviction, is not subject to subdivision (a).

Regarding a defendant's ability to pay restitution and entrance into an accelerated rehabilitative disposition program, "the district attorney and the court must inquire into the reasons for the petitioner's inability to pay restitution. If the petitioner shows a willingness to make a bona fide effort to pay whole or partial restitution, the State may not deny entrance to the ARD program." *Commonwealth v. Melnyk*, 548 A.2d 266, 272 (Pa. Super. 1988).

Pennsylvania Rule of Judicial Administration 1990 (Application to Waive Fees and Costs) sets forth the procedure for seeking or obtaining a waiver of the payment of filing fees. The eligibility criteria at Pa.R.J.A. 1990(c) should inform the defendant whether to proceed by application or *praecipe*.

For an expungement, an application for a waiver or a *praecipe* of counsel should be filed at the same docket containing the records the defendant seeks to expunge.

CHAPTER 3. ACCELERATED REHABILITATIVE DISPOSITION (ARD)

PART B. Court Cases

Rule 316. Conditions of the Program.

[(A)] **(a)** The conditions of the program may **include:**

(1) [be such as may be] **those** imposed with respect to probation after conviction of a crime, including restitution, except that a fine may not be imposed**[.];**

(2) [In addition, the conditions of the program may include] the imposition of costs**[, the imposition of]** **and** a reasonable charge relating to the expense of administering the program**[,];** and

(3) such other conditions as may be agreed to by the parties.

[(B)] **(b)** The period of such program for any defendant shall not exceed two years.

Comment:

[Paragraph (A)] **Subdivision (a)** makes it clear that reasonable charges for the expense of administering the program may be imposed on defendants. It is intended that these charges may be imposed on those admitted into the program and that no separate fees be required for application for admission into the program.

The practice has been to permit qualified individuals who are indigent to participate in the ARD program without payment of costs or charges. The 1983 amendment is not intended to change this practice; rather, it is intended that such practice will continue.

Concerning restitution, see 42 Pa.C.S. § 9728 (Collection of restitution, reparation, fees, costs, fines, and penalties).

A defendant may be required to accept conditions of the program as provided by statute. *See, e.g.*, 75 Pa.C.S. § 3807 (Accelerated **[Rehabilitation]** **Rehabilitative** Disposition).

[*Official Note*: Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

***Committee Explanatory Reports*:**

Report explaining the September 26, 1996 Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012 correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).]

CHAPTER 7. POST-TRIAL PROCEDURES IN COURT CASES

PART A. Sentencing Procedures

Rule 704. Procedure at Time of Sentencing.

* * * * *

(C) SENTENCING PROCEEDING.

* * * * *

(3) The judge shall determine on the record that the defendant has been advised of the following:

* * * * *

(b) of the rights,

(i) if the defendant is indigent, **[to proceed in forma pauperis]** **to seek waiver of costs as provided for in Rule 124 (Waiver of Fees and Costs)** and to proceed with appointed counsel as provided in Rule 122, or,

* * * * *

Comment:

* * * * *

SENTENCING PROCEDURES

* * * * *

After sentencing, following a conviction in a trial *de novo* in a summary case, the judge should advise the defendant of the right to appeal and the time limits within which to exercise that right, the right **[to proceed *in forma pauperis*]** **to seek waiver of costs as provided for in Rule 124 (Waiver of Fees and Costs)** and with appointed counsel to the extent provided in Rule 122(A), and of the qualified right to bail under Rule 521(B). *See* paragraphs (C)(3)(a), (b), and (e). *See also* Rule 720(D) (no post-sentence motion after a trial *de novo*).

* * * * *

Rule 708. Violation of Probation, Intermediate Punishment, or Parole: Hearing and Disposition.

* * * * *

(D) Sentencing Procedures

* * * * *

(3) The judge shall advise the defendant on the record:

* * * * *

(b) of the rights, if the defendant is indigent, **[to proceed in forma pauperis]** **to seek waiver of costs as provided for in Rule 124 (Waiver of Fees and Costs)** and to proceed with assigned counsel as provided in Rule 122.

* * * * *

PART B. Post-Sentence Procedures

Rule 720. Post-Sentencing Procedures; Appeal.

* * * * *

(B) OPTIONAL POST-SENTENCE MOTION.

* * * * *

(4) Contents of Order.

* * * * *

(c) the rights, if the defendant is indigent, **[to appeal in forma pauperis]** **to seek waiver of costs as provided for in Rule 124 (Waiver of Fees and Costs)** and to proceed with assigned counsel as provided in Rule 122; and

* * * * *

CHAPTER 9. POST-CONVICTION COLLATERAL PROCEEDINGS

Rule 900. Scope; Notice In Death Penalty Cases.

* * * * *

(B) *Notice in Death Penalty Cases*

* * * * *

(4) Pursuant to Rule 904 (**Entry of Appearance and** Appointment of Counsel; **[*in Forma Pauperis*]** **Waiver of Fees and Costs**), the trial judge will appoint new counsel for the purpose of post-conviction collateral review, unless:

* * * * *

Rule 902. Content of Petition for Post-Conviction Collateral Relief; Request for Discovery.

* * * * *

Comment:

* * * * *

Paragraphs (A)(16) and (E) were added in 1997 to address requests for discovery. Paragraph (A)(16) requires that a request for discovery be included in the petition, if applicable. Paragraph (E) sets forth the standards for permitting discovery. Under paragraph (E)(1), which applies in all cases except on the first counseled petition in a death penalty case, no discovery is permitted at any stage of the proceedings, except upon leave of the court with a showing of exceptional circumstances. *See* 42 Pa.C.S. § 9545(d)(2). Under paragraph (E)(2), which applies to first counseled petitions in death penalty cases, discovery is permitted only upon leave of court for good cause shown. For purposes of paragraph (E)(2), "first counseled petition" includes petitions on which defendants have elected to proceed pro se pursuant to Rule **[904(F)(1)(a)]** **904(h)(1)(i)**.

* * * * *

Rule 903. Docketing and Assignment.

* * * * *

Comment:

* * * * *

If a defendant in a death penalty case files a petition before the trial judge has made a determination concerning the appointment of counsel as required by Rule **[904(G)]** **904(h)**, after making the docket entry and placing the petition in the criminal case file, the clerk promptly must forward a copy of the petition to the trial judge for that determination.

Rule 904. Entry of Appearance and Appointment of Counsel; **[In Forma Pauperis]** **Waiver of Fees and Costs**.

[(A)] **(a)** Counsel for defendant shall file a written entry of appearance with the clerk of courts promptly after being retained, and serve a copy on the attorney for the Commonwealth.

(1) If a firm name is entered, the name of an individual lawyer shall be designated as being responsible for the conduct of the case.

(2) The entry of appearance shall include the attorney's address, phone number, and attorney ID number.

[(B)] **(b)** When counsel is appointed, the filing of the appointment order shall enter the appearance of appointed counsel.

[(C)] **(c)** Except as provided in **[paragraph (H)]** **subdivision (h)**, when an unrepresented defendant satisfies the judge that the defendant is unable to afford or otherwise procure counsel, the judge shall appoint counsel to represent the defendant on the defendant's first petition for post-conviction collateral relief.

[(D)] **(d)** On a second or subsequent petition, when an unrepresented defendant satisfies the judge that the defendant is unable to afford or otherwise procure counsel, and an evidentiary hearing is required as provided in Rule 908, the judge shall appoint counsel to represent the defendant.

[(E)] **(e)** The judge shall appoint counsel to represent a defendant whenever the interests of justice require it.

[(F)] **(f)** When counsel is appointed,

(1) the judge shall enter an order indicating the name, address, and phone number of the appointed counsel, and the order shall be served on the defendant, the appointed counsel, the previous attorney of record, if any, and the attorney for the Commonwealth pursuant to Rule 114 (Orders and Court Notices: Filing; Service; and Docket Entries); and

(2) the appointment of counsel shall be effective throughout the post-conviction collateral proceedings, including any appeal from disposition of the petition for post-conviction collateral relief.

[(G)] **(g)** **[When a defendant satisfies the judge that the defendant is unable to pay the costs of the post-conviction collateral proceedings, the judge shall order that the defendant be permitted to proceed in forma pauperis]** **A defendant may seek waiver of the costs of the post-conviction collateral proceedings as provided for in Rule 124 (Waiver of Fees and Costs)**.

[(H)] **(h)** Appointment of Counsel in Death Penalty Cases.

(1) At the conclusion of direct review in a death penalty case, which includes discretionary review in the Supreme Court of the United States, or at the expiration of time for seeking the review, upon remand of the record, the trial judge shall appoint new counsel for the purpose of post-conviction collateral review, unless:

[(a)] **(i)** the defendant has elected to proceed pro se or waive post-conviction collateral proceedings, and the judge finds, after a colloquy on the record, that the defendant is competent and the defendant's election is knowing, intelligent, and voluntary;

[(b)] **(ii)** the defendant requests continued representation by original trial counsel or direct appeal counsel, and the judge finds, after a colloquy on the record, that the petitioner's election constitutes a knowing, intelligent, and voluntary waiver of a claim that counsel was ineffective; or

[(c)] **(iii)** the judge finds, after a colloquy on the record, that the defendant has engaged counsel who has entered, or will promptly enter, an appearance for the collateral review proceedings.

(2) When counsel is appointed,

[(a)] **(i)** the judge shall enter an order indicating the name, address, and phone number of the appointed counsel, and the order shall be served on the defendant, the appointed counsel, the previous attorney of record, if any, and the attorney for the Commonwealth pursuant to Rule 114 (Orders and Court Notices: Filing; Service; and Docket Entries); and

[(b)] **(ii)** the appointment of counsel shall be effective throughout the post-conviction collateral proceedings, including any appeal from disposition of the petition for post-conviction collateral relief.

(3) **[When the defendant satisfies the judge that the defendant is unable to pay the costs of the post-conviction collateral proceedings, the judge shall order that the defendant be permitted to proceed in forma pauperis]** **A defendant may seek waiver of the costs of the post-conviction collateral proceedings as provided for in Rule 124 (Waiver of Fees and Costs)**.

Comment**:**

If a defendant seeks to proceed without an attorney, the court may appoint standby counsel. *See* **[Rule]** **Pa.R.Crim.P.** 121.

Consistent with Pennsylvania post-conviction practice, it is intended that counsel be appointed in every case in which a defendant has filed a petition for post-conviction collateral relief for the first time and is unable to afford counsel or otherwise procure counsel. However, the rule now limits appointment of counsel on second or subsequent petitions so that counsel should be appointed only if the judge determines that an evidentiary hearing is required. Of course, the judge has the discretion to appoint counsel in any case when the interests of justice require it.

[Paragraph (B)] **Subdivision (b)** was added in 2005 to make it clear that the filing of an order appointing counsel to represent a defendant enters the appearance of appointed counsel. Appointed counsel does not have to file a separate entry of appearance.

[Paragraphs (F)(1) and (H)(2)(a)] **Subdivisions (f)(1) and (h)(2)(i)** require that (1) the judge include in the appointment order the name, address, and phone number of appointed counsel, and (2) the order be served on the defendant, appointed counsel, the previous attorney of record, if any, and the attorney for the Commonwealth pursuant to Rule 114 (Orders and Court Notices: Filing; Service; and Docket Entries).

Pursuant to **[paragraphs (F)(2) and (H)(2)(b)]** **subdivisions (f)(2) and (h)(2)(ii)**, appointed counsel retains his or her assignment until final judgment, which includes all avenues of appeal through the Supreme Court of Pennsylvania. In making the decision whether to file a petition for allowance of appeal, counsel must (1) consult with his or her client, and (2) review the standards set forth in Pa.R.A.P. 1114 (**[Considerations]** **Standards** Governing Allowance of Appeal) and the note following that rule. If the decision is made to file a petition, counsel must carry through with that decision. *See Commonwealth v. Liebel*, **[573 Pa. 375,]**825 A.2d 630 (**Pa.** 2003). Concerning counsel's obligations as appointed counsel, *see Jones v. Barnes*, 463 U.S. 745 (1983). *See also Commonwealth v. Padden*, 783 A.2d 299 (Pa. Super. 2001).

[Paragraph (H)] **Subdivision (h)** was added in 2000 to provide for the appointment of counsel for the first petition for post-conviction collateral relief in a death penalty case at the conclusion of direct review.

[Paragraph (H)(1)(a)] **Subdivision (h)(1)(i)** recognizes that a defendant may proceed pro se if the judge finds the defendant competent, and that the defendant's election is knowing, intelligent, and voluntary. In *Indiana v. Edwards*, 128 S.Ct. 2379, 2388 (2008), the Supreme Court recognized that, when a defendant is not mentally competent to conduct his or her own defense, the U.S. Constitution permits the judge to require the defendant to be represented by counsel.

An attorney may not represent a defendant in a capital case unless the attorney meets the educational and experiential requirements set forth in Rule 801 (Qualifications for Defense Counsel in Capital Cases).

[*Official Note*: Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1,

1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

***Committee Explanatory Reports*:**

Final Report explaining the August 11, 1997 amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000 amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002 amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005 amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011 revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).]

Rule 906. Answer to Petition for Post-Conviction Collateral Relief.

* * * * *

Comment:

* * * * *

"First counseled petition," as used in paragraph (E)(1), includes petitions on which defendants have elected to proceed pro se pursuant to **[Rule 904(F)(1)(a)]** **Rule 904(h)(1)(i)**. *See also* the Comment to Rule 903.

* * * * *

Rule 907. Disposition Without Hearing.

* * * * *

Comment:

* * * * *

For the requirements for appointment of counsel on second and subsequent petitions, see Rule **[904(B)]** **904(d)**.

* * * * *

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804

Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1

Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e., in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees

coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion

as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see, e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

> Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation

proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support __ adults (not counting myself) who live with me" and "I support __ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied application. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996, Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012, correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997, amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000, amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002, amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005, amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011, revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-646. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 237—JUVENILE RULES

PART I. RULES

[237 PA. CODE CHS. 1 AND 11]

Order Adopting Rules 142 and 1142 of the Pennsylvania Rules of Juvenile Court Procedure; No. 1048 Supreme Court Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Juvenile Court Procedural Rules Committee; the proposal having been published for public comment at 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rules 142 and 1142 of the Pennsylvania Rules of Juvenile Court Procedure are adopted in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Annex A

TITLE 237. JUVENILE RULES

PART I. RULES

Subpart A. DELINQUENCY MATTERS

CHAPTER 1. GENERAL PROVISIONS

PART A. BUSINESS OF COURTS

(The following is an entirely new rule.)

Rule 142. Waiver of Fees and Costs.

A juvenile may seek or obtain a waiver of any fees or costs pursuant to Pa.R.J.A. 1990, except financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency.

Comment:

Pennsylvania Rule of Judicial Administration 1990 (Application to Waive Fees and Costs (*In Forma Pauperis*)) sets forth the procedure for seeking or obtaining a waiver of the payment of fees. The eligibility criteria at Pa.R.J.A. 1990(b) should inform the juvenile whether to proceed by application or *praecipe.*

For an expungement, an application for a waiver or a *praecipe* of counsel should be filed at the same docket containing the records the juvenile seeks to expunge or destroy.

Subpart B. DEPENDENCY MATTERS

CHAPTER 11. GENERAL PROVISIONS

PART A. BUSINESS OF COURTS

(The following is an entirely new rule.)

Rule 1142. Waiver of Fees and Costs.

A party may seek or obtain a waiver of any fees or costs pursuant to Pa.R.J.A. 1990.

Comment:

Pennsylvania Rule of Judicial Administration 1990 (Application to Waive Fees and Costs (*In Forma Pauperis*)) sets forth the procedure for seeking or obtaining a waiver of the payment of fees. The eligibility criteria at Pa.R.J.A. 1990(b) should inform the party whether to proceed by application or *praecipe*.

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804

Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1

Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e.*, *in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee." In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward

the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see*, *e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

> A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a

certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support ___ adults (not counting myself) who live with me" and "I support ___ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied applica-

tion. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renum-

bered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996 Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000 reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012 correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997, amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000, amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002, amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005, amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011, revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-647. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 246—MINOR COURT CIVIL RULES

PART I. GENERAL

[246 PA. CODE CHS. 200, 300, 500 AND 1000]

Order Adopting Rule 206.1; and Amending Rules 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020 of the Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges; No. 560 Magisterial Rules Docket

Order

Per Curiam

And Now, this 21st day of April, 2026, upon the recommendation of the Minor Court Rules Committee; the proposal having been published for public comment at 52 Pa.B. 2561 (April 30, 2022):

It is Ordered pursuant to Article V, Section 10 of the Constitution of Pennsylvania that Rule 206.1 of the Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1 is adopted, and Rules 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020 of the Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges are amended, in the attached form.

This Order shall be processed in accordance with Pa.R.J.A. 103(b), and shall be effective November 1, 2026.

Additions to the rule are shown in bold and are underlined.

Deletions from the rule are shown in bold and brackets.

Annex A

TITLE 246. MINOR COURT CIVIL RULES

PART I. GENERAL

CHAPTER 200. RULES OF CONSTRUCTION; GENERAL PROVISIONS

(*Editor's Note*: Rule 206 as printed in 246 Pa. Code reads "Official Note" rather than "Note.")

Rule 206. Costs**[; Proceedings *In Forma Pauperis*]**.

[A.] **(a)** Except as otherwise provided by law, the costs for filing and service of the complaint shall be paid at the time of filing.

[B.] **(b)** Except as otherwise provided by **[paragraph C]** **subdivision (c)** of this rule, the prevailing party in magisterial district court proceedings shall be entitled to recover taxable costs from the unsuccessful party. Such costs shall consist of all filing, personal service, witness, and execution costs authorized by Act of Assembly or general rule and paid by the prevailing party.

[C.] **(c)** Taxable costs on appeal or *certiorari* shall be paid by the unsuccessful party, and a plaintiff who appeals shall be considered an unsuccessful party if he or she does not obtain on appeal a judgment more favorable than that obtained in the magisterial district court proceeding. A defendant who prevails on *certiorari* proceedings brought by the defendant or who obtains a favorable judgment upon appeal by either party shall not be liable for costs incurred by the plaintiff in the preceding magisterial district court proceeding and may recover taxable costs in that proceeding from the plaintiff. A plaintiff who is unsuccessful in the magisterial district court proceeding may recover taxable costs in that proceeding from the defendant if the plaintiff is successful on appeal, and in that event the defendant may not recover costs in the magisterial district court proceeding from the plaintiff.

[D.] **(d)** This rule shall apply to all civil actions and proceedings except actions pursuant to the Protection From Abuse Act or 42 Pa.C.S. §§ 62A01—62A20.

[*Note*: "Execution" costs include those for executing an order for possession. The items constituting taxable costs in appeal or *certiorari* proceedings will be governed by law or general rule applicable in the court of common pleas.

Under paragraph B, "personal service . . . costs" refers only to personal service since mail costs are to be borne by the plaintiff in all cases in accordance with Section 1725.1 of the Judicial Code, 42 Pa.C.S. § 1725.1.

This rule does not provide for the assessment of filing costs against an unsuccessful plaintiff who has been permitted to proceed *in forma pauperis* and who remains indigent. *See Brady v. Ford*, 679 A.2d 837 (Pa. Super. 1996).

For special provisions governing actions pursuant to the Protection From Abuse Act, *see* Sections 6106(b) and (c) of the Domestic Relations Code, 23 Pa.C.S. §§ 6106(b) and (c). For special provisions governing actions seeking relief for victims of sexual violence or intimidation, see 42 Pa.C.S. §§ 62A01—62A20.

E. Proceedings *in forma pauperis*

(1) A party who is without financial resources to pay the costs of litigation shall be entitled to proceed *in forma pauperis*.

(2) Except as provided by subparagraph (3), the party shall file a petition and affidavit in the form prescribed by subparagraph (6). The petition may not be filed prior to the commencement of the action, which action shall be accepted in the first instance, without the payment of filing costs.

Except as prescribed by subparagraph (3), the magisterial district judge shall act promptly upon the petition and shall enter a determination within five days from the date of the filing of the petition. If the petition is denied, in whole or in part, the magisterial district judge shall briefly state the reasons therefor. The unsuccessful petitioner may proceed no further so long as such costs remain unpaid.

(3) If the party is represented by an attorney, the magisterial district judge shall allow the party to proceed *in forma pauperis* upon the filing of a *praecipe* that contains a certification by the attorney that the attorney is providing free legal service to the party and believes the party is unable to pay the costs.

(4) A party permitted to proceed *in forma pauperis* shall not be required to pay any costs imposed or authorized by Act of Assembly or general rule which are payable to any court or any public officer or employee.

The magisterial district judge shall inform a party permitted to proceed *in forma pauperis* of the option to serve the complaint by mail in the manner permitted by these rules.

A party permitted to proceed *in forma pauperis* has a continuing obligation to inform the court of improvement in the party's financial circumstances which will enable the party to pay costs.

(5) If there is a monetary recovery by judgment or settlement in favor of the party permitted to proceed *in forma pauperis*, the exonerated costs shall be taxed as costs and paid to the magisterial district judge by the party paying the monetary recovery. In no event shall the exonerated costs be paid to the indigent party.

(6) The petition for leave to proceed *in forma pauperis* and affidavit shall be substantially in the following form:

[Caption]

Petition

I hereby request that I be permitted to proceed *in forma pauperis* (without payment of the filing and service costs). In support of this I state the following:

1. I am the plaintiff in the above matter and because of my financial condition am unable to pay the costs for filing and service of this action.

2. I am unable to obtain funds from anyone, including my family and associates, to pay the costs of litigation.

3. I represent that the information below relating to my ability to pay the costs is true and correct:

(a) Name: _____

Address: _____

_____

(b) Employment

If you are presently employed, state

Employer _____

Address: _____

Salary or wages per month: _____

Type of work: _____

If you are presently unemployed, state

The date of my last employment was: _____

Salary or wages per month: _____

Type of work: _____

(c) Other income that I have received within the past twelve months

Business or profession: _____

Other self-employment: _____

Interest: _____

Dividends: _____

Pension and annuities: _____

Social security benefits: _____

Support payments: _____

Disability payments: _____

Unemployment compensation and supplemental benefits: _____

_____

Workers' compensation: _____

Public assistance: _____

Other: _____

(d) Other contributions to household support

Spouse Name: _____

My spouse is employed: _____

Employer: _____

Salary or wages per month: _____

Type of work: _____

Contributions from children: _____

Contributions from parents: _____

Other contributions: _____

(e) Property owned

Cash: _____

Checking account: _____

Savings account: _____

Certificates of deposit: _____

Real estate (including home): _____

Motor vehicle: Make _____ , Year _____ ,

Cost _____ , Amount Owed $ _____

Stocks and bonds: _____

Other: _____

(f) Debts and Obligations

Mortgage: _____

Rent: _____

Loans: _____

Other: _____

(g) Persons dependent upon me for support

Spouse Name: _____

Ages of Minor Children, if any: _____

Other Persons:

Name: _____

Relationship: _____

4. I understand that I have a continuing obligation to inform the Court of improvement in my financial circumstances which would permit me to pay the costs incurred herein.

5. I verify that the statements made in this petition are true and correct. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

Date: _____

Petitioner: _____

Action by the Magisterial District Judge: _____

_____

Date: _____

Magisterial District Judge: _____

***Note*: This Rule substantially follows Pa.R.C.P. No. 240. Under subparagraph E(4), "any costs" includes all filing, service, witness, and execution costs.]**

Comment:

"Execution" costs include those for executing an order for possession. The items constituting taxable costs in appeal or *certiorari* proceedings will be governed by law or general rule applicable in the court of common pleas.

Under subdivision (b), "personal service . . . costs" refers only to personal service since mail costs are to be borne by the plaintiff in all cases in accordance with 42 Pa.C.S. § 1725.1.

This rule does not provide for the assessment of filing costs against an unsuccessful plaintiff for whom fees and costs were waived pursuant to Pa.R.J.A. 1990 (Application to Waive Fees and Costs (*In Forma Pauperis*)) and who remains indigent. *See Brady v. Ford*, 679 A.2d 837 (Pa. Super. 1996).

For special provisions governing actions pursuant to the Protection From Abuse Act, see 23 Pa.C.S. §§ 6106(b) and (c). For special provisions governing actions seeking relief for victims of sexual violence or intimidation, see 42 Pa.C.S. §§ 62A01—62A20.

The provisions of prior subdivision E relating to petitions to proceed *in forma pauperis* have been moved to Pa.R.Civ.P.M.D.J. 206.1. See also Pa.R.J.A. 1990 (Application to Waive Fees and Costs (*In Forma Pauperis*)).

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

EXPLANATORY COMMENT—1990

Rule 206 governing costs is revised by adding a new subdivision A and designating present subdivisions A and B as subdivisions B and C respectively. New subdivision A states the present practice of requiring the payment of the fees for filing the complaint at the time the action is commenced. The subdivision acknowledges that a statute or the principle of an in forma pauperis may dictate a different practice in a particular case.

New subdivisions B and C incorporate prior subdivision A and B without change except for a corrected cross-reference in subdivision B. There is no change in practice or procedure with respect to costs.

EXPLANATORY COMMENT—1992

Rule 206 provides for the right to proceed in forma pauperis. Even though the Judicial Code provides for in forma pauperis proceedings for all courts under the Unified Judicial System, such proceedings have never been instituted at the minor courts level. This Rule is substantially identical to Pa.R.C.P. No. 240 and applies to all civil actions and proceedings except for proceedings pursuant to the Protection From Abuse Act.

In addition, the Note to Rule 206 conforms Rule 206 with the provisions of Section 1725.1 of the Judicial Code. Rule 206A provides for the assessment and collection of

costs and fees in civil cases, and the Rule sets forth that costs to be recovered by the successful litigant shall include all service costs and fees. Since the Rule was inconsistent with Section 1725.1, which establishes that the cost of postage and registered mail in civil cases shall be borne by the plaintiff, the Note eliminates this inconsistency by specifying that service costs or fees refer only to personal service since mail costs are to be borne by the plaintiff.

Furthermore, the Note provides that District Justices shall accept the Civil Action Complaint without payment of the appropriate filing fees when said complaint is filed with an in forma pauperis petition.

—The following text is entirely new—

Rule 206.1. Application to Waive Fees and Costs (*In Forma Pauperis*).

(a) *Generally.* A party who is without financial resources may seek or obtain a waiver of certain fees and costs pursuant to Pa.R.J.A. 1990.

(b) *Service Instructions.* If a party is permitted to proceed without paying fees and costs pursuant to Pa.R.J.A. 1990, the magisterial district judge shall inform the party of the option to serve the complaint by mail in the manner permitted by these rules.

Comment:

Pennsylvania Rule of Judicial Administration 1990 (Application to Waive Fees and Costs (*In Forma Pauperis*)) sets forth the procedure for seeking or obtaining a waiver of the payment of certain fees and costs. *See* Pa.R.J.A. 1990(b). The eligibility criteria at Pa.R.J.A. 1990(c) should inform the party whether to proceed by application or *praecipe*.

See Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 for procedures to request reconsideration of a determination of a magisterial district judge denying an application to waive fees and costs.

CHAPTER 300. CIVIL ACTION

SATISFACTION OF MONEY JUDGMENTS

Rule 350. Appeals from Civil Traffic Violations.

(a) As used in this rule:

(1) "Appellant" means the owner of a vehicle who has requested the appeal of a determination by a hearing officer pursuant to 75 Pa.C.S. § 3369(j)(4), pertaining to automated work zone speed enforcement violations, or 75 Pa.C.S. § 3345.1(i.4)(4), pertaining to civil violations for passing a stopped school bus with flashing red signal lights and an activated side stop signal arm.

(2) "Appellee" means:

(i) in matters brought pursuant to 75 Pa.C.S. § 3369(j)(4), the Pennsylvania Department of Transportation, the Pennsylvania Turnpike Commission, or the system administrator designated by those agencies pursuant to 75 Pa.C.S. § 3369(h)(3)(i); or

(ii) in matters brought pursuant to 75 Pa.C.S. § 3345.1(i.4)(4), a school entity, as defined in 75 Pa.C.S. § 3345.1(m), or a system administrator that has entered into an agreement with the school entity pursuant to 75 Pa.C.S. § 3345.1(g).

(b) *Venue.* An appeal filed pursuant to this rule shall only be filed in the magisterial district court in the magisterial district where the violation of 75 Pa.C.S. § 3369(c) or 75 Pa.C.S. § 3345.1(a.1)(1) occurred.

(c) *Notice of Appeal.*

(1) An appellant may appeal a determination of a hearing officer pursuant to 75 Pa.C.S. § 3369(j)(4) or 75 Pa.C.S. § 3345.1(i.4)(4) by filing a notice of appeal on a form prescribed by the State Court Administrator together with a copy of the hearing officer's determination within 45 days after the date of its issuance.

(2) The appellant shall pay all costs for filing and service of the notice of appeal at the time of filing or, if without the financial resources to pay the costs of litigation, the appellant shall file **[a petition to proceed *in forma pauperis* pursuant to Pa.R.Civ.P.M.D.J. 206E.]** **an application or *praecipe* to waive fees and costs pursuant to Pa.R.J.A. 1990.**

(3) After setting the hearing date pursuant to Pa.R.Civ.P.M.D.J. 305, the magisterial district judge shall serve the notice of appeal on the appellee by mailing a copy to the appellee at the address listed on the hearing officer's determination by certified mail or comparable delivery method resulting in a return receipt in paper or electronic form. The return receipt shall show that the notice of appeal was received by the appellee.

(d) *Hearing; Evidence.*

(1) The proceeding shall be conducted *de novo* in accordance with these rules as if the action was initially commenced in a magisterial district court with the appellee having the burden of proof.

(2) The hearing is subject to the standards of evidence set forth in Pa.R.Civ.P.M.D.J. 321, except that photographs, videos, vehicle titles, police reports, and records of the Pennsylvania Department of Transportation may also be entered as evidence by any party without affidavit or other evidence of their truth, accuracy, or authenticity.

Comment:

75 Pa.C.S. § 3369 established a program to provide for automated speed enforcement systems in active work zones on certain highways under the jurisdiction of the Pennsylvania Department of Transportation and the Pennsylvania Turnpike Commission. Similarly, 75 Pa.C.S. § 3345.1 provides for automated side stop signal arm enforcement systems to identify the owners of vehicles failing to stop for a school bus with flashing red lights and an activated side stop signal arm, as well as for the imposition of civil fines upon those found in violation. This rule was adopted to address the statutory provisions **[that]** permitting a *de novo* appeal to a magisterial district court from a determination of a hearing officer following an administrative hearing to contest an alleged violation of 75 Pa.C.S. § 3369(c) or 75 Pa.C.S. § 3345.1(a.1)(1). Because these actions are *de novo* appeals, they shall proceed as any other civil action commenced in a magisterial district court except as provided by this rule.

Insofar as other procedures under these rules may be applicable, the appellant shall be deemed the "defendant" and the appellee shall be deemed the "plaintiff."

The initiating document in an appeal filed pursuant to Pa.R.Civ.P.M.D.J. 350 is the notice of appeal, which shall be used in lieu of a complaint. **See also Pa.R.Civ.P.M.D.J. 206.1 pertaining to an application or *praecipe* to waive fees and costs (*in forma pauperis*) if the appellant is without the financial resources to cover the cost of litigation.**

Photographs, videos, vehicle titles, police reports, and records of the Pennsylvania Department of Transporta-

tion were added to the existing business record exceptions in Pa.R.Civ.P.M.D.J. 321 because they are the proofs most likely to be used to support the permitted defenses to 75 Pa.C.S. § 3369(c) and 75 Pa.C.S. § 3345.1(a.1)(1).

The appellant shall pay civil fines incurred pursuant to 75 Pa.C.S. § 3369(e) or 75 Pa.C.S. § 3345.1(c) to the appellee and not to the magisterial district court. *See* Pa.R.Civ.P.M.D.J. 323, cmt. (clarifying that payments are made to the prevailing party and not the magisterial district court). If the magisterial district judge enters judgment in favor of the appellant, *i.e.*, the vehicle owner, the appellant is entitled to recover taxable costs from the appellee. **[** ***See*** **Pa.R.Civ.P.M.D.J. 206B]** ***See*** **Pa.R.Civ.P.M.D.J. 206(b)** ("The prevailing party in magisterial district court proceedings shall be entitled to recover taxable costs from the unsuccessful party. Such costs shall consist of all filing, personal service, witness, and execution costs authorized by Act of Assembly or general rule and paid by the prevailing party.") Procedures for enforcement of judgments, including judgments in favor of the appellant for taxable costs from the appellee, are set forth in Pa.R.Civ.P.M.D.J. 401 *et seq.* See 75 Pa.C.S. §§ 3345.1(i.4)(4) and 3369(j)(4) for limits on the judgment.

See Pa.R.Civ.P.M.D.J. 1001 *et seq.* for procedures to appeal a judgment rendered by a magisterial district judge or to file a *praecipe* for a writ of *certiorari* in civil actions, including actions brought pursuant to this rule.

CHAPTER 500. ACTIONS FOR THE RECOVERY OF POSSESSION OF REAL PROPERTY

(*Editor's Note*: Rule 514 as printed in 246 Pa. Code reads "Official Note" rather than "Note.")

Rule 514. Judgment; Notice of Judgment or Dismissal and the Right to Appeal**.**

* * * * *

[***Note*****:]** **Comment:**

* * * * *

The separate entries provided in subdivision A are made necessary as a result of the rental deposit provisions for appeal or *certiorari* contained in **[Rules 1008B and 1013B]** **Rules 1008(b)-(c) and 1013(b)-(c)**, as well as the wage attachment provisions contained in **[Section 8127 of the Judicial Code,]** 42 Pa.C.S. § 8127.

* * * * *

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

EXPLANATORY COMMENT—1992

Rule 514 provides for the written notice of a decision in a Landlord-Tenant case. Said Rule requires that District Justices provide written notification of the judgment to the parties regardless if the parties appeared at the hearing.

Rule 515. Request for Order for Possession**.**

* * * * *

[***Official Note*****:]** **Comment:**

* * * * *

In many judicial districts, appeals of magisterial district court judgments are submitted to compulsory arbitration pursuant to **[Pa.R.C.P. Nos. 1301—1314]** **Pa.R.Civ.P. 1301—1314**. If, after the arbitration, the prothonotary enters an award for possession on the docket in favor of the landlord and the tenant fails to maintain the *supersedeas* required by Rule 1008 prior to the prothonotary entering judgment on the award, then the landlord may terminate the *supersedeas* pursuant to **[Rule 1008B]** **Rule 1008(b) or Rule 1008(c)** and request an order of possession from the magisterial district judge pursuant to Rule 515. If the prothonotary enters an award on the docket in favor of the tenant and the tenant fails to maintain the *supersedeas* prior to the prothonotary entering judgment on the award, the landlord may not obtain an order of possession between the time that the prothonotary enters the arbitration award on the docket and the time that the landlord files a notice of appeal.

* * * * *

Historical Commentary

The following commentary is historical in nature and represents statements of the Committee at the time of rulemaking:

EXPLANATORY COMMENT—1992

Rule 515 clarifies that an order for possession cannot be taken until the sixteenth (16th) day following the date of judgment, and the Rule provides that the amount of judgment be set forth on the order for possession form.

In addition, the Rule recognizes that the "request, order, return and other matters" will be on separate forms, under the District Justice Automation Project.

Rule 516. Issuance and Reissuance of Order for Possession**.**

* * * * *

[***Official Note*****:]** **Comment:**

* * * * *

In many judicial districts, appeals of magisterial district court judgments are submitted to compulsory arbitration pursuant to **[Pa.R.C.P. Nos. 1301—1314]** **Pa.R.Civ.P. 1301—1314**. If, after the arbitration, the prothonotary enters an award for possession on the docket in favor of the landlord and the tenant fails to maintain the *supersedeas* required by Rule 1008 prior to the prothonotary entering judgment on the award, then the landlord may terminate the *supersedeas* pursuant to **[Rule 1008B]** **Rule 1008(b) or Rule 1008(c)** and request an order of possession from the magisterial district judge pursuant to Rule 515. If the prothonotary enters an award on the docket in favor of the tenant and the tenant fails to maintain the *supersedeas* prior to the prothonotary entering judgment on the award, the landlord may not obtain an order of possession between the time that the prothonotary enters the arbitration award on the docket and the time that the landlord files a notice of appeal.

* * * * *

CHAPTER 1000. APPEALS

APPEAL

Rule 1007. Procedure on Appeal.

* * * * *

[***Official Note*****:]** **Comment:**

* * * * *

In many judicial districts, appeals of magisterial district court judgments are submitted to compulsory arbitration pursuant to **[Pa.R.C.P. Nos. 1301—1314]**

Pa.R.Civ.P. 1301—1314. If, after the arbitration, the prothonotary enters an award for possession on the docket in favor of the landlord and the tenant fails to maintain the *supersedeas* required by Rule 1008 prior to the prothonotary entering judgment on the award, then the landlord may terminate the *supersedeas* pursuant to **[Rule 1008B]** **Rule 1008(b) or Rule 1008(c)** and request an order of possession from the magisterial district judge pursuant to Rule 515. If the prothonotary enters an award on the docket in favor of the tenant and the tenant fails to maintain the *supersedeas* prior to the prothonotary entering judgment on the award, the landlord may not obtain an order of possession between the time that the prothonotary enters the arbitration award on the docket and the time that the landlord files a notice of appeal.

(*Editor's Note*: Rule 1008 as printed in 246 Pa. Code reads "Official Note" rather than "Note.")

Rule 1008. Appeal as *Supersedeas*.

[A.] **(a)** Receipt by the magisterial district judge of **[the]** **a** copy of the notice of appeal from the judgment shall operate as a *supersedeas*, except as provided in **[subdivisions B and C of this rule]** **subdivisions (b) and (c)**.

[B.] **(b)** ***Appeal from Judgment for Possession of Real Property.***

(1) ***Tenant Escrow.*** When a tenant appeals from a judgment for the possession of real property, receipt by the magisterial district judge of the copy of the notice of appeal shall operate as a *supersedeas* only if the tenant:

(i) at the time of filing the notice of appeal, deposits with the prothonotary **either** a sum of money **[( ]**or a bond, with surety approved by the prothonotary**[ )],** equal to the lesser of three months' rent or the rent actually in arrears on the date of the filing of the notice of appeal, based upon the **[magisterial district judge's order of judgment,]** **judgment entered by the magisterial district judge;** and**[,]**

(ii) thereafter, deposits **[cash]** **either a sum of money** or bond with the prothonotary **[in a sum]** equal to the monthly rent that becomes due during the period of time the proceedings upon appeal are pending in the court of common pleas**[, such additional].** **Subsequent** deposits **[to]** **shall** be made within 30 days following the date of the appeal**[,]** and each successive 30-day period thereafter.

(2) ***Release of Escrow to Landlord.*** Upon **the landlord's** application **[by the landlord]**, the court shall release appropriate sums from the escrow account on a continuing basis while the appeal is pending to compensate the landlord for the tenant's actual possession and use of the premises during the pendency of the appeal.

(3) ***Notation.*** **When the deposit of money or bond is made pursuant to subdivision (b)(1)(i), the prothonotary shall make a notation upon the notice of appeal and its copies a notation that it shall operate as a *supersedeas* when received by the magisterial district judge.**

(4) **[In the event]** ***Failure to Deposit Sums of Money or Bond.*** **If** the tenant fails to deposit the **required** sums of money**[,]** or bond**[, required by this rule]** when such deposits are due, the prothonotary, upon *praecipe* filed by the landlord, shall terminate the *supersedeas*. Notice of the termination of the *supersedeas* shall be forwarded by first class mail to the attorneys of record, or, if a party is unrepresented, to the party's last known address of record.

[When the deposit of money or bond is made pursuant to the rule at the time of filing the appeal, the prothonotary shall make upon the notice of appeal and its copies a notation that it will operate as a supersedeas when received by the magisterial district judge.]

[C.] **(c)** *Indigent Tenants*.

(1) ***Inability to Deposit Escrow.*** Residential tenants who seek to appeal from a magisterial district court judgment for possession and who do not have the ability to **[pay]** **deposit** the lesser of three months' rent or the full amount of the magisterial district court judgment for rent shall file with the office of the prothonotary a tenant's affidavit, as set forth in **[subdivision C(2)]** **subdivision (c)(2)**.

(2) The tenant's affidavit shall be substantially in one of the following two forms:

[Caption]

TENANT'S *SUPERSEDEAS* AFFIDAVIT
[(NON-SECTION 8)]

NON-HOUSING CHOICE VOUCHER PROGRAM PARTICIPATION

I, _____ (print name and address here), have filed a notice of appeal from a magisterial district court judgment awarding to my landlord possession of real property that I occupy**[, and].** I do not have the financial ability to **[pay]** **deposit** the lesser of three times my monthly rent or the judgment for rent awarded by the magisterial district court. My total household income does not exceed the income limits set forth in the supplemental instructions for obtaining a stay pending appeal and I have completed an **[*in forma pauperis* (IFP) affidavit]** **application to waive fees and costs (*in forma pauperis*)** to verify this. I have/have not (cross out the one that does not apply) paid the rent this month.

I verify that the statements made in this affidavit are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

_____ _____
Date SIGNATURE OF TENANT

OR

[Caption]

[SECTION 8] TENANT'S *SUPERSEDEAS* AFFIDAVIT

HOUSING CHOICE VOUCHER PROGRAM PARTICIPATION

I, _____ (print name and address here), have filed a notice of appeal from a magisterial district court judgment awarding my landlord possession of real property that I occupy**[, and].** I do not have the financial ability to **[pay]** **deposit** the lesser of three times my monthly rent or the actual rent in arrears. My total household income does not exceed the income limits set forth in the supplemental instructions for obtaining a

stay pending appeal and I have completed an **[** ***in forma pauperis*** **(IFP) affidavit]** **application to waive fees and costs (*in forma pauperis*)** to verify this. I have/have not (cross out the one that does not apply) paid the rent this month.

The total amount of monthly rent that I personally pay to the landlord is $ _____ . I hereby certify that I am a participant in the **[Section 8 program]** **Housing Choice Voucher Program, also known as Section 8,** and I am not subject to a final (*i.e.*, non-appealable) decision of a court or government agency that terminates my right to receive **[Section 8]** **Housing Choice Voucher Program** assistance based on my failure to comply with program rules.

I verify that the statements made in this affidavit are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

_____ _____

Date SIGNATURE OF TENANT

(3) ***Deposit of Rent into Escrow.***

[(a)] **(i)** If the rent has already been paid to the landlord in the month in which the notice of appeal is filed, the tenant shall **[pay]** **deposit** into an escrow account with the prothonotary the monthly rent in 30-day intervals from the date the notice of appeal was filed; or

[(b)] **(ii)** If the rent has not been paid at the time of filing the notice of appeal, the tenant shall **[pay]** **deposit**:

[(i)] **(A)** at the time of filing the notice of appeal, a sum of money equal to **[one third (1/3)]** **one-third** of the monthly rent;

[(ii)] **(B)** an additional deposit of **[two thirds (2/3)]** **two-thirds** of the monthly rent within 20 days of filing the notice of appeal; and

[(iii)] **(C)** additional deposits of one month's rent in full each 30 days after filing the notice of appeal. The amount of the monthly rent is the sum of money found by the magisterial district judge to constitute the monthly rental for the leasehold premises pursuant to Rule 514A**, pertaining to the contents of the magisterial district judge's judgment**. However, when the tenant is a participant in the **[Section 8 program]** **Housing Choice Voucher Program**, the tenant shall **[pay]** **deposit** the tenant share of the rent as set forth in the **["Section 8 Tenant's *Supersedeas* Affidavit"]** **"Tenant's Supersedeas Affidavit, Housing Choice Voucher Program Participation"** filed by the tenant.

(4) ***Instructions.*** The prothonotary's office of the court of common pleas in which the appeal is taken shall provide residential tenants who have suffered a judgment for possession with a "Supplemental Instructions for Obtaining a Stay of Eviction" as it appears on the Forms page of the website of the Unified Judicial System of Pennsylvania at **[www.pacourts.us]** **https://www.pacourts.us**.

[*Note*: The Forms page is found on the home page of the Unified Judicial System of Pennsylvania at www.pacourts.us. The Supplemental Instructions include both instructions and income limits.

The income limits are stated in monthly amounts and are based upon the most recent poverty income guidelines issued by the Federal Department of Health and Human Services.]

(5) ***Issuance.*** When the requirements of **[subdivisions C(2)-(3)]** **subdivisions (c)(2)-(c)(3)** have been met, the prothonotary shall issue a *supersedeas*.

(6) ***Release of Escrow Deposits to Landlord.*** Upon application by the landlord, the court shall release appropriate sums from the escrow account on a continuing basis while the appeal is pending to compensate the landlord for the tenant's actual possession and use of the premises during the pendency of the appeal.

(7) ***Failure to Make Monthly Deposits.*** If the tenant fails to make monthly rent **[payments]** **deposits** to the prothonotary as described in **[subdivision C(3)]** **subdivision (c)(3)**, the *supersedeas* may be terminated by the prothonotary upon *praecipe* by the landlord or other party to the action. Notice of the termination of the *supersedeas* shall be forwarded by first class mail to the attorneys of record, or, if a party is unrepresented, to the party's last known address of record.

(8) ***Failure to Satisfy Conditions.*** If the court of common pleas determines, upon written motion or its own motion, that the averments within any of the tenant's affidavits do not establish that the tenant meets the terms and conditions of **[subdivision C(1), *supra*]** **subdivision (c)(1)**, the court may terminate the *supersedeas.* Notice of the termination of the *supersedeas* shall be forwarded by first class mail to the attorneys of record, or, if a party is unrepresented, to the party's last known address of record.

[D.] **(d)** ***Striking or Termination of Appeal.*** If an appeal is stricken or voluntarily terminated, any *supersedeas* based on it shall terminate. The prothonotary shall **[pay]** **release** the deposits of **[rental]** **rent** to the landlord.

[*Note*: Subdivision A] **Comment:**

Subdivision (a) provides for an automatic *supersedeas* in appeals from civil actions upon receipt by the magisterial district judge of a copy of the notice of appeal. **The money judgment portion of a landlord and tenant judgment is governed by subdivision (a). *See* Pa.R.Civ.P.M.D.J. 514 and 521 (pertaining to the judgment and execution by levy).**

[Subdivision B] **Subdivisions (b) and (c)**, however, **[does]** require the deposit of money or approved bond as a condition for *supersedeas* when the appeal is from a judgment for the possession of real property. **If the tenant fails to make the deposit required by subdivision (b) or (c), the landlord may file a *praecipe* with the prothonotary to terminate the *supersedeas*. The *praecipe* for termination filed with the prothonotary may state: "Please terminate the *supersedeas* in the within action for failure of the tenant to deposit monthly rent as required by Pa.R.Civ.P.M.D.J. 1008 when it became due" and shall be signed by the landlord. The prothonotary shall then note on the *praecipe*: "Upon confirmation of failure of the tenant to deposit the monthly rent when it became due, the *supersedeas* is terminated," and the prothonotary shall sign and docket the *praecipe*. The landlord may present a copy of the *praecipe* to the magisterial district judge who**

rendered the judgment and file a request for issuance of an order for possession pursuant to Pa.R.Civ.P.M.D.J. 515.

[A new subdivision C was created in 2008 to provide for] **Subdivision (c) governs** appeals by indigent residential tenants who are unable to meet the bond requirements of **[subdivision B]** **subdivision (b)**. **The federal Housing Choice Voucher Program may also be known as "Section 8."**

The Forms page referenced in subdivision (c)(4) is found on the home page of the Unified Judicial System of Pennsylvania at https://www.pacourts.us/forms. The Supplemental Instructions include both instructions and income limits. The income limits are stated in monthly amounts and are based upon the most recent poverty income guidelines issued by the Federal Department of Health and Human Services.

[The request for termination of the *supersedeas*, upon the *praecipe* filed with the prothonotary, may simply state: "Please terminate the *supersedeas* in the within action for failure of the tenant to pay monthly rental as required by Pa.R.C.P.M.D.J. No. 1008 when it became due" and will be signed by the landlord. The prothonotary will then note upon the *praecipe*: "Upon confirmation of failure of the tenant to deposit the monthly rent when it became due, the *supersedeas* is terminated," and the prothonotary will sign and clock the *praecipe*. A copy of the *praecipe* may thereupon be displayed to the magisterial district judge who rendered the judgment, and a request for issuance of an order for possession under Pa.R.C.P.M.D.J. No. 515 may be made.]

The deposit of rent **[required hereunder]** is intended to apply in all cases, **[irrespective]** **regardless** of the reasons that caused the filing of the complaint before the magisterial district judge in the first instance. **[Disposition]** **Unless previously released to the landlord pursuant to subdivisions (b)(2) or (c)(6), disposition** of the monthly rental deposits will be made by the court of common pleas following its *de novo* hearing of the matter on appeal.

In many judicial districts, appeals of magisterial district court judgments are submitted to compulsory arbitration pursuant to **[Pa.R.C.P. Nos. 1301—1314]** **Pa.R.Civ.P. 1301—1314**. If, after the arbitration, the prothonotary enters an award for possession on the docket in favor of the landlord and the tenant fails to maintain the *supersedeas* required by **[Rule 1008]** **subdivisions (b) or (c)** prior to the prothonotary entering judgment on the award, then the landlord may terminate the *supersedeas* pursuant to **[Rule 1008B]** **subdivision (b)(4) or (c)(7)** and request an order of possession from the magisterial district judge pursuant to **[Rule 515]** **Pa.R.Civ.P.M.D.J. 515**. If the prothonotary enters an award on the docket in favor of the tenant and the tenant fails to maintain the *supersedeas* prior to the prothonotary entering judgment on the award, the landlord may not obtain an order of possession between the time that the prothonotary enters the arbitration award on the docket and the time that the landlord files a notice of appeal.

[The money judgment portion of a landlord and tenant judgment (*see* Pa.R.C.P.M.D.J. Nos. 514 and 521) would be governed by subdivision A.]

CERTIORARI

(*Editor's Note*: Rule 1013 as printed in 246 Pa. Code reads "Official Note" rather than "Note.")

Rule 1013. Writ of *Certiorari* as *Supersedeas*.

[A.] **(a)** Receipt of **[the]** **a** writ of *certiorari* by the magisterial district judge to whom it was directed shall operate as a *supersedeas*, except as provided in **[subdivisions B and C of this rule]** **subdivisions (b) and (c)**.

[B.] **(b)** ***Writ of Certiorari; Possession of Real Property.***

(1) ***Tenant Escrow.*** When a tenant obtains a writ of *certiorari* involving a judgment for the possession of real property, receipt of the writ by the magisterial district judge shall operate as a *supersedeas* only if the tenant **[obtaining the writ]**:

(i) at the time of filing the writ, deposits with the prothonotary **either** a sum of money **[( ]**or a bond, with surety approved by the prothonotary**[ )]**, equal to the lesser of three months' rent or the rent actually in arrears on the date of the filing of the *praecipe* for writ of *certiorari* ("*praecipe*"), **[as determined by the]** **based upon the judgment entered by the** magisterial district judge**;** and**[,]**

(ii) thereafter, deposits **[cash]** **either a sum of money** or bond with the prothonotary **[in a sum]** equal to the monthly rent that becomes due during the period of time the proceedings upon writ are pending in the court of common pleas**[, such additional]. Subsequent** deposits **[to]** **shall** be made within 30 days following the date of the filing of the *praecipe***[,]** and each successive 30-day period thereafter.

(2) ***Release of Escrow to Landlord.*** Upon **the landlord's** application **[by the landlord]**, the court shall release appropriate sums from the escrow account on a continuing basis while the writ is pending and**, if the writ is granted** while the ensuing proceeding is pending **[(in the event the writ is granted) to compensate the landlord for the tenant's actual possession and use of the premises during the pendency of the writ and during the pendency of the ensuing proceeding (in the event the writ is granted)], to compensate the landlord for the tenant's actual possession and use of the premises**.

(3) ***Notation*. When the deposit of money or bond is made pursuant to subdivision (b)(1)(i) at the time of the filing of the *praecipe*, the prothonotary shall make a notation upon the writ and its copies that it shall operate as a supersedeas when received by the magisterial district judge.**

(4) ***Failure to Deposit Sums of Money or Bond.*** **[In the event that]** ***Notice of Default*. If** the tenant filing the *praecipe* fails to deposit the **required** sums of money**[,]** or bond**[, required by this rule]** when such deposits are due, the prothonotary, upon *praecipe* filed by the landlord, shall terminate the *supersedeas*. Notice of the termination of the *supersedeas* shall be forwarded by first class mail to the attorneys of record, or, if a party is unrepresented to the party's last known address of record.

[When the deposit of money or bond is made pursuant to this Rule at the time of the filing of the *praecipe*, the prothonotary shall make upon the writ and its copies a notation that the writ will operate as a *supersedeas* when received by the magisterial district judge.]

[C.] **(c)** *Indigent Tenants*.

(1) ***Inability to Deposit Escrow.*** Residential tenants who seek to file a praecipe involving a magisterial district court judgment for possession and who do not have the ability to **[pay]** **deposit** the lesser of three months' rent or the full amount of the magisterial district court judgment for rent shall file with the office of the prothonotary a tenant's affidavit, as set forth in **[subdivision B(2)]** **subdivision (c)(2)**.

(2) The tenant's affidavit shall be substantially in one of the following two forms:

[Caption]

TENANT'S *SUPERSEDEAS* AFFIDAVIT
[(NON-SECTION 8)]

NON-HOUSING CHOICE VOUCHER PROGRAM PARTICIPATION

I, _____ (print name and address here), have filed a *praecipe* for a writ of *certiorari* to review a magisterial district court judgment awarding to my landlord possession of real property that I occupy**[, and]**. I do not have the financial ability to **[pay]** **deposit** the lesser of three times my monthly rent or the judgment for rent awarded by the magisterial district court. My total household income does not exceed the income limits set forth in the instructions for obtaining a stay pending issuance of a writ of *certiorari* and I have completed an **[*in forma pauperis* (IFP) affidavit]** **application to waive fees and costs (*in forma pauperis*)** to verify this. I have/have not (cross out the one that does not apply) paid the rent this month.

I verify that the statements made in this affidavit are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

Date SIGNATURE OF TENANT

OR

[Caption]

SECTION 8 TENANT'S *SUPERSEDEAS* AFFIDAVIT

HOUSING CHOICE VOUCHER PROGRAM PARTICIPATION

I, _____ (print name and address here), have filed a *praecipe* for a writ of *certiorari* to review a magisterial district court judgment awarding my landlord possession of real property that I occupy**[, and]**. I do not have the financial ability to **[pay]** **deposit** the lesser of three times my monthly rent or the actual rent in arrears. My total household income does not exceed the income limits set forth in the Instructions for obtaining a stay pending issuance of writ of *certiorari* and I have completed an **[*in forma pauperis* (IFP) affidavit]** **application to waive fees and costs (*in forma pauperis*)** to verify this. I have/have not (cross out the one that does not apply) paid the rent this month.

The total amount of monthly rent that I personally pay to the landlord is $ _____ . I hereby certify that I am a participant in the **[Section 8 program]** **Housing Choice Voucher Program, also known as Section 8,** and I am not subject to a final (*i.e.*, non-appealable) decision of a court or government agency that terminates my right to receive **[Section 8]** **Housing Choice Voucher Program** assistance based on my failure to comply with program rules.

I verify that the statements made in this affidavit are true and correct to the best of my knowledge, information and belief. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904, relating to unsworn falsification to authorities.

Date SIGNATURE OF TENANT

(3) ***Deposit of Rent into Escrow.***

[(a)] **(i)** If the rent has already been paid to the landlord in the month in which the *praecipe* is filed, the tenant shall **[pay]** **deposit** into an escrow account with the prothonotary the monthly rent in 30-day intervals from the date the *praecipe* was filed; or

[(b)] **(ii)** If the rent has not been paid at the time of filing the *praecipe*, the tenant shall **[pay]** **deposit**:

[(i)] **(A)** at the time of filing the *praecipe*, a sum of money equal to **[one third (1/3)]** **one-third** of the monthly rent;

[(ii)] **(B)** an additional deposit of **[two thirds (2/3)]** **two-thirds** of the monthly rent within 20 days of filing the *praecipe*; and

[(iii)] **(C)** additional deposits of one month's rent in full each 30 days after filing the *praecipe*. The amount of the monthly rent is the sum of money found by the magisterial district judge to constitute the monthly rental for the leasehold premises pursuant to Rule 514A**, pertaining to the contents of the magisterial district judge's judgment**. However, when the tenant is a participant in the **[Section 8 program]** **Housing Choice Voucher Program**, the tenant shall pay the tenant share of the rent as set forth in the **["Section 8 Tenant's *Supersedeas* Affidavit"]** **"Tenant's *Supersedeas* Affidavit, Housing Choice Voucher Program Participant"** filed by the tenant.

(4) ***Instructions.*** The prothonotary's office of the court of common pleas in which the *praecipe* is filed shall provide residential tenants who have suffered a judgment for possession with a "Supplemental Instructions for Obtaining a Stay of Eviction" as it appears on the Forms page of the website of the Unified Judicial System of Pennsylvania at **[www.pacourts.us]** **https://www.pacourts.us**.

[*Note*: The Forms page is found on the home page of the Unified Judicial System of Pennsylvania at www.pacourts.us. The Supplemental Instructions include both instructions and income limits.

The income limits are stated in monthly amounts and are based upon the most recent poverty income guidelines issued by the Federal Department of Health and Human Services.]

(5) ***Issuance.*** When the requirements of **[subdivisions C(2)-(3)]** **subdivisions (c)(2)-(3)** have been met, the prothonotary shall issue a *supersedeas*.

(6) ***Release of Escrow Deposits to Landlord.*** Upon application by the landlord, the court shall release appropriate sums from the escrow account on a continuing basis while the writ is pending and while the ensuing proceeding is pending (in the event the writ is granted) to compensate the landlord for the tenant's actual possession and use of the premises during the pendency of the writ and during the pendency of the ensuing proceeding (in the event the writ is granted).

(7) ***Failure to Make Monthly Deposits.*** If the tenant fails to make monthly rent **[payments]** **deposits** to the prothonotary as described in **[subdivision C(3)]** **subdivision (c)(3)**, the *supersedeas* may be terminated by the prothonotary upon *praecipe* by the landlord or other party to the action. Notice of the termination of the *supersedeas* shall be forwarded by first class mail to the attorneys of record, or, if a party is unrepresented, to the party's last known address of record.

(8) ***Failure to Satisfy Conditions.*** If the court of common pleas determines, upon written motion or its own motion, that the averments within any of the tenant's affidavits do not establish that the tenant meets the terms and conditions of **[subdivision C(1), *supra*]** **subdivision (c)(1)**, the court may terminate the *supersedeas*. Notice of the termination of the *supersedeas* shall be forwarded by first class mail to the attorneys of record, or, if a party is unrepresented, to the party's last known address of record.

[D.] **(d)** ***Striking or Termination of Writ.*** If a writ of *certiorari* is stricken, dismissed, or discontinued, any *supersedeas* based on it shall terminate. The prothonotary shall **[pay]** **release** the deposits of **[rental]** **rent** to the landlord.

[*Note*:] **Comment:**

As in appeals **[(*see* Pa.R.C.P.M.D.J. No. 1008)]**, *certiorari* operates as an automatic *supersedeas* in civil actions when the writ is received by the magisterial district judge. ***See* Pa.R.Civ.P.M.D.J. 1008(a) (pertaining to the appeal as *supersedeas*). The money judgment portion of a landlord and tenant judgment is governed by subdivision (a). *See* Pa.R.Civ.P.M.D.J. 514 and 521 (Judgment; Notice of Judgment or Dismissal and the Right to Appeal; Execution by Levy).**

If the writ involves a judgment for the possession of real property, however, it will operate as a *supersedeas* upon receipt by the magisterial district judge only if money is **[paid]** **deposited** or a bond is filed conditioned as stated in **[the rule]** **subdivision (b) or (c)**. **[This Rule has been amended to require a payment equal to the lesser of three months' rent or the rent actually in arrears in order for the writ involving a judgment for the possession of real property to act as a *supersedeas* to ensure consistency between this Rule and Pa.R.C.P.M.D.J. No. 1008 (Appeal as *Supersedeas*).]** **If the tenant fails to make the deposit required by subdivision (b) or (c), the landlord may file a *praecipe* with the prothonotary to terminate the *supersedeas*. The praecipe for termination of the *supersedeas* filed with the prothonotary may state: "Please terminate the *supersedeas* in the within action for failure of the tenant to deposit monthly rent as required by Pa.R.Civ.P.M.D.J. 1013 when it became due" and shall be signed by landlord. The prothonotary shall then note upon the *praecipe*: "Upon confirmation of failure of the tenant to deposit the monthly rent when it became due, the *supersedeas* is terminated," and the prothonotary shall sign and docket the *praecipe*. The landlord may present a copy of the *praecipe* to the magisterial district judge who rendered the judgment, and a request for issuance of an order for possession under Pa.R.Civ.P.M.D.J. 515 may be made.**

[A new subdivision C was created in 2008 to provide] **Subdivision (c) provides a** *praecipe* for writ of *certiorari* process for indigent residential tenants who are unable to meet the bond requirements of **[subdivision B]** **subdivision (b)**. **The federal Housing Choice Voucher Program may also be known as "Section 8."**

The Forms page referenced in subdivision (c)(4) is found on the home page of the Unified Judicial System of Pennsylvania at https://www.pacourts.us/forms. The Supplemental Instructions include both instructions and income limits. The income limits are stated in monthly amounts and are based upon the most recent poverty income guidelines issued by the Federal Department of Health and Human Services.

[The request for termination of the *supersedeas*, upon the *praecipe* filed with the prothonotary, may simply state: "Please terminate the *supersedeas* in the within action for failure of the tenant to pay monthly rental as required by Pa.R.C.P.M.D.J. No. 1013 when it became due" and will be signed by landlord. The prothonotary will then note upon the *praecipe*: "Upon confirmation of failure of the tenant to deposit the monthly rent when it became due the *supersedeas* is terminated," and the prothonotary will sign and clock the *praecipe*. A copy of the *praecipe* may thereupon be displayed to the magisterial district judge who rendered the judgment, and a request for issuance of an order for possession under Pa.R.C.P.M.D.J. No. 515 may be made.

The money judgment portion of a landlord and tenant judgment (*see* Pa.R.C.P.M.D.J. Nos. 514 and 521) would be governed by subdivision A of this rule.]

* * * * *

(*Editor's Note*: Rule 1014 as published in 246 Pa. Code reads "Official Note" rather than "Note.")

Rule 1014. Orders of Court in Certiorari Proceedings.

* * * * *

[*Note*:] **Comment:**

Subdivision A states the rule that if the court finds in favor of the party obtaining the writ, it merely sets the judgment below aside without prejudice to the cause of action. The grounds for certiorari do not go to the merits of the case but only to matters that usually can be cured by later selecting a proper tribunal. **[See *Statler v. Alexander Film Co.*, 21 D. & C. 512 (1934)]** ***See Statler v. Alexander Film Co.*, 21 D. & C. 512 (Westmoreland 1934)**.

Subdivision B provides for dismissal of the writ if the finding is against the party obtaining it. This leaves the judgment below in full force and effect. **[See Rule 1013C]** ***See* Pa.R.Civ.P.M.D.J. 1013(d)**.

STATEMENT OF OBJECTION

Rule 1016. Statement of Objection.

[A.] **(a) *Filing.*** Any party in interest aggrieved by an order or determination made by a magisterial district judge under **[Rule 420 or Rule 519.1] Pa.R.Civ.P.M.D.J. 420 or 519.1 or Pa.R.J.A. 1990** may obtain a reconsideration thereof in the court of common pleas by filing a statement of objection to the order or determination with the prothonotary and with the magisterial district judge in whose office the order or determination was made.

[B.] **(b) *Timing.*** The statement of objection shall be filed with the prothonotary and the magisterial district judge within ten **[(10)]** days after the date of the order or determination to which objection is made.

(c) *Costs*. A statement of objection filed in response to the denial of an application to waive fees and costs (*in forma pauperis*) shall be made without payment of fees or costs. All other filings are subject to standard fees and costs.

[*Official Note*:] Comment:

This rule and Rules 1017—1020 provide a system for reconsideration in the court of common pleas of orders and determinations of magisterial district judges dealing with execution matters, **[and]** abandonment of manufactured homes**, and applications to waive fees and costs (*in forma pauperis*)**.

Under **[subdivision B of this rule] subdivision (b)**, the statement of objection must be filed within ten days after the date of the questioned order or determination. The time limit for filing a statement of objection need not be the same as that for filing a notice of appeal from a judgment. **[See the Judicial Code, § 5571(c)(4),]** ***See*** 42 Pa.C.S. § 5571(c)(4)**[, as amended by § 10(67) of the Judiciary Act Repealer Act, Act of April 28, 1978, P.L. 202, No. 53]**. It may be noted that under **[Pa. R.C.P. Nos. 3206(b) and 3207(b)] Pa.R.Civ.P. 3206(b) and 3207(b)** objections to sheriff's determinations must be made within ten days after the date of mailing of the determination.

Subdivision (c) prohibits charging or assessing fees and costs against a party who files a statement of objection relating to a denial of an application for waiver of fees and costs. Charging such fees is not practical under the circumstances insofar as the party has already averred an inability to pay fees and costs without financial hardship.

Rule 1018. Duties of Magisterial District Judge Upon Receipt of Statement of Objection.

[A.] **(a) *Service.***

(1) [Immediately] Except as otherwise provided in subdivision (a)(2), immediately upon receipt of the statement of objection, the magisterial district judge shall send a copy of it by ordinary mail to all other parties in interest.

(2) The magisterial district judge shall not serve a copy of the statement of objection filed in response to the denial of an application to waive fees and costs (*in forma pauperis*) on any other party in interest in the underlying matter.

[B.] **(b) *Certified Record.*** Within ten **[(10)]** days after receiving the statement of objection, the magisterial district judge shall file with the prothonotary a certified true copy of the record of actions taken by the magisterial district judge under **[Rule 420 or Rule 519.1] Pa.R.Civ.P.M.D.J. 420 or 519.1 or Pa.R.J.A. 1990**, but copies of only those **[appeals, objections, claims, exceptions or requests considered under Rule 420 or Rule 519.1] documents** that are pertinent to the statement of objection need be attached to **[that] the** record.

[*Official Note*:] Comment:

As to the procedure in **[subdivision A] subdivision (a)(1)**, compare **[Pa.R.C.P. Nos. 3206(b), 3207(b)] Pa.R.Civ.P. 3206(b), 3207(b)**.

A statement of objection filed for reconsideration of an application for waiver of fees and costs is not served on the opposing party because such applications are considered on an *ex parte* basis. *See* Pa.R.J.A. 1990(e)(3), cmt. ¶ 4.

[Subdivision B] Subdivision (b) is intended to bring before the court copies of the documents on file in the office of the magisterial district judge pertaining to the matter in question. The attachments to the record of Rule 420 or Rule 519.1 actions referred to in this subdivision are notations by the magisterial district judge of appeals taken under Rule 408C and objections to levy under Rule 413, property claims under Rule 413, exceptions to distribution under Rule 416C, requests to set aside sale under Rule 420C filed in the office of the magisterial district judge, and determinations of manufactured home abandonment under Rule 519.1. **The attachments to the record of Pa.R.J.A. 1990 actions are the application for waiver of fees and costs and the court's order denying the petition, together with any supplemental information provided to the court. *See* Pa.R.J.A. 1990 (c)(2), (e)(3), and (e)(5).**

Rule 1019. Consideration of Statement of Objection by Court of Common Pleas**.**

[A.] **(a)** Upon consideration of the statement of objection, the court of common pleas shall take such action and make such orders as shall be just and proper.

[B.] **(b)** The matters raised **[by] in** the statement of objection shall be considered **[de novo] *de novo*** by the court of common pleas.

(c) The court of common pleas shall review a statement of objection filed regarding the denial of an application to waive fees and costs (*in forma pauperis*) pursuant to the standards set forth in Pa.R.J.A. 1990, governing such applications.

[*Official Note*:] Comment:

Consideration of the matters raised by the statement of objection will be **[de novo] *de novo*** and the court is given broad latitude and discretion in disposing of these matters. Although the proceedings are **[de novo] *de novo***, this will not excuse failure to comply with **[whatever]** time limitations **[are]** imposed **[(see Rules 408C, 413, 416C, 420C, and 519.1)]** for raising before the magisterial district judge the matters now before the court of common pleas. ***See* Pa.R.Civ.P.M.D.J. 408C, 413, 416C, 420C, and 519.1.**

(*Editor's Note*: Rule 1020 as printed in 246 Pa. Code reads "Official Note" rather than "Note.")

Rule 1020. Statement of Objection to Operate as Stay.

Until further order of the court of common pleas, receipt by the magisterial district judge of the statement of objection shall operate as a stay of any **[execution]** proceedings that may be affected by the proceedings on the statement.

[*Note: Under this rule, receipt*] **Comment:**

Receipt by the magisterial district judge of the statement of objection operates initially as an automatic stay of the affected **[execution]** proceedings. **This includes execution matters pursuant to Pa.R.Civ.P.M.D.J. 408C, 413, 416C, 420C, and 519.1, as well as a denial of an application to waive fees and costs (*in forma pauperis*) filed pursuant to Pa.R.J.A. 1990.**

SUPREME COURT OF PENNSYLVANIA

APPELLATE COURT PROCEDURAL RULES COMMITTEE

CIVIL PROCEDURAL RULES COMMITTEE

DOMESTIC RELATIONS PROCEDURAL RULES COMMITTEE

ORPHANS' COURT PROCEDURAL RULES COMMITTEE

CRIMINAL PROCEDURAL RULES COMMITTEE

JUVENILE COURT PROCEDURAL RULES COMMITTEE

MINOR COURT RULES COMMITTEE

ADOPTION REPORT

Adoption of Pa.R.J.A. 1990

Adoption of Pa.R.A.P. 550 and 1614

Amendment of Pa.R.A.P. 551, 552, 553, 554, 905, 1612, 1701, 2151, 2187, 2189, 2521, 2701, 3707, and 3804

Rescission of Pa.R.A.P. 555, 556, and 561

Amendment of Pa.R.Civ.P. 240, 1308, 1313, 1920.62, and 1940.5

Amendment of Pa.R.O.C.P. 1.40

Amendment of Pa.R.Crim.P. 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907

Adoption of Pa.R.J.C.P. 142 and 1142

Adoption of Pa.R.Civ.P.M.D.J. 206.1

Amendment of Pa.R.Civ.P.M.D.J. 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020

On April 21, 2026, the Supreme Court approved the adoption of Pennsylvania Rule of Judicial Administration 1990; the adoption of Pennsylvania Rules of Appellate Procedure 550 and 1614; the amendment of Pennsylvania Rules of Appellate Procedure 551—554, 905, 907, 1612, 1701, 2151, 2185, 2186, 2187, 2189, 2521, 2701, 3707, and 3804; the rescission of Pennsylvania Rules of Appellate Procedure 555, 556, and 561; the amendment of Pennsylvania Rules of Civil Procedure 240, 1308, 1313, 1920.62, and 1940.5; the amendment of Pennsylvania Rule of Orphans' Court Procedure 1.40; the amendment of Pennsylvania Rules of Criminal Procedure 124, 704, 708, 720, 900, 902, 903, 904, 906, and 907; the adoption of Pennsylvania Rules of Juvenile Court Procedure 142 and 1142; the adoption of Pennsylvania Rule of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206.1; and the amendment of Pennsylvania Rules of Civil Procedure Governing Actions and Proceedings Before Magisterial District Judges 206, 350, 514, 515, 516, 1007, 1008, 1013, 1014, 1016, 1018, 1019, and 1020.

This rulemaking governs the procedures, eligibility, and forms to seek and determine a waiver of filing fees and costs associated with a legal action, *i.e.*, *in forma pauperis* (IFP). The Rules Committees have prepared this Adoption Report describing the rulemaking process. An Adoption Report should not be confused with Comments to the rules. *See* Pa.R.J.A. 103, cmt. The statements contained herein are those of the Rules Committees, not the Court.

For the pertinent background on this rulemaking, readers are advised to consult the Publication Reports accompanying prior proposals. The Civil Procedural Rules Committee initially publish a proposed new Pa.R.J.A. 1990 and amendments to Pa.R.Civ.P. 240. *See* 50 Pa.B. 4023 (August 8, 2020). Thereafter, the Rules Committees coordinated a joint publication of a substantially revised Pa.R.J.A. 1990 with proposed amendments to the Pennsylvania Rules of Civil Procedure, the Pennsylvania Rules of Civil Procedure Before Magisterial District Judges, the Pennsylvania Rules of Orphans' Court Procedure, the Pennsylvania Rules of Criminal Procedure, the Pennsylvania Rules of Juvenile Court Procedure, and the Pennsylvania Rules of Appellate Procedure. *See* 52 Pa.B. 2561 (April 30, 2022). The proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs) was republished for further comment. *See* 53 Pa.B. 1790 (April 1, 2023).

The goal was to develop a single statewide procedure located in the Rules of Judicial Administration with each body of rules referencing the primary rule, as well as set forth any proceeding type restrictions or modifications to the primary rule. The location of the primary rule was intended to reflect that the IFP procedure is largely an administrative, *ex parte* matter and not an adversarial proceeding. Indeed, there may be no underlying action if IFP status cannot be obtained.

Upon republication of Pa.R.J.A. 1990, commenters were generally appreciative that their prior input was accepted and many of their suggestions were incorporated into the revised proposal. None of the comments criticized the categorical eligibility criteria or suggested the criteria was too low or too high. Much of the republished proposal was viewed favorably with several recurring suggestions for additional refinements. The remainder of this Adoption Report is intended to address suggestions and identify subsequent revisions.

Pa.R.J.A. 1990

It was suggested that self-represented litigants will not know of the option to proceed IFP unless they are informed. Therefore, a requirement should be added that the first time a filing office informs a party that a fee has to be paid, the clerk must also explain (whether orally or in writing) that if the party cannot afford to pay, the party may petition to proceed IFP. Further, it was suggested that the party be informed of their appellate rights when an application is denied.

The Rules Committees did not believe there should be a "notice" requirement every time a fee is charged. Rather, the person or entity collecting the fee should inform the filer only when the filer is unable to pay the fee, *i.e.*, the filing is rejected for nonpayment. Accordingly, a new subdivision (b) (Information) was added to require a "payee" to provide information about the waiver procedure and form to a party who is unable to pay a fee covered by the rule. The Comment expounds on "payee."

In addition, a one-page, plain language information document has been prepared and will be posted on the UJS website under "forms" and made available to the "payees."

It was suggested that subdivision (c) be revised to make clear that an applicant can be eligible for a waiver for any of the three bases, *i.e.*, without financial resources, substantial financial hardship, or representation of counsel. In response, subdivision (c) (Eligibility) was revised to clarify that a waiver may be granted on any of the three bases contained in the subdivision.

It was suggested that the rule should clarify that counsel's *praecipe* to proceed IFP does not require judicial action. The Rules Committees did not believe that judicial review of counsel's *praecipe* was warranted because it is expected that counsel's *praecipe*, pursuant to the Pennsylvania Rule of Professional Conduct 3.3 (Candor Toward the Tribunal), would not contain misrepresentations. In response, subdivision (c)(3) was revised to clarify that a waiver would be received from the filing office upon the *praecipe* of counsel.

It was suggested that the rule should clarify that an applicant can seek a waiver after commencing an action. Subdivision (d)(1) was revised to clarify that a waiver may be sought after the commencement of an action in addition to the same time an action is commenced, but not before. This is intended to include a defendant or respondent who may have to pay a fee to file a responsive document or an appeal.

It was suggested that the meaning of "substantial financial hardship" in subdivision (c)(2) be defined to provide a standard for appellate review and to reduce the risk of arbitrary results. Without a definition, the rule would not instruct judges on "how" to evaluate the financial information on the application. The commenters contended this will lead to inconsistent decisions among the judges and throughout Pennsylvania. Further, without a definition, appellate courts will be unable to determine whether there was an abuse of discretion by the judge in denying an application. A suggested definition of "substantial financial hardship" was a substantial risk that, without the fee waiver, the party is or will be unable to fully meet their basic human needs or obligations including, but not limited to, nutrition, housing, utilities, health, transportation, care of dependents, or other areas of essential need. *See also Gerlitzki v. Feldser*, 307 A.2d 307, 308 (Pa. Super. 1973) ("'Poverty' does not refer solely to a petitioner's 'net worth' but to whether he is able to obtain the necessities of life."). The requested definition of "substantial financial hardship" was included in subdivision (c)(2).

It was suggested by comments that subdivision (e) permit a judge to deny an application without a record hearing when the application is deficient in content and supplementation was directed by the court, but the applicant did not respond. This would account for the alleged large number of incomplete applications without clogging a judge's schedule. Further, the rule should permit a judge to deny an application that is clearly ineligible based upon the information provided without holding a hearing.

The requirement in subdivision (e) for a hearing prior to the denial of every application was reconsidered. Such a requirement did not appear to be an efficient use of judicial resources. Instead, the requirement was modified to provide the court with discretion to hold a hearing if the petition presents some arguable merit or the court wishes to solicit further information.

Accordingly, subdivision (e) has been revised to add subdivision (e)(3), stating "[t]he court may deny an application without argument or a hearing." Further, renumbered subdivision (e)(4) has been revised to state: "The court may hold an *ex parte* record hearing if the application is of arguable merit or the court wishes to solicit further information." The bases for denying an application, formerly located in subdivision (e)(3)(i)—(e)(3)(iv), have been removed. Subdivisions (e)(3)(i)—(e)(3)(iii) referred to "supplemental information," but ostensibly frivolous applications may be denied without supplementation. Therefore, those bases appeared too restrictive. As for the "materially inaccurate information" basis in former subdivision (e)(3)(iii), that also appears too restrictive if an application may be denied as frivolous without a hearing. Similarly, the basis in former subdivision (e)(3)(iv) may be too restrictive. Instead, the courts will exercise discretion as to whether an application is denied on the basis of ineligibility, procedural default, noncompliance with court directives, or frivolity.

It was suggested that the rule categorically grant a waiver for criminal defendants who qualify for a public defender based on indigency. Additionally, the rule should also categorically grant a waiver when the applicant is under 18 years of age. For this latter category, parental income was believed to be irrelevant.

Public defenders do not charge defendants for legal representation. Therefore, the Rules Committees concluded that representation by a public defender, as well as other court-appointed counsel, *see*, *e.g.*, 42 Pa.C.S. § 6337 (right to counsel for parties other than the child under Juvenile Act), would be synonymous with counsel providing a party with free legal services. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to state that "counsel" in subdivision (c)(3) is intended to include public defenders and court-appointed counsel. Public defenders and court-appointed counsel would still need to complete the *praecipe*, including that portion requiring counsel to reasonably believe that the party is unable to pay the fees and costs.

A categorical grant for minors seemed overly broad and unnecessary in instances where the minor is represented by counsel providing free legal services. There may be civil actions for monetary judgments or confirmation of settlement where a minor is a party. Rather than provide a categorical exemption for minors, those minors can still seek a waiver through subdivision (c)(1) (without financial resources) or subdivision (c)(2) (substantial financial hardship). Equating age with indigence in all circumstances may not be good policy especially if an adult or guardian may have a duty to support the minor.

It was suggested that the Comment mention that appellate review is by petition for specialized review so that denied applicants do not file Notices of Appeal. The Comment was revised to specify that appellate review of a denied application is through a petition for specialized review pursuant to Pa.R.A.P. 1614.

It was suggested that the rules address the appellate process for denied applications by a magisterial district judge because the magisterial district courts are not "courts of record." Therefore, there would be no "*ex parte* record hearing" pursuant to subdivision (e)(4).

Pa.R.Civ.P.M.D.J. 205B (pertaining to record of proceedings and transcript of record), provides:

A copy of any such record appearing on such a form certified to be a true copy by the magisterial district judge in whose office the record is on file or by any other

official custodian of the record shall for all purposes be considered to be a sufficient transcript of the record, including any judgment, order or other disposition contained therein.

Similarly, Pa.R.Civ.P.M.D.J. 205A references "[a] record of any proceedings before a magisterial district judge, including proof of service, returns, entry of judgment and other matters, appearing on a form prescribed by the State Court Administrator shall for all purposes be considered to be a sufficient record of those proceedings." Therefore, it appeared that the decision of the magisterial district court appearing on a certified court form would be a sufficient transcript of record and could satisfy the requirement of a record hearing. Accordingly, the Comment to Pa.R.J.A. 1990 was revised to include:

> "Record hearing," as used in subdivision (e)(4), is intended to include a record of proceedings or a certified copy of a record of proceedings in magisterial district court pursuant to Pa.R.Civ.P.M.D.J. 205 (pertaining to record of proceedings and transcript of records). This includes an order entered by a magisterial district judge following a hearing to determine a party's eligibility to have fees and costs waived.

It was suggested that a provision be added permitting the continuation of a waiver granted by a magisterial district judge similar to Pa.R.A.P. 551 to provide greater judicial economy and consistency between the bodies of procedural rules. Currently, an appellant from the magisterial district court is required to seek IFP status from the court of common pleas when appealing. Reasons for requiring reapplication were: 1) the court being deprived of the filing fee should decide IFP status; and 2) an appeal from a magisterial district court to a court of common pleas is an entirely new action because of the need to file a complaint and *de novo* review.

Yet, cases proceed to judgment relatively quickly in the magisterial district courts, so little is expected to change in a party's financial condition from the time of the application in the magisterial district court and the application in the court of common pleas. Given this short duration, it seemed that a second application would burden the applicant but likely not contain any changed circumstances with regard to financial wherewithal. However, once the application has been completed, there should not be much of a burden in producing a copy for the court of common pleas. Further, requiring reapplication could result in inconsistent determinations if the court of common pleas denies IFP status to a party previously granted IFP status by a magisterial district judge upon the same information. Finally, reapplication would be inconsistent with how IFP status continues from the court of common pleas through the appellate process. By analogy, parties are not required to reapply for appointed counsel from one to the next on the same case.

Ultimately, subdivision (h)(2) was revised to provide that IFP status obtained as a result of a party being without financial resources or as a substantial financial hardship shall continue unless the duration of the waiver is limited or the order is modified or vacated. Clarification was also sought whether a waiver by *praecipe* pursuant to Pa.R.J.A. 1990(c)(3) continues after counsel's withdrawal and, if not, what steps must be taken either by new counsel or the party to continue the waiver.

Subdivision (h)(4) was revised to state:

> Subject to subdivision (h)(1), a waiver obtained on the basis of subdivision (c)(3) shall continue throughout the litigation of the legal action regardless of whether counsel withdraws.

This revision was believed to provide for greater continuity and, with reference to subdivision (h)(1), new counsel or the party, if now self-represented, would be required to report any improvement in the party's financial circumstances that would enable the party to pay any waived fees and costs.

Subdivision (h) was revised to set forth the continuing obligation to inform the court of any changes in financial circumstances and the continuing waiver as litigation proceeds. The continuing obligation in subdivision (h)(1), which primarily entailed the relocation of language from subdivision (g)(1), includes counsel.

Subdivision (h)(2) enables a previously granted waiver to continue subject to any limitation on duration, or subsequent modification or vacatur. Subdivision (h)(3) is an explicit grant of authority to the courts to order a party to reapply and to modify or vacate an existing waiver. Thus, rather than permitting a percentage of waiver or limiting the waiver to certain costs, subdivision (h)(2) permits limits on the duration of a waiver and greater judicial authority to reconsider the waiver.

It was suggested by comments that the "Assets" section of the form differentiate between "primary vehicle" and "other vehicles" to reflect subdivision (b)(1)(ii)(II), which excludes a party's home and one vehicle as assets. Also, it was questioned how assets should be valued.

Subdivision (i) sets forth the application form. The "Asset" category on the form is being used for two purposes: 1) to calculate assets under subdivision (c)(1)(ii)(II), which excludes the party's home and one car; and 2) to calculate assets under subdivision (c)(2)(i), which contains no such exclusion. To make the form function for both purposes, the items under "assets" were revised to separately prompt for the value of the primary vehicle, other vehicles, the house, and other real estate.

As for valuation, the title "assets" was revised to state "Assets (Current Value)." If the court needs to know more, then the court could ask for supplemental information or conduct a hearing. The title for "Monthly Expenses" was revised to add "You Pay" to indicate that the expense should not be reported if someone else has paid it.

Post-publication, the form in subdivision (i), which states "I support ___ adults (not counting myself) who live with me" and "I support ___ children under 18 who live with me," was revised to more closely align with subdivision (c)(2)(ii), which states "the number of minor children or adult children, who are incapable of self-support due to a physical or mental disability, that the party is supporting, including a child support obligation."

It was suggested by comments that the phrase "Supplemental Security Income (SSI) (Not Social Security)" contained in the form was likely to confuse applicants because many applicants will believe that SSI is "Social Security." Instead, the phrase should state: "Supplemental Security Income (SSI) (Not Social Security Disability Insurance (SSDI))." With deference to the commenters, who presumably have a greater understanding of the audience and the potential for confusion, the suggested revision was made to the form.

It was suggested by comments that the phrase, "skip this next section and sign," is inaccurate because the applicant actually needs to skip three sections. Instead, the form should indicate that the applicant is to "skip the remainder of the form and sign." In response, the form was revised to indicate that the remainder of the form can be skipped with the applicant signing and dating the verification.

Pennsylvania Rules of Appellate Procedure

Pa.R.A.P. 1614(a) was proposed to provide a 10-day window to file a petition for specialized review from a denial of a waiver application. The reason for the 10-day window was to keep the cases flowing and because the issues were relatively uncomplicated. Commenters suggested that applicants receive 30 days to appeal a denial rather than 10 days. Additionally, 10 days may be too short if the denial is mailed. Finally, it was suggested that time to appeal a denial and the time to pay the filing fee after a denial should be the same. *See* Pa.R.J.A. 1990(f)(2) (providing 30 days to pay fee after denial of application).

Accordingly, Pa.R.A.P. 1614(a) was revised to provide for 30 days to seek appellate review of a denied application. This revision would also be consistent with Pa.R.A.P. 1602 (generally requiring a petition for specialized review to be filed within 30 days after the entry of the order sought to be reviewed). However, an aggrieved party could always file a petition for specialized review sooner than 30 days to initiate an earlier appellate review process.

As proposed, if a party has not already received a waiver in the trial court, then Pa.R.A.P. 552 would require the party to file a waiver application with the appellate court. If the appellate court does not grant the application, then it can remand the application to the trial court for a hearing. However, appellants would be unable to file an appeal in the trial court without having to first pay or obtain a waiver. Further, any remand to the trial court for a hearing would delay appellate relief. Instead, the application should be initially filed with the trial court. A commenter suggested that applications to waive fees and costs on appeal should be filed first with the trial court, as is current practice, rather than with the appellate court, as proposed.

The appeals process from a trial court requires a party to file a notice of appeal with the trial court clerk/prothonotary and pay a filing fee. *See* Pa.R.A.P. 902. The notice of appeal and fee is then transmitted to the appellate court prothonotary by the trial court clerk/prothonotary. *See* Pa.R.A.P. 902, cmt. Currently, if a party does not already have a waiver at the time of filing, then the party can file an application with the trial court clerk/prothonotary, together with the notice of appeal. *See* Pa.R.A.P. 552(a).

Pa.R.A.P. 552(a) was revised to specify that, for a notice of appeal, an appellant not previously granted a waiver by the trial court may seek a waiver by filing an application or *praecipe* in the trial court at the same time as the notice of appeal. For a petition, a petitioner may file an application or *praecipe* with the appellate court at the same time as the petition.

Pa.R.A.P. 552(a)(1)-(a)(2) were revised to indicate that a waiver application should be filed at the same time as the filing of the notice of appeal or at any time thereafter during the pendency of the appeal.

Pa.R.A.P. 552(b) and its Comment were revised to indicate that the judicial determination of a waiver application is *ex parte*. This revision was believed to be necessary to emphasize that the process concerns a party's access to justice and is not the subject of an adversarial proceeding.

To ensure access to the courts, Pa.R.A.P. 1614(a) was revised to permit an appeal without an initial fee payment. Additionally, a cross reference to Pa.R.A.P. 1701(e) was added to the Comment to Pa.R.A.P. 1614 to inform readers of the interplay between petitions for specialized review and the availability of relief via Chapter 17.

Pennsylvania Rules of Civil Procedure

Aside from rules governing appeals of a magisterial district judge's denial of a fee waiver application, discussed *infra*, no further substantive revisions were made post-publication to Pa.R.Civ.P. 240. The corollary amendments to Pa.R.Civ.P. 1920.62 and 1940.5 would refer directly to Pa.R.J.A. 1990 rather than Pa.R.Civ.P. 240. This direct reference would also eliminate the ability to dismiss family court actions as frivolous pursuant to proposed Pa.R.Civ.P. 240(c), which the Domestic Relations Procedural Rules Committee was not inclined to endorse for family law matters that often involve the best interest of a child.

Pennsylvania Rules of Orphans' Court Procedure

Multiple comments were received suggesting that the IFP process be expanded to include proceedings before the Register of Wills. Commenters cited issues with "tangled titles," *i.e.*, inherited properties whose ownership may be held in fractional shares among multiple heirs without recordation. It was alleged that filing fees charged by the Registers of Wills may prevent low-income heirs from raising estates or seeking letters testamentary or letters of administration.

The Orphans' Court Procedural Rules Committee will consider this matter separately but acknowledges that the authority for the Register of Wills to waive fees and whether such authority may be governed by a judicial rule of procedure remains uncertain.

Post-publication, subdivision (b) was added to Pa.R.O.C.P. 1.40 to permit dismissal for a false allegation of poverty or a frivolous action. This addition was intended to parallel that provided by Pa.R.Civ.P. 240(c).

Pennsylvania Rules of Criminal Procedure

With the proposed amendment of Pa.R.Crim.P. 124 (Waiver of Fees and Costs), it became evident that many commenters were concerned that readers would not be able to discern the scope of Pa.R.Crim.P. 124 without additional commentary. Several commenters also sought to include references in the commentary to the Act of November 3, 2022, P.L. 2175, No. 163, which substantially amended 42 Pa.C.S. § 9730 (payment of court costs, restitution, and fines). Other commenters sought specific exclusion of restitution from any form of waiver.

The Comment to Pa.R.Crim.P. 124 was revised to state that fees, costs, or other financial assessments imposed as a result of conviction are not addressed by the rule but may be reduced or waived pursuant to 42 Pa.C.S. §§ 9721, 9730, Pa.R.Crim.P. 706, or other authority. Statements were also added to the rule text and commentary indicating that restitution is not subject to the rule.

Concerns were raised about whether Pa.R.J.A. 1990 would apply to the payment of costs and restitution as a condition of an Accelerated Rehabilitative Disposition (ARD) program. The rule was revised to emphasize that the intent of the rule is to establish a procedure to seek a waiver of fees and costs for indigent parties that would otherwise operate to impede access to the courts. *See* Pa. Const. art. I, § 11.

A question arose whether readers may conflate the application/admission/administrative fees for admission into an ARD program with the conditions of ARD. Accordingly, language was added to the first paragraph of the Comment stating: "The administrative costs and expenses for admission into an accelerated rehabilitative disposition program are subject to subdivision (a). *See* Pa.R.Crim.P. 300(D)(2)(a), Pa.R.Crim.P. 316(A)(2)." To isolate the costs and administrative expenses within Pa.R.Crim.P. 316, subdivision (a) was further segregated into subdivisions (a)(1), (a)(2), and (a)(3). This was intended to parallel Pa.R.Crim.P. 300(D)(2).

Aside from stylistic revisions, the following commentary has been removed:

Pa.R.Crim.P. 316

***Official Note*:** Rule 182 approved May 24, 1972, effective immediately; amended January 28, 1983, effective February 1, 1983; Comment revised April 10, 1989, effective July 1, 1989; Comment revised September 26, 1996, effective immediately; renumbered Rule 316 and amended March 1, 2000, effective April 1, 2001; Comment revised September 21, 2012, effective November 1, 2012.

Committee Explanatory Reports:

Report explaining the September 26, 1996, Comment revision published with the Court's Order at 26 Pa.B. 4894 (October 12, 1996).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the September 21, 2012, correction of the reference to the Vehicle Code in the last paragraph of the Comment published with the Court's Order at 42 Pa.B. 6251 (October 6, 2012).

Pa.R.Crim.P. 904

***Official Note*:** Previous Rule 1504 adopted January 24, 1968, effective August 1, 1968; rescinded December 11, 1981, effective June 27, 1982; rescission vacated June 4, 1982; rescinded February 1, 1989, effective July 1, 1989, and replaced by Rule 1507. Present Rule 1504 adopted February 1, 1989, effective July 1, 1989; amended August 11, 1997, effective immediately; amended January 21, 2000, effective July 1, 2000; renumbered Rule 904 and amended March 1, 2000, effective April 1, 2001; amended February 26, 2002, effective July 1, 2002; Comment revised March 12, 2004, effective July 1, 2004; Comment revised June 4, 2004, effective November 1, 2004; amended April 28, 2005, effective August 1, 2005; Comment revised March 29, 2011, effective May 1, 2011.

Committee Explanatory Reports:

Final Report explaining the August 11, 1997, amendments published with the Court's Order at 27 Pa.B. 4305 (August 23, 1997).

Final Report explaining the January 21, 2000, amendments adding paragraph (F) concerning appointment of counsel published with the Court's Order at 30 Pa.B. 624 (February 5, 2000).

Final Report explaining the March 1, 2000, reorganization and renumbering of the rules published with the Court's Order at 30 Pa.B. 1478 (March 18, 2000).

Final Report explaining the February 26, 2002, amendments concerning entry of appearance by counsel published with the Court's Order at 32 Pa.B. 1393 (March 16, 2002).

Final Report explaining the Comment revision concerning duration of counsel's obligation published with the Court's Order at 34 Pa.B. 1672 (March 27, 2004).

Final Report explaining the April 28, 2005, amendments concerning entry of appearance and content of appointment order published with the Court's Order at 35 Pa.B. 2859 (May 14, 2005).

Final Report explaining the March 29, 2011, revision of the Comment concerning right to counsel published with the Court's Order at 41 Pa.B. 2000 (April 16, 2011).

Pennsylvania Rules of Juvenile Court Procedure

Proposed Pa.R.J.C.P. 174 was renumbered as Pa.R.J.C.P. 142 so it is no longer grouped with the "expungement rules." Pa.R.J.C.P. 1174 was likewise renumbered as Pa.R.J.C.P. 1142 within the "business of court" rules. The title of Pa.R.J.C.P. 142 was also revised to state: "Waiver of Fees and Costs" to omit specific mention of motions to expunge or destroy records.

Similar to the approach taken with Pa.R.Crim.P. 124, Pa.R.J.C.P. 142 has been revised as a rule of general applicability to delinquency proceedings with specific exceptions for financial obligations imposed as a condition of an informal adjustment, a condition of a consent decree, or through a disposition of delinquency. This revision would make Pa.R.J.C.P. 142 consistent with Pa.R.J.C.P. 1142 so that both rules would address unknown local fees that may be imposed in juvenile court proceedings.

Pennsylvania Rules of Civil Procedure Before Magisterial District Judges

Further discussed were rules governing appeals of a magisterial district judge's denial of a fee waiver application to the court of common pleas. It was believed to be more appropriate to add such challenges to the statement of objection procedures in Pa.R.Civ.P.M.D.J. 1016—1020. These rules address statements of objection brought before a court of common pleas in response to levies and determinations of manufactured home abandonment by a magisterial district judge. Pa.R.Civ.P.M.D.J. 1016, 1018, 1019, and 1020 were amended to add procedures for challenges to a denial of an IFP application by a magisterial district judge. Among other things, the amendments add provisions specific to an IFP denial challenge, such as prohibiting assessment of fees or costs against a party seeking review of an IFP denial, a prohibition against service on other parties of interest, and citing Pa.R.J.A. 1990 as the standard for review.

In addition, corollary amendments to Pa.R.Civ.P.M.D.J. 1008 and 1013 were made to update the reference to the "*in forma pauperis* (IFP) affidavit" to "application to waive fees and costs." The amendments also contain an updated reference to a federal housing assistance program from "Section 8" to "Housing Choice Voucher Program."

* * * * *

This rulemaking becomes effective November 1, 2026.

[Pa.B. Doc. No. 26-648. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 255—LOCAL COURT RULES

FRANKLIN COUNTY

Adoption of 39th Jud. Dist. Rules Crim.P. 135, 460, and 547. Electronic Transmittal of Transcripts and Associated Documents; Misc. Doc. No. AD: 24-2026

Order

And Now, this 24th day of April, 2026, the Court having received the Criminal Rules Committee's letter dated April 21, 2026, indicating the proposed local rules of criminal procedure are not inconsistent with statewide procedure, the Franklin County Branch of the 39th Judicial District hereby adopts the following local rules of criminal procedure, 39th Jud. Dist. Rules Crim.P. 135, 460, and 547, effective August 1, 2026.

Accordingly, Ms. Rebekah Reigner, District Court Administrator for the 39th Judicial District, is ordered and directed to do the following:

1. Email one (1) copy of this Order and the following rules to the Administrative Office of Pennsylvania Courts (AOPC) at adminrules@pacourts.us.

2. Email one (1) copy of this Order and the following rules in Microsoft Word format only to the Legislative Bureau at bulletin@palrb.us for publication in The *Pennsylvania Bulletin*.

3. File one (1) copy of this Order and the following rules with the Clerk of Courts in Franklin County, and email one (1) copy to the Franklin County Law Library for public inspection and copying.

4. Publish a copy of this Order and the following rules on the Franklin County Court website.

5. Incorporate and publish the following rules into the 39th Judicial District's set of local rules on the Franklin County Court website not later than Friday, May 8, 2026.

By the Court

SHAWN D. MEYERS,
President Judge

These Rules are applicable only to the Franklin County branch of the 39th Judicial District.

39th Jud.Dist.R.Crim.P. 135. Transcript of Proceedings Before Issuing Authority.

Electronic Transmission. The transcript and any associated documents shall be electronically scanned and transmitted to the Franklin County Clerk of Courts in digital format in lieu of transmitting the physical paper transcript and associated documents.

39th Jud.Dist.R.Crim.P. 460. Notice of Appeals; Transmittal of Transcript and Associated Documents.

Electronic Transmission. The transcript and any associated documents shall be electronically scanned and transmitted to the Franklin County Clerk of Courts in digital format in lieu of transmitting the physical paper transcript and associated documents.

39th Jud.Dist.R.Crim.P. 547. Transmittal of Transcript and Associated Documents.

Electronic Transmission. When a defendant is held for court, or after the issuing authority receives notice that the case will be presented to the indicting grand jury and closes out the case, the issuing authority shall prepare a transcript of the proceedings. The transcript and any associated documents shall be electronically scanned and transmitted to the Franklin County Clerk of Courts in digital format in lieu of transmitting the physical paper transcript and associated documents. After the transcript and associated documents are electronically transmitted to the Franklin County Clerk of Courts, the Franklin County Clerk of Courts shall assign a Common Pleas docket number to the case. The electronically scanned transcript and associated documents shall constitute the original documents for purposes of the Rules. The issuing authority shall retain the physical paper transcript and associated documents as may be required by rule of court or records retention policies.

[Pa.B. Doc. No. 26-649. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 255—LOCAL COURT RULES

LANCASTER COUNTY

Addition of Local Rule 547 of Criminal Procedure; No. 14 AD 2026

Administrative Order

And Now, this 24th day of April 2026, it is hereby *Ordered* that the following Local Rule of Criminal Procedure of the Court of Common Pleas of the 2nd Judicial District of Pennsylvania, Lancaster County, is added, to be effective thirty (30) days after publication in the *Pennsylvania Bulletin*.

The Lancaster County District Court Administrator is Ordered to do the following:

1. File one (1) copy to the Administrative Office of Pennsylvania Courts via email to adminrules@pacourts.us.

2. File one (1) paper copy and one (1) electronic copy in a Microsoft Word format only to bulletin@palrb.us with the Legislative Reference Bureau for publication in the *Pennsylvania Bulletin*.

3. Publish these Rules on the Lancaster County Court website at www.court.lancastercountypa.gov.

4. Incorporation of the local rule into the set of local rules on www.court.lancastercountypa.gov within thirty (30) days after the publication of the local rule in the *Pennsylvania Bulletin*.

5. File one (1) copy of the local rule in the appropriate filing office for public inspection and copying.

By the Court

LEONARD G. BROWN, III,
President Judge

Rule 547. Transmittal of Transcript and Associated Documents.

(d) *Electronic Transmission.*

1. The transcript and any associated documents shall be electronically scanned and transmitted to the Clerk of Courts in digital format in lieu of transmitting the physical paper transcript and associated documents.

2. The electronically scanned transcript and associated documents shall constitute the original documents for purposes of these rules.

3. The issuing authority shall retain the physical paper transcript and associated documents as may be required by rule of court or records retention policies.

[Pa.B. Doc. No. 26-650. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 255—LOCAL COURT RULES

MONTGOMERY COUNTY

Prohibition on Smart/Meta/AI Glasses In Any Judicial Facility; Administrative Order 2026-00001

Order

And Now, this 27th day of April, 2026, Smart/Meta/AI glasses, prescription or non-prescription, with recording capability are prohibited inside any Montgomery County Judicial Facility without the Court's express written permission. No one wearing or possessing these glasses will be permitted in any Montgomery County Judicial Facility.

The above prohibitions are in addition to those outlined in 18 PA.C.S. § 5103.1, Pa. Rule of Criminal Procedure 112 and Pa. Rule of Judicial Administration 1910. Any individual who violates this Order may be subject to contempt of Court.

By the Court

CAROLYN T. CARLUCCIO,
President Judge

[Pa.B. Doc. No. 26-651. Filed for public inspection May 8, 2026, 9:00 a.m.]

Title 255—LOCAL COURT RULES

YORK COUNTY

Amendment of Local Rule of Criminal Procedure 706; CP-67-AD-18-2026

Administrative Order Amending York County Local Rule of Criminal Procedure 706

And Now, this 22nd day of April 2026, it is *Ordered* that York County Local Rule of Criminal Procedure 706 is amended, effective June 1st, 2026.

The District Court Administrator shall publish this order as may be required.

By the Court

MICHAEL W. FLANNELLY,
President Judge

Material to be added is bolded and underlined.

Material to be deleted is bolded and bracketed.

York R.Crim.P. 706. **[Fines or Costs]** **Enforcement and Collection of Costs, Fines, and Restitution**.

[(A) A defendant's responsibility for payment of fines and costs imposed by the court pursuant to law (see Pa.R.Crim.P. 706 and 42 Pa.C.S. § 1726) may be modified in particular cases to the extent permitted by law, which modification may include directing a defendant to perform on a work detail or other community service to defray some or all of the fines and costs imposed. (B) Performance on a work detail or other community service shall defray fines and costs imposed at an hourly rate to be periodically set by separate administrative order of the court.]

(A) *Determination of Ability to Pay*

1. When a defendant is ordered to pay fines, costs, or restitution and payment in full is not made at sentencing in a single remittance, the Clerk of Courts may require the defendant to provide a written statement of financial condition sufficient to determine ability to pay.

2. The Clerk of Courts may schedule a Conference to review the defendant's financial circumstances and potentially offer an installment schedule.

3. Any proposed payment plan shall reflect the defendant's verified ability to pay and shall be submitted to the assigned judge for approval and entry as a court order without the necessity of a hearing.

4. If an agreement cannot be reached, the Clerk shall file a petition requesting that the court schedule a hearing to establish the financial obligations in accordance with the defendant's financial means.

(B) *Modification by Community Service or Work Detail*

1. A defendant's responsibility for payment of fines and costs imposed by the court pursuant to law (see Pa.R.Crim.P. 706 and 42 Pa.C.S. § 1726) may be modified in particular cases to the extent permitted by law.

2. Such modification may include directing the defendant to perform work detail or other community service in lieu of monetary payment, to defray some or all the fines and costs imposed where permitted by law.

3. Performance on a work detail or other community service shall defray fines and costs at an hourly rate equal to Pennsylvania minimum wage.

4. The availability of work detail or community service does not relieve the defendant of the obligation to pay restitution, which shall remain payable to the victim as required by law.

(C) *Default and Enforcement*

1. When a defendant defaults on a payment order or approved plan, the Clerk of Courts may petition the court for enforcement or contempt proceedings.

2. Prior to filing or scheduling a hearing, the Clerk may offer the defendant an opportunity to provide updated financial information for review and possible modification of the Court Order.

3. The petition for enforcement or contempt shall include a summary of all payments received and the current balance due.

4. A defendant shall not be imprisoned for failure to pay unless, after hearing, the court finds that the defendant possesses the ability to pay and willfully fails to do so.

5. The defendant shall be advised of the right to counsel at any enforcement or contempt hearing.

(D) ***Hearings***

1. At any hearing to establish or modify a payment plan, or on a petition for contempt, the court shall consider evidence of the defendant's income, expenses, employment, dependents, and other relevant circumstances.

2. The Clerk of Courts shall provide the court with a record of payments made. The defendant shall be afforded an opportunity to present evidence of payments or proof of inability to pay.

3. The court may also consider evidence that the defendant had the ability to pay and willfully failed to do so, including but not limited to income, assets, employment history, and expenditures.

4. Upon review, the court may:

a. Approve or modify the payment schedule;

b. Order participation in a work detail or community service in accordance with subsection (B);

c. Continue the matter for additional review; or

d. Upon finding willful nonpayment, impose sanctions permitted by law, including incarceration as provided in Pa.R.Crim.P. 706.

(E) ***Orders to Appear; Bench Warrants***

1. Any order directing a defendant to appear for a payment plan or contempt hearing shall include notice that failure to appear may result in the issuance of a bench warrant and possible contempt proceedings.

2. When a bench warrant is issued, the Clerk of Courts shall promptly serve a copy on the defendant at the last known address and on counsel of record.

3. A defendant arrested pursuant to such warrant shall be brought before the court as soon as practicable for bail review and further proceedings on the underlying payment matter.

[Pa.B. Doc. No. 26-652. Filed for public inspection May 8, 2026, 9:00 a.m.]

DISCIPLINARY BOARD OF THE SUPREME COURT

List of Financial Institutions

Notice is hereby given that pursuant to Rule 221(b), Pa.R.D.E., the following List of Financial Institutions have been approved by the Supreme Court of Pennsylvania for the maintenance of fiduciary accounts of attorneys. Each financial institution has agreed to comply with the requirements of Rule 221, Pa.R.D.E., which provides for trust account overdraft notification.

DANA BELELLA,
Assistant Director

FINANCIAL INSTITUTIONS APPROVED AS DEPOSITORIES OF TRUST ACCOUNTS OF ATTORNEYS

Bank Code A.

595 Abacus Federal Savings Bank
2 ACNB Bank
613 Allegent Community Federal Credit Union
375 Altoona First Savings Bank
376 Ambler Savings Bank
532 AMERICAN BANK (PA)
680 American Heritage FCU
615 Americhoice Federal Credit Union
116 AMERISERV FINANCIAL
648 Andover Bank (The)
377 Apollo Trust Company

Bank Code B.

558 Bancorp Bank (The)
485 Bank of America, NA
662 BANK OF BIRD-IN-HAND
415 Bank of Landisburg (The)
596 Bank of Princeton (The)
664 BankUnited, NA
501 BELCO Community Credit Union
673 BENCHMARK FEDERAL CREDIT UNION
652 Berkshire Bank
663 BHCU
679 BMO Bank, NA
5 BNY Mellon, NA
392 Brentwood Bank
495 Brown Brothers Harriman Trust Co., NA

Bank Code C.

654 CACL Federal Credit Union
618 Capital Bank, NA
681 CENTRAL PENN BANK & TRUST
675 CENTRE 1ST BANK, A DIVISION OF OLD DOMINION NATIONAL BANK
394 CFS BANK
623 Chemung Canal Trust Company
599 Citibank, NA
238 Citizens & Northern Bank
561 Citizens Bank, NA
206 Citizens Savings Bank
576 Clarion County Community Bank
591 Clearview Federal Credit Union
23 CNB Bank
223 Commercial Bank & Trust of PA
21 Community Bank (PA)
371 Community Bank, NA (NY)
132 Community State Bank of Orbisonia
380 County Savings Bank
536 Customers Bank

Bank Code D.

339 Dime Bank (The)
27 Dollar Bank, FSB

Bank Code E.

500 Elderton State Bank
567 Embassy Bank for the Lehigh Valley
682 Emigrant Bank
541 Enterprise Bank
28 Ephrata National Bank
601 Esquire Bank, NA
340 ESSA Bank & Trust

Bank Code F.

158 1st Summit Bank
31 F&M Trust Company—Chambersburg
658 Farmers National Bank of Canfield
34 Fidelity Deposit & Discount Bank (The)
583 Fifth Third Bank
661 First American Trust, FSB
643 First Bank
174 First Citizens Community Bank
539 First Commonwealth Bank

504 First Federal S & L Association of Greene County
525 First Heritage Federal Credit Union
42 First Keystone Community Bank
51 First National Bank & Trust Company of Newtown (The)
48 First National Bank of Pennsylvania
426 First Northern Bank & Trust Company
604 First Priority Bank, a division of Mid Penn Bank
592 FIRST RESOURCE BANK
657 First United Bank & Trust
408 First United National Bank
151 Firstrust Savings Bank
416 Fleetwood Bank
291 Fox Chase Bank
241 Franklin Mint Federal Credit Union
58 Fulton Bank, NA

Bank Code G.

498 Greenville Savings Bank

Bank Code H.

244 Hamlin Bank & Trust Company
362 Harleysville Bank
363 Hatboro Federal Savings
463 Haverford Trust Company (The)
678 HINGHAM INSTITUTION FOR SAVINGS
606 Hometown Bank of Pennsylvania
68 Honesdale National Bank (The)
605 Huntington National Bank (The)
608 Hyperion Bank

Bank Code I.

365 InFirst Bank
668 Inspire FCU
557 Investment Savings Bank
526 Iron Workers Savings Bank

Bank Code J.

127 Jim Thorpe Neighborhood Bank
488 Jonestown Bank & Trust Company
191 Journey Bank
659 JPMorgan Chase Bank, NA
72 JUNIATA VALLEY BANK (THE)

Bank Code K.

651 KeyBank NA
414 Kish Bank

Bank Code L.

499 LinkBank

Bank Code M.

361 M&T Bank
510 Marion Center Bank
387 Marquette Savings Bank
367 Mauch Chunk Trust Company
511 MCS (Mifflin County Savings) Bank
641 Members 1st Federal Credit Union
555 Mercer County State Bank
192 Merchants Bank of Bangor
671 Merchants Bank of Indiana
610 MERIDIAN BANK
294 Mid Penn Bank
677 Middletown Valley Bank
457 Milton Savings Bank

Bank Code N.

433 National Bank of Malvern
168 NBT Bank, NA
347 Neffs National Bank (The)
434 NEW TRIPOLI BANK
15 NexTier Bank, NA
666 Northern Trust Co.
93 Northwest Bank

Bank Code O.

653 OceanFirst Bank
489 OMEGA Federal Credit Union
94 Orrstown Bank

Bank Code P.

598 PARKE BANK
40 Penn Community Bank
540 PennCrest Bank
419 Pennian Bank
447 Peoples Security Bank & Trust Company
556 Philadelphia Federal Credit Union
448 Phoenixville Federal Bank & Trust
665 Pinnacle Bank
79 PNC Bank, NA
449 Port Richmond Savings
451 Progressive-Home Federal Savings & Loan Association
637 Provident Bank
491 PS Bank

Bank Code Q.

107 QNB Bank
560 Quaint Oak Bank

Bank Code R.

452 Reliance Savings Bank

Bank Code S.

153 S & T Bank
316 Santander Bank, NA
460 Second Federal S & L Association of Philadelphia
646 Service 1st Federal Credit Union
458 Sharon Bank
462 Slovenian Savings & Loan Association of Franklin-Conemaugh
486 SOMERSET TRUST COMPANY
633 SSB Bank

Bank Code T.

638 3Hill Credit Union
143 TD Bank, NA
656 Tioga Franklin Savings Bank
182 Tompkins Community Bank
660 Top Tier FCU
609 Tristate Capital Bank
672 Truist Bank
640 TruMark Financial Credit Union

Bank Code U.

483 UNB Bank
481 Union Building and Loan Savings Bank
634 United Bank, Inc.
472 United Bank of Philadelphia
475 United Savings Bank
600 Unity Bank
232 Univest Bank & Trust Co.

Bank Code V.

611 Victory Bank (The)

Bank Code W.

119 Washington Financial Bank
121 Wayne Bank
676 Webster Bank
631 WELLS FARGO BANK, NA
553 WesBanco Bank, Inc.
494 West View Savings Bank
473 Westmoreland Federal S & L Association
272 Woodlands Bank
573 Woori America Bank
630 WSFS (Wilmington Savings Fund Society), FSB

Bank Code X.

Bank Code Y.

Bank Code Z.

PLATINUM LEADER BANKS

The **HIGHLIGHTED ELIGIBLE INSTITUTIONS** are Platinum Leader Banks—Institutions that go above and beyond eligibility requirements to foster the IOLTA Program. These Institutions pay a net yield at the higher of 1% or 75 percent of the Federal Funds Target Rate on all PA IOLTA accounts. They are committed to ensuring the success of the IOLTA Program and increased funding for legal aid.

IOLTA EXEMPTION

Exemptions are not automatic. If you believe you qualify, you must apply by sending a written request to the IOLTA Board's executive director: 601 Commonwealth Avenue, Suite 2400, P.O. Box 62445, Harrisburg, PA 17106-2445. If you have questions concerning IOLTA or exemptions from IOLTA, please visit their website at www.paiolta.org or call the IOLTA Board at (717) 238-2001 or (888) PAIOLTA.

FINANCIAL INSTITUTIONS WHO HAVE FILED AGREEMENTS TO BE APPROVED AS A DEPOSITORY OF TRUST ACCOUNTS AND TO PROVIDE DISHONORED CHECK REPORTS IN ACCORDANCE WITH RULE 221, Pa.R.D.E.

New

682 Emigrant Bank

Name Change

499 Gratz Bank (change to 499 LinkBank)

Platinum Leader Change

Correction

Merger/Acquisition

294 MidPenn Bank (acquired 629 1st Colonial Community Bank)
121 Wayne Bank (acquired 354 Presence Bank)

Removal

[Pa.B. Doc. No. 26-653. Filed for public inspection May 8, 2026, 9:00 a.m.]

SUPREME COURT

Financial Institutions Approved as Depositories for Fiduciary Accounts; No. 268 Disciplinary Rules Docket

Order

Per Curiam

And Now, this 27th day of April 2026, it is hereby Ordered that the financial institutions named on the attached list are approved as depositories for fiduciary accounts in accordance with Pa.R.D.E. 221.

FINANCIAL INSTITUTIONS APPROVED AS DEPOSITORIES OF TRUST ACCOUNTS OF ATTORNEYS

Bank Code A.

595 Abacus Federal Savings Bank
2 ACNB Bank
613 Allegent Community Federal Credit Union
375 Altoona First Savings Bank
376 Ambler Savings Bank
532 AMERICAN BANK (PA)
680 American Heritage FCU
615 Americhoice Federal Credit Union
116 AMERISERV FINANCIAL
648 Andover Bank (The)
377 Apollo Trust Company

Bank Code B.

558 Bancorp Bank (The)
485 Bank of America, NA
662 BANK OF BIRD-IN-HAND
415 Bank of Landisburg (The)
596 Bank of Princeton (The)
664 BankUnited, NA
501 BELCO Community Credit Union
673 BENCHMARK FEDERAL CREDIT UNION
652 Berkshire Bank
663 BHCU
679 BMO Bank, NA
5 BNY Mellon, NA
392 Brentwood Bank
495 Brown Brothers Harriman Trust Co., NA

Bank Code C.

654 CACL Federal Credit Union
618 Capital Bank, NA
681 CENTRAL PENN BANK & TRUST
675 CENTRE 1ST BANK, A DIVISION OF OLD DOMINION NATIONAL BANK
394 CFS BANK
623 Chemung Canal Trust Company
599 Citibank, NA
238 Citizens & Northern Bank
561 Citizens Bank, NA
206 Citizens Savings Bank
576 Clarion County Community Bank
591 Clearview Federal Credit Union
23 CNB Bank
223 Commercial Bank & Trust of PA
21 Community Bank (PA)
371 Community Bank, NA (NY)
132 Community State Bank of Orbisonia
380 County Savings Bank
536 Customers Bank

Bank Code D.

339 Dime Bank (The)
27 Dollar Bank, FSB

Bank Code E.

500 Elderton State Bank
567 Embassy Bank for the Lehigh Valley
682 Emigrant Bank
541 Enterprise Bank
28 Ephrata National Bank
601 Esquire Bank, NA
340 ESSA Bank & Trust

Bank Code F.

158 1st Summit Bank
31 F&M Trust Company—Chambersburg
658 Farmers National Bank of Canfield
34 Fidelity Deposit & Discount Bank (The)
583 Fifth Third Bank
661 First American Trust, FSB
643 First Bank
174 First Citizens Community Bank
539 First Commonwealth Bank
504 First Federal S & L Association of Greene County
525 First Heritage Federal Credit Union
42 First Keystone Community Bank
51 First National Bank & Trust Company of Newtown (The)
48 First National Bank of Pennsylvania
426 First Northern Bank & Trust Company
604 First Priority Bank, a division of Mid Penn Bank
592 FIRST RESOURCE BANK
657 First United Bank & Trust
408 First United National Bank
151 Firstrust Savings Bank
416 Fleetwood Bank
291 Fox Chase Bank
241 Franklin Mint Federal Credit Union
58 Fulton Bank, NA

Bank Code G.

498 Greenville Savings Bank

Bank Code H.

244 Hamlin Bank & Trust Company
362 Harleysville Bank
363 Hatboro Federal Savings
463 Haverford Trust Company (The)
678 HINGHAM INSTITUTION FOR SAVINGS
606 Hometown Bank of Pennsylvania
68 Honesdale National Bank (The)
605 Huntington National Bank (The)
608 Hyperion Bank

Bank Code I.

365 InFirst Bank
668 Inspire FCU
557 Investment Savings Bank
526 Iron Workers Savings Bank

Bank Code J.

127 Jim Thorpe Neighborhood Bank
488 Jonestown Bank & Trust Company
191 Journey Bank
659 JPMorgan Chase Bank, NA
72 JUNIATA VALLEY BANK (THE)

Bank Code K.

651 KeyBank NA
414 Kish Bank

Bank Code L.

499 LinkBank

Bank Code M.

361 M&T Bank
510 Marion Center Bank
387 Marquette Savings Bank
367 Mauch Chunk Trust Company
511 MCS (Mifflin County Savings) Bank
641 Members 1st Federal Credit Union
555 Mercer County State Bank
192 Merchants Bank of Bangor
671 Merchants Bank of Indiana
610 MERIDIAN BANK
294 Mid Penn Bank
677 Middletown Valley Bank
457 Milton Savings Bank

Bank Code N.

433 National Bank of Malvern
168 NBT Bank, NA
347 Neffs National Bank (The)
434 NEW TRIPOLI BANK
15 NexTier Bank, NA
666 Northern Trust Co.
93 Northwest Bank

Bank Code O.

653 OceanFirst Bank
489 OMEGA Federal Credit Union
94 Orrstown Bank

Bank Code P.

598 PARKE BANK
40 Penn Community Bank
540 PennCrest Bank
419 Pennian Bank
447 Peoples Security Bank & Trust Company
556 Philadelphia Federal Credit Union
448 Phoenixville Federal Bank & Trust
665 Pinnacle Bank
79 PNC Bank, NA
449 Port Richmond Savings
451 Progressive-Home Federal Savings & Loan Association
637 Provident Bank
491 PS Bank

Bank Code Q.

107 QNB Bank
560 Quaint Oak Bank

Bank Code R.

452 Reliance Savings Bank

Bank Code S.

153 S & T Bank
316 Santander Bank, NA
460 Second Federal S & L Association of Philadelphia
646 Service 1st Federal Credit Union
458 Sharon Bank
462 Slovenian Savings & Loan Association of Franklin-Conemaugh
486 SOMERSET TRUST COMPANY
633 SSB Bank

Bank Code T.

638 3Hill Credit Union
143 TD Bank, NA
656 Tioga Franklin Savings Bank
182 Tompkins Community Bank
660 Top Tier FCU
609 Tristate Capital Bank
672 Truist Bank
640 TruMark Financial Credit Union

Bank Code U.

483 UNB Bank
481 Union Building and Loan Savings Bank
634 United Bank, Inc.
472 United Bank of Philadelphia
475 United Savings Bank
600 Unity Bank
232 Univest Bank & Trust Co.

Bank Code V.

611 Victory Bank (The)

Bank Code W.

119 Washington Financial Bank
121 Wayne Bank
676 Webster Bank
631 WELLS FARGO BANK, NA
553 WesBanco Bank, Inc.
494 West View Savings Bank
473 Westmoreland Federal S & L Association
272 Woodlands Bank
573 Woori America Bank
630 WSFS (Wilmington Savings Fund Society), FSB

Bank Code X.

Bank Code Y.

Bank Code Z.

PLATINUM LEADER BANKS

The **HIGHLIGHTED ELIGIBLE INSTITUTIONS** are Platinum Leader Banks—Institutions that go above and beyond eligibility requirements to foster the IOLTA Program. These Institutions pay a net yield at the higher of 1% or 75 percent of the Federal Funds Target Rate on all PA IOLTA accounts. They are committed to ensuring the success of the IOLTA Program and increased funding for legal aid.

IOLTA EXEMPTION

Exemptions are not automatic. If you believe you qualify, you must apply by sending a written request to the IOLTA Board's executive director: 601 Commonwealth Avenue, Suite 2400, P.O. Box 62445, Harrisburg, PA 17106-2445. If you have questions concerning IOLTA or exemptions from IOLTA, please visit their website at www.paiolta.org or call the IOLTA Board at (717) 238-2001 or (888) PAIOLTA.

FINANCIAL INSTITUTIONS WHO HAVE FILED AGREEMENTS TO BE APPROVED AS A DEPOSITORY OF TRUST ACCOUNTS AND TO PROVIDE DISHONORED CHECK REPORTS IN ACCORDANCE WITH RULE 221, Pa.R.D.E.

New

682 Emigrant Bank

Name Change

499 Gratz Bank (change to 499 LinkBank)

Platinum Leader Change

Correction

Merger/Acquisition

294 MidPenn Bank (acquired 629 1st Colonial Community Bank)
121 Wayne Bank (acquired 354 Presence Bank)

Removal

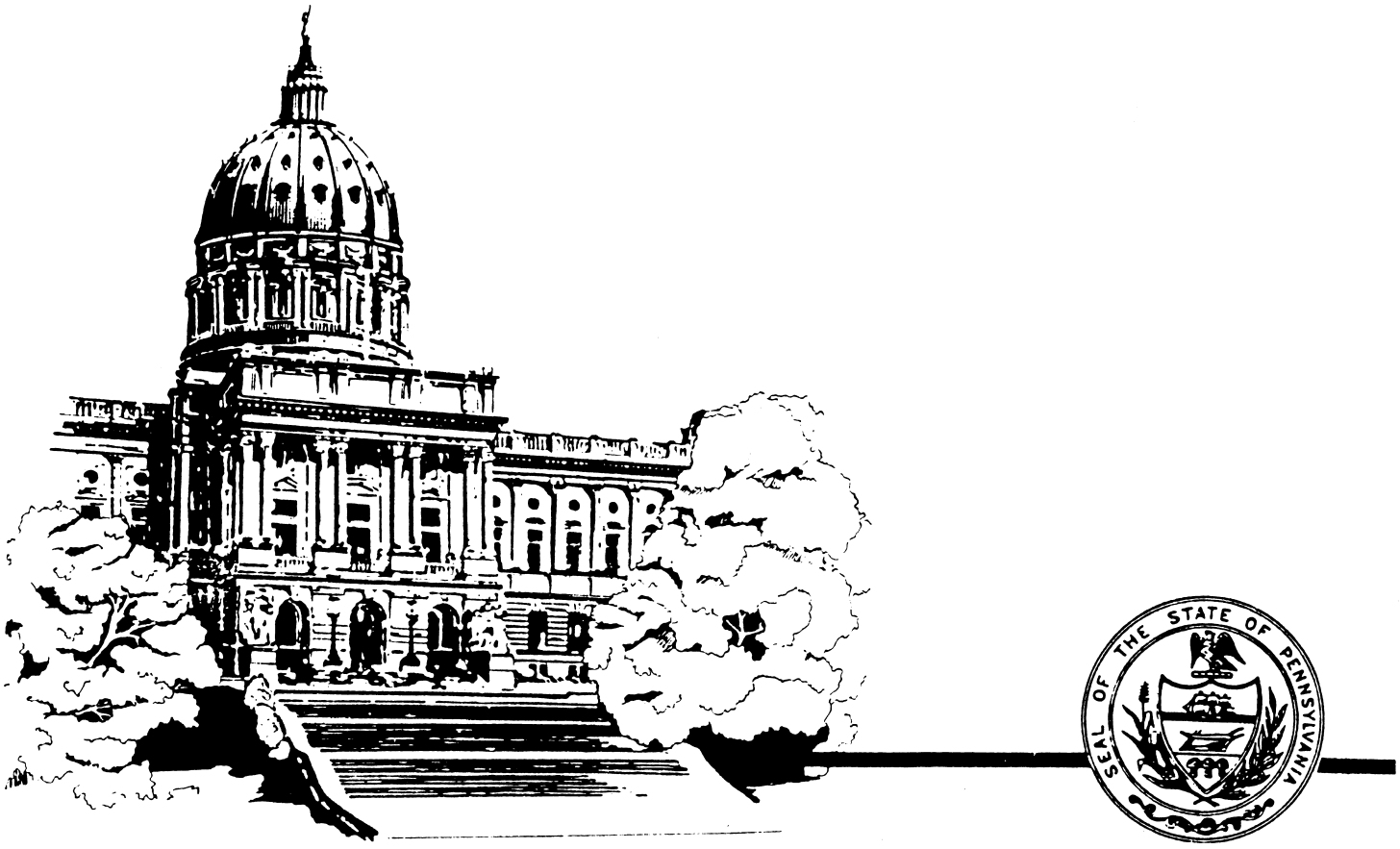
[Pa.B. Doc. No. 26-654. Filed for public inspection May 8, 2026, 9:00 a.m.]

PENNSYLVANIA BULLETIN

Volume 56 Number 19
Saturday, May 9, 2026 • Harrisburg, PA

Part II

This part contains
the Proposed Rulemaking



PROPOSED RULEMAKING

STATE BOARD OF NURSING

[49 PA. CODE CH. 21]

Licensed Practical Nurse Pronouncement of Death

The State Board of Nursing (board) proposes to amend §§ 21.145 and 21.145a (relating to functions of the LPN; and prohibited acts) to read as set forth in Annex A.

Effective Date

This proposed rulemaking will be effective upon publication of the final-form rulemaking in the *Pennsylvania Bulletin*.

Statutory Authority

Section 17.6 of the Practical Nurse Law (PN Law) (63 P.S. § 667.6) sets forth the board's general rulemaking authority. The act of October 31, 2024, (P.L. 1140, No. 137) (Act 137 of 2024) added section 508 of the Vital Statistics Law of 1953 (VSL) (35 P.S. § 450.508) to authorize licensed practical nurses (LPN) to pronounce death in this Commonwealth under certain circumstances. Section 508(g) of the VSL authorizes the board to promulgate regulations implementing Act 137 of 2024.

Under section 508(a) of the VSL, an LPN is authorized to pronounce death provided: (1) the patient is in the care of a licensed hospice, (2) the patient has a valid Do Not Resuscitate Order (DNR), (3) the LPN had conducted a focused assessment identifying cessation of circulatory and respiratory functions as provided under section 3 of the Uniform Determination of Death Act (35 P.S. § 10203) and (4) the LPN meets the training requirements in section 508(e) of the VSL. Additionally, under section 508(b) and (c) of the VSL, an LPN is authorized to release the body of the deceased to a funeral director or a county coroner, depending on whether the circumstances require a coroner's investigation.

Background and Purpose

Prior to the recent amendment to the VSL, the authority to pronounce death in a home hospice setting was limited to registered nurses (RN), physicians, physician assistants and coroners. As a practical matter, that means that an LPN, who is often present and delivering end-of-life care to hospice patients, has to contact an RN and wait for the RN's arrival for the deceased to be pronounced dead, the family contacted, if they are not present, and the body released to a funeral director or county coroner. This approach is not practical or efficient. Moreover, it is not compassionate to grieving families to wait, sometimes for hours, for the RN to arrive to have their loved one removed.

While regulations are not required for LPNs to pronounce death and release a deceased's remains once the specified training is provided by the hospice, section 508(g) of the VSL authorizes the board to promulgate regulations implementing Act 137 of 2024. This proposed rulemaking will provide clarity to the board's licensees, as well as funeral directors and coroners.

Engagement with Stakeholders

The board began discussions about the regulation after Act 137 of 2024 was enacted. A draft of the regulations was discussed at the board's December 12, 2024, January 22, 2025, and March 6, 2025, meetings. On April 15, 2025, the board sent an exposure draft of the proposal out to stakeholder groups and individuals who indicated an interest in the board's regulatory agenda.

The board received four comments, which the board reviewed at its meeting on September 5, 2025. All but one of the comments, including one from the Pennsylvania State Nurses Association, supported the proposal. The Associate Dean of Harrisburg Area Community College's School of Health Sciences commented that the training requirements may not be adequate for LPN pronouncement in different scenarios and that the conditions for LPN pronouncement might be misinterpreted.

The board considered the comments received at its September 5, 2025, meeting. Because the training requirements are statutorily mandated, the board does not have the discretion to require more than that required in the VSL. Following discussion at that meeting, the board voted to adopt the regulation in proposed form.

Description of the Proposed Amendments

In light of Act 137 of 2024, the board is proposing to amend § 21.145 by adding subsection (h), which includes the four requirements in section 508(a) of the VSL as well as the minimum 3 hours of training from the hospice in vital signs, postmortem care, grief and circumstances requiring a coroner's investigation as required by section 508(e) of the VSL. The board also proposes to amend § 21.145 by adding subsection (i) to address when an LPN may release the body of a deceased patient in the care of a licensed hospice to a funeral director or coroner. Release to a funeral director follows notification to the attending physician or certified registered nurse practitioner and the family when the circumstances surrounding the nature of the death are anticipated and do not require a coroner's investigation. Otherwise, release requires an investigation into the cause of death and must be made to a coroner.

Finally, the board proposes to amend § 21.145a by adding subsection (b) to clarify the prohibition set forth in section 508(d) of the VSL that even when authorized to pronounce death, LPNs are prohibited from determining the cause of death.

Fiscal Impact and Paperwork Requirements

This proposed rulemaking will have no fiscal impact on and will not add any paperwork requirements to the board or LPNs. The additional hours of training required by section 508(e) of the VSL are provided and tracked by hospices as part of their documentation of compliance with the VSL in the event of an audit or an inspection by the Department of Health without any involvement from the board.

Sunset Date

The board continuously monitors the effectiveness of its regulations. Therefore, no sunset date has been assigned.

Regulatory Review

Under section 5(a) of the Regulatory Review Act (71 P.S. § 745.5(a)), on Wednesday, April 22, 2026, the board submitted a copy of this proposed rulemaking and a copy of a Regulatory Analysis Form to the Independent Regulatory Review Commission (IRRC) and to the chairpersons of the Consumer Protection and Professional Licensure Committee of the Senate and the chairpersons of the Professional Licensure Committee of the House of Representatives. A copy of this material is available to the public upon request.

Under section 5(g) of the Regulatory Review Act, IRRC may convey comments, recommendations or objections to the proposed rulemaking within 30 days of the close of the public comment period. The comments, recommendations or objections must specify the regulatory review criteria in section 5.2 of the Regulatory Review Act (71 P.S. § 745.5b) which have not been met. The Regulatory Review Act specifies detailed procedures for review prior to final publication of the rulemaking by the board, the General Assembly and the Governor.

Public Comment

Interested persons are invited to submit written comments, suggestions or objections regarding this proposed rulemaking to Regulatory Counsel, State Board of Nursing, P.O. Box 69523, Harrisburg, PA 17106-9523, RA-STRegulatoryCounsel@pa.gov, within 30 days following publication of this proposed rulemaking in the *Pennsylvania Bulletin*. Reference 16A-5151 (LPN Pronouncement of Death) when submitting comments.

COLBY P. HUNSBERGER, DNP, RN,
Chairperson

Fiscal Note: 16A-5151. No fiscal impact; recommends adoption.

Annex A

TITLE 49. PROFESSIONAL AND VOCATIONAL STANDARDS

PART I. DEPARTMENT OF STATE

Subpart A. PROFESSIONAL AND OCCUPATIONAL AFFAIRS

CHAPTER 21. STATE BOARD OF NURSING

Subchapter B. PRACTICAL NURSES

GENERAL PROVISIONS

§ 21.145. Functions of the LPN.

* * * * *

(g) An LPN who has met the education and training requirements of § 21.145b (relating to IV therapy curriculum requirements) may perform the following IV therapy functions, except as limited under § 21.145a and only under supervision as required under subsection (f):

* * * * *

(13) Collection of blood specimens from an IV access device.

(h) An LPN may pronounce death if all of the following are met:

(1) The LPN is employed by a licensed hospice in the direct care of patients of the hospice.

(2) The patient is in the care of a licensed hospice.

(3) The patient has a valid Do Not Resuscitate Order issued in accordance with the laws of the Commonwealth.

(4) The LPN has conducted a focused assessment to identify the cessation of circulatory and respiratory functions as provided under section 3 of the Uniform Determination of Death Act (35 P.S. § 10203).

(5) The LPN has met the training requirements under section 508(e) of the Vital Statistics Law of 1953 (35 P.S. § 450.508(e)), including a minimum of 3 hours of training annually from the hospice on vital signs to determine cessation of circulatory and respiratory function, postmortem care, grief and circumstances requiring a coroner's investigation.

(i) An LPN who meets the qualifications under subsection (h) may release the body of a deceased patient in the care of a licensed hospice to one of the following, as applicable:

(1) A funeral director after notice has been given to the attending physician or certified registered nurse practitioner (CRNP), if the deceased has an attending physician or CRNP, and to the family as soon as practicable, if the circumstances surrounding the nature of the death do not require a coroner's investigation.

(2) The county coroner if the circumstances surrounding the nature of the death are not anticipated and require a coroner's investigation.

§ 21.145a. Prohibited acts.

(a) An LPN may not perform the following IV therapy functions:

* * * * *

(15) Direct access of implantable devices.

(b) Even when authorized to pronounce death under § 21.145(h) (relating to functions of the LPN), an LPN is prohibited from determining the cause of a patient's death.

[Pa.B. Doc. No. 26-655. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF HUMAN SERVICES

[55 PA. CODE CHS. 3800, 3900, 3910 AND 3920]

Residential Services for Children and Youth

Statutory Authority

Notice is hereby given that the Department of Human Services (department) under the authority of sections 911(a)(1) and 1021(a)(1) of the Human Services Code (62 P.S. §§ 911(a)(1) and 1021(a)(1)) intends to adopt the regulations set forth in Annex A.

Purpose of Regulation

The department is proposing to update the licensure requirements for children and youth facilities. Specifically, the department is proposing to revise Chapter 3800 (relating to child residential and day treatment facilities) to clarify that Chapter 3800 does not apply to child residential facilities or secure residential and secure detention facilities for youth. Instead, the department proposes to establish three, up-to-date regulatory licensure chapters for children and youth facilities as Chapters 3900, 3910 and 3920 (relating to child and youth facility requirements; child residential facilities; and secure residential and secure detention facilities for youth).

The purpose of this proposed rulemaking is to update requirements to strengthen and improve the minimum health and safety standards for these facilities to protect the health, safety and well-being of children and youth receiving care in residential facilities. For example, this proposed rulemaking increases staffing patterns, staffing

ratios and training requirements to increase the skill set and awareness of the staff directly working with children and youth in these facilities. Better trained facility staff will be more effectively positioned and prepared to respond to the needs of the children and youth. Further, enhanced staffing requirements will decrease risks to the children, youth and staff by increasing levels of supervision and accessibility and supporting appropriate responsiveness.

In addition, this proposed rulemaking incorporates additional practice, policy and statutory changes that have occurred over the past 26 years since the existing Chapter 3800 regulations were first promulgated. This proposed rulemaking also provides a coordinated regulatory framework to support compliance and consistency in the formulation, application and enforcement of licensing requirements. These proposed changes reflect advances in research and practice responsive to the current needs presented by children requiring this level of care. This proposed rulemaking also incorporates enhanced standards for service delivery focused on supporting positive outcomes.

All children and youth facilities seeking to operate in this Commonwealth will be required to comply with provisions of Chapter 20 (relating to licensure or approval of facilities and agencies) and Chapter 3900. In addition, child residential facilities, including specialized settings for pregnant, expecting and parenting youth and outdoor programs will be required to also comply with Chapter 3910. All secure residential and secure detention facilities for youth will also be required to comply with Chapter 3920 requirements. Creating the separate, but related, Chapter 3920 regulations allows for incorporation of current practices and expectations specific to juvenile offenders.

Background

Child welfare and juvenile justice practice is a continually evolving area of service that requires the implementation of new programs and practices to respond to the changing needs of children, youth, their families and communities to produce better outcomes for everyone involved. The proposed regulatory chapters are needed to ensure that regulatory requirements are relevant and appropriate, reflect advances in both research and practice, and are responsive to the current needs presented by the children and youth requiring this level of care.

These proposed regulatory provisions will significantly amend and update regulatory requirements under current Chapter 3800, which was adopted in 1999. Since their promulgation, there have been significant changes in the techniques, interventions and knowledge base needed to effectively respond to the needs of children and youth in care. As discussed in further detail under the requirements sections, Chapters 3900, 3910 and 3920 propose to update these minimum health and safety requirements to more effectively serve the children and youth in care.

The following is a summary of the specific provisions in this proposed rulemaking in Chapters 3800, 3900, 3910 and 3920:

Chapter 3800. Child Residential and Day Treatment Facilities

§ 3800.1—Purpose

Under § 3800.1 (relating to purpose), this rulemaking proposes to remove child residential facilities, including secure residential and secure detention facilities, from the purpose section of the chapter. As proposed, Chapter 3800 will apply to transitional living residences and child treatment centers until amended in a forthcoming rulemaking. The title of the chapter is also proposed to be renamed as Transitional Living Residences and Child Day Treatment Facilities.

§§ 3800.2 and 3800.3—Applicability; and Exemptions

As provided previously, the department proposes to rename and revise Chapter 3800 to clarify that the chapter will no longer apply to either child residential facilities or secure residential and secure detention facilities for youth. Under § 3800.2 (relating to applicability), this rulemaking proposes to reserve subsection (d)(1)—(3) and (6), with Chapter 3800 applying only to those facilities under subsection (d)(4) and (5). The department also proposes to reserve the secure care and secure detention sections of Chapter 3800; specifically, §§ 3800.271—3800.274 and 3800.281—3800.283. In addition, this rulemaking proposes to add two paragraphs under § 3800.3 (relating to exemptions) that explicitly provide that Chapter 3800 does not apply to these facilities.

In addition, under § 3800.2, the department proposes a change to subsection (d)(3) regarding mobile settings. The department proposes to remove the authority for mobile child residential facility settings. Specifically, outdoor programs will be incorporated into Chapters 3900 and 3910, and Chapter 3800 will no longer authorize mobile settings. The department proposes to reserve the outdoor and mobile program sections of Chapter 3800; specifically, §§ 3800.301—3800.303 (relating to applicability; exceptions for outdoor and mobile programs; and additional requirements). The provisions relating to outdoor programs are moving to Chapter 3900, and the department will no longer license mobile programs as there has not been recent utilization of this model.

No additional amendments are proposed to Chapter 3800 in relation to child day treatment centers and transitional living residences in this rulemaking. These provisions, among others, will be revised in a subsequent rulemaking.

§ 3800.5—Definitions

The department proposes to delete the definitions of "mobile program," "outdoor program," "secure care" and "secure detention" from Chapter 3800.

Chapter 3900. Child and Youth Facility Requirements

Subchapter A. General Provisions (§§ 3900.1—3900.5)

§ 3900.1—Purpose

In § 3900.1 (relating to purpose), the department proposes language consistent with § 3800.1.

§ 3900.2—Applicability

In § 3900.2 (relating to applicability), the department proposes to set forth the scope of applicability of this new chapter. The proposed language tracks current language in § 3800.2. Specifically, this proposed rulemaking applies to child residential facilities and secure residential or secure detention facilities for children and youth.

In addition, proposed language in § 3900.2(d)(3) and (4) identifies that this chapter will also apply to emergency shelter programs and child residential specialized settings facilities that serve pregnant, expecting and parenting youth and their infants and toddlers reflecting the redefined scope.

§ 3900.3—Exemptions

In § 3900.3 (relating to exemptions), the department is proposing to offer clarity in a revised list of programming and facilities to be exempted from requirements of proposed Chapter 3900. The list of exemptions in § 3900.3(1)—(10) is consistent with those listed in § 3800.3(1)—(9). Language identifying child day care facilities as an exemption addressed in § 3800.3(10) is not included as these facilities are not a residential option for children. Proposed language in § 3900.3(11) carries over the intent of § 3800.3(11) with a minor change to add clarification.

§ 3900.4—Inspections and certificates of compliance

In § 3900.4 (relating to inspections and certificates of compliance), the department is proposing to carry over language from § 3800.4(a) and (b) (relating to inspections and certificates of compliance). In § 3900.4(c), the department proposes additional language that clarifies that distinct programming provided on separate floors or in discrete residential living units within a building is considered a separate facility for purposes of qualifying for a separate certificate of compliance. This clarification confirms that the configuration of separate and discrete program areas within a common building may qualify for designation as a separate facility and a separate certificate of compliance.

§ 3900.5—Definitions

In § 3900.5 (relating to definitions), the department is proposing definitions for terminology used throughout the chapter. Many definitions included in § 3900.5 have been carried over from § 3800.5 (relating to definitions).

Subchapter B. General Requirements (§§ 3900.11—3900.23)

§ 3900.11—Licensure or approval of a facility

In § 3900.11 (relating to licensure and approval of a facility), the department proposes to mirror language in § 3800.11(a) (relating to licensure or approval of facilities) including that all requirements of Chapter 20 must be met.

New requirements are proposed in § 3900.11(b) and (c). In subsection (b), the legal entity responsible for the facility must ensure that the facility is organized, administered and operated in a manner that ensures compliance with the requirements of this chapter. This proposed requirement addresses facility management responsibility to monitor overall facility operations to support regulatory compliance. In subsection (c), proposed language addresses requirements of facility management to conform with all Federal and State statutes, regulations and local ordinances relating to health, safety and rights. This includes compliance with the Department of Labor and Industry's Uniform Construction Code requirements at 34 Pa. Code Part XIV (relating to Uniform Construction Code).

§ 3900.12—Appeals

In § 3900.12 (relating to appeals), the department is proposing language consistent with § 3800.12 (relating to appeals). This requirement establishes that a facility must file an appeal within 10 days of a licensing determination made by the department. The department is proposing to maintain current regulatory language and existing practice.

§ 3900.13—Maximum capacity

In § 3900.13 (relating to maximum capacity), the department is proposing language consistent with § 3800.13 (relating to maximum capacity).

§ 3900.14—Fire safety approval and notifications

In § 3900.14 (relating to fire safety approval and notifications), the department is proposing language consistent with § 3800.14 (relating to fire safety approval), with minor changes to support clarity. Proposed language in § 3900.14(d) will require facility staff to notify local fire officials in writing of the address of the facility, location of bedrooms and assistance needed to evacuate in an emergency. The notification must be kept current and a copy made available to the department upon request. This new requirement reflects stakeholder input and presents an additional protective child and youth safety component.

§ 3900.15—Child abuse

In § 3900.15 (relating to child abuse), the department is proposing language consistent with the child abuse reporting requirements addressed in § 3800.15(a) (relating to child abuse).

Proposed language in § 3900.15(b) expands upon language in § 3800.15(b) to address confusion expressed by stakeholders related to the initiation of a plan of supervision if an alleged perpetrator is employed or contracted by the facility. If an allegation of child abuse involves an individual employed or contracted by the facility, the facility management must implement and then submit a plan of supervision to the department regional office in accordance with 23 Pa.C.S. § 6368(i) (relating to investigation of reports) and § 3490.56(b) (relating to county agency investigation of suspected child abuse perpetrated by persons employed or supervised by child care services and residential facilities). This requirement clearly addresses the steps to be taken by facility management in developing and implementing a plan of supervision and then submitting it to the department for review and approval. This proposed change reflects requirements of 23 Pa.C.S. Chapter 63 (relating to Child Protective Services Law) (CPSL) and current practice and offers immediate safeguards for children and youth by removing direct exposure to a facility employee identified as an alleged perpetrator.

§ 3900.16—Reportable incidents

In § 3900.16 (relating to reportable incidents), the department is proposing to carry over language and expand the listing of incidents to reflect current practice requirements. Proposed language in this section serves to clarify and update situations requiring a facility to report an event as a reportable incident and the process to be used to submit reportable incidents to the department. Proposed language in § 3900.16(a) identifies reportable incidents as those occurring at the facility or while the child or youth is under the supervision of the facility staff in the community, to differentiate from those incidents occurring while the child is at school or under the supervision of another adult.

The proposed language in subsection (a) carries over the reportable incidents included in § 3800.16(a)(1) and (2) (relating to reportable incidents) as reflected in § 3900.16(a)(1) and (2). Language proposed in § 3900.16(a)(3) adds to the current language in § 3800.16(a)(3) to include inpatient admission and treatment as a reportable incident in response to stakeholder input. A minor change is proposed to § 3800.16(a)(4) to add outpatient treatment at an urgent care center in addition to a hospital as reflected in § 3900.16(a)(4). This proposed change updates options for outpatient treatment for injuries or trauma beyond what is addressed in § 3800.16(a)(4) to include the option of urgent care center as now being available for outpatient treatment.

A new reportable incident is proposed in § 3900.16(a)(5) to address requirements proposed in §§ 3900.41 and 3900.42 (relating to person and property searches; and appropriate use of person and property searches). This new incident identifies a body cavity search of a child or youth conducted by medical personnel as addressed in § 3900.41(c) and (d) as a cause for a report to be made to the department.

Language proposed in § 3900.16(a)(6) varies from the language in § 3800.16(a)(5). The proposed language clarifies that only substantiated violations of a child's rights as delineated in § 3900.32 (relating to specific rights) are to be reported to the department following the filing of a grievance by the child or youth and investigation by the facility as addressed in § 3900.31 (relating to notification of rights and grievance procedures) to decrease the number of unsubstantiated reports submitted.

In § 3900.16(a)(7), the department is proposing language consistent with § 3800.16(a)(6). In § 3900.16(a)(8) and (9), there are proposed changes that include immediate reporting of a child's or youth's absence from the facility premises without facility staff knowledge or awareness of the child's or youth's whereabouts. Facility staff must notify law enforcement of a missing child or youth as soon as the determination is made that the child or youth is missing, removing the 4-hour allowance before making a report that is in § 3800.16(7). An incident report is also required if a child or youth does not return as planned from a scheduled family home visit and facility staff are unable to contact adult family members to identify child's or youth's status or plans to return to the facility. Stakeholders, including juvenile probation staff, requested these updates.

Two additional proposed reportable incidents are to be carried over from § 3800.16(a)(8) and (9) in § 3900.16(a)(10) and (11).

Stakeholder input supports a minor addition to § 3800.16(a)(10) as reflected in § 3900.16(a)(12), which identifies an event that results in emergency services, including but not limited to law enforcement or fire services being called to the facility as a reportable incident. Proposed language in this section clarifies that those incidents requiring emergency services including fire or police departments must be reported as incidents if these services are called to the facility to differentiate from situations where community practices automatically dispatch police or fire upon calls for an ambulance service.

The proposed reportable incident language in § 3900.16(a)(13) is consistent with § 3800.16(a)(11).

In § 3900.16(b), the department is proposing a requirement that facility staff also notify law enforcement as soon as a determination is made that a child or youth is missing.

Based on stakeholder input, in addition to filing a reportable incident report, proposed language in subsection (c) will require facility staff to make an oral report to the appropriate department regional office and the contracting agency within 12 hours of an incident listed in paragraphs (1)—(3). Slight modifications are proposed to add updated language in subsection (f) to include an oral and written report be required for a child or youth whose whereabouts are unknown to facility staff and the child or youth is identified as missing.

In subsection (d), the department proposes a requirement for facility staff to make an oral report to the appropriate department regional office and the contracting agency following implementation of mitigation efforts to meet the needs of the children and youth in the event of a disruption in access to water, heat, cooling or power. This proposed requirement is in response to stakeholder input and the need for the department to be made aware of significant changes in the facility management's ability to respond to the basic needs of the children and youth.

In § 3900.16(e), the department is proposing a requirement for facility staff to orally notify the contracting juvenile probation office (JPO) as soon as it is determined that a child or youth under their supervision has not returned as planned from a scheduled home pass or if the child or youth has failed to comply with the home pass provisions. Documentation of date, time and persons involved in this conversation must be maintained in the child's file. This new requirement is in response to input from stakeholders and the need for juvenile probation staff to be aware of the whereabouts of children and youth under their supervision.

The department is proposing to carry over language consistent with § 3800.16(c) in § 3900.16(f) with minor modification. In addition to the verbal reports required in the previous subsections, facility staff will be required to complete a written report in the department's prescribed format for all reportable incidents and then electronically submit the report to the department within 24 hours.

As proposed in § 3900.16(g), facility staff will be required to initiate an investigation of a reportable incident immediately following the report of the incident and must, within 5 business days, provide the department with a timeline and plan, including a projected date for completion of the investigation. This language adds a time frame for notification to the department of the investigation plan within 5 business days for reportable incidents other than suspected child abuse. This language modifies the requirement from § 3800.16(e). The current language in § 3800.16(f) only requires that a final reportable incident report be submitted to the department at the conclusion of the investigation. Incidents of suspected child abuse will still need to be reported to the department using the prescribed process under the CPSL, which is currently through ChildLine.

The proposed language in § 3900.16(h) would require facility management to develop written policies and procedures on the prevention, reporting, investigation and management of reportable incidents, including a post-incident debriefing process. This will establish the internal facility protocols needed to support compliance with the new and carried over requirements proposed in the various subsections of § 3900.16.

In subsection (i), a written debriefing summary is being proposed as a required part of the internal facility investigation process. This summary is to specifically identify and address the cause and resolution of the incident. Facility staff will be required to complete a written summary of the debriefing meeting following the investigation of each incident to identify staffing, training, physical site or program-related components pertaining to the cause and resolution of the incident. The department has identified this debriefing process as a mechanism to support internal review of policies, procedures and actions taken, and address potential remedies to avoid future reportable incidents. Debriefing is recognized as a valuable tool to address management of critical incidents as it enables participants to emotionally process the event and analyze the decisions they made and their outcomes. This facilitates learning and improving how individuals respond to future situations.

Subsection (j) will require facility staff to incorporate the debriefing findings and related data into the facility quality improvement process. These findings are to be incorporated into data compiled and quality improvement plans developed by the facility. While not prescribing the format or content, the department believes that this requirement will support responsive and quality improvement planning within each facility.

In subsection (k), the department is proposing that facility staff be required to submit a final reportable incident report in the department's prescribed format that includes the debriefing summary following the conclusion of the investigation. Final notification to the department of the investigation's findings, debriefing outcomes and modifications made to facility policies and procedures as part of the quality improvement plan will support the department's review of the reported incident. This proposed requirement expands the current final report submission process addressed in § 3800.16(f).

Subsection (l) of § 3900.16 carries over language consistent with § 3800.16(g) while adding additional detail for clarification as to where copies of the reportable incidents are to be kept. Facility staff will be required to maintain a copy of reportable incident reports in the child's or youth's file, if applicable, and in the facility's administrative files. This proposed language adds additional clarity as to the locations that incident reports are to be maintained.

Lastly, the language in § 3900.16(m) is consistent with existing § 3800.16(h).

§ 3900.17—Recordable incidents

In § 3900.17 (relating to recordable incidents), the department is proposing three events currently listed as recordable incidents in § 3800.17 (relating to recordable incidents) be maintained. These include seizures in § 3900.17(a)(1), suicidal gestures in § 3900.17(a)(2) and any incident of intentionally striking or physically injuring a child that does not involve a facility staff person in § 3900.17(a)(3). Proposed language consistent with § 3800.17(3) has been modified in § 3900.17(a)(3) to add clarity. If the perpetrator is a facility staff or other adult responsible for the care and supervision of the child or youth, incidents of intentionally striking or physically injuring a child or youth result in a written report of suspected child abuse being submitted to and investigated by the department. However, if the action is initiated by any individual who is not facility staff or other adult responsible for the care and supervision of a child or youth, a recordable incident report is to be maintained in the facility's administrative files and in the child's or youth's record. A report may also be filed with law enforcement if circumstances warrant a report being made.

The department is proposing language to add an additional recordable incident in § 3900.17(a)(4) addressing grievances filed by a child or youth or their parent determined to be unsubstantiated. This record of alleged violation of the child's or youth's rights will support review by the department and provide documentation of the steps taken by facility management to thoroughly investigate all grievances filed as addressed in §§ 3900.31 and 3900.32.

The department is proposing language to identify how and where these events are to be recorded in § 3900.17(a) which indicates that a recordable incident electronic log is to be maintained by the facility and the information related is also to be recorded in the individual child's and youth's record as addressed in subsection (b) and as part of § 3900.203 (relating to content of records), making the information more child specific and accessible.

The proposed language in § 3900.17 does not include three events which are currently in § 3800.17 as they are proposed to be eliminated as recordable incidents. The department is proposing this change as this information will now be captured in more relevant and accessible locations. Property damage of more than $500 caused by the child or youth, currently included as a recordable incident in § 3800.17(4), is now to be documented in a written report in the child's or youth's individual service plan (ISP) and record as a report filed with law enforcement if circumstances warrant a report being made. This is referenced in § 3900.191(c)(15) (relating to content of the ISP) and § 3900.203(a)(11).

Requiring a report to be made to law enforcement when the whereabouts of a child or youth are unknown to facility staff negates the process currently addressed in § 3800.17(5) requiring a child's or youth's absence not approved by facility staff to be documented as a recordable incident. Copies of reports of a missing child or youth are now to be included in the child's or youth's record for reference as addressed in § 3900.203(a)(11). This proposed change as part of § 3900.17 reduces duplication of reporting requirements and supports inclusion of child or youth specific documentation in the child's or youth's record, while still meeting the original intent of the regulation in § 3800.17(5) for the facility to maintain a record of these events.

Language proposed in § 3900.203(2) will require that all medical information related to a child's or youth's health history be included as part of the child's or youth's record. This proposed change supports integrating injuries, traumas and illnesses of children and youth which occur at the facility that do not meet the definition of "reportable incident" in § 3900.16 to be addressed as a recordable incident in § 3800.17(6). The anticipated result will be complete health information specific to a child or youth being contained in one location as addressed in § 3900.203.

§ 3900.18—Child and youth funds

In § 3900.18 (relating to child funds), the department is proposing to maintain the requirements addressed in § 3800.18 (relating to child funds). Based on input from juvenile justice stakeholders, the department is proposing several additional requirements in § 3900.18(g)(1)—(5) specifically for facilities serving youth who are adjudicated delinquent. Facility management will need to develop and implement policies and procedures to ensure compliance with any restrictions to the child's or youth's access to personal funds imposed by the contracting JPO. The proposed language would allow funds to be directed to satisfy restitution orders. Documentation of community service hours completed and the process to credit these hours toward the child's or youth's restitution or community service obligations are addressed in § 3900.18(g)(2) and (3); and monthly notification to the contracting JPO of funds earned and the balance held in the child's or youth's account is also proposed under subsection (g)(4). Finally, there must be a process to address any restrictions to the release of funds upon discharge without the approval of the contracting JPO to consider payment of any outstanding restitution. These proposed additional requirements specific to children or youth who are adjudicated delinquent will allow for review and determinations of available child funds by JPOs to be directed to pay outstanding restitution orders.

§ 3900.19—Consent to treatment

In § 3900.19 (relating to consent to treatment), the department is proposing to mirror § 3800.19 (relating to consent to treatment). Consents for emergency care or treatment are not required; however, the facility management is required to develop an emergency medical plan in § 3900.119 (relating to emergency medical plan) to address the process to be followed in the event of a medical emergency.

§ 3900.20—Confidentiality of records

In § 3900.20 (relating to confidentiality of records), the department is proposing to maintain the listing of applicable statutes and regulations addressing confidentiality of records currently reflected in § 3800.20 (relating to confidentiality of records). In addition, the department is proposing two additional citations be included in the listing in § 3900.20(8) and (9): 20 U.S.C. § 1232g (relating to Family Education Rights and Privacy Act of 1974) and the regulations promulgated thereunder at 34 CFR Part 99 (relating to family educational rights and privacy), which addresses the confidentiality of educational records; and the Health Insurance Portability and Accountability Act of 1996 (HIPAA) (Pub.L. No. 104-191, 110 Stat. 1936).

Consistent with existing language under § 3800.20(b)(2), this proposed rulemaking provides that information may also be released to a youth (14 years of age or older) unless the information may be harmful to the youth. Stakeholder input supports the language proposed by the department to add additional requirements as reflected in § 3900.20(b)(2)(i) and (ii). These include that the risk of harm to the youth and the decision to withhold information must be agreed to by the contracting agency. The determination to withhold the information must also be documented in writing and maintained in the youth's record.

As part of § 3900.20(c), the department is proposing new language that will require that facility management develop and implement a confidentiality and privacy policy which addresses the process to secure signed releases for photos of children or youth and their use. The privacy policy must also address limitations specific to facility staff and children's or youth's social media activity which may include photos or any identifying information about any child or youth at the facility. This additional requirement addresses consideration of exposure and risk related to the use of technology that was not in existence when the existing Chapter 3800 was promulgated and will provide further safeguards specific to technology and social media risks to the confidentiality of a child or youth while at the facility.

§ 3900.21—Applicable health and safety laws

The department is proposing § 3900.21 (relating to applicable health and safety laws) to be consistent with § 3800.21 (relating to applicable health and safety laws).

§ 3900.22—Emergency preparedness plan

In § 3900.22 (relating to emergency preparedness plan), the department is proposing language that will require the facility management to develop an emergency preparedness plan to prepare for, respond to and recover from a disaster, disease outbreak or other emergency. The plan is to address emergencies that may require a facility to shelter in place or the emergency evacuation to another location and include areas that will address identification of alternate shelter sites; modes of transportation; evacuation routes; maintaining contact with parents and contracting agencies; and special accommodations for infants, toddlers, children and youth with disabilities or chronic medical conditions. The proposed language also requires annual reviews and updates of the emergency preparedness plan; initial and ongoing training for staff; and the sharing of the plan with the department, local municipalities and county emergency management agencies.

§ 3900.23—Waivers

The department is proposing language in § 3900.23 (relating to waivers) to be consistent with § 3800.22 (relating to waivers).

Subchapter C. Rights (§§ 3900.31—3900.33)

§ 3900.31—Notification of rights and grievance procedures

In § 3900.31 (relating to notification of rights and grievance procedures), the department is proposing changes from existing § 3800.31 (relating to notification of rights and grievance procedures) to clarify several provisions. Current language in § 3800.31(a) requires that upon admission, information regarding child rights, the right to lodge grievances without fear of retaliation and applicable consent to treatment protections be provided to each child, youth and available parent. Carrying over the intent of § 3800.31(a), modified language in § 3900.31(1) addresses the responsibilities of facility management and facility staff to guarantee that a child or youth and the child's or youth's family have the right to lodge a verbal or written grievance with the facility without fear of retaliation for an alleged violation of a child's rights as defined in this chapter or a civil right.

Changes proposed in § 3900.31(2)(i) and (ii) will require opportunities for a child or youth and their parent to have access to this information prior to and again at the time of the child's or youth's admission. This includes information regarding their right to lodge grievances without fear of retaliation and applicable consent to treatment protections specified in § 3900.19. Proposed language under § 3900.31(2) requires that this information be reviewed with the child or youth and their parent by facility staff to better support their awareness and understanding. Stakeholder input supports this change given the emphasis on child rights and the desire to better support the child's or youth's ability to exercise the grievance procedures available to them.

A time frame of 48 hours following admission, as outlined in § 3900.31(2)(iii), by which the child's or youth's parent must be informed of the child's rights and grievance process, has been added to ensure that timely notification is provided if the parent is not present at the time of the child's or youth's admission to a facility. These additions support compliance with section 5 of the Children in Foster Care Act (11 P.S. § 2635) which stipulates that a notation must be made in the child's or youth's record to affirm that the child or youth is aware of the grievance policy and procedure and that a copy of the grievance policy and procedure has been provided to the child or youth and their parent.

In § 3900.31(2)(iv), the department is proposing that facility staff be required to provide information and again review the documents related to grievance procedures with the child or youth and parent at the initial ISP meeting to support their understanding of the provisions of this grievance process. This review also includes the right of a child or youth to ask for assistance in filing a grievance at any time as referenced in this subsection. Proposed language elevating attention directed to the

grievance procedures and process also addresses concerns included in the recommendations of the 2022 Grand Jury Report on the Delaware County Juvenile Detention Center. Defining the proposed process clarifies the applicability of these new requirements to all child and youth residential facilities.

Language in § 3900.31(3) is largely consistent with the provisions of § 3800.31(b).

Requirements for posting policies at the facility addressed in § 3800.31(c) have been expanded in § 3900.31(4) to include not only posting and providing copies of grievance procedures, but also discipline policy, person and property search policy, restrictive procedures policy, visitation and contact policy, emergency preparedness plan and applicable consent to treatment protections. This change, supported by stakeholder input, reflects the elevated attention to assuring that youth and their parent are aware of these policies and procedures and have ready access to this information. Clarification that these documents must also be posted in a location at the facility easily visible to facility staff and children is included as part of § 3900.31(4).

Language in § 3900.31(5) and (6) is consistent with § 3800.31(d) and (f) with the addition that documentation of efforts to obtain the signatures is to be maintained in the child's or youth's record.

§ 3900.32—Specific rights

In § 3900.32, the department is proposing to update and expand the language currently included § 3800.32 (relating to specific rights). Current requirements in § 3800.32(a) have been expanded and modified in § 3900.32(a) to include that a child or youth may not be discriminated against because of religious affiliation, gender, gender identity or expression, in addition to criteria listed § 3800.32(a). Further, references to handicap have been deleted as it is captured in disability protection.

Language proposed in § 3900.32(b), identifying that a child or youth may not be subject to harassment, corporal punishment, unreasonable restraint or physical, sexual, emotional or other abuse, reflects statutory language in section 3 of the Children in Foster Care Act (11 P.S. § 2633(3)) and slightly modifies current provisions in § 3800.32(b). Proposed language in § 3900.32(c) expands protections currently in § 3800.32(c) related to the child's right to be treated with respect to include consideration of their racial and ethnic cultural needs and their trauma history, to reflect statutory language related to trauma-informed approaches.

The child's or youth's right to be informed of the facility's rules in existing § 3800.32(d) is proposed to be expanded in § 3900.32(d) to include language addressing the child's or youth's right to be informed of the facility's grievance policy. Grievance procedures are addressed in greater detail in § 3900.31.

Under this proposed section, a child or youth also has the right to be involved in the development of their permanency and transition plans under § 3900.32(e). These plans provide a child or youth with safety, stability, permanence and well-being, including safe housing and opportunities for post-secondary education and training, employment and a stable source of income, health insurance and a plan for future treatment. They also address options to support long-term connections with safe, stable and reliable adults. These considerations reflect practice and policy priorities in developing permanency and transition plans with children and youth.

Section 3900.32(f) also provides a child's or youth's right to receive notification that they may request to remain under the court's jurisdiction under 42 Pa.C.S. Chapter 63 (relating to Juvenile Act) (Juvenile Act) (See, 42 Pa.C.S. § 6351(j) (relating to disposition of dependent child)).

Communication options addressed in § 3800.32(e) are proposed to be updated with language proposed in § 3900.32(g) identifying additional options for a child or youth to communicate with others, including access to and use of technology, electronics and cell phones that were not accessible when Chapter 3800 was promulgated. These communication options remain subject to written limitations imposed by the court or contracting agency regarding circumstances, frequency, time and privacy. The right of a child or youth to visit with family in § 3800.32(f) is proposed to be expanded in § 3900.32(h) to include contact with family members including siblings, with contacts and visits as frequently as possible, consistent with the family service plan and the child's or youth's service plan, but no less than that prescribed by statute or regulation unless prohibited by court order. This change deletes the reference in § 3800.32(f) to required visits being at least once every 2 weeks. This change also reflects current child involvement practice and Federal Child and Family Service Review (www.acf.hhs.gov/cb/monitoring/child-family-services-reviews) criteria supporting the value of frequent contact and maintaining continuity in relationships and achievement of reunification and community reintegration, when that is the child's or youth's discharge goal.

Under § 3900.32(i), a child or youth has the right to receive and send mail unless prohibited by a court order similar to the existing provision under § 3800.32(g). Under this subsection, a child's or youth's incoming mail may not be opened by facility staff unless there is reasonable cause to suspect that contraband or other information or material that poses a risk to the child's or youth's health, safety or well-being may be enclosed. Under these circumstances, the child or youth may open the mail in the presence of facility staff.

Language proposed in § 3900.32(j) expands the right of a child or youth to communicate and visit privately with their attorney and clergy addressed in § 3800.32(h) to also include contracting agency staff, including juvenile probation officers and county children and youth staff. This change was supported by stakeholder input to support the child's ready access to assigned contracting agency staff.

Under § 3900.32(k), the right of a child or youth to have access to contact information of their guardian ad litem, attorney, court-appointed special advocate and members of the integrated services planning team is codified. Proposed subsection (l) further provides the right to contact those persons, notice of and the ability to attend court hearings relating to the child's or youth's case, and to have the opportunity to be heard.

Proposed language in § 3900.32(m) is consistent with § 3800.32(i). Additional regulatory requirements related to this specific right are also proposed under § 3900.41.

In § 3900.32(n), language is proposed to address the right of a child or youth to have meaningful age and developmentally appropriate involvement in case planning, including efforts to successfully transition them to self-sufficiency and adulthood.

The identified right ensuring the child's or youth's educational stability is proposed to be added under

§ 3900.32(o). Language is proposed to address the right of a child or youth to education stability and an appropriate education.

Language proposed in § 3900.32(p) is consistent with § 3800.32(j) with minor modifications. This subsection addresses participation in religious observances and activities and attending religious services of the child's or youth's preference or the religion of the child's or youth's family of origin or culture, as may be reasonably accommodated. The proposed language also addresses a child's or youth's right to choose to not practice or participate in any religious activity.

Language proposed in § 3900.32(q) and (r) expands requirements in § 3800.32(k)—(m) to address a child's or youth's right to appropriate medical, dental, vision, mental health, behavioral health, and drug and alcohol abuse and addiction services, rehabilitation and treatment. This includes information related to services including medication and medication options and the opportunity to communicate a preference regarding a treatment plan, medication or medication options. It also includes the opportunity to consent to medical and mental health treatment consistent with applicable law. This is consistent with the requirements under section 3(7)—(9) of the Children in Foster Care Act. Subsection (r) of § 3900.32 also clarifies that if a child or youth objects to or refuses treatment including medication, their objection must be noted in the child's or youth's record.

Language referenced in § 3800.32(n) is proposed to be mirrored in § 3900.32(s).

The proposed language in § 3900.32(t) carries over the intent of § 3800.32(d) and requires a child or youth to be informed of the facilities discipline policy. This right is also referenced in § 3900.31(4).

Proposed language in § 3900.31(u) is similar to the current provision under § 3800.32(o) indicating that a child or youth has the right to clean, seasonal clothing that is age and gender-expression appropriate.

§ 3900.33—Prohibition against deprivation of rights

In § 3900.33 (relating to prohibition against deprivation of rights), the department is proposing that § 3800.33 (relating to prohibition against deprivation of rights) be mirrored with one minor change. In § 3900.33(c), the department is proposing language addressing the prohibition of visits with family being used as a reward or sanction by expanding the prohibition to also include contacts with family in addition to visits.

Subchapter D. Search of Person and Property (§§ 3900.41—3900.44)

§ 3900.41—Person and property searches

In § 3900.41, the department proposes language addressing the circumstances of a search of a child's or youth's person and property. The department is proposing new provisions under this section to reflect input from a diverse group of stakeholders. These proposed requirements prompting a search are all based on reasonable cause that a child or youth is in possession of an item that is illegal or potentially harmful to the child, youth or others at the facility. These circumstances include consideration of verbal threats or gestures of self-harming behaviors. Searches conducted must balance the need for security in the facility and the child's or youth's expectation of privacy and must reflect the trauma-informed approach adopted by the facility.

Searches deemed necessary based on criteria in § 3900.41(a) must be limited to a level of intrusiveness no greater than what is necessary for facility staff to address concerns as addressed in subsection (b).

Permissible options related to searches at the facility are addressed in subsection (c). The options are presented in the order of least to most intrusive search, which includes searches of a child's or youth's personal property or bedroom which must be conducted in a private and respectful manner in the child's or youth's presence whenever possible. The department is not proposing to require the use of metal detectors or wands. However, if they are available and used by a facility as the initial and least intrusive option for a search of child or youth, they may be used upon the child's or youth's initial entry to the facility or upon returning from a location where weapons or other types of contraband may have been obtained as proposed in subsection (c)(2).

Proposed language in subsection (c)(3) also addresses and defines pat down searches involving physical contact with the child or youth. A pat down search is defined as running of the hands over the clothed body of a child or youth to determine whether they are in possession of a concealed weapon, potentially harmful item or other contraband.

Proposed language in subsection (c)(4) addresses and defines the most intrusive search permitted in this chapter as visual body searches by facility staff that involve the child or youth removing clothing that exposes underwear or private body parts. Visual body searches may be deemed reasonable for a child or youth with a documented history of aggressive or violent behavior, self-harming behavior or threats, or alleged or known access to weapons, potentially harmful items or other types of contraband.

Proposed language in subsection (d) addresses the prohibition of facility staff to conduct a body cavity search of a child or youth. This type of search includes an anal or vaginal cavity. The basis for establishing reasonable cause to suspect that a child or youth is concealing contraband in a body cavity includes observations made during the course of a visual body search; a child's or youth's disclosure that they have contraband in an anal or vaginal cavity; indications that a child or youth is hiding contraband in an anal or vaginal cavity following use of a metal detector; or if a child's or youth's parent discloses to facility staff that the child or youth possesses contraband.

Under subsection (e), body cavity searches are proposed to be added to the list of reportable incidents under § 3900.16(a)(5) and facility staff will now be required to report each body cavity search conducted to the department on the prescribed incident reporting form.

Proposed language in § 3900.41(f) will require facility staff to notify the child's or youth's parent within 4 hours following the submission of a reportable incident relating to a child or youth being subjected to a body cavity search, unless otherwise restricted by confidentiality requirements or court order.

§ 3900.42—Appropriate use of person and property searches

The department, under § 3900.42, is proposing to address specific facility management responsibilities related to search of persons and property.

In § 3900.42(a), proposed language will require facility management to develop and implement policies and pro-

cedures addressing when and how searches of a child's or youth's person or property, and the related seizure of contraband, are deemed appropriate, reasonable and necessary to protect the child or youth and other children or youth at the facility and facility staff.

Language proposed in subsection (b) requires that facility policies and practices limit the intrusiveness of searches to no greater than what is necessary to accomplish the purpose of the search or detect the potentially harmful items or contraband, prior to conducting person and property search procedures.

Proposed language in subsection (c) will require that searches be conducted only if there is reasonable cause to suspect that the child or youth possesses contraband. All searches must be conducted in a way to support minimizing the intrusive effect. These criteria reflect the requirements under § 3900.41.

An additional safeguard proposed in § 3900.42(d) will require the facility staff who suspects the presence of prohibited items and contraband to consult with at least one supervisory facility staff to ensure that the decision to initiate a search is in accordance with facility policy.

In subsection (e), the department is identifying the components that must be included in the facility's search policies and procedures. Proposed language in subsection (e)(1) will require that the facility's search policies and procedures define the types of searches approved for use by approved facility staff. The facility's search policies and procedures must also address how the practices used by the facility align with the principles of the trauma-based approach adopted by the facility as included in subsection (e)(2). Proposed language in subsection (e)(3) addresses the criteria warranting the need for a search, including the reasonable cause to suspect, which must be clear and articulable, and able to be explained verbally or in writing in reasonable and understandable terms.

The facility's policies and procedures must also reflect consideration of a number of factors related to the individual child's or youth's history, age, gender identity and medical conditions as listed in subsection (e)(4).

Requirements proposed in subsection (e)(5) address the specific steps to be taken by facility staff to mitigate the need for a search of hidden contraband prior to initiating a search, including informing the child or youth about the suspicion and asking the child or youth if the suspicion is accurate as a component of the facility's policies and procedures. Facility staff are to remind the child or youth that disclosing the possession of a prohibited item and willingly surrendering it to facility staff will enable the facility staff to help the child or youth potentially avoid the search. Facility policies must reinforce facility staff attempts to anticipate and de-escalate the child's or youth's behavior using methods of intervention less intrusive than search procedures.

Proposed language in subsection (e)(6) requires that a facility's policies and procedures also include elements such as the location where the search will be conducted, and the facility's planned response following the search regardless of whether prohibited items are found, including proactively anticipating the child's or youth's reactions and behaviors. The facility's policies and procedures must reinforce that all searches are to be conducted in a manner that affords respect and privacy for the child or youth, as provided under subsection (e)(7).

Proposed language in subsection (e)(8) addresses a facility's policies and procedures that must include providing a transgender or intersex child or youth the opportunity to request and confirm in writing their preference that staff of a particular gender conduct any pat down or visual search of the child or youth. Facility staff must comply with the child's or youth's request unless circumstances demand immediate action. A deviation from the child's or youth's stated preference as a result must be clearly documented and entered into the child's or youth's record and search log. If a child or youth does not indicate a preference, the staff member of the child's self-identified gender must perform the search. The provisions, under subsection (e)(8) reflect Federal requirements under 34 U.S.C. Chapter 303 (relating to prison rape elimination) and accompanying regulations at 28 CFR 115.215 (relating to limits to cross-gender viewing and searches), which are applicable to facilities for youth adjudicated delinquent. The department is proposing the application of these standards reflecting special sensitivity and consideration of a transgender or intersex child or youth to all facilities licensed under Chapter 3900 as an evolving area of practice and awareness.

Proposed language in § 3900.42(e)(9) requires facility policies and procedures to stipulate that at least two facility staff of the same gender as the child or youth, except for a transgender or intersex child's or youth's stated preference, are to be involved in conducting a search of the child's or youth's person. This requirement is based on stakeholder feedback and serves as an additional protection for the child or youth and facility staff involved.

Proposed language in subsection (e)(10) requires the facility's policies and procedures to include a process for an internal review and debriefing process after each search incident, to review compliance with facility policies and to identify any additional staff training needed. Documentation of each debriefing process must be maintained as proposed under § 3900.44(b)(2) (relating to person and property search documentation and records).

A copy of the facility's person and property search policy is to be provided to a child or youth and their parent upon admission to the facility as proposed under §§ 3900.31(4) and 3900.42(f) to inform them of the types of searches that are conducted in the facility and the circumstances under which the child or youth is subject to being searched.

§ 3900.43—Search procedures staff training

In § 3900.43 (relating to search procedures staff training), the department is proposing a regulatory section addressing training to be completed by facility staff who may be involved in a search procedure as a result of their job responsibilities. Training includes the facility's search policies and procedures as required in § 3900.57 (relating to staff training) and includes the topics and procedures addressed in § 3900.42.

Proposed language in § 3900.43(b) will require that facility staff must be designated by the facility management as being approved to conduct searches once they have completed the required training. A record of this training including the name of the person trained, the date, curriculum used, name of trainer and their qualifications and length of training must be kept in the facility's files as proposed under § 3900.43(c).

§ 3900.44—Person and property search documentation and records

The department is proposing a regulatory section under § 3900.44 addressing requirements for facility staff to maintain a record of each search of person or property conducted in both an electronic search log and in the

child's or youth's record. Documentation of any search conducted must include the details addressed in § 3900.44(a) and include details as to why the search was necessary and reasonable.

Proposed requirements in § 3900.44(b) will require facility staff to maintain a record of each search of a person or property conducted in both an electronic search procedures log and the child's or youth's record and a searchable electronic log of aggregate data relevant to incidents of search procedures utilized. This log must reflect facility data addressing the elements required in this section and include child or youth, facility staff and site-specific related experiences as required in § 3900.44(b). While the department is not requiring that each search conducted be reported as an incident, the facility must maintain records internally. The department is proposing a requirement that this data be maintained in an electronic format to support ease in sorting and accessing the information. The program and formats used are left to the discretion of the facility management.

Facility-specific analysis of the aggregate data compiled, and any quality improvement plans developed as a result of the analysis, are to be made available to the department on an annual basis at the time of licensure renewal as addressed in § 3900.44(b)(1)—(6). The department will not require any specific components related to a quality improvement process as implemented within each facility, requiring only that one be adopted and updated based on facility experiences. Aggregate search procedures data must be made available to the department within 2 business days upon request.

Facility staff will also be required to include documentation of each debriefing process conducted as proposed under § 3900.42(e)(10) and § 3900.44(b)(2).

Language under § 3900.44(b)(6) proposes to require facility staff to notify the child's or youth's parent and contracting agency of each search of the child or youth that results in contraband or other dangerous items being found within 4 hours following completion of the search.

Subchapter E—Staffing (§§ 3900.51—3900.57)

§ 3900.51—Child abuse and criminal history checks

The department is proposing language in § 3900.51(a) (relating to child abuse and criminal history checks) to mirror current language under § 3800.51 (relating to child abuse and criminal history checks) requiring that all facility employees and volunteers having contact with children at a facility must secure child abuse and criminal history certifications. Although stakeholders raised concerns related to hiring, limited access options and delays experienced in securing the certifications from the FBI, these clearances and certification requirements are being maintained consistent with the statutory requirements of 23 Pa.C.S. § 6344 (relating to employees having contract with children; adoptive and foster parents).

The department is proposing an additional requirement in § 3900.51(b) that maintenance and repair service personnel secured through outside entities working unsupervised by facility staff while on site at the facility be required to present documentation of child abuse certifications and criminal history certifications prior to beginning work at the facility. This proposed requirement in § 3900.51(b) addresses stakeholder concerns related to background checks for maintenance workers who are not employees of the facility.

§ 3900.52—Staff hiring, retention and utilization

In § 3900.52 (relating to staff hiring, retention and utilization), the department is proposing to mirror § 3800.52 (relating to staff hiring, retention and utilization).

§ 3900.53—Residential program director

In § 3900.53 (relating to residential program director), the department is proposing a change in position title from "director," as referenced in § 3800.53 (relating to director) to "residential program director" to differentiate this role more clearly from an agency or executive director. This proposed title change, however, does not preclude an individual from acting as both agency director and a residential program director. This change is referenced throughout § 3900.53 and all of Chapter 3900. Proposed language in § 3900.53(a) otherwise mirrors § 3800.53(a).

Proposed language related to a residential program director also clarifies the scope of responsibility. Under § 3900.53(a) and (b), a residential program director is responsible for facility operations and program administration and management, including regular and direct contact with the children at the facility to ensure their safety and protection. The department proposes this language to address stakeholder requests for clarification of the residential program director's responsibilities. The department is also proposing the regular and direct contact with children and youth provision to ensure that this contact is recognized as part of this residential program director's responsibility. Proposed language addresses the residential program director's responsibility to ensure that a quality trauma-informed approach is demonstrated in accordance with 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting).

This proposed addition clarifies that a residential program director is required to complete all staff training requirements under § 3900.57. This proposed addition addresses related concerns raised by stakeholders.

Language proposed in § 3900.53(c) pertaining to qualifications mirrors § 3800.53(c). Although the recommendations made in the 2022 Grand Jury Report on the Delaware County Juvenile Detention Center related to required experience for a secure detention facility director were reviewed and considered, they were not incorporated as a requirement. The proposed language addresses requirements for work experience in administration or human services but does not include the Grand Jury recommended requirements for specific juvenile justice or juvenile detention experience. Proposed § 3900.53 addresses requirements for a residential program director fulfilling this role in any child and youth residential facility which includes community based and secure settings for both dependent and delinquent children and youth.

§ 3900.54—Residential program supervisor

In § 3900.54 (relating to residential program supervisor), the department is proposing different language than is found in § 3800.54 (relating to child care supervisor). A change is proposed from identifying this position as a "child care supervisor" to a position title as "residential program supervisor." This proposed title better reflects the focus of this role and defines the responsibilities for supervising the program operations. The proposed title also recognizes the critical role that this position holds in ensuring appropriate care, programming and scheduling of activities for children and youth at a facility. This

proposed change responds to stakeholders' requests for clarification related to the purpose and responsibilities of this position and supporting recognition of the professional nature of this position.

Proposed language in § 3900.54(a) mirrors existing language under § 3800.54(a). Specifically, § 3900.54(a) maintains the option to have the residential program director available by telephone and not physically present, allowing for the director's absence during the day when youth are in school and not at the facility.

Proposed language in § 3900.54(b) provides the ratios requiring a residential program supervisor be present at the facility during times children or youth are present. The requirement that a residential program supervisor must be present on site whenever 16 or more children or youth are present at the facility currently required in § 3800.54(b) is proposed to decrease to a ratio of 1 residential program supervisor being required on site whenever 12 or more children or youth are present at the facility under § 3900.54(b). This change reflects stakeholder input and recognition of the needs of the children and youth at the facility.

In § 3900.54(c), proposed language adds clarity specific to the residential program supervisor being counted in the child to staff ratios when they are temporarily acting in the capacity of a residential program worker and involved in the direct care and supervision of the children or youth. This shift in role and calculation of child and youth to staff ratios is permitted only in emergency situations affecting the availability of scheduled residential program workers as addressed in §§ 3910.21 and 3920.11 (relating to placement process; and residential program worker).

Primary responsibilities of the residential program supervisor are more clearly addressed in proposed language in § 3900.54(d), which modifies the existing requirements set forth in § 3800.54(c). This proposed rulemaking identifies the residential program supervisor as being responsible for developing and implementing the daily programming and schedule for the children or youth, while clarifying the focus of this position as being the children's or youth's safety, supervision and security. The requirement addressing the responsibilities of this position to supervise the residential program workers, as addressed under existing § 3800.54(c), has been maintained. In addition, the requirement that a residential program supervisor have knowledge of the facility policies, procedures and regulations related to child residential care; supervisory techniques; and personnel policies and procedures in § 3900.54(d) further reinforces the responsibilities of this position.

Based on stakeholder input, the department is proposing clarification of acceptable areas of study reflecting human service-related educational background under § 3900.54(e)(1) and (2) for the residential program supervisor. The proposed areas include a bachelor's or associate degree in social work, sociology, psychology, family ecology, family or child development, counseling and guidance, criminal justice, community services, family studies, counseling psychology, education, early childhood education, secondary education or special education, or other human services related field. Further, required work experience has been defined as needing to be work experience with children or youth in a group or residential setting. In addition, the department proposes the inclusion of relevant military training or education. Accepting relevant military training or education for this position reflects stakeholder input to recognize this as an acceptable option for required work experience. This proposed change adds a detailed listing of relevant and related areas of education to current requirements set forth in § 3800.54(d)(1) and (2). The proposed language also clarifies that an associate degree is acceptable when combined with 3 years of paid or volunteer work experience with children or youth in a group or residential setting.

In § 3900.54(e)(3), the department is proposing language based on stakeholder input and the need to create an internal career ladder to support retention, addressing a third education and experience option. Five years of experience working with children or youth in a group residential setting with demonstration of progressive responsibilities and relevant trainings, skill and competency development documented would be added as an acceptable option for experience for this position. This additional option will support retention and promotion of experienced facility staff interested in pursuing a supervisory role.

In § 3900.54(f), additional requirements applying to a residential program supervisor working in a facility serving youth who are adjudicated delinquent include documented work experience with youth in a group activity or setting that may be paid or volunteer. This proposed language reflects input from juvenile justice professionals who identified the need for experience working with youth in a group setting as being a relevant and a better predictor of success as they comprise the majority of the population of youth who are adjudicated delinquent and served in residential facilities.

§ 3900.55—Additional staff responsibilities

In § 3900.55 (relating to additional staff responsibilities), the department is proposing to require additional roles and responsibilities for identified facility staff positions. The department is not proposing that facility management create new staff positions to fulfill the newly defined responsibilities in this section. Instead, it is anticipated that these identified responsibilities will be added to existing position descriptions. These activities are often currently being addressed by existing staff even though they may not be clearly defined in their current job responsibilities or descriptions or reflect the specific proposed regulatory language. Further, the department is not setting standards as to how each facility addresses these staff roles and responsibilities but rather is allowing facility management to make this determination. These additional responsibilities reflect the recommendation of stakeholders.

The department is proposing in § 3900.55(a)(1)—(5) that at least one facility staff be identified as the primary contact responsible for communication with a child's or youth's family. Responsibilities for supporting communications with family members and scheduling family visits and family contacts with the child or youth must also be assigned to a facility staff. A facility staff must also be identified as being responsible for supporting the timely exchange of information with the family, providing details of the child's or youth's experiences at the facility. Responsibility for coordinating the child's or youth's transition planning throughout placement must also be delegated to an identified facility staff. Designation of a facility staff to be present with a child in labor is required in accordance with the statutory provisions of 42 Pa.C.S. Chapter 63, Subchapter G.

The department is proposing in § 3900.55(b) that at least one facility staff in each facility be identified as the lead person in scheduling and providing information to

members of the child's or youth's team configured to support them while they are in placement at the facility.

The department is also proposing in § 3900.55(c) that at least one facility staff in each facility be identified as responsible for the care management for each child or youth at the facility, including acting as an advocate on their behalf within the facility. These changes in roles and responsibilities of staff reflect the changes in the expectations of staff in child residential facilities in response to the complexity of needs of the children and youth served.

In addition, in § 3900.55(d), the department is proposing that a position as parent advocate or peer support specialist be created and filled within 2 years of publication of the final-form rulemaking. Facility management will be required to employ at least one or more persons having responsibility as parent advocate or peer support specialist.

Language in § 3900.55(e), confirms that the department is not requiring facility management to create new staff positions to fulfill these newly defined responsibilities in this section. It is anticipated that the majority of these identified responsibilities will be added to existing position descriptions. In many facilities, the activities are currently being addressed by existing staff even though they may not be clearly defined in their current job responsibilities or descriptions or reflect the specific proposed regulatory language.

The new role as a parent advocate or peer support specialist proposed in § 3900.55(d) is the proposed addition that is anticipated to result in increased costs to be incurred by a facility. However, facility management may choose to assign these responsibilities to a new or existing facility staff. This position has been identified by stakeholders as key to supporting quality family and youth involvement which is directly related to the achievement of case goals and supporting continuity of relationships for a child or youth and achievement of permanency and stability.

§ 3900.56—Exceptions for staff qualifications

The department is proposing in § 3900.56 (relating to exceptions for staff qualifications) to support an exception for an individual who is actively employed as a residential program director or supervisor and who does not meet the proposed education criteria for these positions. Under this proposed rulemaking, the staff qualification requirements specified in §§ 3900.53(c) and 3900.54(e) will not apply to facility staff hired or promoted to the specified positions prior to the effective date of this chapter. The department determined that the exceptions noted in § 3800.56(b) (relating to exceptions for staff qualifications) were no longer relevant and, therefore, are not referenced in Chapter 3900.

§ 3900.57—Staff training

In § 3900.57, the department is proposing significant changes from the language in § 3800.58 (relating to staff training) based on extensive stakeholder input and comparison with other states training requirements. New understanding of child development and trauma and recognition of the awareness, skills and knowledge needed by facility staff working with children and youth in residential settings were also considered and incorporated (www.childwelfare.gov/pubPDFs/trauma_informed.pdf). The department recognizes that the needs of the population of children and youth served in residential programming have changed considerably during the more than 2 decades since the adoption of Chapter 3800 and that facility staff training requirements must change accordingly. Proposed required training topics include those recommended in the 2022 Grand Jury Report on the Delaware County Juvenile Detention Center and those required under 42 Pa.C.S. Chapter 63, Subchapter G and will apply to all facilities licensed under this chapter.

To provide greater clarity and consistency in training provided to facility staff, changes are proposed in § 3900.57 to the orientation training, training topics to be addressed while new staff are working with children and youth under supervision and training topics to be addressed with staff on an annual basis while they are working directly with children and youth.

Current language in § 3800.58(a) requires that each facility staff who will have regular and significant direct contact with children, including part-time and temporary facility staff and volunteers, must complete an orientation. The department is proposing in § 3900.57(a) that new employees and volunteers who will have regular and significant contact with children and youth complete this orientation prior to having any contact with children or youth in the facility. This change from current regulatory requirements will no longer allow for this orientation to occur while working with children or youth under supervision. In addition, in response to stakeholder input, the department is not recommending a specific number of training hours to meet orientation requirements with one exception. No fewer than 4 hours training on the trauma-informed approach adopted by the facility must be completed to comply with 42 Pa.C.S. § 6384(d)(3) (relating to training and education requirement). The proposed language provides a detailed listing of required orientation subject areas in § 3900.57(a).

In § 3900.57(b), the department is proposing that the training topics addressed during the first 120 days of employment and prior to working alone with children or youth be expanded from the listing currently in § 3800.58(b). Current regulations require 30 hours of training prior to working alone with children and this hour requirement is being retained in § 3900.57 as a minimum, although proposed topic areas are being expanded.

In addition to the topics addressed in subsection (b), the department is proposing in § 3900.57(c) that staff working in facilities serving children or youth who are adjudicated delinquent also be required to complete training in additional topics as listed that have direct relevancy to the children or youth adjudicated delinquent.

If facility staff have contact with a pregnant, laboring or postpartum child or youth, training on topics included in 42 Pa.C.S. Chapter 63, Subchapter G are also required. These topics focus on the physical and mental health of the pregnant or postpartum child or youth and the unborn infant as addressed in § 3900.57(d).

To reduce duplication of effort and supports the effective use of time and resources, the department is proposing that if a new facility staff has completed the training listed in § 3900.57(b)(1)—(5) within 12 months prior to the new facility staff's date of hire, and can provide documentation of current certifications, the requirement for training in those areas listed previously does not apply until the next certification cycle. This change proposed in § 3900.57(e) recognizes the mobile nature of staff in these positions and the desire to reduce repetitious sessions and carries over the intent of the language in § 3800.58(c).

The department is also proposing significant changes related to annual and ongoing training requirements for the facility staff, increasing the number of hours from the 40 hours currently required in § 3800.58(d) to 42 hours a year in § 3900.57(f) to support easier calculation and compliance monitoring. The 2 additional hours also reflect time needed to present the expanded listing of required topics. Stakeholders offered diverse opinions related to the process for calculating and tracking training hours following completion of the 120-day period before working alone with children and to reflect time needed to present the expanded listing of required topics. To streamline this process and make calculation of hours more consistent, annual training requirements and topics are proposed in § 3900.57(f)(1)—(8).

In addition to the topics addressed in subsection (f), the department is proposing in § 3900.57(g) that staff working in facilities serving children or youth who are adjudicated delinquent also be required to complete annual training in additional topics as listed that have direct relevancy to the children or youth adjudicated delinquent.

Stakeholders offered diverse opinions related to the process for calculating and tracking training hours following completion of the 120-day period before working alone with children and youth. Confusion was noted by providers and licensing staff as to how to accurately calculate hours and compliance. Each facility will now be required to develop an annual training year and plan as proposed under § 3900.57(h). As new employees complete the initial 120-day period of employment, the number of training hours required for the remainder of the facility training year can be calculated at 3.5 hours a month. Once the training year is completed, all employees begin a new annual period and are required to meet the 42 hours in the next training year cycle.

For example, if the facility has adopted a calendar training year plan and a new facility staff completes their initial 120-day period of employment in February, they are required to complete an additional 35 training hours (10 months × 3.5 hours) through December and begin a new training year with 42 hours training required beginning in January to be aligned with other facility staff.

Replicating existing language from Chapter 3680 (relating to administration and operation of a children and youth social service agency), the department is proposing under § 3900.57(i) that at least 22 hours of the annual training hours required be met through formal in-service training or academic programs, conferences, institutes or workshops. Up to 20 hours may also be obtained by participation in supervisory conferences as proposed under § 3900.57(j) if the training is clearly documented in individual facility staff training records.

In response to stakeholder concerns regarding the need for clarity and reasonableness related to training hour requirements for volunteers, the department is proposing additional changes. Under § 3900.57(k), volunteers who are not responsible for the direct care and supervision of children or youth and who are not counted in the child and youth to staff ratios are required to participate in and complete the same orientation process provided to facility staff under subsection (a). However, these volunteers are not required to complete the initial 120-day or annual trainings required for facility staff. Volunteers may choose to participate in additional facility staff trainings with facility management approval. If volunteers are responsible for the care and supervision of children or youth and counted in staff ratios, all facility staff training requirements will apply.

Documentation requirements for all trainings under § 3900.57(l) include the facility-defined qualifications of the trainer conducting the training session in addition to the other information currently required in § 3800.58(h), including the name of the person trained, date, source and length of the training. This expands current requirements to include the name of the trainer and their facility-defined qualifications. Records of both facility staff and volunteer trainings are to be maintained in the facility training records file, which adds clarity to the current language in § 3800.58(h).

Subchapter F—Physical Site (§§ 3900.61—3900.88)

§ 3900.61—Outside access and visitors to the facility

The department is proposing regulatory language in § 3900.61 (relating to outside access and visitors to the facility) to address additional specific physical site safety requirements. These requirements respond to the heightened risks of children in congregate care settings. Language included in this section also reflects input from a diverse stakeholder workgroup convened to address requirements for specialized settings for child or youth victims of sex trafficking and those at risk of being trafficked. Consistent with section 50741(k)(2)(D) of the Family First Prevention Services Act (Division E, Title VII, Pub.L. 115-123, 132 Stat. 64) (42 U.S.C. § 672(k)(2)(D) (relating to foster care maintenance payments program)), this proposed section addresses specific residential programming considerations for children or youth who are, or who are at risk of becoming, sex trafficking victims. For example, proposed language in § 3900.61(a) will require that each facility develop and implement procedures addressing who may have access to the facility and grounds, including maintenance and delivery personnel and business-related visitors.

In addition, under § 3900.61(b), facility management will be required to establish site-specific security measures including but not limited to a sign-in and sign-out protocol enforced with photo identification provided by adult visitors and a posting of items that are prohibited from being brought into the facility. The facility management must also post a notice that the facility reserves the right to inspect any item being brought into the facility as another measure to protect the safety of the children, youth and staff present as proposed under § 3900.61(b)(3).

In § 3900.61(c), the department is proposing that management at each facility establish a process to maintain a child or youth specific list of approved family members and visitors which reflect court orders and contracting agency directives. This process must also address how this list will be updated and made accessible to all facility staff to ensure that the child or youth only has contact with approved visitors. Stakeholder input was incorporated into this requirement and the need for facility staff to have easy access to a current list of approved visitors was reinforced as a priority related to human trafficking concerns.

Increased opportunities for family contacts and visits are addressed in § 3900.32(g). Research confirms the importance of regular contacts with family members while a child or youth is in a placement setting. To support increased access and frequency of family contacts while still assuring the safety of each child or youth at the facility, the department is proposing that facility management develop and implement site safety operating policies and procedures that address facility site access specific to child and youth visitation.

These physical site safety policies addressed in § 3900.61(d) must include how the need for, and level of staff supervision and observation will be determined based on the assessed needs of the child or youth. The process for family members and approved visitors to arrange for visitation in advance, and the options available to support flexibility to accommodate specific needs identified by family members or the child or youth must also be addressed in the policies as referenced in § 3900.61(d)(2).

If staff supervision or observation of visits is needed, facility policies must also identify if there are designated areas or times for these visits to support compliance with direction from the contracting agency or the court or as addressed in the child's or youth's health and safety plan or ISP as included in § 3900.61(d)(3).

Proposed language in § 3900.61(d)(4) recognizes the value of family involvement and provides that reasonable flexibility to accommodate specific needs for time and location identified by the child, youth or their family is to be demonstrated by the facility staff.

§ 3900.62—Physical accommodations and equipment

The department is proposing language in § 3900.62 (relating to physical accommodations and equipment) to address a broader application of requirements for physical accommodations and equipment to meet the health and safety needs of all children and youth at the facility, including those who may have a disability that requires special accommodations. This language expands the regulatory requirement included in § 3800.81 (relating to physical accommodations and equipment).

§ 3900.63—Poisons

The department is proposing language in § 3900.63 (relating to poisons) to expand and update regulatory requirements currently in § 3800.82 (relating to poisons) and to reflect current requirements for handling toxic materials included under Chapter 3270 (relating to child care centers).

Although emergency telephone numbers and contact information are required to be posted at visible locations in § 3800.91 (relating to emergency telephone numbers), proposed language in § 3900.63(b) will require that the contact information for the poison control center be posted near the areas used to store toxic materials as an additional safeguard.

§ 3900.64—Heat sources

In § 3900.64 (relating to heat sources), the department is proposing language consistent with § 3800.83 (relating to heat sources).

§ 3900.65—Sanitation

In § 3900.65 (relating to sanitation), the department is proposing to mirror § 3800.84 (relating to sanitation).

§ 3900.66—Ventilation

In § 3900.66 (relating to ventilation), the department is proposing language that expands upon current requirements for ventilation addressed in § 3800.85 (relating to ventilation). The current language requires living areas, recreation areas, dining areas, bathrooms, bedrooms and kitchens to have at least one operable window or mechanical ventilation has been modified to require that natural or mechanical ventilation must be available in all areas used by children and youth, including living areas, recreation areas, dining areas, bathrooms, bedrooms and kitchens.

The proposed language in § 3900.66(b) and (c) adds clarity regarding requirements in § 3800.85 to ensure adequate and safe ventilation and includes language in § 3800.92 (relating to screens) requiring that all operable windows are screened and that screens are in good repair.

As an additional safeguard to the children and youth at the facility, § 3900.66(d) requires that windows or doors above the ground floor that open directly to the outdoors and are accessible meet related requirements for limits on openings under Chapter 3270. The department will offer additional guidance related to this requirement in the Regulatory Compliance Guide to address exceptions for those windows and doors used as emergency exit routes.

§ 3900.67—Lighting

In § 3900.67 (relating to lighting), the department is proposing to mirror § 3800.86 (relating to lighting).

§ 3900.68—Surfaces

The department is proposing language in § 3900.68 (relating to surfaces) that incorporates requirements currently included in § 3270.77 (relating to paint) and requirements in § 3800.87 (relating to surfaces). Proposed language in § 3900.68(a) mirrors § 3800.87(a).

Facility management are required to comply with § 3270.77 requirements related to indoor and outdoor surfaces being free from peeling or damaged paint as proposed in § 3900.68(b). Proposed language in § 3900.68(c) will require that when indoor or outdoor surfaces are repaired or when new indoor or outdoor surfaces are painted, the paint must not contain more than 0.06% lead.

As an additional safeguard, the proposed changes in § 3900.68(d) also require that a child or youth not be present during paint removal of paint from a facility's indoor or outdoor surfaces, mirroring language in § 3270.77(c).

Requirements in § 3900.68(e) and (f) mirror § 3800.87(b) and (c).

§ 3900.69—Water

In § 3900.69 (relating to water), the department is proposing to carry over current language in § 3800.88 (relating to water). The department is recommending a minor change to add clarification that water pressure must be sufficient to meet the needs of the children or youth at the facility.

A facility that is not connected to a public water system is required to have a coliform water test done at least every 3 months, by a Department of Environmental Protection-certified laboratory confirming that the water is safe for drinking. The department is recommending a minor modification from the current language in § 3800.88(c) as reflected in § 3900.69(c) requiring that documentation of the certification be maintained in facility files and made available for review by the department upon request.

§ 3900.70—Temperature

In § 3900.70 (relating to temperature), the department is proposing to substantially mirror § 3800.89 (relating to temperature).

§ 3900.71—Communication system

In § 3900.71 (relating to communication system), the department is proposing to carry over current language from § 3800.90 (relating to communication system) with minor changes. Stakeholders identified that a variety of communication systems (cellular phones, intercoms, pagers, and the like) are used by facilities and the department supports a variety of options as they are effective. A

change is being proposed to reflect that telephone connections may be either hard-wired landlines or cellular and must be accessible to facility staff at all times.

§ 3900.72—Emergency telephone numbers

In § 3900.72 (relating to emergency telephone numbers), the department is proposing to carry over language from § 3800.91 with a minor addition. The department is proposing language to address the diversity of locations of telephones within a facility given the increased use of cordless and cellular phones. Posting emergency numbers is still required although the department is proposing that facility management identify an area or areas suitable for posting to ensure that emergency numbers are easily visible to facility staff and children or youth rather than on or by each phone as required in § 3800.91. If possible, the emergency numbers must also be programmed into each phone.

§ 3900.73—Handrails and railings

In § 3900.73 (relating to handrails and railings), the department is proposing language consistent with § 3800.93 (relating to handrails and railings).

§ 3900.74—Landings and stairs

In § 3900.74 (relating to landings and stairs), the department is proposing language consistent with § 3800.94 (relating to landings and stairs).

§ 3900.75—Furniture and equipment

In § 3900.75 (relating to furniture and equipment), the department is proposing language consistent with § 3800.95 (relating to furniture and equipment) with a minor addition to add clarity to requirements for a child or youth to operate power equipment, excluding normal household appliances. The addition of a requirement in § 3900.75(e) that a child or youth be permitted to use power equipment under the supervision of a facility staff following thorough instruction as to the safe usage of the equipment addresses safety issues while still supporting age and developmentally appropriate opportunities and concerns voiced by stakeholders.

§ 3900.76—First aid supplies

In § 3900.77 (relating to first aid supplies), the department is proposing to carry over language that lists items needed for a complete first aid kit as listed in § 3800.96 (relating to first aid supplies) with one addition. A requirement for a first aid kit to be available on each floor of a facility to support ready and easy access by facility staff is proposed in § 3900.76(b). Costs related to this requirement are minimal while the benefits of easily accessible supplies when needed are clear. The language proposed in this section also eliminates the requirement in § 3800.96 that each first aid kit include syrup of ipecac as this is no longer medically recommended.

§ 3900.77—Elevators

In § 3900.76 (relating to elevators), the department is proposing to mirror § 3800.97 (relating to elevators).

§ 3900.78—Indoor activity space

In § 3900.78 (relating to indoor activity space), the department is proposing to mirror § 3800.98 (relating to indoor activity space).

§ 3900.79—Recreation space

In § 3900.79 (relating to recreation space), the department is proposing to mirror § 3800.99 (relating to recreation space).

§ 3900.80—Exterior conditions

In § 3900.80 (relating to exterior conditions), the department is proposing language consistent with § 3800.100 (relating to exterior conditions).

§ 3900.81—Firearms, weapons and ammunition

In § 3900.81 (relating to firearms, weapons and ammunition), the department is proposing to add language requiring that a facility have a written policy regarding the possession of firearms, weapons and ammunition on the premise and grounds of a facility in accordance with Federal and State laws. A facility is not required to permit firearms, weapons and ammunition.

§ 3900.82—Bedrooms

In § 3900.82 (relating to bedrooms), the department is proposing to carry over language in § 3800.102 (relating to child bedrooms) with one change. In § 3900.82(c), proposed language addresses that only two youth may share a bedroom, while maintaining the current requirement of no more than four children sharing a room in § 3800.102(c).

§ 3900.83—Bedroom accommodations

In § 3900.83 (relating to bedroom accommodations), the department is proposing a new requirement to specifically address physical site safety considerations for child or youth victims of sex trafficking. These requirements respond to research related to the heightened risks of children and youth in congregate care settings being or becoming victims of sex trafficking and the provisions of section 101 of the Preventing Sex Trafficking and Strengthening Families Act (Pub.L. 113-83, 128 Stat. 1919) (relating to identifying, documenting and determining services for children and youth at risk of sex trafficking). As addressed in § 3900.83(a), facility management will be required to maintain an ability to make single room accommodations available to a child or youth in response to their assessed safety or clinical needs identified as part of the child's or youth's assessment and treatment plan. Facility management will also be required to develop and implement policies that address the process and criteria to be considered as the basis for bedroom assignments under § 3900.83(b). Proposed language included in § 3900.83(c) requires that a child's or youth's need for privacy, confidentiality and personal safety also be considered in determining bedroom assignments.

Proposed language in § 3900.83(d) will require that beds used by a pregnant child or youth not be elevated more than 3 feet from the floor to comply with statutory requirements in 42 Pa.C.S. Chapter 63, Subchapter G.

§ 3900.84—Bathrooms

In § 3900.84 (relating to bathrooms), the department is proposing to carry over language from § 3800.103 (relating to bathrooms), with minor changes. Language in § 3900.84(h) adds a requirement that lotion and hair moisturizer/hair grease be provided for each child or youth in addition to the other personal hygiene items listed. This change reflects stakeholder input and is an effort to respect the cultural and ethnic needs of a child or youth. Menstrual hygiene and incontinence products have also been added to the listing of toiletry and other personal hygiene products to be issued as needed as required under 42 Pa.C.S. Chapter 63, Subchapter G.

§ 3900.85—Kitchen areas

In § 3900.85 (relating to kitchen areas), the department is proposing language consistent with § 3800.104 (relating to kitchen areas).

§ 3900.86—Laundry

In § 3900.86 (relating to laundry), the department is proposing language consistent with § 3800.105 (relating to laundry).

§ 3900.87—Swimming

In § 3900.87 (relating to swimming), the department is proposing to carry over language from § 3800.106 (relating to swimming) with several additions to address safety concerns. In § 3900.87(a) and (b), language is proposed to clarify limits on the responsibility of the facility to safeguard pools that are on facility grounds by fencing or other means to make them inaccessible to children when not in use. Proposed language in § 3900.87(c) adds a requirement for a certified lifeguard to be present during swimming and water play activities at both facility and community locations. This change addresses stakeholder concerns related to child drownings in natural bodies of water. While additional staffing and potential cost considerations for a facility are recognized if lifeguards are not provided at public swimming and community water play locations, child and youth safety remains the priority consideration in proposing this regulatory change.

§ 3900.88—Video surveillance system

In § 3900.88 (relating to video surveillance system), the department is proposing new language requiring installation and operation of a video surveillance system. This addition captures the intent of the recommendation included in the Grand Jury Report on the 2022 Delaware County Juvenile Detention Center and reflects input from stakeholders. This proposed language expands this recommendation to include all child residential facilities that have capacity for 25 or more children or youth, and each secure residential and secure detention facility for children and youth in this Commonwealth.

In addition to requirements that a video surveillance system be installed in the facility to allow for viewing of all areas accessible to children and youth excluding bathrooms, showers and sleeping rooms, facility management must also develop and implement policies addressing the use of this camera surveillance system. Required components of the policy are listed in § 3900.88(b)(1)—(8). These components include the posting of notices that a system is in use. Copies of this policy must be provided to each child or youth, the child's or youth's parent, facility staff, contracting agency and the department. The policy must also address retention practices for the recorded information and identification of individuals having access to this information. Although specific time frames for retention are not addressed as recommended in the Grand Jury Report, facility policies must address retention time frames that are sufficient to allow for the completion of investigations related to allegations of abuse, reportable incidents, criminal activity or litigation.

In addition, facility management who are not required to install a video surveillance system but voluntarily choose to install and use a video surveillance system must also comply with the proposed requirements listed in this section.

Subchapter G—Fire Safety (§§ 3900.91—3900.100)

§ 3900.91—Exits

In § 3900.91 (relating to exits), the department is proposing language consistent with § 3800.122 (relating to exits).

§ 3900.92—Evacuation procedures

In § 3900.92 (relating to evacuation procedures), the department is proposing language consistent with § 3800.123 (relating to evacuation procedures).

§ 3900.93—Flammable and combustible materials

In § 3900.93 (relating to flammable and combustible materials), the department is proposing language consistent with § 3800.125 (relating to flammable and combustible materials).

§ 3900.94—Furnaces

In § 3900.94 (relating to furnaces), the department is proposing language consistent with § 3800.126 (relating to furnaces).

§ 3900.95—Portable space heaters

In § 3900.95 (relating to portable space heaters), the department is proposing language consistent with § 3800.127 (relating to portable space heaters) with minor formatting changes.

§ 3900.96—Wood and coal burning stoves

In § 3900.96 (relating to wood and coal burning stoves), the department is proposing language consistent with § 3800.128 (relating to wood and coal burning stoves).

§ 3900.97—Fireplaces

In § 3900.97 (relating to fireplaces), the department is proposing to carry over language from § 3800.129 (relating to fireplaces), with minor changes. Proposed language in § 3900.97(a) and (b) mirrors § 3800.129(a) and (b). Language in § 3800.129(c) requires that a fireplace chimney and flue be cleaned when there is an accumulation of creosote. Stakeholder input identifying safety concerns, and the absence of clarity related to frequency in checking for creosote build-up is reflected in the proposed language in § 3900.97(c). The proposed language will require annual inspection and cleaning of a log burning fireplace which is in use by a professional furnace cleaning company or trained maintenance facility staff. Documentation of the inspection and cleaning must be kept in the facility's administrative files as directed in § 3900.97(d).

§ 3900.98—Detectors and fire alarms

In § 3900.98 (relating to detectors and fire alarms), the department is proposing to carry over language from § 3800.130 (relating to smoke detectors and fire alarms) with a minor addition. Proposed language in § 3900.98(a)—(h) mirrors § 3800.130(a)—(h). Proposed language to be added in § 3900.98(i) will require that an approved carbon monoxide alarm be installed in the facility not less than 15 feet from any fossil fuel-burning device or appliance. This additional requirement responds to stakeholder input related to children and staff safety. It also reflects common practice in many facilities and the provisions of the Care Facility Carbon Monoxide Alarm Standards Act (35 P.S. §§ 7241—7245). In addition, carbon monoxide detectors and alarm systems installed must be tested and cleaned by facility staff as indicated in the manufacturer's guidelines.

§ 3900.99—Fire extinguishers

In § 3900.99 (relating to fire extinguishers), the department is proposing to mirror § 3800.131 (relating to fire extinguishers).

§ 3900.100—Fire drills

In § 3900.100 (relating to fire drills), the department is proposing to carry over requirements from § 3800.132 (relating to fire drills), with several changes. The pro-

posed language for § 3900.100 adds clarification to address several points of confusion identified by stakeholders related to current language addressing unannounced fire drills and the practical need for supervisory staff to know about the drills in advance. The proposed language in § 3900.100(a) will now restrict advance notice of monthly unannounced fire drills from being provided to residential program workers or children and youth at the facility, recognizing that supervisory staff need to be aware of the schedule to initiate the drill. Proposed language in § 3900.100(b)—(d), (i) and (l) mirrors § 3800.132(b)—(d), (i) and (j).

Stakeholders identified concerns related to the interpretation of the current language in § 3800.132(e), which requires that a fire drill must be held during sleeping hours at least every 6 months. The department is proposing a change in § 3900.100(e) to require a fire drill during sleeping hours two times every calendar year, reducing the focus on drills being exactly 6 months apart. This change provides for a more flexible twice a year schedule while still reflecting variations in seasonal and sleep disruption times and conditions and maintaining the focus on the drill itself rather than the exact timing of the drill.

Proposed language in § 3900.100(f) addressing monthly changes in the hypothetical locations of exit routes modifies the language from § 3800.132(f). The proposed change offers greater clarity and requires that the hypothetical locations of the fire be changed for each drill and alternate exit routes be used during fire drills.

The minor addition proposed to § 3900.100(g) offers additional clarity as to compliance requirements. Fire drills are to be held during various program activities as well as being on different days of the week, at different times of the day and night and on different staffing shifts.

Language in § 3800.132(h) is to be carried over in § 3900.100(h) indicating that children and youth must be directed to evacuate the facility to a designated meeting place outside the building or within the fire-safe area during each fire drill. In § 3900.100(j), the department is proposing an additional requirement based on stakeholder input that evacuation routes be posted in highly visible locations identifying at least two exit routes. Language in § 3900.100(k) that facility evacuation plans shall provide for removal of all persons from the facility in a single trip is based on language in § 3270.94(a)(6) (relating to fire drills).

Subchapter H—Child and Youth Health (§§ 3900.111—3900.119)

§ 3900.111—Health and safety admission screening

In § 3900.111 (relating to health and safety admission screening), the department is proposing changes to language carried over from § 3800.141 (relating to child health and safety assessment) to clarify and update regulatory requirements identified by stakeholders as being unclear.

Proposed language in § 3900.111 reflects stakeholder discussions that identified the purpose of this initial assessment is to provide a point-in-time screening and review of information known and available as of the day of admission. This focus supports the compilation of information about immediate risks and health related needs based on referral information and initial input from the child or youth and their parent, if available. This screening information provides facility staff with relevant information as the child or youth enters the facility. The proposed section title more accurately reflects the purpose and process related to this initial contact with a child or youth.

Proposed language in § 3900.111(a) and (b) mirrors § 3800.141(a) and (b).

Proposed minor changes to language carried over from § 3800.141(c) included in § 3900.111(c) address the focus of this regulatory requirement as being the compilation and documentation of information that is immediately available at the time of admission. This clarification removes confusion expressed by stakeholders regarding the document continually being updated as additional information was obtained after admission and development of the ISP. As additional information is made available to the facility, stakeholder input indicated that it is more appropriate for this information to be documented in the child's or youth's record and included in a child's or youth's ISP, which must be completed within the first 30 days of placement. The ISP is updated on a regular basis as required in § 3900.190 (relating to development and implementation of the ISP) creating a "living" document that includes input from the child's or youth's team. The ISP is the document that is shared with the contracting agency, the youth and the child's or youth's parent.

Information in § 3800.141(c)(1) is carried over in § 3900.111(c)(1) with a minor change. The requirement that this admission process includes information about issues experienced by the child's mother during pregnancy has not been included based on stakeholder feedback that this information is generally not known to the child, not provided by a parent if one is available and does not substantively add to awareness or understanding of the child's or youth's immediate needs. Proposed language in § 3900.111(c)(2) mirrors the current requirements under § 3800.141(c)(2).

Placement history and reasons for discharge or transfer proposed as an assessment component in § 3900.111(c)(3). This reflects input from stakeholders to support access to background information as of the date of placement which often provides a frame of reference as to the child's or youth's ability to adjust to a new environment and their prior experiences with placement settings. The department is also proposing to include any history of leaving home, school or a facility without adult awareness or permission. This addition is supported by research and practice experience that identifies a child or youth who is prone to running away most often makes attempts to do so during a transition period, which includes admission to a new placement setting.

Proposed language included in § 3900.111(c)(4) and (5) mirrors § 3800.141(c)(3) and (4). Proposed language in § 3900.111(c)(6) expands requirements in § 3800.141(c)(5) by adding that verification of the child or youth having been a victim or a perpetrator of abuse, if applicable, must also be made part of the initial health and safety screen.

The department is proposing language in § 3900.111(d) for facilities serving children or youth who are adjudicated delinquent. The initial admission screening will also need to include other community-based services the child or youth has received and the status of other intervention programs in which the child or youth previously participated. This requirement, which was supported by juvenile justice stakeholders, will support compilation of information to avoid subjecting a child or youth to repetitive programming or duplicate interventions.

Proposed language under § 3900.111(e) and (f) clarifies the purpose and scope of this admission screening as a process to document sufficient detail to provide facility staff with information at the time of admission about potential triggers, immediate health concerns and any special considerations needed to ensure the immediate safety of the child or youth and others at the facility and in the community. Facility policies will now be required to address how the assessment information will be shared with staff who will be working directly with the child or youth as soon as it is compiled and becomes available for review.

The department is proposing language in § 3900.111(g) which is consistent with § 3800.142(d) (relating to health and safety plan).

§ 3900.112—Health and safety plan

In § 3900.112 (relating to health and safety plan), the department is proposing to carry over language from § 3800.142 and adding to the purpose and process of creating a health and safety plan. If the health and safety admission screening addressed in § 3900.111 identifies a health or safety risk, current regulatory language in § 3800.142 requires that a written plan to protect the child must be developed and implemented. The proposed scope of safety concerns to be considered and addressed in § 3900.112(a) has been expanded to include plans to not only protect the child or youth, but also the other children or youth at the facility, facility staff and those in the community.

Proposed language in § 3900.112(b) will require facility management to develop a process through which facility staff having regular and significant contact with the child or youth are made aware of the child's or youth's health and safety plan and its contents. This allows staff to have the necessary background information to be better prepared to appropriately and safely respond to any actions or reactions by the child or youth. This includes any additional referral materials, documented observations and information related to the child's or youth's health and safety needs that become available during the initial 30 days of placement but prior to the development of a child's or youth's ISP.

Proposed language in § 3900.112(c) requires that until the child's or youth's ISP is developed, the health and safety plan must be updated as additional information is obtained to keep this document up to date.

§ 3900.113—Health examination

In § 3900.113 (relating to health examination), the department is proposing a number of changes to the language carried over from § 3800.143 (relating to child health examination). Proposed language § 3900.113(a) updates access information and the document title for the referenced periodicity schedule published by the American Academy of Pediatrics (AAP). This reference tool is now readily available online at www.aap.org by searching "Periodicity Schedule" and this proposed change updates the information from that which is presented in § 3800.143(a).

Proposed language in § 3900.113(a) also adds clarity to the time frame in which the facility must secure an in-person physical examination for a child or youth, changing the existing § 3800.143(a) requirement of 15 days to 15 business days. Challenges were noted by facility staff responsible for scheduling these examinations, indicating that their ability to comply with this time frame was limited to scheduling an appointment, as medical care providers control the appointment availability and timing. This proposed change acknowledges challenges in scheduling while still holding facility staff accountable to secure a health exam appointment within the initial 3 weeks of placement. This extended time frame also has potential for reducing selection of health care providers based on appointment availability rather than on a health care provider's familiarity with the child or youth or specialization in pediatrics. The department remains committed to working with facility staff experiencing delays in accessing appointments and recognizes that regulatory requirements should remain focused on requirements that are within the ability of the facility staff to control and comply.

In § 3900.113(b), the department proposes to mirror § 3800.143(b). Proposed language in § 3900.113(c) addresses the scope of the required health exam modifying language in § 3800.143(e).

In § 3900.113(c), the department is proposing that the details of a physical exam, as addressed in § 3800.143(e)(2)—(15), be omitted and instead require that this initial in-person comprehensive health and developmental history exam including both physical and behavioral health development that meets the requirements of the Early and Periodic Screening, Diagnostic and Treatment (EPSDT) program. As proposed in § 3900.113(c) an exam must be completed for each child or youth using the EPSDT criteria, regardless of whether the child or youth qualifies for Medicaid, to satisfy this requirement. This proposed change allows medical practitioners to exercise their professional judgment as to the scope of exam deemed necessary and the tests to be scheduled based upon their review of the child's or youth's history using the EPSDT criteria as references. Stakeholders have historically raised concerns with facility staff limitations on imposing the regulatory requirements listed in § 3800.143(e)(2)—(15) on medical providers. This change also reflects the limits of the authority and ability of the facility staff to comply with the components of the medical exam listed in § 3800.143(e) if those medical considerations are not considered necessary by the examining health care practitioner. This has been a longstanding concern voiced by affected stakeholders.

Proposed language in § 3900.113(d) mirrors § 3800.143(d). In § 3900.113(e), the department is proposing a minor modification to the language carried over from § 3800.143(d) addressing that documentation be kept in the child's or youth's record.

Proposed language in § 3900.113(f) and (g) expands upon the provisions of § 3800.143(c) and will require that documentation of the medical exam prior to a child or youth participating in a program that requires significant physical exertion be maintained in the child's or youth's record. Language proposed in § 3900.113(h) is consistent with § 3800.143(f).

§ 3900.114—Dental care

In § 3900.114 (relating to dental care), the department is proposing language to modify current requirements addressed in § 3800.144 (relating to dental care). Language included in § 3900.114(a) reflects the intent of § 3800.144(a) and (b) while updating requirements to reflect current American Academy of Pediatric Dentistry (AAPD) recommendations.

Proposed changes in § 3900.114(b) change the age of a child's first dental exam from 3 years of age as referenced in § 3800.144(b) to 12 months of age to reflect current AAPD recommendations. Additional clarification is proposed in § 3900.114(b) to address the time frames for

dental examinations in response to stakeholder concerns regarding insurance coverage limitations and availability of appointments. The department is proposing adding "or as approved by the child's or youth's dental coverage" to the existing requirement for exams and cleanings to occur twice within a 12-month period.

Proposed language in § 3900.114(c) modifies the time frame for the initial dental exam carried over from § 3800.144(b) from 30 days to 60 days, recognizing long-standing challenges voiced by stakeholders related to scheduling dental exams with Medical Assistance-enrolled providers. The option of a dental examination not being required within the specified time frame if documentation is available that a child or youth has had a dental examination and teeth cleaning within 6 months prior to admission as referenced in § 3800.144(b) is proposed to be mirrored in § 3900.114(c).

Language proposed in § 3900.114(d) and (e) mirrors § 3800.144(c) and (d).

§ 3900.115—Vision care

In § 3900.115 (relating to vision care), the department is proposing several changes to the language carried over from § 3800.145 (relating to vision care). Language in § 3900.115(a) mirrors § 3800.145(a). Proposed language § 3900.115(b) updates access information and the document title for the referenced periodicity schedule published by AAP. This reference tool is now readily available online at www.aap.org by searching "Periodicity Schedule" and this proposed change updates the information presented in § 3800.145(b).

A change is proposed in § 3900.115(b) to extend the time frame for a vision exam from 30 days as required in § 3800.145(b) to 60 days if a referral to an eye specialist is indicated. This change is based on stakeholder input identifying challenges in scheduling eye exams due to limited numbers of Medical Assistance-enrolled providers.

Stakeholder input indicated that most often a vision screening is completed as part of the initial child or youth health examination and EPSDT guidelines referenced in the proposed language to be added to § 3900.115(c). This screening may occur as part of the child or youth health exam in § 3900.113. If issues are identified, a referral for a follow-up examination by an ophthalmologist or optometrist is made by the medical care provider.

Language in § 3800.145(c)—(e) is carried over into the requirements proposed in § 3900.115(d)—(f) with a minor change addressing time frames of previous vision exams.

§ 3900.116—Hearing care

In § 3900.116 (relating to hearing care), the department is proposing several changes. Proposed language in in § 3900.116(a) mirrors § 3800.146(a) (relating to hearing care).

Proposed language in § 3900.116(b) updates the document title and access information for the referenced periodicity schedule published by AAP reference tool is now readily available online at www.aap.org by searching "Periodicity Schedule."

Stakeholder input indicated that most often a hearing screening is completed as part of the initial child or youth health examination and EPSDT requirements. This is reflected in language proposed in § 3900.116(c), indicating that this screening may occur as part of the child health exam in § 3900.113. A change is also proposed to extend the time frame for the initial hearing exam from 30 days after admission required by § 3800.146(b) to 60 days after admission.

Language in § 3900.116(d)—(f) mirrors § 3800.146(c)—(e).

§ 3900.117—Use of tobacco and smoking materials

In § 3900.117 (relating to use of tobacco and smoking materials), the department is proposing several changes to current language carried over from § 3800.147 (relating to use of tobacco). These changes incorporate current medical guidance related to vaping and smoking cessation. References in this section modify § 3800.147 language by addressing possession of tobacco to reference smoking materials as including tobacco, vaping equipment and e-cigarette materials.

Changes to the language carried over from § 3800.147(a) and (b) are reflected in § 3900.117(a) and (c) to add vaping equipment and materials to the list of tobacco products prohibited for use by children or youth. Proposed language also prohibits the use or possession of tobacco products including vaping equipment and materials by facility staff while in the facility and during facility-provided transportation.

Recognizing the addictive aspects of smoking and the child's or youth's experiences or history of smoking when they enter the facility, the department is proposing a new requirement that the facility must offer smoking cessation aids and support to the child or youth in § 3900.117(b).

The department is proposing language in § 3900.117(d) that mirrors § 3800.147(c).

§ 3900.118—Health and behavioral health services

In § 3900.118 (relating to health and behavioral health services), the department is proposing minor changes to language carried over from § 3800.148 (relating to health and behavioral health services). Reference to behavioral health has been added to § 3900.118(a) to reinforce the responsibility of facility staff to promptly respond to any identified acute or chronic conditions of a child or youth and to arrange for appropriate medical and behavioral health treatment.

Stakeholder input was offered specific to § 3900.118(b) that reflected diverse opinions related to the timelines for scheduling appointments, especially those related to behavioral health needs. While advocates suggested there was a need for specific timelines to be included in the regulations, facility staff responded that the availability of appointments with community-based providers was beyond their control. Proposed language in § 3900.118(b) addresses these concerns by requiring that medically necessary physical and behavioral health services, diagnostic services, follow-up examinations and treatment, such as medical, nursing, pharmaceutical, dental, dietary, hearing, vision, blood lead level, psychiatric and psychological services that are planned or prescribed for the child or youth, be arranged for, and scheduled within 48 hours of identification of the child's or youth's need for an appointment.

§ 3900.119—Emergency medical plan

In § 3900.119 (relating to emergency medical plan), the department is proposing language consistent with § 3800.149 (relating to emergency medical plan).

Subchapter I—Staff Health (§ 3900.121)

§ 3900.121—Staff health statement

In § 3900.121 (relating to staff health statement), the department is proposing to modify the content carried over from § 3800.151 (relating to staff health statement) and to incorporate the regulatory requirements for adult

health assessments under §§ 3270.151—3270.155 (relating to adult health) as the language is more comprehensive, detailed and current.

Proposed language in § 3900.121(a) is consistent with existing language in § 3800.151. Language carried over from § 3800.151(a) addressing documentation has been expanded as reflected in § 3900.121(b). Facility management will be required to maintain documentation of facility staff and volunteer health assessments conducted, with the reports written and signed by a physician, physician assistant or certified registered nurse practitioner, in facility files. The signature must include the individual's professional title. This process is consistent with other proposed requirements for documentation in this chapter as proposed.

The department is proposing that facility management policies related to the required components of the health assessment in § 3900.121(c) mirror those in under §§ 3270.151 and 3270.152, which currently include a physical examination, tuberculosis screening and required follow-up to a positive test result, examination for communicable diseases and identification of any medical problems that may threaten the health of the children or youth at the facility or prevent a facility staff from providing adequate care to the children or youth.

Proposed language in § 3900.121(d) carries over the intent of language in § 3800.151, adding clarity that a health assessment is valid for 24 months following the date of signature of the health care practitioner if the facility staff or volunteer does not contract a communicable disease or develop a medical problem preventing a facility staff from providing adequate care to the children or youth.

Subchapter J—Nutrition (§§ 3900.131—3900.134)

§ 3900.131—Three meals a day

In § 3900.131 (relating to three meals a day), the department is proposing a minor terminology change to current language carried over from § 3800.161 (relating to three meals a day) to include reference to proper nourishment.

§ 3900.132. Quantity of food

In § 3900.132 (relating to quantity of food), the department is proposing to mirror § 3800.162 (relating to quantity of food).

§ 3900.133—Food groups and alternative diets

In § 3900.133 (relating to food groups and alternative diets), the department is proposing several changes to language carried over from § 3800.163 (relating to food groups and alternative diets) in response to stakeholder input related to the availability of water at all times and individual dietary preferences.

Language in § 3900.133(a) is consistent with the language in § 3800.163(a). Dietary alternatives listed in § 3800.163(b) have been expanded in § 3900.133(b) to include vegan preferences in addition to others listed.

Proposed language in § 3900.133(c) reflects stakeholder input and will require that weekly written menus be posted for review by staff and children or youth and maintained for review by the department during annual inspections. The written menus provide easily referenced information to confirm and monitor compliance with regulatory nutrition requirements. Food allergies experienced by a child or youth at the facility are to be noted on the weekly menus to reduce the risk of exposure. While identifying information about the affected child or youth is not to be noted, dietary considerations are to be included on the menu forms.

Language proposed in § 3900.133(d) directs that water shall be made available to children or youth at all times.

§ 3900.134—Withholding or forcing of food prohibited

In § 3900.134 (relating to withholding or forcing food prohibited), the department is proposing language consistent with § 3800.164 (relating to withholding or forcing of food prohibited).

Subchapter K—Medications (§§ 3900.141—3900.151)

§ 3900.141—Storage of medications

In § 3900.141 (relating to storage of medications), the department is proposing a change to current language carried over from § 3800.181 (relating to storage of medications). Proposed language in § 3900.141(a), (b) and (d)—(g) mirrors § 3800.181(a)—(f).

Proposed language to be added in § 3900.141(c) will require that all controlled prescription medications be kept in their original containers and stored separately from other prescribed medications in a locked container reflecting stakeholder input to add additional safeguards related to the storage of controlled prescription medications.

§ 3900.142—Labeling of medications

In § 3900.142 (relating to labeling of medications), the department is proposing a change to current language carried over from § 3800.182 (relating to labeling of medications) to respond to stakeholder requests for ready access by facility staff to naloxone. A minor change to requiring the name of the prescribing health care provider rather than prescribing physician is proposed to include a broader option of approved medication prescribers.

The proposed language in § 3900.142(a) and (b) mirrors § 3800.182. The proposed language in § 3900.142(c) will require that naloxone be maintained at the facility for use as indicated without a prescription or designated patient reflected on the label.

§ 3900.143—Use of prescription medications

In § 3900.143 (relating to use of prescription medications), the department is proposing to mirror § 3800.183 (relating to use of prescription medications).

§ 3900.144—Medication log

In § 3900.144 (relating to medication log), the department is proposing two changes to the language carried over from § 3800.184 (relating to medication log). Proposed language in § 3900.144(a) mirrors § 3800.184(a) with a minor change proposing language identifying a prescribing health care provider in place of prescribing physician. A proposed change to the language carried over from § 3800.184(b) is reflected in § 3900.144(b) which adds a requirement that the person administering the medications also sign the log in addition to the other information addressed. The department is proposing that the signature of the individual administering or self-administering the medication also be included in the log to add an additional point of accountability. This information is to be logged at the time each dosage of medication is administered or self-administered.

Language in § 3900.144(c) mirrors § 3800.184(c). A proposed addition in § 3900.144(d) addresses actions to be taken by facility staff, and the required documentation in the medication log and child's or youth's record if a

child or youth refuses to take medication as prescribed. This refusal is not considered a medication error; however, stakeholder input supports that attempts to administer the medication and the child's or youth's refusal be made part of the medication log. This change reflects stakeholder suggestions that a record of refusal by a child or youth to take medications should be readily available for review by the child's or youth's prescribing health care provider and the department as needed.

§ 3900.145—Medication errors

In § 3900.145 (relating to medication errors), the department is proposing several changes to the language carried over from § 3800.185 (relating to medication errors). Proposed requirements in § 3900.145(a) mirror § 3800.185(a).

In § 3900.145(b), the department is proposing a new requirement which will require facility staff to consult with the child's or youth's prescribing health care provider if the child or youth shows any reactions due to a medication error. In § 3900.145(c), the department is proposing a change to language carried over from § 3800.185(b), identifying that any follow-up actions taken by the qualified individuals administering medications are to be documented after each medication error in addition to actions to prevent future medication errors and any medical direction obtained. These changes reflect stakeholder input addressing additional safeguards related to medication error protocols.

§ 3900.146—Adverse reaction

In § 3900.146 (relating to adverse reaction), the department is proposing to mirror § 3800.186 (relating to adverse reaction) with minor changes to add clarity and identify the qualified individuals administering medications as being responsible for the required documentation.

§ 3900.147—Administration

In § 3900.147 (relating to administration), the department is proposing several changes to the language carried over from § 3800.187 (relating to administration) to update language and regulatory requirements. The listing of individuals approved to administer prescription medications and injections in § 3800.187(a) has been carried over in § 3900.147(a) with a change in paragraph (4). This proposed change adds inhaled prescriptions to the list of medications that may be administered to address the use of medications administered through nasal sprays. A change from "insulin injections" to "diabetes medications" has also been added in § 3900.147(a)(4) to update terminology.

Language proposed in § 3900.147(b) mirrors § 3800.187(b). A new regulatory requirement has been proposed in § 3900.147(c) to ensure that a facility employee or other individual who is qualified to administer medications is available either on-site or on call during all hours children or youth are present at the facility.

§ 3900.148—Medication administration during facility sponsored off-grounds activities

In § 3900.148 (relating to medication administration during facility sponsored off-grounds activities), the department is proposing a regulatory section addressing the administration of medication while children or youth are off grounds on a staff-supervised activity. This proposed language adds requirements to support consistent practices and documentation related to the administration of medications while staff and children or youth are away from the facility. This proposed section is in response to stakeholder input and reflects practices in other states. Off-grounds medication administration requirements in New York, Washington State and Washington DC, Nevada, Oklahoma and Florida provided examples of existing practices, some of which were incorporated into the proposed language.

This section addresses facility staff responsibilities for safeguarding medications while on an off-grounds activity and also addresses documentation requirements, reflecting stakeholder input. This addition structures expectations and provides a framework to support proper administration and documentation of administration and to ensure the safety of the child or youth and the accountability of facility staff and was developed based on stakeholder input and review of similar requirements in other states.

The department is proposing that facility management develop and implement a policy and procedure addressing the safe management of medications for children or youth during facility sponsored off-grounds activities that include the listing of components addressed in § 3900.148(a)(1) and (2). These include that consideration should be given to scheduling activities during times when off-grounds administration is not required and that consultation with the prescriber about adjusting the medication administration times to accommodate the off-grounds event and the process to determine if it is possible to safely administer medications at another designated time should be addressed. Direction from the prescribing health care provider shall be documented.

In § 3900.148(b), the department is proposing that the qualified facility staff who administer the medications must be the same person, who upon return to the facility, documents that the medications were properly administered in the medication administration log. Proposed language in § 3900.148(c) and (d) indicates that medications shall still be clearly labeled as addressed in § 3900.142 and kept inaccessible to children and youth and non-medication administration certified facility staff as addressed in § 3900.141. The qualified facility staff responsible for administering the medication on the trip is also responsible for the security of the medication during the outing as addressed in § 3900.141(e) and log entry of administration as addressed in § 3900.141(f).

§ 3900.149—Medication administration during off-grounds family visits

In § 3900.149 (relating to medication administration during off-grounds family visits), the department is proposing a regulatory section addressing the administration of medication while children and youth are off grounds during family visits.

This proposed language adds requirements to support the consistent transfer of both information and medications from facility staff to the family member taking responsibility for the child or youth during an off-grounds visit. It structures expectations and clarifies responsibilities in this exchange process. Stakeholder input identified the need for guidance related to consistently documenting practice and increased accountability for medications used. A review of similar requirements in other states served to provide language and content suggestions. Relevant medication administration requirements in New York, Washington State and Washington DC, Nevada, Oklahoma and Florida provided examples of existing practices, some of which were incorporated int the proposed language.

The department is proposing that facility management develop and implement a policy and procedure addressing

the safe management and administration of child's or youth's medications during a family home visit or family time away from the facility site. This policy and procedure must at a minimum address the requirements for facility staff listed in § 3900.149(1)—(4) to document that the parent was provided with information that addresses the medication sent with the child or youth; options for the parent to ensure the security of medication during a family home visit or family time away from the facility; the medication's purpose, potential side effects, administration directions and prescriber information; and an agreement to return refused or unused medication with the child or youth.

Only the amount of controlled medication necessary for the length of the home visit or family time away from the facility is to be provided to the parent as referenced in § 3900.149(2). Multiple dose medication packs are not to be routinely sent home with exceptions to this practice listed in § 3900.149(3).

Upon the child's or youth's return to the facility, documentation of receipt of unused medications, if any, by facility staff and confirmation from the parent that the medications were given to the child or youth as prescribed, or that the child or youth refused to take them as offered, is to be maintained as part the medication log as addressed in § 3900.149(4).

§ 3900.150—Medication administration training

In § 3900.150 (relating to medication administration training), the department is proposing to mirror § 3800.188 (relating to medications administration training) with minor changes. A technical change is noted in § 3900.150(a), changing "a" to "the" to reflect a change in process since Chapter 3800 was adopted in 1999 and changing facility to facility staff to better identify who needs to be trained. Currently there is only one department-approved medication administration training option, and it is the required course for facility staff to become qualified and responsible for medication administration at a facility.

§ 3900.151—Self-administration of medications

In § 3900.151 (relating to self-administration of medications), the department is proposing to mirror § 3800.189 (relating to self-administration of medications) with a minor change. This change adds self-administered use of epinephrine injections for insect bites or allergic reactions occurring for other reasons and the use of inhalers to § 3900.151 to allow for self-administered use of an epinephrine injection if a child or youth ingests a food item or has exposure to a substance that causes an allergic reaction.

Subchapter L—Restrictive Procedures (§§ 3900.161—3900.170)

§ 3900.161—Appropriate use of restrictive procedures

In § 3900.161 (relating to appropriate use of restrictive procedures), the department is proposing changes to the language carried over from § 3800.202 (relating to appropriate use of restrictive procedures) to incorporate language from section 3 of the Children in Foster Care Act and stakeholder input. The proposed additions in § 3900.161(a) add details identifying that a restrictive procedure should not be used for coercion or in a punitive manner, for the convenience of facility staff or as a program substitution, for discipline, punishment, retaliation, staff shortages or other administrative convenience. Proposed language also reinforces the stakeholder input related to restrictions of use and the purpose of a restrictive procedure. A restrictive procedure may only be used as a temporary response to a child's or youth's behavior that poses a serious and immediate risk of physical harm to self or others as addressed in § 3900.161(a), expanding the language in § 3800.202(a). Limitations and situations related to the use of restrictive procedures and related reporting requirements under 42 Pa.C.S. Chapter 63, Subchapter G are addressed in § 3900.161(b) and apply to a child or youth who is in any stage of pregnancy, labor or delivery, who has given birth within the last 30 days and is in postpartum recovery or is being transported to a medical facility as a result of the conditions listed in this section.

Language is proposed in § 3900.161(c) to add clarification that emergency safety interventions do not constitute unreasonable restraint. Restrictive procedures may be appropriately used to prevent harm to self or others where less restrictive alternatives have failed, or the nature and timing of the emergency situation prevents use of less restrictive interventions. This expands the circumstances supporting the use of a restrictive procedure currently included as part of § 3800.202(b).

The proposed requirement in § 3900.161(d) requires that the use of restrictive procedures conforms to and reflects the trauma-informed approach adopted and implemented by the facility. This integration supports the inclusion of trauma-informed principles and values in restrictive procedures training and practices as implemented within the facility. This focus on trauma-informed approaches has been addressed throughout the proposed language in this chapter and is presented as a new requirement related to the use of restrictive procedures.

Language proposed in § 3900.161(e)(3) addresses limitations on the use of restrictive procedures identifying use only if the nature of the child's or youth's behavior presents an emergency which prevents use of less restrictive techniques as the first response. This change expands requirements carried over from § 3800.202(c).

§ 3900.162—Restrictive procedure plan

In § 3900.162 (relating to restrictive procedure plan), the department is proposing changes to the current language carried over from § 3800.203 (relating to restrictive procedure plan) to respond to stakeholder requests for clarification. Additional guidance related to the development of a restrictive procedure plan and circumstances constituting an unanticipated use of a restrictive procedure is included. Language proposed in § 3900.162(a) addresses stakeholder concerns related to the definition of unanticipated use by deleting this reference. Proposed language establishes a look-back time frame of 6 months to consider a child's or youth's experiences with restrictive procedures. The proposed language requires that an individualized restrictive procedure plan is to be written and included in the ISP (specified in § 3900.191), prior to use of restrictive procedures for each child or youth with a history of use of restrictive procedures within the past 6 months, and for whom restrictive procedures may be needed.

This 6-month look-back period being proposed as the basis for anticipating that a restrictive procedure intervention may be needed, removes consideration of an extended history which may not be reflective of the child's or youth's current coping abilities, behaviors or needs. Establishing this look-back time frame also reduces the number of plans monitored by the facility, allowing resources to be directed to those children or youth whose behaviors currently reflect a potential need for a restrictive procedure intervention.

Proposed language in § 3900.162(b) also addresses stakeholder concerns related to children or youth with a behavioral health history and anticipated adjustment issues to a new setting. If the child's or youth's behavioral health history identifies them as being at greater risk of having restrictive procedures applied, an individualized restrictive procedure plan shall be developed within 24 hours of admission. This time frame is not addressed in the current language in § 3800.203.

Proposed language in § 3900.162(c)—(e) mirrors § 3800.203(b)—(d).

Proposed language in § 3900.162(f)(1) and (5) are requirements added to the components of a restrictive procedures plan carried over from § 3800.203(e)(1)—(7). Health and safety considerations must be addressed in addition to the child's or youth's trauma history as proposed in § 3900.162(f)(1). A requirement that trauma-informed considerations be reflected in the plan is proposed as an addition in § 3900.162(f)(5).

Several modifications to language in § 3800.203(e) are also proposed. In § 3900.162(f)(2), proposed language expands the requirements carried over from § 3800.203(e)(1) to include that suspected antecedents or reasons for the behavior be identified, which mirrors existing language under Chapter 6400 (relating to community homes for individuals with an intellectual disability or autism). Language proposed in § 3900.162(f)(8) offers clarification to current language carried over from § 3800.203(e)(6) and reflects requirements under 42 Pa.C.S. Chapter 63, Subchapter G that a restrictive procedure plan must address any known health conditions of the child or youth, including pregnancy and postpartum considerations, which may prohibit, limit or be affected by the use of specific restrictive procedures.

Proposed language in § 3900.162(g) and (i) mirrors § 3800.203(f) and (g). Proposed language in § 3900.162(h) adds an additional requirement that a copy of the plan be provided to the child's or youth's parent.

§ 3900.163—Unanticipated use

In § 3900.163 (relating to unanticipated use), the department is proposing language to correspond to changes in § 3900.162 and expanding upon language carried over from § 3800.204 (relating to unanticipated use). This language directs that if use of a restrictive procedure becomes necessary for a child or youth who has not presented a need for this intervention for the past 6 months, a restrictive procedure plan is not required until any type of restrictive procedure is used four times for the same child or youth in any 3-month period.

This section modifies current language carried over from § 3800.204 and addresses responses to a child's or youth's emerging issues and behavior changes, given the absence of a need for restrictive procedures with the child or youth for a period of at least 6 months. This proposed language also addresses isolated incidents requiring a restrictive procedure, as an exception to current and repeated behavior demonstrated by a child or youth. This alleviates the need for a restrictive procedures plan to be developed if and until a pattern of behavior and resulting response is established.

§ 3900.164—Restrictive procedures staff training

In § 3900.164 (relating to restrictive procedures staff training), the department is proposing language to update the required components of restrictive procedures training curricula presented to facility staff. Changes proposed to the current language carried over from § 3800.205(a) (relating to staff training) identify training on restrictive procedures as a requirement for facility staff who, as a result of their job responsibilities, may be involved in a restrictive procedure directly or as an observer. Proposed language § 3900.164(a) adds a requirement that the curriculum used by a facility is both professionally recognized, and based on practice evidence, supporting a trauma-informed approach to responding to the needs of a child or youth in crisis.

Recognizing a positive decrease in the overall use of restrictive procedures as reflected in experiences reported by a variety of stakeholders, the need to increase the frequency of training has been addressed by the department in a variety of stakeholder forums. As utilization of the restrictive procedures is reduced, there is a corresponding increase in the need for more frequent training to maintain awareness of the processes involved and a skill level of the approved techniques.

Proposed additions to the training curriculum content required by § 3800.205(b)(1)—(7) carried over in § 3900.164(b)(2) include understanding the relationship of behaviors, use of restrictive procedures and trauma experienced by the child or youth. Proposed language in § 3900.164(b)(3) and (4) modifies the language carried over from § 3800.205(b)(1) addressing use of de-escalation techniques and alternative nonrestrictive strategies by adding de-escalation as the initial step to defuse a situation. Training must address understanding the value of addressing the child's or youth's feelings with them after use of a restrictive procedure. Training on restrictive procedures is also referenced as a staff training requirement in § 3900.57.

The department is also proposing language in § 3900.164(b)(10) and (11) that the curriculum used by a facility for staff training on use of restrictive procedures address the responsibilities of a facility staff as an observer to a restrictive procedure and staff roles in the debriefing process following use of a restrictive procedure. This is in addition to training also addressing the purpose and value of prompt debriefing.

Although certifications are usually issued for a 1 or 2-year period, the department is proposing a requirement for restrictive procedures training on a more frequent basis. Restrictive procedures and safe crisis management training must be provided twice within a 12-month period with certification occurring as required by the model adopted. These restrictive procedures trainings must include de-escalation techniques and debriefing techniques as addressed in the required staff trainings listed in § 3900.57. If a facility staff has a formal certification from a recognized crisis management training program which is valid for more than 1-year, full retraining is not required until expiration of the certification. An abbreviated version of the restrictive procedures training curriculum may be offered on an interim basis but must include essential components related to de-escalation and staff roles during application of a restrictive procedure as addressed in § 3900.57(f).

Proposed language in § 3900.164(c) expands on the language carried over from § 3800.205(c) by adding identification of the name of the curriculum used and the trainer's qualifications to the required training documentation.

§ 3900.165—Aversive conditioning

In § 3900.165 (relating to aversive conditioning), the department is proposing language consistent with the intent of § 3800.207 (relating to aversive conditioning) with minor changes to the order of presentation of section items.

§ 3900.166—Pressure points

In § 3900.166 (relating to pressure points), the department is proposing language consistent with the intent of 3800.208 (relating to pressure points) with minor changes to the order of presentation of section items.

§ 3900.167—Chemical restraints

In § 3900.167 (relating to chemical restraints), the department is proposing language consistent with the intent of § 3800.209 (relating to chemical restraints) with only minor changes to add clarity and the order of presentation of section items.

§ 3900.168—Physical restraints

In § 3900.168 (relating to physical restraints), the department is proposing changes to current language carried over from § 3800.211 (relating to manual restraints). This includes identifying these interventions as physical restraints rather than using the outdated terminology of manual restraints. This change supports consistency across regulatory chapters within 55 Pa. Code (relating to Human Services).

Minor changes are proposed to the existing § 3800.211 deleting the definition of "manual restraint" and adding the definition of "physical restraint" in § 3900.168(e) as a physical hands-on technique that restricts the movement or function of a child or youth or portion of a child's or youth's body, eliminating any time frame.

Proposed language in § 3900.168(e) adds examples of physical assist interventions that are not considered to be physical restraints including verbal redirection, physical prompts or escorting and guiding a child or youth, providing the child or youth does not resist. This change omits language in § 3800.211(a) that includes a therapeutic hold for a child who is 8 years of age or younger for less than 10 minutes during which the child does not physically resist as not being a physical restraint. This clarification was requested by stakeholders and is projected to result in more accurate accounting and documentation of actual restrictive procedures implemented.

An additional change in § 3900.168(a) broadens the prohibition of any prone position, which would include use of prone restraints for girls who are pregnant, eliminating the need for the language in § 3800.211(c) which prohibits prone restraints for girls who are pregnant. To reflect language similar to § 6400.208(d) (relating to physical restraint), the department is proposing adding clarification in § 3900.168(b) that a physical restraint that inhibits digestion, inflicts pain, causes embarrassment or humiliation, causes hyperextension of joints, applies pressure on the chest or joints or allows for a free fall to the floor is prohibited.

In § 3900.168(c) and (d), the department is proposing to mirror § 3800.211(d) and (e).

§ 3900.169—Exclusion

In § 3900.169 (relating to exclusion), the department is proposing changes to the language carried over from § 3800.212 (relating to exclusion). Additional clarification to the definition of exclusion is offered in § 3900.169(h) identifying exclusion as the involuntary isolation or removal of a child or youth from their immediate environment and restricting the child or youth to being alone in a room or area. Exceptions noted include that if a facility staff remains in the exclusion area with the child or youth, it is not exclusion. Exclusion also does not include a child or youth voluntarily choosing to move to and remain by themselves in an area to self-regulate.

Language proposed in § 3900.169(a) identifies that no form of exclusion is permitted for any reason other than as a temporary response to a child's or youth's behavior that poses a serious and immediate risk of physical harm to self or others. A child or youth placed in exclusion must be released as soon as the serious and immediate risk of physical harm abates.

Compliance with 42 Pa.C.S. Chapter 63, Subchapter G related to the use of exclusion involving a child or youth who is pregnant or postpartum is addressed in § 3900.169(b). Authorization requirements to approve use of exclusion with a pregnant or postpartum child or youth and documentation requirements are addressed in this statute.

Proposed regulatory requirements listing actions to be taken by facility staff before a child or youth can be placed in exclusion addressed in § 3900.169(d) include that a staff member must explain the reason for the isolation and inform the child or youth that release will occur as soon as the child or youth regains self-control and the serious and immediate risk of physical harm is no longer present. The proposed changes to subsections (b) and (d) reflect stakeholder input and research related to the potential effects of exclusion on a child or youth.

In § 3900.169(d)—(g), the department is proposing to mirror § 3800.212(b)—(e).

§ 3900.170—Restrictive procedure records

In § 3900.170 (relating to restrictive procedure records), the department is proposing changes to the language carried over from § 3800.213 (relating to restrictive procedure records) to require that a record of restrictive procedures be maintained in both in an electronic restrictive procedures log and in the child's or youth's record. The proposed change to § 3900.170(a) is to ensure that an aggregate experience log is maintained in addition to a record of child or youth specific experiences. Documenting information in this manner will support monitoring by the department.

Proposed additions to the content of the restrictive procedures log in § 3900.170(a)(1)—(9) expanding the content required in existing § 3800.213(1)—(8) include the addition of information related to the circumstances that led to the restrictive procedure being used, the location the procedure was used in addition to the date, time and the facility staff involved in the procedure.

Proposed language in § 3900.170(b) will require facility management to develop and implement a process to support debriefing after each restrictive procedure. Details of requirements related to the debriefing process are addressed in § 3900.170(b)(1) and (2) and include a listing of participants to be involved in this debriefing process and the time frame of 48 hours by which the debriefing process must occur. Related research and guidance offered by the Federal Substance Abuse and Mental Health Services Administration (SAMHSA) support these proposed changes. Resources reviewed include https://psychology.town/advanced-social/importance-of-debriefing-social-psychological-research/; R3 Report: New and Revised Restraint and Seclusion Requirements for Behavioral Health Care and Human Services Organizations at https://www.jointcommission.org/en-us/standards/r3-report/r3-report-44 released by the Joint Commission (accreditation standards); Federal guidance including 42 CFR 483.370 (relating to postintervention debriefings); and research often cited Everly, G.S. & Mitchell, J.T. (1997). Critical Incident Stress Management (CISM): A New Era and Standard of Care in Crisis Intervention.

Ellicott City, MD: Chevron and a SAMHSA Issue Brief #1: Promoting Alternatives to the Use of Seclusion and Restraint: A National Strategy to Prevent Seclusion and Restraint in Behavioral Health Services at https://olis.oregonlegislature.gov/liz/2025R1/Downloads/PublicTestimonyDocument/170388.

The outcomes of the debriefing process including identification of the need to modify facility policies or procedures, facility operations, staffing and supervisory patterns, interventions used or staff and child training needed, are to be documented and maintained as part of the event record as proposed in § 3900.170(c). Additional requirements proposed in § 3900.170(d) and (e) will require facility management to establish a policy addressing the analysis and use of restrictive procedures data gathered as part of the facility's continuous improvement process. Facility staff must then incorporate the debriefing findings and related data into the facility quality improvement process.

Proposed language in § 3900.170(f) and (g) will require the aggregate data relevant to incidents of restrictive procedures implemented be used in the facility's continuous quality improvement process. Facility-specific analysis of the aggregate data compiled, and any quality improvement plans developed as a result of the analysis, are to be made available to the department on an annual basis at the time of licensure renewal. In addition, a facility will be required to make aggregate restrictive procedures data available to the department within 2 business days upon request as proposed in § 3900.170(h). Proposed language in § 3900.170(i) will require facility staff to document that the child's or youth's parent was notified of the use of a restrictive procedure within 4 hours of use ending.

Subchapter M—Services (§§ 3900.181—3900.195)

§ 3900.181—Supporting family contact and involvement

In § 3900.181 (relating to supporting family contact and involvement), the department is proposing language to address new requirements related to family involvement. Family engagement is a prerequisite for helping the family achieve their goals, particularly reunification and long-term stability. National attention has also been focused on the practice priority of increasing family involvement with juvenile justice services. This is directly reflected in the research and practice changes promoted by the Pennsylvania Council of Chief Juvenile Probation Officers (PCCJPO) and addressed in the handbook developed for families "Pennsylvania Juvenile Justice Family Guide," available at Family Engagement—PCCJPO at https://www.pachiefprobationofficers.org/family_engagement.php.

The importance of family engagement in identifying individual child and parental needs, as well as areas for system improvement, is also well established in the literature and research. The Child Welfare Information Gateway, a resource developed by the United States Department of Health and Human Services, Administration for Children and Families (ACF), Children's Bureau, offers a long list of resources and research addressing techniques, models and benefits related to effectively engaging families. https://www.childwelfare.gov/. A bulletin issued by ACF in July 2021, *Family Engagement: Partnering with Families to Improve Child Welfare Outcomes*, also identifies the benefits of family engagement noting that this is central to successful practice. This resource can be found at Family Engagement: Partnering With Families to Improve Child Welfare Outcomes | [F]amilyFirstAct.org at https://www.familyfirstact.org/resources/family-engagement-partnering-families-improve-child-welfare-outcomes. The article identifies that "Effective family engagement occurs when child welfare practitioners actively collaborate and partner with the family network, including maternal and paternal relatives throughout their involvement with the child welfare system and recognizing them as the experts on their respective situations and empowering them in the process." Id.

The proposed language in § 3900.181 addresses expectations of facility management and facility staff specific to supporting family involvement, which is not referenced in Chapter 3800. This addition will require updated child residential, secure care and detention facility policy requirements to reflect current priorities established at both the National and Commonwealth level.

In § 3900.181(a), the department is proposing that facility management develop policies and procedures that demonstrate support for contact between the child or youth and those individuals, including parents, guardians, former caregivers, siblings and other persons identified by the child or youth as having a positive, significant connection with them. Soliciting this information is a significant change in requiring that facility policies reflect the value of maintaining these connections for children and youth. Supporting continuity in these relationships supports the child's or youth's long-term stability and positive outcomes and is included as a child right in § 3900.32(h).

The proposed language in § 3900.181(b) and (c) includes requirements that facility management develop and implement policies that support family involvement in service and treatment planning, visitation, educational programming and discharge planning, and that these policies be reflected in the program description. These policies, in addition to child rights and grievance procedures, discipline, person and property search, emergency preparedness plan, restrictive procedures policies and others listed in this subsection are to be included in the written information packets provided to the child or youth and parent at admission as required in § 3900.31(d). Facility management and facility staff have a critical role in creating an environment which makes it comfortable and realistic for a child's or youth's family to remain connected to their child or youth while at the facility

The department is proposing specific components in § 3900.181(e) that must be reflected in a facility's family involvement policy. This list of eight required components has been developed with stakeholder input which reflects requests made and questions asked by family members. Stakeholders agreed that providing this information in written facility policies as a routine practice allows the family to review it as needed. Information to be included in a facility's family involvement policy includes basic information related to phone, virtual or in-person contacts and specifics related to the scheduling of family visits and any additional restrictions specific to the courts or home pass requirements, if applicable.

To support family involvement, proposed § 3900.181(f) will require that facility management identify a point of contact for the family of the child or youth to support coordination of their contacts and visits as well as exchange of information and updates. Designated facility staff must engage the family in identifying their preferences for the facility staff to inform them about health care services scheduled and provided for the child or youth if their parent is not present, reportable incidents filed as required in § 3900.16(m), use of restrictive procedures addressed in § 3900.162 and ISP and dis-

charge planning meetings referenced in §§ 3900.190 and 3900.195 (relating to transfer or discharge).

Compliance with court orders that restrict contacts, and consideration of clinical recommendations related to the appropriateness of contacts with identified individuals based on the child's or youth's history, are addressed in § 3900.181(g).

Requirements as proposed recognize that facilities often must defer to the contracting agency preferences to exercise a lead role in coordination and communication with family members. However, newly defined staff roles defined in §§ 3900.55 and 3900.181(h) clearly address facility staff responsibilities for communicating with and engaging family members.

As proposed in § 3900.181(i), a copy of the facility's visitation and contact policies must be posted in an easily accessible and visible location at the facility.

Language proposed in § 3900.181(j) is specific to the child or youth, and the child's or youth's parent, being informed about the facility's policies in an easily understood manner and in the child's and in the child's or youth's and the child's or youth's parent's primary language or mode of communication. A copy of the facility's policies shall be given to the child or youth and the child's or youth's parent upon admission.

Documentation of receipt of this policy by the child or youth, and the child's or youth's parent, is proposed as a requirement in § 3900.181(k). If the parent is unable or unavailable to sign verification of receipt, facility staff must document efforts made to obtain a parent's signature in the child's or youth's record.

As addressed in § 3900.181(l), the department is requiring that to support the child or youth having a substantive relationship with at least one adult, facility staff are to work with the contracting entity to support family finding efforts and support identification of potential connections for the child or youth if no family members are identified by the contracting entity or child or youth. This relates to the right of a child or youth to have a relationship with a safe, stable and reliable adult as addressed in § 3900.32(e)(4).

§ 3900.182—Family time and home visit follow-up

In § 3900.182 (relating to family time and home visit follow-up), the department is proposing requirements that will require facility staff to document the experiences of a child or youth while they are engaging with family members during family time away from the facility and during home visits. Proposed § 3900.182(a) requires that facility policies include requirements for facility staff to initiate contact and check-in with the child or youth and parent during family time and home visits that occur away from the facility.

This contact process addressed in § 3900.182(b) is to include at least one attempted documented verbal contact with the child or youth and parent every 24 hours during family time and home visits. The content of this communication with the parent and child or youth must be documented and recorded in the child's or youth's record with the intended focus on monitoring the child's or youth's safety and comfort. These requirements related to facility staff contacts during family time and home visits and follow-up contacts addressed in § 3900.182(c) were developed based on stakeholder workgroup input and discussions of options to address the safety and comfort of children and youth as they were returning to their homes and communities for time with their family.

Proposed language in § 3900.182(c) will also require that within 2 business days of the child's or youth's return, the facility staff initiate and engage in a focused discussion with the parent regarding the visitation experiences, unless the child or youth shares a concern or issue related to their health or safety which supports that a more immediate conversation occur with the parent.

A proposed requirement in § 3900.182(d) addresses expectations that a discussion initiated by facility staff with the child or youth within 72 hours of the child's or youth's return to the facility will also be required. This discussion with the child or youth will serve to review their experiences while with their parent and family. This is intended to support follow-up to document and address any concerns shared by the child and to reinforce and document positive experiences. The 3-day period identified for this discussion to occur allows for consideration of the scheduling and availability of the facility staff responsible for primary coordination of family time and home visits.

Language proposed in § 3900.182(e) will require that facility staff document the experiences of a child or youth, including information shared by both the parent and the child or youth, while they are engaging in time with family away from the facility. The content of the conversations with the parent and child or youth are to be documented and recorded in the child's or youth's file with the intended focus of monitoring the safety and comfort level of the child or youth during these visits.

Language proposed in § 3900.182(f) requires that facility staff communicate to the contracting agency if contact with the child, youth or parent is not made during the course of family time away from the facility or a home visit despite documented efforts. Facility staff are to work with the contracting agency to factor this inability to connect with the family into planning for future visits.

Stakeholder input supports the additional requirements proposed in this section as they create a process to gather and document feedback from family and the child or youth, which were identified as productive opportunities to engage both the child or youth and family in moving toward identified goals. While opportunities for home visits may be limited for children or youth adjudicated delinquent in secure settings, the department is proposing the provisions in this section to provide a frame of reference and a regulatory structure for when home visits do occur.

§ 3900.183—Child and youth involvement

In § 3900.183 (relating to child and youth involvement), the department is proposing language to address new requirements related to child and youth involvement. Maintaining open lines of communication and engaging a child or youth in their case planning provides them with the opportunity to be directly involved in decisions that affect and concern their lives. The Child Welfare Information Gateway, a resource developed by the United States Department of Health and Human Services, ACF, Children's Bureau, offers a long listing of research articles and practice guidance related to the value and benefits of actively engaging youth in the decision-making processes. The site notes that youth engagement can be an effective approach in promoting self-esteem, a greater sense of control, and the acquisition of new skills (https://acf.gov/cb/policy-guidance/im-19-03; see also ACYF-CB-IM-19-03). Section 3(22) of the Children in Foster Care Act (11 P.S. § 2633(22)) also addresses the right of a child in placement to be provided with the opportunity to be involved

in the development of a permanency plan and transition plan. Further, older youth have provided feedback that they are more likely to participate and become engaged in planning discussion if they believe the process is real and relevant to their individualized circumstances. This expectation of child or youth involvement in planning activities as their right is also addressed in § 3900.32(e).

Proposed language in § 3900.183(a)(1) identifies that facility policies must address how communication between facility staff and a child or youth will be encouraged and maintained while respecting appropriate interpersonal and confidentiality boundaries. These issues are also addressed in facility staff training in § 3900.57 and youth training in § 3900.184 (relating to youth training). Policies must also address how a child or youth is provided with opportunities to be directly involved in their case planning process and decisions that affect and concern their lives as required in § 3900.183(a)(2) and as referenced in § 3900.32(n).

Reflecting provisions under sections 111 and 113 of the Preventing Sex Trafficking and Strengthening Families Act, the department is also proposing eight additional areas that facility policies need to address related to child or youth involvement in § 3900.183(a)(3)—(10). These requirements include how age and developmentally appropriate opportunities for social, cultural, extracurricular and enrichment activities and experiences are supported within the facility, if appropriate, or identification of options for post-discharge opportunities and how a child or youth will be engaged in planning for their academic education or vocational development. Proposed language in § 3900.183(a)(5) also includes requirements that facility policies address how a child or youth will be provided an opportunity to work and develop job skills at an age-appropriate level. Further, § 3900.183(a)(6) includes requirements to address how a child or youth will be supported to receive appropriate life skills training and independent living services to prepare them for the transition to adulthood.

Special considerations for the involvement of a child or youth who is adjudicated delinquent are proposed by the department in § 3900.183(a)(7)—(10) based on juvenile justice stakeholder input. There is an expectation that even in a secure setting, a child or youth will be provided with opportunity to work and develop job skills at an age-appropriate level as may be reasonably accommodated, especially if they are directed by the court to make restitution for harm done to a victim. Further, restitution opportunities are specifically addressed in § 3900.183(a)(7), including how a child or youth will have opportunities to engage in activities that allow them to earn money and complete community service hours to meet their restitution obligations. Under § 3900.183(a)(8) and (9), facility policies are required to address how a child or youth will have opportunities to be engaged in activities to increase their awareness of the impacts of their action on their victim or victims is included and how a child or youth will have opportunities to engage in programming that addresses the child's or youth's identified criminogenic risks and needs. Facility policy requirements addressed in § 3900.183(a)(10) include opportunities for a child or youth to develop vocational skills and obtain certifications to prepare them for employment reflecting areas addressed in § 3900.32.

The department is proposing in § 3900.183(b) that facility staff demonstrate meaningful age and developmentally appropriate child or youth engagement in case planning including what efforts will be made to successfully transition the child or youth to self-sufficiency and adulthood.

§ 3900.184—Youth training

In § 3900.184, the department is proposing regulatory requirements for each facility to select or develop and deliver training and educational supports to youth that address sex-trafficking related issues. The Preventing Sex Trafficking and Strengthening Families Act, the Trafficking Victims Protection Act of 2000 (Pub.L. 106-386, 114 Stat. 1464) and the Family First Prevention Services Act (42 U.S.C. § 671(a)(9)(C)) require policies and procedures for identifying and documenting experiences and determining appropriate services for any child or youth under their care and supervision for whom the State has reasonable cause to believe is, or is at risk of being, a victim of sex trafficking or a severe form of trafficking in persons. The Commonwealth enacted 23 Pa.C.S. Chapter 57 (relating to sex trafficking and missing and abducted children), which includes provisions to ensure that suspected or known child or youth victims of human trafficking are properly identified, screened and assessed. Reports involving children or youth who are suspected or known to be victims of sex trafficking must be properly investigated and victims are to be provided with necessary treatment and services. Children and youth involved with child welfare and juvenile justice systems are determined to be at elevated risk of human trafficking or being commercially sexually exploited based on their vulnerability due to pre-placement experiences. Although a trafficker can target any child or youth, children and youth experiencing trouble at home or in the community are especially vulnerable.

Further, 42 Pa.C.S. Chapter 63, Subchapter G requires additional educational programming on specified topics related to prenatal, medical care and other pregnancy and postpartum issues that must be provided to a child or youth who is pregnant or postpartum.

The Field Center for Children's Policy, Practice & Research, University of Pennsylvania conducted a study in 2018 titled, "*Human Trafficking Prevalence and Child Welfare Risk Factors Among Homeless Youth*." https://fieldcenteratpenn.org/wp-content/uploads/2022/12/6231-R9-DC-Site-Report-Web.pdf. This study investigated the role of child welfare risk factors for trafficking victimization, including history of maltreatment, involvement in the child welfare system, social support networks, living situation and preparation for independence. Children and youth who have been maltreated were particularly vulnerable, with 95% of those who were sex trafficked reporting a history of child abuse or neglect. The literature further reveals that children and youth within the care of the child welfare system are particularly susceptible to traffickers who target and take advantage of their emotional and physical vulnerability. When a child or youth exits the foster care system, or is discharged from congregate care, having reached the age of majority ("aging out"), they frequently do so without the benefit of the skills or resources needed to be successful. Without access to jobs or adequate wages, skills for independence, a place to live or connection to a caring adult, youth exiting the child welfare system are particularly vulnerable to traffickers.

As a result, the proposed training topics for youth listed in § 3900.184(a)(1)—(5) address the heightened risks for being or becoming involved in sex trafficking activities experienced by a youth in placement settings. These trainings include a focus on sex trafficking warning signs

and grooming techniques used by sex traffickers. Personal and social media safety, relationship boundaries, developing healthy connections and reducing risks are also to be discussed with youth. Training curriculum selected, however, must be youth friendly as proposed under § 3900.184(b). Specific topics to be addressed in sessions for youth are included in § 3900.184(c)(1)—(8).

In addition to the aforementioned proposed requirements, training on youth rights and facility grievance procedures as addressed in § 3900.184(d) is to be provided to youth at admission, as their ISP is developed and as part of each ISP review. This requirement does not limit facility management from also offering similar training in a group setting jointly to youth and facility staff. Training must also be provided to youth related to the facility's policies for searches of person and property as proposed in § 3900.184(e).

Special training topics for youth who are adjudicated delinquent are being proposed by the department in § 3900.184(f)(1)—(3) to reflect practice priorities developed by juvenile probation as the contracting agency. These requirements to be reflected in facility policies and training opportunities presented to youth include decision making and logical consequences, vocational and employment opportunities and related skills and education required, and anger and frustration management.

In § 3900.184(g), the department is proposing language to support compliance with 42 Pa.C.S. Chapter 63, Subchapter G related to educational programming topics required for pregnant or postpartum children or youth.

In § 3900.184(h), facility-defined qualifications of individuals delivering these trainings are identified as required components of the facility's program description. This allows each facility to identify and access available resources, which may include facility staff, to support the delivery of the required trainings. Relevant information describing trainings available to youth is also proposed as an addition to the program description in § 3900.185 (relating to description of services).

As addressed in § 3900.184(i), facility staff may attend these training sessions with youth, which may count as training hours and be included in meeting staff training requirements addressed in § 3900.57. The department recognizes the potential benefits of this shared learning opportunity and is proposing this option in response to stakeholder input.

Additional proposed requirements outlined in § 3900.184(j) include that facility management document all training completed including the name of the staff person or youth trained, date, source, facility-defined qualifications of the trainer, content, length of each course and copies of any certificates received in the facility's files. Youth attendance at the training sessions shall also be documented in the youth's record.

§ 3900.185—Description of services

In § 3900.185, the department is proposing significant changes to current language carried over from § 3800.221 (relating to description of services) based on input from diverse stakeholder groups. Contracting agency staff identified a need for greater details in the descriptions of services provided and purchased. This expanded language supports clarity in services and interventions to be delivered to the children, youth and families, and increases the level of accountability of all parties. Stakeholders were very vocal about the need for facility management to maintain compliance with the description of services as presented in the daily operations of the facility.

The proposed requirements are also based on comparison with other regulatory chapter requirements, including Chapters 3270, 3680, 6400 and 6500. Changes in Federal and State laws addressing service planning requirements, family participation in planning, youth input and participation in transition planning, opportunities and rights extended to children and youth in placement and safeguards related to risks of youth involvement in sex trafficking have occurred over the past two decades since adoption of Chapter 3800. Advances in practice including evidence-based models and trauma-informed approaches also support these proposed additions. These changes are reflected in the proposed requirements in this section.

Program description requirements proposed by the department reflected in § 3900.185 include specific obligations of the facility management to ensure that a written description of each child residential service addressed in Chapter 3900 is provided to the department and contracting agency. The department has included proposed language in § 3900.185(a) that a program description may apply to more than one facility.

Components of a written program description proposed in § 3900.185(b)(1) and (4) include easily identifiable program activities and objectives and anticipated outcomes. The methods by which the program services are delivered; whether they are provided directly by the agency, or through written agreement with another community-based or social service agency are also to be addressed in detail. This proposed language replaces current requirements in § 3800.221(1) and (3) that the written program description includes the scope and general description of the services provided by the facility and specific activities and program provided by the facility.

Proposed language in § 3900.185(b)(2) and (3) expands the language carried over from current § 3800.221(2) and includes criteria and procedures for a child's or youth's acceptance into the program including admissions process and facility-required referral information and a description of the number and types of children and youth served, including age, sex and significant emotional or behavioral characteristics. Exclusions to admission are also to be included in the description of services as addressed in § 3900.185(b)(3). If facility policies prohibit admission of a pregnant child or youth, facility management is required to submit a written request to the department for exemption from compliance with 42 Pa.C.S. Chapter 63, Subchapter G.

The number and qualifications of facility staff responsible for providing daily child and youth supervision and the individual and group program services, including identification of the person responsible for administering the program required in § 3900.185(b)(5) was specifically requested by contracting agencies to address the qualifications of staff involved in the delivery of direct services and activities with children and youth. While staff qualifications for select positions are addressed in §§ 3900.53, 3900.54, 3910.21, 3920.11 and 3920.12, there are also many additional facility staff who are involved in the delivery of services to children and youth at a facility.

Recognizing that staff recruitment and retention will likely continue to be a long-term challenge for facility management, stakeholders still voiced a direct need to have information specific to staffing patterns and a presentation of the overall organizational structure of the facility as a significant consideration in making referrals.

Proposed language will require that facility management provide a detailed description of the trauma-

informed approach adopted by the facility. This includes confirmation of facility staff training and credentialing, monitoring conformity to the model and incorporation of the adopted approach in policies, procedures and interactions with children and youth in the facility as addressed in § 3900.185(b)(6). These proposed requirements reflect the increased attention and requirements related to trauma that are integrated throughout this chapter. This focus reflects the requirements in the Family First Prevention Services Act (See 42 U.S.C. § 671(e)(5)(B)(viii)) addressing trauma and related department activity.

Specialized training provided to facility staff and youth on sex trafficking awareness, assessment and screening practices, and social media and cyber security cautions as required in staff and youth training sections §§ 3900.57 and 3900.184 is included under § 3900.185(b)(7). The process used to provide screening, assessment and services for children and youth who are victims and children and youth at risk of becoming victims of sex trafficking is proposed under §§ 3900.187—3900.189 (relating to screening for sex trafficking experiences; assessments for sex trafficking experiences; and treatment planning for victims of sex trafficking) must also be addressed in the program description as referenced in § 3900.185(b)(8). These proposed requirements reflect the increased attention and requirements related to sex trafficking that are integrated throughout this chapter.

Proposed language in § 3900.185(b)(9) addresses the degree and method of family and youth involvement in the program and methods used to maintain family involvement and support family contacts as required in §§ 3900.18—3900.183, which must also be included in the program description.

Other professional services available to a child or youth, such as psychological and psychiatric services, and support groups are addressed under proposed § 3900.185(b)(10). Under this proposed rulemaking, the program description must include details describing the extent to which these services are available, including the number of professionals available to provide the service and the average number of hours per week the service is available. Additional program elements to be included in the program description are behavior management policies and techniques, including policies related to person and property searches conducted by facility staff under § 3900.185(b)(11), which also reflect proposed requirements in § 3900.41.

Proposed language in § 3900.185(b)(12)—(14) will require that information related to core program areas, including grievance policies, discipline practices and education and vocation services provided or available in the community to be detailed in the program description. Age and developmentally appropriate recreational and enrichment activities, including community-based opportunities, are addressed in § 3900.185(b)(15). Life skill, enrichment and personal safety training sessions under § 3900.184 are also included as part of the program description in § 3900.185(b)(16). Further, basic child and youth rights under § 3900.32(p)—(r) regarding religious and cultural observances and physical health care services are to be addressed in the program description as proposed in § 3900.185(b)(17) and (18).

Reinforcing the value and benefits of evidence-based practices, § 3900.185(b)(19) proposes to require a detailed description of evidence-based practices adopted by the facility. This includes confirmation of staff qualifications and training, fidelity monitoring processes and evidence of the incorporation of the approach in policies, procedures and interactions with children and youth in the facility as required components of the program description, when a practice is in use by a facility. While neither evidence-based practices are required, nor specific models are prescribed, contracting agency stakeholders identified a need to have ready access to this information if a practice is offered as it impacts the interventions available, as well as cost considerations.

In addition, the proposed requirements under paragraphs (20) and (21) reflect the increased attention and requirements related to human trafficking that are integrated throughout this chapter. Additional components of a program description included in § 3900.195(b)(20) address safety considerations; specifically, any enhanced physical site safety or personal safeguards incorporated into facility programming, including runaway prevention planning. If a facility permits children and youth to have cell phones or internet access, specific policies and practices are required to be developed and implemented to support the child or youth participating in safe social media and electronic communications, as proposed under § 3900.185(b)(21). Social media, cell phone and Internet access are not required; however, it is a consideration in creating and supporting age and developmentally appropriate opportunities for children and youth at a facility.

Any special program components and admission procedures addressing emergency or unplanned placements accepted by the facility are to be addressed in the program description as referenced in § 3900.185(b)(22). Discharge planning and teaming processes, including transition and aftercare services, are to be described, as applicable, under § 3900.185(b)(23).

The proposed language in § 3900.185(b)(24) will require that details related to the emergency preparedness plan adopted by facility management be reflected in the program description.

The proposed language in § 3900.185(b)(25) will require a description of the quality improvement process adopted by facility management to compile, analyze and evaluate data as part of the program description. This quality improvement process provides a foundation to assess overall performance and areas needing improvement.

Facilities identified in proposed § 3900.88(a) are required to install and use a video surveillance system and those voluntarily installing and using such a system must include the facility policies developed and implemented related to system use in the program description as addressed in § 3900.185(b)(26).

The proposed requirements listed in § 3900.185(c) are based on input from juvenile justice contracting agency stakeholders. Proposed requirements in § 3900.185(c)(1) address areas specific to juvenile justice priorities including interventions available to directly respond to a delinquent child's or youth's identified risks and needs in the juvenile justice identified domains, and the recommended dosage and duration of programming.

Opportunities available to a child or youth to engage in community service and paid activities as restitution options and any other internal programming addressing juvenile justice priorities and related subcontracted or community-based services accessed are to be included in the program description as addressed in § 3900.185(c)(2). The department is also proposing in § 3900.185(c)(3) that facility management serving children or youth who are adjudicated delinquent also include information describing other internal programming addressing juvenile justice priorities and related subcontracted or community-based services accessed in program descriptions.

The department is proposing in § 3900.185(d)—(f) requirements addressing facility management responsibilities to comply with the description of programing as presented. Facility management will be responsible for operating a facility in accordance with the program description and ensure that the program description is reviewed on an annual basis and amended or modified if needed. The department and the contracting agency are to be notified within 30 days of any program changes made to the program description. These requirements reflect the input of contracting agency stakeholders and licensing experiences. Stakeholders supported this change to increase the accountability of service providers to deliver the services as described.

§ 3900.186—Procedures upon return of a missing child or youth to the facility

In § 3900.186 (relating to procedures upon return of a missing child or youth to the facility), the department is proposing regulatory requirements for facility management to develop and implement policies and procedures addressing the process to be followed when a child or youth returns to the facility from being missing or identified as a runaway. These proposed changes recognize the connection between steps to be taken and the urgency of reporting a child or youth as missing as soon as it is determined that their whereabouts are unknown to facility staff and when a missing child or youth returns to the facility as proposed under § 3900.186(b)(8) and (9).

Proposed language in § 3900.186(b)(1)—(11) lists the components to be included in facility policies addressing the process to be followed by facility staff when a child or youth returns to the facility after being missing or identified as a runaway. Specifics as addressed in § 3900.186(b)(1)—(3) are focused on the child's or youth's immediate needs for basic physical needs including food, personal hygiene needs and appropriate clothing. Facility staff will be required to immediately complete a visual, non-invasive screening of the child or youth to check for injuries, new tattoos or markings and must arrange additional medical evaluations for the child or youth, if needed, to ensure prompt attention to any identified or suspected medical needs. Stakeholders identified that the initial responses to a child or youth returning to the facility need to focus first on their physical wellbeing prior to exploration of their experiences while away from the facility.

Proposed language in § 3900.186(b)(4) addresses the process for facility staff to follow to update the child's or youth's health and safety screen (if the child or youth has been in the facility less than 30 days) and ISP, including how staff will be notified of interim changes until the child's or youth's plan can be updated. Facility staff will be required to conduct sight and sound checks once every 15 minutes until the child's or youth's health and safety plan or ISP is updated. Plan updates must also address the level of staff supervision needed based on reasons the child or youth ran away or went missing from the facility which are listed in § 3900.186(b)(5)(i)—(v).

Facility policies must also identify the facility staff positions responsible to notify law enforcement, the contracting agency and other identified parties within 8 hours of the child's or youth's return, and who is responsible for a follow-up conversation with the child or youth within 24 hours of their return to gather information related to experiences, locations and other persons involved, and triggers that caused the child or youth to run or go missing as referenced in § 3900.186(b)(6) and (7).

Proposed language in § 3900.186(b)(8) and (9) requires that a staff position be identified as being responsible for completing a sex trafficking screening tool and identifying where the child or youth was while on runaway from the facility. Additional staff responsibilities listed in § 3900.186(b)(10) address responsibilities for making the determination as to whether a sex trafficking assessment is needed based on the screening findings and where a referral for this assessment will be directed.

The department is also proposing a requirement in § 3900.186(b)(11) that facility management develop a debriefing process addressing runaway prevention efforts including identification of service gaps or other issues related to the child's or youth's motivation to run and facility staff attempts to intervene. This proposed requirement is consistent with other proposed requirements in this chapter addressing a debriefing process after an incident to structure an opportunity to review circumstances and identify potential remedies to prevent recurrence.

Proposed requirements in § 3900.186(c) require the facility staff to maintain documentation of actions taken to implement the facility policy addressing a child's or youth's return to the facility after being missing, reflecting on the resolution of the incident, as part of the agency's reportable incident files. This requirement is related to the resolution of § 3900.16(a)(8) which addresses a child's or youth's whereabouts being unknown to staff as a reportable incident. Secure facilities have a heightened responsibility to document these situations as there may be a threat of harm or risk to the community based on the youth's history.

Proposed language in § 3900.186(d) will require facility staff to add the updated information to the child's or youth's ISP, no later than the next monthly review, addressing reasons why the child or youth ran, steps taken to prevent a repeat episode and how healthy peer relationships will be supported. Stakeholders identified that making modifications to the child's or youth's health and safety screen, which is completed at admission, is an important first step and response to a child or youth returning to the facility if an ISP has not yet been developed. Immediate staff awareness of any new information obtained specific to the child's or youth's experiences is supported by completion of an updated screen until a more thorough discussion can be scheduled with the child's or youth's team to update their health and safety plan and ISP if needed. The process and timeline for the ISP to be updated is addressed in § 3900.192 (relating to review and revision of the ISP).

§ 3900.187—Screening for sex trafficking experiences

In § 3900.187, the department is proposing regulatory requirements that each facility have trained staff available to conduct a sex trafficking screening. The screening is required by section 101 of the Preventing Sex Trafficking and Strengthening Families Act and 23 Pa.C.S. Chapter 57, which includes provisions to ensure that suspected or known child or youth victims of human trafficking are properly identified, screened and assessed. Further, stakeholder input supported this proposed requirement to ensure ready access to facility staff who are trained and available to conduct this screening at the request of the contracting agency.

Screening a child or youth for sex trafficking experiences is usually the responsibility of the contracting agency, however, the county children and youth agency or JPO may request that facility staff complete this screen-

ing process as proposed under § 3900.187(a). Stakeholder input supported this requirement to ensure ready access to facility staff who are trained and available to conduct this screening at the request of the contracting agency.

Proposed regulatory language in § 3900.187(b) identifies that only facility staff specifically trained in the sex trafficking screening process adopted by the facility are permitted to complete the screening of a child or youth who returns from a runaway episode or as identified as necessary during the child's or youth's placement. Using only staff trained to conduct this screening supports consistency, sensitivity and thoroughness in this process. Facility staff conducting the screening are to provide or arrange for a sex trafficking assessment if indicated by the screening tool results as addressed in § 3900.187(c).

Proposed language in § 3900.187(d) addresses the documentation requirement for the child's or youth's screening to be maintained in the child's or youth's case record.

§ 3900.188—Assessments for sex trafficking experiences

In § 3900.188, the department is proposing new requirements which will require that each facility have a facility clinician or specifically trained facility staff prepared to complete a sex trafficking assessment at the request of the contracting agency. The assessment is required by section 101 of the Preventing Sex Trafficking and Strengthening Families Act. Although assessments are most often completed by the local Children's Advocacy Center, a request may be made by the contracting agency for a facility to complete this assessment after a child or youth returns from a runaway episode or as needed during the child's or youth's placement. Stakeholder input supported this requirement to ensure ready access to facility clinicians or facility staff who are trained and available to conduct these assessments at the request of the contracting agency.

As addressed in § 3900.188(b), following completion of this assessment, referrals for treatment related to sex trafficking experiences are to be initiated, if needed, with documentation of these referrals reflected in the child's ISP in § 3900.191 and case record.

Proposed language in § 3900.188(c)—(e) addresses the requirements for training of facility staff responsible for completing these assessments. Facility clinicians and designated facility staff responsible for completing assessments must complete training specific to the sex trafficking assessment process as required by the department and supported by stakeholder input. This training is generally offered by the county children and youth agency or local Children's Advocacy Center and must be completed prior to any assessment being conducted.

Training on the sex trafficking assessment process must include information about available, relevant and accessible community-based services to respond to the child's or youth's specific needs identified as part of the assessment. The department is supporting the use of existing community-based services whenever appropriate and available.

This assessment training may be counted to meet the annual mandatory staff training requirements addressed in § 3900.57. The sex trafficking assessment training content, dates of completion and the trainer's identification and their credentials must be documented and maintained in staff training files as addressed in § 3900.188(f) following the same documentation requirements addressed in a number of other sections in this chapter.

§ 3900.189—Treatment planning for victims of sex trafficking

In § 3900.189, the department is proposing language which will require that facility program descriptions address how the development of an individualized treatment plan for each child or youth identified as a victim of sex trafficking will be supported. As proposed under § 3900.189(b), facility management shall develop program policies for facilities serving victims of sex trafficking that specifically address how the facility will respond to the child or youth victim's treatment needs for safety and confidentiality and how trauma-informed approaches will be provided.

Proposed language in § 3900.189(c) will require that each program description include identification of internal facility and accessible community-based treatment and intervention options and community connections. The program description must also include how the child's or youth's team will be informed and involved and how the services identified as needed and appropriate will be arranged and delivered.

The process to directly provide or initiate referrals for treatment once a child's or youth's needs are identified is addressed in § 3900.189(d). Within 48 hours of a child or youth being identified as a victim through assessment, child or youth disclosure, or law enforcement identification, facility staff must directly provide or initiate a referral and arrange for services to meet the child's or youth's individualized needs including mental health treatment, medical screening and drug and alcohol screening and services. The child's or youth's needs for independent living, self-awareness and skill-based daily living training and permanency and reunification planning referrals are also to be addressed by facility staff as needed.

Proposed requirements in § 3900.189(e) address components of facility staff training which shall include information about the special safety considerations related to protecting the child's or youth's identity and location, and heightened confidentiality concerns related to making connections with community resources offering treatment.

§ 3900.190—Development and implementation of the ISP

In § 3900.190, the department is proposing additions to update the language carried over from § 3800.224 (relating to development of the ISP). The proposed language in § 3900.190(a) and (b) mirrors § 3800.224(a) and (b). Minor changes, however, are proposed under § 3900.190(b) to identify additional participants to be involved in the development of a child's or youth's ISP, including a county caseworker or juvenile probation officer, or contracting agency representative. Stakeholder input emphasized the value of and need for contracting agency staff from a county children and youth agency or JPO to be engaged in this process, acknowledging their role as a critical member of the child's or youth's team.

Language in § 3900.190(c) addresses the use of technology to include the child's or youth's family in the development of the ISP. This option was not available when the requirements in § 3800.224(c) were adopted. Language in § 3900.190(c) indicates that a meeting for this purpose shall be scheduled in person or through the use of available technology to support family and professional involvement.

Requirements in § 3900.190(d) mirror § 3800.224(d), with clarification added that documentation is to be maintained in the child's or youth's record.

Minor modifications to § 3800.224(e) are reflected in § 3900.190(e). To accommodate those individuals participating in the development of the ISP through electronic connections, the department is proposing that verification of their participation be noted as an alternative to signing the ISP document.

The department is proposing language addressing the signature requirements in § 3900.190(e) to reinforce the value and need for family involvement, even though there may be disagreement with the plan provisions. This is addressed in proposed language in this section clarifying that the signature of all parties involved verifies their participation in the plan development, and that concerns or areas of disagreement with specific goals or objectives of the ISP identified by the child or youth or their parent are to be noted in writing on the form under § 3900.190(f).

The department is proposing language in § 3900.190(g) that mirrors § 3800.227 (relating to implementation of the ISP) to incorporate the processes of development and implementation within one section.

§ 3900.191—Content of the ISP

In § 3900.191, the department is proposing changes to the language carried over from § 3800.226 (relating to content of the ISP) to significantly expand the ISP components. Stakeholder input and changes in practice expectations as referenced in other sections support these additions which will support more comprehensive and detailed plans. Case plan contents from other states were considered in this revision process, as was best practice information posted on Federal ACF child welfare website at acf.gov.

The child's or the youth's ISP provides an individualized approach to identifying and providing services in response to assessed needs and child or youth and family identified concerns. The plan includes the written details of the child's or youth's needs, supports and programming to be made available to them, activities selected by them and approved, and resources required for the child or youth to achieve the identified goals. It is the primary mechanism to document progress made by the child or youth for both the contracting agency and the court and is often the basis for discharge recommendations. The ISP is also expected to incorporate the priority areas of needs for children or youth adjudicated delinquent identified by the referring probation office in their level of service assessment process.

The proposed changes in § 3900.191 also add descriptive details to identify the services and interventions to be provided by the facility to support the child or youth in achieving the goals outlined in the plan.

The proposed language in § 3900.191(a) and (b) clarifies that the ISP shall address the daily supervision and treatment which will be provided to the child or youth and adds additional information to what is currently addressed in § 3680.42 (relating to individual service plan (ISP)). This request was made by contracting agencies to provide information related to staffing and oversight provided and the scope and frequency of treatment and therapeutic sessions offered by the facility directly or through community-based providers. This language is not currently included as part of § 3800.226.

Proposed requirements in § 3900.191(c)(1) and (2) address specifics related to the required team members including the child or youth, the child's or youth's parent, contracting agency representatives and any person invited by the child or youth and the child's or youth's parent who are to be involved in the development of the ISP. The child's or youth's assessed behavioral, social, recreational, daily activity, life skills and physical and behavioral health needs are to be reflected in the ISP as the goals and related services are identified and developed.

Language in § 3800.226(1) is carried over as part of § 3900.191(c)(3). Measurable and individualized goals and time-limited objectives identified in the child's or youth's ISP, addressed in § 3900.191(c)(3), are now proposed to be directly related to the child's or youth's assessed needs. This supports identification of priorities that are relevant, and that specific responses and remedies related to identified concerns the child or youth has demonstrated, are included in the ISP. The needs of the children or youth adjudicated delinquent, and the risks based on their behaviors identified by juvenile probation are directly connected to the goals and services included in the ISP. The dosage and duration of services and interventions are to be based on the assessed needs with progress clearly documented as referenced in the Juvenile Justice System Enhancement Strategy expectations at TCGmonograph_11th_B-PRESS.indd.

Proposed requirements in § 3900.191(c)(4) include a component in the ISP addressing the child's or youth's trauma history and supports available to them to address their specific experiences. This reflects the emphasis placed on considering the trauma experienced by a child or youth in all facility policies and procedures as referenced throughout this chapter and extends this consideration to the content of the child's or youth's ISP.

Language in § 3800.226(4) indicating that a child's or youth's ISP shall include the services and training to meet the child's or youth's needs is carried over and expanded in § 3900.191(c)(5) and (6). A description of educational, vocational and specialized treatment activities in which the child or youth will participate is included as a requirement in § 3900.191(c)(5). In § 3900.111, the department is proposing that information compiled during the initial health and safety admission screening address the child's or youth's placement history including any history of leaving home, school or a facility without adult awareness or permission. The child's or youth's history of running is then available to be considered in the initial ISP as developed by the 30th day of placement.

In § 3900.191(c)(6), the department is also proposing that the child's or youth's ISP include an assessment of the need for and development of a runaway prevention plan. Stakeholder input supports consideration of a child's or youth's recent history as the determining factor of whether a plan is needed. ISP contents are intended to reflect current need and be individualized. An example offered by a stakeholder referenced an isolated incident of running more than a year ago which was related to a specific experience as not justifying the need for a current plan component. However, a pattern of running demonstrated within the prior 3 to 6 months was identified as being a reasonable basis for development of a plan component in the ISP.

Family contact and visitation schedule and clear expectations of all individuals involved in supporting the child's or youth's family connections is addressed as an ISP component in § 3900.191(c)(7).

Family contact is included as a child's or youth's right in § 3900.32. Family involvement is also identified as a required part of a facility's scope of services as addressed in §§ 3900.181 and 3900.182 and is a practice priority addressed by the department and the PCCJPO. The addition of ISP provisions addressing family and youth involvement in the planning and delivery of services and the implementation of the ISP proposed in § 3900.191(c)(8) reinforces the proposed regulatory requirements addressing family involvement as outlined in these other sections. This language carries over the requirement included in § 3800.226(6) and adds child and youth involvement which is not currently addressed. Child and youth involvement has been added in § 3900.191(c)(8) to recognize the importance and value of a child or youth being involved in the development and implementation of their plan as required by § 3900.183.

In § 3900.191(c)(9), the department is proposing that both services internal to facility and those community-based supports identified in response to the child's or youth's assessed needs be identified and made part of the child's or youth's ISP, reinforcing that a facility should access community resources whenever available and appropriate to respond to the needs of a child or youth. The scope of services includes those responding to the child's or youth's needs for safety, well-being, accountability, competency development and permanency carrying over language included as part of § 3800.226(4).

In § 3900.191(c)(10), the department is proposing to mirror § 3800.226(5).

Proposed language in § 3900.191(c)(11) will require that a child's or youth's plan to access and use personal funds is included in their ISP. This correlates with § 3900.18 which addresses child or youth funds. Access to funds becomes more of an issue as a youth secures a job and is able to earn money, or when the court has issued a restitution order. To support development of money management skills and to support consensus among the child's or youth's team members, the department is proposing that this additional component of an ISP be addressed. This also reflects the input from juvenile justice stakeholders related to children or youth adjudicated delinquent who have restitution obligations.

The ISP shall also address plans to provide parenting education to a youth in placement, who is a non-custodial parent, to better prepare them for their role as a parent as addressed in § 3900.191(c)(12). This modifies the language currently included in § 3800.226(7) which references parenting education for a youth parenting their child which is now addressed in Chapter 3910, Subchapter B (relating to child residential requirements) regarding specialized setting and programming for pregnant, expecting and parenting youth.

Proposed language in § 3900.191(c)(13) and (14) mirrors § 3800.226(8) and (9).

Language in § 3900.191(c)(15) carries over language from § 3800.226(10) and adds additional considerations for youth. The ISP for youth shall include programs and services to help the youth prepare for transition from the facility to independent living. Actively engaging youth in the development of their transition plan as part of their ISP has many benefits. The ISP meeting provides an opportunity to identify both short-term and long-term needs and service and support options available while in placement and post-discharge which may support better outcomes for the youth. Research reflects that youth involved with the child welfare and juvenile justice systems are at increased risk for several adverse adult outcomes, including homelessness, high unemployment rates, low educational attainment and early or unintended pregnancies.

Sections 113 and 114 of the Preventing Sex Trafficking and Strengthening Families Act of 2014 (See, 42 U.S.C. § 675) gives children aged 14 and older authority to participate in: (1) the development of their own case plans, in consultation with up to two members of the case planning team; as well as (2) transitional planning for a successful adulthood. Specific additional requirements for a case plan, including specification of a child's or youth's rights with respect to education, health, visitation and court participation are addressed. The ISP for older youth shall include identification of programs and services to help the child or youth prepare for transition from the facility to independent living, if that is the goal for the child or youth.

Addressing the benefits of extending placement until age 21 is also an appropriate component of the ISP process. Extended care allows youth to stay in care past age 18 and receive additional services and supports to aid in their transition to adulthood. This is also supported by 42 Pa.C.S. § 6351(j) (relating to disposition of dependent child).

In § 3900.191(d), the department is proposing additional requirements for ISP components for a child or youth adjudicated delinquent based on input from JPOs as contracting agencies to reflect juvenile justice practice expectations. The needs of the child or youth adjudicated delinquent, and the risks based on their behaviors identified by juvenile probation are to be directly connected to the goals and services included in the ISP and offered in the facility. The proposed requirements reflect the purpose clause of the Juvenile Act and the philosophy of "balanced and restorative justice," as adopted by the Commonwealth, addressing priorities for repairing the harm done to crime victims and communities and defining accountability. The dosage and duration of services and interventions are to be based on the assessed needs of the child or youth with progress clearly documented. Juvenile justice priorities related to competency development, victim awareness and accountability are to be addressed in the ISP. Specific activities to be employed to address these balanced and restorative justice goals and the amount of restitution funds earned and available were identified by juvenile justice stakeholders as being critical items for their review and consideration in a child's or youth's ISP. Additional requirements proposed in § 3900.191(d) include identification of evolving risks and needs and related interventions available to respond to the child's or youth's needs and referrals made.

Documentation of the length of family contacts and visits as they occur and the level of compliance with the visitation and contact plan as developed will provide JPOs with details of the true level of family support available to the child or youth.

In § 3900.191(e)(1)—(3), the department is proposing to maintain the requirements by carrying over language under existing § 3800.226(3), (11) and (12), with minor changes to add clarity.

§ 3900.192—Review and revision of the ISP

In § 3900.192, the department is proposing language to reinforce that nothing in the regulatory requirements precludes revisions to the ISP from being made more frequently than every 6 months. Proposed language in

§ 3900.192(a) indicates that, as changes to the ISP are needed to respond to a child's or youth's emerging needs, team meetings shall be convened by facility staff to support timely review and revision. The minimum requirement of an ISP review by the child's team of each child's or youth's progress, and revisions of the ISP, if necessary, at least every 6 months is maintained in § 3900.192(b) carrying over language from § 3800.225(a) (relating to review and revision of the ISP). More frequent ISP revisions are supported as determined necessary by team members as emerging issues are identified in § 3900.192(c).

Language in § 3900.192(d) and (e) mirrors § 3800.225(b) and (c) with one technical change.

§ 3900.193—Copies of the ISP

In § 3900.193 (relating to copies of the ISP), the department is proposing language consistent with § 3800.228 (relating to copies of the ISP).

§ 3900.194—Education

Changes proposed by the department in § 3900.194 (relating to education) reflect the complex nature of the structure of educational opportunities available to children and youth.

In § 3900.194, the department is proposing to omit the language in § 3800.229 (relating to education) and adopt new language to clarify the authority and responsibility of facility management regarding the education of children and youth and to reinforce the child's or youth's rights to an education while in a residential facility. Stakeholder input related to a child's or youth's education while in placement was diverse and often referenced a facility management or facility staff role in educational decisions that was beyond their authority. While some stakeholders proposed that the facility be responsible for decisions related to the process and location for a child or youth to access educational services, others argued that educational rights of a child or youth are protected by laws that supersede the authority of a facility. Changes proposed by the department in § 3900.194 reflect the Federal mandates of the Every Student Succeeds Act (Pub.L. 114-95, 129 Stat. 1802) to provide all children significant opportunity to receive a fair, equitable and high-quality education, and to close educational achievement gaps; related joint guidance offered by the Department of Education and the department (See Education Stability by Child Welfare Services at https://www.pa.gov/agencies/dhs/resources/early-learning-child-care/education-stability-child-welfare-services); and the requirements under sections 1301, 1302 and 1327 of the Public School Code of 1949 (24 P.S. §§ 13-1301, 13-1302 and 13-1327).

The proposed language in § 3900.194(a) identifies that while in placement at the facility, each child or youth of compulsory school age shall participate in a Department of Education approved school program or an educational program that complies with the Public School Code of 1949 (24 P.S. §§ 1-101—27-2702) requirements relating to student attendance, special education services and programs, and protected students with disabilities.

The proposed language in § 3900.194(b) requires that facility staff shall actively participate in discussions regarding the education of the child or youth convened by the local educational authority (LEA) or county agency and comply with the education plan as developed. The facility staff's responsibility is to implement the education decision reached by the LEA.

§ 3900.195—Transfer or discharge

In § 3900.195, the department is proposing requirements that expand and add additional plan components to current discharge planning requirements addressed in § 3800.230 (relating to transfer or discharge). These expansions reflect changing practice expectations since the 1999 adoption of Chapter 3800 and the benefits of initiating transfer or discharge planning as of the day of admission supported by research and practice. Under section 113 of the Preventing Sex Trafficking and Strengthening Families Act, youth age 14 and older have the right to participate in the development of their own case plans and identify and choose two members of the case planning team. These rights extend to the youth's transitional planning process supporting a successful adulthood.

Addressing discharge plans at the point of entry into the facility supports concurrent planning and allows for identification of needed post discharge supports. Addressing discharge planning on an ongoing basis throughout the placement of a child or youth also facilitates engagement of the child or youth and family in identifying steps to be taken to achieve the identified permanency option.

The purpose of the discharge planning process is addressed in the proposed language in § 3900.195(a), which requires facility management to develop and adhere to a comprehensive discharge planning process structured to support permanency, long-term stability and successful outcomes for the child or youth and their family, if applicable.

The listed components of discharge planning outlined in § 3900.195(b)(1)—(6), reflect stakeholder input identifying critical components of the discharge process, and practices adopted in other states and in other sections of this chapter, addressing child and youth involvement in the development of the plan. This proposed language reinforces that the discharge planning process begins as of the date of admission and must include individualized teaming efforts including the opportunity and confirmation that each child or youth is an active participant in their own discharge planning process which includes the input offered by their team to address needs and identify supports. Contracting agency stakeholders from juvenile probation identified that documentation of competencies developed, intervention programming completed and certifications earned are important for a child or youth to have in hand as of their discharge. Facility policies should require an updated inventory of the child's or youth's personal belongings and the process through which the items, clothing and personal documents be provided to a child or youth.

The regulatory expectation that prior to a child's or youth's transfer or discharge, the facility staff must inform, and when possible, discuss with the child's or youth's parent the recommended transfer or discharge plan is addressed in § 3900.195(c), carrying over language from § 3800.230. The proposed requirement that facility staff maintain a copy of this written plan in the child's or youth's record is addressed in § 3900.195(d) expanding requirements carried over from § 3800.230.

In § 3900.195(e), the department is proposing if an unplanned or emergency discharge or return home occurs, facility staff shall ensure that the information in the discharge plan is made available to the child or youth and the child's or youth's family within 48 hours. The expedited exchange of information supports as smooth a transfer or discharge as possible even though preparation

time is limited given the unplanned nature of the decision for the child or youth to leave the facility. If an emergency transfer is made to another placement setting, the facility staff shall make the information in the discharge plan available to the receiving agency within 48 hours.

The final addition proposed in § 3900.195(f), adds that documentation of the discussion and confirmation of the transfer of the information shared with the child's or youth's parent or receiving agency, and the youth following an unplanned or emergency discharge or return home, is to be maintained as part of the child's or youth's record.

Subchapter N—Child and Youth Records (§§ 3900.201—3900.204)

§ 3900.201—Emergency information

In § 3900.201 (relating to emergency information), the department is proposing a minor change to the requirements carried over from § 3800.241 (relating to emergency information) addressing access and content of emergency information maintained for each child or youth. Language proposed in § 3900.201(a) clarifies that emergency information for each child or youth must be easily accessible to facility staff at the facility and while children or youth are with facility staff away from the facility. This addition addresses stakeholder concerns related to the need for ready access to this information while facility staff and children or youth are out in the community on activities or while children or youth are being transported.

In § 3900.201(b)(1)—(4), the department is proposing to mirror § 3800.241(b)(1)—(4).

§ 3900.202—Records

In § 3900.202 (relating to records), the department is proposing language consistent with § 3800.242 (relating to child records).

§ 3900.203—Content of records

In § 3900.203 (relating to content of records), the department is proposing several additions to the language carried over from § 3800.243 (relating to content of records) that identify the documents and information that constitute the contents of each child's or youth's record. The additional requirements identify more details and clarify the information referenced in § 3800.243 that must be included as part of the child record, especially as it relates to the child's or youth's health history. These proposed changes support facility staff efforts to compile and maintain comprehensive and updated health-related information.

Information proposed to be included as part of the health records section is expanded from a simple reference to health records in § 3800.243(2) to a more detailed listing in § 3900.203(a)(2) to include a health history, current physical exam, current medications, a record of all seizures, if applicable, a record of all suicidal gestures, if applicable, and injuries, traumas and illnesses for which treatment was provided to the child or youth by medical personnel internal or external to the facility. Dental, vision and hearing records included in § 3800.243(3) are proposed to become part of § 3900.203(a)(2)(vii) as a health record component. A record of all seizures and suicidal gestures in the child's or youth's record, if applicable, captures information addressed as a recordable incident referenced in § 3900.17. Including the requirement in § 3900.203(a)(2) results in this specific information becoming part of the child's or youth's record. Also required is a record of child or youth injuries, traumas and illnesses for which treatment was provided by medical personnel internal or external to the facility.

The remining language in § 3800.243(4)—(14) is proposed to be carried over in § 3900.203(a)(3)—(14) with minor changes and one new addition to reflect the proposed language in other sections of this chapter. A proposed requirement to maintain copies of investigations of grievances filed by a child or youth or the child's or youth's parent which were determined to be unsubstantiated following an investigation by facility management has been added as § 3900.203(a)(8). Substantiated grievances are to be reported to the department as a reportable incident. Copies of documentation of the investigation of unsubstantiated grievances are to be maintained by the facility in a recordable incident file and be made part of the child's or youth's record. This proposed change is in response to the recommendation of the 2022 Grand Jury Report on the Delaware County Juvenile Detention Center. The availability of this information will improve the department's ability to more effectively and completely monitor situations involving activities related to the rights of a child or youth.

Because access to information in a child's or youth's record and maintaining confidentiality related to a child's or youth's record are priorities within a facility, the department is proposing additional language to address both issues. Proposed requirements in § 3900.203(b) identify that a child's or youth's record shall be maintained in an area easily accessed by facility staff. To address appropriate access and confidentiality, proposed language in § 3900.203(c) requires that a child's or youth's record is to be kept in a locked location when unattended.

§ 3900.204—Record retention

In § 3900.204 (relating to record retention), the department is proposing a minor change to language carried over from § 3800.244 (relating to record retention) to change the current retention period of 4 years to 7 years following the child's or youth discharge from the facility or until any audit or litigation is resolved to support ready access to relevant information. This is supported by stakeholder input reflecting current practice standards.

Subchapter O—Sanctions (§ 3900.211)

§ 3900.211—Sanctions

In § 3900.211 (relating to sanctions), the department is proposing new requirements to increase the sanctions available to the department in the event of facility management noncompliance with the provisions of this chapter, Chapter 20, Chapter 3910 or Chapter 3920.

If the department finds that further action is warranted after a licensing revocation or a downgrade of licensure status to a provisional license is issued, the department may impose enforcement remedies in addition to those included in Chapter 20. These additions include prohibiting admissions at a facility and ordering the appointment of a master as approved by the department, at the facility's expense and not eligible for reimbursement from the department, to manage and direct the facility's operational, programming and fiscal functions.

Chapter 3910—Child Residential Facilities

Under Chapter 3900, general requirements for both nonsecure and secure child and youth facilities are provided. However, there are certain instances where additional requirements specific for each type of facility are needed. Chapter 3910 proposes to provide requirements

specific to child residential facilities. The following is a summary of these major provisions:

Subchapter A—General Requirements (§§ 3910.1—3910.6)

§ 3910.1—Purpose

In § 3910.1 (relating to purpose), the department is proposing language that the purpose of the chapter is to protect the health, safety and well-being of children and youth receiving care in a child residential facility.

§ 3910.2—Applicability

In § 3910.2 (relating to applicability), the department is proposing to set forth the scope of applicability of this chapter. This proposed chapter applies to child residential facilities, except as provided in § 3910.3 (relating to exemptions).

§ 3910.3—Exemptions

In § 3910.3, the department is proposing the list of programming and facilities to be exempted from requirements of proposed Chapter 3910. The list in § 3910.3 specifically excludes secure residential facilities and secure detention facilities for children or youth.

§ 3910.4—Definitions

The department is proposing to cross-reference many of the terms in § 3900.5. In addition, the department proposes to add definitions for "reasonable prudent parent standard (RPPS)" and "seclusion." These definitions are consistent with current usage.

§ 3910.5—Licensure or approval

In § 3910.5 (relating to licensure or approval), the department is proposing compliance with Chapters 3900 and 3910, along with compliance with the existing Chapter 20 for licensure or approval.

§ 3910.6—Waivers

In § 3910.6 (relating to waivers), the department is proposing language consistent with existing waiver provisions.

Subchapter B—Child Residential Requirements (§§ 3910.11—3910.22)

§ 3910.11—Specific rights

In § 3910.11 (relating to specific rights), the department is proposing to add an additional child and youth right to those listed § 3900.32. Proposed language in § 3910.11 affords children and youth the right to have the opportunity to participate in extracurricular, cultural and personal enrichment activities that are reasonably available and accommodated and consistent with the child's or youth's age and developmental level. This requirement supports implementation of section 111 of the Preventing Sex Trafficking and Strengthening Families Act.

§ 3910.12—Residential program worker

In § 3910.12 (relating to residential program worker), the department is proposing language to align with proposed changes for staff position titles for "residential program director" and "residential program supervisor" in Chapter 3900. Under this proposed rulemaking, the department is proposing a position title change from "child care worker" as used in § 3800.55 (relating to child care worker) to "residential program worker" under § 3910.12 to differentiate from a child care center worker and more clearly identify the role. Stakeholder input identified the residential program worker role as a critical component of facility programming, as facility staff in these positions are responsible for implementing the daily activities planned by the residential program supervisor and providing the direct supervision and direction of the children and youth at the facility.

In § 3910.12(a), the department is proposing a new requirement that a new residential program worker shall complete the orientation training as addressed in § 3900.57(a) prior to having any contact with a child or youth at the facility. In § 3910.12(b), the department is proposing a requirement that a new residential program worker shall shadow or work under the supervision of experienced facility staff when working with children or youth during their initial 120 days of employment. During this time, they may not be counted in the child/youth to staff ratios until certification is acquired in the subject areas under § 3900.57(c)(1)—(5). This requirement is based on stakeholder input to ensure that facility staff have training in basic safety and health related areas before working alone with children or youth.

In § 3910.12(c), the department is proposing a new requirement that there be at least two residential program workers scheduled and on duty at all times when children or youth are present at the facility. Children and youth are placed in a residential setting based on their assessed needs, trauma experiences, need for supervision, experiences as a victim of sex trafficking, because of their increased risk of being sex trafficked or because they are pregnant, expecting or parenting youth. This increased staffing requirement responds to stakeholder input, practice and licensing experiences in the field and recognizes the need for immediate access to staff for supervision and direction of children and youth.

Proposed language in § 3910.12(c)(1) and (2) is consistent with § 3800.55(c) and (d).

The staff ratios proposed under § 3910.12(c)(3) and (4) for children ages 6 and older or youth are increased to support intervention in challenging situations and to supervise and redirect children and youth as necessary. Currently, § 3800.55(a) requires one residential program worker to every eight children or youth during awake hours. Under this proposed rulemaking, this ratio is increased to one residential program worker to every six children under § 3910.12(c)(3). Similarly, changes in ratios during sleeping hours are proposed under § 3910.12(c)(4). Under this proposed rulemaking, one residential program worker to every 12 children or youth during sleeping hours will be required, reducing the number in § 3800.55(b), which currently allows a ratio of one residential program worker to every 16 children.

Proposed language in § 3910.12(c)(5) and (d) is consistent with § 3800.55(e)—(g).

In § 3910.12(f), the department is proposing that age requirements be increased from the current minimum age of 18 years of age in § 3800.55(h) to 21 years of age or older for all residential program workers counted in the child or youth to staff ratios in all facilities approved under Chapters 3900 and 3910. Stakeholder input supports this change, and it reflects the majority of current experience in the field. The option to seek a waiver from the department to this regulatory requirement still exists, if facility management believes that an individual applying for a position or known to them from an internship or volunteer role, has the skills, maturity and ability to appropriately respond to the needs of children or youth in care remaining available if needed. Proposed language in § 3910.12(g) allows for an exception to staff qualification requirements under subsection (f) for facility staff hired or promoted to the position of residential program worker prior to the effective date of this chapter.

§ 3910.13—Additional staffing responsibilities

In § 3910.13 (relating to additional staffing responsibilities), the department is proposing that in addition to the requirements in § 3900.55, facility management shall also designate one or more facility staff as the primary contact responsible for decisions related to RPPS implementation.

§ 3910.14—Supervision

In § 3910.14 (relating to supervision), the department is proposing an increase in the frequency of facility staff observational checks, proposed as sight and sound checks, of children and youth from what is currently required in § 3800.57(a) (relating to supervision). Proposed language in § 3910.14(a) increases checks when children and youth are awake from once every hour as currently required in § 3800.57(a) to once every 30 minutes. Additional language in subsection (a) indicates that sight and sound checks may occur more frequently if required by a child's or youth's health and safety admission screen in § 3900.111 or ISP as outlined in § 3900.191. This proposed requirement in § 3910.14(a) is supported by stakeholder input identifying concerns that current requirements were not sufficient to adequately monitor activities of the children or youth. This language expands and clarifies current language from § 3800.57(a) and (b) and carries over requirements that observational checks include actual viewing of each child or youth.

The frequency of sight and sound checks made by facility staff of children and youth when they are asleep is proposed as being required once every 15 minutes, as reflected in § 3910.14(b), unless more frequent checks are required by the child's or youth's health and safety admission screen or ISP, as proposed under §§ 3900.111 and 3900.191. This significantly increases the frequency currently required in § 3800.57(a) of observational checks of each child at least every hour. This increase is based on stakeholder input identifying experiences resulting from observational checks only conducted on an hourly basis as currently required in § 3800.57(a) which have resulted in children and youth being harmed or placed at risk of being harmed.

A new requirement is proposed in § 3910.14(c) that these observational checks, and actual viewing of each child or youth be documented in writing. This is based on stakeholder input to create documentation that these observational checks were completed with findings recorded.

In § 3910.14(d), the department is also proposing a requirement for awake staff to be available to the children and youth at all times, eliminating the current options of sleeping staff currently addressed in § 3800.57(d)(1) and (2). This proposed change is based on stakeholder input supporting that all staff remain awake, experiences in the field and a commitment by the department to increase efforts to ensure the safety of children, youth and facility staff. If a facility staff chooses to sleep at night at the facility for their own convenience or other considerations, that facility staff cannot be counted in the child and youth to staff ratios. There are no options to accommodate sleeping staff included in Chapter 3900 or Chapter 3910, except for the outdoor programs addressed in Chapter 3910, Subchapter D (relating to outdoor programs).

§ 3910.15—Unobstructed egress

In § 3910.15 (relating to unobstructed egress), the department is proposing modifications to language carried over from § 3800.121 (relating to unobstructed egress) to address safety concerns while allowing for delayed egress locks. This proposed language reflects requests from affected stakeholders and eliminates the need for individual facility waiver requests and departmental approval.

Proposed language in § 3910.15(a) and (b) is consistent with § 3800.121(a) and (b) with one significant change deleting the reference to "other devices" in subsection (b). The department is proposing new language in § 3910.15(c)(1)—(8) that will put the provisions currently addressed through a waiver process into a regulatory requirement, creating a more direct and accessible option for delayed egress locks identified as an "other device" to be used. This proposed change will allow for delayed egress locks if a facility meets all provisions under the International Building Code related to delay egress locks (section 1008.1.9.7 Delayed Egress Locks) and chooses to install delayed egress locks. This proposed change is in response to safety considerations for children or youth who are flight risks, allowing facility staff an additional 15 seconds to attempt to intervene to reduce risks to a child or youth if they attempt to run from a facility. Although delayed egress locks are currently in use, the individual waivers and repetitive annual submission process are time consuming. This proposed change allows facilities to determine if the use of delayed egress locks is appropriate to the location of the facility and the population served. This change supports increased consistency in availability of this additional safeguard while maintaining requirements for immediate egress in the event of an emergency.

As proposed in § 3910.15(c), doors used for egress routes from rooms and from the building may not be equipped with delayed locking mechanisms which prevent immediate egress of children or youth from the building unless the locking mechanism and facility configuration meet the criteria in the International Building Code (section 1008.1.9.7) and all the requirements listed in § 3910.15(c)(1)—(7) are met. Language proposed in § 3910.15(d) will require facility staff to maintain documentation of building permits and certificate of in the facility's files and facility management to submit permits and certificates to the department's regional office, supporting consistency in documentation requirements with other sections.

§ 3910.16—Safe transportation

In § 3910.16 (relating to safe transportation), the department is proposing language consistent with § 3800.171 (relating to safe transportation), with one technical change. The proposed technical change is changing the title of "child care worker" to "residential program worker."

§ 3910.17—Seclusion prohibited

In § 3910.17 (relating to seclusion), the department is proposing language consistent with the intent of § 3800.206 (relating to seclusion) with a change to add clarity. The prohibition related to the use of seclusion is directly stated.

§ 3910.18—Mechanical restraints

In § 3910.18(a) and (b) (relating to mechanical restraints) the department is proposing language consistent with § 3800.210(a) and (b) (relating to mechanical restraints). A proposed change in § 3910.18(b) clarifies that devices that are medically prescribed mechanical devices are not limited to those listed in this section by replacing "such as" with "including" before the examples of sandbags to limit movement after medical treatment, a wheelchair belt that is used for body positioning and support or

a helmet used for prevention of injury during seizure activity, that are not considered mechanical restraints. In § 3910.18(c) the department is proposing language consistent with § 3800.210(a) which defines a mechanical restraint.

§ 3910.19—Physical restraints

In § 3910.19 (relating to physical restraints), the department is proposing to mirror language in § 3800.211 that specifically addresses that a physical restraint does not include a therapeutic hold for a child who is 8 years of age or younger for less than 10 minutes during which the child does not physically resist.

§ 3910.20—Youth training

In § 3910.20 (relating to youth training), the department is proposing a new requirement that youth trainings shall include peer educators or facility alumni in the training session presentations, if available.

§ 3910. 21—Placement process

In § 3910.21, the department is proposing changes to language carried over from § 3800.223 (relating to placement process) to add requirements for additional child or youth specific information to be compiled at the time of admission and placement at the facility. The proposed omission of a separate regulatory section addressing admissions, as currently exists in § 3800.222 (relating to admission), also requires changes to the information in this section. The proposed language in § 3910.21 addresses requirements that each facility have both an admission and placement process.

Proposed language in § 3910.21(a)(1)—(3) and (6) is consistent with language in § 3800.223 with a minor addition reflected in § 3910.21(a)(6) to include the requirement to address any special needs or accommodations. These requirements respond to stakeholder input supporting additional documentation specific to the ability of the facility to respond to the identified needs of the child or youth referred.

New components of the placement process proposed in § 3910.21(a)(4) and (5) include identification of discharge plan options and resources, and documentation of all prescribed medications to be administered including the date prescribed, the prescriber, dosage, frequency, amount received and reason for prescription. This expands upon the current language in § 3800.222 and reflects stakeholder input.

The department is proposing additional language in § 3910.21(b) that will require facility staff to ensure that the required information delineated in this section be documented within 48 hours following admission in the event of an unplanned or emergency placement. This supports facility staff having timely access to information about the child or youth at the point of admission.

§ 3910.22—Contents of the ISP

In § 3910.22 (relating to contents of the ISP), the department is proposing to add an additional component to the required content of the ISP. In addition to the requirements under § 3900.191, a child's or youth's ISP must also include RPPS considerations, which are characterized by careful and sensible parental decisions that maintain the health, safety and best interests of a child while encouraging the emotional and developmental growth of the child.

Subchapter C—Specialized Setting Programing for Pregnant, Expecting and Parenting Youth (§§ 3910.31—3910.53)

§ 3910.31—Applicability

In § 3910.31 (relating to applicability), the department is proposing to address the specific services to which this subchapter applies. Residential facilities operating as a specialized setting for pregnant, expecting and parenting youth are required to comply with this subchapter in addition to Subchapters A (relating to general requirements) and B.

§ 3910.32—Specialized setting service description

In addition to the requirements for program descriptions in § 3900.185, the requirements in this section apply to specialized residential settings for pregnant, expecting and parenting youth. These additional components add details and clarification specific to facility programming configured to respond to the needs of pregnant, expecting and parenting youth. The proposed requirements reflect regulatory requirements in other states, primarily New Jersey, and input from stakeholders. Section 50741(k)(2)(B) of the Family First Prevention Services Act (42 U.S.C. § 672(k)(2)(B)) also speaks to specialized settings offering prenatal, postpartum or parenting supports for youth, which are the basis for the provisions proposed in this subchapter.

Additional proposed components related to the specialized setting program description are included under § 3910.32(1)—(12). These additional proposed requirements address a variety of topics relevant to staff and youth training, physical site and equipment safeguards to support infant and toddler safety, child care and developmentally appropriate activities, special considerations related to family visitation, non-custodial parental involvement and discharge planning.

§ 3910.33—Physical accommodations and equipment

In § 3910.33 (relating to physical accommodations and equipment), the department is proposing to add additional physical site requirements to those addressed in Chapter 3900. These additional requirements address accommodations and equipment specific to the needs of infants and toddlers residing with a parenting youth in a specialized setting facility serving pregnant, expecting and parenting youth. The department had previously identified these requirements for additional accommodations for infants and toddlers as part of the certification as a specialized setting for this population. All existing programs achieved this certification and will not incur additional costs related to the proposed regulatory requirements for physical accommodations and equipment.

The additional requirements in § 3910.33(1) address the availability of play equipment that provides appropriate opportunities for stimulation and exercise within a safe environment for infants and toddlers. A variety of play equipment and materials is identified as necessary to respond to the developmental needs, individual interests and ages of the infants and toddlers in the facility. Play equipment is also required in quantities and variety to avoid long waits for use by the infants and toddlers.

In § 3910.33(2), proposed language addresses requirements for available play equipment that supports the infants' and toddlers' emotional, cognitive, communication, perceptual-motor, physical and social development. Additional safety considerations are proposed in § 3910.33(3) to have all top-heavy and unsteady furniture securely anchored to prevent tipping over.

In § 3910.33(4), requirements are proposed for permanent or non-permanent safety gates or barriers while clearly identifying that these safety gates may not prevent egress from the facility in cases of emergency.

Language proposed in § 3910.33(5) recognizes the special safety considerations related to equipment intended for use by infants and toddlers. The department is also proposing that the program description include the process that will be followed to monitor for and address any safety-recall notices issued for any child care furniture, play equipment and other products used at the facility. This was identified by stakeholders as being an important consideration anticipating equipment being donated or being handed down and used by multiple youth, infants and toddlers in succession.

§ 3910.34—Designated play space

In § 3910.34 (relating to designated play space), the department is proposing additional regulatory requirements addressing both indoor and outdoor play space, specific to the needs of infants and toddlers residing with their parent in a specialized setting facility for pregnant, expecting and parenting youth. Proposed language in § 3910.34(a) will require that the designated outdoor and indoor play space be free from hazards and be safe for large muscle activity which includes running, jumping, climbing and riding. The designated outdoor and indoor play space may not be used for business, commercial, social or another purpose unrelated to the residential care provided, while the infants and toddlers are using the areas for play activities, as proposed in § 3910.34(b), to avoid unnecessary risks or unanticipated hazards for the infants or toddlers.

All outdoor areas must be maintained in a safe manner, with permanent or non-permanent safety barriers (safety gates) installed to block steps accessible to infants or toddlers as addressed in § 3910.34(c). Proposed language in subsection (c) will require compliance with regulatory provisions under § 3270.63 (relating to unsafe areas in outdoor space) addressing requirements for fencing or natural barriers to restrict children from those unsafe areas or conditions if unsafe areas or conditions are in or near an outdoor play space.

§ 3910.35—Small toys and objects

In § 3910.35 (relating to small toys and objects), the department is proposing to add requirements to identify additional safeguards specific to infant and toddler access to small items that pose a choking hazard. Toys and objects with a diameter of less than 1 inch, objects with removable parts that have a diameter of less than 1 inch, plastic bags and Styrofoam objects may not be accessible to infants and toddlers.

§ 3910.36—Protective electrical covers

In § 3910.36 (relating to protective electrical covers), the department is proposing a requirement addressing an additional safeguard for protective receptacle covers. These covers will be required to be placed in all electrical outlets that are accessible to children under 6 years of age.

§ 3910.37—Infant and toddler sleep equipment

In § 3910.37 (relating to infant and toddler sleep equipment), the department is proposing to add requirements addressing sleep equipment and bedding designed and designated for infants and toddlers. The proposed language in § 3910.37(a) and (b) addresses requirements for individually labeled clean and age-appropriate sleep equipment that meets current industry safety standards. This practice reduces the potential risks of exposure to communicable illness and reflects good hygiene and safety practices. The prohibition related to the use of stacking cribs is addressed in § 3910.37(c).

Criteria for crib mattresses, toys, bumper pads, blankets or pillows while an infant is sleeping in the crib are addressed in § 3910.37(d) and (e) in an effort to avoid potential choking or smothering hazards. Proposed language in § 3910.37(f) allows for seasonally appropriate coverings, such as sheets or blankets, to be provided for toddlers, as smothering risks are reduced as the child grows and is more mobile. These requirements are based on AAP infant sleep recommendations for infants as addressed in § 3910.38 (relating to infant sleep position).

Additional requirements addressed in § 3910.37(g) require soiled bedding to be cleaned before it is reused. Reinforcement of the prohibition of an infant or toddler sleeping in the same bed with the parenting youth, or any adult, based on safety risks is addressed in § 3910.37(h). Safe sleeping is also a training topic required for parenting youth and facility staff addressed in §§ 3910.52 and 3910.53 (relating to parenting and life skills education for youth; and additional staff training requirements for specialized settings serving pregnant, expecting and parenting youth).

§ 3910.38—Infant sleep position

In § 3910.38, the department is proposing requirements addressing sleep positioning for infants. The department is proposing that the sleeping position for infants recommendations presented by the AAP be the basis for related regulatory requirements (https://publications.aap.org/pediatrics/article/150/1/e2022057990/188304/Sleep-Related-Infant-Deaths-Updated-2022?autologincheck=redirected&_gl=1*1amvx3u*_ga*MTQ4MDg2ODUwLjE3NzczOTY5NzI.*_ga_FD9D3XZVQQ*czE3NzczOTY5NzEkbzEkZzEkdDE3NzczOTczMTQkajYwJGwwJGgw*_gcl_au*MzE3NTU4MzY3LjE3NzczOTY5NzE.*_ga_GMZCQS1K47*czE3NzczOTY5NzEkbzEkZzEkdDE3NzczOTcyNTIkajYwJGwwJGgw). Current AAP safe sleep environment recommendations indicate that infants should be placed for sleep in a supine position (wholly on the back) for every sleep by every caregiver until the child reaches 1 year of age. AAP notes that side sleeping is not safe and is not advised.

The department is proposing this requirement in § 3910.38(a) and (b) for infants to be placed in a supine position for sleep unless there is a medical reason an infant should not sleep in this position. The medical reason must be documented in a statement signed by a physician, physician assistant or certified registered nurse practitioner and maintained in the infant's record at the facility.

§ 3910.39—Infant and toddler stimulation

In § 3910.39 (relating to infant and toddler stimulation), the department is proposing requirements related to infant stimulation. Proposed language in § 3910.39(a) will require facility management to develop and implement policies, reflected in the program description, addressing how facility staff will model and reinforce age-appropriate infant stimulation activities for parenting youth. These guidelines must also address how facility staff will offer guidance and support to the parenting youth to practice and develop appropriate parenting skills for their infant or toddler. Topics and practices to be incorporated into program descriptions and policies are addressed in § 3910.39(a)(1)—(4) and include feeding, positioning, child care and infant stimulation.

The department is also proposing in § 3910.109(b) that facility staff document the activities, interactions, goals and progress notes in the parenting youth's, and infant's or toddler's ISPs.

§ 3910.40—Infant and toddler supervision

In § 3910.40 (relating to infant and toddler supervision), the department is proposing requirements addressing the responsibilities of the parenting youth for the daily care and supervision of their infant or toddler while at the facility. Proposed acceptable child care options for infants and toddlers during the hours the parenting youth is attending school or working are listed in § 3910.40(b)(1) and (2).

Proposed language in § 3910.40(c), addresses that infants or toddlers are permitted to be supervised and cared for by facility staff only if the parenting youth is away from the facility and their child remains at the facility. Other youth in the facility may not provide care for another parenting youth's infant or toddler.

§ 3910.41—Evacuation procedures

In § 3910.41 (relating to evacuation procedures), the department is proposing requirements to address special considerations for the emergency evacuation of infants and toddlers. Proposed language in this section will require facility management to develop written emergency evacuation procedures, which include facility staff and parenting youth responsibilities specific to the process to be followed, to ensure the safe evacuation of infants and toddlers from the facility as addressed in § 3910.41(1)—(4). The designation of the person or persons responsible for the removal of the infant or toddler from the facility will vary depending upon the time of day and the location of the infant or toddler, the parenting youth and facility staff. The means of transportation that is to be used if relocation is necessary, and the emergency location to be used, must also be identified in this procedure. The proposed requirements must also include specific exit plans for infants and toddlers who are under the direct care of facility staff while parents are away from the facility.

§ 3910.42—Meals for infants

In § 3910.42 (relating to meals for infants), the department is proposing requirements related to the process for infant and toddler meal planning and feeding arrangements. Proposed language in § 3910.42(1)—(9) reflects stakeholder input and will require that facility staff support parenting youth to adhere to a written formula or breast milk feeding schedule and practices for infants, which is developed based on the pediatrician's medical guidance and with input from the parenting youth. Infants or toddlers no longer needing to be held for feedings, because of their age or developmental readiness, may be fed in a highchair with safety strap or other age-appropriate seating apparatus, which meets the standards of a recognized safety organization as proposed in § 3910.42(10).

§ 3910.43—Safety restraints

In § 3910.43 (relating to safety restraints), the department is proposing to add safety requirements related to car seat restraints to be used while transporting an infant or toddler. Facility staff will be required to follow provisions of 75 Pa.C.S. § 4581 (relating to restraint systems) addressing the proper use of age-appropriate vehicle restraint systems. A child under 8 years of age shall be transported only in accordance with the requirements for motor vehicle operators as reflected in § 3910.43(a). These requirements apply to both facility and personal vehicles used to transport infants or toddlers.

Proposed language in § 3910.43(b) will require that appropriately sized car seats be securely installed and correctly used whenever transporting an infant or toddler. Manufacturers' instructions for the use of safety restraints shall be kept in the vehicle at all times for easy access and reference by staff and parenting youth as referenced in § 3910.43(c). Proposed language in § 3910.43(d) addresses additional safety considerations, requiring that safety restraint equipment (car seats) be removed or reinstalled in a vehicle only by facility staff who have been trained in this process, or law enforcement, medical or fire department personnel trained in this process, to ensure that the car seats are installed securely.

§ 3910.44—Comprehensive health planning for pregnant and postpartum youth

In § 3910.44 (relating to comprehensive health planning for pregnant and postpartum youth), the department is proposing to add requirements related to special health care considerations for pregnant or postpartum youth. Facility management serving pregnant and postpartum youth shall develop and implement policies addressing how special pregnancy and delivery related health care considerations are incorporated into the services provided. These special considerations are in addition to the health requirements in Chapter 3900, Subchapter H (relating to child and youth health). The additional proposed requirements in § 3910.44(1)—(6), reflect stakeholder input and include supporting youth to access information of all legally available options and support services related to pregnancy and to receive comprehensive prenatal and postpartum care. Special dietary considerations, medical appointments and arrangements for birthing and postpartum care are addressed. Facility staff will also be required to support youth connections to individual and group community-based resources and services.

§ 3910.45—Consent to treatment

In § 3910.45 (relating to consent to treatment), the department is proposing requirements related to securing consent from a parenting youth for treatment for their infant or toddler. This right of the parenting youth to consent to treatment applies if the infant or toddler is adjudicated dependent and remains in the care and custody of their minor parent or if the infant or toddler is not adjudicated dependent by the court but is placed with their minor parent.

§ 3910.46—Health and safety planning for infants and toddlers

In § 3910.46 (relating to health and safety planning for infants and toddlers), the department is proposing requirements related to the health and safety planning process for infants and toddlers. Specific health and safety needs of young infants and toddlers are not currently addressed in Chapter 3800, creating the need for additional regulatory requirements as proposed in this section. In addition to the requirements listed in Chapter 3900, Subchapter H, which address basic health care concerns of children in care, § 3910.46 addresses special health care considerations for infants and toddlers that must be addressed in facility policies and procedures and program descriptions.

As proposed in § 3910.46(a)(1)—(4), facility management will be required to develop and implement policies and procedures and add details to program descriptions

that address the development of a personal safety plan for each infant and toddler, including overall health and safety considerations. The role of the facility staff related to the infant or toddler requires an understanding and awareness of health and safety concerns in the context of a shared and supportive level of responsibility with team members and the parenting youth for the health and safety of the infant or toddler. Specific facility staff responsibilities addressed in § 3910.46 are based on stakeholder input and examples of requirements in other states. Proposed language in § 3910.46(b) addresses health care considerations of an infant or toddler who is not adjudicated dependent and under the care and responsibility of the county agency, as this remains the responsibility of the parenting youth. However, facility staff maintain the responsibility to monitor, document and support the parenting youth in meeting the health care needs of their infant or toddler which requires developing a trusting relationship and open communication.

As proposed in § 3910.46(c)(1)—(12), facility management will be required to develop and implement policies that include the components listed to support appropriate health and safety of infants and toddlers.

§ 3910.47—Discharge planning for infants and toddlers

In § 3910.47 (relating to discharge planning for infants and toddlers), the department is proposing requirements related to specific discharge planning requirements for infants and toddlers. In § 3910.47(a), proposed language will require facility management to develop and implement policies and procedures addressing the development of a discharge plan for each infant and toddler as a separate document from the parent's discharge plan referenced in § 3900.195. This proposed section specifically addresses discharge considerations relevant to infants and toddlers and creates a process to address plan specifics and available post discharge supports with the parenting youth, separate from the parenting youth's own discharge plan.

Stakeholder input and examples of requirements in other states were considered in framing the proposed requirements in this section. Proposed language in § 3910.47(b)(1)—(6) addresses the details of the contents of a discharge plan for an infant or toddler. Proposed language in § 3910.47(c) will require facility staff to maintain documentation of the discharge plan in the infant's or toddler's ISP and in the infant's or toddler's record.

§ 3910.48—Parental and family visitation with infants and toddlers

In § 3910.48 (relating to parental and family visitation with infants and toddlers), the department is proposing requirements related to visitation and family time for infants and toddlers with their non-custodial parent and extended family members. The importance of even a young infant establishing and maintaining a relationship with extended family members and their non-custodial parent is a topic area addressed in special educational and training sessions to be offered to youth in § 3910.52 as well as in the additional staff training required § 3910.53 for facility staff working in these specialized settings. Facility management will be required to develop and implement policies addressing how visitation and family time for infants and toddlers with the non-custodial parent and extended family members will be supported. These policies related to an individual plan must also address any safety concerns for the infant or toddler and any other considerations imposed through court orders as addressed in § 3910.48(a) and (b).

§ 3910.49—Noncustodial parental involvement

In § 3910.49 (relating to noncustodial parental involvement), the department is proposing requirements related to supporting contact and a relationship between the infant or toddler and the noncustodial parent. Program descriptions must include information related to how the parenting youth in placement will be informed of their parental obligations including the legal rights of both parents to information and contact with the infant or toddler as proposed in § 3910.49(a).

Requirements outlined in § 3910.49(b)(1)—(3) address the components to be reflected in a program description that includes written guidelines addressing how facility staff are to approach and engage the parenting youth in discussions regarding establishing paternity and the non-custodial parent's legal and visitation rights with the infant or toddler. Facility staff should be available as needed to offer support and offer reassurance to the parenting youth and to provide information related to the value and importance of an infant or toddler developing positive relationships with both parents and extended family members.

Documentation of the provision of this information and the plan developed for the infant or toddler and the noncustodial parent is to be maintained in both the parenting youth's record and the infant's or toddler's record as referenced in § 3910.49(c).

§ 3910.50—Infant and toddler visitation

In § 3910.50 (relating to infant and toddler visitation), the department is proposing that facility management be required to develop and implement a component in the program description that addresses the policies and procedures for family member visitation and contacts with the infant or toddler. Stakeholder input and examples of requirements in other states were considered in framing the additional proposed requirements in this section. Specific required components are included as part of § 3910.50(a)(1)—(4).

As proposed in § 3910.50(b), facility staff will be required to provide a copy of the visitation policies to the youth at admission and review the policies with the parenting youth again when visitation with the infant or toddler is initiated.

Language proposed in § 3910.50(c) will require that the plan developed to support infant and toddler visitation with extended family members be documented in both the parenting youth's and infant's or toddler's ISP and case records.

§ 3910.51—Adoption planning

In § 3910.51 (relating to adoption planning), the department is proposing requirements to support a youth's consideration of adoption planning. Stakeholder input was considered in framing the proposed requirements in this section. As addressed in § 3910.51(a), facility management must establish an agreement with at least two licensed adoption agencies to provide a choice of supportive services for a pregnant, expecting or parenting youth considering adoption.

Because adoption counseling is a service best delivered through a licensed adoption agency and trained, experienced adoption agency staff, proposed language in § 3910.51(b) will require that facility staff support the youth in connecting with the agency they select. When a

youth expresses interest in exploring adoption as an option for their infant, the facility staff are to provide general information about options for support from the adoption agencies identified in the agreement.

Proposed language in § 3910.51(c) will require facility staff to provide the youth with information about obtaining legal counsel and offer support and transportation to access legal services. Copies of the agreements executed with adoption agencies are to be maintained in the facility administrative files as proposed in § 3910.51(d).

§ 3910.52—Parenting and life skills education for youth

In § 3910.52, the department is proposing requirements related to educational sessions focused on parenting and life skill trainings for youth. These training sessions are in addition to those addressed under § 3900.184.

Facility management will be required to develop and implement a component in their program description addressing parenting and child development education opportunities for youth as addressed in § 3910.52(a). Stakeholder input and examples of requirements in other states were considered in framing the proposed requirements in this section. Proposed language under § 3910.52(b) clarifies that parenting education may be presented in a group or on an individual basis, using a youth-friendly curriculum. Specific required topics for these skill-development, parenting technique trainings and child development educational opportunities are addressed in § 3910.52(b)(1)—(12).

Proposed language in § 3910.52(c) identifies that facility staff shall maintain documentation of the curriculum or guidelines used to provide parenting education, the facility-defined qualifications of trainers, the date and length of time and specific topics addressed in trainings attended by a pregnant, expecting and parenting youth in the youth's record.

§ 3910.53—Additional staff training requirements for specialized settings serving pregnant, expecting and parenting youth

Under § 3910.53, the department is proposing to add annual and ongoing training requirements, in addition to those addressed in § 3900.57 for facility staff working in specialized settings with youth who are pregnant, expecting or parenting. Stakeholder input and examples of requirements in other states were considered in framing the proposed requirements in this section and the topics coordinate with staff responsibilities and the training sessions to be provided to the youth referenced in § 3910.52. Required topics for these facility staff training sessions are outlined in § 3910.53(a)(1)—(14).

These training topics are to be incorporated into the staff training calendar to ensure the timely completion of trainings as proposed in § 3910.53(b). If appropriate, based on content and delivery style, these training topics may also be presented in sessions that include both staff and pregnant, expecting and parenting youth at the facility as referenced in § 3910.53(c).

Proposed language in § 3910.53(d) will require that facility management maintain documentation in the facility's file of the facility staff trained, date, source, facility defined qualifications of the trainer, content, length of each course and copies of any certificates received.

Subchapter D—Outdoor Programs (§§ 3910.61—3910.63)

§ 3910.61—Applicability

In § 3900.61 (relating to applicability), the department is proposing to identify requirements for facilities that operate as outdoor programming. This subchapter contains the minimum requirements that must be met to obtain a certificate of compliance to provide child residential care in a stationary outdoor setting. This section carries over the applicability language from § 3800.301.

The outdoor programming regulated by this chapter varies in design, size and configuration. Mobile outdoor programming currently licensed under Chapter 3800 will no longer be an option within the proposed requirements in Chapter 3910. Mobile outdoor programming has not been utilized by contracting agencies and the single approved program still holding a certificate of compliance to operate as a mobile outdoor program has no recent utilization. As a result, the department is recommending that this type of outdoor programming no longer be offered as a licensed placement setting.

§ 3910.62—Exceptions for outdoor programs

In § 3910.62 (relating to exceptions for outdoor programs), the department is proposing that outdoor programs for children and youth that operate from stationary settings, including tepees and cabins, are exempt from complying with certain requirements under Chapter 3900. These exemptions include: the number of sinks and toilets; supervision requirements for facilities; ventilation and lights requirements; facility water and temperature requirements; railings and stairs requirements; elevators and indoor and recreational space; kitchen, laundry and bathroom requirements except for required personal hygiene items listed in § 3900.84(g) and (h).

§ 3910.63—Additional requirements

The department is proposing to identify additional regulatory requirements in § 3910.63 (relating to additional requirements) that will apply to outdoor programming licensed under this chapter. The following requirements are in addition to those under Chapter 3910, Subchapter A (relating to general requirements).

These additional requirements address the health and safety of the youth served in outdoor programs. This proposed listing includes several new requirements and most of the additional requirements included in § 3800.303, which are carried over with some minor changes in terminology and deletions as noted in the following explanation.

Proposed language in § 3910.63(1) requires a minimum of at least 30 square feet per youth, including measurement of all floor space, as the basis for determining the maximum licensed capacity as reflected on the certificate of compliance. This is carry-over language from § 3800.303(c) which reflects the minimum square foot per child.

Proposed language in § 3910.63(2) requires an adequate supply of water for both cleaning and bathing and a supply of food readily available for use by the youth and staff. This is carry-over language from § 3800.303(a)(1), with some minor modifications reflecting the stationary design of outdoor programs under Chapter 3910, Subchapter D. Specifically, the proposed language reflects the elimination of mobile programs, including the related food and supply provision.

Proposed language in § 3910.63(3) will require that an accessible source of potable drinking water be available to

youth at all times. This is carry-over language from § 3800.303(a)(2). Access to drinking water at all times is also a requirement proposed in § 3900.133(d).

Proposed language in § 3910.63(4) will require that there be an opportunity for youth to bathe or shower at least every other day, brush their teeth at least twice a day and wash their hands before each meal provided as part of the outdoor programming. This is carry-over language from § 3800.303(a)(3), with some minor modifications reflecting an increased frequency from bathing or showering from once a week to at least every other day. This proposed change was in response to stakeholder input and licensing experiences.

Proposed language in § 3910.63(5) will require facility staff responsible for the supervision of youth during awake hours to complete hourly observational checks of each youth. This is a proposed addition to the requirements for outdoor programs based on stakeholder input and licensing experiences. Documentation of the observations made of each youth in the program and designating the frequency of these documented observations addresses concerns related to youth safety and staff awareness of the whereabouts and activities of each youth.

Proposed language in § 3910.63(6) will permit facility staff to sleep when the children and youth are asleep and still be counted as meeting the required youth to staff ratios. This section addresses a variance in practice from the proposed requirements for staff supervision of youth addressed in § 3900.57(d), which prohibits staff from sleeping while being counted in the youth to staff ratios. Given the outdoor program staffing model, which often does not mirror the shift schedules commonly used at more traditional residential facilities, this proposed requirement allows for staff working continuous multiple shifts to be on duty and available to the children and youth even during sleeping hours. This is a carry-over of current practice for outdoor programs.

Proposed language in § 3910.63(7) will require that each child or youth have footwear and clean clothing that is well constructed, in good condition and appropriate for the activity being conducted in the outdoor program. This is carry-over language from § 3800.303(a)(10), with a minor addition to address access to clean clothing as well as appropriate footwear.

Proposed language in § 3910.63(8) will require that personal hygiene supplies, shelter (such as cabins, yurts, tents or tarpaulins), a sleeping bag or other sleeping equipment, and bedding appropriate to the temperature be provided for each child or youth in the outdoor program. This is carry-over language from § 3800.303(b)(1), with a minor change in terminology to delete reference to fire-retardant tent or tarp to be used as a shelter and sleeping equipment as industry standards have changed and materials are now required to comply with flammability standards.

Proposed language in § 3910.63(9) will require that equipment provided to the staff and children or youth for activities be safe and well maintained. This is carry-over language from § 3800.303(b)(3).

Proposed language in § 3910.63(10)(i)—(iv) will require facility management to develop and demonstrate implementation of policies addressing areas listed. Reliable communication systems readily available to staff and the youth in the event of a medical, police, fire or other emergency is carry-over language from § 3800.303(a)(4), with some minor modifications reflecting the proposed updated language in § 3900.71(a). The department is proposing language that clearly requires access to the communication system to be available to both staff and the youth in the program to address safety concerns noted by stakeholders. Staff access to routine weather information for advance warning of severe or dangerous weather conditions is carry-over language from § 3800.303(a)(5). Proposed language in § 3910.63(10)(iii) will require development and implementation of a written emergency transportation and staffing plan carrying over language from § 3800.303(a)(6). Proposed language in § 3910.63(10)(iv) carries over language from § 3800.303(a)(7), with a minor change in terminology to address the whereabouts of the child or youth being unknown to staff rather than one who is missing.

Proposed language in § 3910.63(11) will require that facility staff designated as responsible for teaching children or youth high-risk activities including boating, biking, horseback riding, swimming and climbing receive training in safe practices regarding these activities prior to instruction of a child or youth. This is carry-over language from § 3800.303(b)(4) with a minor clarifying change in language supported by stakeholders, identifying that staff who are trained in high-risk activities may be designated by the facility management to teach these activities to a child or youth only after receiving instructions and training themselves.

Proposed language in § 3910.63(12) will require facility management to maintain documentation in the facility's records of the facility staff trained in safe practices regarding high-risk activities, the date and source of the training, facility defined qualifications of the trainer, the content and length of each training course, and copies of any certificates earned by the trainee. This section expands upon language in § 3800.303(b)(4) to add details of the training documentation to be maintained by the outdoor program. This language is also consistent with other sections that address documentation of required trainings.

Chapter 3920—Secure Residential and Secure Detention Facilities for Youth

As provided previously, general requirements for both nonsecure and secure child and youth facilities are included in Chapter 3900. However, there are instances where specific requirements are needed for each type of facility. Chapter 3920 proposes to provide requirements specific to secure residential and secure detention facilities for children and youth. Secure care in a residential setting is permitted only for a child or youth who is adjudicated delinquent and court ordered to a secure residential or secure detention facility. Youth who are charged as an adult, but court ordered to a juvenile secure detention facility through an interest of justice hearing may also be detained. Only a child or youth who is alleged delinquent or is already adjudicated delinquent may be confined in a secure detention facility. Secure detention is a temporary 24-hour living setting, in which one or more delinquent or alleged delinquent children or youth are detained, generally in a pre-adjudication status.

The following is a summary of the major provisions of Chapter 3920.

Subchapter A—General provisions (§§ 3920.1—3920.7)

§ 3920.1—Purpose

In § 3920.1 (relating to purpose), the department is proposing language that the purpose of the chapter is to protect the health, safety and well-being of children and youth receiving care in a secure residential or secure detention facility for children or youth.

§ 3920.2—Applicability

In § 3920.2 (relating to applicability), the department is proposing to set forth the scope of applicability of this chapter. This proposed chapter applies to secure residential facilities and secure detention facilities for children or youth that are operated by a private entity or a county.

§ 3920.3—Exemptions

In § 3920.3 (relating to exemptions), the department is proposing the list of programming and facilities to be exempted from the secure residential and secure detention requirements of proposed Chapter 3920.

§ 3920.4—Definitions

The department is proposing various definitions for Chapter 3920, including "delinquent child," "family engagement," "seclusion," "secure detention," "secure residential," "sight and sound checks" and "sight and sound separation."

§ 3920.5—Licensure or approval

In § 3920.5 (relating to licensure or approval), the department is proposing compliance with Chapters 3900 and 3920, along with compliance with the existing Chapter 20 for licensure or approval.

§ 3920.6—Reportable incidents

In § 3920.6 (relating to reportable incidents), the department is proposing to mirror § 3800.274(2) (relating to additional requirements) by adding youth assault, the use of handcuffs or leg restraints for longer than 2 hours and the use of seclusion for longer than 4 hours to the incidents which must be reported to the department. Use of a restrictive procedure involving a child or youth who is pregnant or in any stage of labor or delivery, is postpartum or is being transported to a medical facility for reasons related to the physical conditions listed, has been added as a reportable incident to comply with 42 Pa.C.S. Chapter 63, Subchapter G.

Under proposed § 3900.16, a written report is required to be electronically submitted regarding the reportable incident to the department within 24 hours after the incident occurs.

§ 3920.7—Waivers

In § 3920.7 (relating to waivers), the department is proposing language consistent with existing waiver provisions.

Subchapter B—Secure residential and secure detention facility requirements (§§ 3920.11—3920.24)

§ 3920.11. Residential program worker

In § 3920.11, the department is proposing language that alters responsibilities and qualifications of this position as addressed in language carried over from § 3800.55, including a title change.

In § 3920.11(a), the department is proposing a requirement that residential program workers must complete the orientation training as addressed in § 3900.57(a) prior to having any contact with a child or youth at the facility.

In § 3920.11(b), the department is proposing a requirement that a residential program worker must shadow or work under the supervision of experienced facility staff when working with children or youth during their initial 120 days of employment. During this initial period of employment, they may not be counted in the child and youth to staff ratios until certification is acquired in the subject areas under § 3900.57(c)(1)—(5). This requirement is based on stakeholder input to ensure that facility staff have training in basic safety and health related areas before working alone with children or youth.

The department is proposing language in § 3920.11(c) that mirrors requirements in § 3800.274(4) with minor clarity edits.

The staff ratios proposed in § 3920.11(d) and (e) mirror § 3800.274(5) and (6).

In § 3920.11(f), the department is proposing to mirror § 3800.55(f). Requirements proposed in § 3920.11(g) will require all residential program workers counted in the child or youth to staff ratios to be 21 years of age or older, changing the requirements carried over from § 3800.55(h). Stakeholder input and the recommendation in the 2022 Grand Jury Report on the Delaware County Juvenile Detention Center support this change, and it reflects the majority of current experiences in the field. The option to seek a waiver from the department to this requirement still exists if facility management believes that an individual applying for a position or known to them from an internship or volunteer role, has the skills, maturity and ability to appropriately respond to the needs of youth in care, if needed.

The educational requirements for this position proposed in § 3920.11(h)(1) are similar to those under § 3800.55(g), identifying that the residential program worker must have a high school diploma or general education development certificate with the addition of 1 year of documented paid or volunteer experience with youth in a group or residential setting.

Current educational requirements for secure detention residential program workers reflected in § 3800.283(1) (relating to additional requirements) have been modified in § 3920.11(h)(2) to allow for residential program workers in secure settings to have the option of verifying 60 credit hours from an accredited college or university or military service training in one or a combination of areas of study that include social work, sociology, psychology, family ecology, family or child development, counseling and guidance, criminal justice, community services, family studies, counseling psychology, education, early childhood education, secondary education, special education or other human services related field as qualifying background for this position. Accepting relevant military training or education for this position reflects stakeholder input to recognize this as an acceptable option.

Proposed language in § 3920.11(i) allows for an exception to staff qualification requirements under subsection (h) for facility staff hired or promoted to the position of residential program worker prior to the effective date of the final-form rulemaking.

§ 3920.12—Supervision

In § 3920.12 (relating to supervision), the department is proposing language that modifies requirements carried over from § 3800.56 regarding supervision. Proposed requirements in § 3920.12(a) carry over language from § 3800.283(9) with minor changes in terminology requiring that facility staff must be able to see and hear children and youth at all times.

In § 3920.12(b), the department is proposing requirements to reflect supervision of children and youth as addressed § 3800.274(3) indicating that children and youth in secure residential settings are to be directly supervised at all times while they are awake. Proposed language in § 3920.12(b) increases the documentation frequency of awake youth observational checks, proposed as sight and sound checks, as required in § 3800.57(a)

from once every hour to once every 30 minutes. This proposed requirement, supported by stakeholder input for increased frequency and documentation, requires that these checks be completed every 30 minutes by both sight and sound. The related change proposed in § 3920.12(b) also requires that these sight and sound checks, and the actual viewing of each child or youth be documented in writing as addressed in § 3920.12(d). More frequent documentation may be required in a child's or youth's health and safety screen, addressed in § 3900.111, or ISP, addressed in § 3900.191.

The department is also proposing that facility staff be required to conduct sight and sound checks of sleeping children and youth once every 15 minutes as reflected in § 3920.12(c) which mirrors language in § 3800.274(7) unless more frequent sight and sound checks are required by the child's or youth's health and safety screen, addressed in § 3900.111, or ISP, addressed in § 3900.191.

In § 3920.12(e), the department is also proposing to maintain the intent of the language in § 3800.273(2) (relating to exceptions for secure care). Options to accommodate sleeping staff are not included in this chapter.

§§ 3920.13—3920.17

The department is proposing requirements consistent with language under §§ 3800.274(12), (14) and (15) for glass windows, lighting, surfaces, furniture, equipment and mirrors. The department is proposing this language be addressed in separate sections for additional clarity.

§ 3920.18—Unobstructed egress

In § 3920.18 (relating to unobstructed egress), the department is proposing language to address safety concerns specific to the locked nature of secure facilities. The unique nature of secure residential and secure detention facilities requires the approval of options to limit both entry and egress from a building. These considerations are not clearly addressed in Chapter 3800.

Proposed language in § 3920.18(a) will require facility management of each secure residential care and secure detention facility to obtain fire safety approval as specified in § 3900.14 to address and permit locking of identified means of egress from rooms, units and buildings. As referenced in § 3920.18(b), doors used for egress routes from rooms and from the building, equipped with key-locking devices, electronic card operated systems or a centralized control panel which prevent immediate egress from the building, must meet the criteria in the International Building Code (section 1008.1.9.7).

Doors used for egress routes from rooms and from the building must unlock upon activation of the required automatic sprinkler system or automatic fire detection system as required in § 3920.18(c). Door locks may also have the capability of being unlocked by a signal from the fire command center if that is part of the facility security and fire alarm system. This reflects stakeholder input identifying existing facility systems operations.

Language proposed in § 3920.18(d) will require facility management to develop and implement a written emergency plan that includes procedures to follow during a power outage to ensure building security and child, youth and community safety. To support safe and timely evacuation of the building in the event of an emergency, a floor plan showing primary and secondary exit routes shall be posted at or near each doorway or means of egress, at entrances to stairs and in elevator lobbies as referenced in § 3920.18(e).

Language proposed in § 3920.18(f) will require facility staff to maintain documentation of building permits and certificate of occupancy in the facility's files and submit permits and certificates to the department's regional office.

§ 3920.19—Health and safety admission screening

In § 3920.19 (relating to health and safety admission screening), the department is proposing modifications to the time frames addressed in § 3900.111 for children and youth in secure settings. The time frame for the written health and safety admission screening to be completed within 24 hours of admission for a child or youth in a secure residential facility in § 3920.19(a) is consistent with language in § 3800.141. Proposed language in § 3920.19(b) specifies that this written health and safety admission screening shall be completed within 1 hour of admission for youth placed in a secure detention facility which mirrors § 3800.283(4).

§ 3920.20—Health examination

In § 3920.20 (relating to health examination), the department is proposing language to address time frames for health examinations for a child or youth admitted to a secure detention facility. Each child or youth shall have a health examination as soon as possible after intake, but no longer than 96 hours after admission which is consistent with the language in § 3800.283(5). This expedited time frame for youth entering detention is supported by the absence of background information and their unplanned admission to the detention facility and modifies the time lines addressed in § 3900.113.

§ 3920.21—Safe transportation

In § 3920.21 (relating to safe transportation), the department is proposing language consistent with language in §§ 3800.171 and 3800.274(10) to establish requirements for safe transportation of children and youth placed in secure facilities. The need for a technical change is noted in § 3920.21(b), changing the title of child care worker to the proposed title of residential program worker.

§ 3920.22—Seclusion

In § 3920.22 (relating to seclusion), the department is proposing language consistent with the current restrictions under § 3800.274(17)—(19) with a few changes.

Seclusion is prohibited for a pregnant or postpartum child or youth. This prohibition reflects the statutory requirements in 42 Pa.C.S. Chapter 63, Subchapter G.

Section 3920.22(6) addresses the length of seclusion and includes limitations on the use of seclusion for any child or youth in any 24-hour period. Current language in § 3800.274(17)(vi) requires a written court order. Proposed requirements in § 3920.22(7) require that this written court order come from the committing judge, master or, if the identified court personnel are not available, the assigned chief probation officer from the referring county. This change was proposed by stakeholders indicating that a judge or other identified individual from the referring county who has familiarity or direct access to information about the child or youth should be the source of an order. The maximum length of time of a child or youth being held in seclusion is 8 hours in any 48-hour period in § 3800.274(17)(vi). Under this proposed rulemaking, the use of seclusion under Chapter 3920 may not exceed 8 hours in any 24-hour period, or 12 continuous hours, without a written court order from the committing judge, master or the assigned chief probation officer

from the referring county. And the use of seclusion for a continuous period of more than 24 hours is prohibited.

Although these changes in the length of time seclusion may be used, and the process to secure direction and approval external to the facility, do not reflect the recommendations offered in the 2022 Grand Jury Report on the Delaware County Juvenile Detention Center (chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.attorneygeneral.gov/wp-content/uploads/2022/12/2022-12-13-DCJDC-Final-Report.pdf, pages 195 and 196), they do reflect extensive discussion with a variety of stakeholders and their input reflecting practice and experiences in the field.

Proposed language in § 3920.22(12) supports compliance with 42 Pa.C.S. Chapter 63, Subchapter G by prohibiting the use of seclusion with a pregnant or postpartum child or youth.

§ 3920.23—Mechanical restraints

In § 3920.23 (relating to mechanical restraints), the department is proposing to mirror § 3800.274(16) and the examples listed in § 3800.210(a) and (c). Individuals with the authority to provide approval for use of handcuffs and leg restraints in excess of 4 hours in any 48-hour period are proposed in § 3920.23(8).

Compliance with 42 Pa.C.S. Chapter 63, Subchapter G and the use of mechanical restraints with a pregnant or postpartum child or youth is addressed in § 3920.23(d).

§ 3920.24—Placement process

In § 3920.24 (relating to placement process), the department is proposing to carry over language from § 3800.223(1)—(4) and add additional child or youth specific information to be gathered and compiled at the time of placement at a secure residential or secure detention facility. Proposed omission of a separate section similar to existing § 3800.222 also requires changes to language in this section, which is now proposed to include a requirement that each facility have both an admission and placement process.

Proposed language in § 3920.24(a) is consistent with the language in § 3800.271 (relating to criteria).

Proposed language in § 3920.24(b) is consistent with the language in § 3800.283(10) by prohibiting children and youth from being detained in a facility that allows for contact with adult offenders and addresses the option of secure detention facilities being used to house juvenile offenders charged as adults who are awaiting an interest of justice hearing or have had a judicial ruling that it is not in the interest of justice for the youth to be held in an adult jail pending trial.

Proposed language in § 3920.24(c) includes a list of informational items that are to be requested by the facility staff from the committing court which carries over language from § 3800.272 (relating to admission to secure care) with several additions. Prior to accepting or receiving a child or youth, facility staff will be required to request information about the assigned probation officer, the date the petition was filed and the child's or youth's legal status, a description of the offenses and circumstances that make placement necessary and a copy of the court order committing the child or youth to the facility. Stakeholders identified this listing of items as the minimum information that should be available to facility staff at admission to support staff being aware of the child's or youth's presenting circumstances.

Facility policies and procedures referenced in § 3920.24(d) are to include an admissions and placement process that assesses and documents the listed information for each child or youth prior to or upon admission. This next step in the admissions and placement process in § 3920.24(d)(1) and (2) includes policies that support the assessment and documentation of a child's or youth's needs to be addressed during placement including potential discharge plan options and resources needed and available. This requirement reflects the proposed requirements related to transfer or discharge of a child or youth included in § 3900.195. Documentation of all medications prescribed to be administered by the facility staff including the date prescribed, the prescriber, dosage, frequency, amount received and reason for prescription is a requirement proposed in § 3920.24(d)(3). Information specific to how the facility-provided activities and services will meet the needs of a child or youth, including any special needs or accommodations is to be addressed and documented as referenced in § 3920.24(d)(4). The language proposed in this section updates the requirements included in § 3800.223 while still maintaining the intent of these admission policies and requirements.

The department is proposing language in § 3920.24(e) that requires facility staff to document the required information delineated in this section within 48 hours following admission, allowing for time to secure the required information as secure detention placements are usually unplanned or emergency situations. This proposed time frame supports facility staff access to relevant background information in a timely manner.

Subchapter C—Co-located detention facilities (§§ 3920.31—3920.33)

§ 3920.31—Facility configuration

In § 3920.31 (relating to facility configuration), the department is proposing to establish new requirements specific to the co-location of a child or youth secure detention facility within a facility that also confines adult offenders. Amendments in 2018 made by the Juvenile Justice Reform Act of 2018 (Pub.L. 115-35, 132 Stat. 213) and applicable Federal regulations under 28 CFR Part 31, Subpart A (relating to formula grants), require that any child or youth under 18 years of age being processed through criminal proceedings, must be separated by sight and sound from adult inmates (See 34 U.S.C. § 11133(a)(11)(B) (relating to state plans)). The Commonwealth has determined that this requirement applies to a child or youth who is a direct file to adult proceedings under the exclusion provisions of the Juvenile Act, or those who are transferred to criminal proceedings under 42 Pa.C.S. § 6355 (relating to transfer to criminal proceedings). In these situations, if the child or youth is not released pretrial on bail or otherwise, they may be held in a secure detention facility for youth licensed by the department.

If a secure detention facility is contained within the same building as an adult offender facility, the department proposes that the facility configuration supports complete separation of the children or youth and adults as addressed in § 3920.31(1). Proposed language in § 3920.31(2) elevates Federal standards to require that co-located facilities have entrances and exits for child and youth units that are totally separate from adult units. In § 3920.31(3), proposed language addresses requirements for outdoor recreation areas. These outdoor spaces must be configured to prevent adult offenders confined at the facility from viewing the children or youth also being detained at the facility. All medical and emergency services provided to a child or youth within the secure detention facility must be delivered in a separate and distinct area from locations used to treat confined adult offenders.

§ 3920.32—Staffing

In § 3920.32 (relating to staffing), the department is proposing to establish an additional facility staff training requirement. Facility staff who work with children or youth and adults in co-located facilities shall complete all staff training required for residential program workers included in § 3900.57 prior to working in the detention facility.

§ 3920.33—Consultation

In § 3920.83 (relating to consultation), the department is proposing to establish requirements for a secure detention facility to be co-located in a building providing secure services for adult offenders. The department is proposing to require that a co-located secure detention facility planned and developed under this chapter must seek consultation and technical assistance from the Pennsylvania Commission on Crime and Delinquency (PCCD).

The PCCD was established by the act of November 22, 1978 (P.L. 1166, No. 274) (Act 274). Section 2(o) of Act 274 (71 P.S. § 1190.22(o)) designates the PCCD as the State Criminal Justice Council for the purposes of the Omnibus Crime Control and Safe Streets Act of 1968 (Pub.L 90-351, 82 Stat. 197), as amended. As the designated State agency, the PCCD is charged as the monitoring authority for the Commonwealth including all facilities in which juveniles may be placed by court order. This authority to monitor facilities permits the PCCD to require each facility licensed by the department classified as secure, non-secure or both, to be verified and inspected for classification purposes; to maintain specific juvenile admission and release records; and to permit the designated compliance monitor to review these records at selected intervals during the year to ensure Federal and State compliance.

The department has identified consultation with the PCCD as a critical part of program and facility development supporting compliance with Federal law and the requirements of this chapter. Documentation of this consultation and review by the PCCD must be submitted as part of the application for licensure of a new co-located secure detention facility.

Affected Individuals and Organizations

To operate, child residential facilities and secure residential and secure detention facilities for children and youth will have to meet the updated training, staffing and supervision requirements under Chapters 3900, 3910 and 3920. These proposed changes will increase the employee complement in the majority of facilities to meet the new ratios and delineated staff responsibilities. The increased training hours and topics will require changes in both the content and delivery of the curricula selected. The proposed requirements for new facility staff to complete a detailed orientation before having any contact with children or youth and the additional requirement that they shadow an experienced facility staff until certifications are achieved in identified areas will affect the onboarding process for new hires.

All facilities will be required to incorporate components of the trauma-informed approach selected by facility management into training, programming and specific service delivery considerations. While many facilities have already adopted trauma-informed practices, this proposed rulemaking addresses specific areas which need to reflect these practices and the related training required.

A new program model has been added within this proposed rulemaking. As referenced in the Family First Prevention Services Act, child residential specialized settings that serve pregnant, expecting and parenting youth and their infants and toddlers are proposed to be regulated under Chapter 3910. This addition will result in facilities providing this level of programming and newly licensed child residential facilities choosing to provide services to pregnant, expecting and parenting youth will be regulated for the first time by the proposed requirements which include considerations of the specific needs of infants and toddlers living with the parenting youth. Under this proposed rulemaking, physical accommodations, health care considerations, nutrition requirements and service planning procedures are proposed for facilities seeking licensure.

The children and youth receiving care and services in the licensed facilities are also directly affected by the proposed increased health and safety standards and elevated attention to the trauma they have experienced. Increased staffing levels and enhanced training for facility staff will have a positive effect on the quality of supervision and the interaction experienced by the children and youth with facility staff. New requirements addressing the involvement of a child or youth in service planning and training specific to youth provide the opportunity for engagement and improved outcomes.

Similarly, the families of the children and youth receiving care and services are also impacted by this proposed rulemaking given their interest in the health, safety and quality of care their children and youth receive. The proposed language focuses attention on family involvement practices for the first time and identifies requirements for facility staff to review and provide copies of relevant policies, initiate contact following a variety of child or youth experiences and maintain a heightened level of ongoing communication supported by designation of a facility staff point-of-contact.

Contracting agencies purchasing services and placement agencies, including county government, children and youth and JPO, are affected by the proposed requirements since they pay for and monitor the quality of the services. The proposed level of details to be included in the program descriptions will support an increased level of accountability in both the contracting agency selection of a facility best meeting the needs of a child or youth and in the facility's admission decision to accept a child or youth.

As of March 3, 2025, there are 117 private legal entities, both for profit and not-for-profit, who operate 464 licensed child residential facilities, secure residential and secure detention facilities in this Commonwealth. In addition, there are 11 counties that operate their own residential programs and 14 counties that operate secure detention facilities. There is a total licensed capacity for 6,127 children and youth to be served in the residential settings, 138 in outdoor programs, 235 in secure residential facilities and 537 in secure detention facilities.

Accomplishments and Benefits

The benefits anticipated as a result of this proposed rulemaking include improved safety measures and outcomes for children and youth, shorter lengths of stay in residential care as children, youth and their families are more directly involved in planning and discharge processes, and achievement of the permanency goals individually identified for each child or youth. Increased staffing ratios and training requirements are also identified as elevating safety and supervision practices, and the quality of services delivered.

Private providers, both for profit and not-for-profit entities, as well as counties operating their own residential programs, will benefit from the clear, updated requirements that reflect and address current practice issues and concerns. Training topics proposed for facility staff will focus attention on trauma informed practices and consideration of the experiences of the children and youth related to their service needs, health care and behavioral interventions. Attention to concerns and actual or potential child or youth experiences related to human trafficking are addressed in proposed youth and facility staff training requirements and specific screening and assessment services to be made more readily available within a facility.

The proposed increased staffing ratios have a direct connection to the quality of supervision of the children and youth and their safety through increased frequency of staff observations and availability of facility staff to more easily intervene in situations requiring a timely response.

County governments, as payer of services purchased, will also benefit from an updated focus and clarity related to the services to be provided. Ready access to detailed program descriptions and facility policies and procedures will better inform decisions related to contracting and purchase of services.

Fiscal Impact

The primary costs in implementation of the amendments for the regulated community are related to increased staffing needed to meet the requirements of the updated child and youth to staff ratio (from 1:8 to 1:6 during awake hours and 1:16 to 1:12 during sleep hours), updated supervisory ratios (1:16 to 1:12) and the requirement for two staff on-duty at all times. Using an 80% daily census of total licensed capacity as a generalized budgeting projection, the department calculated the number of additional staff required. The department utilized the median salary of a residential program worker and a residential program supervisor based on 2023 salaries in its calculation. It should be noted that these salaries were adjusted to account for any increases provided to staff in subsequent years of the current salary offerings, including signing bonuses which may be incurred in increased efforts related to post-pandemic staff recruitment and retention challenges. Based on the assumptions, the aggregate projected increased staffing costs are $40,540,529 in the first full year of implementation with an approximate 70% funded through State reimbursement ($28,378,371) and 30% local government funds ($12,162,159). These numbers reflect ongoing cost increases to support the required staffing complement.

In addition, the Federal funding restrictions of congregate care placement settings based on the Federal Family First Prevention Services Act will be alleviated when the proposed regulations are implemented. The department's regulations for child residential facilities incorporate the standards of care necessary to address the health, safety and well-being of children who are, or who are at risk of becoming, victims of sex trafficking. These standards are defined for specialized settings for this population and are deemed a Federal Title IV-E reimbursable setting. As such, the projected savings to State and local government achieved in the first full year of implementation is projected to be $5,020,185—State funds ($4,016,148) and county funds ($1,004,037). These savings are identified based on the department's previously projected revenue loss as a result of the congregate care Federal funding restrictions.

Affected facilities will experience increased costs directly related to the development of new policies and procedures and revisions to current ones to meet those identified throughout the chapters. While supporting the development of these policies and procedures by facility management to reflect the history, mission and vision of individual legal entities, the department has also determined that each facility will be held accountable to comply with the content and intent of these documents. It is projected that the development and revision of policies and procedures may take the equivalent of 80 manpower hours. Costs related to meeting the proposed regulatory requirements will vary greatly depending upon the internal facility resources available as well as external supports and expertise purchased to assist in drafting related to the policies and procedures.

The department recognizes that costs may exist for the proposed required video surveillance systems. All existing secure detention and secure residential facilities have surveillance systems that will meet the proposed requirements. In addition, there are currently 43 facilities that serve 25 or more children and youth. Of those facilities, 40 already have video surveillance systems installed. An analysis of the remaining three facilities which included the physical site structure, number of floors, and common spaces was utilized in projecting a fiscal impact on providers. There would be one-time costs for those three providers who do not have existing systems, which is projected at $4,400 per floor based on purchase and installation using an eight-camera system as basis for calculation identifying common areas and hallways. Additionally, facilities would incur a storage fee with an average of $300 per year to have a mechanism to maintain video.

The department also determined that there will be costs to update the department's information system due to the additional incidents proposed to be reported to the department under this proposed rulemaking. The Home and Community Services Information System (HCSIS) data element changes are estimated to be a one-time cost from $70,000—$120,000 which can be absorbed within the current information systems appropriation.

Paperwork Requirements

The paperwork requirements under this proposed rulemaking do not differ from what exists currently in practice. While there are expansions to required content of program descriptions, providers shared through stakeholder sessions that detailed program descriptions were already utilized for contracting including many of the additional proposed requirements. Should a facility not meet the program description requirements of this proposed rulemaking, the one-time cost to develop the program description and update or develop agency documents will be approximately $2,627. The cost is based on an average hourly rate of $32.84 for a residential program director needing an estimated 80 hours to complete the work. The aggregate for all 117 legal entities would be $307,359. The reportable incidents, though enhanced, will be reported electronically into the HCSIS, which is the current system for reporting critical incidents required by regulation.

Additional requirements include the requirement that facilities maintain an electronic log as identified in § 3900.170 of data related to the use of restrictive procedures and § 3900.41, which addresses data requirements for searches of person and property conducted by the facility staff. During stakeholder sessions, providers shared that they already maintain restrictive procedure

data. The addition to the regulation formalizes this data capturing, including identification of the elements in the restrictive procedures record. A debriefing process was added to the regulation and is required to be included in the individual child record as well as the electronic log of all restrictive procedures. Language addressing facility policies, procedures and data gathering responsibilities related to searches of person and property §§ 3900.42 and 3900.44 have been added to incorporate current departmental requirements. The format for collection and maintenance of these data logs is not prescribed by the department, thereby allowing for provider flexibility in meeting these new requirements. Internal investigations related to unsubstantiated grievances filed by a child or youth, or the child's or youth's parent addressed in § 3900.17 are also proposed to be maintained as recordable incidents in an electronic log.

Effective Date

This proposed rulemaking will be effective 6 months after publication of the final-form rulemaking in the *Pennsylvania Bulletin* with the exception of § 3900.55(d), which will become effective 18 months after the effective date of the final-form rulemaking in the *Pennsylvania Bulletin*.

Public Comment

Interested persons are invited to submit written comments, suggestions or objections regarding this proposed rulemaking to the department at RA-PWOCYF3900sReview@pa.gov or mailed to the Department of Human Services, Office of Children, Youth, and Families, Attention: Caitlin Robinson, Bureau of Children and Family Services, Health and Human Services Building, 625 Forster Street, Harrisburg, PA 17120 within 60 calendar days after the date of the publication of this proposed rulemaking in the *Pennsylvania Bulletin*. Reference Regulation No. 14-559 when submitting comments.

Persons with a disability who require an auxiliary aid or service may submit comments by using the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Regulatory Review Act

Under section 5(a) of the Regulatory Review Act (71 P.S. § 745.5(a)), on April 9, 2026, the department submitted a copy of this proposed rulemaking and a copy of a Regulatory Analysis Form to the Independent Regulatory Review Commission (IRRC) and to the chairpersons of the Committee on Health and Human Services of the Senate and to the chairpersons of the Committee on Health of the House of Representatives. A copy of this material is available to the public upon request.

Under section 5(g) of the Regulatory Review Act, IRRC may convey comments, recommendations or objections to the proposed rulemaking within 30 days after the close of the public comment period. The comments, recommendations or objections must specify the regulatory review criteria in section 5.2 of the Regulatory Review Act (71 P.S. § 745.5b), which have not been met. The Regulatory Review Act specifies detailed procedures for review prior to final publication of the rulemaking by the Department, the General Assembly and the Governor.

VALERIE A. ARKOOSH,
Secretary

Fiscal Note: 14-559. Under section 612 of The Administrative Code of 1929 (71 P.S. § 232), (1) General Fund; (2) Implementing Year 2025-26 is $0; (3) 1st Succeeding Year 2026-27 is $0; 2nd Succeeding Year 2027-28 is $15,445,000; 3rd Succeeding Year 2028-29 is $25,498,000; 4th Succeeding Year 2029-30 is $26,678,000; 5th Succeeding Year 2030-31 is $27,906,000; (4) 2024-25 Program—$1,495,000,000; 2023-24 Program—$1,493,000,000; 2022-23 Program—$1,482,000,000; (7) County Child Welfare; (8) recommends adoption.

Annex A

TITLE 55. HUMAN SERVICES

PART V. CHILDREN, YOUTH AND FAMILIES MANUAL

Subpart E. RESIDENTIAL AGENCIES, FACILITIES AND SERVICES

ARTICLE I. LICENSING/APPROVAL

CHAPTER 3800. **[CHILD RESIDENTIAL]** **TRANSITIONAL LIVING RESIDENCES** AND **CHILD** DAY TREATMENT FACILITIES

GENERAL PROVISIONS

§ 3800.1. Purpose.

The purpose of this chapter is to protect the health, safety and well-being of children receiving care in a **[child residential facility]** **transitional living residence or child day treatment center** through the formulation, application and enforcement of minimum licensing requirements.

§ 3800.2. Applicability.

(a) This chapter applies to **[child residential facilities]** **transitional living residences** and child day treatment centers, except as provided in § 3800.3 (relating to exemptions).

(b) This chapter contains the minimum requirements that shall be met to obtain a certificate of compliance to provide **transitional living** child residential care or child day treatment in this Commonwealth.

(c) This chapter applies equally to profit, nonprofit, publicly funded, privately funded, church operated and nonchurch operated facilities.

(d) This chapter applies to the following:

(1) **[Any premise or part thereof, operated in a 24-hour living setting in which care is provided for one or more children who are not relatives of the facility operator, except as provided in § 3800.3]** **{Reserved}**.

(2) **[Child residential facilities that are either secure or nonsecure settings, including child detention centers]** **{Reserved}**.

(3) **[Child residential facilities that are located in a fixed structure, are mobile or any combination of fixed and mobile settings]** **{Reserved}**.

(4) Child day treatment centers.

(5) Transitional living facilities with more than one transitional living residence in the same building.

(6) **[Facilities serving children with disabilities, that serve exclusively children]** **{Reserved}.**

§ 3800.3. Exemptions.

This chapter does not apply to the following:

* * * * *

(6) Family living homes for children with an intellectual disability that are licensed under Chapter 6500 (relating to **[family living]** **life sharing** homes).

(7) Community homes for individuals with an intellectual disability that provide care to both children and adults in the same facility and that are licensed under Chapter 6400 (relating to community homes for individuals with an intellectual disability **or autism**).

* * * * *

(10) Child day care facilities certified or registered under Chapter 3270, 3280 or 3290 (relating to child **[day]** care centers; group child **[day]** care homes; and family child **[day]** care homes).

(11) Private homes of persons providing care to a relative, except homes in which children live with their own children but no other relative, unless the home is a transitional living residence that is exempt from this chapter under paragraph (2).

(12) Child residential facilities licensed under Chapters 3900 and 3910 (relating to child and youth facility requirements; and child residential facilities).

(13) Child residential facilities licensed under Chapter 3900 and Chapter 3920 (relating to secure residential and secure detention facilities for youth).

§ 3800.5. Definitions.

The following words and terms, when used in this chapter, have the following meanings, unless the context clearly indicates otherwise:

* * * * *

ISP—Individual Service Plan—A written document for each child describing the child's care and treatment needs.

[*Mobile program*—A residential program that provides services in a variety of settings that do not occupy a stationary site.

***Outdoor program*—A residential program where children sleep outdoors or in structures intended for an outdoor experience, where the primary program focus is on outdoor experiences.]**

Relative—A parent, child, child's guardian, individual with legal custody, stepparent, stepchild, grandparent, grandchild, sibling, half-sibling, aunt, uncle, niece, nephew or spouse.

[*Secure care*—Care provided in a 24-hour living setting to one or more children who are delinquent or alleged delinquent, from which voluntary egress is prohibited through one of the following mechanisms:

(i) Egress from the building, or a portion of the building, is prohibited through internal locks within the building or exterior locks.

(ii) Egress from the premises is prohibited through secure fencing around the perimeter of the building.

***Secure detention*—A type of secure care located in a temporary 24-hour living setting, in which one or more delinquent or alleged delinquent children are detained, generally in a preadjudication status.]**

Transitional living residence—A home or living unit for fewer than five children, who are 16 years of age or older, with or without their own children, who are all able to live in a semi-independent living setting. A child's own children are counted to determine the maximum number of four children per transitional living residence.

[SECURE CARE]

§ 3800.271. **[Criteria]** **{Reserved}**.

[Secure care is permitted only for children who are alleged delinquent, or adjudicated delinquent and court ordered to a secure facility.]

§ 3800.272. **[Admission to secure care]** **{Reserved}**.

[Prior to accepting a child in secure care, the facility shall request the following documents from the committing court:

(1) A description of the offenses and circumstances that make secure care necessary.

(2) The child's needs to be addressed during placement.

(3) The court order committing the child to a secure care facility.]

§ 3800.273. **[Exceptions for secure care]** **{Reserved}**.

[The following requirements do not apply to facilities in which secure care is provided:

(1) Section 3800.55(a)—(d) (relating to child care worker).

(2) Section 3800.57(d) (relating to supervision).

(3) Section 3800.102(c) (relating child bedrooms).

(4) Section 3800.103(f) (relating to bathrooms).

(5) Section 3800.171(1) (relating to safe transportation).

(6) Section 3800.206 (relating to seclusion).

(7) Section 3800.210(b) (relating to mechanical restraints).]

§ 3800.274. **[Additional requirements]** **{Reserved}**.

[The following additional requirements apply to facilities in which secure care is provided:

(1) The facility shall have a valid fire safety occupancy approval appropriate for locked facilities from the appropriate authority, listing the type of occupancy, prior to receiving a certificate of compliance under this chapter.

(2) A reportable incident as specified in § 3800.16(a) (relating to reportable incidents) includes a child's absence from the premises for any period of time, an assault on a staff person by a child that requires medical treatment for the staff person, the use of handcuffs or leg restraints beyond 2 hours, and the use of seclusion beyond 4 hours.

(3) Children shall be directly supervised at all times during awake hours.

(4) A minimum of two child care workers shall be present in the facility at all times.

(5) There shall be one child care worker present with the children for every six children during awake hours.

(6) There shall be one child care worker present with the children for every 12 children during sleeping hours.

(7) Children shall be supervised by conducting observational checks of each child within 15 minute intervals during sleeping hours.

(8) Observational checks of children during sleeping hours shall include actual viewing of each child.

(9) Observational checks of children during sleeping hours shall be recorded in writing noting the date, time, person making the check and any unusual circumstances observed.

(10) The driver and at least one additional staff person shall be present in the vehicle at all times one or more children are being transported. There shall be one child care worker present with the children for every three children during transportation of children either by the facility or another transportation source. The driver of the vehicle may not be counted in the staffing ratio.

(11) No more than two children may share a bedroom.

(12) Glass windows, windows in doors, shower doors and light fixtures and other glass surfaces shall be protected with a secure, nonbreakable covering or composed of shatterproof glass.

(13) Glass mirrors are not permitted.

(14) Furnishings or other items such as drapery cords, electrical outlets, shower curtains, shoe strings, razors and noncollapsing clothing hooks, that may create a risk for self-injury or suicide may not be accessible to a child whose health and safety assessment specified in § 3800.141 (relating to child health and safety assessment) indicates known or suspected suicide or self-injury attempts or gestures or an emotional history which may indicate a predisposition to self-injury or suicide, except during specific activities while these items are in use and the child is under direct supervision by staff persons.

(15) Items such as knives, razors, matches and tools, that may create an opportunity for use as a weapon or tool in an assault or other violent behavior may not be accessible to a child whose health and safety assessment specified in § 3800.141 indicates known incidents of aggressive or violent behavior, except during specific activities while these items are in use and the child is under direct supervision by staff persons.

(16) The following requirements apply to the use of mechanical restraints:

(i) Handcuffs behind the back, leg restraints and locking transportation waist belts with handcuffs in front of the child used during transportation, are the only types of mechanical restraints that are permitted.

(ii) A child may not be handcuffed to an object or another person.

(iii) Oral or written authorization by supervisory staff is required prior to each use of a mechanical restraint, except for those restraints used during transportation.

(iv) The use of handcuffs or leg restraints, except for those used during transportation, may not exceed 2 hours, unless a licensed physician, a licensed physician's assistant or registered nurse examines the child and gives written orders to continue the use of the restraint. Reexamination and new written orders are required for each 2-hour period the restraint is continued. If a restraint is removed for any purpose other than for movement and reused within 24 hours after the initial use of the restraint, it is considered continuation of the initial restraint.

(v) The restraint shall be checked for proper fit by a staff person at least every 15 minutes, except for those used during transportation.

(vi) The physical needs of the child shall be met promptly.

(vii) Handcuffs and leg restraints, except for those used during transportation, shall be removed completely for at least 10 minutes during every 2 hours the restraint is used.

(viii) Handcuffs and leg restraints, except those used during transportation, shall be checked and observed by a supervisory staff person who is not administering the restraint, at least every 1 hour the restraint is used.

(ix) The use of handcuffs and leg restraints for any child, except those used during transportation, may not exceed 4 hours in any 48-hour period without a written court order.

(17) The following requirements apply to the use of seclusion:

(i) Oral or written authorization by supervisory staff is required prior to each use of seclusion.

(ii) The use of seclusion may not exceed 4 hours, unless a licensed physician, a licensed physician's assistant or registered nurse examines the child and gives written orders to continue the use of seclusion. Reexamination and new written orders are required for each 4-hour period the seclusion is continued. If seclusion is interrupted for any purpose and reused within 24 hours after the initial use of seclusion, it is considered continuation of the initial seclusion period.

(iii) A staff person shall observe a child in seclusion at least every 5 minutes.

(iv) The physical needs of the child shall be met promptly.

(v) A child in seclusion shall be checked and observed by a supervisory staff person who is not continually observing the child as required in subparagraph (iii), at least every 2 hours the seclusion is used.

(vi) The use of seclusion for any child may not exceed 8 hours in any 48-hour period without a written court order.

(vii) A room used for seclusion shall meet the conditions as specified in § 3800.212(e) (relating to exclusion).

(18) Mechanical restraints and seclusion may not be used simultaneously for any child.

(19) The use of any combination of mechanical restraints and seclusion for any child may not exceed 6 hours in any 48-hour period without a written court order.]

[SECURE DETENTION]

§ 3800.281. **[Requirements for secure detention]** {Reserved}.

[The requirements and exceptions for secure care apply for secure detention.]

§ 3800.282. **[Exceptions for secure detention]** {Reserved}.

[The following requirements do not apply for secure detention:

(1) Section 3800.55(g) (relating to child care worker).

(2) Section 3800.143(b) (relating to child health examination).

(3) Sections 3800.221—3800.228.]

§ 3800.283. **[Additional requirements]** {Reserved}.

[The following additional requirements apply to facilities in which secure detention is provided:

(1) The child care worker shall have an associate's degree or 60 credit hours from an accredited college or university.

(2) No more than 12 children may be in a group at any one time.

(3) No more than 12 children may occupy a sleeping unit or area.

(4) The child health and safety assessment required in § 3800.141 (relating to child health and safety assessment) shall be completed within 1 hour of admission.

(5) The child health examination as required in § 3800.143 (relating to child health examination) shall be completed within 96 hours after admission.

(6) The facility shall comply with 42 Pa.C.S. §§ 6301—6365 (relating to the Juvenile Act) related to detention.

(7) A child may not be admitted to a secure detention facility who is 9 years of age or younger, or who is 18 years of age or older, unless the child is a juvenile as defined in the Juvenile Act.

(8) A child may not remain in the facility longer than is absolutely necessary.

(9) Staff persons shall have visual or auditory contact with children at all times.

(10) Children may not share space or have contact with adult offenders.

(11) The facility shall submit a written quarterly report to the appropriate regional office of the Department with the following information, for every child detained in a secure detention facility for more than 35 days:

(i) The child's name and birth date.

(ii) The committing court and probation officer.

(iii) The date the petition was filed.

(iv) The reason the child is still in the facility.

(12) The placement of each child shall be reviewed by a staff person designated by the director or the court at least weekly to assess whether the child could be served in a less restrictive setting. If a recommendation is made for a less restrictive setting, written documentation shall be included in the child's record and sent to the court.]

[OUTDOOR AND MOBILE PROGRAMS]

§ 3800.301. **[Applicability]** {Reserved}.

[The exceptions for outdoor and mobile programs specified in §§ 3800.302 and 3800.303 (relating to exceptions for outdoor and mobile programs; and additional requirements) apply during the time in which children receive services in outdoor or mobile settings.]

§ 3800.302. **[Exceptions for outdoor and mobile programs]** {Reserved}.

[(a) The following requirements do not apply for mobile and outdoor programs that operate from nonstationary settings.

(1) Section 3800.13(a) (relating to maximum capacity).

(2) Section 3800.14 (relating to fire safety approval).

(3) Section 3800.57 (relating to supervision), for outdoor programs.

(4) Section 3800.83 (relating to heat sources).

(5) Sections 3800.84(b)—(e) (relating to sanitation).

(6) Sections 3800.85—3800.88.

(7) Section 3800.90(a) (relating to communication system).

(8) Sections 3800.91—3800.93 (relating to emergency telephone numbers; screens; and handrails and railings).

(9) Sections 3800.96—3800.99.

(10) Sections 3800.101—3800.105.

(11) Section 3800.124 (relating to notification of local fire officials).

(12) Section 3800.130 (relating to smoke detectors and fire alarms).

(13) Section 3800.131 (relating to fire extinguishers), for outdoor programs.

(14) Section 3800.132 (relating to fire drills).

(15) Sections 3800.251—3800.257 (relating to facilities serving nine or more children).

(b) The following requirements do not apply for mobile and outdoor programs that operate from stationary settings such as tepees and cabins:

(1) Section 3800.13(a) (relating to maximum capacity).

(2) Section 3800.57, for outdoor programs.

(3) Sections 3800.85 and 3800.86 (relating to ventilation; and lighting).

(4) Sections 3800.88(a) and 3800.89 (relating to water; and temperature).

(5) Section 3800.90(a).

(6) Sections 3800.91—3800.94.

(7) Sections 3800.97—3800.100.

(8) Sections 3800.101—3800.106.

(9) Section 3800.124.

(10) Sections 3800.251—3800.257.]

§ 3800.303. **[Additional requirements]** {Reserved}.

[(a) The following additional requirements apply for outdoor and mobile programs:

(1) There shall be a supply of food and water for drinking, cleaning and bathing for the number of days until the program will reach the next supply of food and water.

(2) Potable drinking water shall be available to children at all times.

(3) There shall be an opportunity for children to bathe once a week, brush their teeth once a day and wash their hands before each meal.

(4) There shall be a communication system such as a CB radio to communicate with public emergency sources in the event of a medical, police, fire or other emergency.

(5) There shall be a source for routine weather information for advance warning of severe or dangerous weather conditions.

(6) There shall be a written emergency transportation and staffing plan and equipment such as a litter to transport a child in a medical emergency.

(7) There shall be a written plan for conducting a search for a missing child and requesting assistance from local authorities.

(8) For mobile programs and outdoor programs whenever children are away from the stationary outdoor site, each staff person shall have a map of the area.

(9) For mobile programs and outdoor programs whenever children are away from the stationary outdoor site, each staff person shall have a written anticipated schedule of the dates, times and estimated locations for the next 7 days.

(10) Each child shall wear footwear that is well-constructed, in good condition and appropriate for the activity being conducted.

(b) The following additional requirements apply for outdoor programs:

(1) Each child shall have personal hygiene supplies, shelter such as a fire retardant tent or tarpaulin, a fire retardant sleeping bag or other sleeping equipment, bedding appropriate to the temperature and at least one change of clothing.

(2) While the child is engaged in an activity away from a stationary site, each child shall have a daily water supply and a whistle for use in emergencies.

(3) Safe and well-maintained equipment shall be provided for activities.

(4) Staff persons responsible for teaching children high-risk activities such as boating, biking, horseback riding, swimming and climbing shall be trained in safe practices regarding these activities. Documentation of the training shall be kept.

(5) At least one staff person shall be present with the children at all times who has current certification from a hospital or other recognized health care organization in first aid, Heimlich techniques and cardiopulmonary resuscitation.

(c) The following additional requirement applies for mobile and outdoor programs that operate from stationary settings such as tepees and cabins: The maximum capacity specified on the certificate of compliance shall be based on 30 square feet per child, including measurement of all floor space.]

(*Editor's Note*: Chapters 3900, 3910 and 3920 are proposed to be added and are printed in regular type to enhance readability.)

CHAPTER 3900. CHILD AND YOUTH FACILITY REQUIREMENTS

Subchap.	
A.	GENERAL PROVISIONS
B.	GENERAL REQUIREMENTS
C.	RIGHTS
D.	SEARCH OF PERSON AND PROPERTY
E.	STAFFING
F.	PHYSICAL SITE
G.	FIRE SAFETY
H.	CHILD AND YOUTH HEALTH
I.	STAFF HEALTH
J.	NUTRITION
K.	MEDICATIONS
L.	RESTRICTIVE PROCEDURES
M.	SERVICES
N.	CHILD AND YOUTH RECORDS
O.	SANCTIONS

Subchapter A. GENERAL PROVISIONS

Sec.	
3900.1.	Purpose.
3900.2.	Applicability.
3900.3.	Exemptions.
3900.4.	Inspections and certificates of compliance.
3900.5.	Definitions.

§ 3900.1. Purpose.

The purpose of this chapter is to protect the health, safety and well-being of children and youth receiving care in a child residential facility through formulation, application and enforcement of minimum licensing requirements.

§ 3900.2. Applicability.

(a) This chapter applies to the following:

(1) Child residential facilities, except as provided in § 3900.3 (relating to exemptions).

(2) Secure residential facilities or secure detention facilities for children and youth.

(b) This chapter contains the minimum requirements that shall be met to obtain a certificate of compliance to provide child residential care in this Commonwealth.

(c) This chapter applies equally to facilities operated for profit or nonprofit, publicly operated, privately operated or operated by a religious entity or a non-religious entity.

(d) This chapter applies to the following:

(1) A premise or part thereof, operated in a 24-hour living setting in which care is provided for one or more children or youth who are not relatives of the facility operator, except as provided in § 3900.3.

(2) Child residential facilities that are located in a fixed structure or configured as a non-mobile outdoor setting.

(3) Emergency shelter programs.

(4) Child residential specialized setting facilities that serve pregnant, expecting and parenting youth and their young infants and toddlers.

§ 3900.3. Exemptions.

This chapter does not apply to the following:

(1) Child residential and child day treatment facilities operated directly by the department.

(2) Transitional living residences which are located in freestanding private residences.

(3) Transitional living facilities with more than one transitional living residence in the same building.

(4) Residential camps for children who are enrolled in a grade or educational level higher than kindergarten which operate for fewer than 90 days per year.

(5) Residential children's schools licensed and operated solely as private academic schools or registered and operated solely as nonpublic, nonlicensed schools by the Department of Education.

(6) Foster care homes licensed under Chapter 3700 (relating to foster family care agency).

(7) Family living homes for children or youth with an intellectual disability that are licensed under Chapter 6500 (relating to life sharing homes).

(8) Community homes for individuals with an intellectual disability or autism, licensed under Chapter 6400 (relating to community homes for individuals with an intellectual disability or autism).

(9) Community residences for individuals with mental illness that provide care to both children and adults in the same facility or community residential host homes for individuals with mental illness that are certified under Chapter 5310 (relating to community residential rehabilitation services for the mentally ill).

(10) Drug and alcohol residential facilities that provide care exclusively to residents whose sole need is the treatment of drug and alcohol dependence and that are licensed under 28 Pa. Code Chapters 701, 704 and 709 (relating to general provisions; staffing requirements for drug and alcohol treatment activities; and standards for licensure of freestanding treatment facilities).

(11) Private homes of persons providing care to a relative, except homes in which a parenting youth lives with their own children but no other relative.

§ 3900.4. Inspections and certificates of compliance.

(a) A facility licensed under this chapter will be inspected at least once a year, unless otherwise specified by statute.

(b) A separate certificate of compliance will be issued for each physical structure that qualifies for a certificate.

(c) Distinct programming provided on separate floors or in discrete residential living units within a building is considered as a separate facility for purposes of qualifying for a separate certificate of compliance.

§ 3900.5. Definitions.

The following words and terms, when used in this chapter, have the following meanings, unless the context clearly indicates otherwise:

Admission—The date of placement of a child in a child residential facility and the initiation of services.

Aftercare services—Services available to youth, who exited placement at 14 years of age or older and who have not attained 23 years of age, to assist in the transition to adulthood and self-sufficiency.

Age and developmentally appropriate—Activities or items that are generally accepted as suitable for children or youth of the same chronological age or level of maturity or that are determined to be developmentally appropriate for a child or youth based on the development of cognitive, emotional, physical and behavioral capacities that are typical for an age or age group. In the case of a specific child or youth, activities or items that are suitable for the child or youth based on the developmental stages attained by the child or youth with respect to the cognitive, emotional, physical and behavioral capacities of the child or youth.

Behavioral health services—Services that address mental health disorders, substance use disorders, or both, and encompass a continuum of prevention, intervention, treatment and recovery support services.

Body cavity search—A visual or a manual internal inspection of body orifices and cavities for prohibited contraband.

CPSL—The Child Protective Services Law—Chapter 63 of 23 Pa.C.S. (relating to Child Protective Services Law).

Care management—The coordination and monitoring of services provided to a child or youth and the child's or youth's family conducted by an identified lead agency, when more than one agency is actively involved with a child or youth and family, to ensure that services provided meet the level and intensity consistent with the identified needs and that duplication and inconsistencies in services do not occur.

Child—An individual who meets one of the following conditions:

(1) Is under 18 years of age.

(2) Is under 21 years of age and who committed an act of delinquency before reaching 18 years of age.

(3) Is under 21 years of age and was an adjudicated dependent before reaching 18 years of age, who has requested the court to retain jurisdiction and who remains under the jurisdiction of the court as a dependent child because the court has determined that the child meets one of the following criteria:

(i) Is completing secondary education or an equivalent credential.

(ii) Is enrolled in an institution which provides postsecondary or vocational education.

(iii) Is participating in a program actively designed to promote or remove barriers to employment.

(iv) Is employed for at least 80 hours per month.

(v) Is incapable of doing any of the activities described in subparagraphs (i)—(iv) due to a medical or behavioral health condition, which is supported by regularly updated information in the permanency plan of the child.

Child day treatment facility—A premise or part thereof, operated for a portion of a 24-hour day in which alternative education, intervention or support programs are provided to one or more children or youth to prevent a child's or youth's placement in a more restrictive setting or to facilitate a child's or youth's reunification with the child's or youth's family.

Child residential facility—A premise or part thereof, operated in a 24-hour living setting in which care is provided for one or more children or youth who are not relatives of the facility operator, except as provided in §§ 3900.3, 3910.3 and 3920.3 (relating to exemptions).

Contracting agency—A county children and youth agency, juvenile probation office or behavioral health or managed care organization that either contracts with a facility or authorizes a facility to provide residential care or secure residential or detention care to a child or youth, or both.

County agency—A county children and youth social service agency established under section 405 of the County Institution District Law (62 P.S. § 2305) and supervised by the department under Article IX of the Human Services Code (62 P.S. Chapter 1, Article IX).

Court-appointed special advocate—An individual appointed by the court under the Juvenile Act to participate as an advocate for a child or youth who is dependent or alleged to be dependent.

Debriefing process—A small group technique that allows participants to discuss details and process an event and then reflect on why the event happened and to explore implications for the future.

Delinquent child—The term as defined in 42 Pa.C.S. § 6302 (relating to definitions).

Department—The Department of Human Services of the Commonwealth.

Department of Education—The Department of Education of the Commonwealth.

Department of Environmental Protection—The Department of Environmental Protection of the Commonwealth.

Department of Health—The Department of Health of the Commonwealth.

Department of Labor and Industry—The Department of Labor and Industry of the Commonwealth.

Dependent child—The term as defined in 42 Pa.C.S. § 6302.

Disability—

(i) One or more of the following:

(A) A physical or mental impairment which substantially limits one or more of a child's or youth's major life activities.

(B) A record of having such an impairment.

(C) Regarded as having such an impairment.

(ii) The term does not include current, illegal use of or addiction to a controlled substance as defined in 21 U.S.C. § 802 (relating to definitions).

EPSDT—The Early and Periodic Screening, Diagnostic and Treatment Program—The child health component of Medicaid that includes a comprehensive array of medical, dental and mental health care for children that emphasizes prevention and early intervention. The core of the EPSDT benefit is a comprehensive, well-child visit known as an EPSDT screen, which includes a comprehensive health and developmental history, comprehensive physical exam, appropriate immunizations, laboratory tests and health education. EPSDT is designed to address problems early, ameliorate conditions and intervene as early as possible.

Early intervention services—Services for infants, toddlers and preschool children with disabilities as defined by section 103 of the Early Intervention Services System Act (11 P.S. § 875-103) and 34 CFR 303.13 (relating to early intervention services).

Education records—Records that are directly related to a student and maintained by an educational agency or institution or by a party acting for the agency or institution. The term includes attendance records, grades, transcripts, class lists, student course schedules, health records from kindergarten to twelfth grade, student financial information at the postsecondary level and student discipline files.

Education stability—The right of a child or youth in foster care or in the delinquency system to remain in the child's or youth's current school when it is in the child's or youth's best interest in accordance with section 1111 of the Every Student Succeeds Act (20 U.S.C. § 6311(g)(1)(E)) and Pa.R.J.C.P. 148.

Emergency shelter program—Residential care and supervision in a nonsecure setting, not to exceed 30 consecutive days, for a child who meets at least one of the following criteria:

(i) Whose immediate safety, protection and well-being requires removal from the child's own home.

(ii) Who would present a danger to self or others or who would abscond if the child were living at home.

Exclusion—A child's or youth's involuntary isolation or removal from the child's or youth's immediate environment and restricting the child or youth alone to a room or area. Exclusion does not include a child or youth voluntarily choosing to move to and remain by themselves in an area to self-regulate.

Facility—A child residential facility. The term includes facilities addressed in Chapter 3900, 3910 and the secure residential facilities and secure detention facilities under Chapter 3920.

Facility management—Includes all executive and administrative staff members employed by a legal entity who are instrumental in keeping a child residential facility operational and in compliance with applicable laws and regulations.

Facility staff—Individuals employed by the facility in positions described in §§ 3900.53-54 (relating to residential program director and residential program supervisor), 3910.12 and 3920.11 (relating to residential program worker) who provide supervision and services to children or youth placed at a facility.

Family engagement—A family-centered and strengths-based approach to partnering with families in making decisions, setting goals and achieving desired outcomes.

Family finding—Ongoing diligent efforts between a county agency or its contracted providers and relatives and kin to do all of the following:

(i) Search for and identify adult relatives and kin and engage them in children and youth social service planning and delivery.

(ii) Gain commitment from relatives and kin to support a child, youth or parent receiving children and youth social services.

Family member—A spouse, parent, child or other person related by blood, marriage or adoption as determined and documented in an ISP.

Fire safety expert—A local fire department, fire protection engineer, Commonwealth-certified fire protection instructor, college instructor in fire science, county or Commonwealth fire school, volunteer person trained and certified by a county or Commonwealth fire school or an insurance company loss control representative.

Gender expression—Describes how individuals communicate their gender to others, including through hairstyles, clothing, physical expression and mannerisms, physical alteration of their body or by choosing a name that reflects their gender identity.

Gender identity—A person's internal sense of identity as it relates to being male, female, some combination of male and female, or neither male nor female. One's gender identity may or may not be consistent with one's sex assigned at birth.

IEP—Individualized Education Program—The term as defined in 22 Pa. Code § 14.101 (relating to definitions).

ISP—Individual Service Plan—A written document for each child or youth describing the child's or youth's care and treatment needs.

Intimate sexual contact—Vaginal or anal penetration, oral sex or direct skin-to-skin touching of sexual organs or intimate body parts. Intimate sexual contact does not include kissing or hugging.

Juvenile Act—Chapter 63 of 42 Pa.C.S. (relating to Juvenile Act).

Legal guardian—A person who has been given legal care and control of a child or youth by a court.

Menstrual hygiene product—A product relating to bodily functions that are used during menstruation, including tampons and sanitary pads.

Outdoor program—A residential program where children or youth sleep outdoors or in structures intended for an outdoor experience, where the primary program focus is on outdoor experiences.

Parent—A biological parent including mother, father, noncustodial or incarcerated, adoptive parent, legal guardian or custodian.

Permanency—A commitment with an identified adult or family to care for and to support a child or youth up to and beyond the age of majority.

Placement—Twenty-four-hour substitute care and supervision of a child or youth.

Postpartum—An 8-week period or a longer period as determined by a health care professional responsible for the health and safety of the child or youth following childbirth.

Pregnant, expecting or parenting youth—A youth in a placement setting who is pregnant, expecting or parenting the youth's own infant or toddler.

Provide or arrange—A service or activity performed directly by facility staff, coordinated through a service agreement with another agency or individual, or a service accessed through another agency or service provider that is not paid for by the contracting agency.

Quality improvement process—A structured approach to evaluating the performance of a facility's processes and operations, using routine collection and analysis of data, then determining needed improvements in both functional and operational areas.

Regular and significant direct contact—Directly working with children or youth for 30 or more hours in any month not generally including clerical, maintenance, housekeeping or kitchen staff.

Relative—An individual related within the fifth degree by blood, marriage or adoption to the child's or youth's parent or stepparent.

Restrictive procedure—An effort to control behavior or restrict movement through the application of physical, mechanical or chemical intervention and exclusion.

Secure detention—A type of secure residential care and supervision provided in a temporary 24-hour living setting, in which one or more delinquent or alleged delinquent children or youth are detained, generally in a preadjudication status.

Secure residential—The care and supervision provided in a 24-hour living setting to one or more children or youth who are delinquent or alleged delinquent, from which voluntary egress is prohibited through one of the following mechanisms:

(i) Egress from the building, or a portion of the building, is prohibited through internal locks within the building or exterior locks.

(ii) Egress from the premises is prohibited through secure fencing around the perimeter of the building.

Sexual orientation—An enduring pattern of romantic or sexual attraction, or a combination of these, to the opposite sex or gender, the same sex or gender, to both sexes or more than one gender, or none.

Sibling—An individual who has at least one parent in common with another individual, whether by blood, marriage or adoption, regardless of whether there is a termination of parental rights or parental death. The term includes biological, adoptive, step and half siblings.

Sight and sound check—Facility staff providing supervision of children or youth through "sight" and "sound" as follows:

(i) "Sight" means the child or youth is being actively observed by facility staff.

(ii) "Sound" means the child or youth can be heard from where the facility staff is positioned.

Smoking—Inhaling and exhaling an e-cigarette or other vaping device, cigarette, cigar, pipe or other device which contains tobacco, illegal substance or harmful chemicals.

Specialized settings for pregnant, expecting and parenting youth—A 24-hour living setting which is designed to provide care and supervision to youth who are either dependent or delinquent and who are expecting or parenting and their biological child by allowing parenting youth and child to be co-located.

Suicidal gesture—An act that is indicative of self-destructiveness, but the level of lethality is so low that it could not cause death. Suicidal gestures include verbal threats of self-harm.

Transitional living residence—A home or living unit for fewer than five youth, who are 16 years of age or older, with or without their own children, who are all able to live in a semi-independent living setting. A youth's own children are counted to determine the maximum number of four children or youth per transitional living residence.

Trauma—Result from an event, series of events or a set of circumstances that are experienced by an individual as physically or emotionally harmful or life threatening and that have lasting adverse effects on the individual's functioning and mental, physical, social, emotional or spiritual well-being.

Trauma-informed approach—A strengths-based method to service delivery and organizational structure that does all of the following:

(i) Realizes the widespread impact of trauma, including historical trauma.

(ii) Understands potential paths to recovery.

(iii) Recognizes the signs and symptoms of trauma in children, youth, parents, legal guardians, caregivers, staff and others.

(iv) Responds by fully integrating knowledge about trauma into policies, procedures, practices and relationships.

(v) Seeks to actively prevent re-traumatization.

Unreasonable restraint—Controlling behavior or restricting movement through the application of physical, mechanical or chemical intervention for the purpose of coercion or punishment.

Urgent care center—A category of walk-in clinics focused on the delivery of ambulatory care in a dedicated medical facility outside of a traditional emergency department. Urgent care centers primarily treat injuries or illnesses requiring immediate care, but not serious enough to require an emergency department visit.

Visual body search—Viewing of a child's or youth's body after the child or youth has removed their clothing to expose underwear or private body parts for the purposes of checking for contraband.

Volunteer—A person who provides a service to the facility, is an organized and scheduled component of the facility programming, and who does not receive compensation.

Well-being—The healthy functioning of children and youth that allows them to be successful throughout childhood and youthhood and into adulthood, including cognitive, emotional, behavioral and social functioning, education and physical health and development.

Youth—A child who is 14 years of age or older.

Subchapter B. GENERAL REQUIREMENTS

Sec.
3900.11. Licensure or approval of a facility.
3900.12. Appeals.
3900.13. Maximum capacity.
3900.14. Fire safety approval and notifications.
3900.15. Child abuse.
3900.16. Reportable incidents.
3900.17. Recordable incidents.
3900.18. Child and youth funds.
3900.19. Consent to treatment.
3900.20. Confidentiality of records.
3900.21. Applicable health and safety laws.
3900.22. Emergency preparedness plan.
3900.23. Waivers.

§ 3900.11. Licensure or approval of a facility.

(a) A facility shall meet the requirements of Chapter 20 (relating to licensure or approval of facilities and agencies).

(b) The legal entity shall guarantee that the facility is organized, administered and operated in a manner that complies with the requirements of this chapter.

(c) Facility management shall conform with all applicable Federal and State statutes, regulations and local ordinances relating to health, safety and rights. This includes meeting the requirements of 34 Pa. Code Part XIV (relating to Uniform Construction Code).

§ 3900.12. Appeals.

Appeals related to the department's licensure or approval decisions shall be made in accordance with 1 Pa. Code Part II (relating to General Rules of Administrative Practice and Procedure).

§ 3900.13. Maximum capacity.

(a) The facility's maximum capacity specified on the certificate of compliance will be based on available bedroom square footage and the number of toilets and sinks.

(b) The facility may not exceed the maximum capacity specified on the certificate of compliance.

§ 3900.14. Fire safety approval and notifications.

(a) If a fire safety approval is required in accordance with State law or regulations, a valid fire safety approval from the appropriate authority, listing the facility as locked or unlocked and the type of occupancy, is required prior to receiving a certificate of compliance under this chapter.

(b) If the fire safety approval is withdrawn or restricted, facility staff shall notify the department orally within 24 hours and in writing within 48 hours of the withdrawal or restriction.

(c) If the facility is structurally renovated or altered after the initial fire safety approval is issued, facility staff shall submit the new fire safety approval or written certification from the appropriate fire safety authority that a new fire safety approval is not required.

(d) Facility staff shall notify local fire officials in writing of the address of the facility, location of bedrooms and assistance needed to evacuate in an emergency. The notification shall be kept current and a copy shall be made available to the department upon request.

§ 3900.15. Child abuse.

(a) Facility staff shall immediately report suspected abuse of a child in accordance with the CPSL and Chapter 3490 (relating to protective services).

(b) When there is an allegation of child abuse involving an individual employed or contracted by the facility, facility management shall submit a plan of supervision to the department regional office for approval in accordance with 23 Pa.C.S. § 6368 (relating to investigation of reports) and § 3490.56 (relating to county agency investigation of suspected child abuse perpetrated by persons employed or supervised by child care services and residential facilities). Facility management shall immediately implement a plan of supervision.

§ 3900.16. Reportable incidents.

(a) A reportable incident includes the following situations occurring at the facility or while a child or youth is under the supervision of the facility staff in the community:

(1) A child's or youth's death.

(2) A physical act by a child or youth to commit suicide.

(3) A child's or youth's injury, trauma or illness requiring inpatient admission and treatment at a hospital.

(4) A child's or youth's injury or trauma requiring outpatient treatment at a hospital or urgent care center, not to include minor injuries such as sprains or cuts.

(5) A body cavity search of a child or youth as addressed in § 3900.41(c) and (d) (relating to person and property searches).

(6) A substantiated violation of a child's or youth's rights under § 3900.32 (relating to specific rights).

(7) Intimate sexual contact between children or youth, consensual or otherwise.

(8) A child's or youth's absence from the facility premises without facility staff's knowledge or awareness of the child's or youth's whereabouts.

(9) A child or youth does not return as planned from a scheduled family home visit and facility staff are unable to contact adult family members to identify child's or youth's status or plans to return to the facility.

(10) Abuse or misuse of a child's or youth's funds.

(11) An outbreak of a serious communicable disease as set forth in 28 Pa. Code § 27.2 (relating to specific identified reportable diseases, infections and conditions).

(12) An event that results in emergency services, including law enforcement or fire services, being called to the facility.

(13) A condition which results in closure of the facility.

(b) Facility staff shall notify law enforcement of a missing child or youth as soon as the determination is made that the child or youth is missing.

(c) Facility staff shall make an oral report to the appropriate department regional office and the contracting agency within 12 hours for any of the following incidents:

(1) A fire requiring the children's or youths' relocation.

(2) An unexpected child or youth death.

(3) A child or youth whose whereabouts are unknown to facility staff and the child or youth is identified as being missing.

(d) Facility staff shall make a verbal report to the appropriate department regional office and the contracting agency following implementation of mitigation efforts to meet the children's or youths' needs in the event of a disruption in access to water, heat, cooling or power.

(e) Facility staff shall orally notify the contracting juvenile probation office as soon as it is determined that a child or youth under their supervision has not returned as planned from a scheduled home pass or if the child or youth has failed to comply with the home pass provisions. Documentation of date, time and persons involved in this conversation shall be maintained in the child's or youth's file.

(f) Facility staff shall complete a written report in the department's prescribed format for all reportable incidents, which shall be electronically submitted to the department within 24 hours after the incident occurs.

(g) Facility staff shall initiate an investigation of a reportable incident immediately following the report of the incident and shall, within 5 business days, provide the department with a timeline and plan including a projected date for completion of the investigation except for incidents of suspected child abuse reported to the department in accordance with the CPSL.

(h) Facility management shall develop written policies and procedures on the prevention, reporting, investigation and management of reportable incidents, including a post-incident debriefing process.

(i) Facility staff shall complete a written summary of the debriefing meeting following the investigation of each incident to identify staffing, training, physical site or program-related components relating to the cause and resolution of the incident.

(j) Facility staff shall incorporate the debriefing findings and related data into the facility quality improvement process.

(k) Facility staff shall submit a final reportable incident report in the department's prescribed format that includes the debriefing summary following the conclusion of the investigation.

(l) Facility staff shall maintain a copy of reportable incident reports in the child's or youth's file, if applicable, and in the facility's administrative files.

(m) Facility staff shall notify the child's or youth's parent following the submission of a reportable incident relating to the child or youth, unless restricted by applicable confidentiality statutes, regulations or an individual child's or youth's court order.

§ 3900.17. Recordable incidents.

(a) Facility staff shall maintain an electronic record of the following:

(1) Seizures.

(2) Suicidal gestures.

(3) Incidents of intentionally striking or physically injuring a child or youth that do not involve facility staff or other adults responsible for the care and supervision of a child or youth.

(4) Facility management investigations of grievances filed by a child or youth or their parent that were determined to be unsubstantiated.

(b) Facility staff shall also maintain a copy of each recordable incident report in the child's or youth's record.

§ 3900.18. Child and youth funds.

(a) A child's or youth's money, earned or received, is the respective child's or youth's personal property.

(b) Facility policies may place reasonable limits on the amount of money to which a child or youth has access.

(c) Facility staff shall maintain a separate accounting system for child or youth funds, including the dates and amounts of deposits and withdrawals. Commingling of a child's or youth's funds and facility funds is not permitted.

(d) Facility management shall maintain an interest-bearing account for child and youth funds, with earned interest tracked and applied for each child or youth, except for children or youth expected to be in the facility for fewer than 30 days.

(e) Except as may be required under subsection (g), money in a child's or youth's account shall be returned to the respective child or youth upon discharge or transfer.

(f) Facility management and facility staff shall not borrow a child's or youth's funds.

(g) Facility management serving children or youth who are adjudicated delinquent shall develop and implement policies and procedures to address the following requirements:

(1) Restrictions to the child's or youth's access to personal funds imposed by the contracting juvenile probation office to direct funds to satisfy restitution orders.

(2) Community services hours completed by a child or youth and the process to credit those to fulfill any community services requirements.

(3) Community services hours completed by a child or youth and the process to credit those to fulfill restitution obligations.

(4) Monthly notification to the contracting juvenile probation office of funds earned and the balance held in the youth's account.

(5) Restrictions to the release of funds upon discharge without the review and approval of the contracting juvenile probation office to consider payment of any outstanding restitution.

§ 3900.19. Consent to treatment.

(a) Facility staff shall comply with the following statutes and regulations relating to consent to treatment, to the extent applicable:

(1) The Juvenile Act.

(2) The Mental Health Procedures Act (50 P.S. Chapter 15).

(3) The act of February 13, 1970 (P.L. 19, No. 10) (35 P.S. Chapter 51), pertaining to minors' consent to medical care.

(4) Chapter 5100 (relating to mental health procedures).

(5) The Pennsylvania Drug and Alcohol Abuse Control Act (71 P.S. §§ 1690.101—1690.115).

(6) Other applicable statutes and regulations.

(b) The following consent requirements apply unless in conflict with the requirements of applicable statutes and regulations specified in subsection (a):

(1) Whenever possible, general written consent shall be obtained upon admission from the child's or youth's parent for the provision of routine health care such as child or youth health examinations, dental care, vision care, hearing care and treatment for injuries and illnesses.

(2) A separate written consent shall be obtained prior to treatment from the child's or youth's parent or, if the parent cannot be located, by court order, for each incidence of nonroutine treatment such as elective surgery and clinical trials.

(3) Consent for emergency care or treatment is not required.

§ 3900.20. Confidentiality of records.

(a) Facility staff shall comply with the following statutes and regulations relating to confidentiality of records, to the extent applicable:

(1) The CPSL.

(2) Part III of 23 Pa.C.S. (relating to adoption).

(3) The Mental Health Procedures Act (50 P.S. Chapter 15).

(4) Section 602(d) of the Mental Health and Intellectual Disability Act of 1966 (50 P.S. § 4602(d)).

(5) The Confidentiality of HIV-Related Information Act (35 P.S. Chapter 45).

(6) Sections 5100.31—5100.39 (relating to confidentiality of mental health records).

(7) Sections 3490.91—3490.95 (relating to confidentiality) regarding confidentiality of child abuse information.

(8) Section 1232g of 20 U.S.C. (relating to family educational and privacy rights), referred to as the Family Educational Rights and Privacy Act of 1974 (FERPA), and related regulations under 34 CFR Part 99 (relating to family educational rights and privacy).

(9) The Health Insurance Portability and Accountability Act of 1996 (HIPAA) (Pub.L. No. 104-191, 110 Stat. 1936).

(10) Other applicable statutes and regulations.

(b) The following confidentiality requirements apply unless in conflict with the requirements of applicable statutes and regulations specified in subsection (a):

(1) A child's or youth's record, information concerning a child, youth or family, and information that may identify a child, youth or family by name or address, is confidential and may not be disclosed or used other than in the course of official facility duties.

(2) Information specified in paragraph (1) shall be released upon request only to the child's or youth's parent, the child's or youth's and parent's attorney, the court and court services, including probation staff, county government agencies, authorized agents of the department and to the youth. The following apply:

(i) Information may be withheld from a youth following consultation with the contracting agency if the information is determined harmful to the youth.

(ii) Facility staff shall document the determination to withhold the information from the youth in the youth's record.

(3) Information specified in paragraph (1) may be released to others who provide services to the child or youth if the information is necessary for the provider to carry out its responsibilities. Facility staff shall document the need for release of the information in the child's or youth's record.

(4) Information specified in paragraph (1) may not be used for teaching or research purposes unless the information released does not contain information which would identify the child, youth or family.

(5) Information specified in paragraph (1) may not be released to individuals not specified in paragraphs (2)—(4) without written authorization from the court, if applicable, and the child's or youth's parent.

(6) Release of information specified in paragraph (1) may not violate another child's or youth's confidentiality.

(c) Facility management shall develop and implement a confidentiality and privacy policy which addresses:

(1) The process to secure signed releases for photos of children and youth.

(2) The use of photos of children and youth.

(3) Facility staff, children and youth's social media activity that contains identifying information of children or youth served at the facility.

§ 3900.21. Applicable health and safety laws.

The facility shall have a valid certificate or approval document from the appropriate Federal or State agency relating to health and safety protections for children and youth required by another applicable law, not to include local zoning ordinances.

§ 3900.22. Emergency preparedness plan.

(a) Facility management shall develop and implement an emergency preparedness plan to prepare for, respond to and recover from a disaster, disease outbreak or other emergency. The plan shall include measures to do all of the following:

(1) Shelter children and youth during an emergency including lock-down shelter in place at the facility and sheltering at locations away from the facility premises.

(2) Identify possible shelter locations away from the facility premises and modes of transportation in an evacuation.

(3) Evacuate children and youth from the facility building to a location away from the facility premises. The evacuation routes and evacuation plans to exit the building may be the same as those required under § 3900.100(d) (relating to fire drills).

(4) Contact the parents of each child and youth and the contracting agency as soon as reasonably possible when an emergency situation arises.

(5) Inform parents of each child and youth and the contracting agency that the emergency has ended.

(6) Accommodate the needs of infants, toddlers, children and youth with disabilities or chronic medical conditions.

(b) Facility management shall review the emergency plan at least annually and update the plan as needed. Each review and update of the emergency plan shall be documented in writing, kept on file at the facility with updated plans submitted to the appropriate regional office.

(c) The emergency plan shall be posted in the facility at a conspicuous location.

(d) Facility management shall send a copy of the emergency plan and subsequent plan updates to the local municipality and to the county emergency management agency.

(e) Facility staff shall receive training regarding the emergency plan at the time of initial employment, on an annual basis and at the time of each plan update. The date of each training and the name of each facility staff who received the training shall be documented in writing and kept on file at the facility.

§ 3900.23. Waivers.

(a) Facility management may submit a written request for a waiver on a form prescribed by the department, and the department may grant a waiver of a specific section of this chapter if the following conditions exist:

(1) There is no significant jeopardy to the children or youth within the facility.

(2) There is an alternative for providing the children or youth an equivalent level of protection of their health, safety and well-being.

(3) The benefit of waiving the regulation outweighs any risk to the children's or youths' health, safety and well-being.

(b) The scope, definitions or applicability of this chapter, or any section of this chapter required by statute, may not be waived.

Subchapter C. RIGHTS

Sec.
3900.31. Notification of rights and grievance procedures.
3900.32. Specific rights.
3900.33. Prohibition against deprivation of rights.

§ 3900.31. Notification of rights and grievance procedures.

Facility management and facility staff shall do all of the following:

(1) Guarantee that a child or youth and the child's or youth's parent have the right to lodge a grievance with the facility, orally or in writing, for an alleged violation of a child's or youth's rights under this chapter or civil rights without fear of retaliation.

(2) Provide each child or youth and the child's or youth's parent, unless court-ordered otherwise, information about the child's or youth's rights, the right to lodge grievances without fear of retaliation and applicable consent to treatment protections specified in § 3900.19 (relating to consent to treatment). The following apply:

(i) The child or youth and the child's or youth's parent shall receive the notice and written information prior to admission, if possible.

(ii) Facility staff shall again review the grievance procedures with the child or youth and the child's or youth's parent upon admission and provide written copies of the information to the child or youth and the child's or youth's parent.

(iii) The child's or youth's parent shall be sent a copy of the facility's grievance policy within 48 hours following

admission if the parent is not available to receive it in person at the time of admission.

(iv) Facility staff shall again review the grievance procedures, including options for the child or youth to request assistance in filing a grievance, with the child or youth and the child's or youth's parent at the time of the child's or youth's initial ISP meeting.

(3) Inform each child or youth and the child's or youth's parent of the child's or youth's rights, the right to lodge grievances as specified under paragraph (1) and under section 3 of the Children in Foster Care Act (11 P.S. § 2633), as applicable, and of applicable consent to treatment protections specified in § 3900.19 in an easily understood manner and in the primary language or mode of communication of the child or youth and the child's or youth's parent.

(4) Post copies of rights, the facility's grievance procedures, discipline policy, person and search policy, restrictive procedures policy, visitation and contact policy, applicable consent to treatment protections and emergency preparedness plan at the facility in a location visible and accessible to children, youth and facility staff. Copies of these policies shall also be given to the child or youth and the child's or youth's parent upon admission.

(5) Facility staff shall maintain a statement signed by the child or youth and the child's or youth's parent acknowledging receipt of a copy of the information specified in paragraph (4), or documentation of efforts made to obtain the signature, in the child's or youth's file.

(6) Facility management shall develop and implement written procedures for an internal facility investigation and resolution of all grievances filed regarding an alleged violation of a child's or youth's rights under this chapter or civil rights.

§ 3900.32. Specific rights.

(a) A child or youth may not be discriminated against because of race, color, creed, disability, religious affiliation, ancestry, gender, gender identity or expression, sexual orientation, national origin or age, and a facility shall comply with applicable Federal and State statutes and regulations.

(b) A child or youth may not be subject to harassment, corporal punishment, unreasonable restraint or physical, sexual, emotional or other abuse.

(c) A child or youth has the right to be treated with fairness, dignity and respect including consideration of their racial and ethnic cultural needs and trauma history.

(d) A child or youth shall have the right to be informed of the rules of the facility and the facility's grievance policy.

(e) A child or youth has a right to be involved in the development of a permanency plan and transition plan, which provides the child or youth with the following:

(1) Safety.

(2) Stability.

(3) Permanence and well-being, including stable and safe housing, opportunities for postsecondary education and training, employment and a stable source of income, health insurance and a plan for future treatment.

(4) Connections with safe, stable and reliable adults.

(f) A child or youth has the right to notification that the child or youth may request to remain under the court's jurisdiction under the Juvenile Act.

(g) A child or youth has the right to communicate with others by facility telephone or other available means of communication, including access to and use of technology, electronics or cell phones, subject to reasonable facility policy and written instructions from the contracting agency or court, if applicable, regarding circumstances, frequency, time and privacy.

(h) A child or youth shall have contact and visits with family members, including siblings, as frequently as possible, consistent with the family service plan and the child's or the youth's ISP, but no less than that prescribed by statute or regulation unless prohibited by court order.

(i) A child or youth has the right to receive and send mail unless prohibited by court order. The following apply:

(1) Outgoing mail may not be opened or read by facility staff.

(2) Incoming mail from Federal, State or county officials or from the child's or youth's attorney may not be opened or read by facility staff.

(3) Incoming mail from persons other than those specified in paragraph (2) may not be opened or read by facility staff unless there is reasonable cause to suspect that contraband, or other information or material that may jeopardize a child's or youth's health, safety or well-being, may be enclosed. If there is reasonable cause to suspect that contraband or other information that may jeopardize a child's or youth's health or safety may be enclosed, the child or youth shall open the mail in the presence of facility staff.

(j) A child or youth has the right to communicate and visit privately with their attorney, clergy and contracting agency staff, including juvenile probation officers and county children and youth agency workers.

(k) A child or youth has the right to have access to contact information of the child's or youth's guardian ad litem, attorney, court-appointed special advocate, clergy and members of the child's or youth's integrated services planning team and the opportunity to contact those persons.

(l) A child or youth has the right to notice of and the ability to attend court hearings relating to the child's or youth's case and to have the opportunity to be heard consistent with the Juvenile Act.

(m) A child or youth has the right to be protected from unreasonable person and property searches.

(n) A child or youth has the right to meaningful age and developmentally appropriate involvement in case planning including efforts to successfully transition to self-sufficiency and adulthood.

(o) A child or youth has the right to education stability and an appropriate education consistent with the laws of the Commonwealth.

(p) A child or youth has the right to participate or choose not to participate in religious observances and activities and attend religious services of the child's or youth's preference or the religion of the child's or youth's family of origin or culture as may be reasonably accommodated.

(q) A child or youth has the right to appropriate medical, dental, vision, mental health, behavioral health and drug and alcohol abuse and addiction services, rehabilitation and treatment consistent with the laws of the Commonwealth and for which the child or youth qualifies. The following apply:

(1) This right includes information related to services under this subsection including medication and medication options and the opportunity to communicate a preference regarding a treatment plan, medication or medication options.

(2) This right includes the opportunity to consent to medical and mental health treatment consistent with applicable law.

(r) A child or youth has the right to be free from excessive medication. If a child or youth objects to or refuses treatment including medication, facility staff shall document the child's or youth's objection in the child's or youth's record.

(s) A child or youth may not be subjected to unusual or extreme methods of discipline which may cause psychological or physical harm to the child or youth.

(t) A child or youth has the right to be informed of the facility's discipline policy.

(u) A child or youth has the right to clean seasonal clothing that is age and gender-expression appropriate.

§ 3900.33. Prohibition against deprivation of rights.

(a) A child or youth may not be deprived of specific rights as set forth in § 3900.32 (relating to specific rights) or civil rights.

(b) A child's or youth's rights may not be used as a reward or sanction.

(c) A child's or youth's contacts and visits with family may not be used as a reward or sanction.

Subchapter D. SEARCH OF PERSON AND PROPERTY

Sec.
3900.41. Person and property searches.
3900.42. Appropriate use of person and property searches.
3900.43. Search procedures staff training.
3900.44. Person and property search documentation and records.

§ 3900.41. Person and property searches.

(a) Facility staff may conduct person and property searches and seize a child's or youth's property if there is reasonable cause to believe a child or youth is in possession of an item or items that are illegal or potentially harmful to the child or youth or others at the facility. The following apply:

(1) Verbal threats or gestures of self-harming behaviors are considered as a reasonable cause to initiate a search of person or property.

(2) In conducting searches, facility staff shall balance the need for security in the facility and the child's or youth's expectation of privacy.

(3) Searches conducted by facility staff shall reflect the trauma-informed approach adopted by the facility.

(b) Facility staff shall limit the intrusiveness of searches to no greater than what is necessary to accomplish the purpose of the search or detect the contraband or potentially harmful item.

(c) Facility staff are permitted to conduct searches at the facility, if reasonable cause exists, in an order from least to most intrusive as follows:

(1) Searches of a child's or youth's personal property or bedroom. These searches shall be conducted in a private and respectful manner in the child's or youth's presence whenever possible.

(2) Metal detector or wand screenings. If available, these screenings shall be used as the initial and least intrusive option for a search of a person. Metal detector or wand screenings may be used upon initial entry to the facility or upon returning from a location where weapons or other types of contraband may have been obtained.

(3) Pat down searches involving physical contact with the child or youth. A pat down search is defined as running of the hands over the clothed body of a child or youth to determine whether they are in possession of a concealed weapon, potentially harmful item or other contraband.

(4) Visual body searches by facility staff that involve the child or youth removing clothing that exposes underwear or private body parts. Body searches may be deemed reasonable for children or youth with documented histories of aggressive or violent behavior, self-harming behavior or threats, or alleged or known access to weapons, potentially harmful items or other types of contraband.

(d) Facility staff may not conduct a body cavity search. Facility staff shall contact emergency personnel, and the child or youth shall be transported to a hospital by emergency personnel for search and removal of suspected contraband under the following circumstances:

(1) Observations made during the course of a visual body search.

(2) If a child or youth discloses that they have contraband in an anal or vaginal cavity.

(3) If a search using a metal detector indicates that a child or youth is hiding contraband in an anal or vaginal cavity.

(4) The child's or youth's parent discloses to facility staff that the child or youth possesses contraband.

(e) Facility staff shall report each body cavity search conducted to the department as a reportable incident on the prescribed form as addressed in § 3900.16 (relating to reportable incidents).

(f) Facility staff shall notify the child's or youth's parent within 4 hours following the submission of a reportable incident of their child or youth being subjected to a body cavity search, unless restricted by applicable confidentiality statutes, regulations or an individual child's or youth's court order.

§ 3900.42. Appropriate use of person and property searches.

(a) Facility management shall develop and implement policies and procedures addressing when and how searches of a child's or youth's person or property and the related seizure of contraband are deemed appropriate, reasonable and necessary to protect the child, youth, other children or youth and facility staff.

(b) Facility management shall develop and implement policies and practices that limit the intrusiveness of searches to no greater than what is necessary to accom-

plish the purpose of the search or detect the potentially harmful items or contraband prior to conducting person and property searches.

(c) Searches may be conducted by facility staff only if there is reasonable cause to suspect that the child or youth possesses contraband, the search is no more invasive than necessary to detect the contraband and the search is conducted under circumstances to minimize the intrusive effect.

(d) The facility staff who suspect the presence of prohibited items shall consult with at least one supervisory facility staff to ensure that the decision to initiate a search is in accordance with facility policy.

(e) The facility's policies and procedures shall address all of the following:

(1) The types of searches that approved facility staff are permitted to use.

(2) How the practices used by the facility align with the principles of the trauma-informed approach adopted by the facility.

(3) The criteria that warrant the need for a search. Reasonable cause must be clear and articulable, meaning that the suspicion can be explained orally or in writing in reasonable and understandable terms.

(4) Consideration of the following:

(i) The basis for suspicion of the potential threat to the child, youth or others.

(ii) The child's or youth's age and gender identity.

(iii) The child's or youth's history, including whether the child or youth has a history of being a victim of child abuse, especially sexual abuse, or neglect.

(iv) The child's or youth's psychosocial history and potential reactions to the search that may require use of restrictive procedures to prevent the child or youth from injuring themselves or others.

(v) Personal triggers that may cause the child or youth additional trauma as a result of a search.

(vi) The child's or youth's current medical condition and history of substance abuse or other self-harming behavior.

(5) Steps that facility staff are required to take to mitigate the need for a search for hidden contraband prior to initiating and potentially avoiding a search, including all of the following:

(i) Informing the child or youth about the suspicion.

(ii) Asking the child or youth if the suspicion is accurate.

(iii) Reminding the child or youth that disclosing the possession of a prohibited item and willingly surrendering it to facility staff will enable the facility staff to help the child or youth.

(iv) Attempting to anticipate and de-escalate the child's or youth's behavior using methods of intervention less intrusive than search procedures.

(6) Elements such as the location where the search will be conducted and the facility management's and facility staff's planned response following the search regardless of whether prohibited items are found, including proactively anticipating the child's or youth's reactions and behaviors.

(7) The requirement that searches are conducted in a manner that affords respect and privacy for the child or youth.

(8) A requirement that facility staff shall provide a transgender or intersex child or youth the opportunity to request and confirm in writing the child's or youth's preference that staff of a particular gender conduct a pat down or visual search of the child or youth. Facility staff shall comply with the child's or youth's request absent exigent circumstances and shall document a deviation from the child's or youth's stated preference. If a child or youth does not indicate a preference, the facility staff member of the child's or youth's self-identified gender shall perform the search.

(9) The requirement that at least two facility staff of the same gender of the child or youth are involved in conducting a search of the child's or youth's person, except as provided under paragraph (8).

(10) An internal review and debriefing process after each search incident, to review compliance with facility policies and to identify any additional facility staff training needed as addressed in § 3900.43 (relating to search procedures staff training).

(f) Facility staff shall provide a copy of the person and property search policy to the child or youth and the child's or youth's parent upon admission to the facility to inform them of the types of searches that are conducted in the facility and the circumstances under which the child or youth may be subject to being searched.

§ 3900.43. Search procedures staff training.

(a) Facility staff, who as a result of their job responsibilities, may be involved in a search procedure, shall have completed training in the facility's search policies and procedures as required in § 3900.57 (relating to staff training) which includes the topics and procedures addressed in § 3900.42 (relating to appropriate use of person and property searches).

(b) Facility staff shall be designated by the facility management as being approved to conduct searches once training has been completed.

(c) Designated facility staff's training records shall contain a record of this training, including the name of the person trained, the date, curriculum used, name of the trainer and the trainer's qualifications, and length of the training.

§ 3900.44. Person and property search documentation and records.

(a) Documentation of a search conducted shall include the following:

(1) The reason facility staff determined that the search was necessary and reasonable.

(2) The methods used to mitigate the need for a search for hidden contraband prior to initiating a search.

(3) The type of search conducted.

(4) The search date, time and location.

(5) The child's or youth's response to the search basis and process.

(6) The manner in which the search was conducted.

(7) Whether any prohibited items were found as a result of the search and a description of the items.

(8) Actions the facility staff took following the search.

(9) The names of facility staff involved in the observations that led to the search, the decision to conduct a search and the search itself.

(b) Facility staff shall do all of the following:

(1) Maintain a record of each search of person or property conducted which shall be kept in both an electronic restrictive procedures log and the child's or youth's record.

(2) Maintain documentation of each debriefing process conducted as required under § 3900.16(h) (relating to reportable incidents) in the person and property search records.

(3) Maintain a record of aggregate data relevant to incidents of search procedures utilized by the facility in an electronic search procedures data log and shall reflect facility data addressing the elements required in subsection (a) and include child, youth, staff and site-specific related experiences.

(4) Make a facility-specific analysis of the aggregate data compiled and any quality improvement plans developed as a result of the analysis available to the department. This analysis shall be made available on an annual basis at the time of licensure renewal.

(5) Make aggregate search procedures data available to the department within 2 business days upon request.

(6) Notify the child's or youth's parent and contracting agency of each search of the child or youth that results in contraband or other dangerous items being found within 4 hours following completion of the search.

Subchapter E. STAFFING

Sec.
3900.51. Child abuse and criminal history checks.
3900.52. Staff hiring, retention and utilization.
3900.53. Residential program director.
3900.54. Residential program supervisor.
3900.55. Additional staff responsibilities.
3900.56. Exceptions for staff qualifications.
3900.57. Staff training.

§ 3900.51. Child abuse and criminal history checks.

(a) Child abuse and criminal history checks shall be completed in accordance with the CPSL and Chapter 3490 (relating to protective services).

(b) Maintenance and repair service personnel secured through outside entities working unsupervised by facility staff shall be required to present documentation of child abuse and criminal history certifications prior to beginning work at the facility.

§ 3900.52. Staff hiring, retention and utilization.

Facility staff hiring retention and utilization shall be in accordance with the CPSL and Chapter 3490 (relating to protective services).

§ 3900.53. Residential program director.

(a) There shall be one designated residential program director responsible for the facility operations. A residential program director may be responsible for more than one facility.

(b) A residential program director shall be responsible for administration and management of the facility, including the regular and significant direct contact with the children and youth to ensure their safety and protection including the provision of a quality trauma-informed approach, implementation of policies and procedures and compliance with this chapter, including the staff training requirements under § 3900.57 (relating to staff training).

(c) A residential program director shall have one of the following:

(1) A master's degree from an accredited college or university and 2 years' work experience in administration or human services.

(2) A bachelor's degree from an accredited college or university and 4 years' work experience in administration or human services.

§ 3900.54. Residential program supervisor.

(a) There shall be one designated residential program supervisor available either on site or by telephone at all times while children and youth are at the facility.

(b) For facilities serving 12 or more children or youth, whenever 12 or more children or youth are present at the facility, there shall be at least 1 residential program supervisor present at the facility.

(c) The residential program supervisor may be counted in the child and youth to staff ratios when in emergent situations they are acting in a direct child care role.

(d) The residential program supervisor shall be responsible for developing and implementing the daily programming and schedule for the children and youth to ensure the children's and youth's safety, supervision and security and for supervision of residential program workers. This position requires knowledge of the facility policies, procedures and regulations related to child residential care, supervisory techniques and personnel policies and procedures.

(e) The residential program supervisor shall have one of the following:

(1) A bachelor's degree in social work, sociology, psychology, family ecology, family or child development, counseling and guidance, criminal justice, community services, family studies, counseling psychology, education, early childhood education, secondary education, special education or other human services related field from an accredited college or university.

(2) Three years' work experience with children or youth in a group or residential setting and one of the following:

(i) An associate's degree in social work, sociology, psychology, family ecology, family or child development, counseling and guidance, criminal justice, community services, family studies, counseling psychology, education, early childhood education, secondary education, special education or other human services related field.

(ii) Sixty credit hours from an accredited college or university in one or a combination of the areas of study listed in subparagraph (i).

(iii) Military service training in one or a combination of the areas of study listed in subparagraph (i).

(3) Five years' work experience with children or youth in a group residential setting with demonstrated progressive responsibilities and documentation of relevant training, skill and competency development. Documented experience may be paid or volunteer.

(f) In facilities serving children or youth who are adjudicated delinquent, the following additional requirement applies for a residential program supervisor:

(1) Work experience determining eligibility for employment must include experience working with youth in a group activity or setting.

(2) This documented experience may be paid or volunteer.

§ 3900.55. Additional staff responsibilities.

(a) Facility management shall designate one or more facility staff as the primary contact responsible for each of the following:

(1) Communication with family members.

(2) Coordinating family time and contact with the child or youth.

(3) Timely exchange of information and updates with the family relevant to the child's or youth's experiences at the facility.

(4) Coordinating the child's or youth's transition planning throughout placement.

(5) Ensuring compliance with the provisions of 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting) as it relates to staff presence during labor.

(b) Facility management shall designate at least one facility staff as the lead for the team configured and convened for each child or youth.

(c) Facility management shall designate at least one facility staff having primary responsibility for care management for each child or youth at the facility, including acting as the child's or youth's advocate within the facility.

(d) Effective _____ (*Editor's Note*: The blank refers to the date 18 months after the effective date of this section), facility management shall designate at least one facility staff as parent advocate or peer support specialist.

(e) The responsibilities and roles addressed in this section may be assigned to existing staff and do not require the creation of new staffing positions.

§ 3900.56. Exceptions for staff qualifications.

The staff qualification requirements specified in §§ 3900.53(c) and 3900.54(e) (relating to residential program director; and residential program supervisor) do not apply to facility staff hired or promoted to the specified positions prior to _____ (*Editor's Note*: The blank refers to the effective date of this chapter.).

§ 3900.57. Staff training.

(a) Prior to having contact with children or youth in the facility, each facility staff who will have regular and significant direct contact with children or youth, including part-time and temporary facility staff and volunteers, shall have an orientation that addresses the following:

(1) The requirements of this chapter.

(2) The CPSL, Chapter 3490 (relating to protective services) and mandated reporter responsibilities and process.

(3) Specific job duties and responsibilities, including professional boundaries and limits on sharing personal information.

(4) Facility policies and procedures, including the facility's grievance and confidentiality policies.

(5) No fewer than 4 hours of training on the trauma-informed approach adopted by the facility.

(6) The facility's fire, medical and other emergency procedures including the emergency preparedness plan.

(7) The facility's policies and procedures governing child discipline, daily care and management of children.

(8) The facility's policies and procedures governing the use of restrictive procedures.

(9) The facility's policies and procedures governing the administration of medications.

(10) The physical layout of the facility in which the program operates, including location of fire alarms, fire extinguishers, telephones and other emergency apparatus.

(11) General overview of first aid, abdominal thrust techniques, cardiopulmonary resuscitation and universal precautions.

(12) General overview of crisis intervention, de-escalation and behavior management techniques and suicide prevention.

(13) Health conditions, medications and other special issues affecting the population served at the facility, including administration of naloxone and how to report concerns related to side effects of medications.

(14) Child or youth specific service plans and assessments completed by contracting agencies.

(b) Prior to working alone with children or youth and within 120 calendar days after the date of hire, the residential program director and each full-time, part-time and temporary facility staff who will have regular and significant direct contact with children or youth shall have a minimum of 30 hours of training in at least the following areas:

(1) Training and certification in first aid, abdominal thrusts and cardiopulmonary resuscitation provided by an individual certified as a trainer by a hospital or other recognized health care organization. If facility staff have a formal certification from a recognized health care organization which is valid for more than 1 year, retraining is not required until expiration of the certification.

(2) Training in fire safety provided by a fire safety expert or, in facilities serving 20 or fewer children or youth, by facility staff trained by a fire safety expert.

(3) Training and certification in crisis intervention, behavior management and suicide prevention.

(4) Certification in the trauma-informed approach adopted by facility.

(5) Certification in medication administration, if medication administration is within the facility staff responsibilities.

(6) Child and youth brain development and effective relationship building skill training.

(7) Specific needs of the children and youth served in the program.

(8) Human trafficking awareness and runaway prevention.

(9) Advocacy information related to the population served and opportunity to hear from individuals who were victims of sex trafficking.

(10) Cyber security considerations and safe social media usage related to human trafficking and child and youth safety.

(11) Team building and problem solving with children and youth.

(12) Cultural sensitivity training specifically addressing the population served.

(13) Training to increase facility staff awareness of the impact of their gender, race, ethnicity and sexual orientation in interactions with the population served.

(c) In addition to the requirements under subsection (a), facility staff working with children or youth who are adjudicated delinquent shall complete training in the following areas during the first 120 days of the facility staff member's employment:

(1) Balanced and restorative justice principles.

(2) Understanding the risk and service needs assessments completed by the contracting agency.

(3) Identification and documentation of treatment plan progress and the competencies developed by the population served.

(4) Awareness of criminal thinking, temperament, substance abuse, use of leisure time, family dynamics and education and employment as considerations and interventions to address and decrease dynamic risk factors and criminogenic needs.

(5) Implications of the Prison Rape Elimination Act of 2003 (34 U.S.C. Chapter 303) and its relationship to facility policies and procedures.

(d) In addition to the requirements under subsection (a), facility staff working with children or youth who are pregnant, laboring or postpartum shall complete training in the areas addressed in 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting).

(e) If a facility staff can provide documentation of a valid certification and completion of training required in subsection (b)(1)—(5) within 12 months prior to the facility staff's date of hire, the requirement for training in subsection (b)(1)—(5) does not apply.

(f) After initial training, the residential program director and each full-time, part-time and temporary facility staff who has regular and significant direct contact with children and youth shall have at least 42 hours of training annually relating to the care and management of children, youth and facility policies and procedures. The requirement for annual training for the initial year of employment is prorated based on the date of completion of the initial 120 days of employment. Annual training shall include the following:

(1) First aid, abdominal thrusts and cardiopulmonary resuscitation provided by an individual certified as a trainer by a hospital or other recognized health care organization. If a facility staff has a formal certification from a recognized health care organization which is valid for more than 1 year, retraining is not required until expiration of the certification.

(2) Fire safety provided by a fire safety expert or, in facilities serving 20 or fewer children, by facility staff trained by a fire safety expert.

(3) The trauma-informed approach adopted by the facility and any requirements stipulated by the trauma-informed approach developer or certification entity to support facility staff's adherence to the approach's principles, applications and monitoring processes.

(4) An overview of the treatments for trauma available to the population served, whether provided directly or through community-based providers.

(5) Restrictive procedures and safe crisis management training, twice within a 12-month period, including de-escalation techniques and debriefing techniques. The interim trainings between certification cycles may be abbreviated but shall address critical components of de-escalation and facility staff roles during application of a restrictive procedure. Formal re-certification requires adherence to curriculum content of the model adopted by the facility. If a facility staff has a certification from a recognized crisis management training program which is valid for more than 1 year, recertification is not required until expiration of the certification.

(6) Review of facility policies, including all of the following:

(i) Prevention, detection and reporting of child abuse, suspected abuse and alleged abuse in accordance with the CPSL.

(ii) Individual child and youth rights and the facility's grievance policies and investigation and debriefing procedures.

(iii) Facility policies and procedures related to searches of person and property.

(iv) Policies related to the facility's emergency preparedness plan.

(v) Recognizing and reporting incidents under this chapter and participating in related investigation and debriefing processes.

(vi) Facility operations.

(7) Implementation and documentation of information in the individual child's or youth's service plans.

(8) Training in the following areas:

(i) Child and youth development specific to the population served.

(ii) Behavioral health diagnoses and treatment specific to the population served.

(iii) Interpersonal dynamics, including considerations specific to gender, race, ethnicity and sexual orientation in interactions with facility management, facility staff peers and the population served.

(g) In addition to the requirements under subsection (f), facility staff working with children and youth who are adjudicated delinquent shall complete annual training in the following areas:

(1) Review of balanced and restorative justice principles including competency development, victim awareness and community protection.

(2) Understanding the youth risk and service needs assessments administered to children or youth and the connection to interventions implemented and outcomes achieved by the children or youth.

(h) Facility management shall develop an annual training calendar for each facility staff on a facility-defined year, which reflects a plan to address required topics and certifications in a timely manner. Facility staff completing their orientation and initial training shall have their

required annual training hours for the remainder of the current training year calculated on a prorated monthly basis of 3.5 hours per month.

(i) At least 22 hours of the annual training required under subsections (f) and (g) shall be provided through one of the following:

(1) Formal in-service training.

(2) Academic programs.

(3) Participation in conferences, institutes or workshops.

(j) Up to 20 hours of the annual training required under subsections (f) and (g) may be provided through supervisory conferences. The conference schedules shall be documented in the facility staff personnel record.

(k) Volunteers who are not responsible for the direct care and supervision of children or youth and who are not counted in the child and youth to facility staff ratios shall participate in the same orientation process provided to facility staff under subsection (a) but are not required to complete the initial 120-day and annual trainings required for facility staff.

(l) Facility staff training records shall contain a record of all training, including the name of the person trained; the date, source and curriculum used; the name of the trainer and the trainer's facility-defined qualifications; the length of the training; and copies of any certificates received. Documentation of training for volunteers shall also be kept in the facility's training records.

Subchapter F. PHYSICAL SITE

Sec.

3900.61. Outside access and visitors to the facility.
3900.62. Physical accommodations and equipment.
3900.63. Poisons.
3900.64. Heat sources.
3900.65. Sanitation.
3900.66. Ventilation.
3900.67. Lighting.
3900.68. Surfaces.
3900.69. Water.
3900.70. Temperature.
3900.71. Communication system.
3900.72. Emergency telephone numbers.
3900.73. Handrails and railings.
3900.74. Landings and stairs.
3900.75. Furniture and equipment.
3900.76. First aid supplies.
3900.77. Elevators.
3900.78. Indoor activity space.
3900.79. Recreation space.
3900.80. Exterior conditions.
3900.81. Firearms, weapons and ammunition.
3900.82. Bedrooms.
3900.83. Bedroom accommodations.
3900.84. Bathrooms.
3900.85. Kitchen areas.
3900.86. Laundry.
3900.87. Swimming.
3900.88. Video surveillance system.

§ 3900.61. Outside access and visitors to the facility.

(a) Facility management shall develop and implement procedures addressing individuals who have access to the facility and grounds, including maintenance and delivery personnel and business-related visitors.

(b) Facility management shall establish site-specific security measures, including all of the following:

(1) A sign-in and sign-out protocol that is enforced with photo identification provided by adult visitors. If family members do not have photo identification, facility staff shall work with the contracting agency to identify family members.

(2) Posting of items that are not permitted to be brought into the facility.

(3) Notice that the facility management reserves the right to inspect any item being brought into the facility.

(c) Facility management shall establish a process to maintain child or youth-specific approved lists for family members and visitors that are accessible to staff and are updated to reflect court orders and contracting agency directives.

(d) Facility management shall develop and implement facility site safety operating policies and procedures that address facility site access and child and youth visitation practices, including all of the following:

(1) The level of supervision and observation to be provided by facility staff based on the child's or youth's assessed needs.

(2) The process for family members and approved visitors to arrange for visitation in advance.

(3) Designated areas and times for visits if there is a need for supervision or observation by facility staff identified by the contracting agency, the court or addressed in the child's or youth's safety plan.

(4) Reasonable flexibility to accommodate specific needs identified by family members or the child or youth.

§ 3900.62. Physical accommodations and equipment.

Facility management shall provide or arrange for physical site accommodations and equipment necessary to meet the health and safety needs of all children and youth at the facility, including those with a disability who may require special accommodations.

§ 3900.63. Poisons.

(a) Facility management shall comply with requirements related to toxics as addressed under § 3270.66 (relating to toxics).

(b) Facility management shall post contact information for the poison control center near the areas used to store toxic materials.

§ 3900.64. Heat sources.

Heat sources exceeding 120°F that are accessible to children or youth, such as hot water pipes, fixed space heaters, water heaters and radiators, shall be equipped with protective guards or insulation to prevent children or youth from coming in contact with the heat source.

§ 3900.65. Sanitation.

(a) Sanitary conditions shall be maintained at the facility.

(b) There may not be evidence of insect or rodent infestations in the facility.

(c) Trash shall be removed from the premises at least once a week.

(d) Trash in kitchens and bathrooms shall be kept in covered trash receptacles that prevent insect and rodent penetration.

(e) Trash outside the facility shall be kept in closed receptacles that prevent insect and rodent penetration.

§ 3900.66. Ventilation.

(a) Natural or mechanical ventilation shall be available in all areas used by a child or youth, including living areas, recreation areas, dining areas, bathrooms, bedrooms and kitchens.

(b) Windows or doors used for ventilation must be securely screened.

(c) Screens must be in good repair.

(d) Except for those windows and doors used as emergency exit routes, windows or doors above the ground floor that open directly to the outdoors and are accessible to children or youth must meet requirements for limits on openings under § 3270.72 (relating to ventilation).

§ 3900.67. Lighting.

Rooms, hallways, interior stairs, outside steps, outside doorways, porches, ramps and fire escapes shall be lighted to avoid accidents.

§ 3900.68. Surfaces.

(a) Floors, walls, ceilings, windows, doors and other surfaces shall be free of hazards.

(b) Facility management shall comply with requirements in § 3270.77 (relating to paint) addressing peeled or damaged paint or damaged plaster.

(c) When indoor or outdoor surfaces are repaired or when new indoor or outdoor surfaces are painted, the paint may not contain more than 0.06% lead.

(d) Facility management shall comply with § 3270.77 by prohibiting a child or youth being present during paint removal from a facility's indoor or outdoor surfaces.

(e) If the facility was constructed before 1978 and serves one or more children who are 2 years of age or younger or who are likely to ingest inedible substances, the facility management shall test all layers of interior paint in the facility and exterior paint and soil accessible in the play and recreation areas for lead content. If lead content exceeds 0.06% in wet paint, 0.5% in a paint chip sample or 400 ppm in the soil, lead remediation activity is required based on recommendations of the Department of Health. Facility staff shall maintain documentation of lead testing, results and corrections made in the facility's files.

(f) Asbestos products may not be used for any renovations or new construction.

§ 3900.69. Water.

(a) The facility must have hot and cold water under pressure sufficient to meet the children's and youths' needs.

(b) Hot water temperature in areas accessible to children and youth may not exceed 120°F.

(c) A facility that is not connected to a public water system shall have a coliform water test performed at least every 3 months by a laboratory certified by the Department of Environmental Protection, to certify that the water is safe for drinking. Facility staff shall maintain documentation of these certifications in the facility's files, which shall be made available for review upon request by the department.

§ 3900.70. Temperature.

(a) Indoor air temperature shall be at least 65°F during awake hours when children or youth are present in the facility.

(b) Indoor air temperature may not be less than 62°F during sleeping hours.

(c) Mechanical ventilation, such as fans or air conditioning, shall be used when indoor air temperatures exceed 90°F.

§ 3900.71. Communication system.

(a) The facility must have a working, non-coin operated, hard-wired or cell phone that is accessible to facility staff at all times.

(b) The facility must have a communication system to allow facility staff to contact other facility staff for assistance in an emergency.

§ 3900.72. Emergency telephone numbers.

Telephone numbers for the nearest hospital, police department, fire department, ambulance and poison control center shall be posted in an area easily visible to staff, children and youth and when possible, programmed into each telephone.

§ 3900.73. Handrails and railings.

(a) Each ramp, interior stairway and set of outside steps exceeding two steps must have a well-secured handrail.

(b) Each porch that has larger than an 18-inch drop must have a well-secured railing.

§ 3900.74. Landings and stairs.

(a) A landing that is at least as wide as the doorway must be located beyond each interior and exterior door that opens directly into a stairway.

(b) Interior stairs must have nonskid surfaces.

§ 3900.75. Furniture and equipment.

(a) Furniture and equipment shall be free of hazards.

(b) Rooms must contain enough furniture to accommodate the largest group of children and youth that may routinely congregate in the room at any given time.

(c) Power equipment shall be kept in a safe condition.

(d) Power equipment, excluding normal household appliances, shall be stored in a place that is inaccessible to children and youth.

(e) Power equipment, excluding normal household appliances, may not be used by children or youth except while under facility staff supervision and following thorough safe usage instructions.

§ 3900.76. First aid supplies.

(a) Each facility must have a first aid manual, nonporous disposable gloves, antiseptic, adhesive bandages, gauze pads, thermometer, tape and scissors stored together and easily accessible to facility staff.

(b) If a facility includes more than one floor, a complete package of first aid supplies shall be readily available to facility staff on each floor.

§ 3900.77. Elevators.

Each elevator must have a valid certificate of operation from the Department of Labor and Industry.

§ 3900.78. Indoor activity space.

The facility must have separate indoor activity space for activities such as studying, recreation and group activities.

§ 3900.79. Recreation space.

The facility must have regular access to outdoor or large indoor recreation space and equipment.

§ 3900.80. Exterior conditions.

(a) The exterior of the building and the building grounds or yard must be free of hazards.

(b) Outside walkways must be free of ice, snow and obstructions.

§ 3900.81. Firearms, weapons and ammunition.

A facility shall have a written policy regarding possession of firearms, weapons and ammunition on the premise of the facility and facility grounds. A facility is not required to permit firearms, weapons and ammunition. The policy must be in accordance with Federal and State law.

§ 3900.82. Bedrooms.

(a) Each single bedroom must have at least 70 square feet of floor space per child or youth measured wall to wall, including space occupied by furniture.

(b) Each shared bedroom must have at least 60 square feet of floor space per child or youth measured wall to wall, including space occupied by furniture.

(c) No more than four children or two youth may share a bedroom.

(d) Ceiling height in each bedroom must be at least an average of 7 1/2 feet.

(e) Each bedroom must have a window with a source of natural light.

(f) Each child or youth shall have the following in the bedroom:

(1) A bed with a solid foundation and fire-retardant mattress in good repair.

(2) A pillow and bedding appropriate for the temperature in the facility.

(3) A storage area for clothing.

(g) Bunk beds must allow enough space between each bed and the ceiling to allow the child or youth to sit up in bed.

(h) Bunk beds must be equipped with securely attached ladders capable of supporting a facility staff person.

(i) The top bunk of bunk beds must be equipped with a secure safety rail on each open side and open end of the bunk.

(j) Cots or portable beds are not permitted. This prohibition does not apply for the first 30 days of a child's or youth's placement if a facility is given 7 days or less notice of the placement.

(k) A bedroom may not be used as a means of egress from or access to another part of the facility.

§ 3900.83. Bedroom accommodations.

(a) Each facility shall maintain the ability to provide a child or youth with single room accommodations in response to their assessed safety or clinical needs identified as part of the child's or youth's assessment and treatment plan.

(b) Facility policies and procedures must address the process and criteria used to address individual child or youth needs specific to the child's or youth's bedroom assignment.

(c) A child's or youth's privacy, confidentiality and personal safety needs shall also be considered in the bedroom assignment process.

(d) Bed assignments for a pregnant child or youth shall comply with related requirements in 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting), including that a facility may not assign a pregnant child or youth to any bed that is elevated more than 3 feet from the floor.

§ 3900.84. Bathrooms.

(a) A facility must have at least one flush toilet for every six children and youth.

(b) A facility must have at least one sink for every six children and youth.

(c) A facility must have at least one bathtub or shower for every six children and youth.

(d) A facility must have slip-resistant surfaces in all bathtubs and showers.

(e) Toilets, showers and bathtubs shall be made private by partitions or doors.

(f) A facility must have at least one wall mirror for every six children and youth.

(g) An individual towel, washcloth, comb, hairbrush and toothbrush shall be provided for each child or youth.

(h) Toiletry and personal hygiene items including toothpaste, shampoo, deodorant, soap, lotion and, if needed, hair moisturizer/hair grease, shall be issued. Menstrual hygiene and incontinence products, if needed, shall be issued, as required under 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting).

(i) Bar soap is not permitted unless there is a separate bar in a container clearly labeled for each child or youth.

§ 3900.85. Kitchen areas.

(a) A facility must have a kitchen area with a refrigerator, sink, cooking equipment and cabinets for storage.

(b) Utensils for eating, drinking, and food serving and preparation shall must be washed and rinsed after each use.

(c) Food shall be protected from contamination while being stored, prepared, transported and served.

(d) Uneaten food from an individual's dish may not be served again or used in the preparation of other dishes.

(e) Cold food shall be kept at or below 40°F. Hot food shall be kept at or above 140°F. Frozen food shall be kept at or below 0°F.

§ 3900.86. Laundry.

Bed linens, towels, washcloths and clothing shall be laundered at least weekly.

§ 3900.87. Swimming.

(a) Above-ground and in-ground outdoor pools on facility grounds must be fenced with a gate that is locked when the pool is not in use.

(b) Indoor pools on facility grounds shall be made inaccessible to children and youth when not in use.

(c) A certified lifeguard shall be present with the children and youth at all times while children or youth are swimming at facility and community swimming locations and settings.

(d) The certified lifeguard specified in subsection (c) may not be counted in the child and youth to staff ratios specified under § 3900.54 (relating to residential program supervisor) or under Chapters 3910 or 3920 (relating to child residential facilities; and secure residential and secure detention facilities for youth).

§ 3900.88. Video surveillance system.

(a) A video surveillance system shall be installed in facilities with a capacity of 25 or more children or youth, and each secure residential and secure detention facility providing coverage of all areas to which a child or youth has access, excluding bathrooms, showers and sleeping rooms.

(b) Facility management shall develop and implement policies addressing the use of a video surveillance system that include all of the following:

(1) A clear statement that the intent of the system is to support a safe and secure environment for children and youth, facility staff and visitors, and to protect property.

(2) A description of the type of system used. This may include wireless cameras, doorbell cameras, an audio and video monitoring device, or a closed-circuit television security system and the process to maintain the equipment.

(3) Signs at the entrances to and within the facility alerting children and youth, facility staff and visitors that the property is under camera surveillance.

(4) The monitoring process implemented, which may include live review of activity, continuous recording, or both.

(5) Identification of individuals who have access to the video on a live or recorded basis and approved uses for the information recorded.

(6) Retention practices for the recorded information which must reflect time needed to investigate and resolve any recorded incidents and implement training and staffing changes if needed.

(7) The process to ensure the security of the network and devices on which the video is stored.

(8) The process to provide copies of the policies for use of the system to the children and youth at the facility, the children's and youths' parents, facility staff, contracting agency and the department.

(c) Facility management that voluntarily installs and uses a video surveillance system shall comply with the requirements listed in this section.

Subchapter G. FIRE SAFETY

Sec.
3900.91. Exits.
3900.92. Evacuation procedures.
3900.93. Flammable and combustible materials.
3900.94. Furnaces.
3900.95. Portable space heaters.
3900.96. Wood and coal burning stoves.
3900.97. Fireplaces.
3900.98. Detectors and fire alarms.
3900.99. Fire extinguishers.
3900.100. Fire drills.

§ 3900.91. Exits.

(a) If more than four children or youth sleep above the ground floor, there must be a minimum of two interior or exterior exits from each floor.

(b) If a fire escape is used as a means of egress, it must be permanently installed.

§ 3900.92. Evacuation procedures.

Each facility shall have written emergency evacuation procedures that include facility staff responsibilities, means of transportation and the meeting location in case of emergency.

§ 3900.93. Flammable and combustible materials.

(a) Combustible materials may not be located near heat sources.

(b) Flammable materials shall be used safely, stored away from heat sources and inaccessible to children and youth.

§ 3900.94. Furnaces.

Furnaces shall be inspected and cleaned at least annually by a professional furnace cleaning company or trained maintenance staff. Documentation of the inspection and cleaning shall be kept in the facility's files.

§ 3900.95. Portable space heaters.

Heaters that are not permanently mounted or installed are not permitted in the facility.

§ 3900.96. Wood and coal burning stoves.

The use of wood and coal burning stoves is not permitted.

§ 3900.97. Fireplaces.

(a) Fireplaces shall be securely screened or equipped with protective guards while in use.

(b) Facility staff shall be present with the children and youth while a fireplace is in use.

(c) If a log-burning fireplace is used, it shall be inspected and cleaned at least annually by a professional furnace cleaning company or trained maintenance staff person.

(d) Documentation of the inspection and cleaning shall be kept in the facility's files.

§ 3900.98. Detectors and fire alarms.

(a) A facility must have a minimum of one operable automatic smoke detector on each floor, including the basement and attic.

(b) A facility must have an operable automatic smoke detector located within 15 feet of each bedroom door.

(c) The smoke detectors specified in subsections (a) and (b) must be located in common areas or hallways.

(d) Smoke detectors and fire alarms must be of a type approved by the Department of Labor and Industry or listed by Underwriters Laboratories.

(e) If the facility serves four or more children or youth or if the facility has three or more stories including the basement and attic, it must have at least one smoke detector on each floor that is interconnected and audible throughout the facility or an automatic fire alarm system that is audible throughout the facility.

(f) If one or more children, youth or facility staff are not able to hear the smoke detector or fire alarm system,

all smoke detectors and fire alarms shall be equipped so that each person with a hearing impairment is alerted in the event of a fire.

(g) If a smoke detector or fire alarm becomes inoperative, it shall be repaired within 48 hours of the time the detector or alarm was found to be inoperative.

(h) The facility shall develop and implement a written procedure for fire safety monitoring if the smoke detector or fire alarm becomes inoperative.

(i) An approved carbon monoxide alarm must be installed in the facility not less than 15 feet from any fossil fuel-burning device or appliance. Facility staff shall test and clean installed carbon monoxide detectors and alarm systems as indicated in the manufacturer's guidelines.

§ 3900.99. Fire extinguishers.

(a) A facility must have at least one operable fire extinguisher with a minimum 2-A rating for each floor, including the basement and attic.

(b) If the indoor floor area on a floor, including the basement or attic, is more than 3,000 square feet, there must be an additional fire extinguisher with a minimum 2-A rating for each additional 3,000 square feet of indoor floor space.

(c) A fire extinguisher with a minimum 2A-10BC rating must be located in each kitchen. The kitchen fire extinguisher meets the requirements for one floor as required in subsection (a).

(d) Fire extinguishers must be listed by Underwriters Laboratories or approved by Factory Mutual Systems.

(e) Fire extinguishers must be accessible to facility staff. Fire extinguishers may be kept locked if access to the fire extinguisher by a child or youth may cause a safety risk to the child or youth. If fire extinguishers are kept locked, each facility staff shall be able to immediately unlock the fire extinguisher in the event of a fire emergency.

(f) Facility management shall have a fire safety expert annually inspect and approve all fire extinguishers. The date of the inspection must be affixed to the fire extinguisher.

§ 3900.100. Fire drills.

(a) Facility staff shall conduct an unannounced fire drill at least once a month. Advance notice of the drill may not be provided to residential program workers, children or youth at the facility.

(b) Fire drills shall be held during normal staffing conditions and not when additional facility staff are present.

(c) Facility staff shall maintain a written fire drill record documenting the date, time, the amount of time it took for evacuation, the exit route used, the number of children and youth in the facility at the time of the drill, problems encountered during the drill and whether the fire alarm or smoke detector was operative.

(d) Children and youth must be able to evacuate the entire building into a public thoroughfare, or to a fire-safe area designated in writing within the past year by a fire safety expert, within 2 1/2 minutes or within the time period specified in writing within the past year by a fire safety expert. The fire safety expert may not be a facility employee.

(e) A fire drill shall be held during sleeping hours at least two times every calendar year.

(f) Hypothetical locations of the fire shall be changed for each drill and alternate exit routes shall be used.

(g) Fire drills shall be held during various program activity times, on different days of the week, at different times of the day and night and on different staffing shifts.

(h) Facility staff shall ensure that children and youth evacuate to a designated meeting place outside the building or within the fire-safe area during each fire drill.

(i) A fire alarm or smoke detector shall be set off during each fire drill.

(j) Evacuation routes identifying at least two exit routes shall be posted in highly visible locations throughout the facility.

(k) Evacuation plans shall provide for removal of all persons from the facility in a single trip.

(l) Elevators may not be used during a fire drill or a fire.

Subchapter H. CHILD AND YOUTH HEALTH

Sec.
3900.111. Health and safety admission screening.
3900.112. Health and safety plan.
3900.113. Health examination.
3900.114. Dental care.
3900.115. Vision care.
3900.116. Hearing care.
3900.117. Use of tobacco and smoking materials.
3900.118. Health and behavioral health services.
3900.119. Emergency medical plan.

§ 3900.111. Health and safety admission screening.

(a) Each child and youth shall have a written health and safety admission screening within 24 hours of admission.

(b) The health and safety admission screening shall be completed or coordinated, signed and dated by medical personnel or facility staff trained by medical personnel.

(c) The health and safety admission screening shall include the following information to the extent that the information is immediately available at the time of admission:

(1) Medical information and physical and behavioral health concerns, such as allergies, medications, immunization history, hospitalizations, medical diagnoses, medical problems that run in the family, special dietary needs, illnesses, injuries, dental, mental or emotional problems, body positioning and movement stimulation for children or youth with disabilities, developmental disabilities or intellectual disabilities diagnoses, if applicable, and ongoing medical care needs.

(2) Known or suspected suicide or self-harming attempts or gestures and emotional history, which may indicate a predisposition for self-injury or suicide.

(3) Placement history and reasons for discharge or transfer, including the history of leaving home, school or a facility without adult approval or awareness.

(4) Known incidents of aggressive or violent behavior.

(5) Substance abuse history.

(6) Sexual history or behavior patterns that may place the child, youth or others at a health or safety risk, including verification of the child or youth having been a victim or a perpetrator of abuse, if applicable.

(d) The initial health and safety admission screening for children or youth who are adjudicated delinquent shall also include other community-based services the child or youth has received and the status of other intervention programs in which the child or youth previously participated.

(e) The initial health and safety admission screening shall include sufficient written detail to provide facility staff with known information at the time of admission identifying potential triggers, immediate health concerns and any special considerations needed to address the immediate safety of the child, youth and others in the facility and community.

(f) Facility management shall develop and implement policies that address the process by which facility staff having regular and significant direct contact with the child or youth are made aware of the health and safety admission screening's content once completed.

(g) Facility staff shall maintain a copy of the health and safety admission screening in the child's or youth's record.

§ 3900.112. Health and safety plan.

(a) If the health and safety admission screening completed in accordance with § 3900.111 (relating to health and safety admission screening) identifies a health or safety risk, a written plan to protect the child, youth, other children or youth at the facility, facility staff and the community shall be developed and implemented within 24 hours after the screening is completed.

(b) Facility management shall develop and implement policies and procedures that address the process by which facility staff having regular and significant contact with the child or youth are made aware of the health and safety plan and its contents.

(c) The health and safety plan shall be updated by facility staff as additional information is obtained until the child's or youth's ISP is developed.

§ 3900.113. Health examination.

(a) A child or youth shall have an in-person health examination within 15 business days after admission and annually thereafter, or more frequently as specified at specific ages in the periodicity schedule recommended by the American Academy of Pediatrics.

(b) If the child or youth had a health examination prior to admission that meets the requirements of subsection (c) within the periodicity schedule specified by American Academy of Pediatrics, and there is written documentation of the examination, an initial examination within 15 business days after admission is not required. The next examination is required within the periodicity schedule specified under subsection (a).

(c) The health examination shall include a comprehensive health and developmental history, including both physical and behavioral health development that meets the requirements of EPSDT.

(d) The health examination shall be completed, signed and dated by a licensed physician, certified registered nurse practitioner or licensed physician assistant.

(e) The child's or youth's record shall contain written verification of completion of each health examination, date and results of the examination, the name and address of the examining practitioner and follow-up recommendations made.

(f) A health examination shall be completed before a child or youth participates in a program or activity that requires significant physical exertion.

(g) The child's or youth's record shall contain documentation of the medical exam and a physician's, physician assistant's or certified registered nurse practitioner's approval for the child or youth to participate in a program that requires significant physical exertion.

(h) Immunization records, screening tests and laboratory tests may be completed, signed and dated by a registered nurse, licensed practical nurse, licensed physician, certified registered nurse practitioner or licensed physician assistant.

§ 3900.114. Dental care.

(a) Each child or youth shall receive dental care needed for relief of pain and infections, restoration of teeth and maintenance of dental health following the recommendations of the American Academy of Pediatric Dentistry's periodicity schedule.

(b) A youth or child 12 months of age or older shall have a dental examination performed by a licensed dentist and teeth cleaning performed by a licensed dentist or dental technician twice within a 12-month period, or as approved by the child's or youth's dental coverage.

(c) A dental examination and teeth cleaning shall be performed within 60 days after admission unless documentation is available that a child or youth has had a dental examination and teeth cleaning within 6 months prior to admission.

(d) Follow-up dental work indicated by the examination, such as treatment of cavities and the application of protective sealants, shall be provided in accordance with recommendations by the licensed dentist.

(e) The child's or youth's record shall contain a written record of completed dental examinations, including the documentation of the examination permitted under subsection (c), specifying the date of the examination, the dentist's name and address, procedures completed, follow-up treatment recommended and dates follow-up treatment was provided.

§ 3900.115. Vision care.

(a) Each child or youth shall receive vision screening and services to include diagnosis and treatment, including eyeglasses, for defects in vision.

(b) A child who is 3 years of age or older and each youth shall receive vision screening within 60 days after admission in accordance with the periodicity schedule recommended by the American Academy of Pediatrics.

(c) If a child or youth has a vision screening as part of the health exam outlined in § 3900.113 (relating to health examination), an initial examination within 60 days after admission is not required. The next screening shall be performed within the periodicity specified by the American Academy of Pediatrics.

(d) If the child or youth had a vision screening prior to admission that meets the requirements of subsection (a) within the periodicity schedule specified in subsection (b), an initial examination within 60 days after admission is not required. The next screening shall be performed within the periodicity schedule specified by the American Academy of Pediatrics.

(e) Follow-up treatment and services, including eyeglasses, shall be provided as recommended by the treating practitioner.

(f) The child's or youth's record shall contain a written record of completed vision screenings, including the documentation of the examination permitted in subsection (d), specifying the date of the screening, the treating practitioner's name and address, results of the screening, follow-up recommendations made and the dates and provision of follow-up services and treatment.

§ 3900.116. Hearing care.

(a) Each child or youth shall receive a hearing screening and services to include diagnosis and treatment, including hearing aids, for hearing deficits.

(b) A child who is 3 years of age or older and each youth shall receive a hearing screening within 60 days after admission in accordance with the periodicity schedule recommended by the American Academy of Pediatrics.

(c) If the child or youth has a hearing screening that occurs as part of the health exam outlined in § 3900.113 (relating to health examination), an initial examination within 60 days after admission is not required. The next screening shall be performed within the periodicity specified by the American Academy of Pediatrics.

(d) If the child or youth had a hearing screening prior to admission that meets the requirements of subsection (a) within the periodicity schedule specified by the American Academy of Pediatrics, an initial examination within 60 days after admission is not required. The next screening shall be performed within the periodicity schedule specified in subsection (b).

(e) Follow-up treatment and services, such as provision of hearing aids, shall be provided as recommended by the treating practitioner.

(f) The child's or youth's record shall contain a written record of completed hearing screenings, including the documentation of the examination permitted in subsection (d), specifying the date of the screening, the treating practitioner's name and address, results of the screening, follow-up recommendations made and the dates and provision of follow-up services and treatment.

§ 3900.117. Use of tobacco and smoking materials.

(a) Children or youth may not use or possess smoking materials, including tobacco products, vaping equipment and e-cigarette materials.

(b) If a child or youth identifies a current pattern of tobacco use at the time of admission, the facility staff shall offer the child or youth smoking cessation aids and support.

(c) Facility staff are prohibited from using or possessing smoking products, including tobacco, vaping equipment and e-cigarette materials, in the facility and during facility-provided transportation.

(d) If facility staff use tobacco products outside but on the premises of the facility, all of the following apply:

(1) Facility management shall develop and implement written fire safety procedures that include extinguishing procedures and requirements that smoking may occur only at a safe distance from the facility and from flammable or combustible materials or structures.

(2) Written safety procedures shall be followed by facility staff.

(3) Use of smoking products shall be out of the children's or youths' sight.

§ 3900.118. Health and behavioral health services.

(a) Facility staff shall identify any acute and chronic health conditions a child or youth experiences and shall arrange for or provide appropriate medical and behavioral health treatment.

(b) Facility staff shall arrange for and schedule medically necessary physical and behavioral health services, diagnostic services, follow-up examinations and treatment, such as medical, nursing, pharmaceutical, dental, dietary, hearing, vision, blood lead level, psychiatric and psychological services that are planned or prescribed for the child or youth within 48 hours of identification of the child's or youth's need for an appointment.

§ 3900.119. Emergency medical plan.

(a) Facility management shall develop and implement a written emergency medical plan listing the following:

(1) The hospital or source of health care that will be used in an emergency.

(2) The method of transportation to be used.

(3) An emergency staffing plan.

(4) Medical and behavioral health conditions or situations under which emergency medical care and treatment are warranted.

(b) The child's or youth's parent shall be given a copy of the emergency medical plan upon admission.

(c) The child's or youth's parent shall be notified immediately if the emergency plan is implemented for the child or youth.

Subchapter I. STAFF HEALTH

Sec.
3900.121. Staff health statement.

§ 3900.121. Staff health statement.

(a) Facility staff and volunteers who come into contact with children or youth or who work with food preparation shall have a health assessment conducted within 12 months prior to providing initial service in a child residential setting and every 24 months thereafter.

(b) Facility management shall maintain documentation of facility staff and volunteers' health assessments conducted, and reports written and signed by a physician, physician assistant or certified registered nurse practitioner in facility files. The signature must include the individual's professional title.

(c) The staff health assessment must include the components required for this assessment under §§ 3270.151—3270.152 (relating to health assessment; tuberculosis testing—statement of policy; and adult hygiene).

(d) A health assessment is valid for 24 months following the date of signature if the person does not contract a communicable disease or develop a medical problem preventing a facility staff from providing adequate care to the children or youth.

Subchapter J. NUTRITION

Sec.
3900.131. Three meals a day.
3900.132. Quantity of food.
3900.133. Food groups and alternative diets.
3900.134. Withholding or forcing food prohibited.

§ 3900.131. Three meals a day.

Facility staff shall provide proper nourishment to the children and youth, which includes a minimum of three meals and one snack per day.

§ 3900.132. Quantity of food.

(a) The quantity of food served must meet minimum daily requirements as recommended by the United States Department of Agriculture, unless otherwise recommended in writing by a licensed health care provider for a specific child or youth.

(b) Additional portions of meals shall be made available to the children and youth.

§ 3900.133. Food groups and alternative diets.

(a) Meals must contain at least one item from the dairy, protein, fruits and vegetables, and grain food groups, unless otherwise recommended in writing by a licensed physician, certified registered nurse practitioner or licensed physician assistant for a specific child or youth.

(b) Dietary alternatives and meal schedule modifications must be made available for a child or youth who has special health needs, religious beliefs regarding dietary restrictions or vegetarian or vegan preferences.

(c) Written weekly menus, reflecting the meal requirements in subsection (a) and food served, shall be posted and maintained in the facility's records for 1 year before being discarded. Food allergies experienced by children or youth at the facility shall be noted to reduce the risk of exposure.

(d) Water shall be made available to children and youth at all times.

§ 3900.134. Withholding or forcing food prohibited.

(a) Facility staff may not withhold meals or drinks as punishment.

(b) A child or youth may not be forced to eat food.

Subchapter K. MEDICATIONS

Sec.
3900.141. Storage of medications.
3900.142. Labeling of medications.
3900.143. Use of prescription medications.
3900.144. Medication log.
3900.145. Medication errors.
3900.146. Adverse reaction.
3900.147. Administration.
3900.148. Medication administration during facility sponsored off-grounds activities.
3900.149. Medication administration during off-grounds family visits.
3900.150. Medication administration training.
3900.151. Self-administration of medications.

§ 3900.141. Storage of medications.

(a) Prescription and over-the-counter medications shall be kept in their original containers.

(b) Prescription and potentially poisonous over-the-counter medications shall be kept in a locked area or container.

(c) Controlled prescription medications shall be kept in their original containers and stored separately from other medications within a locked container.

(d) Prescription and potentially poisonous over-the-counter medications stored in a refrigerator shall be kept in a separate locked container.

(e) Prescription and over-the-counter medications shall be stored separately.

(f) Prescription and over-the-counter medications shall be stored under proper conditions of sanitation, temperature, moisture and light.

(g) Discontinued and expired medications and prescription medications for children or youth who are no longer served at the facility shall be disposed of in a safe manner.

§ 3900.142. Labeling of medications.

(a) The original container for prescription medications must be labeled with a pharmacy label that includes the child's or youth's name, the medication name, the date the prescription was issued, the prescribed dosage and the name of the prescribing health care provider.

(b) Over-the-counter medications must be labeled with the original label.

(c) Naloxone must be maintained at the facility and be accessible to facility staff for use as indicated without a prescription or designated patient reflected on the label.

§ 3900.143. Use of prescription medications.

Prescription medications shall be used only by the child or youth for whom the medication was prescribed.

§ 3900.144. Medication log.

(a) Facility staff shall maintain a medication log for each child or youth that contains all of the following:

(1) A list of prescription medications.

(2) The prescribed dosage.

(3) Possible side effects.

(4) Contraindicated medications.

(5) Specific administration instructions, if applicable.

(6) The name of the prescribing health care provider.

(b) For each prescription and over-the-counter medication, including administered or self-administered insulin, documentation in the log shall include the medication that was administered, dosage, date, time and the name and signature of the person who administered or self-administered the medication.

(c) The information in subsection (b) shall be logged at the same time each dosage of medication is administered or self-administered.

(d) If a child or youth refuses to take the prescribed medication, steps taken by facility staff to consult with the child's or youth's prescribing health care provider and respond to the child's or youth's refusal, and any follow-up steps taken, shall be noted in the medication log and the child's or youth's file.

§ 3900.145. Medication errors.

(a) Documentation of medication errors shall be kept in the medication log. Medication errors include the failure to administer medication, administering the incorrect medication, administering the correct medication in an incorrect dosage and administering the correct medication at the incorrect time.

(b) Facility staff shall consult with the child's or youth's prescribing health care provider if the child or youth shows a reaction due to a medication error.

(c) After each medication error, the qualified individual administering medications shall take follow-up action to prevent future medication errors and document any medical direction obtained in the medication log.

§ 3900.146. Adverse reaction.

(a) If a child or youth has a suspected adverse reaction to a medication, facility staff shall notify the prescribing health care provider and the child's or youth's parent.

(b) The qualified individuals administering the medication shall maintain documentation of the child's or youth's adverse reactions, the prescribing health care provider's response and notifications made in the medication log and the child's or youth's record.

§ 3900.147. Administration.

(a) Prescription medications and injections of any substance shall be administered by one of the following qualified individuals:

(1) A licensed physician, licensed dentist, licensed physician assistant, registered nurse, certified registered nurse practitioner, licensed practical nurse or licensed paramedic.

(2) An approved nursing program graduate acting under the direct supervision of a professional nurse who is present in the facility.

(3) A student nurse from an approved nursing program acting under the direct supervision of a member of the nursing school faculty who is present in the facility.

(4) Facility staff who meet the criteria in § 3900.150 (relating to medication administration training) for the administration of oral, inhaled, topical, eye and ear drop prescriptions, diabetes medications and epinephrine injections for insect bites.

(5) A child or youth who meets the requirements in § 3900.151 (relating to self-administration of medications).

(b) Prescription medications and injections shall be administered according to the directions specified by a licensed physician, certified registered nurse practitioner or licensed physician assistant.

(c) Facility management shall ensure that an individual who meets the requirements in subsection (a) to administer medications is available either onsite or on call during all hours that children or youth are present at the facility.

§ 3900.148. Medication administration during facility sponsored off-grounds activities.

(a) Facility management shall develop and implement a policy and procedure addressing the safe management of children's and youths' medications during facility sponsored off-grounds activities. The policy and procedure shall address the following, at a minimum:

(1) A preference for scheduling activities so that medications can be administered before leaving the facility or after returning.

(2) Consultation with the prescribing health care provider about adjusting the medication administration times to accommodate the off-grounds event and the process to determine if it is possible to safely administer medications 1 hour before or 1 hour after the scheduled medication time. The qualified facility staff shall maintain documentation of the licensed practitioner's directions in the medication log.

(b) The qualified individual who administers a medication during a facility sponsored off-grounds activity shall be the same person who documents the medication administration upon return to the facility.

(c) Medications taken off grounds shall be clearly labeled with the child's or youth's name, the medication name and dose, the administration route and time of administration.

(d) Medications taken off grounds shall be stored and kept secure in compliance with § 3900.141 (relating to storage of medications).

(e) The qualified individual responsible for administering the medication during the off-grounds activity shall maintain the medication's security during the outing.

(f) Upon return to the facility, the qualified individual shall enter the necessary information in the medication administration log.

§ 3900.149. Medication administration during off-grounds family visits.

Facility management shall develop and implement a policy and procedure addressing the safe management and administration of a child's or youth's medications during a family home visit or family time away from the facility. The following apply:

(1) Facility staff shall document that the child's or youth's parent was provided with information that addresses the following:

(i) The medication sent with the child or youth.

(ii) Options to provide for the security of the medication during a family home visit or family time away from the facility.

(iii) The medication's purpose, potential side effects, administration directions and prescriber information.

(iv) Agreement to return refused or unused medication with the child or youth.

(2) Controlled medications shall be properly dispensed with the limited amount of medication necessary for the length of the home visit or family time away from the facility.

(3) Multiple dosage medication packs may not be routinely sent with the child or youth, with the exception of the following:

(i) Topical medication.

(ii) Inhalers.

(iii) Time-limited antibiotics.

(iv) Birth control pills.

(v) Epinephrine injections.

(vi) Liquid medications dispensed in a way that the pharmacy cannot dispense a limited number of doses accurately.

(4) Facility staff shall document the receipt of unused medications, if any, in the medication log and confirm with the parent that the medications were given to the child or youth as prescribed or that the child or youth refused to take them as offered.

§ 3900.150. Medication administration training.

(a) Facility staff who have completed and passed the department-approved medications administration course within the past 2 years are permitted to administer oral, topical and eye and ear drop prescription medications and epinephrine injections for insect bites.

(b) Facility staff who have completed and passed the department-approved medications administration course

and who have completed and passed a diabetes patient education program that meets the Standards for Diabetes Patient Education Programs of the Department of Health within the past 12 months are permitted to administer insulin injections.

(c) Facility management shall maintain documentation of the training in the facility's files, including the name of the person trained, the date, curriculum used, name of the trainer and the trainer's qualifications, and length of the training.

§ 3900.151. Self-administration of medications.

A child or youth is permitted to self-administer medications, insulin injections, inhalers and epinephrine injections for insect bites or other allergic reactions if the following requirements are met:

(1) A qualified individual who meets the requirements in § 3900.147(a)(1)—(4) (relating to administration), is physically present observing the administration and immediately records the administration in accordance with § 3900.144 (relating to medication log).

(2) The child or youth recognizes and distinguishes the medication and knows the condition or illness for which the medication is prescribed, the correct dosage and when the medication is to be taken.

Subchapter L. RESTRICTIVE PROCEDURES

Sec.
3900.161. Appropriate use of restrictive procedures.
3900.162. Restrictive procedure plan.
3900.163. Unanticipated use.
3900.164. Restrictive procedures staff training.
3900.165. Aversive conditioning.
3900.166. Pressure points.
3900.167. Chemical restraints.
3900.168. Physical restraints.
3900.169. Exclusion.
3900.170. Restrictive procedure records.

§ 3900.161. Appropriate use of restrictive procedures.

(a) A restrictive procedure may not be used for coercion or in a punitive manner, for the convenience of facility staff or as a program substitution, for discipline, punishment, retaliation, staff shortages, other administrative convenience or any reason other than as a temporary response to a child's or youth's behavior that poses a serious and immediate risk of physical harm to self or others.

(b) Limitations and situations related to the use of restrictive procedures for pregnant and postpartum children or youth and reporting requirements under 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting) shall apply to a child or youth who is in any stage of pregnancy, labor or delivery, who has given birth within the last 30 days and is in postpartum recovery, or who is being transported to a medical facility.

(c) With the exception of exclusion as specified in § 3900.169 (relating to exclusion), a restrictive procedure may be used only to prevent a child or youth from injuring themselves or others. Restrictive procedures required to prevent harm to self or others where less restrictive interventions have failed or the nature and timing of the emergency situation prevents the use of less restrictive interventions, does not constitute unreasonable restraint.

(d) Use of restrictive procedures shall conform to the trauma-informed approach adopted and implemented by the facility.

(e) For each incident in which use of a restrictive procedure is considered, all of the following apply:

(1) Every attempt shall be made to anticipate and de-escalate the behavior using methods of intervention that are less intrusive than restrictive procedures.

(2) A restrictive procedure may not be used unless less intrusive techniques and resources appropriate to the behavior have been tried without success.

(3) A restrictive procedure may not be used unless the emergency nature of the child's or youth's behavior prevents the use of less restrictive interventions.

(4) A restrictive procedure shall be discontinued when the child or youth demonstrates that they have regained self-control.

§ 3900.162. Restrictive procedure plan.

(a) An individualized restrictive procedure plan shall be written and included in the ISP specified in § 3900.191 (relating to content of the ISP), prior to use of restrictive procedures for each child or youth with a history of use of restrictive procedures within the past 6 months and for whom restrictive procedures may be needed.

(b) The restrictive procedure plan shall be developed within 24 hours of admission if the child's or youth's behavioral health history or their initial health and safety screening identifies the child or youth as being at greater risk of having restrictive procedures needed.

(c) The restrictive procedure plan shall be developed and revised with the participation of the child or youth, the child's or youth's parent, facility staff, contracting agency representatives, other appropriate professionals and any person invited by the child or youth and the child's or youth's parent.

(d) The restrictive procedure plan shall be reviewed at least every 6 months and revised as needed.

(e) The restrictive procedure plan shall be reviewed, approved, signed and dated by persons involved in the development and revision of the plan, prior to the use of a restrictive procedure, whenever the plan is revised and at least every 6 months. The child or youth and the child's or youth's parent shall be given the opportunity to sign the plan.

(f) The restrictive procedure plan shall include the following:

(1) Health and safety considerations and the child's or youth's trauma history.

(2) The specific behavior identified, suspected antecedents or reasons for the behavior and observable signals that occur prior to the behavior.

(3) The behavioral outcomes desired, stated in measurable terms.

(4) The methods for modifying or eliminating the behavior, such as changes in the child's or youth's physical and social environment, changes in the child's or youth's routine, improvement in communications, teaching skills and reinforcement of appropriate behavior.

(5) Trauma-informed considerations consistent with the trauma-informed approach adopted by the facility.

(6) The types of restrictive procedures that may be used and the circumstances under which the restrictive procedures may be used.

(7) The length of time the restrictive procedure may be applied, not to exceed the maximum time periods specified in this chapter.

(8) Known health conditions of the child or youth, including pregnancy and postpartum conditions, that may prohibit, limit or be affected by the use of specific restrictive procedures.

(9) The name of the facility staff responsible for monitoring and documenting progress with the restricted procedure plan.

(g) A restrictive procedure plan shall be implemented as written.

(h) A copy of the restrictive procedure plan shall be provided to the child's or youth's parent.

(i) Facility staff shall maintain a copy of the restrictive procedure plan in the child's or youth's record.

§ 3900.163. Unanticipated use.

If a restrictive procedure becomes necessary after the child or youth has not needed a restrictive procedure utilized for at least 6 months, § 3900.162 (relating to restrictive procedure plan) does not apply until after any type of restrictive procedure is used four times for the same child or youth in any 3-month period.

§ 3900.164. Restrictive procedures staff training.

(a) Facility staff who, as a result of their job responsibilities, may be involved in a restrictive procedure, directly or as an observer, shall complete training as required under § 3900.57(f)(5) (relating to staff training) and obtain and maintain certification in the use of restrictive procedures, using a professionally recognized, practice evidence-based curriculum.

(b) Training shall include all of the following:

(1) Child and youth development principles appropriate for the ages of the children and youth served, to understand normal behavioral reactions to stress at various ages.

(2) The relationship between behaviors, use of restrictive procedures and child and youth experienced trauma.

(3) Instructions on using de-escalation techniques and alternative nonrestrictive strategies as the initial step to defuse the situation.

(4) The value of addressing the child's or youth's feelings with them after use of a restrictive procedure.

(5) The proper use of the specific techniques or procedures that may be used.

(6) Techniques and procedures appropriate for the child's or youth's age and weight.

(7) Specific restrictive procedures applied directly on each facility staff and demonstration of the procedure by each facility staff.

(8) Child and youth health risks associated with the use of specific procedures.

(9) A testing process to demonstrate facility staff's understanding of and ability to apply specific procedures.

(10) Facility staff responsibilities as an observer to a restrictive procedure and facility staff roles in the debriefing process following use of a restrictive procedure.

(11) The purpose and value of prompt and thorough debriefing.

(c) Facility management shall maintain documentation of the training, including the name of the person trained, the date, curriculum used, name of the trainer and the trainer's qualifications, length of the training and copies of any certificates received, in the facility's files.

§ 3900.165. Aversive conditioning.

(a) The use of aversive conditioning on a child or youth is prohibited.

(b) As used in this section, the term "aversive conditioning" means the application of startling, painful or noxious stimuli.

§ 3900.166. Pressure points.

(a) Except as provided in subsection (b), the use of pressure point techniques on a child or youth are prohibited.

(b) The use of a pressure point technique that applies pressure at the child's or youth's jaw point for the purpose of bite release is permitted.

(c) As used in this section, the term "pressure point technique" means the application of pain for the purpose of achieving compliance.

§ 3900.167. Chemical restraints.

(a) Administration of a chemical restraint to a child or youth is prohibited, except for administration ordered by a licensed health care provider and administered by licensed, certified or registered medical personnel on an emergency basis.

(b) If a chemical restraint is administered as specified in subsection (a), all of the following apply:

(1) A licensed health care provider shall examine the child or youth and give a written order to administer the chemical restraint immediately prior to each incident of administering a chemical restraint on an emergency basis.

(2) Immediately prior to each re-administration of a chemical restraint on an emergency basis, a licensed physician shall examine the child or youth and order re-administration of the chemical restraint.

(c) If a chemical restraint is administered as specified in subsection (b), all of the following apply:

(1) The child's or youth's vital signs shall be monitored at least once each hour and in accordance with the frequency and duration recommended and documented by the prescribing physician.

(2) The child's or youth's physical needs shall be met promptly.

(d) A pro re nata order for controlling acute, episodic behavior is prohibited.

(e) Facility staff shall maintain documentation of compliance with subsections (a)—(d) in the child's or youth's record.

(f) As used in this section, the term "chemical restraint" means a drug that restricts a child's or youth's movement or function used to control acute, episodic behaviors. The term does not include a drug ordered by a licensed health care provider as part of ongoing medical treatment or as pretreatment prior to a medical or dental examination or treatment.

§ 3900.168. Physical restraints.

(a) The use of physical restraints that apply pressure or weight on the child's or youth's respiratory system are prohibited. Prone positioning, during which a child or youth is held face down on the floor, is prohibited.

(b) The use of a physical restraint that inhibits digestion, inflicts pain, causes embarrassment or humiliation, causes hyperextension of joints, applies pressure on the chest or joints or allows for a free fall to the floor on a child or youth is prohibited.

(c) The physical restraint position and the facility staff applying a physical restraint shall be changed at least every 10 consecutive minutes the physical restraint is applied.

(d) A facility staff who is not applying the physical restraint shall observe and document the physical and emotional condition of the child or youth at least every 10 minutes the physical restraint is applied.

(e) As used in this section, the term "physical restraint" means a physical hands-on technique that restricts the child's or youth's movement or function. This term does not include:

(1) A physical hands-on assist of any duration during which the child or youth does not physically resist.

(2) Verbal redirection.

(3) Physical prompts.

(4) Escorting and guiding a child or youth.

§ 3900.169. Exclusion.

(a) No form of exclusion is permitted for any reason other than as a temporary response to a child's or youth's behavior that poses a serious and immediate risk of physical harm to self or others. A child or youth in exclusion shall be released as soon as the serious and immediate risk of physical harm abates.

(b) Facility management shall comply with 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting) if a pregnant or postpartum child or youth is placed in exclusion.

(c) Before a child or youth can be placed in exclusion, facility staff shall do the following:

(1) Explain the reason for the isolation to the child or youth.

(2) Inform the child or youth that release will occur as soon as the child or youth regains self-control and the serious and immediate risk of physical harm is no longer present.

(d) Exclusion may not be used for more than 60 minutes, consecutive or otherwise, within a 2-hour period.

(e) A child or youth may not be subject to exclusion more than four times within a 24-hour period.

(f) A facility staff shall observe a child or youth in exclusion at least every 5 minutes.

(g) A room or area used for exclusion must have the following:

(1) At least 40 square feet of indoor floor space.

(2) A minimum ceiling height of 7 feet.

(3) An open door or a window for observation.

(4) Lighting and ventilation.

(5) No items that might injure a child or youth.

(h) As used in this subsection, the term "exclusion" means a child's or youth's involuntary isolation or removal from the child's or youth's immediate environment and restricting the child or youth alone to a room or area. The term does not include:

(1) A situation in which a facility staff remains in the exclusion area with a child or youth.

(2) A child or youth voluntarily choosing to move to and remain by themselves in an area to self-regulate.

§ 3900.170. Restrictive procedure records.

(a) Facility staff shall maintain documentation in both an electronic restrictive procedures log and the child's or youth's record each time a restrictive procedure is used, including emergency use. This documentation shall include all of the following:

(1) The specific behavior addressed.

(2) The less intrusive intervention methods used to address the behavior.

(3) Circumstances that led to the restrictive procedure being used.

(4) The date, time and facility location the procedure was used.

(5) The specific procedure or procedures used.

(6) The facility staff involved in the restrictive procedure.

(7) The restrictive procedure's duration.

(8) The facility staff who observed the child or youth during the restrictive procedure.

(9) The child's or youth's condition after the restrictive procedure ends.

(b) Facility management shall develop and implement a process to support debriefing following each restrictive procedure as follows:

(1) Participants in this debriefing process shall include, at a minimum, the child or youth and facility staff involved and the residential program supervisor.

(2) The debriefing process shall occur within 48 hours following the end of the restrictive procedure to provide an opportunity to address any staffing, training, physical site or program-related components regarding the cause and resolution of the restrictive procedure event.

(c) Facility staff shall maintain a record of the restrictive procedure event as required in subsection (a). The restrictive procedure record shall include the outcomes of the debriefing process, including identifying any necessary modifications to facility policies or procedures, facility operations, staffing and supervisory patterns, interventions used or staff, child or youth training needed.

(d) Facility management shall establish a policy related to the analysis and use of restrictive procedures data as part of a continuous quality improvement process.

(e) Facility staff shall incorporate the debriefing findings and related data into the facility quality improvement process.

(f) Facility staff shall maintain a record of aggregate data relevant to restrictive procedure events in an electronic restrictive procedures data log. This record shall

reflect facility data addressing the elements required under this section and include child, youth, staff and site-specific experiences.

(g) Facility management shall make facility-specific analysis of compiled aggregate data, and any quality improvement plans developed based on the analysis, available to the department on an annual basis at the time of licensure renewal.

(h) Facility management shall make aggregate restrictive procedures data available to the department within 2 business days upon request.

(i) Facility staff shall notify a child's or youth's parent of the use of a restrictive procedure within 4 hours of use ending and document that notice in the child's or youth's record.

Subchapter M. SERVICES

Sec.
3900.181. Supporting family contact and involvement.
3900.182. Family time and home visit follow-up.
3900.183. Child and youth involvement.
3900.184. Youth training.
3900.185. Description of services.
3900.186. Procedures upon return of a missing child or youth to the facility.
3900.187. Screening for sex trafficking experiences.
3900.188. Assessments for sex trafficking experiences.
3900.189. Treatment planning for victims of sex trafficking.
3900.190. Development and implementation of the ISP.
3900.191. Content of the ISP.
3900.192. Review and revision of the ISP.
3900.193. Copies of the ISP.
3900.194. Education.
3900.195. Transfer or discharge.

§ 3900.181. Supporting family contact and involvement.

(a) Facility management shall develop and implement policies to support contact between the child or youth and those individuals, including parents, guardians, former caregivers, siblings and other persons the child or youth identifies as having a positive, significant connection with them.

(b) Facility management shall develop and implement policies to support family involvement in service and treatment planning, visitation, educational programming and discharge planning.

(c) The facility policies referenced in subsection (b) shall be reflected in the program description.

(d) Facility policies including those referenced in subsection (b), as well as grievance procedures, discipline, person and property search procedures, parental notification options, family time and home visits, restrictive procedures and emergency preparedness shall be included in the information packets provided to the family and the child or youth at admission.

(e) The facility's family involvement policies shall address all of the following:

(1) How facility staff will communicate with a child's or youth's family regarding health care scheduled and provided, reportable incidents filed, restrictive procedures used, ISP and discharge planning meetings.

(2) The process for phone, virtual or in-person contact between the child or youth and family members following placement at the facility.

(3) That contact is not restricted during the initial period following placement or as a disciplinary measure.

(4) Specifics related to the location, scheduling and duration of family visits, facility process and point of contact to arrange for visits.

(5) Criteria used to determine on-site, off-site and unsupervised visitation locations.

(6) The process for providing the child's or youth's medication for use during home visits and related documentation requirements.

(7) Options for increasing contact frequency and duration as addressed in the child's or youth's ISP, permanency or service plans, and discharge plans.

(8) Home pass procedures for children or youth who are adjudicated delinquent, if applicable.

(f) Facility management shall identify a facility staff point of contact for the child's or youth's family to support the coordination of contacts and visits, as well as the exchange of information and updates.

(g) Facility management shall comply with court orders that restrict contact by identified individuals and may consider clinical appropriateness of contact with identified individuals based on the child's or youth's history.

(h) Facility staff shall demonstrate efforts to support meaningful family engagement and involvement, reflecting the child's or youth's definition of family. These efforts shall reflect facility policies, court directives and deference to contracting agency preferences to exercise a lead role in coordination and communication with family members.

(i) A copy of the contact and visitation policies shall be posted in an easily accessible and visible location at the facility.

(j) Facility staff shall inform each child or youth and the child's or youth's parent of the facility's policies in an easily understood manner, and in the child's or youth's and the child's or youth's parent's primary language or mode of communication. A copy of the facility's policies shall be given to the child or youth and the child's or youth's parent upon admission.

(k) Facility staff shall maintain documentation of a statement signed by the child or youth and the child's or youth's parent acknowledging receipt of a copy of the information specified in subsection (d), or documentation of facility staff efforts made to obtain the signature, in the child's or youth's record.

(l) Facility staff shall work with the contracting agency to support family finding efforts and support any potential identified connections for the child or youth if no family members are initially identified by the contracting agency.

§ 3900.182. Family time and home visit follow-up.

(a) Facility family time and visitation policies shall include requirements for facility staff to check-in with the child or youth and the child's or youth's parent during a family visit that occurs away from the facility.

(b) Facility staff shall initiate at least one attempted and documented verbal contact with the child or youth and the child's or youth's parent every 24 hours during family time and a home visit.

(c) Facility staff shall initiate an additional discussion with the child's or youth's parent regarding the home visit or family time experience within 2 business days after a child or youth returns to the facility, unless a concern or

issue that identifies a risk to the child's or youth's health or safety is shared by the child or youth requiring a more rapid follow-up.

(d) Facility staff shall initiate a focused discussion with the child or youth within 72 hours of the child's or youth's return to the facility to review their experiences while with the child's or youth's parent and family.

(e) Facility staff shall maintain documentation in the child's or youth's record of the information shared by the child or youth and the child's or youth's parent about the child's or youth's home visit or family time experience while away from the facility.

(f) Facility staff shall document unsuccessful attempts to communicate with the child or youth and the child's or youth's parent during a home visit. Facility staff shall also communicate this lack of contact to the contracting agency.

§ 3900.183. Child and youth involvement.

(a) Facility management shall develop and implement policies that address the following:

(1) The process to encourage and maintain open communication between facility staff and a child or youth, respecting appropriate interpersonal and confidentiality boundaries.

(2) How a child or youth is provided with opportunities to be directly involved in their case planning process and decisions that affect and concern their lives.

(3) How age and developmentally appropriate opportunities for social, cultural, extracurricular and enrichment activities and experiences are supported by facility staff, including identification of potential options post-discharge.

(4) How a child or youth is engaged by facility staff in planning for their academic education or vocational development, consistent with Federal and State requirements.

(5) How a child or youth is provided with opportunities to work and develop job skills at an age-appropriate level, consistent with State laws and as may be reasonably accommodated.

(6) How a child or youth is supported to receive appropriate life skills training and independent living services to prepare the youth for the transition to adulthood, consistent with Federal and State laws.

(7) How a child or youth who is adjudicated delinquent has opportunities to engage in activities that allow them to earn money and complete community service hours to meet their restitution obligations.

(8) How a child or youth who is adjudicated delinquent has opportunities to be engaged in activities to increase their awareness of the impacts of their action on their victims.

(9) How a child or youth who is adjudicated delinquent has opportunities to engage in programming that addresses the child's or youth's identified risks and needs.

(10) How a youth who is adjudicated delinquent has opportunities to develop vocational skills and certifications to prepare the youth for employment.

(b) Facility staff shall demonstrate meaningful age and developmentally appropriate child and youth engagement in case planning activities including efforts to support a successful transition to adulthood, self-sufficiency and re-integration in the community, as applicable.

§ 3900.184. Youth training.

(a) Facility management shall select or develop and deliver training and educational supports to youth that address the following:

(1) Sex trafficking warning signs.

(2) Grooming techniques and risks.

(3) Personal and social media safety.

(4) Relationship boundaries.

(5) Developing healthy connections.

(b) These trainings shall be presented using a child-friendly or youth-friendly curriculum.

(c) Specific topics related to sex trafficking that shall be addressed in training sessions for youth include the following:

(1) What it means to be trafficked and grooming techniques used by traffickers.

(2) Personal, community and social safety, including social media and technology.

(3) Boundaries and relationships, safe dating and healthy sexual relationships.

(4) Coping skills and benefits of delayed gratification.

(5) Value of being independent, including positive decision making and socialization.

(6) Self-esteem and self-love.

(7) Meeting personal mental health, drug and alcohol treatment needs.

(8) Safety and normalcy related to use and possession of personal cell phones and belongings.

(d) In addition to the requirements in subsection (c), meaningful age and developmentally appropriate training on youth rights and facility grievance procedures shall be provided to youth at admission, as a youth's ISP is being developed, and as part of each ISP review. This requirement does not limit facility management from offering similar training in a group setting jointly to youth and staff.

(e) Training for youth shall also address the facility's policy related to searches of person and property addressed in § 3900.41 (relating to person and property searches).

(f) Additional topics to be addressed in training sessions for youth adjudicated delinquent include the following:

(1) Decision making and logical consequences.

(2) Vocational and employment opportunities and related skills and education required.

(3) Anger and frustration management.

(g) Training sessions shall include the educational programming topics listed for a pregnant or postpartum child or youth in 42 Pa.C.S. § 6384(c) (relating to training and education requirement).

(h) Facility-defined qualifications of individuals delivering these trainings, who may include facility staff, shall be reflected in the program description.

(i) Facility staff may also attend these training sessions with youth, who may be included for purposes of meeting staff training requirements.

(j) Facility management shall document in the facility's files all training completed, including the name of the facility staff or youth trained, date, source, facility-defined qualifications of the trainer, content, length of each course and copies of any certificates received. Youth attendance at the training sessions shall also be documented in the youth's record.

§ 3900.185. Description of services.

(a) Facility management shall develop a program description for each child residential or secure service provided. The description shall be made available to the department and the contracting agency. A program description may apply to more than one facility.

(b) The written program description shall include the following:

(1) A description of the program activities, objectives and anticipated outcomes.

(2) The criteria and procedures for accepting a child or youth into the program, including the admissions process.

(3) A description of the number and types of children and youth served, including age, sex and significant emotional or behavioral characteristics and identified emotional, medical or behavioral needs of a child or youth, including pregnancy, that the facility cannot meet.

(4) The methods by which the program services are delivered and whether the services are provided directly by the facility or through written agreement with another agency.

(5) The number and qualifications of facility staff responsible for providing daily child and youth supervision and the individual and group program services, including identification of the person responsible for administering the program.

(6) Information related to the trauma-informed approach adopted by the facility, which includes all of the following:

(i) A detailed description of the trauma-informed approach.

(ii) Confirmation of the facility staff trauma-informed training and credentialing, if required by the model.

(iii) The process to address monitoring conformity to the model adopted.

(iv) Incorporation of the trauma-informed approach in policies, procedures and interactions with children and youth in the facility.

(7) Specialized training provided to facility staff and children and youth, as appropriate, on sex trafficking awareness, assessment and screening practices, reporting requirements and social media and cyber security cautions.

(8) The process to provide screening, assessment and services for victims and children and youth at risk of becoming victims of sex trafficking.

(9) The degree and method of family and youth involvement in the program and methods used to maintain family involvement and support family contacts.

(10) Other professional services available to a child or youth, including psychological and psychiatric services and support groups, identifying each of the following:

(i) The number of professionals available to provide the service.

(ii) The average number of hours per week the service is available.

(11) Behavior management policies and techniques, including policies related to search of persons and property.

(12) Grievance policies and the process used to address and resolve issues.

(13) Discipline practices followed by facility staff in accordance with policies established by the facility management.

(14) Educational or vocational training services provided by the facility or available in the community.

(15) Age and developmentally appropriate recreational and enrichment activities, including community-based opportunities, if applicable.

(16) Life skills, enrichment and personal safety training sessions available to children or youth.

(17) Policies and arrangements regarding religious and cultural observances.

(18) Policies and arrangements to provide physical health care services.

(19) Details of any evidence-based practices adopted by the facility, including the following:

(i) A detailed description of the evidence-based practice.

(ii) Confirmation of facility staff qualifications and training as required by the model.

(iii) The process to monitor fidelity to the model.

(iv) Incorporation of the evidence-based practice in policies, procedures and interactions with children and youth in the facility.

(20) Enhanced physical site safety or personal safeguards incorporated into facility programming, including runaway prevention planning.

(21) Policies and practices addressing the child's or youth's safe use of personal and facility cell phones and access to the Internet if children and youth are permitted cell phone or Internet access at the facility. These policies shall include the following:

(i) Device-free locations within the facility.

(ii) Time restrictions on cell phone use and Internet access.

(iii) Boundaries established with child or youth input defining cell phone and Internet access as a privilege versus a right.

(iv) Options for children and youth to earn time and access to social media.

(22) Special program components and admission procedures addressing emergency or unplanned placements, if accepted by the facility.

(23) Discharge planning and teaming processes, including transition and aftercare services, if applicable.

(24) The facility emergency preparedness plan to prepare for, respond to and recover from a disaster, disease outbreak or other emergency.

(25) The quality improvement process used by the facility to analyze and evaluate data to determine needed changes or improvements.

(26) The policies and procedures regarding locations, use and maintenance of the system and retention of and access to the security footage if a facility is required or voluntarily chooses to install and use a video surveillance system as addressed in § 3900.88 (relating to video surveillance system).

(c) Facility management serving children or youth who are adjudicated delinquent shall also include the following information in its policies and procedures:

(1) Interventions available to directly respond to child's or youth's identified risks and needs in the identified domains, including the recommended dosage and duration of programming.

(2) Opportunities for a child or youth to engage in community service and paid activities as restitution options.

(3) Other internal programming addressing juvenile justice priorities and related subcontracted or community-based services accessed.

(d) Facility management shall operate the program in accordance with the information in the program description required under subsections (b) and (c).

(e) Facility management shall review the program description annually and modify it when needed.

(f) If a program description developed under subsection (a) is modified, resulting in changes to the program's scope of services, facility management shall give written notice of the modification to the department and the contracting agency within 30 days of the change.

§ 3900.186. Procedures upon return of a missing child or youth to the facility.

(a) Facility management shall develop and implement policies and procedures related to the process to be followed when a missing child or youth returns to the facility.

(b) These policies and procedures shall include the following:

(1) How facility staff will address the child's or youth's immediate basic physical needs.

(2) How a visual screening of the child or youth will be completed to check for injuries, new tattoos or markings.

(3) How additional medical evaluations will be arranged, if needed.

(4) How sight and sound checks will be conducted every 15 minutes until updates to the child's or youth's health and safety plan and ISP, including notification to staff of changes, can be completed.

(5) The content of the plan's updates and staff supervision level needed based on the reasons the child or youth ran away or went missing, including the following:

(i) The importance of the child's or youth's connections with friends, family and the community.

(ii) The child's or youth's need for normalcy and the arbitrary ending of relationships while in placement.

(iii) Services and supports directed to reducing the risks of repeated running away and returning.

(iv) Options for the child or youth to develop healthy interpersonal connections.

(v) Facility staff efforts to address safe parameters and boundaries with the child or youth.

(6) Facility staff responsible for notification to law enforcement, the contracting agency and other identified parties regarding the child's or youth's return within 8 hours of the child's or youth's return. These notifications shall be documented in the child's or youth's record.

(7) Facility staff responsible for a follow-up conversation with the child or youth within 24 hours of the child or youth's return to gather information related to the child's or youth's experiences, locations and other persons involved and triggers that caused the child or youth to leave the facility without approval.

(8) Facility staff responsible for completing a sex trafficking screening.

(9) Facility staff responsible for identifying where the child or youth was staying while away from the facility.

(10) Facility staff responsible for making the determination as to whether a sex trafficking assessment is needed based on the screening findings and where a referral for this assessment will be directed.

(11) The facility debriefing process addressing runaway prevention efforts, including identification of service gaps or other issues related to the child's or youth's motivation to run and staff attempts to intervene.

(c) Facility staff shall maintain documentation of actions taken to implement facility policies addressing a missing child's or youth's return to the facility reflecting resolution of the incident in the facility's reportable incident files and the child's or youth's record.

(d) Updates shall be made to the child's or youth's ISP no later than at the next monthly review, addressing the reasons why the child or youth ran away, steps taken to prevent a repeat episode and how healthy peer relationships will be supported.

§ 3900.187. Screening for sex trafficking experiences.

(a) Facility staff shall screen a child or youth for sex trafficking experiences at the contracting agency's request.

(b) Facility management shall adopt a sex trafficking screening tool and facility staff shall be trained to administer the screening and accurately record the information gathered. Only those facility staff who have been specifically trained may complete a sex trafficking screening.

(c) Facility staff shall provide or arrange for a sex trafficking assessment if indicated by the screening results.

(d) Facility staff shall maintain documentation of the completed screening, and referral for assessment if indicated, in the child's or youth's record.

§ 3900.188. Assessments for sex trafficking experiences.

(a) Facility clinicians or specifically trained facility staff shall complete a sex trafficking assessment at the contracting agency's request after a child or youth returns to the facility from a runaway episode or as needed during the child's or youth's placement.

(b) Facility clinicians or specifically trained facility staff shall initiate referrals for treatment related to sex trafficking experiences as needed with documentation of these referrals reflected in the child's or youth's ISP and child's or youth's record.

(c) Facility clinicians and designated facility staff responsible for completing sex trafficking assessments shall complete training offered by the county agency or local Child Advocacy Center prior to any assessment being completed.

(d) Sex trafficking assessment training shall include information about available, relevant and accessible community-based services that are prepared to respond to the child's or youth's specific needs identified in the assessment.

(e) This assessment training may be counted toward the 42 hours of annual mandatory staff training required under § 3900.57 (relating to staff training).

(f) Facility management shall maintain documentation in the facility's training records of the person trained, date, identification of the trainer and the trainer's credentials, assessment training content, length of each course and copies of certificates received.

§ 3900.189. Treatment planning for victims of sex trafficking.

(a) Facility management shall develop a component in the program description that addresses the development of an individualized trauma treatment plan for each child or youth identified as a victim of sex trafficking.

(b) Facility program policies shall specifically address the sex trafficking victim's needs for safety, confidentiality and trauma-informed treatment.

(c) Facility program descriptions shall address internal agency and community-based treatment and intervention options, community connections, the teaming and referral process and how services will be delivered for sex trafficking victims.

(d) Facility staff shall directly provide or initiate a referral and arrange for services to meet the child's or youth's individualized needs within 48 hours of a child or youth being identified as a victim of sex trafficking through assessment, child or youth disclosure, or identification by law enforcement, that address the following:

(1) Mental health treatment focused on victimization and related trauma.

(2) Medical screening by a trauma-sensitive provider.

(3) Drug and alcohol screening and services, if applicable.

(4) Independent living, self-awareness and skill-based daily living training.

(5) Permanency and reunification planning.

(e) Training for facility staff shall address the special safety considerations of protecting the child's or youth's identity and confidentiality, including considerations in making connections with community resources offering treatment.

§ 3900.190. Development and implementation of the ISP.

(a) Facility staff shall develop an ISP for each child or youth within 30 calendar days of the child's or youth's admission.

(b) Facility staff shall develop the ISP with input from the child or youth, the child's or youth's parent, the juvenile probation officer, as applicable, or other contracting agency representative, facility staff, other appropriate professionals and any person invited by the child or youth and the child's or youth's parent.

(c) The meeting to address the development of the ISP shall be scheduled at a time and location convenient for the child or youth and the child's or youth's parent to support family involvement. This meeting may be virtual if more convenient for the child's or youth's parent.

(d) Facility staff shall maintain documentation in the child's or youth's record of efforts made to involve the child's or youth's parent and representatives from the contracting agency in the development of the ISP.

(e) Persons who participated in the development of the ISP shall sign and date the ISP, with those who participated electronically noted to verify their participation and involvement.

(f) The child's or youth's or the child's or youth's parent's concerns or areas of disagreement with specific ISP goals or objectives shall be documented by facility staff on the form.

(g) The ISP shall be implemented as written.

§ 3900.191. Content of the ISP.

(a) The ISP shall address the child's or youth's daily supervision needs.

(b) The ISP shall address the treatment needs and services that will be provided to the child or youth.

(c) A child's or youth's ISP shall include the following:

(1) Team members involved in the planning process, including the child or youth, the child's or youth's parent, contracting agency representatives and any person invited by the child or youth and the child's or youth's parent.

(2) The child's or youth's behavioral, social, recreational, daily activity and life skills, and physical and behavioral health needs.

(3) Measurable and individualized goals and time-limited objectives for the child or youth which relate to the child's or youth's assessed needs.

(4) A component addressing the child's or youth's trauma history and supports available to the child or youth to address their specific experiences.

(5) Specific activities and services planned to achieve the child's or youth's established goals and objectives including, at a minimum, a description of educational, vocational and specialized treatment activities in which the child or youth will participate.

(6) A runaway prevention plan, if applicable.

(7) A contact and visitation schedule with identified family members and clear expectations of all individuals involved in supporting the child's or youth's family connections.

(8) A component addressing family and child or youth involvement and the development and implementation of their ISP.

(9) Services, both internal facility and community-based, and training that meet the child's or youth's needs, including the child's or youth's need for safety, well-being, accountability, competency development and permanency, as applicable.

(10) A restrictive procedure plan, if appropriate.

(11) A plan to support the child's or youth's access to and use of their personal funds maintained by facility staff.

(12) A plan to provide parenting education if the youth has an infant or toddler who is not living with them at the facility.

(13) A component addressing how the child's or youth's educational needs will be met in accordance with applicable Federal and State laws and regulations.

(14) The anticipated duration of stay at the facility.

(15) A discharge or transfer plan. For a youth 14 years of age or older, this plan shall include programs and services to help the youth prepare for transition from the facility to independent living.

(d) For a child or youth adjudicated delinquent, the ISP shall also include all of the following:

(1) Referrals, ongoing risks and needs, and related interventions available to respond to the youth's needs.

(2) Visitation and contact plan with family, including a record of the length of contacts and visits as they occur.

(3) Specific activities to be employed to address balanced and restorative justice goals.

(4) Restitution funds earned and available.

(e) Facility management shall develop and implement policies and procedures to address all of the following:

(1) Monthly documentation of the child's or youth's progress on each goal.

(2) Methods used to measure progress on the ISP, including the facility staff responsible for measuring progress and the objective criteria.

(3) The facility staff responsible for implementing the ISP or coordinating the ISP's implementation.

§ 3900.192. Review and revision of the ISP.

(a) Facility staff shall convene team meetings to support timely ISP review and revision, as changes to the ISP are needed to respond to a child's or youth's emerging needs.

(b) The child's or youth's team shall complete a progress review on the ISP components and revisions to the ISP, if necessary, at least every 6 months.

(c) Team members shall make more frequent ISP revisions as necessary and as emerging issues are identified.

(d) The ISP shall be revised in accordance with subsection (a) if there has been no progress on a goal, if a goal is no longer appropriate or if a goal needs to be added.

(e) The child's or youth's team shall review and revise the ISP in accordance with § 3900.190(b)—(f) (relating to development and implementation of the ISP).

§ 3900.193. Copies of the ISP.

(a) Copies of the ISP, revisions to the ISP and monthly documentation of progress shall be provided to the youth, the child's or youth's parent, the contracting agency and person who participated in the ISP's development and revisions.

(b) Facility staff shall maintain copies of the ISP, revisions to the ISP and monthly documentation of progress in the child's or youth's record.

§ 3900.194. Education.

(a) Each child or youth of compulsory school age shall participate in a Department of Education-approved school program or an educational program which complies with the State law requirements relating to student attendance, special education services and programs, and protected students with disabilities while in placement at the facility.

(b) Facility staff shall actively participate in discussions regarding the child's or youth's education, convened by the local educational authority or county agency, in compliance with the education plan as developed.

§ 3900.195. Transfer or discharge.

(a) Facility management shall develop and adhere to a comprehensive discharge planning process structured to support permanency, long-term stability and successful outcomes for a child or youth, including policies addressing the exchange of information with the family and family notifications, if applicable.

(b) The discharge planning process shall begin as of the date of admission and shall include the following:

(1) Individualized teaming efforts, with the opportunity for the child or youth to identify participants to act as their representatives in the planning process.

(2) Confirmation that each child or youth is an active participant in their own discharge planning process, which includes the input offered by their team to address needs and identify supports.

(3) Viable concurrent discharge planning that includes potential discharge resources and community connections.

(4) Community connections for physical and behavioral health services and insurance coverage information.

(5) Competencies developed, intervention programming completed and certifications earned, if applicable.

(6) An updated inventory of the child's or youth's personal belongings and the process through which the items, clothing and personal documents will be returned to the child or youth.

(c) Facility staff shall inform and, when possible, discuss with the child's or youth's parent the recommended transfer or discharge plan prior to the child's or youth's transfer or discharge.

(d) Facility staff shall maintain documentation of the discharge plan in the child's or youth's record.

(e) In the event of an unplanned or emergency discharge and return home, the facility staff shall make the information listed in subsection (b) available to the child or youth and the child's or youth's parent within 48 hours. If an emergency transfer is to another placement setting, the facility staff shall make that information listed in subsection (b) available to the receiving agency within 48 hours.

(f) Facility staff shall maintain documentation in the child's or youth's record of discussions with the child's or youth's parent and transmission of the discharge or transfer information in subsection (c) to a child or youth, the child's or youth's parent or the receiving agency.

Subchapter N. CHILD AND YOUTH RECORDS

Sec.
3900.201. Emergency information.
3900.202. Records.
3900.203. Content of records.
3900.204. Record retention.

§ 3900.201. Emergency information.

(a) A child's or youth's emergency information shall be easily accessible by facility staff both at the facility and while the child or youth is with facility staff away from the facility.

(b) Emergency information for each child or youth shall include all of the following:

(1) The name, address, telephone number and relationship of a designated person to be contacted in case of an emergency.

(2) The name, address and telephone number of the child's or youth's physician or source of health care and health insurance information.

(3) The name, address and telephone number of the person able to give consent for emergency medical treatment.

(4) A copy of the child's or youth's most recent health examination.

§ 3900.202. Records.

(a) A separate record shall be kept for each child or youth.

(b) Entries in a child's or youth's record shall be legible and dated and signed by the person making the entry.

§ 3900.203. Content of records.

(a) Each child's or youth's record shall include all of the following:

(1) Personal information which includes all of the following:

(i) The child's or youth's name, gender, gender identity, preferred name and pronouns, admission date, birth date and Social Security number.

(ii) The child's or youth's race, ethnicity, height, weight, hair color, eye color and identifying marks.

(iii) A dated photograph of the child or youth taken within the past year.

(iv) Language or means of communication spoken and understood by the child or youth and the primary language used by the child's or youth's family, if other than English.

(v) The child's or youth's religious affiliation.

(vi) The name, address and telephone number of the person to be contacted in the event of an emergency.

(2) Health records which include all of the following:

(i) Health history.

(ii) Current physical exam.

(iii) Current medications.

(iv) A record of seizures, if applicable.

(v) A record of suicidal gestures, if applicable.

(vi) Injuries, traumas and illnesses for which treatment was provided to the child or youth by medical personnel internal or external to the facility.

(vii) Dental, vision and hearing records.

(3) Health and safety admission screening.

(4) ISPs, once developed.

(5) Restrictive procedure plans.

(6) Restrictive procedure records.

(7) Copies of reportable incidents.

(8) Copies of investigations of grievances filed by a child or youth or the child's or youth's parent which were determined to be unsubstantiated.

(9) Consent to treatment, as specified in § 3900.19 (relating to consent to treatment).

(10) Court orders.

(11) Placement information specified in § 3900.185 (relating to description of services).

(12) Signed notification of rights, grievance procedures, discipline policy and applicable consent to treatment protections specified in § 3900.31 (relating to notification of rights and grievance procedures).

(13) Contracting agency service records.

(14) Education records.

(b) A child's or youth's record shall be maintained in an area easily accessed by facility staff. A child's or youth's record shall be kept in a locked location when unattended.

§ 3900.204. Record retention.

A child's or youth's record shall be retained for at least 7 years following the child's or youth's discharge from the facility, or until any audit or litigation is resolved, whichever occurs later.

Subchapter O. SANCTIONS

Sec.
3900.211. Sanctions.

§ 3900.211. Sanctions.

In addition to the sanctions available under Chapter 20 (relating to licensure or approval of facilities and agencies), the department may implement the following sanctions for noncompliance with this chapter, Chapter 20 and Chapters 3910 and 3920 (relating to child residential facilities; and secure residential and secure detention facilities for youth). Upon issuance of a licensing revocation or a downgrade of licensure status to a provisional license, the department may take he following actions:

(1) Prohibiting admissions at a facility.

(2) Ordering the appointment of a master as approved by the department, at the facility's expense and not eligible for reimbursement from the department, to manage and direct the facility's operational, program and fiscal functions.

CHAPTER 3910. CHILD RESIDENTIAL FACILITIES

Subchap.
A. GENERAL REQUIREMENTS
B. CHILD RESIDENTIAL REQUIREMENTS
C. SPECIALIZED SETTING PROGRAMMING FOR PREGNANT, EXPECTING AND PARENTING YOUTH
D. OUTDOOR PROGRAMS

Subchapter. A. GENERAL REQUIREMENTS

Sec.
3910.1. Purpose.
3910.2. Applicability.
3910.3. Exemptions.
3910.4. Definitions.
3910.5. Licensure or approval.
3910.6. Waivers.

§ 3910.1. Purpose.

The purpose of this chapter is to protect the health, safety and well-being of children and youth receiving care in a child residential facility through the formulation, application and enforcement of minimum licensing requirements.

§ 3910.2. Applicability.

(a) This chapter applies to child residential facilities, except as provided in § 3910.3 (relating to exemptions).

(b) This chapter contains the additional minimum requirements that shall be met to obtain a certificate of compliance to provide child residential care in this Commonwealth in any of the facilities listed in subsection (d).

(c) This chapter applies equally to profit, nonprofit, publicly funded, privately funded, religious and nonreligious operated facilities.

(d) This chapter applies to all of the following:

(1) A premise or part thereof, operated in a 24-hour living setting in which care is provided for one or more children or youth who are not relatives of the facility operator, except as provided in § 3910.3.

(2) Child residential facilities that are located in a fixed structure or configured as a non-mobile outdoor setting.

(3) Emergency shelter programs.

(4) Child residential specialized setting facilities that serve pregnant, expecting and parenting youth and their infants and toddlers.

§ 3910.3. Exemptions.

This chapter does not apply to the following:

(1) Child residential facilities and child day treatment facilities operated directly by the department.

(2) Child residential facilities that are secure residential facilities or secure detention facilities for children or youth.

(3) Transitional living facilities with more than one transitional living residence in the same building.

(4) Residential camps for children or youth who are enrolled in a grade or educational level higher than kindergarten which operate for fewer than 90 days per year.

(5) Residential children's schools licensed and operated solely as private academic schools or registered and operated solely as nonpublic nonlicensed schools by the Department of Education.

(6) Foster care homes licensed under Chapter 3700 (relating to foster family care agency).

(7) Family living homes for children with an intellectual disability that are licensed under Chapter 6500 (relating to life sharing homes).

(8) Community homes serving people with an intellectual disability or autism licensed under Chapter 6400 (relating to community homes for individuals with an intellectual disability or autism).

(9) Community residences for individuals with mental illness that provide care to both children and adults in the same facility or community residential host homes for individuals with mental illness that are certified under Chapter 5310 (relating to community residential rehabilitation services for the mentally ill).

(10) Drug and alcohol residential facilities that provide care exclusively to residents whose sole need is the treatment of drug and alcohol dependence and that are licensed under 28 Pa. Code Chapters 701, 704 and 709 (relating to general provisions; staffing requirements for drug and alcohol treatment activities; and standards for licensure of freestanding treatment facilities).

(11) Private homes of persons providing care to a relative, except homes in which youth live with their own children but no other relative.

§ 3910.4. Definitions.

The following words and terms, when used in this chapter, have the following meanings, unless the context clearly indicates otherwise:

Admission—The term as defined in § 3900.5 (relating to definitions).

CPSL—The Child Protective Services Law—Chapter 63 of 23 Pa.C.S. (relating to Child Protective Services Law).

Child—The term as defined in § 3900.5.

Child residential facility—The term as defined in § 3900.5.

County agency—The term as defined in § 3900.5.

Delinquent child—The term as defined in 42 Pa.C.S. § 6302 (relating to definitions).

Department—The Department of Human Services of the Commonwealth.

Department of Education—The Department of Education of the Commonwealth.

Dependent child—The term as defined in 42 Pa.C.S. § 6302.

Disability—The term as defined in § 3900.5.

Early intervention services—The term as defined in § 3900.5.

Emergency shelter program—The term as defined in § 3900.5.

Facility—The term as defined in § 3900.5.

Facility management—The term as defined in § 3900.5.

Facility staff—Individuals employed by the facility in positions described in this chapter and Chapters 3900 and 3920 (relating to child and youth facility requirements; and secure residential and secure detention facilities) who provide supervision and services to children and youth placed at a child residential facility.

Family member—The term as defined in § 3900.5.

ISP—Individual Service Plan—The term as defined in § 3900.5.

Juvenile Act—Chapter 63 of 42 Pa.C.S. (relating to Juvenile Act).

Outdoor program—The term as defined in § 3900.5.

Parent—The term as defined in § 3900.5.

Placement—The term as defined in § 3900.5.

Pregnant, expecting or parenting youth—The term as defined in § 3900.5.

Provide or arrange—The term as defined in § 3900.5.

RPPS—reasonable and prudent parent standard—Characterized by careful and sensible parental decisions that maintain the health, safety and best interests of a child or youth under the responsibility of a county agency while encouraging the emotional and developmental growth of the child or youth to participate in extracurricular, enrichment, cultural and social activities.

Relative—The term as defined in § 3900.5.

Seclusion—Placing a child or youth in a locked room which includes a room with any type of door-locking device, such as key lock, spring lock, bolt lock, foot pressure lock or physically holding the door shut.

Specialized settings for pregnant, expecting and parenting youth—The term as defined in § 3900.5.

Volunteer—The term as defined in § 3900.5.

Youth—The term as defined in § 3900.5.

§ 3910.5. Licensure or approval.

The legal entity, as defined under Chapter 20 (relating to licensure or approval of facilities and agencies), shall ensure that a facility is organized, administered and operated in a manner that complies with the requirements of this chapter, Chapter 20 and Chapter 3900 (relating to child and youth facility requirements).

§ 3910.6. Waivers.

(a) Facility management may submit a written request for a waiver on a form prescribed by the department, and the department may grant a waiver of a specific section of this chapter if the following conditions exist:

(1) There is no significant jeopardy to the children or youth within the facility.

(2) There is an alternative for providing the children or youth with an equivalent level of protection of their health, safety and well-being.

(3) The benefit of waiving the regulation outweighs any risk to the children's or youth's health, safety and well-being.

(b) The scope, definitions or applicability of this chapter or any section of this chapter required by statute may not be waived.

Subchapter B. CHILD RESIDENTIAL REQUIREMENTS

Sec.
3910.11. Specific rights.
3910.12. Residential program worker.
3910.13. Additional staffing responsibilities.
3910.14. Supervision.
3910.15. Unobstructed egress.
3910.16. Safe transportation.
3910.17. Seclusion prohibited.
3910.18. Mechanical restraints.
3910.19. Physical restraints.
3910.20. Youth training.
3910.21. Placement process.
3910.22. Contents of the ISP.

§ 3910.11. Specific rights.

In addition to the rights under Chapter 3900, Subchapter C (relating to rights), a child or youth has the right to participate in extracurricular, cultural and personal enrichment activities that are reasonably available and consistent with the child's or youth's age and developmental level.

§ 3910.12. Residential program worker.

(a) Prior to having contact with children or youth in a facility, a residential program worker, including part-time staff, shall complete orientation training and comply with all other training requirements and timelines as addressed in § 3900.57 (relating to staff training).

(b) A residential program worker shall shadow or work under the supervision of experienced facility staff when working with children or youth during their initial 120 days of employment and may not be counted in the child and youth to staff ratios until certification is acquired in the subject areas under § 3900.57(c)(1)—(5).

(c) A minimum of two residential program workers shall be scheduled and on duty at all times when children or youth are present at the facility. In addition to the minimum staffing requirement, the following ratios apply:

(1) One residential program worker shall be present with the children for every four children under 6 years of age during awake hours.

(2) One residential program worker shall be present with the children for every eight children who are under 6 years of age during sleeping hours.

(3) One residential program worker shall be present with the children or youth for every six children or youth who are 6 years of age or older during awake hours.

(4) One residential program worker shall be present with the children and youth for every 12 children or youth who are 6 years of age or older during sleeping hours.

(5) If there are children who are under 6 years of age and children or youth 6 years of age and older in the same group, the ratios specified in subsections (d) and (e) apply.

(d) The residential program worker shall be responsible for implementing daily activities and for supervision of the children.

(e) The residential program worker shall have a high school diploma or general education development certificate.

(f) A residential program worker counted in the child and youth to worker ratio must be 21 years of age or older.

(g) The residential program worker qualification requirements under subsection (f) do not apply to facility staff hired or promoted to the specified position prior to the effective date of this chapter.

§ 3910.13. Additional staffing responsibilities.

In addition to the requirements under § 3900.55 (relating to additional staff responsibilities), facility management shall designate one or more facility staff as the primary contact responsible for decisions related to the RPPS implementation.

§ 3910.14. Supervision.

(a) While children or youth are at a facility, facility staff shall supervise a child or youth while awake by conducting sight and sound checks of each child or youth at least once every 30 minutes, unless more frequent checks are required by a child's or youth's health and safety screen or ISP.

(b) While children or youth are at the facility, facility staff shall supervise a child or youth during sleeping hours by conducting sight and sound checks of each child or youth at least once every 15 minutes, unless more frequent observational checks are required by a child or youth's health and safety admission screen or ISP.

(c) Sight and sound checks under subsections (a) and (b) shall include actual viewing of each child and youth and documentation of observations.

(d) Facility staff may not sleep while being counted in the child or youth to staff ratios.

§ 3910.15. Unobstructed egress.

(a) Stairways, hallways, doorways, passageways and egress routes from rooms and from the building shall be unlocked and unobstructed, unless the fire safety approval specified in § 3900.14 (relating to fire safety approval and notifications) permits locking of certain means of egress. If a window is designated as an egress route, it shall also be unlocked and unobstructed. If a fire safety approval is not required in accordance with § 3900.14, means of egress may not be locked.

(b) Doors used for egress routes from rooms and from the building may not be equipped with key-locking devices or electronic card-operated systems which prevent immediate egress of children and youth from the building.

(c) Doors used for egress routes from rooms and from the building may not be equipped with delayed locking mechanisms which prevent immediate egress of children and youth from the building, unless the locking mechanism and facility configuration meet the criteria in the International Building Code regarding delayed egress locks and all of the following requirements are met:

(1) Doors equipped with a delayed mechanism unlock after no more than a 15-second delay.

(2) The doors unlock upon loss of power controlling the lock or locking mechanism and the facility has a written emergency plan to be implemented during a power outage.

(3) The doors unlock upon activation of the required automatic sprinkler system or automatic fire detection system.

(4) The door locks have the capability of being unlocked by a signal from the fire command center if operational in the facility.

(5) A floor plan showing primary and secondary exit routes is posted at or near each doorway or means of egress, at entrances to stairs and in elevator lobbies.

(6) Signs are posted along the exit access indicating the direction of travel to the nearest exit and exit discharge if that direction is not immediately apparent.

(7) A letter of support is obtained from fire inspector or local code enforcement official and is submitted to the department's regional office, and a copy is maintained in the facility's administrative files.

(d) Facility staff shall maintain documentation of building permits and the certificate of occupancy in the facility's files and submit this documentation to the department's regional office.

§ 3910.16. Safe transportation.

The following requirements apply whenever a facility, the facility staff or facility volunteers provide transportation for the children or youth. These requirements do not apply when transportation is provided by a source other than the facility.

(1) The child or youth to residential program worker ratios specified in § 3910.12 (relating to residential program worker) apply.

(2) Children shall be in an individual, age and size appropriate safety restraint at all times while the vehicle is in motion.

(3) The restrictive procedures specified in Chapter 3900, Subchapter L and Chapter 3910, Subchapter D (relating to restrictive procedures; and outdoor programs), apply when transporting children or youth.

(4) The driver of a vehicle of children or youth must be 21 years of age or older.

§ 3910.17. Seclusion prohibited.

Seclusion is prohibited.

§ 3910.18. Mechanical restraints.

(a) The use of a mechanical restraint is prohibited.

(b) Devices used to provide support for functional body position or proper balance and devices medically prescribed for treatment, including sandbags to limit movement after medical treatment, a wheelchair belt that is used for body positioning and support, or a helmet used to prevent injury during seizure activity, are not considered mechanical restraints.

(c) As used in this section, the term "mechanical restraint" means a device that restricts a child's or youth's movement or function. The term includes handcuffs, anklets, wristlets, camisoles, helmets with fasteners, muffs and mitts with fasteners, poseys, waist straps, head straps, papoose boards, restraining sheets and similar devices.

§ 3910.19. Physical restraints.

A physical restraint, as provided under § 3900.168 (relating to physical restraints), does not include a therapeutic hold for a child who is 8 years of age or younger for less than 10 minutes during which the child does not physically resist.

§ 3910.20. Youth training.

Youth training shall be presented with peer educators or facility alumni participating in the training sessions, if available.

§ 3910.21. Placement process.

(a) Facility management shall develop and implement policies and procedures that include an admissions and placement process that assesses and documents the following for each child or youth prior to or upon admission:

(1) The child's or youth's service needs.

(2) The child's or youth's legal status.

(3) Circumstances that make the child's or youth's placement necessary.

(4) Potential discharge plan options and resources.

(5) Prescribed medications to be administered by a qualified individual as defined in § 3900.147(a)(1)—(5) (relating to administration), including the date prescribed, the prescriber, dosage, frequency, amount received and reason for prescription.

(6) How the activities and services provided by the facility will meet the needs of the child or youth, including special needs or accommodations.

(b) In the event of an unplanned or emergency placement, the facility staff shall compile and maintain documentation of the information listed in subsection (a) within 48 hours following admission.

§ 3910.22. Contents of the ISP.

In addition to the requirements under § 3900.191 (relating to content of the ISP), a child's or youth's ISP shall include RPPS considerations that facility staff shall employ when determining whether to allow the child or youth to participate in extracurricular, enrichment, cultural and social activities.

Subchapter C. SPECIALIZED SETTING PROGRAMMING FOR PREGNANT, EXPECTING AND PARENTING YOUTH

Sec.
3910.31. Applicability.
3910.32. Specialized setting service description.
3910.33. Physical accommodations and equipment.
3910.34. Designated play space.
3910.35. Small toys and objects.
3910.36. Protective electrical covers.
3910.37. Infant and toddler sleep equipment.
3910.38. Infant sleep position.
3910.39. Infant and toddler stimulation.
3910.40. Infant and toddler supervision.
3910.41. Evacuation procedures.
3910.42. Meals for infants.
3910.43. Safety restraints.
3910.44. Comprehensive health planning for pregnant and postpartum youth.
3910.45. Consent to treatment.
3910.46. Health and safety plans for infants and toddlers.
3910.47. Discharge planning for infants and toddlers.
3910.48. Parental and family visitation with infants and toddlers.
3910.49. Noncustodial parental involvement.
3910.50. Infant and toddler visitation.
3910.51. Adoption planning.
3910.52. Parenting and life skills education for youth.
3910.53. Additional staff training requirements for specialized settings serving pregnant, expecting and parenting youth.

§ 3910.31. Applicability.

This subchapter applies to a child residential facility licensed as a specialized setting for pregnant, expecting and parenting youth. These requirements are in addition to those under Subchapter A (relating to general requirements).

§ 3910.32. Specialized setting service description.

In addition to the program description requirements addressed in § 3900.185 (relating to description of services), facility management shall address additional components in the facility's program description, including all of the following:

(1) Training provided to facility staff and the pregnant, expectant or parenting youth on child development, including safety considerations for the care, feeding, bathing, sleeping arrangements and transportation of infants and toddlers.

(2) Availability of skill development parenting training opportunities and child development education including community-based parenting education options.

(3) Options for child care for infants and toddlers external to the facility required during hours the parenting youth is employed or attending school.

(4) Guidelines for facility staff to model positive interaction with infants and toddlers.

(5) Supports and options available for pregnant, expecting or parenting youth to access physical health care services for the pregnant, expectant or parenting youth and their infant or toddler.

(6) Age and developmentally appropriate activities for infants and toddlers available at the facility and through community-based opportunities.

(7) Enhanced facility site safeguards in place to support the safety of infants and toddlers.

(8) Program components and admission procedures addressing the legal status of the infant or toddler, if not adjudicated dependent.

(9) How facility staff engage the pregnant, expecting or parenting youth in discussions regarding establishing paternity and the noncustodial parent's legal and visitation rights with the infant or toddler.

(10) Accommodations available to support family visitation and noncustodial parental involvement.

(11) Development of a discharge plan for each infant or toddler as a separate document from the parenting youth's discharge plan.

(12) The process to monitor and address safety-recall notices for child care furniture, play equipment and products used at the facility.

§ 3910.33. Physical accommodations and equipment.

In addition to the physical site requirements under Chapter 3900, Subchapter F (relating to physical site) and this chapter, facility management shall provide or arrange for physical site safety accommodations for infants and toddlers and the equipment necessary to support the health, safety and developmental stimulation needs, to include all of the following:

(1) Play equipment and materials appropriate to the developmental needs, individual interests and ages of the infants and toddlers, provided in a quantity and variety to avoid long waits for use.

(2) Play equipment designed to support the infants' and toddlers' emotional, cognitive, communicative, perceptual-motor, physical and social development, including items from all of the following categories:

(i) Toys and materials for cognitive development.

(ii) Toys and materials for visual development.

(iii) Toys and materials for auditory development.

(iv) Toys to handle and manipulate.

(v) Art materials for tactile development.

(vi) Toys and equipment for large muscle development.

(3) Anchors installed on top-heavy and unsteady furniture to prevent tipping over.

(4) Permanent or nonpermanent safety barriers, such as gates, to prevent infants or toddlers from falling if a facility has stairs, ramps, balconies, porches or elevated play areas. These safety barriers may not prevent egress from the facility in cases of emergency.

(5) A process utilized to monitor for and address safety-recall notices for child care furniture, play equipment and products used by facility staff.

§ 3910.34. Designated play space.

(a) Facility management shall provide outdoor and indoor play space that is free from hazards and safe for large muscle activity, which includes running, jumping, climbing and riding.

(b) Outdoor and indoor play space may not be used simultaneously for a business, commercial, social or other purpose unrelated to the child residential care provided.

(c) Outdoor areas shall be maintained in a safe manner with permanent or nonpermanent safety barriers as addressed under § 3270.63 (relating to unsafe areas in outdoor space). This may include use of safety gates installed to block steps accessible to infants or toddlers. If unsafe areas or conditions are in or near an outdoor play space, fencing or natural barriers are required to restrict access to those unsafe areas or conditions.

§ 3910.35. Small toys and objects.

Toys and objects, with a diameter of less than 1-inch, objects with removable parts that have a diameter of less than 1-inch, plastic bags and Styrofoam objects may not be accessible to infants and toddlers.

§ 3910.36. Protective electrical covers.

Protective receptacle covers shall be placed in electrical outlets accessible to children 5 years of age or younger.

§ 3910.37. Infant and toddler sleep equipment.

(a) Facility staff shall provide individual, clean, age-appropriate sleep equipment for infants and toddlers. Cribs and toddler beds must meet current industry safety standards.

(b) Sleep equipment shall be labeled for the use by a specific infant or toddler and used only by the specified infant or toddler.

(c) Stacked cribs are prohibited.

(d) Crib mattresses must fit snugly.

(e) Toys, bumper pads, blankets or pillows may not be used or placed in a crib while an infant is sleeping in the crib.

(f) Seasonally appropriate coverings, such as sheets or blankets, shall be provided for toddlers.

(g) Soiled bedding shall be cleaned before it is reused.

(h) Infants and toddlers may not sleep in the same bed as the parenting youth or any adult.

§ 3910.38. Infant sleep position.

(a) An infant shall be placed in a supine sleeping position as recommended by the American Academy of Pediatrics until the infant reaches 1 year of age, unless there is a medical reason the infant should not sleep in this position.

(b) If an infant should not sleep in the sleeping position specified in subsection (a), the medical reason shall be documented in a statement signed by a physician, physician assistant or certified registered nurse practitioner and placed in the infant's record at the facility.

§ 3910.39. Infant and toddler stimulation.

(a) Facility management shall develop and implement policies and procedures addressing how staff will offer the parenting youth guidance and role modeling to support the parenting youth to develop appropriate parenting skills with their infant or toddler, which shall include all of the following:

(1) Proper infant and toddler feeding and positioning practices.

(2) Opportunities to engage infants and toddlers in group activities and expose them to sensory stimulation.

(3) Acceptable child care and supervision alternatives.

(4) Monitoring parental engagement with the infant or toddler in daily activities that provide sensory stimulation including age-appropriate art and music, language development, fine motor skill development and large muscle development.

(b) Facility staff shall maintain documentation of activities, interactions, goals and progress noted in both the parenting youth's and infant's or toddler's ISPs.

§ 3910.40. Infant and toddler supervision.

(a) The parenting youth shall be responsible for the daily care and supervision of their infant or toddler while at the facility.

(b) Acceptable long-term child care options for infants and toddlers during the hours the parenting youth is attending school, working or other similar activities, include either of the following:

(1) A child care facility licensed by the department and identified by the parenting youth with facility staff support.

(2) A relative or friend identified by the parenting youth. If the infant or toddler is in the custody of the county agency, the county agency shall approve the child care arrangements.

(c) For occasional short-term situations, the infant or toddler may be supervised by facility staff only if the parenting youth is away from the facility and their child remains at the facility. Youth in the facility may not provide care for another parenting youth's infant or toddler.

§ 3910.41. Evacuation procedures.

Facility management shall develop written emergency evacuation procedures that include all of the following:

(1) Staff and parenting youth responsibilities to safely evacuate infants and toddlers from the facility.

(2) The means of transportation to be used if relocation is necessary.

(3) The location at which to meet in case of an emergency.

(4) Specific plans for evacuating infants and toddlers who are under the direct care of staff if parents are off site.

§ 3910.42. Meals for infants.

Meals for infants shall be provided in accordance with all of the following requirements:

(1) A written formula or breast milk feeding schedule shall be developed based on medical guidance offered by the infant's pediatrician and with input from the parenting youth.

(2) Solid foods shall be introduced as the infant's pediatrician advises. New foods may be introduced only after consultation with the parenting youth.

(3) An infant 6 months of age or younger shall be held while being bottle fed, and their bottle may not be propped.

(4) An infant or toddler may not sleep with a bottle in their mouth.

(5) Infant bottles must be sanitized after each use.

(6) Infant bottles must be labeled with the infant's name.

(7) Refrigerated breast milk must be used within 24 hours.

(8) Formula or breast milk that is served but not completely consumed or refrigerated must be discarded after 2 hours.

(9) Milk, formula or breast milk may not be warmed in a microwave oven.

(10) An infant or toddler 6 months of age or older who no longer needs to be held for feedings because of age or developmental readiness shall be provided with an infant seat, high chair with safety strap or other age-appropriate seating apparatus which meets the standards of a recognized safety organization.

§ 3910.43. Safety restraints.

(a) A child under 8 years of age shall be transported in accordance with the requirements for motor vehicle operators as set forth in 75 Pa.C.S. § 4581 (relating to restraint systems). These requirements apply to facility and personal vehicles used to transport an infant or toddler.

(b) Appropriately sized car seats shall be securely installed and correctly used according to manufacturers' instructions when transporting an infant or toddler.

(c) Manufacturers' instructions for use of safety restraints shall be kept in the vehicle at all times.

(d) Safety restraint equipment may be removed or reinstalled in a vehicle only by facility staff, law enforcement or medical or fire department personnel who have been trained in this process.

§ 3910.44. Comprehensive health planning for pregnant and postpartum youth.

Facility management shall develop and implement general policies and individualized planning addressing the special pregnancy-related and delivery-related health care considerations for each youth in addition to the health and safety requirements in Chapter 3900, Subchapter H (relating to child and youth health). These additional requirements include all of the following:

(1) How facility staff will provide information and support youth access to all legally available options and support services related to pregnancy, without bias or pressure.

(2) How the facility staff will provide or arrange for comprehensive prenatal and postpartum care.

(3) How facility staff will identify and address special dietary considerations.

(4) How facility staff will monitor and document all medical appointments.

(5) How facility staff will identify and confirm birthing arrangements by the end of the first trimester.

(6) How facility staff will support pregnant or postpartum youth connections to individual and group community-based resources and services.

§ 3910.45. Consent to treatment.

Facility staff may not interfere with the parenting youth's right to consent to medical, dental or mental health treatment for their infant or toddler as reflected in section 2 of the act of February 13, 1970 (P.L. 19, No. 10) (35 P.S. § 10102), unless otherwise restricted by court order.

§ 3910.46. Health and safety plans for infants and toddlers.

(a) Facility management shall develop and implement policies, procedures and program descriptions that address the development of a personal safety plan for each parenting youth's infant or toddler, including all of the following health and safety considerations:

(1) How facility staff will develop familiarity with and understand criteria in each infant's and toddler's personal safety plan.

(2) How facility staff will have immediate access to each infant's and toddler's safety plan, including updates and how receipt of updated information will be documented.

(3) How safety issues will be addressed in teaming efforts and communicated to external community supports, if applicable.

(4) The process to update each infant's and toddler's safety plan monthly in conjunction with updates made to the ISP, with the infant's or toddler's team and the parenting youth.

(b) The health care needs of an infant or toddler who is not adjudicated dependent and is not under the care and responsibility of the county agency remain the parenting youth's responsibility with facility staff maintaining responsibility to monitor, document and support the parenting youth in meeting their infant or toddler's health care needs.

(c) Facility management shall develop and implement policies addressing health and safety planning for infants and toddlers, which include all of the following:

(1) Documentation of infant and toddler health assessments, including developmental assessments.

(2) Development of an ISP, as required in § 3900.190 (relating to development and implementation of the ISP), which focuses on the infant's or toddler's individual needs.

(3) The process to develop an agreement with the parenting youth to share information regarding the infant's or toddler's health with the facility staff, especially if the infant or toddler is not under the county agency's care and responsibility.

(4) The process to complete assessments and initiate referrals for early intervention services.

(5) The process to ensure that an immunization and well-child medical appointment schedule is developed and implemented.

(6) Documentation of referral to supplemental nutrition program for women, infants and children.

(7) Assessment of interest in the infant or toddler by the noncustodial parent.

(8) Assessment of the parenting youth's parenting capabilities and staff use of a parenting checklist to regularly review the infant's or toddler's health, safety and development with the parent.

(9) How the facility staff will monitor that each parenting youth follows the written plan developed with the infant's or toddler's health care provider.

(10) How the facility staff will provide each parenting youth with information related to safe sleeping practices and safe baby bathing techniques.

(11) How facility staff will work with the parenting youth to determine if an infant or toddler needs medical care when ill or inconsolable.

(12) How medication for the infant or toddler will be administered, monitored and safely stored.

§ 3910.47. Discharge planning for infants and toddlers.

(a) Facility management shall develop and implement policies, procedures and program descriptions that address the development of a discharge plan for each infant and toddler that is separate from the parenting youth's discharge plan.

(b) Discharge plans for an infant or toddler shall include the following:

(1) Scheduled follow-up medical care and identification of doctors and necessary equipment needed.

(2) Transportation arrangements available to support an easy and safe transition.

(3) Transfer of early intervention services and child care funding arrangements to the receiving county, if applicable.

(4) Pending applications for public assistance benefits for which the infant or toddler may be eligible.

(5) Notification of the discharge plan dates shared with community supports and others involved with the parenting youth and their infant or toddler.

(6) Continued level of team member involvement available to the parenting youth and infant or toddler.

(c) Facility staff shall maintain documentation of the discharge plan as part of the infant's or toddler's ISP in the infant's or toddler's record.

§ 3910.48. Parental and family visitation with infants and toddlers.

(a) Facility management shall develop and implement policies addressing noncustodial parent and extended family member visitation and family time with infants and toddlers.

(b) Facility staff shall develop an individual visitation and family time plan for each infant and toddler with input from the parenting youth which includes consideration of court orders and documented safety concerns.

§ 3910.49. Noncustodial parental involvement.

(a) Facility management shall develop and implement a component in the program description addressing how the parenting youth will be informed of their parental obligations, including both parents' legal rights to information and contact with the infant or toddler.

(b) Facility management shall develop and implement a component in the program description addressing guidelines to engage the parenting youth in discussions regarding establishing paternity and the noncustodial parent's legal and visitation rights with the infant or toddler, which shall include all of the following:

(1) Information and available resources regarding establishing paternity and the benefits of establishing paternity for the child.

(2) Managing visitation arrangements with the infant or toddler's noncustodial parent and custody and visitation court orders and agreements.

(3) The process for facility staff communication with the noncustodial parent to support involvement in services provided and planning related to the infant or toddler, subject to the parenting youth's and county agency's agreement.

(c) Facility staff shall maintain documentation of the plan to support the involvement of the noncustodial parent developed for the infant or toddler and the noncustodial parent in both the parenting youth's record and the infant or toddler's record.

§ 3910.50. Infant and toddler visitation.

(a) Facility management shall develop and implement a component in the program description addressing policies and procedures for family member visitation and contact with the infant or toddler, which shall include all of the following:

(1) Options for facility staff supervision if needed, scheduling, hours and locations, and the process to arrange and confirm plans.

(2) How the infant's or toddler's needs for consistency and safety remain a priority in making a visitation plan.

(3) How family relationships and potential infant or toddler contact will be identified.

(4) How appropriate caregivers for visits or infant and toddler care away from the facility will be identified and documented in the visitation plan as part of the infant's or toddler's ISP, including addresses and telephone numbers.

(b) Facility staff shall provide a copy of the visitation policies to the parenting youth at admission and review the policies with the parenting youth again when visitation with the infant or toddler is initiated.

(c) Facility staff shall maintain documentation of the plan to support infant and toddler visitation and contact with extended family members in both the parenting youth's and the infant's or toddler's ISP and case records.

§ 3910.51. Adoption planning.

(a) Facility management shall establish an agreement with at least two licensed adoption agencies to provide a choice of supportive services for a pregnant, expecting or parenting youth considering adoption.

(b) Facility staff shall provide options for parenting youth to access information about the legal and emotional implications of the adoption process when a parenting youth in care expresses interest in exploring adoption as an option for their infant.

(c) Facility staff shall also provide pregnant, expecting or parenting youth with information about obtaining legal counsel and offer support and transportation to access legal services.

(d) Copies of the agreements under this section are to be maintained in the facility's administrative files.

§ 3910.52. Parenting and life skills education for youth.

(a) Facility management shall develop and implement a component in the program addressing skill development parenting technique training opportunities and child development education for pregnant, expecting or parenting youth.

(b) Parenting education may be presented in a group or on an individual basis and shall utilize a youth-friendly curriculum which addresses all of the following topics:

(1) Physical and hormonal changes throughout pregnancy, including postpartum physical and emotional changes.

(2) Infant health and nutritional care, including breastfeeding information and supports.

(3) Changes in the parenting youth's relationships with family members and the infant's or toddler's noncustodial parent.

(4) Age-appropriate discipline, stimulation, games and other recreational activities for the infant or toddler.

(5) Child care options, subsidies and back-up plans and selection of appropriate caregivers for the infant or toddler.

(6) Appropriate car seat installation and use to comply with 75 Pa.C.S. § 4581 (relating to restraint systems).

(7) Information about the infant's or toddler's educational needs.

(8) How to initiate and maintain connections to community-based resources and programs.

(9) Career planning and job training.

(10) Education on the CPSL and other child abuse and neglect laws.

(11) Financial training and money management skills.

(12) Life skills.

(c) Facility staff shall maintain documentation of the curriculum or guidelines used to provide parenting education, the trainer's name and the facility qualifications of trainers, the date and length of time and specific topics addressed in trainings attended by a pregnant, expecting or parenting youth in the youth's case records.

§ 3910.53. Additional staff training requirements for specialized settings serving pregnant, expecting and parenting youth.

(a) In addition to the annual and ongoing training requirements for facility staff under § 3900.57 (relating to staff training), required training for facility staff under this subchapter shall include all of the following topics:

(1) How to support a youth through their pregnancy with awareness of physical and hormonal changes, including postpartum depression and the treatment referral process.

(2) Infant and toddler growth and development.

(3) Infant feeding and nutrition, including breastfeeding techniques and proper storage of breast milk and formula.

(4) Emergency evacuation practices, including special considerations in moving infants.

(5) Infant care and stimulation, including effective discipline and redirection techniques with toddlers.

(6) Human sexuality and sexually transmitted infections, HIV and AIDS prevention.

(7) Depression and suicide prevention.

(8) Overview of paternity, custody, visitation and adoption laws.

(9) Review of legal rights as a parent.

(10) Supporting the parenting youth in administering medication to their child and safe storage of medications.

(11) Pediatric cardiopulmonary resuscitation (CPR) training.

(12) Car seat installation and appropriate use.

(13) Safe baby sleep positioning and bathing techniques.

(14) Public benefits and supportive services, such as Child Care Works, Early Intervention services, supplemental nutrition program for women, infants and children and prevention services.

(b) Training topics specific to working with pregnant, expecting and parenting youth shall be incorporated into the facility staff training calendar to support completion of trainings addressing the required topics.

(c) These additional training topics specific to working with pregnant, expecting and parenting youth may also be presented in sessions that include both facility staff and youth at the facility as appropriate based on content and delivery style.

(d) Facility management shall maintain documentation in the facility's file of the facility staff trained, date, source, facility-defined qualifications of the trainer, content, length of each course and copies of certificates received.

Subchapter D. OUTDOOR PROGRAMS

Sec.
3910.61. Applicability.
3910.62. Exceptions for outdoor programs.
3910.63. Additional requirements.

§ 3910.61. Applicability.

This subchapter applies to a residential setting licensed as an outdoor program for youth.

§ 3910.62. Exceptions for outdoor programs.

The following requirements do not apply for outdoor programs that operate from stationary settings, such as tepees or cabins:

(1) The number of sinks and toilets under § 3900.13(a) (relating to maximum capacity).

(2) Section 3910.14 (relating to supervision).

(3) Sections 3900.66 and 3900.67 (relating to ventilation; and lighting).

(4) Sections 3900.69 and 3900.70 (relating to water; and temperature).

(5) Sections 3900.73 and 3900.74 (relating to handrails and railings; and landings and stairs).

(6) Sections 3900.77—3900.80.

(7) Sections 3900.82—3900.86, except for § 3900.84(g) and (h) (relating to bathrooms).

§ 3910.63. Additional requirements.

The following requirements for outdoor programs are in addition to those under Subchapter A (relating to general requirements).

(1) The maximum capacity specified on the certificate of compliance shall be based on 30 square feet per child or youth, including measurement of all floor space.

(2) A supply of food and water for cleaning and bathing shall be made readily available for child or youth and staff use.

(3) Potable drinking water shall be made available to children and youth at all times.

(4) Children and youth shall have the opportunity to bathe or shower at least every other day, brush their teeth at least twice a day and wash their hands before each meal.

(5) Facility staff shall supervise children and youth during awake hours by conducting hourly sight and sound checks of each child or youth.

(6) Facility staff shall be permitted to sleep when the children and youth are asleep and still be counted as meeting the required child and youth to staff ratios.

(7) Facility management shall provide or arrange for each child or youth to have footwear and clean clothing that is well constructed, in good condition and appropriate for the activity being conducted.

(8) Facility management shall provide each child or youth with personal hygiene supplies as addressed in § 3900.84 (relating to bathrooms), shelter, such as a tent or tarpaulin, a fire-retardant sleeping bag or other sleeping equipment, and bedding appropriate for the temperature.

(9) Facility management shall provide each child or youth with access to safe and well-maintained equipment for activities.

(10) Facility management shall develop and implement policies and procedures, which shall include all of the following:

(i) Facility staff access to a communication system such as cell phones or a CB radio to communicate with public emergency sources and facility management in the event of a medical, police, fire or other emergency.

(ii) Facility staff access to a source for routine weather information for advance warning of severe or dangerous weather conditions.

(iii) A written emergency transportation and staffing plan and equipment, such as a litter, to transport a child or youth in a medical emergency.

(iv) A written plan for conducting a search for a child or youth whose whereabouts are unknown to staff, including requesting assistance from local authorities.

(11) Facility staff who are responsible for teaching children and youth high-risk activities, such as boating, biking, horseback riding, swimming and climbing, shall complete training in safe practices regarding these activities.

(12) Facility management shall maintain documentation in the facility's records of the facility staff trained, date, source, facility-defined qualifications of the trainer, content, length of each course and copies of certificates received.

CHAPTER 3920. SECURE RESIDENTIAL AND SECURE DETENTION FACILITIES FOR YOUTH

Subchap.
A. GENERAL PROVISIONS
B. SECURE RESIDENTIAL AND SECURE DETENTION FACILITY REQUIREMENTS
C. CO-LOCATED DETENTION FACILITIES

Subchapter A. GENERAL PROVISIONS

Sec.
3920.1. Purpose.
3920.2. Applicability.
3920.3. Exemptions.
3920.4. Definitions.
3920.5. Licensure or approval.
3920.6. Reportable incidents.
3920.7. Waivers.

§ 3920.1. Purpose.

The purpose of this chapter is to protect the health, safety and well-being of children or youth receiving care in a secure residential facility or secure detention facility through the formulation, application and enforcement of minimum licensing requirements.

§ 3920.2. Applicability.

(a) This chapter applies to the following:

(1) Secure residential facilities for children or youth that are operated by a private entity or a county.

(2) Secure detention facilities for children or youth operated by a private entity or a county.

(b) Secure residential facilities and secure detention facilities are permitted only for children or youth who are alleged delinquent or adjudicated delinquent and court ordered to a secure facility.

(c) This chapter applies equally to profit, nonprofit, publicly funded, privately funded, religious and nonreligious operated secure residential facilities and secure detention facilities.

(d) This chapter contains the minimum requirements that shall be met to obtain a certificate of compliance to provide secure residential or secure detention services for children or youth in this Commonwealth.

§ 3920.3. Exemptions.

This chapter does not apply to the following:

(1) Nonsecure campus and community-based child residential facilities licensed under Chapter 3910 (relating to child residential facilities).

(2) Secure child or youth residential and child or youth day treatment facilities operated directly by the department.

(3) Transitional living residences located in freestanding private residences.

(4) Transitional living facilities with more than one transitional living residence in the same building.

(5) Residential camps for children or youth who are enrolled in a grade or educational level higher than kindergarten which operate for fewer than 90 days per year.

(6) Residential schools for children or youth licensed and operated solely as private academic schools or registered and operated solely as nonpublic nonlicensed schools by the Department of Education.

(7) Foster care homes licensed under Chapter 3700 (relating to foster family care agency).

(8) Family living homes for children or youth with an intellectual disability licensed under Chapter 6500 (relating to life sharing homes).

(9) Community homes for individuals with an intellectual disability or autism licensed under Chapter 6400 (relating to community homes for individuals with an intellectual disability or autism) that provide care to both children and adults in the same facility.

(10) Community residences for individuals with mental illness that provide care to both children and adults in the same facility or community residential host homes for individuals with mental illness that are certified under Chapter 5310 (relating to community residential rehabilitation services for the mentally ill).

(11) Drug and alcohol residential facilities that provide care exclusively to residents whose sole need is the treatment of drug and alcohol dependence and that are licensed under 28 Pa. Code Chapters 701, 704 and 709 (relating to general provisions; staffing requirements for drug and alcohol treatment activities; and standards for licensure of freestanding treatment facilities).

(12) Private homes of persons providing care to a relative, except homes in which a youth lives with their own child but no other relative.

§ 3920.4. Definitions.

The following words and terms, when used in this chapter, have the following meanings, unless the context clearly indicates otherwise:

Admission—The term as defined in § 3900.5 (relating to definitions).

Child—The term as defined in § 3900.5.

Co-located—Located in a building that also confines adult offenders.

Delinquent child—The term as defined in 42 Pa.C.S. § 6302 (relating to definitions).

Department—The Department of Human Services of the Commonwealth.

Facility—The term as defined in § 3900.5.

Facility management—The term as defined in § 3900.5.

Facility staff—Individuals employed by a facility in positions described in this chapter and Chapter 3900 (relating to child and youth facility requirements) who provide supervision and services to children and youth placed at a child residential facility.

Family engagement—A family-centered and strengths-based approach to partnering with families in making decisions, setting goals and achieving desired outcomes.

ISP—The term as defined in § 3900.5.

Juvenile Act—Chapter 63 of 42 Pa.C.S. (relating to Juvenile Act).

Legal guardian—The term as defined in § 3900.5.

Parent—The term as defined in § 3900.5.

Placement—The term as defined in § 3900.5.

Relative—The term as defined in § 3900.5.

Seclusion—The term as defined in § 3910.4.

Secure detention—The term as defined in § 3900.5.

Secure residential—The term as defined in § 3900.5.

Sight and sound checks—The term as defined in § 3900.5.

Sight and sound separation—Complete lack of visual and auditory contact, observation or interaction between facility staff and the children or youth.

Youth—The term as defined in § 3900.5.

§ 3920.5. Licensure or approval.

The legal entity, as defined under Chapter 20 (relating to licensure or approval of facilities and agencies) shall guarantee the facility is organized, administered and operated in a manner that complies with the requirements of this chapter and Chapter 3900 (relating to child and youth facility requirements).

§ 3920.6. Reportable incidents.

In addition to a reportable incident under § 3900.16 (relating to reportable incidents), a reportable incident includes the following situations occurring at the facility or while the child or youth is under the supervision of the facility staff in the community:

(1) A child or youth assault on a facility staff that requires medical treatment for the facility staff.

(2) The use of handcuffs or leg restraints on a child or youth for longer than 2 hours.

(3) The use of seclusion on a child or youth for longer than 4 hours.

(4) Use of a restrictive procedure as defined in § 3900.5 (relating to definitions) a child or youth meeting the criteria listed in 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting).

§ 3920.7. Waivers.

(a) Facility management may submit a written request for a waiver on a form prescribed by the department, and the department may grant a waiver of a specific section of this chapter if the following conditions exist:

(1) There is no significant jeopardy to the children or youth within the facility.

(2) There is an alternative for providing the children or youth an equivalent level of protection of their health, safety and well-being.

(3) The benefit of waiving the regulation outweighs any risk to the children's or youths' health, safety and well-being.

(b) The scope, definitions or applicability of this chapter or any section of this chapter required by statute may not be waived.

Subchapter B. SECURE RESIDENTIAL AND SECURE DETENTION FACILITY REQUIREMENTS

Sec.
3920.11. Residential program worker.
3920.12. Supervision.
3920.13. Glass windows.
3920.14. Lighting.
3920.15. Surfaces.
3920.16. Furniture and equipment.
3920.17. Mirrors.
3920.18. Unobstructed egress.
3920.19. Health and safety admission screening.
3920.20. Health examination.
3920.21. Safe transportation.
3920.22. Seclusion.
3920.23. Mechanical restraints.
3920.24. Placement process.

§ 3920.11. Residential program worker.

(a) Prior to having contact with children or youth in the facility, a residential program worker, including part-time staff, shall complete an orientation training and comply with all other training requirements on the timelines as addressed in § 3900.57 (relating to staff training).

(b) A residential program worker shall shadow or work under the supervision of experienced facility staff when working with children and youth during their initial 120 days of employment and may not be counted in the child and youth to staff ratios until certification is acquired in the subject areas under § 3900.57(b)(1)—(5).

(c) A minimum of two residential program workers shall be scheduled and on duty when children or youth are present at the facility.

(d) One residential program worker shall be present with the children or youth for every six children or youth during awake hours.

(e) One residential program worker shall be present with the children or youth for every 12 children or youth during sleeping hours.

(f) A residential program worker shall be responsible for implementing daily activities and for supervision of the children or youth.

(g) A residential program worker counted in the child or youth to worker ratio must be 21 years of age or older.

(h) A residential program worker shall have one of the following:

(1) A high school diploma or general education development certificate and at least 1 year of work experience with youth in a group activity or setting. This documented experience may be paid or volunteer.

(2) Sixty credit hours from an accredited college or university or military service training in one or a combination of areas of study that include social work, sociology, psychology, family ecology, family or child development, counseling and guidance, criminal justice, community services, family studies, counseling psychology, education, early childhood education, secondary education, special education or other human services-related field.

(i) The staff qualification requirements under subsection (h) do not apply to facility staff hired or promoted to the specified position prior to the effective date of this section.

§ 3920.12. Supervision.

(a) Facility staff shall be able to see and hear children and youth at all times.

(b) While children or youth are at the facility, facility staff shall supervise children and youth while awake by documenting sight and sound checks of each child or youth at least once every 30 minutes unless more frequent sight and sound checks are required by the child's or youth's health and safety screen or ISP.

(c) While children or youth are at the facility, facility staff shall supervise children or youth during sleeping hours by conducting sight and sound observational checks of each child or youth at least once every 15 minutes unless more frequent sight and sound checks are required by a child's or youth's health and safety screen or ISP.

(d) Observational checks of children or youth specified in subsections (b) and (c) shall include actual viewing of each child or youth and documentation of observations.

(e) Facility staff may not sleep while being counted in the child or youth to staff ratios.

§ 3920.13. Glass windows.

Glass windows and windows in doors shall be protected with a secure, non-breakable covering or composed of shatterproof glass.

§ 3920.14. Lighting.

Light fixtures shall be protected with a secure, non-breakable covering or composed of shatterproof glass.

§ 3920.15. Surfaces.

Glass surfaces shall be protected with a secure, non-breakable covering or composed of shatterproof glass.

§ 3920.16. Furniture and equipment.

(a) Furnishings or other items that may create a risk for self-injury or suicide, such as drapery cords, electrical outlets, shower curtains, shoe strings, razors and noncollapsing clothing hooks, may not be accessible to a child or youth whose health and safety admission screening specified in § 3900.111 (relating to health and safety admission screening) or ISP as addressed in § 3900.191 (relating to content of the ISP) indicates known or suspected suicide, self-harming attempts or gestures, or an emotional history which may indicate a predisposition to self-harm or attempted suicide, except during specific activities while these items are in use and the child or youth is under direct facility staff supervision.

(b) Items that may create an opportunity for use as a weapon or other tool in an assault or other violent behavior, such as knives, razors, matches and tools, may not be accessible to a child or youth whose health and safety admission screening specified in § 3900.111 or ISP addressed in § 3900.191 indicates known incidents of aggressive or violent behavior, except during specific activities while these items are in use and the child or youth is under direct facility staff supervision.

§ 3920.17. Mirrors.

Glass mirrors are not permitted.

§ 3920.18. Unobstructed egress.

(a) Facility management shall secure fire safety approval specified in § 3900.14 (relating to fire safety approval and notifications), which addresses and permits the identified means of locked egress.

(b) Doors used for egress routes from rooms and from the building, equipped with key-locking devices, electronic card-operated systems or a centralized control panel which prevent immediate egress from the building, must meet the criteria in section 1008.1.9.7 of the International Building Code relating to delayed egress locks.

(c) Doors used for egress routes from rooms and from the building must unlock upon required automatic sprinkler system or automatic fire detection system activation or by a signal from the fire command center.

(d) Facility management shall develop and implement a written emergency plan that includes procedures to follow during a power outage to ensure building security and child, youth and community safety.

(e) A floor plan showing primary and secondary exit routes shall be posted at or near each doorway or means of egress, at entrances to stairs and in elevator lobbies.

(f) Facility staff shall maintain documentation of building permits and the certificate of occupancy in the facility's files and submit this documentation to the department's regional office.

§ 3920.19. Health and safety admission screening.

(a) A child or youth placed in a secure residential facility shall have a written health and safety admission screening completed within 24 hours of admission by an individual listed in § 3900.111(b) (relating to health and safety admission screening).

(b) A child or youth placed in a secure detention facility shall have a written health and safety admission screening completed within 1 hour of admission by an individual listed in § 3900.111(b).

§ 3920.20. Health examination.

In addition to the requirements under § 3900.113 (relating to health examination), a child or youth placed in a secure detention facility shall have a health examination as soon as possible after intake, but no longer than 96 hours after admission.

§ 3920.21. Safe transportation.

The following requirements apply whenever the facility arranges or provides transportation for children or youth, except when transportation is provided by law enforcement officials:

(1) The driver and at least one additional facility staff shall be present in the vehicle at all times when one or more children or youth are being transported.

(2) One residential program worker shall be present with the children or youth for every three children or youth during transportation of children or youth either by the facility or another transportation source.

(3) The driver of the vehicle may not be counted in the child or youth to staffing ratio.

(4) Each child or youth shall be in an individual, age and size appropriate safety restraint at all times while the vehicle is in motion.

(5) The restrictive procedures specified in this chapter and Chapter 3900 (relating to child and youth facility requirements) apply.

(6) The driver of a vehicle must be 21 years of age or older.

§ 3920.22. Seclusion.

The following requirements apply to the use of seclusion:

(1) Oral or written authorization by supervisory facility staff is required prior to each use of seclusion.

(2) The use of seclusion may not exceed 4 hours unless a licensed physician, a licensed physician assistant or a certified registered nurse practitioner examines the child or youth and gives written orders to continue the use of seclusion. A registered nurse may also examine the child or youth and provide written approval to continue the use of seclusion. Reexamination and new written orders are required for each 4-hour period the seclusion is continued. If seclusion is interrupted for any purpose and reinstated within 24 hours after the initial use of seclusion, it is considered a continuation of the initial seclusion period.

(3) A facility staff shall observe a child or youth in seclusion at least every 5 minutes.

(4) The child's or youth's physical needs shall be met promptly.

(5) A child or youth in seclusion shall be checked and observed by a supervisory facility staff who is not continually observing the child or youth as required in paragraph (3), at least every 2 hours the seclusion is being used.

(6) The use of seclusion for a child or youth may not exceed 8 hours in any 24-hour period without a written court order from the committing judge or, if unavailable, a master from the referring county or if court personnel are not available, written approval from the assigned chief probation officer.

(7) The use of seclusion for a child or youth may not exceed 12 continuous hours without an additional written court order from the committing judge or, if unavailable, a master from the referring county or if court personnel are not available, written approval from the assigned chief probation officer.

(8) The use of seclusion for a continuous period of more than 24 hours is prohibited.

(9) A room used for seclusion shall meet the conditions as specified in § 3900.169(h) (relating to exclusion).

(10) Mechanical restraints as defined in § 3920.23(c) (relating to mechanical restraints) and seclusion may not be used simultaneously for a child or youth.

(11) The use of any combination of mechanical restraints and seclusion for a child or youth may not exceed 6 hours in any 48-hour period without a written court order from the committing judge, or if unavailable, a master from the referring county or if court personnel are not available, written approval from the assigned chief probation officer.

(12) The use of seclusion is prohibited with a pregnant or postpartum child or youth as addressed in 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting).

§ 3920.23 Mechanical restraints.

(a) Handcuffs behind the back, leg restraints and locking transportation waist belts with handcuffs in front of the child or youth used during transportation are the only types of mechanical restraints that are permitted, as follows:

(1) A child or youth may not be handcuffed to an object or another person.

(2) Oral or written authorization by supervisory staff is required prior to each use of a mechanical restraint, except for those restraints used during transportation.

(3) The use of handcuffs or leg restraints, except for those used during transportation, may not exceed 2 hours, unless a licensed physician, a licensed physician assistant or a certified registered nurse practitioner examines the child or youth and gives written orders to continue the restraint's use. A registered nurse may also examine the child or youth and provide written approval to continue the use of handcuffs or leg restraints. Reexamination and new written orders are required for each 2-hour period the restraint is continued. If a restraint is removed for any purpose other than for movement and

reused within 24 hours after the initial use of the restraint, it is considered continuation of the initial restraint.

(4) The restraint shall be checked for proper fit by a facility staff at least every 15 minutes, except for those used during transportation.

(5) The child's or youth's physical needs shall be met promptly.

(6) Handcuffs and leg restraints, except for those used during transportation shall be removed completely for at least 10 minutes during every 2 hours the restraint is used.

(7) Handcuffs and leg restraints, except those used during transportation, shall be checked and observed by a supervisory facility staff who is not administering the restraint, at least every 1 hour the restraint is used.

(8) Handcuffs and leg restraint use for a child or youth, except those used during transportation, may not exceed 4 hours in any 48-hour period without a written court order from the committing judge or if unavailable, a master from the referring county or if court personnel are not available, written approval from the assigned chief probation officer.

(b) If mechanical restraints are used on a pregnant or postpartum child or youth, facility staff and management shall comply with 42 Pa.C.S. Chapter 63, Subchapter G (relating to pregnant or postpartum restrictions, training, supports and reporting).

(c) As used in this section, the term "mechanical restraint" means a device that restricts a child's or youth's movement or function. The term includes handcuffs, anklets, wristlets, camisoles, helmets with fasteners, muffs and mitts with fasteners, poseys, waist straps, head straps, papoose boards, restraining sheets and similar devices. The term does not include devices used to provide support for functional body position or proper balance and devices medically prescribed for treatment, including sandbags to limit movement after medical treatment, a wheelchair belt that is used for body positioning and support, or a helmet used for preventing injury during seizure activity.

§ 3920.24. Placement process.

(a) Only children or youth who are alleged delinquent or adjudicated delinquent and ordered to a secure residential facility shall be placed in a secure residential facility.

(b) Only children or youth who are alleged delinquent or are adjudicated delinquent and have further court activity pending shall be placed in a secure detention facility, as follows:

(1) Secure detention facilities may be used to house a child or youth charged as adult who is awaiting an interest of justice hearing or have had a judicial ruling that it is not in the interest of justice for the child or youth to be held in an adult jail pending trial.

(2) Children and youth may not be detained in a facility that allows for shared space or visual or physical contact with adult offenders.

(c) Prior to accepting or receiving a child or youth, facility staff shall request the following information from the committing judge, when applicable:

(1) The probation officer's name.

(2) The date the petition was filed and the child's or youth's legal status.

(3) A description of the offenses and circumstances that make placement necessary.

(4) The court order committing the child or youth to the facility.

(d) Facility management shall develop and implement admission and placement policies and procedures that assess and document the following for each child or youth, prior to or upon admission:

(1) The child's or youth's needs to be addressed during placement.

(2) Potential discharge plan options and resources needed and available.

(3) Documentation of the medications prescribed to be administered by the facility staff, including the date prescribed, the prescriber, dosage, frequency, amount received and reason for prescription.

(4) The ways the facility-provided activities and services will meet the child's or youth's needs, including any special needs or accommodations.

(e) Facility staff shall compile and maintain documentation of the information listed in subsections (c) and (d) within 48 hours following admission.

Subchapter C. CO-LOCATED DETENTION FACILITIES

Sec.
3920.31. Facility configuration.
3920.32. Staffing.
3920.33. Consultation.

§ 3920.31. Facility configuration.

The following requirements apply when secure detention facilities are located in co-located buildings:

(1) Co-located secure detention facilities shall be configured to ensure sight and sound separation of children or youth from adult offenders.

(2) Co-located facilities shall have entrances and exits separate from the adult units including sally ports and holding cells.

(3) Outdoor recreational areas for children or youth shall be configured so as not to be viewed by adult offenders.

(4) On-site medical and emergency services for children or youth shall be provided in an area separate and distinct from the service area for adult offenders.

§ 3920.32. Staffing.

Facility staff who work with both children or youth and adults in co-located facilities shall be trained as a residential program worker with children and youth prior to working in the detention unit as required under § 3900.57 (relating to staff training).

§ 3920.33. Consultation.

A co-located secure detention facility developed under this chapter shall seek consultation and technical assistance from the Pennsylvania Commission on Crime and Delinquency regarding program and facility development and submit evidence of that consultation and technical assistance as part of the application for licensure.

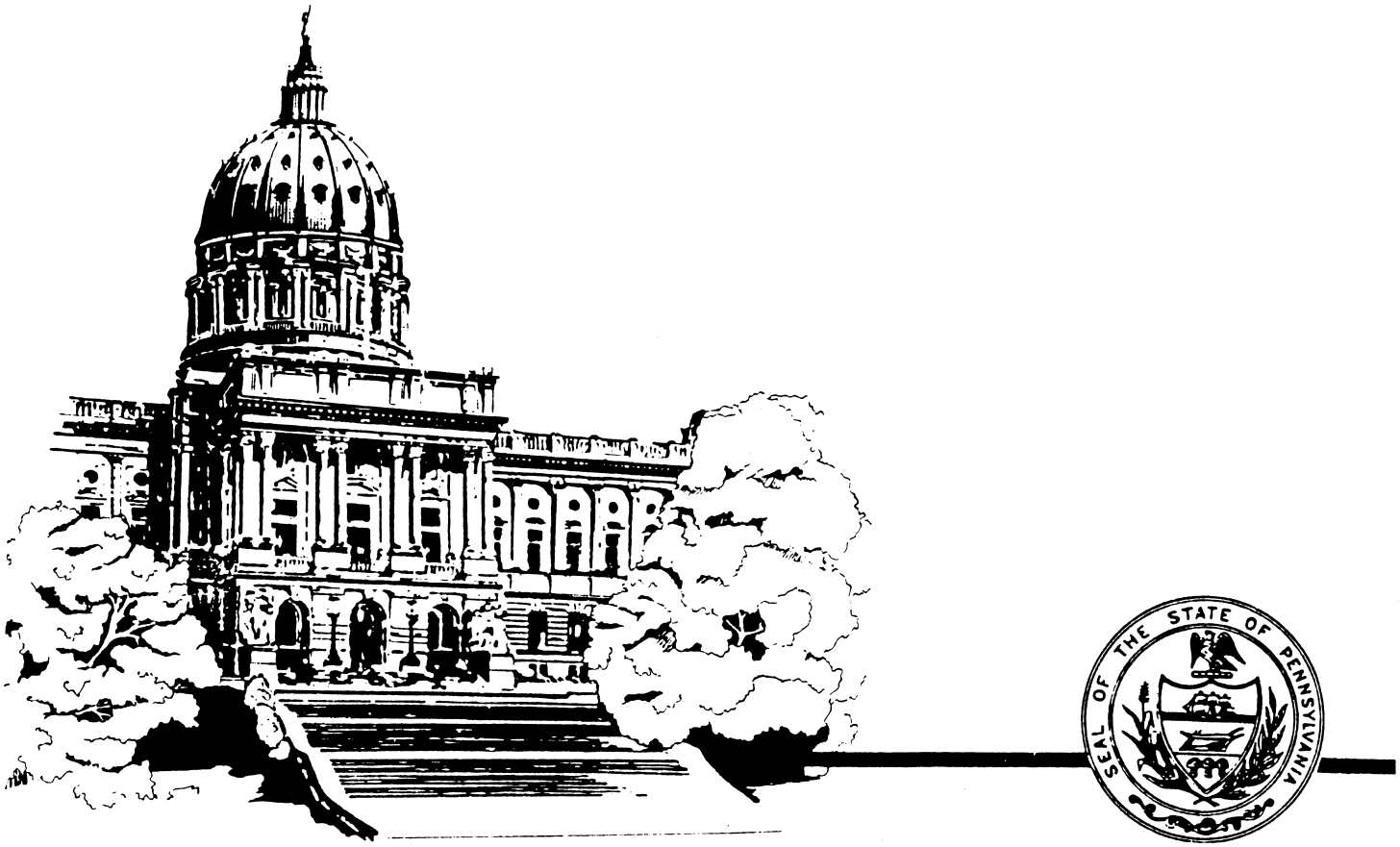
[Pa.B. Doc. No. 26-656. Filed for public inspection May 8, 2026, 9:00 a.m.]

PENNSYLVANIA BULLETIN

Volume 56 Number 19
Saturday, May 9, 2026 • Harrisburg, PA

Part III

This part contains
the Notices



NOTICES

DEPARTMENT OF BANKING AND SECURITIES

Actions on Applications

The Department of Banking and Securities (Department), under the authority in the Banking Code of 1965 (7 P.S. §§ 101—2204), the Department of Banking and Securities Code (71 P.S. §§ 733-1—733-1203) and 17 Pa.C.S. (relating to Credit Union Code), has taken the following actions on applications received for the week ending April 28, 2026.

Under section 503 E of the Department of Banking and Securities Code (71 P.S. § 733-503 E), any person wishing to comment on the following applications, may file comments in writing with the Department, for Bank Supervision, by email to ra-bnbnksbmssnsppt@pa.gov or for credit unions, by email to ra-bncusubmissions@pa.gov and trust companies, by email to ra-bntrustsuprvsninq@pa.gov. Comments must be received no later than 30 days from the date that the notice regarding acceptance of the application is published in the *Pennsylvania Bulletin*. The nonconfidential portions of the applications are on file at the Department and are available for public inspection, by appointment only, during regular business hours. To schedule an appointment, for banks (717) 783-8240, or for credit unions or trust companies (717) 783-2253.

APPLICATIONS FOR COMMENT

BANKING INSTITUTIONS

Conversions

Date	*Name and Location of Applicant*	*Status*
04-22-2026	Smithfield Trust Company Pittsburgh Allegheny County	Accepted
	Application for approval to convert from a corporation to a limited liability company.	

CREDIT UNIONS

No activity.

OTHER APPLICATION ACTIVITY

BANKING INSTITUTIONS

Branch Applications

De Novo Branches

Date	*Name and Location of Applicant*	*Location of Branch*	*Status*
04-28-2026	Mauch Chunk Trust Company Jim Thorpe Carbon County	210 East Market Street Orwigsburg Schuylkill County	Approved

Branch Relocations

Date	*Name and Location of Applicant*	*Location of Branch*	*Status*
04-23-2026	The Fidelity Deposit and Discount Bank Easton Northampton County	*To*: 16 Centre Square Easton Northampton County	Accepted
		From: 101 South 3rd Street Easton Northampton County	

CREDIT UNIONS

No activity.

The Department's website at pa.gov/agencies/dobs includes public notices for more recently filed applications.

WENDY S. SPICHER,
Secretary

[Pa.B. Doc. No. 26-657. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Applications, Actions and Special Notices

APPLICATIONS

THE PENNSYLVANIA CLEAN STREAMS LAW AND THE FEDERAL CLEAN WATER ACT

APPLICATIONS FOR NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES) PERMITS AND WATER QUALITY MANAGEMENT (WQM) PERMITS UNDER THE CLEAN STREAMS LAW AND FEDERAL CLEAN WATER ACT

This notice provides information about persons who have applied to the Department of Environmental Protection (DEP) for a new, renewed, or amended NPDES or WQM permit, or a permit waiver for certain stormwater discharges, or have submitted a Notice of Intent (NOI) for coverage under a General Permit. The applications and NOIs concern, but are not limited to, effluent discharges from sewage treatment facilities and industrial facilities to surface waters or groundwater; stormwater discharges associated with industrial activity (industrial stormwater), construction activity (construction stormwater), and municipal separate storm sewer systems (MS4s); the application of pesticides; the operation of Concentrated Animal Feeding Operations (CAFOs); and the construction of sewage, industrial waste, and manure storage, collection and treatment facilities. This notice is provided in accordance with 25 Pa. Code Chapters 91 and 92a and 40 CFR Part 122, implementing The Clean Streams Law (35 P.S. §§ 691.1—691.1001) and the Federal Clean Water Act (33 U.S.C. §§ 1251—1376). More information on the types of NPDES and WQM permits that are available can be found on DEP's website (visit www.dep.pa.gov and select Businesses, Water, Bureau of Clean Water, Wastewater Management, and NPDES and WQM Permitting Programs).

Section	*Category*
I	Individual and General WQM Permit Applications/NOIs Received, General NPDES Permit NOIs Received, and All Transfer and Minor Amendment Applications/NOIs Received
II	Individual NPDES Permits—New, Renewal, and Major Amendment Applications and Draft Permits for Discharges Relating to Sewage, Industrial Waste, Industrial Stormwater, MS4s, Pesticides and CAFOs
III	Individual NPDES Permit Applications for Discharges of Stormwater Associated with Construction Activity

Section I identifies the following applications and NOIs that have been received by DEP:

• Individual and General WQM Permit Applications Received—DEP provides a 15-day public comment period for Individual WQM Permit Applications for new and reissued permits. There is no public comment period for General WQM Permit NOIs.

• General Chapter 92a NPDES Permit NOIs Received—There is no public comment period for General NPDES NOIs received.

• All Transfer and Minor Amendment Applications/NOIs Received—Transfer and Minor Amendment Applications/NOIs received for Individual and General WQM Permits and Individual and General NPDES Permits, excluding PAG-01 and PAG-02, are identified but do not have public comment periods. DEP provides a 15-day public comment period for Individual WQM Permit Applications for amendments.

Additional information on these applications and NOIs may be reviewed by generating the "Applications and NOIs without Comment Periods Report" or, for Individual WQM Permit Applications, the "Applications Received with Comment Periods Report" on DEP's website at www.dep.pa.gov/CWPublicNotice.

Section II identifies individual NPDES permit applications received and draft permits indicating DEP's tentative determination relating to sewage, industrial waste, industrial stormwater, MS4s, pesticides and CAFOs. A 30-day public comment period applies to these applications and draft permits, except when a site-specific water quality criterion is used to establish effluent limitations, in which case a 45-day public comment period applies. The period for comment may be extended at the discretion of DEP for one additional 15-day period. Additional information, including links to draft permits and fact sheets that explain the basis for DEP's tentative determinations may be reviewed by generating the "Applications Received with Comment Periods Report" on DEP's website at www.dep.pa.gov/CWPublicNotice. Notification of 15-day extensions for comment will be provided in the "Applications Received with Comment Periods Report" (Comments column).

Section III identifies individual NPDES permit applications received and draft permits indicating DEP's tentative determination relating to stormwater discharges associated with construction activities. A 30-day public comment period applies to these applications and draft permits. The period for comment may be extended at the discretion of the Department for one additional 15-day period. Additional information may be reviewed by generating the "Applications Received with Comment Periods Report" on DEP's website at www.dep.pa.gov/CWPublicNotice.

Applications, NOIs and draft permits, where applicable, may be reviewed at the DEP office that received the application or NOI. Members of the public are encouraged to use DEP's website to obtain additional information as discussed previously.

Comments received within the appropriate comment periods for WQM and NPDES permit applications will be retained by DEP and considered in the final determinations regarding the applications. A comment submittal should include the name, address and telephone number of the writer and a concise statement to inform DEP of the exact basis of a comment and the relevant facts upon which it is based.

DEP office contact information to review applications and NOIs and to submit comments for those applications, when applicable, is as follows:

DEP Southeast Regional Office (SERO)—2 E. Main Street, Norristown, PA 19401-4915. File Review Coordinator: 484-250-5910. Email: RA-EPNPDES_SERO@pa.gov for permits in Sections I & II; RA-EPWW-SERO@pa.gov for permits in Section III.

DEP Northeast Regional Office (NERO)—2 Public Square, Wilkes-Barre, PA 18701-1915. File Review Coordinator: 570-826-5472. Email: RA-EPNPDES_NERO@pa.gov for permits in Sections I & II; RA-EPWW-NERO@pa.gov for permits in Section III.

DEP Southcentral Regional Office (SCRO)—909 Elmerton Avenue, Harrisburg, PA 17110. File Review Coordinator: 717-705-4732. Email: RA-EPNPDES_SCRO@pa.gov for permits in Sections I & II; RA-EPWW-SCRO@pa.gov for permits in Section III.

DEP Northcentral Regional Office (NCRO)—208 W. Third Street, Suite 101, Williamsport, PA 17701. File Review Coordinator: 570-327-3693. Email: RA-EPNPDES_NCRO@pa.gov for permits in Sections I & II; RA-EPWW-NCRO@pa.gov for permits in Section III.

DEP Southwest Regional Office (SWRO)—400 Waterfront Drive, Pittsburgh, PA 15222. File Review Coordinator: 412-442-4286. Email: RA-EPNPDES_SWRO@pa.gov for permits in Sections I & II; RA-EPWW-SWRO@pa.gov for permits in Section III.

DEP Northwest Regional Office (NWRO)—230 Chestnut Street, Meadville, PA 16335. File Review Coordinator: 814-332-6340. Email: RA-EPNPDES_NWRO@pa.gov for permits in Sections I & II; RA-EPWW-NWRO@pa.gov for permits in Section III.

DEP Bureau of Clean Water (BCW)—400 Market Street, Harrisburg, PA 17105. File Review Coordinator: 717-787-5017. Email: RA-EPNPDES_Permits@pa.gov.

DEP Regional Permit Coordination Office (RPCO)—400 Market Street, Harrisburg, PA 17105. File Review Coordinator: 717-772-5987. Email: RA-EPREGIONALPERMIT@pa.gov.

DEP will also accept requests or petitions for public hearings on applications. The request or petition must indicate the interest of the party filing and the reasons why a hearing is warranted. A hearing will be held if DEP determines that there is a significant public interest. If a hearing is scheduled, a notice of the hearing will be published in the *Pennsylvania Bulletin* and a newspaper of general circulation within the relevant geographical area. DEP will postpone its final determination until after a public hearing is held.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

I. Individual and General WQM Permit Applications/NOIs Received, General NPDES Permit NOIs Received, and All Transfer and Minor Amendment Applications/NOIs Received.

Application Number	*Permit Type*	*Application Type*	*Applicant Name & Address*	*Municipality, County*	*DEP Office*
PAD060111	Chapter 102 Individual NPDES Permit	Amendment Minor	Wilson School District 2601 Grandview Boulevard Reading, PA 19609-1324	Spring Township Berks County	SCRO
PAD140073	Chapter 102 Individual NPDES Permit	Transfer	S & A Homes Inc. 9599 Thistle Ridge Lane Vienna, VA 22182-1991	Patton Township Centre County	NCRO
PAD460096	Chapter 102 Individual NPDES Permit	Transfer	PSIP Saxum Church Rd Development LLC 359 Springfield Avenue 2nd Floor Summit, NJ 07901-4603	Upper Gwynedd Township Montgomery County	SERO
0915801	Joint DEP/PFBC Pesticides Permit	Amendment	Kallatch Jennifer 135 Brownsburg Road Newtown, PA 18940-9624	Wrightstown Township Bucks County	SERO
0926806	Joint DEP/PFBC Pesticides Permit	New	Veterans Choice Service LLC P.O. Box 10549 Goldsboro, NC 27532-0549	Upper Makefield Township Bucks County	SERO
1026813	Joint DEP/PFBC Pesticides Permit	New	McCaskey Ted 195 Tree Top Lane Slippery Rock, PA 16057-5102	Brady Township Butler County	NWRO

Application Number	*Permit Type*	*Application Type*	*Applicant Name & Address*	*Municipality, County*	*DEP Office*
1126800	Joint DEP/PFBC Pesticides Permit	New	Holtz Jeffrey 1797 Glendale Lake Road Patton, PA 16668-6105	Clearfield Township Cambria County	SWRO
1526804	Joint DEP/PFBC Pesticides Permit	New	Chester County Water Resources Authority 601 Westtown Road Suite 260 P.O. Box 2747 West Chester, PA 19380-0990	West Caln Township Chester County	SERO
3526801	Joint DEP/PFBC Pesticides Permit	New	Miller Mary P.O. Box 62 La Plume, PA 18440-0062	La Plume Township Lackawanna County	NERO
4626803	Joint DEP/PFBC Pesticides Permit	New	Horsham Township Montgomery County 1025 Horsham Road Horsham, PA 19044-1326	Horsham Township Montgomery County	SERO
5216802	Joint DEP/PFBC Pesticides Permit	Amendment	Lake Adventure Comm Association 5000 Lake Adventure Milford, PA 18337-9709	Dingman Township Pike County	NERO
5826804	Joint DEP/PFBC Pesticides Permit	New	Weston Heidi 111 Picket Post Lane Phoenixville, PA 19460-5619	Herrick Township Susquehanna County	NERO
PA0254151	Minor Industrial Waste Facility without ELG Individual NPDES Permit	Transfer	WC PA Direct LLC 74 Maple Street Stoughton, MA 02072-1106	Washington City Washington County	SWRO
NOEXSC147	No Exposure Certification	Renewal	Electro Space Fabricators Inc. 300 W High Street Topton, PA 19562-1420	Topton Borough Berks County	SCRO
NOEXSW057	No Exposure Certification	Renewal	Federal Express Corp 401 Paintersville Road Hunker, PA 15639-1032	Hempfield Township Westmoreland County	SWRO
NOEXSW265	No Exposure Certification	New	Trulite Glass & Aluminum Solutions 460 Nixon Road Cheswick, PA 15024-1081	Cheswick Borough Allegheny County	SWRO
PAG036275	PAG-03 NPDES General Permit for Industrial Stormwater	Transfer	Lindy Paving Inc. 1807 Shenango Road New Galilee, PA 16141-2241	Robinson Township Washington County	SWRO
PAG036618	PAG-03 NPDES General Permit for Industrial Stormwater	New	General Fabrication Systems 1 Lewis Avenue P.O. Box 286 Coraopolis, PA 15108-3369	Coraopolis Borough Allegheny County	SWRO
PAG041623	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	New	Hendrickson Donald 1150 Conway Wallrose Road Freedom, PA 15042-2327	Deerfield Township Warren County	NWRO
PAG041624	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	New	Baker Joseph 1229 Slippery Rock Road Slippery Rock, PA 16057-4031	Liberty Township Mercer County	NWRO
PAG044037	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	New	Beiler Fannie B 8512 Newburg Road Newburg, PA 17240-9703	Lurgan Township Franklin County	SCRO

Application Number	*Permit Type*	*Application Type*	*Applicant Name & Address*	*Municipality, County*	*DEP Office*
PAG123933	PAG-12 NPDES General Permit for CAFOs	Amendment	Cedar Hill Pork 120 Harbold Altland Road Wellsville, PA 17365-9535	Washington Township York County	SCRO
6393406	Pump Stations Individual WQM Permit	Amendment	Cecil Township Municipal Authority 375 Southpointe Boulevard Suite 350 Canonsburg, PA 15317-8587	Cecil Township Washington County	SWRO
WQG01432602	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	New	Baker Joseph 1229 Slippery Rock Road Slippery Rock, PA 16057-4031	Liberty Township Mercer County	NWRO
WQG01622603	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	New	Hendrickson Donald 1150 Conway Wallrose Road Freedom, PA 15042-2327	Deerfield Township Warren County	NWRO
WQG01672501	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	New	Kroh Shaun A 23 Hope Road New Bloomfield, PA 17068-8639	Conewago Township York County	SCRO

II. Individual NPDES Permits—New, Renewal, and Major Amendment Applications and Draft Permits for Discharges Relating to Sewage, Industrial Waste, Industrial Stormwater, MS4s, Pesticides and CAFOs.

Northcentral Regional Office

PA0208914, Sewage, SIC Code 3715, **Great Dane LLC**, 131 Technology Circle, Savannah, GA 31407-3019. Facility Name: Great Dane LP. This existing facility is located in Limestone Township, **Montour County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated sewage.

The receiving stream(s), County Line Branch (WWF) and County Line Branch (WWF, MF), is located in State Water Plan watershed 10-D and is classified for Warm Water Fishes and Migratory Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of 0.005 MGD.—Limits.

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Average Weekly*	*Minimum*	*Average Monthly*	*Maximum*	*IMAX*
Flow (MGD)	Report	Report Daily Max	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Dissolved Oxygen	XXX	XXX	Report Inst Min	XXX	XXX	XXX
Total Residual Chlorine (TRC)	XXX	XXX	XXX	0.5	XXX	1.6
Carbonaceous Biochemical Oxygen Demand ($CBOD_5$)						
Nov 1 - May 31	XXX	XXX	XXX	20	XXX	40
Jun 1 - Oct 31	XXX	XXX	XXX	10	XXX	20
Total Suspended Solids	XXX	XXX	XXX	10	XXX	20
Fecal Coliform (No./100 ml)	XXX	XXX	XXX	200 Geo Mean	XXX	1,000
Ammonia-Nitrogen						
Nov 1 - May 31	XXX	XXX	XXX	9	XXX	18
Jun 1 - Oct 31	XXX	XXX	XXX	3	XXX	6
E. Coli (No./100 ml)	XXX	XXX	XXX	XXX	XXX	Report

The proposed effluent limits for Outfall 101 are based on a design flow of 0.005 MGD.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Average Monthly	Maximum	IMAX
Flow (MGD)	Report	Report Daily Max	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Dissolved Oxygen	XXX	XXX	Report Inst Min	XXX	XXX	XXX
Total Residual Chlorine (TRC)	XXX	XXX	XXX	0.5	XXX	1.6
Carbonaceous Biochemical Oxygen Demand ($CBOD_5$)	XXX	XXX	XXX	25.0	XXX	50
Total Suspended Solids	XXX	XXX	XXX	30.0	XXX	60
Fecal Coliform (No./100 ml)						
Oct 1 - Apr 30	XXX	XXX	XXX	2,000 Geo Mean	XXX	10,000
May 1 - Sep 30	XXX	XXX	XXX	200 Geo Mean	XXX	1,000
Ammonia-Nitrogen						
Nov 1 - Apr 30	XXX	XXX	XXX	9.0	XXX	18
May 1 - Oct 31	XXX	XXX	XXX	3.0	XXX	6
E. Coli (No./100 ml)	XXX	XXX	XXX	XXX	XXX	Report

In addition, the permit contains the following major special conditions:

- Other Requirements
- Solids Management
- Requirements Applicable to Stormwater Outfalls

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 570-327-3693.

The EPA Waiver is in effect.

Northcentral Regional Office

PA0233196, Storm Water, SIC Code 5191, **A.M. Logging LLC**, 116 Thompson Lane, Millheim, PA 16854-9617. Facility Name: A.M. Logging Mulch Yard. This existing facility is located in Buffalo Township, **Union County**.

Description of Existing Activity: The application is for NPDES permit for an existing discharge of treated industrial stormwater.

The receiving stream(s), Unnamed Tributary to Spruce Run (HQ-CWF, MF), is located in State Water Plan watershed and is classified for High Quality-Cold Water and Migratory Fish, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for stormwater Outfall 002.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Average Monthly	Daily Maximum	IMAX
pH (S.U.)	XXX	XXX	XXX	XXX	Report	XXX
Chemical Oxygen Demand (COD)	XXX	XXX	XXX	XXX	Report	XXX
Total Suspended Solids	XXX	XXX	XXX	XXX	Report	XXX
Arsenic, Total	XXX	XXX	XXX	XXX	Report	XXX
Chromium, Total	XXX	XXX	XXX	XXX	Report	XXX
Copper, Total	XXX	XXX	XXX	XXX	Report	XXX
Pentachlorophenol	XXX	XXX	XXX	XXX	Report	XXX

In addition, the permit contains the following major special conditions:

- Stormwater Best Management Practices

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 570-327-3693.

The EPA Waiver is in effect.

Northeast Regional Office

PA0008907, Industrial, SIC Code 2821, **Crestwood Membranes, Inc., dba i2M**, 755 Oakhill Road, Mountaintop, PA 18707. Facility Name: i2M. This existing facility is located in Wright Township, **Luzerne County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated industrial waste.

The receiving stream, Watering Run (CWF, MF), is located in State Water Plan watershed 5-B and is classified for Cold Water Fishes and Migratory Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of 0.0328 MGD.

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Daily Maximum*	*Instant. Minimum*	*Average Monthly*	*Daily Maximum*	*IMAX*
Flow (MGD)	Report	Report	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0	XXX	XXX	9.0
Temperature (deg F) (°F)						
Dec 1 - Apr 30	XXX	XXX	XXX	XXX	110	XXX
May 1 - 15	XXX	XXX	XXX	XXX	91	XXX
May 16 - 31	XXX	XXX	XXX	XXX	95	XXX
Jun 1 - 15	XXX	XXX	XXX	XXX	84	XXX
Jun 16 - 30	XXX	XXX	XXX	XXX	88	XXX
Jul 1 - 31	XXX	XXX	XXX	XXX	83	XXX
Aug 1 - 31	XXX	XXX	XXX	XXX	80	XXX
Sep 1 - 15	XXX	XXX	XXX	XXX	74	XXX
Sep 16 - 30	XXX	XXX	XXX	XXX	68	XXX
Oct 1 - 15	XXX	XXX	XXX	XXX	64	XXX
Oct 16 - 31	XXX	XXX	XXX	XXX	60	XXX
Nov 1 - 15	XXX	XXX	XXX	XXX	58	XXX
Nov 16 - 30	XXX	XXX	XXX	XXX	64	XXX
Oil and Grease	XXX	XXX	XXX	15.0	XXX	30.0
Iron, Dissolved	XXX	XXX	XXX	XXX	XXX	7.0

The proposed effluent limits for IMP 101 are based on a design flow of 0 MGD (stormwater).

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Daily Maximum*	*Instant. Minimum*	*Average Monthly*	*Daily Maximum*	*IMAX*
pH (S.U.)	XXX	XXX	Report	XXX	XXX	Report
Total Suspended Solids	XXX	XXX	XXX	XXX	XXX	Report
Oil and Grease	XXX	XXX	XXX	XXX	XXX	Report
Total Nitrogen	XXX	XXX	XXX	XXX	XXX	Report
Total Phosphorus	XXX	XXX	XXX	XXX	XXX	Report
Zinc, Total	XXX	XXX	XXX	XXX	XXX	Report

The proposed effluent limits for IMP 102 are based on a design flow of 0.0328 MGD.

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Quarterly*	*Daily Maximum*	*Instant. Minimum*	*Average Quarterly*	*Daily Maximum*	*IMAX*
Flow (MGD)	XXX	Report	XXX	XXX	XXX	XXX
Internal Monitoring Point						
pH (S.U.)	XXX	XXX	Report	XXX	XXX	Report
Internal Monitoring Point						
Oil and Grease	XXX	XXX	XXX	XXX	XXX	Report
Internal Monitoring Point						

In addition, the permit contains the following major special conditions:

- Chemical Additives
- Requirements Applicable to Stormwater Outfalls
- BMPs to Address Aqueous Film Forming Foam (AFFF)

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 570-826-5472.

The EPA Waiver is in effect.

Northwest Regional Office

PA0032263, Sewage, SIC Code 8412, **PA DCNR**, Yellow Creek Street Prk, Penn Run, PA 15765. Facility Name: Yellow Creek State Park. This existing facility is located in Brush Valley Township, **Indiana County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated sewage.

The receiving stream(s), Yellow Creek (CWF), is located in State Water Plan watershed 18-D and is classified for Cold Water Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of .313 MGD.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Mass Units (lbs/day) Weekly Average	Minimum	Concentrations (mg/L) Average Monthly	Concentrations (mg/L) Weekly Average	IMAX
Flow (MGD)	Report	Report Daily Max	XXX	XXX	XXX	XXX
pH (S.U.)						
Oct 1 - Apr 30	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
May 1 - Sep 30	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Dissolved Oxygen						
Oct 1 - Apr 30	XXX	XXX	4.0 Inst Min	XXX	XXX	XXX
May 1 - Sep 30	XXX	XXX	4.0 Inst Min	XXX	XXX	XXX
Total Residual Chlorine (TRC)						
Oct 1 - Apr 30	XXX	XXX	XXX	0.5	XXX	1.6
May 1 - Sep 30	XXX	XXX	XXX	0.5	XXX	1.6
Carbonaceous Biochemical Oxygen Demand ($CBOD_5$)	65.0	99.0	XXX	25	38	50
Total Suspended Solids	78.0	117.5	XXX	30	45	60
Fecal Coliform (No./100 ml)						
Oct 1 - Apr 30	XXX	XXX	XXX	2,000 Geo Mean	XXX	10,000
May 1 - Sep 30	XXX	XXX	XXX	200 Geo Mean	XXX	1,000
Ammonia-Nitrogen						
Nov 1 - Apr 30	Report	XXX	XXX	Report	Report	XXX
May 1 - Oct 31	52.0	XXX	XXX	20.0	41.0 Daily Max	XXX
Aluminum, Total	Report	XXX	XXX	0.75	XXX	1.5
Iron, Total	Report	XXX	XXX	1.5	XXX	3
Manganese, Total	Report	XXX	XXX	1.0	XXX	2

The proposed effluent limits for Outfall 001 are based on a design flow of .313 MGD.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Mass Units (lbs/day) Weekly Average	Minimum	Concentrations (mg/L) Average Monthly	Concentrations (mg/L) Weekly Average	IMAX
E. Coli (No./100 ml)	XXX	XXX	XXX	XXX	Report Daily Max	XXX
Total Nitrogen	XXX	XXX	XXX	Report Avg Qrtly	XXX	XXX
Total Phosphorus	XXX	XXX	XXX	Report Avg Qrtly	XXX	XXX

The proposed effluent limits for Outfall 001 are based on a design flow of .313 MGD.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Mass Units (lbs/day) Weekly Average	Minimum	Concentrations (mg/L) Average Monthly	Concentrations (mg/L) Weekly Average	IMAX
Aluminum, Total (lbs/year)	XXX	715 Total Annual	XXX	XXX	XXX	XXX
Iron, Total (lbs/year)	XXX	1,430 Annl Avg	XXX	XXX	XXX	XXX
Manganese, Total (lbs/year)	XXX	954 Annl Avg	XXX	XXX	XXX	XXX

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA Waiver is in effect.

Northwest Regional Office

PA0238457, Sewage, SIC Code 4952, **Amy J Wagner**, 562 Wilson Mill Road, New Wilmington, PA 16142-3832. Facility Name: Amy J Wagner SRSTP. This existing facility is located in Wilmington Township, **Lawrence County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated SRSTP sewage.

The receiving stream(s), Unnamed Tributary of Little Neshannock Creek (TSF), is located in State Water Plan watershed 20-A and is classified for Trout Stocking, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of .0004 MGD.

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Annual Average	Maximum	IMAX
Flow (GPD)	Report Annl Avg	XXX	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Total Residual Chlorine (TRC)	XXX	XXX	XXX	Report	XXX	XXX
Biochemical Oxygen Demand (BOD_5)	XXX	XXX	XXX	10.0	XXX	20.0
Total Suspended Solids	XXX	XXX	XXX	10.0	XXX	20.0
Fecal Coliform (No./100 ml)	XXX	XXX	XXX	200	XXX	XXX

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA Waiver is in effect.

Northwest Regional Office

PA0289213, Sewage, SIC Code 8800, **Debbie & George Wnukoski**, 5740 Peck Road, Erie, PA 16510-5749. Facility Name: Debbie & George Wnukoski SRSTP. This existing facility is located in Harborcreek Township, **Erie County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated SRSTP sewage.

The receiving stream(s), Unnamed Tributary to Sixmile Creek (CWF, MF), is located in State Water Plan watershed 15-A and is classified for Cold Water Fishes and Migratory Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of .0005 MGD.

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Annual Average	Maximum	IMAX
Flow (GPD)	Report Annl Avg	XXX	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Biochemical Oxygen Demand (BOD_5)	XXX	XXX	XXX	10.0	XXX	20.0
Total Suspended Solids	XXX	XXX	XXX	10.0	XXX	20.0
Fecal Coliform (No./100 ml)	XXX	XXX	XXX	200	XXX	XXX

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA Waiver is in effect.

Northwest Regional Office

PA0289345, Sewage, SIC Code 8800, **John & Robin Maier**, 6420 Forbes Avenue, Pittsburgh, PA 15217-1719. Facility Name: John & Robin Maier SRSTP. This existing facility is located in Pittsfield Township, **Warren County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated SRSTP sewage.

The receiving stream(s), Unnamed Tributary to Gar Run (CWF), is located in State Water Plan watershed 16-B and is classified for Cold Water Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of .0005 MGD.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Annual Average	Maximum	IMAX
Flow (GPD)	Report Annl Avg	XXX	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Biochemical Oxygen Demand (BOD_5)	XXX	XXX	XXX	10.0	XXX	20
Total Suspended Solids	XXX	XXX	XXX	10.0	XXX	20
Fecal Coliform (No./100 ml)	XXX	XXX	XXX	200	XXX	XXX

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA Waiver is in effect.

Northwest Regional Office

PA0295655 A-1, Industrial, SIC Code 4911, **FirstLight Allegheny Hydro, LLC**, 99 Millers Falls Road, Northfield, MA 01360-1005. Facility Name: Allegheny 8. This existing facility is located in Washington Township, **Armstrong County**.

Description of Existing Activity: The application is for a DEP-Initiated Amendment to replace the limits for Total Suspended Solids (TSS) with only monitoring for an existing discharge of treated industrial waste.

The receiving stream, the Allegheny River (WWF), is located in State Water Plan watershed 17-E and is classified for Warm Water Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of 0.144 MGD.—Limits.

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Average Weekly*	*Minimum*	*Average Monthly*	*Maximum*	*IMAX*
Flow (MGD)	Report	XXX	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Total Suspended Solids	XXX	XXX	XXX	Report	XXX	Report
Oil and Grease	XXX	XXX	XXX	15.0	XXX	30.0

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA Waiver is in effect.

Northwest Regional Office

PA0295663, Industrial, SIC Code 4911, **FirstLight Allegheny Hydro, LLC**, 99 Millers Falls Road, Northfield, MA 01360-1005. Facility Name: Allegheny 9. This existing facility is located in Washington Township, **Armstrong County**.

Description of Existing Activity: The application is for a DEP-Initiated Amendment to replace the limits for Total Suspended Solids (TSS) with only monitoring for an existing discharge of treated industrial waste.

The receiving stream, the Allegheny River (WWF), is located in State Water Plan watershed 17-D and is classified for Warm Water Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of 0.144 MGD.—Limits.

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Average Weekly*	*Minimum*	*Average Monthly*	*Maximum*	*IMAX*
Flow (MGD)	Report	XXX	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Total Suspended Solids	XXX	XXX	XXX	Report	XXX	Report
Oil and Grease	XXX	XXX	15.0	Report	XXX	30.0

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA Waiver is in effect.

Northwest Regional Office

PA0296309, Pesticides, SIC Code 0782, **USDA Forest Service**, 4 Farm Colony Drive, Warren, PA 16365-5206.

Description of Proposed Activity: The application is for a new NPDES permit for a new discharge associated with the application of pesticides in **Elk, Forest, McKean** and **Warren Counties**.

The receiving streams are located within the Allegheny National Forest under the USDA jurisdiction in State Water Plan watersheds Upper Allegheny River and Upper Clarion River and are classified for Cold Water Fishes, Warm Water Fishes, High-Quality and Exceptional Value, aquatic life, water supply and recreation. Applicators are required to follow product labeling instructions of pesticides, which may include provisions to reduce application doses and notify public water suppliers in the event applications are conducted near public water supply intakes. The discharges associated with the pesticide applications are not expected to affect public water supplies.

PA DEP has made a tentative determination to issue the NPDES permit subject to the terms and conditions of the permit. An anti-degradation analysis has been completed to document that pesticide application activities in High Quality (HQ) or Exceptional Value (EV) waters will be conducted in a manner that minimizes adverse environmental effects. The proposed permit contains conditions that require implementation of Pest Management Measures, Recordkeeping and Annual Reporting Requirements, Corrective Action Documentation and Reporting, and a Pesticides Discharge Management Plan.

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 814-332-6078.

The EPA waiver is in effect.

Southcentral Regional Office

PA0282146, Storm Water, SIC Code 3599, **Polyfab Corporation**, 92A Dries Road, Reading, PA 19605. Facility Name: Reading Plastic & Metal. This facility is located in Ontelaunee Township, **Berks County**.

Description of Activity: The application is for a new NPDES permit for an existing discharge of stormwater associated with industrial activity.

The receiving stream(s), Maiden Creek (WWF, MF) and Willow Creek (HQ-CWF, MF), is located in State Water Plan watershed 3-B and is classified for Warm Water Fishes, Migratory Fishes, and High Quality-Cold Water Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 and Outfall 003:

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Average Weekly*	*Minimum*	*Average Monthly*	*Daily Maximum*	*IMAX*
pH (S.U.)	XXX	XXX	XXX	XXX	Report	XXX
Biochemical Oxygen Demand (BOD_5)	XXX	XXX	XXX	XXX	Report	XXX
Chemical Oxygen Demand (COD)	XXX	XXX	XXX	XXX	Report	XXX
Total Suspended Solids	XXX	XXX	XXX	XXX	Report	XXX
Oil and Grease	XXX	XXX	XXX	XXX	Report	XXX
Nitrate-Nitrite as N	XXX	XXX	XXX	XXX	Report	XXX
Total Nitrogen	XXX	XXX	XXX	XXX	Report	XXX
Total Phosphorus	XXX	XXX	XXX	XXX	Report	XXX
Aluminum, Total	XXX	XXX	XXX	XXX	Report	XXX
Iron, Total	XXX	XXX	XXX	XXX	Report	XXX
Zinc, Total	XXX	XXX	XXX	XXX	Report	XXX

Outfall 001 is representative of Outfall 002.

In addition, the permit contains the following major special conditions:

- Stormwater Outfalls and Authorized Non-Stormwater Discharges
- Best Management Practices (BMPs), including applicable BMPs from Appendix U from the PAG-03
- Routine Inspections
- Preparedness, Prevention, and Contingency (PPC) Plan
- Stormwater Monitoring Requirements (including benchmarks for pH, BOD_5, COD, TSS, Oil and Grease, and Nitrate + Nirite-Nitrogen)
- Other Requirements

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 717-705-4732.

The EPA Waiver is in effect.

Southeast Regional Office

PA0033880, Sewage, SIC Code 4952, **Boyertown Area School District**, 1131 Montgomery Avenue, Boyertown, PA 19512. Facility Name: New Hanover Upper Frederick Elementary School STP. This existing facility is located in New Hanover Township, **Montgomery County**.

Description of Existing Activity: The application is for a renewal of an NPDES permit for an existing discharge of treated sewage.

The receiving stream, Unnamed Tributary to Swamp Creek (TSF, MF), is located in State Water Plan watershed 3-E and is classified for Trout Stocking and Migratory Fishes, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of .01 MGD.—Limits.

	Mass Units (lbs/day)			*Concentrations (mg/L)*		
Parameters	*Average Monthly*	*Average Weekly*	*Minimum*	*Average Monthly*	*Maximum*	*IMAX*
Flow (GPD)	Report	Report Daily Max	XXX	XXX	XXX	XXX
pH (S.U.)						
Sep 1 - May 31	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0
Jun 1 - Aug 31	XXX	XXX	6.0 Inst Min	XXX	XXX	9.0

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Average Monthly	Maximum	IMAX
Dissolved Oxygen						
Sep 1 - May 31	XXX	XXX	5.0 Inst Min	XXX	XXX	XXX
Jun 1 - Aug 31	XXX	XXX	5.0 Inst Min	XXX	XXX	XXX
Total Residual Chlorine (TRC)						
Sep 1 - May 31	XXX	XXX	XXX	0.5	XXX	1.0
Jun 1 - Aug 31	XXX	XXX	XXX	0.5	XXX	1.0
Carbonaceous Biochemical Oxygen Demand ($CBOD_5$)	0.834	XXX	XXX	10.0	XXX	20
Total Suspended Solids	0.834	XXX	XXX	10.0	XXX	20
Fecal Coliform (No./100 ml)						
Oct 1 - Apr 30	XXX	XXX	XXX	200 Geo Mean	XXX	1,000*
May 1 - Sep 30	XXX	XXX	XXX	200 Geo Mean	XXX	1,000
Total Nitrogen	XXX	XXX	XXX	Report	XXX	XXX
Ammonia-Nitrogen	0.250	XXX	XXX	3.0	XXX	6
Total Phosphorus	0.125	XXX	XXX	1.5	XXX	3

*Shall not exceed in more than 10% of samples.

The proposed effluent limits for Outfall 001 are based on a design flow of .01 MGD.—Limits.

Parameters	Mass Units (lbs/day) Average Monthly	Average Weekly	Minimum	Concentrations (mg/L) Average Monthly	Maximum	IMAX
E. Coli (No./100 ml)	XXX	XXX	XXX	XXX	XXX	Report

In addition, the permit contains the following major special conditions:

A. No Stormwater

B. Acquire Necessary Property Rights

C. Proper Sludge Disposal

D. Abandon STP When Municipal Sewers Available

E. Chlorine Optimization

F. Dry Stream Discharge

G. Operator Notification

H. Fecal Coliform Reporting

I. Solids Management

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 484-250-5910.

The EPA Waiver is in effect.

Southwest Regional Office

PA0218413 A-2, Sewage, SIC Code 4952, **Economy Borough Municipal Authority**, 2860 Conway Wallrose Road, Baden, PA 15005-2306. Facility Name: Big Sewickley Creek WWTP. This existing facility is located in Economy Borough, **Beaver County**.

Description of Existing Activity: The application is for NPDES permit for an existing discharge of treated sewage.

The receiving stream(s), Big Sewickley Creek (TSF), is located in State Water Plan watershed 20-G and is classified for Trout Stocking, aquatic life, water supply and recreation. The discharge is not expected to affect public water supplies.

The proposed effluent limits for Outfall 001 are based on a design flow of 1.25 MGD.

Parameters	Mass Units (lbs/day) Average Monthly	Weekly Average	Instantaneous Minimum	Concentrations (mg/L) Average Monthly	Weekly Average	IMAX
Flow (MGD)	Report	Report Daily Max	XXX	XXX	XXX	XXX
pH (S.U.)	XXX	XXX	6.0	XXX	XXX	9.0
Dissolved Oxygen	XXX	XXX	6.0	XXX	XXX	XXX

Parameters	Mass Units (lbs/day) Average Monthly	Weekly Average	Instantaneous Minimum	Concentrations (mg/L) Average Monthly	Weekly Average	IMAX
Carbonaceous Biochemical Oxygen Demand ($CBOD_5$)						
Nov 1 - Apr 30	145.0	215.0	XXX	14.0	21.0	28
May 1 - Oct 31	95.0	145.0	XXX	9.5	14.0	19
Biochemical Oxygen Demand (BOD_5) Raw Sewage Influent	Report	Report	XXX	Report	Report	XXX
Total Suspended Solids	310.0	465.0	XXX	30.0	45.0	60
Total Suspended Solids Raw Sewage Influent	Report	Report	XXX	Report	Report	XXX
Fecal Coliform (No./100 ml)						
Oct 1 - Apr 30	XXX	XXX	XXX	2,000 Geo Mean	XXX	10,000
May 1 - Sep 30	XXX	XXX	XXX	200 Geo Mean	XXX	1,000
E. Coli (No./100 ml)	XXX	XXX	XXX	XXX	XXX	Report
Ultraviolet light transmittance (%)	XXX	XXX	Report	XXX	XXX	XXX
Ammonia-Nitrogen						
Nov 1 - Apr 30	36.0	XXX	XXX	3.5	XXX	7
May 1 - Oct 31	20.0	XXX	XXX	2.0	XXX	4
Boron, Total	Report	Report Daily Max	XXX	Report	Report Daily Max	XXX
Copper, Total (ug/L)	0.15	0.19 Daily Max	XXX	14.3	18.5 Daily Max	18.5
Zinc, Total (ug/L)	1.61	1.61 Daily Max	XXX	154.0	154.0 Daily Max	154
Total Nitrogen	XXX	XXX	XXX	XXX	Report Daily Max	XXX
Total Phosphorus	XXX	XXX	XXX	XXX	Report Daily Max	XXX

You may make an appointment to review the DEP files on this case by calling the File Review Coordinator at 412-442-4000.

The EPA Waiver is not in effect.

III. Individual NPDES Permit Applications for Discharges of Stormwater Associated with Construction Activity.

Northeast Regional Office

Applicant: **Tannersville Point LLC**

Applicant Address: 833 Scranton-Carbondale Hwy., Dickson City, PA 18508

Application Number: **PAD450241**

Application Type: New

Municipality/County: Pocono Township, **Monroe County**

Project Site Name: Tannersville Point Apartments

Total Earth Disturbance Area (acres): 21.29 acres

Surface Waters Receiving Stormwater Discharges: Pocono Creek (HQ-CWF-MF) unnamed tributary to Bulger's Run (HQ-CWF, MF) and unnamed tributary to Pocono Creek (HQ-CWF, MF)

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: The project develops a 26.96-acre parcel for six apartment buildings with 280 units in a mid-rise multifamily apartment complex 0.37 mile west of the intersection of SR 611 with Warner Road. I-80 provides the boundary to the west of the project site. An additional 1.02 acres along Warner Road is also included in the project area for utility connections.

Special Conditions: N/A—No site-specific special conditions proposed.

You may review the permit application file by contacting DEP's File Review Coordinator at 570-826-5472.

Southeast Regional Office

Applicant: **Toll Mid-Atlantic LP Company, Inc., c/o Michael Downs**

Applicant Address: 1140 Virginia Drive, Fort Washington, PA 19034

Application Number: **PAD460111**

Application Type: New

Municipality/County: West Norriton Township, **Montgomery County**

Project Site Name: Riverview Development

Total Earth Disturbance Area (acres): 29.2 acres

Surface Waters Receiving Stormwater Discharges: Schuylkill River (WWF, MF)

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: Soil Stockpiling and Site Restoration.

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 484-250-5910.

Southcentral Regional Office

Applicant: **PPL Electric Utilities Corp**

Applicant Address: 1639 Church Road, Allentown, PA 18104

Application Number: **PAD500028**

Application Type: New

Municipality/County: Carroll Township, Centre Township, Rye Township, and Middlesex Township, **Perry County** and **Cumberland County**

Project Site Name: JUNI-BERN Trans Line Rebuild Project

Total Earth Disturbance Area (acres): 417.5 acres

Surface Waters Receiving Stormwater Discharges: Conodoquinet Creek (WWF, MF), Little Juniata Creek (CWF, MF), and Shermans Creek (HQ-WWF, MF)

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: The proposed project is a phase project under PPL Electric Utilities Corporation. PPL intends to relocate approximately 2.45 miles of Juniata-Shermansdale (JUNI-SDLE) transmission line during Phase 1 and 13.34 miles of the Juniata-Bernheisel transmission line.

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 717-705-4802.

Northwest Regional Office

Applicant: **Hoodlebug Solar Energy LLC**

Applicant Address: 330 N Wabash Avenue, Chicago, IL 60611

Application Number: **PAD320010**

Application Type: New

Municipality/County: Brush Valley Township, **Indiana County**

Project Site Name: Hoodlebug Solar Site

Total Earth Disturbance Area (acres): 610 acres

Surface Waters Receiving Stormwater Discharges: Brush Creek (CWF), UNT to Brush Creek (CWF), UNT to Yellow Creek (CWF), EV Wetlands

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: Development of a solar generation facility.

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 814-332-6078.

Regional Permit Coordination Office

Applicant: **Pennsylvania Turnpike Commission**

Applicant Address: 700 S Eisenhower Blvd, Middletown, PA 17057

Application Number: **PAD150415**

Application Type: New

Municipality/County: Charlestown Township, **Chester County**

Project Site Name: T319 PTC Offsite Waste Area

Total Earth Disturbance Area (acres): 25.82 acres

Surface Waters Receiving Stormwater Discharges: tributary of Valley Creek (EV-MF)

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: Fill site and construction staging area to support construction activities along adjacent I-76 corridor (PA Turnpike).

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 717-772-5987.

Regional Permit Coordination Office

Applicant: **Pennsylvania Turnpike Commission**

Applicant Address: 700 S Eisenhower Blvd, Middletown, PA 17057

Application Number: **PAD390365**

Application Type: New

Municipality/County: South Whitehall Township, **Lehigh County**

Project Site Name: Replacement of Bridge No. NB-364 at MP A59.41 (over Jordan Creek)

Total Earth Disturbance Area (acres): 11.93 acres

Surface Waters Receiving Stormwater Discharges: Jordan Creek (EV-TSF, MF) and to Jordan Creek (EV-TSF, MF) via EV Wetlands

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: Turnpike bridge over Jordan Creek will be removed and replaced.

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 717-772-5987.

Southcentral Regional Office

Applicant: **Ethos Krick Lane Associates, LLC**

Applicant Address: 325 Sentry Parkway, Suite 200, Blue Bell, PA 19422

Application Number: **PAD060151**

Application Type: New

Municipality/County: South Heidelberg Township, **Berks County**

Project Site Name: Ethos West

Total Earth Disturbance Area (acres): 78.29 acres

Surface Waters Receiving Stormwater Discharges: Little Cacoosing Creek (WWF, MF) and Cacoosing Creek (CWF, MF) via EV wetlands

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: Construction of new warehouse and associated facilities.

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 717-705-4802.

Southcentral Regional Office

Applicant: **Hanover Community Church**

Applicant Address: 1959 Smith Station Road, Hanover, PA 17331

Application Number: **PAD670142**

Application Type: New

Municipality/County: Heidelberg Township, **York County**

Project Site Name: Hanover Community Church

Total Earth Disturbance Area (acres): 2.48 acres

Surface Waters Receiving Stormwater Discharges: Porters Creek via EV Wetlands (WWF, MF)

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: Demolition of an existing structure and construction of two parking lots and a new building for a church.

Special Conditions: N/A

You may review the permit application file by contacting DEP's File Review Coordinator at 717-705-4802.

Northeast Regional Office

Applicant: **Hazleton Area School District**

Applicant Address: 1515 W 23rd Street, Hazleton, PA 18202

Application Number: **PAD400115**

Application Type: New

Municipality/County: Freeland Borough, **Luzerne County**

Project Site Name: Freeland Elementary School

Total Earth Disturbance Area (acres): 3.76 acres

Surface Waters Receiving Stormwater Discharges: Black Creek (CWF, MF) and Pond Creek (HQ-CWF, MF)

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: HASD proposes a school addition and parking lot modifications for Freeland Elementary/Middle School to construct a minor building additional and complete site improvements to reduce congestion and improve safety during drop-off and pick-up hours.

Special Conditions: N/A—No site-specific special conditions proposed.

You may review the permit application file by contacting DEP's File Review Coordinator at 570-826-5472.

Southwest Regional Office

Applicant: **CPV Maple Hill Solar, LLC**

Applicant Address: 50 Braintree Hill Office Park, Suite 300, Braintree, MA 02184

Application Number: **PAD110009 A-1**

Application Type: Renewal

Municipality/County: Portage Township, **Cambria County**

Project Site Name: CPV Maple Hill Solar

Total Earth Disturbance Area (acres): 482.4 acres

Surface Waters Receiving Stormwater Discharges: Trout Run

Proposed Effluent Limitations: The draft permit requires implementation of an Erosion and Sediment Control (E&S) Plan and a Post-Construction Stormwater Management (PCSM) Plan and compliance with Federal technology-based effluent standards at 40 CFR Part 450.

Rate or Frequency of Discharge: Stormwater discharges during and following earth disturbance activities are precipitation-induced and will vary depending on factors such as the area of impervious surfaces, the size and placement of best management practices (BMPs) and the intensity of precipitation.

Project Description: 100 MW solar power generation facility with associated infrastructure including gravel roads, transmission lines, and perimeter fencing. The project is fully constructed and operational. This major amendment includes the installation of additional Erosion & Sediment measures and Post Construction Stormwater facilities. It also reflects minor adjustments to certain project facilities (switchyard and access roads) that were implemented during project construction.

Special Conditions: 1. Prior to the beginning of work, all public water supplies or other water-related activities located downstream that may be affected by turbidity increases or other water quality changes caused by said work shall be sufficiently notified in advance to allow for preparation of any water quality changes. These include, at a minimum, Portage Boro Mun Water Auth PWS ID 4110027, Chuck Grouse, Superintendent, 814.736.9642. 2. Infiltration testing shall be performed after construction of PCSM BMPs to verify the accuracy of the assumed infiltration rates used in the design of PCSM BMPs. Any deviation from the designed rates used in the calculations included with the approved permit application must be presented to the Department and demonstrated to not negatively impact the basins functions prior to submission of the Notice of Termination (NOT) for the permit. If a deviation from the design rates occurs which will cause Volume and Water Quality provided by the BMPs to no longer meet the regulations and/or guidance (SWM Manual or other DEP guidance) or otherwise negatively impact the function of these BMPs, a plan amendment must be submitted with calculations demonstrating regulatory compliance prior to submission of the Notice of Termination (NOT) for the permit. 3. As property rights are not conveyed by the issuance of this permit, any property rights for construction or discharges which will not be on property owned by the applicant shall be considered and obtained prior to conducting any earth disturbance. Any changes due to not obtaining property rights will be subject to the permit amendment process.

You may review the permit application file by contacting DEP's File Review Coordinator at 412-442-4286.

STATE CONSERVATION COMMISSION

PROPOSED NUTRIENT MANAGEMENT PLANS RELATED TO APPLICATIONS FOR NPDES PERMITS FOR CAFOs

This notice provides information about agricultural operations that have submitted nutrient management plans (NMPs) for approval under 3 Pa.C.S. Chapter 5 and that have or anticipate submitting applications for new, amended or renewed (National Pollutant Discharge Elimination System) NPDES permits, or Notices of Intent (NOIs) for coverage under a general permit, for CAFOs, under 25 Pa. Code Chapter 92a. This notice is provided in accordance with 25 Pa. Code Chapter 92a and 40 CFR Part 122, implementing The Clean Streams Law and the Federal Clean Water Act.

Based upon preliminary reviews, the State Conservation Commission (SCC) or County Conservation Districts (CCD) working under a delegation agreement with the SCC have completed an administrative review of NMPs described. These NMPs are published as proposed plans for comment prior to taking final actions. The NMPs are available for review at the CCD office for the county where the agricultural operation is located. A list of CCD office locations is available at http://www.nacdnet.org/about/districts/directory/pa.phtml or can be obtained from the SCC at the office address listed or by calling 717-787-8821.

Individuals wishing to comment on an NMP are invited to submit a statement outlining their comments on the plan to the CCD, with a copy to the SCC for each NMP, within 30 days from the date of this public notice. Comments received within the respective comment periods will be considered in the final determinations regarding the NMPs. Comments should include the name, address and telephone number of the writer and a concise statement to inform the SCC of the exact basis of the comments and the relevant facts upon which they are based. Comments should be sent to the SCC, Agriculture Building, Room 310, 2301 North Cameron Street, Harrisburg, PA 17110.

Individuals in need of accommodations should contact the SCC through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

ACT 38
NUTRIENT MANAGEMENT PLANS
CAFO PUBLIC NOTICE SPREADSHEET—APPLICATIONS

Agricultural Operation Name and Address	*County*	*Total Acres*	*Animal Equivalent Units*	*Animal Type*	*Special Protection Waters (HQ or EV or NA)*	*Renewal/New*
Rohrer Dairy Farms LLC Michael Rohrer 124 Charlestown Road Washington Borough, PA 17582	Lancaster County	1,301.8	4,523.45	Dairy	NA	Renewal
Troy Finger 170 Werners Road Fredicksburg, PA 17026	Lebanon County	109.7	259.15	Broiler	NA	Renewal

PUBLIC WATER SUPPLY PERMITS

Under the Pennsylvania Safe Drinking Water Act (35 P.S. §§ 721.1—721.17), the following parties have applied for Public Water Supply (PWS) permits to construct or substantially modify public water systems.

Individuals wishing to comment on permit applications are invited to submit statements to the office listed before the application within 30-days of this public notice. Comments received within this 30-day comment period will be considered in the formulation of the final determinations regarding an application. A comment should include the name, address and telephone number of the writer and a concise statement to inform the Department of Environmental Protection (DEP) the exact basis of a comment and the relevant facts upon which it is based. A public hearing may be held after consideration of comments received during the 30-day public comment period.

Following the comment period, DEP will make a final determination regarding the proposed permit. Notice of this final determination will be published in the *Pennsylvania Bulletin* at which time this determination may be appealed to the Environmental Hearing Board.

The permit application and related documents are on file at the office listed before the application and available for public review. Arrangements for inspection and copying information should be made with the office listed before the application.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

SAFE DRINKING WATER

Application(s) Received Under the Pennsylvania Safe Drinking Water Act (35 P.S. §§ 721.1—721.17).

Northcentral Region: Safe Drinking Water Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Angie Hall, Clerical II, 570-327-3490.

Application No. 4126503, 4-log Treatment of Viruses for Groundwater Sources, Public Water Supply.

Applicant	**Pinn Creek Inn**
Address	RR 4 Jersey Shore, PA 17740-9804
Municipality	Watson Township
County	**Lycoming**
Responsible Official	Phil Staccone RR 4 Jersey Shore, PA 17740-9804
Consulting Engineer	Riley Herndon 208 West Third Street Suite 101 Williamsport, PA 17701
Application Received	April 10, 2026
Description	4-log.

Northeast Region: Safe Drinking Water Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Joseph Cherinko, P.E., Environmental Engineer, 570-826-2090.

Application No. 3926504, Construction, Public Water Supply

Applicant	**Lehigh County Authority**
Address	1053 Spruce Road Allentown, PA 18106
Municipality	Upper Macungie Township
County	**Lehigh County**
Responsible Official	Amy Kunkel 1053 Spruce Road Allentown, PA 18106
Consulting Engineer	Edward J. Dimond, P.E. 10000 Lincoln Drive East Suite 300 Marlton, NJ 08053
Application Received	April 9, 2026
Description	Construction of a new booster station with chlorination.

Southcentral Region: Safe Drinking Water Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Darin Horst, Environmental Engineer, 717-705-4948.

Application No. 0526501, Construction, Public Water Supply.

Applicant	**Mega Truck Stop Breezewood**
Address	167 Post House Road Breezewood, PA 15533
Municipality	East Providence Township
County	**Bedford County**
Responsible Official	Durlabhji Ukani 167 Post House Road Breezewood, PA 15533
Consulting Engineer	RHS Engineering 2909 Conococheague Lane Greencastle, PA 17225
Application Received	January 14, 2026
Description	Treatment system equipment replacements.

Contact: Joseph M. Mattucci, Program Manager, 717.705.4708.

Application No. 0626511, Construction, Public Water Supply.

Applicant	**Birdsboro Municipal Authority**
Address	202 East Main Street Birdsboro, PA 19508
Municipality	Birdsboro Borough
County	**Berks County**
Responsible Official	Kelly J Yanos 202 E Main St Birdsboro, PA 19508
Consulting Engineer	Dan Hopkins Entech Engineering, Inc. 201 Penn St Suite 300 P.O. Box 32 Reading, PA 19603
Application Received	March 31, 2026
Description	Coagulant feed system to reduce the HAA5s levels in distribution.

Contact: Thomas Filip, Environmental Engineer, 717-705-4708.

Application No. 0126505, Construction, Public Water Supply.

Applicant	**Dave & Jane's Crabhouse**
Address	2989 Tract Rd Fairfield, PA 17320-9333
Municipality	Liberty Township
County	**Adams County**
Responsible Official	David Ott 2989 Tract Rd Fairfield, PA 17320-9333
Consulting Engineer	C.S. Davidson, Inc. 38 N Duke St York, PA 17401-1210
Application Received	April 13, 2026
Description	Installation of contact tanks, booster pump and removal of a UV light.

LAND RECYCLING AND ENVIRONMENTAL REMEDIATION

UNDER ACT 2, 1995 PREAMBLE 1

Acknowledgment of Notice(s) of Intent to Remediate Submitted Under the Land Recycling and Environmental Remediation Standards Act (35 P.S. §§ 6026.101—6026.908).

Sections 302—305 of the Land Recycling and Environmental Remediation Standards Act (Act) require the Department of Environmental Protection (DEP) to publish in the *Pennsylvania Bulletin* an acknowledgment noting receipt of any Notices of Intent (NOI) to Remediate. An acknowledgment of the receipt of a NOI to Remediate is used to identify a site where an individual proposes to, or has been required to, respond to a release of a regulated substance at a site. Individuals intending to use the background standard, Statewide health standard, the site-specific standard, or who intend to remediate a site as a special industrial area, must file a NOI to Remediate with DEP. A NOI to Remediate filed with DEP provides a brief description of the location of the site, a list of known or suspected contaminants at the site, the proposed remediation measures for the site, and a description of the intended future use of the site. An individual who demonstrates attainment of one, or a combination of the cleanup standards, or who receives approval of a special industrial area remediation identified under the Act, will be relieved of further liability for the remediation of the site for any contamination identified in reports submitted to and approved by DEP. Furthermore, an individual shall not be subject to citizen suits or other contribution actions brought by responsible individuals not participating in the remediation.

Under Sections 304(n)(1)(ii) and 305(c)(2) of the Act, there is a 30-day public and municipal comment period for sites proposed for remediation using a site-specific standard, in whole or in part, and for sites remediated as a special industrial area. This period begins when a summary of the NOI to Remediate is published in a newspaper of general circulation in the area of the site. For the following identified site(s), proposed for remediation to a site-specific standard or as a special industrial area, the municipality, within which the site is located, may request to be involved in the development of the remediation and reuse plans for the site if the request is made within 30-days of the following specified date. During this comment period the municipality may request that the following identified individual, as the remediator of the site, develop and implement a public involvement plan. Requests to be involved, and comments, should be directed to the remediator of the site.

For further information concerning plans or reports, please contact the Regional Office Program Manager previously listed in the notice.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

The DEP has received the following Notice(s) of Intent to Remediate.

Northeast Region: Environmental Cleanup & Brownfields Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Program Manager.

D. Lauer Pad 1, Primary Facility ID # **862138**, 3075 Garrison Rd, Springville, PA 18441, Springville Township, **Susquehanna County**. Resource Environmental Management, 50 Maple Street, Montrose, PA 18801 on behalf of Coterra Energy Inc., 501 Marketplace Avenue, Suite 500, Coraopolis, PA 15108, submitted a Notice of Intent to Remediate. Soil and groundwater were impacted by total chloride, total (soil) and dissolved (groundwater): aluminum, barium, boron, iron, lithium, manganese, selenium, strontium, vanadium, and zinc, plus methanol and pyridine. The Notice of Intent to Remediate was published in *The Susquehanna County Independent* on April 15, 2026. Application received: April 20, 2026.

Contact: Program Manager.

Turkey Hill Store # 237, Primary Facility ID # **887759**, 401 South Blakely St, Dunmore, PA 18512, Dunmore Borough, **Lackawanna County**. LaBella Associates, 1000 Dunham Dr, Suite B, Dunmore, PA 18512 on behalf of Turkey Hill Mint Markets, LLC, 165 Flanders Rd, Westborough, MA 01581, submitted a Notice of Intent to Remediate. Soil was contaminated by a surface spill of gasoline. The Notice of Intent to Remediate was published in *The Scranton Times* on April 14, 2026. Application received: April 23, 2026.

625 E Lynwood, Primary Facility ID # **891653**, 625 E Lynwood, Allentown, PA 18103, Salisbury Township, **Lehigh County**. Element Environmental Solutions, Inc., P.O. Box 921, Adamstown, PA 19150 on behalf of Cityline Construction, 822 W Hamilton St, Allentown, 822 W Hamilton St, Allentown, PA 18101, submitted a Notice of Intent to Remediate. Soil was impacted by Arsenic during greenhouse operations. The Notice of Intent to Remediate was published in *The Morning Call* on April 17, 2026. Application received: April 22, 2026.

Guiton Pad 1, Primary Facility ID # **885463**, 1024 Flynn Road, Montrose, PA 18801, Middletown Township, **Susquehanna County**. Resource Environmental Management, 50 Maple Street, Montrose, PA 18801 on behalf of Coterra Energy Inc., 501 Marketplace Avenue, Suite 500, Coraopolis, PA 15108, submitted a Notice of Intent to Remediate. Soil was impacted by total chloride, aluminum, barium, boron, iron, lithium, manganese, selenium, strontium, vanadium, and zinc. The Notice of Intent to Remediate was published in *The Susquehanna County Independent* on April 1, 2026. Application received: April 16, 2026.

Southwest Region: Environmental Cleanup & Brownfields Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Janelle Hromyak, Clerical Assistant, 412-442-4091.

EQT Mingo Well Pad, Primary Facility ID # **887571**, 50 Patterson Road, Finleyville, PA 15332, Union Township, **Washington County**. Groundwater and Environmental Services, Inc., 508 Thomson Park Drive, Cranberry Township, PA 16066 on behalf of Kyle Borden, EQT Corporation, 2200 Energy Drive, Canonsburg, PA 15317, submitted a Notice of Intent to Remediate. Contamination on site resulted from a spill of a mixture of fresh water and residual produced fluid to the well pad surface. Impacts were limited to well pad aggregates, fill material, and shallow groundwater and were contained within the boundaries of the site limit of disturbance. The current use of the property is as an unconventional natural gas well production site. Future use of the property is anticipated to continue to be for natural gas production. Surface water and air quality were not impacted by the spill. The Notice of Intent to Remediate was published in *Observer-Reporter* on April 24, 2026. Application received: April 22, 2026.

DETERMINATION OF APPLICABILITY FOR MUNICIPAL WASTE GENERAL PERMITS

Application(s) Received Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Municipal Waste Regulations for Determination of Applicability for a General Permit to Operate Municipal Waste Processing Facilities and/or the Beneficial Use of Municipal Waste.

Southeast Region: Waste Management Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Mohamad Mazid, Chief, Technical Services, 484-250-5960, RA-EPWM-SERO-PERMITS@pa.gov.

WMGM055SE002. WB SE Chester, LLC, 150 Monument Road, Suite 3000, Bala Cynwyd, PA 19004, London Grove Township, **Chester County**. This general permit application is for a Determination of Applicability (DOA) under the conditions defined within General Permit No. WMGM055 to operate a renewable natural gas (RNG) facility named WAGA RNG Processing Facility at the SECCRA Community Landfill, located in London Grove Township, Chester County. Application received: April 14, 2026. Deemed administratively complete: April 20, 2026.

Comments or questions concerning the application should be directed to Shawn Mountain, Waste Management Program Manager, phone 484-250-5960, or by e-mail at E-Mail Address: RA-EPWM-SERO-PERMITS@pa.gov, Southeast Region, 2 East Main Street, Norristown, PA 19401, 484-250-5900. TDD users may contact the Department through the Pennsylvania Hamilton Relay Service, (800) 654-5984. Public comments must be submitted within 60 days of this notice and may recommend revisions to, and approval or denial of the application.

Southwest Region: Waste Management Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Waste Management Program Manager.

WMGM019SW009. Kilbuck Builder Supply, LLC, 310 Toms Run Road, Sewickley, PA 15143, Kilbuck Township, **Allegheny County**. A Determination of Applicability for coverage under Municipal Waste General Permit No. WMGM019 was received. Application received: February 19, 2026. Deemed administratively complete: March 18, 2026.

Comments or questions concerning the application should be directed to RA-EP-EXTUPLSWRO@pa.gov, Southwest Region, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000. TDD users may contact the Department through the Pennsylvania Hamilton Relay Service, (800) 654-5984. Public comments must be submitted within 60 days of this notice and may recommend revisions to, and approval or denial of the application.

DETERMINATION OF APPLICABILITY FOR MUNICIPAL WASTE GENERAL PERMITS

Application(s) Received Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Municipal Waste Regulations for Determination of Applicability for a General Permit to Operate Municipal Waste Processing Facilities and/or the Beneficial Use of Municipal Waste.

Southcentral Region: Waste Management Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Carrie A. Fleming, Program Manager.

WMGM065SC002. Derry Township Municipal Authority, 670 Clearwater Road, Hershey, PA 17033, Derry Township, **Dauphin County**. This is for a new determination of applicability under municipal waste general permit WMGM065 which authorizes the storage and processing of dewatered municipal wastewater sewage sludge from municipal wastewater treatment plants; animal manure/poultry litter; agricultural bird mortality waste (i.e., spent hens); animal mortality compost; depackaged food waste from municipal or residual waste sources; food processing residuals and sludges; digestate; fats, oils and greases (FOG); spent mushroom substrate; crop waste; perennial grasses; compost; yard waste; and unfinished, uncontaminated clean wood waste for beneficial use as a soil amendment, as an ingredient in concrete, as a remediation/treatment medium, or as a fuel at power plants, cement kilns or other Department of Environmental Protection (DEP) approved combustion units. Processing is limited to drying and gasification. Application received: February 2, 2026. Deemed administratively complete: April 28, 2026.

Questions concerning the application should be directed to Domenico Tuzzato, P.E., Environmental Engineer Manager, 717-705-4908, Southcentral Region, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700. TDD users may contact the Department through the Pennsylvania Hamilton Relay Service, (800) 654-5984.

DETERMINATION OF APPLICABILITY FOR RESIDUAL WASTE GENERAL PERMITS

Application(s) Received Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Residual Waste Regulations for Determination of Applicability for a General Permit to Operate Residual Waste Processing Facilities and/or the Beneficial Use of Residual Waste Other than Coal Ash.

Southwest Region: Waste Management Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Waste Management Program Manager.

WMGR031SW001. Kalumetals, Inc., P.O. Box 322, Derry, PA 15627, Derry Township, **Westmoreland County**. An application for renewed coverage under Residual Waste General Permit No. WMGR031SW001 was received. WMGR031SW001 approves the processing and beneficial use of various metallic wastes and spent catalysts through retorting, static bed open drying, belt furnace thermal processing, rotary furnace oxidation, magnetic separation, washing, filtering, centrifugation, mechanical separation, carbon dioxide separation and passive oil/water separation for use as an ingredient in the manufacture of steel and other metal alloys. The Kalumetals, Inc. facility is located at 116 Pittsburgh Street, Derry, PA 15627. Application received: December 17, 2025. Deemed administratively complete: April 9, 2026.

Questions concerning the application should be directed to Regional Files, 412-442-4000, Southwest Region, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000. TDD users may contact the Department through the Pennsylvania Hamilton Relay Service, (800) 654-5984.

HAZARDOUS WASTE TRANSPORTER LICENSE

Application(s) Received Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); and Hazardous Waste Regulations to Transport Hazardous Waste.

New Applications Received

Central Office: Waste Management Program, Rachel Carson State Office Building, 400 Market Street, Harrisburg, PA 17101, 717-787-6239.

Contact: RA-HazWaste@pa.gov.

USA Lamp & Ballast Recycling, Inc., dba Cleanlites Recycling, Inc., P.O. Box 212, Mason, MI 48854. **License No. PA-AH 0977**. Accepted: December 29, 2025.

Page GTC, Inc., 2758 Trombley Road, Weedsport, NY 13166. **License No. PA-AH 0978**. Accepted: December 17, 2025.

AIR QUALITY

PLAN APPROVAL AND OPERATING PERMIT APPLICATIONS

The Department of Environmental Protection (DEP) has developed an integrated plan approval, State Operating Permit and Title V Operating Permit program. This integrated approach is designed to make the permitting process more efficient for DEP, the regulated community and the general public. This approach allows the owner or operator of a facility to submit permitting documents relevant to its application for all sources related to a facility or a proposed project, affords an opportunity for public input, and provides for a decision on the issuance of the necessary permits.

The DEP received applications for Plan Approvals or Operating Permits from the following facilities. Copies of the application, DEP's analysis, all pertinent documents used in the evaluation of the application and subsequently prepared proposed plan approvals/operating permits are available for public review during normal business hours at the appropriate DEP Regional Office. Appointments for scheduling a review must be made by calling the appropriate DEP Regional Office. The address and telephone number of the Regional Office is listed before the application notices.

Individuals wishing to file a written protest or provide comments or additional information, which they believe should be considered prior to the issuance of a permit, may submit the information to the DEP's Regional Office. A 30-day comment period from the date of this publication will exist for the submission of comments, protests and information. Each submission must contain the

name, address and telephone number of the person submitting the comments, identification of the proposed Plan Approval/Operating Permit including the permit number and a concise statement regarding the relevancy of the information or objections to issuance of the permit.

Any individual wishing to request a hearing may do so during the 30-day comment period. A public hearing may be held, if DEP, in its discretion, decides that a hearing is warranted based on the information received. Persons submitting comments or requesting a hearing will be notified of the decision to hold a hearing by publication in the newspaper, the *Pennsylvania Bulletin* or by telephone, when DEP determines this type of notification is sufficient. Requests for a public hearing and any relevant information should be directed to the appropriate DEP Regional Office.

Permits issued to the owners or operators of sources subject to 25 Pa. Code Chapter 127, Subchapter D or E, or located within a Title V facility or subject to 25 Pa. Code § 129.51(a) or permits issued for sources with limitations on their potential to emit used to avoid otherwise applicable Federal requirements may be submitted to the United States Environmental Protection Agency for review and approval as a revision to the State Implementation Plan. Final Plan Approvals and Operating Permits will contain terms and conditions to ensure that the sources are constructed and operating in compliance with applicable requirements in the Air Pollution Control Act (35 P.S. §§ 4001—4015), 25 Pa. Code Chapters 121—145, the Federal Clean Air Act (42 U.S.C. §§ 7401—7671q) and regulations adopted under the Federal Clean Air Act.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

PLAN APPROVALS

Notice of Intent to Issue Plan Approval(s) and Notice of Intent to Issue or Amend Operating Permit(s) Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code Chapter 127, Subchapter B. These Actions May Include the Administrative Amendments of an Associated Operating Permit.

Northeast Region: Air Quality Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Norman Frederick, Facility Permitting Chief, 570-826-2409.

54-00068: BFS Operations, LLC, dba Pleasant Valley Homes, 100 Hammersmith Drive, Pine Grove, PA 17963, Pinegrove Township, **Schuylkill County**. Application received: April 21, 2026. The Department intends to issue a State-Only Operating Permit Administrative Amendment (synthetic minor) for the Pine Grove Township facility. This amendment is for a change of ownership. The proposed operating permit amendment contains all applicable requirements for emission limitations, work practice standards, testing, monitoring, recordkeeping, and reporting standards used to verify facility compliance with Federal and State air pollution regulations.

Contact: Shailesh Patel, EEM, 570-826-2341.

39-00116A: Republic Polymers III, LLC, 420 Martin Luther King Jr. Drive, Allentown, PA 18103, City of Allentown, **Lehigh County**. Application received: March 20, 2026.

For installation of a new polymer recycling facility which will accept post-consumer plastics and recycle them into a useable product. The potential emissions from the project are: 0.03 tpy SO_2, 5.16 tpy NO_x, 2.97 tpy CO, 8.11 tpy $PM_{10}/PM_{2.5}$, 2.19 tpy VOC, and 0.1 tpy of combined HAPs. The facility is a State Only facility. DEP's review of the information submitted by the applicant indicates that the air contamination source as constructed will comply with all regulatory requirements pertaining to air contamination sources and the emission of air contaminants including the best available technology requirement (BAT) of 25 Pa. Code §§ 127.1 and 127.12. Based on these findings, DEP proposes to issue a plan approval for the proposed project. (If, after the project has been implemented, the Department determines that the sources are constructed and operated in compliance with the plan approval conditions and the specification of the application for plan approval, the requirements established in the plan approval will be incorporated into an Operating Permit pursuant to 25 Pa. Code Chapter 127.

Southcentral Region: Air Quality Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Thomas Bianca, PE, West Permit Section Chief, 717-705-4863.

21-05027A: Sunoco Midstream LLC, 5125 Simpson Ferry Road, Mechanicsburg, PA 17050, Hampden Township, **Cumberland County**. Application received: August 1, 2025. To install a new high octane gasoline storage tank, a heated biodiesel tank, additional loading rack arms, and associated piping components (valves, pump seals, compressors, and fittings) at the Mechanicsburg Terminal. The proposed project will also include increased gasoline loading throughput and an increased VOC emission limit for the facility. Facility-wide potential to emit as a result of the project is calculated to be 73.3 tpy VOC, 23.37 tpy combined HAP, and 9.95 tpy toluene (highest single HAP). The plan approval will impose facility-wide restrictions for criteria pollutants as well as associated recordkeeping and reporting requirements for all sources at the facility. DEP's review of the information submitted by the applicant indicates that the air contamination sources as constructed or modified will comply with all regulatory requirements pertaining to air contamination sources and the emission of air contaminants including the best available technology requirement (BAT) of 25 Pa. Code §§ 127.1 and 127.12, 40 CFR Part 60 Subpart XXa (Standards of Performance for Bulk Gasoline Terminals that Commenced Construction, Modification, or Reconstruction After June 10, 2022), 40 CFR Part 60 Subpart Kc (Standards of Performance for Volatile Organic Liquid Storage Vessels (Including Petroleum Liquid Storage Vessels) for Which Construction, Reconstruction, or Modification Commenced After October 4, 2023), and 40 CFR Part 63 Subpart BBBBBB (National Emission Standards for Hazardous Air Pollutants for Source Category: Gasoline Distribution Bulk Terminals, Bulk Plants, and Pipeline Facilities). Based on these findings, the Department proposes to issue a plan approval for the construction. If, after the project has been implemented, the Department determines that the sources are constructed and operated in compliance with the plan approval conditions and the specifications of the application for plan approval, the requirements established in the plan approval may be incorporated into an operating permit pursuant to the provisions of 25 Pa. Code Chapter 127.

Southwest Region: Air Quality Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Sheri Guerrieri, Environmental Engineer Manager, 412-442-4174.

PA-65-01142A: Colson Group Holdings—ARBCO Facility, 2040 Borland Rd., Export, PA 15632, Murrysville Borough, **Westmoreland County**. Application received: December 27, 2023. Pursuant to 25 Pa. Code §§ 127.44—127.46 for intent to issue an Air Quality plan approval for authorization to construct and temporarily operate sources associated with the ARBCO Facility, a phenolic resin wheel manufacturer in Murrysville Borough, Westmoreland County. The facility includes one natural gas-fired boiler; the resin wheel manufacturing process including mixing, pressing, and finishing; two resin storage tanks; and several small natural gas-fired combustion units. Particulate matter is controlled by three (3) baghouses and two (2) cyclone-style dust collectors. The facility will be limited to emissions of 4.0 tons/12-consecutive month period (12-cmp) of NO_x, 3.0 tons/12-cmp of CO, 26.0 tons/12-cmp of PM_{10}, 1.0 ton/12-cmp of SO_x, 18.0 tons/12-cmp of VOC, 17.0 tons/12-cmp total HAPs, 8.1 tons/12-cmp of formaldehyde, 2.2 tons/12-cmp of phenol, and 6.6 tons/12-cmp of methanol. The proposed project is subject to and has been conditioned to ensure compliance with all applicable requirements and includes emissions restrictions, operational restrictions, testing, monitoring, recordkeeping, reporting, and work practice requirements. The project does not trigger the requirements of 40 CFR 52.21 related to Prevention of Significant Deterioration, or those of 25 Pa. Code Chapter 127, Subchapter E related to Nonattainment New Source Review. The application, DEP's Review Memorandum, and the proposed plan approval are available for public review during normal business hours at DEP's Southwest Regional Office, 400 Waterfront Drive, Pittsburgh, PA 15222. A file review can be scheduled through the DEP's website at https://www.dep.pa.gov/Citizens/PublicRecords/Pages/Informal-File-Review.aspx or by contacting Sheri Guerrieri, New Source Review Chief, directly at shguerrier@pa.gov. Those who wish to provide the Department with additional written information that they believe should be considered prior to the issuance of the plan approval may submit the information to Sheri Guerrieri, New Source Review Chief, Department of Environmental Protection, Southwest Regional Office, 400 Waterfront Drive, Pittsburgh, PA 15222. Each written comment must contain the name, address and telephone number of the person submitting the comments, identification of the proposed Plan Approval (PA-65-01142A) and concise statements regarding the relevancy of the information or objections to issuance of the Plan Approval. A public hearing may be held, if the Department, in its discretion, decides that such a hearing is warranted based on the information received. All persons submitting comments or requesting a hearing will be notified of the decision to hold a hearing by publication in the newspaper or by the *Pennsylvania Bulletin*, or by telephone, where the Department determines such notification is sufficient. Written comments or requests for a public hearing should be directed to Sheri Guerrieri, Environmental Engineer Manager, Pennsylvania Department of Environmental Protection, 400 Waterfront Drive, Pittsburgh, PA 15222 or by email to shguerrier@pa.gov. All comments must be received prior to the close of business 30 days after the date of this publication. Persons with a disability who wish to comment and require an auxiliary aid, service or other accommodations to do so should contact Lauren Camarda at 412-442-4203 or the Pennsylvania Hamilton Relay Service at 1.800.654.5984 (TDD) to discuss how the Department may accommodate your needs.

OPERATING PERMITS

Notice of Intent to Issue Title V Operating Permit(s) Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code Chapter 127, Subchapter G.

Northcentral Region: Air Quality Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Muhammad Q. Zaman, Program Manager, 570-327-3648.

53-00002, Transcontinental Gas Pipe Line Company, LLC, 2800 Post Oak Blvd, Houston, TX 77056, Wharton Township, **Potter County**. Application received: October 31, 2024. The Department intends to issue a renewal of Title V Operating Permit for their Wharton Station 535. The facility is currently operating under Title V Operating Permit 53-00002. The facility's main sources include two (2) 1,000 bhp natural gas-fired Ingersoll-Rand 36-KVS compressor engines, two (2) 2,000 bhp natural gas-fired Ingersoll-Rand 512-KVS compressor engines, one (1) 2,500 bhp natural gas-fired Ingersoll-Rand 512-KVSR compressor engine, one (1) 738 bhp natural gas-fired Waukesha 5108 GL emergency generator engine, fugitive piping and venting, blowdowns, and various tanks and heaters. The facility has potential/actual emissions of 269.28 tpy NO_x, 45.54 tpy VOC, 115.30 tpy CO, 0.32 tpy SO_x, 4.54 tpy PM, 16.72 tpy total HAPs, 14.24 tpy highest single HAP (formaldehyde), and 69,920 tpy of CO_2e. No emission or equipment changes are proposed by this renewal. The emission limits, throughput limitations, and work practice standards, and requirements for testing, monitoring, recordkeeping, and reporting have been included in the operating permit to ensure the facility complies with all applicable Federal and State air quality regulations. These operating permit conditions have been derived from the applicable requirements of 40 CFR Parts 60 and 63 and 25 Pa. Code Article III, Chapters 121—145. All pertinent documents used in the evaluation of the application are available for public review during normal business hours at the Department's Northcentral Regional Office, 208 West Third Street, Suite 101, Williamsport, PA 17701. Appointments for scheduling a review must be made by calling 570-327-0550.

Notice of Intent to Issue Operating Permit(s) Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code Chapter 127, Subchapter F.

Northeast Region: Air Quality Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Norman Frederick, Facility Permitting Chief, 570-826-2409.

40-00085, Certech, Inc., Certech, Inc./Wilkes-Barre, 550 Stewart Rd, Wilkes-Barre, PA 18706, Hanover Township, **Luzerne County**. Application received: March 30, 2026. The Department intends to issue a renewal State-Only (Natural Minor) Operating Permit for manufacturing of ceramic wall and floor tile facility located in Hanover Township, Luzerne County. The sources include Porbeck ovens, kilns, and a spray booth. The control devices include after burners and panel filters. The proposed operating permit contains all applicable requirements for emission limitations, work practice standards, testing, monitoring, and reporting standards used to verify facility compliance with Federal and State air pollution regulations.

Southcentral Region: Air Quality Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Thomas Bianca, PE, West Permit Section Chief, 717-705-4863.

07-05024, Sunoco Midstream LLC, 6033 6th Avenue, Altoona, PA 16602, Allegheny Township, **Blair County**. Application received: October 30, 2025. To issue a State Only Operating Permit for the Altoona Terminal. The facility reported 2025 air emissions of 12.04 tpy VOC, and < 1 tpy combined HAP. The Operating Permit will include emission limits and work practice standards along with monitoring, recordkeeping and reporting requirements to ensure the facility complies with the applicable air quality regulations. Among other items, the conditions include provisions for Federal 40 CFR Part 60 Subpart XX (Standards of Performance for Bulk Gasoline Terminals That Commenced Construction, Modification, or Reconstruction After December 17, 1980, and On or Before June 10, 2022), and 40 CFR Part 63 Subpart BBBBBB (National Emission Standards for Hazardous Air Pollutants for Source Category: Gasoline Distribution Bulk Terminals, Bulk Plants, and Pipeline Facilities).

Contact: Vincent Pascucci, PE, East Permit Section Chief, 717-705-4862.

06-03096, Lucas Lane Inc., 10 Lucas Lane, Bernville, PA 19506-8420, Upper Tulpehocken Township, **Berks County**. Application received: March 18, 2026. For the operation of an oil filter recycling operation. This is for the renewal of existing State-Only Operating Permit. The facility potential emissions are 0.15 ton of CO, 1.13 tons of NO_x, 1.81 tons of PM_{10}, 2.34 tons of SO_x, and 0.07 ton of VOC. The operating permit will include emissions limits and work practice standards along with monitoring, recordkeeping and reporting requirements to ensure the facility complies with the applicable air quality regulations.

22-03046, Pennsy Supply, Inc./Fiddlers Elbow North Quarry, 2152 N Union St, Middletown, PA 17057, Lower Swatara Township, **Dauphin County**. Application received: March 24, 2026. To issue a renewal of a State Only Operating Permit for their quarry. Potential emissions for this facility are 17.89 tpy PM, 6.76 tpy PM_{-10}, and 1.01 tpy $PM_{-2.5}$. The Operating Permit will include emission limits and work practice standards along with monitoring, recordkeeping and reporting requirements to ensure the facility complies with the applicable air quality regulations. Among other items the conditions include provisions derived from 40 CFR Part 60, Subpart OOO, Standards of Performance for Nonmetallic Mineral Processing Plants.

Southeast Region: Air Quality Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Janine Tulloch-Reid, Facilities Permitting Chief, 484-250-5920.

15-00157, Jaguar Intermediate 1 Inc. (PF name: USSC Holding Corporation), 101 Gordon Dr, Exton, PA 19341, Uwchlan Township, **Chester County**. Application received: October 17, 2025. This action is for the renewal of a Non-Title V, Synthetic Minor Permit for the manufacture of seating for first responder transit vehicles (e.g., ambulance, EMT), and extreme duty military vehicles, as well as water mist fire suppression systems for vehicles and repackaged fog maker liquid. The facility is classified under NAICS Code 332999 (All Other Miscellaneous Fabricated Metal Product Manufacturing). Operations at the facility include metal cutting, drilling, fabric cutting, fabric sewing, fabric cutting and fabrication of product. Pollutant emissions activities include gluing and painting operations as well as from miscellaneous combustion units (e.g., boilers). The potential emissions of volatile organic compounds (VOC) and hazardous air pollutants (HAP) are 404 tons per year (tpy) and 169 tpy respectively. Facility-wide emission limits were established in the past. For VOC's, the emission limit is 24.9 tpy. For aggregate HAP emissions, the limit is 24.9 tpy, and the limit is 9.9 tpy for any single HAP. Monitoring, recordkeeping and reporting requirements are included in the permit to address applicable limitations. No major changes in sources or daily operations are reflected in this renewal. Information regarding this draft permit or comments on the draft permit can be requested/submitted through the Air Quality resource account at RA-EPSEROAQPUBCOM@pa.gov.

23-00030, Swarthmore College, 500 College Avenue, Swarthmore, PA 19081, Swarthmore Borough, **Delaware County**. Application received: November 13, 2025. This action is for the renewal of a Non-Title V, Synthetic Minor Operating Permit. The facility's emission points include boilers and emergency generators located throughout the college campus. Facility-wide potential to emit Nitrogen Oxide (NO_x) emissions are less than major source thresholds for the Southeast Regional Area after operating restrictions (less than 25 tons per year); therefore, the facility is classified as a Synthetic Minor for NO_x emissions, an area source of Hazardous Air Pollutant (HAP) emissions (less than 25 tons any combination HAP and less than 10 tons any single HAP), and a natural minor for remaining pollutants (CO, PM, SO_x, VOC). The requirements of 40 CFR Part 60, Subpart Dc (Standards of Performance for Small Industrial-Commercial-Institutional Steam Generating Units apply to the boilers (Source ID 031 and Source ID 032). The requirements of 40 CFR Part 60, Subpart IIII apply to compression ignition engines, and the requirements of 40 CFR Part 60, Subpart JJJJ apply to the spark ignition engines. The renewal permit will include monitoring, recordkeeping and reporting requirements designed to keep the facility operating within all applicable air quality requirements. Information regarding this draft permit or comments on the draft permit can be requested/submitted through the Air Quality resource account at RA-EPSEROAQPUBCOM@pa.gov.

Contact: Janine Tulloch-Reid, Facilities Permitting Chief, 484-250-5920.

46-00261, US Tape, 2452 Quakertown Rd, Pennsburg, PA 18073-1010, Upper Hanover Township, **Montgomery County**. Application received: October 3, 2025. This action is a renewal of a Non-Title V, Synthetic Minor Operating Permit. US Tape manufactures two types of steel measuring tapes at this facility. US Tape uses paints, lacquers, cleaning solvents, and plating tanks with the potential to emit volatile organic compounds (VOC), nitrogen oxides (NO_x), and hazardous air pollutants (HAP). The facility has one (1) lacquer clear coating and electric oven (Source ID 102), two (2) nickel plating tanks (Source IDs 103 and 103A), and four (4) printing lines and three (3) propane gas ovens (Source ID 106). The facility has elected to take the following sitewide limits: 24.90 tons VOC per year; 3.84 tons NO_x per year; and 1.36 pounds HAP per year. Therefore, the facility operates as a synthetic minor for VOC, NO_x, and HAP. The permit will include monitoring, recordkeeping and reporting requirements designed to keep the facility within all applicable air quality requirements. Information regarding this draft permit can be requested, and/or comments on the draft permit can be sub-

mitted through the Air Quality resource account at RA-EPSEROAQPUBCOM@pa.gov.

COAL & NONCOAL MINING ACTIVITY APPLICATIONS

Applications under the Surface Mining Conservation and Reclamation Act (52 P.S. §§ 1396.1—1396.31); the Noncoal Surface Mining Conservation and Reclamation Act (52 P.S. §§ 3301—3326); the Clean Streams Law (35 P.S. §§ 691.1—691.1001); the Coal Refuse Disposal Control Act (52 P.S. §§ 30.51—30.66); the Bituminous Mine Subsidence and Land Conservation Act (52 P.S. §§ 1406.1—1406.21).

Mining activity permits issued in response to such applications are also subject to applicable permitting requirements of the following statutes: the Air Pollution Control Act (35 P.S. §§ 4001—4015); the Dam Safety and Encroachments Act (32 P.S. §§ 693.1—693.27); and the Solid Waste Management Act (35 P.S. §§ 6018.101—6018.1003).

The following permit applications to conduct mining activities have been received by the Department of Environmental Protection (DEP). A copy of the application is available for inspection at the District Mining Office indicated above each application. Requests for 401 Water Quality Certifications are included in individual application only if noted.

Written comments or objections, or requests for an informal conference, or a public hearing, as applicable, on a mining permit application may be submitted by any person or any officer or head of any Federal, State or Local Government Agency or Authority to DEP at the address of the District Mining Office indicated above each application within 30-days of this publication, or within 30-days after the last publication of the applicant's newspaper advertisement, as provided by 25 Pa. Code §§ 77.121—77.123 and 86.31—86.34 (relating to public notices of filing of permit applications, opportunity for comment, and informal conferences). Such comments or objections should contain the name, address and phone number of persons submitting comments or objections; application number; and a statement of sufficient detail to inform DEP on the basis of comment or objection and relevant facts upon which it is based.

In addition, requests for an informal conference, or a public hearing, as applicable, on a mining permit application, as provided by 25 Pa. Code § 77.123 (relating to public hearing-informal conferences) or § 86.34 (relating to informal conferences), must also contain a brief summary of the issues to be raised by the requestor at the conference and a statement whether the requestor desires to have the conference conducted in the locality of the proposed mining activities.

Where a National Pollutant Discharge Elimination System (NPDES) number is listed, the mining activity permit application is associated with an application for an NPDES permit. A separate notice will be provided for the draft NPDES permit.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Coal Applications

Effluent Limits—The following range of effluent limits (Table 1) will apply to NPDES permits issued in conjunction with the associated coal mining activity permit. Additional effluent limits will be listed as part of the publication of the draft NPDES permit.

Table 1

Parameter	*30-Day Average*	*Daily Maximum*	*Instantaneous Maximum*
Iron (total)	1.5 to 3.0 mg/l	3.0 to 6.0 mg/l	3.5 to 7.0 mg/l
Manganese (total)	1.0 to 2.0 mg/l	2.0 to 4.0 mg/l	2.5 to 5.0 mg/l
Suspended solids	10 to 35 mg/l	20 to 70 mg/l	25 to 90 mg/l
Aluminum (Total)	0.75 to 2.0 mg/l	1.5 to 4.0 mg/l	2.0 to 5.0 mg/l

pH must always be greater than 6.0; less than 9.0.
Alkalinity must always be greater than acidity.

California District Mining Office: 25 Technology Drive, Coal Center, PA 15423, 724-769-1100.

Contact: Lori Jenkins, Clerical Assistant 3.

Mining Permit No. 32140701. NPDES No. PA0001767. Robindale Energy Services, Inc., 1501 Ligonier Street, Latrobe, PA 15650, Center and Black Lick Townships, **Indiana County**. To transfer the permit and related NPDES permit from Pennzoil-Quaker State, dba SOPUS Products to Robindale Energy Services, Inc. Application received: March 16, 2026. Accepted: April 17, 2026.

Knox District Mining Office: P.O. Box 669, 310 Best Avenue, Knox, PA 16232-0669, 814-797-1191.

Contact: Alicia Cook, Clerical Assistant 3, 814-343-3328.

Mining Permit No. 33990109. NPDES No. PA0241539. McKay Coal Company, Inc., P.O. Box 343, Punxsutawney, PA 15767, Perry Township, **Jefferson County**. Permit renewal application for a bituminous surface coal mine and associated NPDES permit affecting 70.1 acres. Receiving stream(s): Perryville Run and Foundry Run classified for the following use(s): CWF. Application received: April 24, 2026.

New Stanton District Mining Office: 131 Broadview Road, New Stanton, PA 15672, 724-925-5500.

Contact: Tracy Norbert, Clerical Assistant 3.

Mining Permit No. 65140101. NPDES No. PA0278122. Ligonier Stone and Lime Company, 117 Marcia Street, Latrobe, PA 15650, Derry Township, **Westmoreland County**. Renewal application received for continued mining to an existing surface mine and corresponding NPDES permit; affecting 92.4 acres. Receiving streams: Unnamed tributaries to Stony Run, Stony Run and Conemaugh River; classified for the following use: CWF. Application received: April 24, 2026. Accepted: April 27, 2026.

Noncoal Applications

Effluent Limits—The following Table 2 effluent limits apply to NPDES permits issued in conjunction with a noncoal mining permit. Additional effluent limits will be listed as part of the publication of the draft NPDES permit.

Table 2

Parameter	*30-day Average*	*Daily Maximum*	*Instantaneous Maximum*
Suspended solids	10 to 35 mg/l	20 to 70 mg/l	25 to 90 mg/l
Alkalinity must always exceed acidity.			
pH must always be greater than 6.0; less than 9.0.			

Cambria District Mining Office: 286 Industrial Park Road, Ebensburg, PA 15931-4119, 814-472-1800.

Contact: RA-EPCAMBRIADMO@pa.gov.

Mining Permit No. 7574SM2. NPDES No. PA0614343. New Enterprise Stone & Lime Co., Inc., 3912 Brumbaugh Road, New Enterprise, PA 16664, Lower Allen Township, **Cumberland County**. Renewal of an NPDES permit affecting 29 acres. Receiving stream: Yellow Breeches Creek classified for the following uses: CWF & MF. Application received: April 27, 2026.

Mining Permit No. 01740401. NPDES No. PA0613045. New Enterprise Stone & Lime Co., Inc., 3912 Brumbaugh Road, New Enterprise, PA 16664, Hamiltonban Township, **Adams County**. Renewal of NPDES Permit. Receiving stream: Muddy Run classified for the following use: CWF. Application received: April 27, 2026.

Knox District Mining Office: P.O. Box 669, 310 Best Avenue, Knox, PA 16232-0669, 814-797-1191.

Contact: Alicia Cook, Clerical Assistant 3, 814-343-3328.

Mining Permit No. 27262801. GP-104 No. PAM626003. Passauer Excavation, Inc., P.O. Box 304, West Hickory, PA 16370, Harmony Township, **Forest County**. New permit application and GP-104 application for a small noncoal industrial minerals operation affecting 5.0 acres. Receiving stream(s): Dawson Run classified for the following use(s): CWF. Application received: April 16, 2026.

Mining Permit No. 10960302. NPDES No. PA0227200. Allegheny Mineral Corporation, P.O. Box 1022, Kittanning, PA 16201, Marion Township, **Butler County**. Renewal of an NPDES permit associated with a Large noncoal (industrial minerals) mining site affecting 447.4 acres. Receiving stream(s): Blacks Creek to Slippery Rock Creek and North Branch of Slippery Rock Creek to Slippery Rock Creek classified for the following use(s): CWF. Application received: April 24, 2026.

MINING ACTIVITY NPDES DRAFT PERMITS

This notice provides information about applications for a new, amended or renewed National Pollutant Discharge Elimination System (NPDES) permits associated with mining activity (coal or noncoal) permits. The applications concern industrial waste (mining) discharges to surface water and discharges of stormwater associated with mining activities. This notice is provided in accordance with 25 Pa. Code Chapters 91 and 92a and 40 CFR Part 122, implementing provisions of The Clean Streams Law (35 P.S. §§ 691.1—691.1001) and the Federal Clean Water Act (33 U.S.C. §§ 1251—1376).

The Department of Environmental Protection (DEP) has prepared a draft NPDES permit and made a tentative determination to issue the NPDES permit in conjunction with the associated mining activity permit.

Effluent Limits for Coal Mining Activities

For coal mining activities, NPDES permits, when issued, will contain effluent limits that are the more stringent of technology-based (BAT) effluent limitations or Water Quality Based Effluent Limits (WQBEL).

The BAT limits for coal mining activities, as provided in 40 CFR Part 434 and 25 Pa. Code Chapters 87—90 are as follows:

Parameter	*30-Day Average*	*Daily Maximum*	*Instantaneous Maximum*
Iron (Total)	3.0 mg/l	6.0 mg/l	7.0 mg/l
Manganese (Total)	2.0 mg/l	4.0 mg/l	5.0 mg/l
Suspended solids	35 mg/l	70 mg/l	90 mg/l
pH must always be greater than 6.0; less than 9.0.			
Alkalinity must always be greater than acidity.			

A settleable solids instantaneous maximum limit of 0.5 ml/l applies to: surface runoff (resulting from a precipitation event of less than or equal to a 10-year 24-hour event) from active mining areas; active areas disturbed by coal refuse disposal activities; mined areas backfilled and revegetated; and all other discharges and drainage (resulting from a precipitation event of greater than 1-year 24-hour to less than or equal to a 10-year 24-hour event) from coal refuse disposal piles. Similarly, modified BAT limits apply to iron, manganese and suspended solids in surface runoff, discharges and drainage resulting from these precipitation events and those of greater magnitude in accordance with 25 Pa. Code §§ 87.102, 88.92, 88.187, 88.292, 89.52 and 90.102.

Exceptions to BAT effluent limits may be applicable in accordance with 25 Pa. Code §§ 87.102, 88.92, 88.187, 88.292, 89.52 and 90.102.

Effluent Limits for Noncoal Mining Activities

The limits for noncoal mining activities as provided in 25 Pa. Code § 77.522 are pH 6 to 9 and other parameters DEP may require.

Discharges from noncoal mines located in some geologic settings (for example, in the coal fields) may require additional water quality based effluent limits. If additional effluent limits are needed for an NPDES permit associated with a noncoal mining permit, then the permit description specifies the parameters.

Coal NPDES Draft Permits

Moshannon District Mining Office: 186 Enterprise Drive, Philipsburg, PA 16866, 814-342-8200.

Contact: Cassie Stanton, Clerical Assistant 2.

NPDES No. PA0256315. Mining Permit No. 59060101. Phoenix Resources, Inc., 782 Antrim Road, Wellsboro, PA 16901, Duncan Township, **Tioga County**. Application received: March 31, 2026.

Renewal of an NPDES permit for discharge of water resulting from bituminous surface coal mining, affecting 80.9 acres. Receiving stream(s): Rock Run, classified for the following use(s): CWF. This receiving stream is included in the Babb Creek TMDL.

Unless otherwise noted for a specific outfall, the proposed effluent limits for all outfalls in this permit are the BAT limits described previously for coal mining activities.

The following outfalls discharge to Rock Run:

Outfall No.	*New or Existing*	*Type*	*Discharge Rate*
001	Existing	Treatment Facility 1 (TF1)	Intermittent (Pumped)
004	Existing	Sediment Pond (BA1)	Precipitation Induced

The proposed effluent limits for the previously listed outfalls are as follows:

Outfalls: 001 (All Discharges)

Parameter	*30-Day Average*	*Daily Maximum*	*Instant. Maximum*
Iron (mg/L)	1.5	3.0	3.7
Manganese (mg/L)	1.0	2.0	2.5
Aluminum (mg/L)	0.75	0.75	0.75
Total Suspended Solids (mg/L)	35.0	70.0	90.0
Sulfate (mg/L)		Report	
Flow (gpm)		Report	
Temperature (°C)		Report	
Specific Conductivity (µmhos/cm)		Report	

pH (S.U.): Must be between 6.0 and 9.0 standard units at all times.
Alkalinity must exceed acidity at all times.

Outfalls: 004 (All Discharges)

Parameter	*30-Day Average*	*Daily Maximum*	*Instant. Maximum*
Iron (mg/L)	3.0	6.0	7.0
Manganese (mg/L)	2.0	4.0	5.0
Aluminum (mg/L)	3.4	6.8	8.5
Total Suspended Solids (mg/L)	35.0	70.0	90.0
Sulfate (mg/L)		Report	
Flow (gpm)		Report	
Temperature (°C)		Report	
Specific Conductivity (µmhos/cm)		Report	

pH (S.U.): Must be between 6.0 and 9.0 standard units at all times.
Alkalinity must exceed acidity at all times.

Noncoal NPDES Draft Permits

Moshannon District Mining Office: 186 Enterprise Drive, Philipsburg, PA 16866, 814-342-8200.

Contact: Cassie Stanton, Clerical Assistant 2.

NPDES No. PA0257591. Mining Permit No. 41110301. Glenn O. Hawbaker, Inc., 1952 Waddle Road, State College, PA 16803, McNett Township, **Lycoming County**. Renewal of an NPDES permit for management of water on a Large Industrial Minerals Mining Permit affecting 42.2 acres. Receiving stream(s): Tributary to North Pleasant Stream and North Pleasant Stream, classified for the following use(s): HQ-CWF. There are no permitted NPDES outfalls, all water must be contained on site. Application received: March 13, 2026.

Pottsville District Mining Office: 5 West Laurel Boulevard, Pottsville, PA 17901, 570-621-3118.

Contact: RA-EPPottsvilleDMO@pa.gov.

NPDES No. PA0225908. Mining Permit No. 39970301. Amrize Cement, Inc., 5160 Main Street, Whitehall, PA 18502, Whitehall Township, **Lehigh County**. Application received: April 16, 2025.

Revision of an NPDES Permit in Whitehall Township, Lehigh County, affecting 211.71 acres. Receiving stream: Coplay Creek, classified for the following use: CWF, MF. Application received: April 16, 2025.

Unless otherwise noted, the proposed effluent limits for all outfalls in this permit are the BAT limits described previously for noncoal mining activities.

The following treated wastewater outfalls discharge to Coplay Creek:

Outfall Number	*New or Existing*	*Type*	*Discharge Rate*
001	Existing	Pitwater/Stormwater	1.5 MGD

The proposed effluent limits for the previously listed outfall are as follows:

Parameter (unit)	*Minimum*	*30-Day Average*	*Daily Maximum*	*Instant Maximum*
pH[i] (S.U.)	6.0			9.0
Total Alkalinity (as $CaCO_3$) (mg/L)			Monitor And Report	
Total Acidity (as $CaCO_3$) (mg/L)			Monitor And Report	
Net Alkalinity (mg/L)	0.0			
Total Suspended Solids (mg/L)		35.0	70.0	90.0
Discharge (MGD)		1.5		
Total Dissolved Solids (mg/L)			Monitor And Report	
Sulfates (mg/L)			Monitor And Report	
Chloride (mg/L)			Monitor And Report	

[i]This Parameter is applicable at all times

FEDERAL WATER POLLUTION CONTROL ACT SECTION 401

The following permit applications, requests for Environmental Assessment approval and requests for 401 Water Quality Certification have been received by the Department of Environmental Protection (DEP). Section 401 of the Federal Water Pollution Control Act (FWPCA) (33 U.S.C. § 1341), requires the State to certify that the involved projects will not violate the applicable provisions of Sections 301—303, 306 and 307 of the FWPCA (33 U.S.C. §§ 1311—1313, 1316 and 1317), as well as relevant State requirements. Individuals objecting to approval of a request for certification under Section 401 or to the issuance of a Dam Permit or Water Obstruction and Encroachment Permit, or the approval of an Environmental Assessment must submit any comments, suggestions or objections within 30-days of the date of this notice, as well as any questions to the office noted above the application. Comments should contain the name, address and telephone number of the person commenting, identification of the certification request to which the comments or objections are addressed, and a concise statement of comments, objections or suggestions including the relevant facts upon which they are based.

The DEP may schedule a fact-finding hearing or an informal conference in response to comments if deemed necessary. Maps, drawings and other data pertinent to the certification request are available for inspection between the hours of 8:00 a.m. and 4:00 p.m. on each working day at the office noted above the application.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

WATER OBSTRUCTIONS AND ENCROACHMENTS

Applications Received Under the Dam Safety and Encroachments Act (32 P.S. §§ 693.1—693.27) and Section 302 of the Flood Plain Management Act (32 P.S. § 679.302) and Requests for Certification Under Section 401 of the Federal Water Pollution Control Act (33 U.S.C. § 1341(a)).

Northeast Region: Waterways & Wetlands Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Pamela Kania, P.E., Program Manager, RA-EPWW-NERO@pa.gov.

E5402226-003. Orwigsburg Borough, 333 S. Liberty Street, Orwigsburg, PA 17961, Orwigsburg Borough, **Schuylkill County**. U.S. Army Corps of Engineers Philadelphia District. Application received: April 9, 2026.

To remove an existing 162-foot stream enclosure of a UNT to Mahannon Creek (CWF-MF) and to construct and maintain a U-shaped, open-top precast concrete culvert having a span of 7.25-ft, a maximum rise of 8.5-ft, and consisting of three (3) segments (31.66-LF, 108.16-LF, and 19.75-LF, respectively), concrete wingwalls on the upslope end of the culvert, R-7 riprap choked with R-3 riprap and natural streambed material, a total of twenty (20) fish baffle structures, an inlet that is slightly depressed below stream bed elevation, and a terminus that is tied into an existing 7.25-foot wide box culvert via sawcut. The culvert structure is proposed to be surrounded by a 36-inch-high aluminum railing mounted on concrete curbs atop both sides of the culvert replacement. The project is located north of SR 443 (West Market Street) over UNT to Mahannon Creek (CWF-MF) in the Borough of Orwigsburg in Schuylkill County, PA. Latitude: 40°, 39′, 22.3″, Longitude: -76°, 6′, 23″.

Northwest Region: Waterways & Wetlands Program, 230 Chestnut Street, Meadville, PA 16335-3481, 814-332-6945.

Contact: RA-EPWW-NWRO@pa.gov.

E3206225-004. Homer City Generation LP, 1750 Power Plant Road, Homer City, PA 15748, Black Lick Township, Center Township, **Indiana County**. U.S. Army Corps of Engineers Pittsburgh District. Application received: April 23, 2026.

To amend E3206225-004 to correct the impact assignment of Wetland W-22, a 0.08-acre non-Federally jurisdictional wetland which was originally shown in the application as a temporary impact, to be a permanent impact. The revised wetland impacts for the project are 0.847 acre temporary and 1.614 acres permanent. Mitigation for project impacts remains as purchase of credits from First

Pennsylvania Resource LLC (MB9915-001) at the Laurel Hill Creek Mitigation Bank (MB990556-0001) in Service Area 19 for Federally jurisdictional impacts and through purchase of credits through the Pennsylvania Integrated Ecological Services Capacity Enhancement and Support (PIESCES) Program for non-Federally jurisdictional wetland impacts. Latitude: 40.517958°, Longitude: -79.196697°.

Southcentral Region: Waterways & Wetlands Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Christopher Kemple, 717-705-4780.

E2203225-016. Mid-Atlantic Interstate Transmission, LLC (MAIT), 2800 Pottsville Pike, P.O. Box 16001, Reading, PA 19612-6001, Londonderry Township, **Dauphin County**. U.S. Army Corps of Engineers Baltimore District. Application received: November 10, 2025.

To 1.) place fill in 0.02 acre of PSS wetland, 2.) rebuild an approximately 0.5 mile long section of 500 kV transmission line that crosses the Susquehanna River to connect to the Power Plant Substation on Three Mile Island, 3.) construct two stormwater outlets, permanently impacting 260 square feet of the floodway of Spring Creek (HQ-CWF) and a rip-rap spillway, permanently impacting 680 square feet of the Floodway of Spring Creek (HQ-CWF). All proposed work is for the purpose of improving reliability of service in the region. No mitigation for the wetland impact will be required due to the de minimus area of this fill. Latitude: 40.149585°, Longitude: -76.714918°.

Southeast Region: Waterways & Wetlands Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: RA-EP-WW-SERO-105@pa.gov.

E4601226-005. Norristown Zoological Society, Inc., 1661 Harding Boulevard, Norristown, PA 19401, Norristown Borough, **Montgomery County**. U.S. Army Corps of Engineers Philadelphia District. Application received: February 20, 2026.

Norristown Zoological Society, Inc. proposes to construct and maintain a two-span pedestrian bridge over Stony Creek (TSF, MF) and its floodway to provide access between the eastern and western sides of Stony Creek as part of the Elmwood Park Zoo project. The proposed bridge will include one approximately 200-foot span that completely spans the 100-year floodplain of Stony Creek, and a second approximately 28-foot span over other non-regulated lands. The bridge will be supported by an eastern abutment, an intermediate pier located between the two spans, and a western abutment. The proposed work will result in 53 linear feet (795 square feet) of permanent watercourse impact and 525 square feet (0.012 acre) of permanent floodway impact. Temporary impacts are anticipated from excavation activities, temporary erosion and sediment control devices, a temporary cofferdam, and a temporary pier to support installation of the long span. Temporary construction activities will result in 42 linear feet (252 square feet) of temporary watercourse impact and 710 square feet (0.016 acre) of temporary floodway impact. The main span will be located approximately 11 feet above the 100-year base flood elevation, providing a safe and reliable means of access across Stony Creek. The purpose of the project is to provide a permanent and stable pedestrian connection between the eastern and western sides of Stony Creek to support future expansion of the Zoo. The project is located at 1661 Harding Boulevard, Norristown Borough, Montgomery County (USGS PA Lansdale Quadrangle; Latitude: 40.131639 N, Longitude: 75.340796 W).

E5101226-001. Delaware River Port Authority, One Port Center, 2 Riverside Drive, Camden, NJ 08101, City of Philadelphia, **Philadelphia County**. U.S. Army Corps of Engineers Philadelphia District. Application received: April 16, 2026.

Delaware River Port Authority is proposing to replace the existing bridge roadway surface as part of the Ben Franklin Bridge Preservation project. Delaware River Port Authority proposes to replace bridge deck over the Delaware River (WWF-MF) associated with the repairs and improvements. The proposed project involves asphalt overlay with PPC on the suspended spans, truss spans, girder spans and abutment spans, deck expansion joints, finger joints, drainage apron/hoods, troughs at the anchorage, expansion joints at the approach spans, asphalt pavement on the Philadelphia and Camden approach roads and toll plaza. There is no in-water work proposed with this project. This project is located at I-676 and US-30 over I-95 in Philadelphia City, Philadelphia County (USGS PA Camden, Philadelphia Quadrangle—Latitude: 39.952700°, Longitude: -75.133024°).

E4601226-006. Narberth Borough, 100 Conway Ave, Narberth, PA 19072, Narberth Borough, **Montgomery County**. U.S. Army Corps of Engineers Philadelphia District. Application received: April 16, 2026.

Narberth Borough is proposing to perform the following water obstruction and encroachment activities as part of the Elmwood Avenue Channel Repair Project:

1. To remove an existing overhead bridge over an unnamed tributary to Cobbs Creek (WWF) and in its place and westbound of Elmwood Avenue, construct and maintain a new pedestrian bridge.

2. To remove existing gabion basket walls on both sides of an unnamed tributary to Cobbs Creek, and its place, construct and maintain a 4-foot-high boulder wall with varying height resulting in 49 linear feet (91 square feet) of permanent watercourse impact and 64 linear feet (350 square feet) of temporary watercourse impact due to temporary dewatering.

3. To perform grading activities within the floodway for pedestrian trail resulting in a total of 3,031 square feet of permanent floodway impact and 1,241 square feet of temporary floodway impact. This activity includes grading for a stormwater management facility,

This project is to replace failing gabion basket walls and to provide water quality benefits for Cobbs Creek watershed. This project is located at Elmwood Avenue and adjacent to Elm Grove Park in Narberth Borough, Montgomery County (USGS PA Norristown Quadrangle—Latitude: 40.002959 N, Longitude: 75.265887 W).

ENVIRONMENTAL ASSESSMENTS

Central Office: Waterways & Wetlands Program, Rachel Carson State Office Building, 400 Market Street, Harrisburg, PA 17101, 717-787-3411.

Contact: Andrew Foley, Water Program Specialist, 484-250-5813.

EA6715226-003, UNT to Deer Creek Troyer Farm Restoration Project. Troyer Farms LLC, 1953 Cooper Road, New Freedom, PA 17349, Shrewsbury Township, **York County**. U.S. Army Corps of Engineers Baltimore District. Application received: March 31, 2026.

The applicant proposes restoration of approximately 1,500 linear feet (LF) of an Unnamed Tributary (UNT) to

Deer Creek (CWF). The applicant is proposing to restore the UNT and its associated floodplain by removing legacy sediment and other historic fills from the associated floodplain. The project proposes to restore approximately 2.5 acres of integrated wetland, stream, and floodplain areas. Restoration efforts will utilize a combination of channel relocation, floodplain grading, subsurface grade control structures, and habitat structural improvements to restore the channel pattern and floodplain. Additional restoration activities proposed include placement of rock stream and valley grade control structures; placement of log sills, woody debris, root wads, and other aquatic habitat structures within the restoration areas; construction of temporary stream crossings, rock construction entrances, and other erosion controls during restoration activities. The project is located on a privately owned property in New Freedom, Shrewsbury Township, York County. Latitude: 39.740020°, Longitude: -76.640354°.

Eastern District: Oil and Gas Management Program, 208 West Third Street, Williamsport, PA 17701-6448.

Contact: RA-EPEASTERNOGPRG@pa.gov.

EA0829226-001. Expand Operating LLC, 14 Chesapeake Lane, Sayre, PA 18840, Burlington Township, **Bradford County**. U.S. Army Corps of Engineers Baltimore District. Application received: April 1, 2026.

The construction of the well pad and access road resulted in 3,243 square feet (0.074 acre) of impacts to Palustrine Emergent Wetlands. The project proposes restoration of the well pad and access road, 3,243 square feet (0.074 acre) of restoration activities and the replanting of native hydrophytic vegetation within the impacted wetlands. The project will result in 3,243 square feet (0.074 acre) of temporary Palustrine Emergent Wetland impacts (Powell, PA Quadrangle, Latitude: 41.743525°, Longitude: -76.549372°).

Southcentral Region: Waterways & Wetlands Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: 717-705-4802.

EA6703226-001. Stephen Miller, 3137 Sticks Road, Glen Rock, PA 17327, Codorus Township, **York County**. U.S. Army Corps of Engineers Baltimore District. Application received: January 27, 2026.

To conduct a stream restoration project along Centerville Creek (CWF, MF) and an unnamed tributary to Centerville Creek (CWF, MF) including 1.) the backfill and maintenance of 195 linear feet of stream channel; 2.) the construction and maintenance of 265 feet of stream; 3.) the grading and maintenance of 1,315 linear feet of streambank; 4.) the installation and maintenance of 235 feet of boulder bank revetment; 5.) the installation and maintenance of 185 feet of rock toe protection; 6.) the installation and maintenance of a J-hook rock vane; 7.) the installation and maintenance of twelve root wads; and 8.) the construction and maintenance of a temporary timber mat access road impacting 0.046 acre of exceptional value palustrine emergent wetlands, all for the purposes of stabilizing the streambanks and enhancing habitat. The project is located at 3137 Sticks Road (Latitude: 39.7752° N; Longitude: 76.7464° W) in Codorus Township, York County. Wetland impacts are temporary, and replacement is not required.

ACTIONS

THE PENNSYLVANIA CLEAN STREAMS LAW AND THE FEDERAL CLEAN WATER ACT

FINAL ACTIONS TAKEN FOR NPDES PERMITS AND WQM PERMITS

The Department of Environmental Protection (DEP) has taken the following actions on previously received applications for new, amended, and renewed National Pollutant Discharge Elimination System (NPDES) and Water Quality Management (WQM) permits, applications for permit waivers, and Notice of Intent (NOIs) for coverage under General Permits, as listed in the following tables. This notice of final action is published in accordance with 25 Pa. Code Chapters 91, 92a, and 102 and 40 CFR Part 122, implementing provisions of The Clean Streams Law (35 P.S. §§ 691.1—691.1001) and the Federal Clean Water Act (33 U.S.C. §§ 1251—1376). The official file for each listed action can be reviewed at the DEP or delegated County Conservation District (CCD) office identified in the table for the action. DEP/CCD office contact information is listed as follows for Section I and is contained within the table for Section II. Additional information for permits issued under 25 Pa. Code Chapters 91 and 92a and Individual permits under 25 Pa. Code Chapter 102, including links to Individual Chapter 92a NPDES and WQM Permits, may be reviewed by generating the "Final Actions Report" on DEP's website at www.dep.pa.gov/CWPublicNotice.

DEP office contact information to review official files relating to the final actions in Section I is as follows:

DEP Southeast Regional Office (SERO)—2 E. Main Street, Norristown, PA 19401-4915. File Review Coordinator: 484-250-5910. Email: RA-EPNPDES_SERO@pa.gov for Chapter 91 & 92a permits; RA-EPWW-SERO@pa.gov for Chapter 102 permits.

DEP Northeast Regional Office (NERO)—2 Public Square, Wilkes-Barre, PA 18701-1915. File Review Coordinator: 570-826-5472. Email: RA-EPNPDES_NERO@pa.gov for Chapter 91 & 92a permits; RA-EPWW-NERO@pa.gov for Chapter 102 permits.

DEP Southcentral Regional Office (SCRO)—909 Elmerton Avenue, Harrisburg, PA 17110. File Review Coordinator: 717-705-4732. Email: RA-EPNPDES_SCRO@pa.gov for Chapter 91 & 92a permits; RA-EPWW-SCRO@pa.gov for Chapter 102 permits.

DEP Northcentral Regional Office (NCRO)—208 W. Third Street, Suite 101, Williamsport, PA 17701. File Review Coordinator: 570-327-3693. Email: RA-EPNPDES_NCRO@pa.gov for Chapter 91 & 92a permits; RA-EPWW-NCRO@pa.gov for Chapter 102 permits.

DEP Southwest Regional Office (SWRO)—400 Waterfront Drive, Pittsburgh, PA 15222. File Review Coordinator: 412-442-4286. Email: RA-EPNPDES_SWRO@pa.gov for Chapter 91 & 92a permits; RA-EPWW-SWRO@pa.gov for Chapter 102 permits.

DEP Northwest Regional Office (NWRO)—230 Chestnut Street, Meadville, PA 16335. File Review Coordinator: 814-332-6078. Email: RA-EPNPDES_NWRO@pa.gov for Chapter 91 & 92a permits; RA-EPWW-NWRO@pa.gov for Chapter 102 permits.

DEP Bureau of Clean Water (BCW)—400 Market Street, Harrisburg, PA 17105. File Review Coordinator: 717-787-5017. Email: RA-EPNPDES_Permits@pa.gov.

DEP Regional Permit Coordination Office (RPCO)—400 Market Street, Harrisburg, PA 17105. File Review Coordinator: 717-772-5987. Email: RA-EPREGIONALPERMIT@pa.gov.

Persons aggrieved by an action may appeal that action to the Environmental Hearing Board (Board) under section 4 of the Environmental Hearing Board Act (35 P.S. § 7514) and 2 Pa.C.S. §§ 501—508 and 701—704 (relating to Administrative Agency Law).

The appeal should be sent to the Environmental Hearing Board, Second Floor, Rachel Carson State Office Building, 400 Market Street, P.O. Box 8457, Harrisburg, PA 17105-8457, 717-787-3483. Appeals must be filed with the Board within 30-days of publication of this notice in the *Pennsylvania Bulletin* unless the appropriate statute provides a different time period. Copies of the appeal form and the Board's rules of practice and procedure may be obtained from the Board. This paragraph does not, in and of itself, create a right of appeal beyond that permitted by applicable statutes and decisional law. For individuals who wish to challenge an action, the appeal must reach the Board within 30-days. A lawyer is not needed to file an appeal with the Board. Individuals who cannot afford a lawyer may qualify for free pro bono representation. Call the Secretary to the Board at 717-787-3483 for more information. The appeal form and the Board's rules of practice and procedure are also available in Braille or on audiotape from the Secretary to the Board at 717-787-3483. Important legal rights are at stake, however, so individuals should contact a lawyer at once.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

For actions taken on applications for pipelines that are regulated by the Federal Energy Regulatory Commission (FERC).

Any person aggrieved by this action may challenge it in an appropriate legal forum. The State and Federal courts are currently split on whether the proper forum to challenge a Department permit, authorization or approval for a facility or activity subject to the Federal Natural Gas Act, 15 U.S.C. §§ 717 et seq., is the United States Court of Appeals for the Third Circuit or the Pennsylvania Environmental Hearing Board. See *Delaware Riverkeeper Network v. Sec'y, Dep't. of Envtl. Prot*., 833 F.3d 360 (3d Cir. 2016); *Delaware Riverkeeper Network v. Sec'y, Dep't. of Envtl. Prot.*, 903 F.3d 65 (3d Cir. 2018), cert. denied, 139 S. Ct. 1648, 203 L. Ed. 899 (2019) and *Cole v. Dep't. of Envtl. Prot.*, 1577 C.D. 2019 WL 2420667 (Pa. Cmwlth Ct. June 15, 2021) (Pet. for Allowance of Appeal pending); *West Rockhill Twp. v. Dep't. of Envtl. Prot.*, No. 1595 C.D. 2019 WL 2426014 (Pa. Cmwlth. June 15, 2021) (Pet. for Allowance of Appeal pending).

I. Final Action(s) on NPDES and WQM Permit Application(s) and NOIs for Sewage, Industrial Waste, Industrial Stormwater, MS4s, Pesticides, CAFOs and Individual Construction Stormwater.

Application Number	*Permit Type*	*Action Taken*	*Permittee Name & Address*	*Municipality, County*	*DEP Office*
PAD140141	Chapter 102 Individual NPDES Permit	Issued	GS Nittany Owner LLC 161 Washington Street Conshohocken, PA 19428-2083	State College Borough Centre County	NCRO
PAD150225	Chapter 102 Individual NPDES Permit	Issued	Kranyecz Kim 404 Cannon Court Chesterbrook, PA 19087-5530	West Vincent Township Chester County	SERO
PAD210064	Chapter 102 Individual NPDES Permit	Issued	Evertrue Inc. 5000 Ritter Road Suite 202 Mechanicsburg, PA 17055-6922	South Middleton Township Cumberland County	SCRO
PAD210118	Chapter 102 Individual NPDES Permit	Issued	Aampa Holdings LLC 1514 Commerce Avenue Carlisle, PA 17015-9161	West Pennsboro Township Cumberland County	SCRO
PAD280029	Chapter 102 Individual NPDES Permit	Issued	Guilford 30 Development LLC 1195 Route 70 Suite 2000 Lakewood, NJ 08701-5946	Guilford Township Franklin County	SCRO
PAD350055	Chapter 102 Individual NPDES Permit	Issued	Powell Kenneth 1 Highland Boulevard S Archbald, PA 18403-1519	Archbald Borough Lackawanna County	NERO
PAD350067	Chapter 102 Individual NPDES Permit	Issued	H&P Partnership 1360 Griffin Road Roaring Brook Township, PA 18444-7713	Roaring Brook Township Lackawanna County	NERO

Application Number	*Permit Type*	*Action Taken*	*Permittee Name & Address*	*Municipality, County*	*DEP Office*
PAD360150	Chapter 102 Individual NPDES Permit	Issued	Houghton Michael R 21 Dogwood Road Kirkwood, PA 17536-9752	East Drumore Township Lancaster County	SCRO
PAD390358	Chapter 102 Individual NPDES Permit	Issued	Buckeye Pipe Line Co. LP 6161 Hamilton Boulevard Allentown, PA 18106-9767	South Whitehall Township Lehigh County	NERO
PAD390374	Chapter 102 Individual NPDES Permit	Issued	DPR Const 158 W Gay Street West Chester, PA 19380-2907	Upper Macungie Township Lehigh County	RPCO
PAD450046	Chapter 102 Individual NPDES Permit	Issued	CMBK Resort Holdings LLC 193 Resort Drive Tannersville, PA 18372-7993	Pocono Township Monroe County	NERO
PAD480096	Chapter 102 Individual NPDES Permit	Issued	Lehigh Valley Ind Park Inc. 1720 Spillman Drive Suite 150 Bethlehem, PA 18015-2164	Bethlehem City Northampton County	NERO
PAD480155	Chapter 102 Individual NPDES Permit	Issued	Jaindl Land Co. 3150 Coffeetown Road Orefield, PA 18069	Hanover Township Northampton County	NERO
PAD630090	Chapter 102 Individual NPDES Permit	Issued	ALJ Land Development 72 Wilson Road Eighty Four, PA 15330-2806	North Strabane Township Washington County	SWRO
PAD680026	Chapter 102 Individual NPDES Permit	Issued	PA DEP Bureau of Abandoned Mine Reclamation 286 Industrial Park Rd. Ebensburg, PA 15931	Boggs Township Armstrong County	PA DEP Bureau of Abandoned Mine Reclamation Cambria Office
PA0044041	Concentrated Aquatic Animal Production Facility Individual NPDES Permit	Issued	PA Fish & Boat Comm 1735 Shiloh Road State College, PA 16801-8400	Wayne Township Erie County	NWRO
PA0217425	Industrial Stormwater Individual NPDES Permit	Issued	Coen Market Inc. 1000 Philadelphia Street Canonsburg, PA 15317-1700	Bentleyville Borough Washington County	SWRO
PA0276308	Industrial Stormwater Individual NPDES Permit	Issued	Amazon Com Service LLC P.O. Box 80842 Attn: NA Environmental Department Seattle, WA 98108-0842	Bethlehem Township Northampton County	NERO
0326801	Joint DEP/PFBC Pesticides Permit	Issued	Ritts William 144 Rocky Top Lane Worthington, PA 16262-3024	West Franklin Township Armstrong County	NWRO
0626802	Joint DEP/PFBC Pesticides Permit	Issued	Cruz Jeff 41 Hay Road Oley, PA 19547-8670	Pike Township Berks County	SCRO
0814804	Joint DEP/PFBC Pesticides Permit	Issued	Queen Esther Lot Owners Association P.O. Box 934 Sayre, PA 18840-0934	Athens Township Bradford County	NCRO
0915801	Joint DEP/PFBC Pesticides Permit	Issued	Kallatch Jennifer 135 Brownsburg Road Newtown, PA 18940-9624	Wrightstown Township Bucks County	SERO
0926806	Joint DEP/PFBC Pesticides Permit	Issued	Veterans Choice Service LLC P.O. Box 10549 Goldsboro, NC 27532-0549	Upper Makefield Township Bucks County	SERO

Application Number	*Permit Type*	*Action Taken*	*Permittee Name & Address*	*Municipality, County*	*DEP Office*
1526804	Joint DEP/PFBC Pesticides Permit	Issued	Chester County Water Resources Authority 601 Westtown Road Suite 260 P.O. Box 2747 West Chester, PA 19380-0990	West Caln Township Chester County	SERO
4126801	Joint DEP/PFBC Pesticides Permit	Issued	Deck Gregory A 2704 Northway Road Ext Williamsport, PA 17701-8852	Hepburn Township Lycoming County	NCRO
4526801	Joint DEP/PFBC Pesticides Permit	Issued	Leisure Lake At Poconos LLC 4 Rickland Drive Caldwell, NJ 07006-4184	Pocono Township Monroe County	NERO
5216806	Joint DEP/PFBC Pesticides Permit	Issued	Saw Creek Estates Comm Association Inc. 5728 Decker Road Bushkill, PA 18324-6627	Lehman Township Pike County	NERO
5826802	Joint DEP/PFBC Pesticides Permit	Issued	Thomas Acres LP 105 Seaton Drive State College, PA 16801-7989	Auburn Township Susquehanna County	NERO
5926801	Joint DEP/PFBC Pesticides Permit	Issued	Crazyman Hunting Camp 2 Oakridge Drive Mohnton, PA 19540-9305	Richmond Township Tioga County	NCRO
6626802	Joint DEP/PFBC Pesticides Permit	Issued	Phillips Megan 1528 Grand Avenue Seattle, WA 98122-3524	Nicholson Township Wyoming County	NERO
6726801	Joint DEP/PFBC Pesticides Permit	Issued	Baker Tim P.O. Box 337 Spring Grove, PA 17362-0337	Paradise Township York County	SCRO
PA0088781	Major Industrial Waste Facility < 250 MGD Individual NPDES Permit	Issued	Calpine Mid Merit II LLC 1597 Atom Road Delta, PA 17314-9250	Peach Bottom Township York County	SCRO
PA0282022	Major Industrial Waste Facility < 250 MGD Individual NPDES Permit	Issued	Calpine Mid Merit LLC 1055 Pikes Peak Road Delta, PA 17314-9239	Peach Bottom Township York County	SCRO
0386201	Major Industrial Waste Treatment Facility Individual WQM Permit	Issued	Keystone Conemaugh Project LLC 175 Cornell Road Suite 1 Blairsville, PA 15717-8076	Plumcreek Township Armstrong County	NWRO
3292204	Major Industrial Waste Treatment Facility Individual WQM Permit	Issued	Keystone Conemaugh Project LLC 175 Cornell Road Suite 1 Blairsville, PA 15717	West Wheatfield Township Indiana County	NWRO
PA0027553	Major Sewage Facility >= 1 MGD and < 5 MGD Individual NPDES Permit	Issued	Pine Creek Municipal Authority Clinton County P.O. Box 608 Avis, PA 17721-0608	Pine Creek Township Clinton County	NCRO
6570407	Major Sewage Treatment Facility Individual WQM Permit	Issued	Rostraver Township Westmoreland County 1744 Rostraver Road Belle Vernon, PA 15012	Rostraver Township Westmoreland County	SWRO

Application Number	*Permit Type*	*Action Taken*	*Permittee Name & Address*	*Municipality, County*	*DEP Office*
PA0032964	Minor Sewage Facility < 0.05 MGD Individual NPDES Permit	Issued	PA DCNR State Parks Bureau 6235 Aughwick Road Fort Loudon, PA 17224-9603	Todd Township Fulton County	SCRO
PA0084123	Minor Sewage Facility < 0.05 MGD Individual NPDES Permit	Issued	Penn Township Municipal Authority Perry County 100 Municipal Building Road Duncannon, PA 17020-1130	Penn Township Perry County	SCRO
PA0086312	Minor Sewage Facility < 0.05 MGD Individual NPDES Permit	Issued	Dorwart James P 1375 Old Quaker Road Etters, PA 17319-9116	Fairview Township York County	SCRO
PA0094382	Minor Sewage Facility < 0.05 MGD Individual NPDES Permit	Issued	Greensburg Salem School District 140 CC Hall Drive New Alexandria, PA 15670-3089	Salem Township Westmoreland County	SWRO
PA0102628	Minor Sewage Facility < 0.05 MGD Individual NPDES Permit	Issued	Henderson Township Municipal Authority Jefferson County P.O. Box 56 121 Fourth Street Stump Creek, PA 15863-0056	Henderson Township Jefferson County	NWRO
PA0081566	Minor Sewage Facility >= 0.05 MGD and < 1 MGD Individual NPDES Permit	Issued	The York Water Co. 130 East Market Street York, PA 17401	York Haven Borough York County	SCRO
PA0101923	Minor Sewage Facility >= 0.05 MGD and < 1 MGD Individual NPDES Permit	Issued	Saegertown Borough Area Sewer Authority Crawford County P.O. Box 334 180 Park Avenue Ext Saegertown, PA 16433-0334	Saegertown Borough Crawford County	NWRO
PA0263443	Minor Sewage Facility >= 0.05 MGD and < 1 MGD Individual NPDES Permit	Issued	Linesville Pine Joint Municipal Authority P.O. Box 382 Linesville, PA 16424-0382	Pine Township Crawford County	NWRO
1988407	Minor and Non-NPDES Sewage Treatment Facility Individual WQM Permit	Issued	Orange Township Columbia County 2028 State Route 487 Orangeville, PA 17859-9029	Orange Township Columbia County	NCRO
2112404	Minor and Non-NPDES Sewage Treatment Facility Individual WQM Permit	Issued	Lemoyne Borough Municipal Authority Cumberland County 3 Lowther Street Lemoyne, PA 17043-2029	Lemoyne Borough Cumberland County	SCRO
6784405	Minor and Non-NPDES Sewage Treatment Facility Individual WQM Permit	Issued	The York Water Co. 130 East Market Street York, PA 17401	York Haven Borough York County	SCRO
NOEXSE331	No Exposure Certification	Issued	Linde Inc. 10 Riverview Drive Danbury, CT 06810-6268	Hatfield Township Montgomery County	SERO

Application Number	*Permit Type*	*Action Taken*	*Permittee Name & Address*	*Municipality, County*	*DEP Office*
PAG032421	PAG-03 NPDES General Permit for Industrial Stormwater	Issued	Shamokin Filler Co. Inc. 453 Venn Access Road Coal Township, PA 17866-6901	Wright Township Luzerne County	NERO
PAG034123	PAG-03 NPDES General Permit for Industrial Stormwater	Issued	Martin Concrete LLC 1648 Letterkenny Road Chambersburg, PA 17201-8702	Hamilton Township Franklin County	SCRO
PAG038636	PAG-03 NPDES General Permit for Industrial Stormwater	Issued	A Anthony & Sons Inc. 1450 W 21st Street Erie, PA 16502-2203	Erie City Erie County	NWRO
PAG041623	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	Issued	Hendrickson Donald 1150 Conway Wallrose Road Freedom, PA 15042-2327	Deerfield Township Warren County	NWRO
PAG041624	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	Issued	Baker Joseph 1229 Slippery Rock Road Slippery Rock, PA 16057-4031	Liberty Township Mercer County	NWRO
PAG045320	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	Issued	Dillon Kathleen 2632 Braddock Street Philadelphia, PA 19125-1406	Franklin Township Columbia County	NCRO
PAG046172	PAG-04 NPDES General Permit for Small Flow Treatment Facilities	Issued	Gorzelsky Marissa R 184 Beyers Road Summerhill, PA 15958-3509	Croyle Township Cambria County	SWRO
PAG058404	PAG-05 NPDES General Permit for Groundwater Cleanup	Issued	United Refinery Co. of PA 15 Bradley Street Warren, PA 16365-3224	North East Township Erie County	NWRO
PAG123982	PAG-12 NPDES General Permit for CAFOs	Issued	Molnar Matt 214 Mill Road Elizabethville, PA 17023-9436	Mifflin Township Dauphin County	SCRO
PA0231835	Single Residence STP Individual NPDES Permit	Issued	Boob Robert B Jr. 301 Allegheny Street Jersey Shore, PA 17740-1405	Mifflin Township Lycoming County	NCRO
PA0255874	Single Residence STP Individual NPDES Permit	Issued	Watson Kaleb 102 Landwood Lane Freedom, PA 15042-2812	New Sewickley Township Beaver County	SWRO
PA0261386	Single Residence STP Individual NPDES Permit	Issued	Calicchio Anthony 220 Shatto Drive Carlisle, PA 17013-0121	North Middleton Township Cumberland County	SCRO
1199401	Single Residence Sewage Treatment Plant Individual WQM Permit	Issued	Gorzelsky Marissa R 184 Beyers Road Summerhill, PA 15958-3509	Croyle Township Cambria County	SWRO
PA0088307	Small Flow Treatment Facility Individual NPDES Permit	Issued	Snyders LLP 501 Conodoguinet Avenue Carlisle, PA 17015-8972	North Middleton Township Cumberland County	SCRO
2100401	Small Flow Treatment Facility Individual WQM Permit	Issued	Snyders LLP 501 Conodoguinet Avenue Carlisle, PA 17015-8972	North Middleton Township Cumberland County	SCRO

Application Number	*Permit Type*	*Action Taken*	*Permittee Name & Address*	*Municipality, County*	*DEP Office*
1192601	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	Issued	Dillon Kathleen 2632 Braddock Street Philadelphia, PA 19125-1406	Franklin Township Columbia County	NCRO
1412404	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	Issued	Boob Robert B Jr. 301 Allegheny Street Jersey Shore, PA 17740-1405	Mifflin Township Lycoming County	NCRO
WQG01432602	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	Issued	Baker Joseph 1229 Slippery Rock Road Slippery Rock, PA 16057-4031	Liberty Township Mercer County	NWRO
WQG01622603	WQG-01 Single Residence Sewage Treatment Plant WQM General Permit	Issued	Hendrickson Donald 1150 Conway Wallrose Road Freedom, PA 15042-2327	Deerfield Township Warren County	NWRO

II. Final Action(s) on PAG-01 and PAG-02 General NPDES Permit NOIs.

Permit Number	*Permit Type*	*Action Taken*	*Applicant Name & Address*	*Municipality, County*	*Office*
PAC310045	PAG-02 General Permit	Issued	David & Carrie Anderson 23584 Parks Rd. Orbisonia, PA 17243	Spring Township Huntingdon County	Huntingdon County Conservation District 10605 Raystown Road Huntingdon, PA 16652 814-819-0230 erosion@huntingdon conservation.org
PAC660046	PAG-02 General Permit	Issued	Solar Renewable Energy, LLC 4550 Lena Drive Mechanicsburg, PA 17055	Tunkhannock Township Wyoming County	Wyoming County Conservation District 6052 SR 6 Tunkhannock, PA 18657 570-240-4050 RA-EPWW-NERO@ pa.gov
PAC400370	PAG-02 General Permit	Issued	Northeastern Pennsylvania Educational Television Association Carla McCabe 100 WVIA Way Pittston, PA 18640	Jenkins Township Luzerne County	Luzerne Conservation District 325 Smiths Pond Road Shavertown, PA 18708 570-674-7991 RA-EPWW-NERO@ pa.gov
PAC010286	PAG-02 General Permit	Issued	GN, LLC 2779 Carlisle Road York, PA 17408	Hamiltonban Township Adams County	Adams County Conservation District 670 Old Harrisburg Road Gettysburg, PA 17325 717-334-0636
PAC130034	PAG-02 General Permit	Issued	Legacy Properties of McAdoo, LLC c/o Mr. Brian Forcine 1875 Church Road Malvern, PA 19355	Banks Township Carbon County	Carbon County Conservation District 5664 Interchange Road Lehighton, PA 18235 610-377-4894 RA-EPWW-NERO@ pa.gov

Permit Number	*Permit Type*	*Action Taken*	*Applicant Name & Address*	*Municipality, County*	*Office*
PAC670848	PAG-02 General Permit	Issued	Columbia Gas of Pennsylvania William Anderson 1600 Colony Road York, PA 17408	Manchester Township Conewago Township York County	York County Conservation District 2401 Pleasant Valley Road Suite 101 Room 139 York, PA 17402 717-840-7430
PAC360900 A-1	PAG-02 General Permit	Issued	James Tippett Corixa Corporation dba GlaxoSmithKline Vaccines 325 North Bridge Street Marietta, PA 17547	East Donegal Township Lancaster County	Lancaster County Conservation District 1383 Arcadia Road Room 200 Lancaster, PA 17601 717-299-5361
PAC360340 A-1	PAG-02 General Permit	Issued	Bill Koch Willow Valley Communities 100 Willow Valley Lakes Drive Willow Street, PA 17584	West Lampeter Township Lancaster County	Lancaster County Conservation District 1383 Arcadia Road Room 200 Lancaster, PA 17601 717-299-5361
PAC361117	PAG-02 General Permit	Issued	Michael Morris Upper Leacock Township 161 Newport Road Leola, PA 17540	Upper Leacock Township Lancaster County	Lancaster County Conservation District 1383 Arcadia Road Room 200 Lancaster, PA 17601 717-299-5361
PAC360279 A-17	PAG-02 General Permit	Issued	Ed Foster Lancaster Airport Authority 500 Airport Road Lititz, PA 17543	Manheim Township Lancaster County	Lancaster County Conservation District 1383 Arcadia Road Room 200 Lancaster, PA 17601 717-299-5361
PAC361122	PAG-02 General Permit	Issued	Geoffrey Feiler WB Lanchester LLC 150 Monument Road Suite 3000 Bala Cynwyd, PA 19004	Caernarvon Township Lancaster County	Lancaster County Conservation District 1383 Arcadia Road Room 200 Lancaster, PA 17601 717-299-5361
PAC220533	PAG-02 General Permit	Issued	PPL Electric Utilities Corporation 1639 Church Road Allentown, PA 18104	Swatara Township Dauphin County	Dauphin County Conservation District 1451 Peters Mountain Rd Dauphin, PA 17018 717-921-8100 mrock@dauphincounty.gov
PAC220516	PAG-02 General Permit	Issued	G. Morris Solar LLC c/o Birch Creek Development 2650 Locust Street St. Louis, MO 63103	Gratz Borough Dauphin County	Dauphin County Conservation District 1451 Peters Mountain Rd Dauphin, PA 17018 717-921-8100 mrock@dauphincounty.gov
PAC380393	PAG-02 General Permit	Issued	Heritage Run, LLC 1316 King Street Lebanon, PA 17042	North Cornwall Township Lebanon County	Lebanon County Conservation District 2120 Cornwall Road Suite 5 Lebanon, PA 17042 717-277-5275 karl.kerchner@lccd.org

Permit Number	*Permit Type*	*Action Taken*	*Applicant Name & Address*	*Municipality, County*	*Office*
PAC100389	PAG-02 General Permit	Issued	Chick-Fil-A Inc. 5200 Buffington Road Atlanta, GA 30349	Butler Township Butler County	Butler County Conservation District 120 Hollywood Drive Suite 201 Butler, PA 16001 724-284-5270
PAC390269	PAG-02 General Permit	Issued	Frank Armetta 2005 Settlers Ridge Road Slatington, PA 18080	North Whitehall Township Lehigh County	Lehigh County Conservation District Lehigh County AG Center Suite 105 4184 Dorney Park Road Allentown, PA 18104-5728 610-391-9583 RA-EPWW-NERO@pa.gov
PAC461040	PAG-02 General Permit	Issued	Parkview Homes at Valley Forge LLC P.O. Box 754 Devon, PA 19333-0754	Upper Merion Township Montgomery County	Montgomery County Conservation District 143 Level Road Collegeville, PA 19426-3313 610-489-4506 RA-EPNPDES_SERO@pa.gov
PAC461020	PAG-02 General Permit	Issued	2425 Maryland Rd Property Owner, LLC c/o KRE Group 515 Marin Blvd New Jersey, NJ 07302	Upper Moreland Township Montgomery County	Montgomery County Conservation District 143 Level Road Collegeville, PA 19426-3313 610-489-4506 RA-EPNPDES_SERO@pa.gov
PAC210416	PAG-02 General Permit	Issued	Pennsylvania American Water Company, Inc. 852 Wesley Drive Mechanicsburg, PA 17055	Silver Spring Township Cumberland County	Cumberland County Conservation District 310 Allen Road Ste 301 Carlisle, PA 17013 717-240-7812 mmarsh@cumberlandcountypa.gov
PAC660047	PAG-02 General Permit	Issued	Mid-Atlantic Interstate Transmission, LLC 341 White Pond Drive Akron, OH 44320	Auburn Township Meshoppen Township Washington Township Susquehanna County Wyoming County	Wyoming County Conservation District 6052 SR 6 Tunkhannock, PA 18657 570-836-2589 RA-EPWW-NERO@pa.gov
PAC310044	PAG-02 General Permit	Issued	Cole Hicks 16911 Beavertown Rd. Todd, PA 16685	Cass Township Huntingdon County	Huntingdon County Conservation District 10605 Raystown Road Huntingdon, PA 16652 814-819-0230 ext. 104 erosion@huntingdonconservation.org
PAC461044	PAG-02 General Permit	Issued	HTC Associates LLC 357 Level Road Collegeville, PA 19426-3455	Skippack Township Montgomery County	Montgomery County Conservation District 143 Level Road Collegeville, PA 19426-3313 610-489-4506 RA-EPNPDES_SERO@pa.gov

Permit Number	*Permit Type*	*Action Taken*	*Applicant Name & Address*	*Municipality, County*	*Office*
PAC090795	PAG-02 General Permit	Issued	FedEx Freight, Inc. 2200 Forward Drive Harrison, AR 72601	Bristol Township Bucks County	Bucks County Conservation District 1456 Ferry Road Doylestown, PA 18901-5550 215-345-7577 RA-EPNPDES_SERO@pa.gov
PAC090812	PAG-02 General Permit	Issued	Central Bucks School District 320 West Swamp Road Doylestown, PA 18901	Buckingham Township Bucks County	Bucks County Conservation District 1456 Ferry Road Doylestown, PA 18901-5550 215-345-7577 RA-EPNPDES_SERO@pa.gov
PAC090806	PAG-02 General Permit	Issued	Lincoln 55 LLC 400 Crossing Drive Bristol, PA 19007	Bristol Borough Bucks County	Bucks County Conservation District 1456 Ferry Road Doylestown, PA 18901-5550 215-345-7577 RA-EPNPDES_SERO@pa.gov
PAC280449	PAG-02 General Permit	Issued	Sheetz, Inc. 243 Sheetz Way Claysburg, PA 16625	Greene Township Franklin County	Franklin County Conservation District 185 Franklin Farm Lane Ste. 201 Chambersburg, PA 17202 717-264-5499 jschooley@franklinccd.org
PAC280272A-1	PAG-02 General Permit	Issued	Echo Vertical, LLC 7887 East Belleview Avenue Suite 475 Denver, CO 80111	Guilford Township Franklin County	Franklin County Conservation District 185 Franklin Farm Lane Ste. 201 Chambersburg, PA 17202 717-264-5499 jschooley@franklinccd.org
PAC280450	PAG-02 General Permit	Issued	Evergreen Poultry Farm, LLC 10139 Church Hill Road Mercersburg, PA 17236	Saint Thomas Township Franklin County	Franklin County Conservation District 185 Franklin Farm Lane Ste. 201 Chambersburg, PA 17202 717-264-5499 jschooley@franklinccd.org
PAC280446	PAG-02 General Permit	Issued	The York Water Company 1801 Mount Rose Avenue York, PA 17403	Letterkenny Township Franklin County	Franklin County Conservation District 185 Franklin Farm Lane Ste. 201 Chambersburg, PA 17202 717-264-5499 jschooley@franklinccd.org

Permit Number	*Permit Type*	*Action Taken*	*Applicant Name & Address*	*Municipality, County*	*Office*
PAC280455	PAG-02 General Permit	Issued	Magee-Campbell Farm, LLC 19659 Amberson Road Spring Run, PA 17262-9735	Fannett Township Franklin County	Franklin County Conservation District 185 Franklin Farm Lane Ste. 201 Chambersburg, PA 17202 717-264-5499 jschooley@franklinccd.org
PAC480220	PAG-02 General Permit	Issued	ENC 23, LLC 5913 Ricky Ridge Trail Orefield, PA 18069	City of Bethlehem Northampton County	Northampton County Conservation District 3158 Newburg Rd. Nazareth, PA 18064-9730 610-726-1030 RA-EPWW-NERO@pa.gov
PAC400349	PAG-02 General Permit	Issued	SR309B, LLC Stephen Maakestad 100 Baltimore Drive Wilkes-Barre, PA 18072	Hazle Township Luzerne County	Luzerne Conservation District 325 Smiths Pond Road Shavertown, PA 18708 570-674-7991 RA-EPWW-NERO@pa.gov
PAC650444 A-1	PAG-02 General Permit	Issued	Cleaveland/Price, Inc. 14000 Route 993 Trafford, PA 15085	North Huntingdon Township Westmoreland County	Westmoreland Conservation District 218 Donohoe Road Greensburg, PA 15601 724-837-5271 SWRO
PAC350120	PAG-02 General Permit	Issued	ERCOR Triboro, LLC 207 High Point Drive Victor, NY 14564-1068	Jessup Borough Olyphant Borough Throop Borough Lackawanna County	Lackawanna County Conservation District 1027 S. Abington Road S. Abington Township, PA 18411 570-382-3086 RA-EPWW-NERO@pa.gov

PUBLIC WATER SUPPLY PERMITS

The Department has taken the following actions on applications received under the Pennsylvania Safe Drinking Water Act (35 P.S. §§ 721.1—721.17) for the construction, substantial modification or operation of a public water system.

Persons aggrieved by an action may appeal that action to the Environmental Hearing Board (Board) under section 4 of the Environmental Hearing Board Act and 2 Pa.C.S. §§ 501—508 and 701—704. The appeal should be sent to the Environmental Hearing Board, Second Floor, Rachel Carson State Office Building, 400 Market Street, P.O. Box 8457, Harrisburg, PA 17105-8457, 717-787-3483. Appeals must be filed with the Board within 30-days of publication of this notice in the *Pennsylvania Bulletin* unless the appropriate statute provides a different time period. Copies of the appeal form and the Board's rules of practice and procedure may be obtained from the Board. The appeal form and the Board's rules of practice and procedure are also available in Braille or on audiotape from the Secretary to the Board at 717-787-3483. This paragraph does not, in and of itself, create a right of appeal beyond that permitted by applicable statutes and decisional law.

For individuals who wish to challenge an action, the appeal must reach the Board within 30-days. A lawyer is not needed to file an appeal with the Board.

Individuals in need of accommodations should contact the Environmental Hearing Board through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Important legal rights are at stake, however, so individuals should show this document to a lawyer at once. Persons who cannot afford a lawyer may qualify for free pro bono representation. Call the Secretary to the Board at 717-787-3483 for more information.

SAFE DRINKING WATER

Actions Taken Under the Pennsylvania Safe Drinking Water Act (35 P.S. §§ 721.1—721.17).

Northcentral Region: Safe Drinking Water Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Angie Hall, Clerical II, 570-327-3490.

Construction Permit No. 5925504, Major Amendment, Public Water Supply.

Applicant	**Mr. Brad Lawton**
Address	115 Sherwood Street Mansfield, PA 16933
Municipality	Mansfield Borough
County	**Tioga County**
Consulting Engineer	Jonathan Bucha 208 West Third Street Suite 101 Williamsport, PA 17701
Application Received	August 12, 2025
Permit Issued	April 28, 2026
Description	ph adjustment and analyzer

Northeast Region: Safe Drinking Water Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Deborah Wilkes, Project Manager.

Operation Permit No. 2520096-E1, Public Water Supply.

Applicant	**Pennsylvania American Water Company**
Address	852 Wesley Drive Mechanicsburg, PA 17055
Municipality	Lehman Township
County	**Pike County**
Consulting Engineer	Mr. Michael Giardinelli, P.E. Pennsylvania American Water Company 2699 Stafford Avenue Scranton, PA 18505
Application Received	March 19, 2026
Permit Issued	April 21, 2026
Description	PAWC is requesting an emergency permit for the replacement of Well No. 5's (Source 005) (permitted capacity of 100 gallons per minute (gpm) controlled via an existing VFD) submersible well pump, down pipe and necessary appurtenances with a smaller capacity pump (20 gpm) to facilitate conducting aquifer tests pursuant to pending PWS construction permit application No. 5225506.

Construction Permit No. 4523508-2, Major Amendment, Public Water Supply.

Applicant	**Brodhead Creek Regional Authority**
Address	410 Mill Creek Road East Stroudsburg, PA 18301
Municipality	Stroud Township
County	**Monroe County**
Consulting Engineer	Russell D. Scott, IV, PE, UTRS 112 North Courtland Street East Stroudsburg, PA 18301
Application Received	March 31, 2026
Permit Issued	April 23, 2026
Description	This permit approved the re-issuance/extension of PWS Permit No. 4523508 dated June 24, 2024, in accordance with Special Condition 1 of the original construction permit which allows the permittee to request an extension prior to the expiration date. The project is for various modifications at BCRA's WTP. The extension was requested by the permittee to allow for additional time to complete the project. The request was received prior to the permit's expiration date of June 24, 2026, and the reasons for the extension included in the application submittal appear reasonable. No changes to the original proposal were proposed.

Contact: Scott Field, Env. Eng. Specialist, 570-826-2349, scfield@pa.gov.

Construction Permit No. 3525505MA, Minor Amendment, Public Water Supply.

Applicant	**Anthony Nokovich**
Address	852 Wesley Drive Mechanicsburg, PA 17055
Municipality	Carbon Township
County	**Lackawanna County**
Consulting Engineer	Richard B. Kregsge 1001 Lackawanna Trail Clarks Summit, PA 18411
Application Received	December 4, 2025
Permit Issued	March 23, 2026
Description	Auxiliary Lime Feed System for PAWC Brownell Filter Plant.

Contact: Scott Field, Env. Eng. Specialist, 570-826-2349, scfield@pa.gov.

Transfer Permit No. 2640008, Public Water Supply.

Applicant	**Andew Bash**
Address	P.O. Box 102 Red Hill, PA 18076
Municipality	Cherry Ridge Township
County	**Wayne County**
Consulting Engineer	Daniel Farnham 325 John Street Clark Summit, PA 18411
Application Received	November 8, 2025
Permit Issued	March 24, 2026
Description	Transfer of ownership from Lakeside Mobile Home Park to Emery Cove estates.

Contact: Scott Field, Env. Engineering Specialist, 570-826-2349.

Operation Permit No. 2520066, Public Water Supply.

Applicant	**Todd Duerr**
Address	762 Lancaster Avenue Bryn Mawr, PA 19010

Municipality	Palmyra Borough
County	**Pike County**
Consulting Engineer	Erin Fleurant 762 Lancaster Avenue Bryn Mawr, PA 19010
Application Received	February 4, 2025
Permit Issued	April 23, 2026
Description	Aqua PA Tanglewood North (2520066) Permit Consolidation and Update.

Contact: Scott Field, Env. Engineering Specialist, 570-826-2349, scfield@pa.gov.

Emergency Permit No. 2660019-E4, Public Water Supply.

Applicant	**Kristy Fassett**
Address	342 Church Street Laceyville, PA 18623-0141
Municipality	Laceyville Borough
County	**Wyoming County**
Consulting Engineer	Steven Rowe 8836 SR 434 Apalachin, NY 13732
Application Received	January 12, 2026
Permit Issued	April 9, 2026
Description	Laceyville Water Company—Emergency use of reserve source Lower Well No. 1 (Source 001) and blend with Upper Well No. 2 (Source 002). Installation of continuous manganese analyzer for Source 001.

General Permit No. 2359008GP1, Public Water Supply.

Applicant	**Anthony Nokovich**
Address	852 Wesley Drive Mechanicsburg, PA 17055
Municipality	North Abington Township
County	**Lackawanna County**
Consulting Engineer	Bruce Brubaker 852 Wesley Drive Mechanicsburg, PA 17055
Application Received	January 12, 2026
Permit Issued	April 21, 2026
Description	Maintenance and Painting of PAWC Ivy Tank No. 1.

Contact: Scott Field, Env. Engineering Specialist, 570-826-2349

Operation Permit No. 2640028, Public Water Supply.

Applicant	**Dave Hoogstad**
Address	762 W Lancaster Avenue Bryn Mawr, PA 19010
Municipality	Hawley Borough
County	**Wayne County**
Consulting Engineer	Hallie Burnett 762 W Lancaster Avenue Bryn Mawr, PA 19010
Application Received	December 8, 2025
Permit Issued	April 27, 2026
Description	Consolidated Operation Permit for Aqua Pennsylvania Hawley (PWSID 2640028). Reserve designation for the Cawley Well.

Southcentral Region: Safe Drinking Water Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Darin Horst, Environmental Engineer, 717-705-4948.

Operation Permit No. 7360069, Public Water Supply.

Applicant	**Penn Valley Village Management, LLC**
Address	P.O. Box 677 Morgantown, PA 19543
Municipality	Penn Township
County	**Lancaster County**
Application Received	January 14, 2026
Permit Issued	April 10, 2026
Description	Transfer of Public Water Supply Permits for PWS ID 7360069 from P.C.S. Chadaga to Penn Valley Village Management, LLC.

Operation Permit No. 7360004, Public Water Supply.

Applicant	**Log Cabin Court Management, LLC**
Address	P.O. Box 677 Morgantown, PA 19543
Municipality	East Earl Township
County	**Lancaster County**
Application Received	January 14, 2026
Permit Issued	April 10, 2026
Description	Transfer of Public Water Supply Permits for PWS ID 7360004 from P.C.S. Chadaga to Log Cabin Court Management, LLC.

Northcentral Region: Safe Drinking Water Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Angie Hall, Clerical II, 570-327-3490.

Operation Permit 8788-W-A1. PWSID No. **4410175. Borough of Montoursville**, 617 North Loyalsock Avenue, Montoursville, PA 17754-2510, Montoursville Borough, **Lycoming County**. Application received: March 24, 2026. Permit Issued: April 24, 2026. Request for reserve designation for Well 3.

Transfer Permit 4410030. PWSID No. **4410030. Harvest Moon MHP LLC**, 38 Harvest Moon Park, Linden, PA 17744, Woodward Township, **Lycoming County**. Application received: April 1, 2026. Permit Issued: April 27, 2026. Operation permit.

Northeast Region: Safe Drinking Water Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Paul Barnes, P.E. at 570-826-2274, paulbarnes@pa.gov.

Construction Permit 4026503. PWSID No. **2400095. Aqua Pennsylvania, Inc.**, 762 West Lancaster Avenue, Bryn Mawr, PA 19010, Lehman Township, **Luzerne County**. Application received: February 12, 2026. Permit Issued: April 21, 2026. The applicant received a construction permit for an update to the treatment facility, wells, disinfection and to add treatment for PFAS.

Emergency Permit 1161158. PWSID No. **3480999. Martins Creeks SES**, 6605 Foul Rift Rd, Bangor, PA 18013, Lower Mount Bethel Township, **Northampton County**. Application received: April 22, 2026. Permit Issued: April 28, 2026. The applicant received an emergency bulk water hauling permit.

Emergency Permit 1138268. PWSID No. **3540070. Aqua Pennsylvania, Inc.**, 1 Aqua Way, White Haven, PA 18661, Hazle Township, **Luzerne County**. Application received: April 2, 2026. Permit Issued: April 23, 2026. The applicant received an emergency bulk water hauling permit.

Southcentral Region: Safe Drinking Water Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Thomas Filip, Environmental Engineer, 717-705-4708.

Operation Permit 7380007. PWSID No. **7380007. Borough of Cornwall**, 44 Rexmont Road, Lebanon, PA 17042, Cornwall Borough, **Lebanon County**. Application received: January 12, 2026. Permit Issued: April 22, 2026. Modification of permit conditions related to the chloramine residual control system.

Operation Permit 2826506 MA. PWSID No. **7280063. Antrim Township Municipal Authority**, P.O. Box 130, Greencastle, PA 17225, Antrim Township, **Franklin County**. Application received: February 12, 2026. Permit Issued: April 24, 2026. Replacement of two existing amperometric analyzers with two new colorimetric online analyzers for measurement of free chlorine.

Operation Permit 0126504 MA. PWSID No. **7010025. New Oxford Municipal Authority**, 409 Water Works Road, New Oxford, PA 17350, Oxford Township, **Adams County**. Application received: March 10, 2026. Permit Issued: April 27, 2026. Replacement of a pH probe used for CT calculations.

Reserve Source Designations Permit 3426501. PWSID No. **3426501. Mifflintown Municipal Authority**, 259 Water Company Road, Mifflintown, PA 17059, Fermanagh Township, **Juniata County**. Application received: March 6, 2026. Permit Issued: April 27, 2026. Change in Macedonia Well Nos. 1 and 2 from permanent to reserve status.

Contact: Wade Cope, P.E., Environmental Engineer, 717-705-4708.

Operation Permit 2125515. PWSID No. **7210322. Cumberland Valley School District**, 6746 Carlisle Pike, Mechanicsburg, PA 17055, Monroe Township, **Cumberland County**. Application received: April 24, 2026. Permit Issued: April 27, 2026. Operation permit for installation of nitrate removal treatment at the Monroe Elementary School.

Southwest Region: Safe Drinking Water Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: ra-epswsdw@pa.gov.

Operation Permit 0226512. PWSID No. **5020036. Municipal Authority of the Borough of Oakmont**, 721 Allegheny Avenue, P.O. Box 73, Oakmont, PA 15139, Oakmont Borough, **Allegheny County**. Application received: March 17, 2026. Permit Issued: March 30, 2026. Issuance of Public Water Supply Operation Permit No. 0226512 for the Municipal Authority of the Borough of Oakmont temporary gaseous chlorine feed system.

Operation Permit 2626511. PWSID No. **5260019. North Fayette County Municipal Authority**, 1634 University Drive, P.O. Box 368, Dunbar, PA 15431, Dunbar Township, **Fayette County**. Application received: March 16, 2026. Permit Issued: March 23, 2026. Issuance of Public Water Supply Operation Permit No. 2626511 for operation of the rehabilitated Claricone No. 5 at the North Fayette County Municipal Authority Water Treatment Plant.

Operation Permit 6525531MA. PWSID No. **5650060. Latrobe Municipal Authority**, 104 Guerrier Road, P.O. Box 88, Latrobe, PA 15650, Derry Township, **Westmoreland County**. Application received: April 6, 2026. Permit Issued: April 16, 2026. Issuance of Public Water Supply Operation Permit No. 6525531MA for the use of four replacement chemical feed pumps for sodium hypochlorite and caustic soda at the Kingston Water Treatment Plant.

Operation Permit 5626504MA. PWSID No. **4560012. Meyersdale Municipal Authority**, 215 Main Street, Meyersdale, PA 15552, Meyersdale Borough, **Somerset County**. Application received: February 2, 2026. Permit Issued: April 22, 2026. Issuance of Public Water Supply Operation Permit No. 5626504MA for the Individual Filter Effluent Turbidity Flow-Weighted Average Calculations used to estimate the Combined Filter Effluent Turbidity at the Meyersdale Municipal Authority Water Treatment Plant.

Contact: Renee Diehl, Program Manager, ra-epswsdw@pa.gov.

Construction/Operation Permit 6526501. PWSID No. **5650101. Laurel Mountain Borough**, P.O. Box 266, Laughlintown, PA 15655, Laurel Mountain Borough, **Westmoreland County**. Application received: November 26, 2025. Permit Issued: March 5, 2026. Laurel Mountain Borough Public Water System including the distribution system and interconnection with the Municipal Authority of Westmoreland County.

NCWSA Operation Permit 5040842NCWSA. PWSID No. **5040842. Allegheny Trails Counsil, Boy Scouts of America**, 371 Winterburn Road, Beaver Falls, PA 15010, Chippewa Township, **Beaver County**. Application received: January 12, 2026. Permit Issued: April 22, 2026. Removal of existing groundwater Source 003 (Far Hill Well)/deactivation of Entry Point No. 103 for the Camp Baker water system.

SEWAGE FACILITIES ACT PLAN APPROVAL

Plan Approvals Granted Under the Pennsylvania Sewage Facilities Act, Act of January 24, 1966, P.L. 1535, as Amended, 35 P.S. § 750.5.

Northcentral Region: Clean Water Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Thomas M. Randis Program Manager 570-327-0530.

Plan Location:

Municipality	*Address*	*County*
Turbotville Borough	267 Broadway Street Turbotville, PA 17772	Northumberland County

Plan Description:

Turbotville Borough WWTP Re-Rate, APS # 1153917. The Plan approval is for the re-rating of the wastewater treatment plant from a hydraulic design capacity of 0.136 million gallons per day (MGD) to 0.20 MGD and an organic design capacity of 227 lbs./day to a maximum of 467 lbs./day with no planned upgrades for the existing treatment processes.

Southcentral Region: Clean Water Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Hunter Yaukey, Sewage Planning Specialist Trainee, 717-705-4810.

Plan Location:

Municipality	*Address*	*County*
	27 West Market Street Palmyra, PA 17078	Lebanon County

Plan Description:

South Londonderry Township Act 537 Plan Update, F1-38922-ACT. The update to the official Act 537 plan of South Londonderry Township (DEP Code No. F1-38922-ACT, APS ID No. 1149442) has been approved. The proposed update proposes the construction of a new wastewater treatment plant to handle the flows of the two existing plants which are reaching capacity. The existing wastewater treatment plants will then be demolished, one of which will be replaced by a pump station.

SEWAGE FACILITIES ACT PLAN DISAPPROVAL

Plan Disapprovals Granted Under the Pennsylvania Sewage Facilities Act, Act of January 24, 1966, P.L. 1535, as Amended, 35 P.S. § 750.5.

Southcentral Region: Clean Water Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Carrie Wilt, Sewage Planning Specialist, 717-705-4755.

Plan Location:

Municipality	*Address*	*County*
West Earl Township	P.O. Box 787 Brownstown, PA 17508	Lancaster County

Plan Description:

Michael J. Blank, A3-36959-223-3. The planning module for the Michael J. Blank subdivision, DEP Code Number A3-36959-223-2 and APS ID 1158902 consists of a two-lot subdivision on 88.0 acres. There will be one proposed building lot (Lot 2—10.402 acres) that will contain a new detached single-family residential dwelling and one residual tract (Lot 1—77.598 acres) that contain and existing detached dwelling and one Amish school. Total peak sewage flows are 500 gallons per day (gpd) for the building lot and 600 gpd for the residual tract. All sewage flows will be treated by individual on-lot disposal systems. The subject property is located at 129 North Maple Avenue in West Earl Township, **Lancaster County**. The proposed plan revision is disapproved because the planning submission is not complete, and the Department is unable to render a decision in accordance with 25 Pa. Code § 71.32(a). Particularly, the submission lacks a completed Component 2, Section H.3, as well as Sewage Enforcement Officer certification documenting the on-lot sewage disposal system serving the existing dwelling on Lot 1 is not malfunctioning. Therefore, the planning submission does not ensure the long-term sewage needs of this lot as required by 25 Pa. Code § 71.52(a)(4).

Plan Location:

Municipality	*Address*	*County*
Monaghan Township	202 South York Road Dillsburg, PA 17019	York County

Plan Description:

Chilton Properties LLC, A3-67940-150-3s. The planning module is for the Chilton Properties, LLC development, DEP Code No. A3-67941-150-3s, APS ID No. 1157036 and Auth ID No. 1560095. The plan provides for Small Flow Treatment Facility (SFTF) proposals for two existing lots (Lot 18—3.17 acres and Lot 19—2.84 acres). Each lot will contain a detached single-family residential dwelling and have peak sewage flows of 500 gpd. There will be a discharge to a dry channel that is tributary to Pippins Run (CWF). The plan is denied because the submission failed to submit deficiency items that were outlined in DEP's April 9, 2026, technical deficiency letter. The submission remains incomplete, and the Department is unable to render a decision in accordance with 25 Pa. Code § 71.32(a). Particularly, the submission lacks the following items: (1) In accordance with Chapter 71, Section 71.53(d), a municipality should only act on a complete application. However, at the time of adoption, the submission did not include a newspaper publication as required by Section 71.53(d)(6). The planning submission should be readopted to document the Township has acted on a complete submission. (2) Chapter 71, Section 71.52(a)(3)(v), and subsequently, Chapter 71, Section 71.21(a)(5)(i)(J), consistency with the Pennsylvania Natural Diversity Inventory (PNDI) must be established. Furthermore, the Department requires PNDI Environmental Reviews to be less than two years old. However, the PNDI Environment Review provided with the planning submission is older than two years and should be rerun in order to re-establish consistency that is current. (3) According to the plot plan, the discharge flow path uses a roadside channel at the front of the lots and heads directly to Pippins Run (CWF). However, according to recent field inspection, it appears the flow path heads directly to a stormwater drainage pipe that is shown on the plot plan and located just south of Pippins Run. This pipe runs under the road at the site and empties into Pippins Run further downstream. Based on these observations, it appears the proposed discharge would be a dry stream discharge and should meet the requirements of Chapter 71, Section 71.64(c)(2) and Section H of the Component 3s module and instructions. If the applicant can demonstrate this will not be the case, evidence needs to be submitted to support this claim.

Contact: Hunter Yaukey, Sewage Planning Specialist Trainee, 717-705-4810.

Plan Location:

Municipality	*Address*	*County*
Centre Township	449 Bucks Hill Road Mohrsville, PA 19541-9340	Berks County

Plan Description:

Pennyhill Subdivision, A3-06926-151-2. The revision to the official plan of Centre Township for the proposed Pennyhill Subdivision (DEP Code No. A3-06926-151-2, APS ID No. 1155538) has been disapproved. The proposed development to be located at 4561 Bellemans Church Road consist of subdividing to create a 10.8-acre lot for the construction of a single-family dwelling. This revision has been disapproved because of the usage of portable

toilets for the greenhouse business and one of the wells not meeting the required 100-foot isolation distance from an existing septic system.

Plan Location:

Municipality	*Address*	*County*
	100 North Reber Street Wernersville, PA 19565	Berks County

Plan Description:

West Ridge Suites Development, B3-06972-022-3. The revision to the official plan of Wernersville Borough for the proposed West Ridge Suites Development (DEP Code No. B3-06972-022-3, APS ID No. 1073162) has been disapproved. The proposed development to be located at 300 Furnace Road consist of several apartment complexes and 8-lot single family residential subdivision. This revision has been disapproved because the payment was not received prior to the regulatory due date and multiple sections of the module were missing information.

LAND RECYCLING AND ENVIRONMENTAL REMEDIATION

UNDER ACT 2, 1995 PREAMBLE 2

The Following Plans and Reports Were Submitted Under the Land Recycling and Environmental Remediation Standards Act (35 P.S. §§ 6026.101—6026.908).

Provisions of Sections 301—308 of the Land Recycling and Environmental Remediation Standards Act (act) (35 P.S. §§ 6026.301—6026.308) require the Department of Environmental Protection (DEP) to publish in the *Pennsylvania Bulletin* a notice of submission of plans and reports. A final report is submitted to document cleanup of a release of a regulated substance at a site to one of the act's remediation standards. A final report provides a description of the site investigation to characterize the nature and extent of contaminants in environmental media, the basis for selecting the environmental media of concern, documentation supporting the selection of residential or nonresidential exposure factors, a description of the remediation performed and summaries of sampling analytical results which demonstrate that remediation has attained the cleanup standard selected. Submission of plans and reports, other than the final report, will also be published in the *Pennsylvania Bulletin*. These include the remedial investigation report, risk assessment report and cleanup plan for a site-specific standard remediation. A remedial investigation report includes conclusions from the site investigation; concentration of regulated substances in environmental media; benefits of reuse of the property; and, in some circumstances, a fate and transport analysis. If required, a risk assessment report describes potential adverse effects caused by the presence of regulated substances. If required, a cleanup plan evaluates the abilities of potential remedies to achieve remedy requirements.

For further information concerning plans or reports, please contact the Regional Office Program Manager previously listed in the notice.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

The Department has received the following plans and reports.

Northcentral Region: Environmental Cleanup & Brownfields Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Randy Farmerie, P.G., Environmental Program Manager, 570-327-3716.

Former PNC Branch Property Dubois, Primary Facility ID # **828245**, 200 N Brady Street, Dubois, PA 15801, City of DuBois, **Clearfield County**. Sanbord Head & Associates Inc., 755 Business Center Drive, Suite 110, Horsham, PA 19044, on behalf of PNC Bank, National Association, 300 Fifth Ave, 22nd Floor, Pittsburgh, PA 15222, submitted a Remedial Investigation Report/Risk Assessment Report/Cleanup Plan concerning remediation of soil and groundwater contaminated with chlorinated solvents. The Remedial Investigation Report/Risk Assessment Report/Cleanup Plan is intended to document remediation of the site to meet the site-specific standards.

Northeast Region: Environmental Cleanup & Brownfields Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Program Manager.

PPL EU Slatington, Primary Facility ID # **891451**, 3714 Old Mill Rd, Slatington, PA 18080, Washington Township, **Lehigh County**. Penn Environmental & Remediation, Inc., 13180 Route 6, Mansfield, PA 16933, on behalf of PPL Electric Utilities Corporation, PA 18104, 1639 Church Road, Allentown, PA 18104, submitted a Final Report concerning remediation of soil contaminated with Transformer Oil. The Final Report is intended to document remediation of the site to meet the Statewide health standards.

P. Guiton Pad 1, Primary Facility ID # **885463**, 1024 Flynn Road, PA, 18801 Middletown Twp, Susquehanna, Montrose, PA 18801, Middletown Township, **Susquehanna County**. Resource Environmental Management, 50 Maple Street, Montrose, PA 18801, on behalf of Coterra Energy Inc., 501 Marketplace Avenue, Suite 500, Coraopolis, PA 15108, submitted a Final Report concerning remediation of soil contaminated with total chloride, aluminum, barium, boron, iron, lithium, manganese, selenium, strontium, vanadium, and zinc. The Final Report is intended to document remediation of the site to meet the Statewide health standards.

Northwest Region: Environmental Cleanup & Brownfields Program, 230 Chestnut Street, Meadville, PA 16335-3481, 814-332-6945.

Contact: Nicholas Fiesler, Project Officer, 814-332-6978.

Gloekler Refrigerator, Primary Facility ID # **865350**, 3950 West 20th Street, Erie, PA 16505, City of Erie, **Erie County**. Moody and Associates Incorporated, 180 Mercer Street, Suite A, Meadville, PA 16335, on behalf of HIL LLC, 248 Centennial Park Drive, Daytona Beach, FL 32124, submitted a Final Report concerning remediation of soil and groundwater contaminated with 2-Butanone (MEK), 2-Hexanone, Acetone, Benzene, Carbon disulfide, Methylene Chloride, Tetrachloroethene (PCE), Toluene, Trichloroethene (TCE), 1,1,1-Trichloroethane, 1,1,2-Trichloroethane, 1,1-Dichloroethane, 1,1-Dichloroethene, Bromomethane, Chloroform, Chloromethane, cis-1,2-Dichloroethene, trans-1,2-Dichloroethene, Vinyl chloride, Methyl Acetate, Bromodichloromethane. The Final Report is intended to document remediation of the site to meet the Statewide health and background standards.

Southcentral Region: Environmental Cleanup & Brownfields Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Environmental Cleanup & Brownfields Program Manager, 717-705-4705.

Kaercher Creek Park, Primary Facility ID # **623221**, 100 Kaercher Creek Road, Hamburg, PA 19526, Windsor Township, **Berks County**. Verdantas LLC, 2550 Interstate Drive, Suite 303, Harrisburg, PA 17110, on behalf of PA Fish and Boat Commission, 595 East Rolling Ridge Drive, Bellefonte, PA 16823, submitted a Final Report concerning remediation of soil contaminated with lead. The Final Report is intended to document remediation of the site to meet the site-specific standards.

Alfa Laval Inc., Primary Facility ID # **847588**, 300 Chestnut Street, Lykens, PA 17048, Lykens Borough, **Dauphin County**. Groundwater Sciences Corporation, a Verdantas Co., 2550 Interstate Drive, Suite 303, Harrisburg, PA 17110, on behalf of Alfa Laval Inc., 5400 International Trade Drive, Richmond, VA 23231, submitted a Remedial Investigation Report/Cleanup Plan concerning remediation of soil and groundwater contaminated with VOCs, PAHs and Metals. The Remedial Investigation Report/Cleanup Plan is intended to document remediation of the site to meet the site-specific standards.

125 & 255 North Blettner Avenue, Primary Facility ID # **891078**, 125 and 255 North Blettner Avenue, Hanover, PA 17331, Penn Township, **York County**. Integral Consulting, Inc., 3157 Limestone Road, Cochranville, PA 19330, on behalf of York Building Products Co., Inc., 950 Smile Way, York, PA 17404, submitted a Final Report concerning remediation of soil contaminated with leaded and unleaded gasoline. The Final Report is intended to document remediation of the site to meet the Statewide health standards.

Southwest Region: Environmental Cleanup & Brownfields Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Janelle Hromyak, Clerical Assistant, 412-442-4091.

EQT Aphrodite Well Pad, Primary Facility ID # **891633**, 5033 Wilderness Road, Trafford, PA 15085, Penn Township, **Westmoreland County**. Moody and Associates, Inc., 1720 Washington Road, Suite 100, Washington, PA 15301, on behalf of Kyle Borden, EQT Corporation, 2200 Energy Drive, Canonsburg, PA 15317, submitted a Final Report concerning remediation of soil contaminated with aluminum, barium, boron, chloride, iron, lithium, manganese, selenium, strontium, vanadium, zinc. The Final Report is intended to document remediation of the site to meet the Statewide health standards.

LAND RECYCLING AND ENVIRONMENTAL REMEDIATION

UNDER ACT 2, 1995 PREAMBLE 3

The Department Has Taken Action on the Following Plans and Reports Under the Land Recycling and Environmental Remediation Standards Act (35 P.S. §§ 6026.101—6026.907).

Section 250.8 of 25 Pa. Code and administration of the Land Recycling and Environmental Remediation Standards Act (act) require the Department of Environmental Protection (DEP) to publish in the *Pennsylvania Bulletin* a notice of its final actions on plans and reports. A final report is submitted to document cleanup of a release of a regulated substance at a site to one of the remediation standards of the act. A final report provides a description of the site investigation to characterize the nature and extent of contaminants in environmental media, the basis of selecting the environmental media of concern, documentation supporting the selection of residential or nonresidential exposure factors, a description of the remediation performed and summaries of sampling methodology and analytical results which demonstrate that the remediation has attained the cleanup standard selected. Plans and reports required by the act for compliance with selection of remediation to a site-specific standard, in addition to a final report, include a remedial investigation report, risk assessment report and cleanup plan. A remedial investigation report includes conclusions from the site investigation; concentration of regulated substances in environmental media; benefits of reuse of the property; and, in some circumstances, a fate and transport analysis. If required, a risk assessment report describes potential adverse effects caused by the presence of regulated substances. If required, a cleanup plan evaluates the abilities of potential remedies to achieve remedy requirements. A work plan for conducting a baseline remedial investigation is required by the act for compliance with selection of a special industrial area remediation. The baseline remedial investigation, based on the work plan, is compiled into the baseline environmental report to establish a reference point to show existing contamination, describe proposed remediation to be done and include a description of existing or potential public benefits of the use or reuse of the property. The DEP may approve or disapprove plans and reports submitted. This notice provides DEP's decision and, if relevant, the basis for disapproval.

For further information concerning plans or reports, please contact the Regional Office Program Manager previously listed in the notice.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

The DEP has received the following plans and reports.

Northcentral Region: Environmental Cleanup & Brownfields Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Randy Farmerie, P.G., Environmental Program Manager, 570-327-3716.

Expand Lucy Pad, Primary Facility ID # **889561**, 642 Brown Hill Lane, Monroton, PA 18832, Monroe Township, **Bradford County**. Creston Environmental, LLC, P.O. Box 1373, Camp Hill, PA 17001, on behalf of Expand Operating, LLC, 14 Chesapeake Lane, Sayre, PA 18840, submitted a Final Report concerning remediation of soil contaminated with produced water. The Report demonstrated attainment of the Statewide health standards. Approved: April 21, 2026.

Simon's Trucking Inc., Primary Facility ID # **889173**, I-80 East MM 182.4, Lamar, PA 16846, Lamar Township, **Clinton County**. Bressler's Environmental Service, 2994 E Valley Road, Loganton, PA 17747, on behalf of Simon's Trucking, Inc., 920 Simon Drive, Farley, IA 52046, submitted a Final Report concerning remediation of soil contaminated with diesel fuel. The Final Report demonstrated attainment of the Statewide health standards. Approved: April 22, 2026.

Northeast Region: Environmental Cleanup & Brownfields Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Program Manager.

Upper Macungie Township DPW, Primary Facility ID # **888699**, 8330 Schantz Rd, Breinigsville, PA 18031, Upper Macungie Township, **Lehigh County**. Barry Isett and Associates, Inc., 5420 Crackersport Road, Allentown, PA 18104, on behalf of Upper Macungie Township DPW, 8330 Schantz Road, Breinigsville, PA 18031, submitted a Final Report concerning remediation of soil contaminated with MTBE, Benzene, Toluene, Ethylbenzene, Total Xylenes, Isopropylbenzene, 1,2,4-Trimethylbenzene, 1.3.5-Trimethylbenzene, and Naphthalene. The Final Report demonstrated attainment of the Statewide health standards. Approved: April 24, 2026.

Former Dixie Cup Facility, Primary Facility ID # **834348**, 415 South 24th Street, Easton, PA 18042, Wilson Borough, **Northampton County**. Terraphase Engineering, 100 Canal Pointe Boulevard, Suite 110, Princeton, NJ 18540, on behalf of Skyline Investment Group Easton LLC, 200 Park Avenue, Suite 1700, New York, NY 10166, submitted a Risk Assessment concerning remediation of soil and groundwater contaminated with metals, volatile organic compounds, semi-volatile organic compounds, and polychlorinated biphenyls. The Report Was acceptable to meet Statewide health and site-specific standards. Approved: April 23, 2026.

Former Dixie Cup Facility, Primary Facility ID # **834348**, 415 South 24th Street, Easton, NJ 18042, Wilson Borough, **Northampton County**. RESPEC Company, P.O. Box 468, Pipersville, PA 18947, on behalf of Skyline Investment Group Easton LLC, 200 Park Avenue, Suite 1700, New York, NY 10166, submitted a Cleanup Plan concerning remediation of soil and groundwater contaminated with metals, volatile organic compounds, semi-volatile organic compounds, and polychlorinated biphenyls. The Report Was acceptable to meet Statewide health and site-specific standards. Approved: April 23, 2026.

Southcentral Region: Environmental Cleanup & Brownfields Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Environmental Cleanup & Brownfields Program Manager, 717-705-4705.

Former R.H. Sheppard Co., Inc., Primary Facility ID # **852634**, 101 Philadelphia Street, Hanover, PA 17331, Hanover Borough, **York County**. Arcadis U.S., Inc., 2100 Georgetown Drive, Suite 402, Sewickley, PA 15143, on behalf of ZF Group, 1911 Lee Boulevard, North Mankato, MN 56003, submitted a Remedial Investigation Report concerning remediation of soil and groundwater contaminated with VOCs, SVOCs and Inorganics. The Report demonstrated attainment of the Statewide health and site-specific standards. Approved: April 23, 2026.

Former Gettysburg Foundry, Primary Facility ID # **880155**, 2664 Emmittsburg Road, Gettysburg, PA 17325, Cumberland Township, **Adams County**. BL Companies, 2601 Market Place, Suite 350, Harrisburg, PA 17110, on behalf of Adams County Industrial Development Authority, 1300 Proline Place, Gettysburg, PA 17325, submitted a Baseline Environmental Report concerning remediation of soil and groundwater contaminated with VOCs, SVOCs and Metals. The Report demonstrated attainment of the special industrial area provision of Act 2. Approved: April 23, 2026.

Southwest Region: Environmental Cleanup & Brownfields Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Janelle Hromyak, Clerical Assistant, 412-442-4091.

Aliquippa Industrial Park Property, Primary Facility ID # **882347**, 500 Woodlawn Road, Aliquippa, PA 15001, City of Aliquippa, **Beaver County**. American Geosciences, Inc., 3925 Reed Boulevard, Suite 400, Murrysville, PA 15668, on behalf of Christopher Avalotis, Woodlawn Property Title Holder, LLC, 400 Jones Street, Verona, PA 15147, submitted a Baseline Environmental Report concerning remediation of soil and groundwater contaminated with VOCs, PAHs, and metals. The Report Was acceptable to meet special industrial area provision of Act 2. Approved: April 24, 2026.

HAZARDOUS WASTE TRANSPORTER LICENSE

Action(s) Taken on Hazardous Waste Transporter License Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); and Hazardous Waste Regulations to Transport Hazardous Waste.

New Transporter License Issued

Central Office: Waste Management Program, Rachel Carson State Office Building, 400 Market Street, Harrisburg, PA 17101, 717-787-6239.

Contact: RA-HazWaste@pa.gov.

USA Lamp & Ballast Recycling, Inc., dba Cleanlites Recycling, Inc., P.O. Box 212, Mason, MI 48854. **License No. PA-AH 0977**. Application received: December 29, 2025. Effective April 22, 2026.

Page GTC, Inc., 2758 Trombley Road, Weedsport, NY 13166. **License No. PA-AH 0978**. Application received: December 17, 2025. Effective April 23, 2026.

REGISTRATION FOR RESIDUAL WASTE GENERAL PERMITS

Actions(s) Taken on Registration(s) Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Residual Waste Regulations for a General Permit to Operate Residual Waste Processing Facilities and/or the Beneficial Use of Residual Waste Other than Coal Ash.

Northeast Region: Waste Management Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Roger Bellas, Environmental Program Manager, 570-826-2201.

WMGR109-NE004. GreenRI Industries, LLC, 34 Innovation Drive, Lot # 10, Sterling Business Park, Lake Ariel, PA 18436-8896, Sterling Township, **Wayne County**. Registration for coverage under General Permit No. WMGR109 for processing of used restaurant oil, yellow grease, grease trap waste, oils and animal fat from food processing or rendering plants, waste from ethanol production, soybean soap stock, float grease (from wastewater treatment plants), and off specification vegetable oils ("oil and grease waste") to produce biofuel, including biodiesel, for beneficial use as fuel. Application received: February 23, 2026. Permit issued: April 23, 2026.

Persons interested in reviewing the permit may contact Roger Bellas, Environmental Program Manager, 570-826-2511 or RA-EPWM-NERO@pa.gov, Northeast Region, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-

2511. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

Southcentral Region: Waste Management Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Carrie A. Fleming, Program Manager.

WMGR109SC007. World Energy Harrisburg, LLC, 2850 Appleton Street, Suite E, Camp Hill, PA 17011, Lower Allen Township, **Cumberland County**. This is for the renewal of residual waste general permit WMGR109SC007 which authorizes the processing of used restaurant oil, yellow grease, grease trap waste, oils and animal fat from food processing or rendering plants, waste from ethanol production, soybean soap stock, float grease (from wastewater treatment plants), and off-specification vegetable oils ("oil and grease waste") to produce biofuel, including biodiesel, for beneficial use as fuel. Application received: February 20, 2026. Issued: April 27, 2026.

Persons interested in reviewing the permit may contact Domenico Tuzzato, P.E., Environmental Engineer Manager, 717-705-4908, Southcentral Region, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

Southeast Region: Waste Management Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Mohamad Mazid, Chief, Technical Services, phone 484-250-5960, or by e-mail at E-Mail Address: RA-EPWM-SERO-PERMITS@pa.gov.

WMGR081SE021. People Advancing Reintegration, Inc. (dba PAR-Recycle Works), 2024 W Hunting Park Ave., Philadelphia, PA 19140, City of Philadelphia, **Philadelphia County**. The General Permit for registration to operate under the conditions defined within General Permit No. WMGR081 is approved for the processing and beneficial use of electronic waste at PAR-Recycle Works Facility, located at 6901 Kingsessing Avenue, Philadelphia, PA. Application received: March 2, 2026. Issued: April 23, 2026.

Persons interested in reviewing the permit may contact Shawn Mountain, Waste Management Program Manager, phone 484-250-5960, or by e-mail at E-Mail Address: RA-EPWM-SERO-PERMITS@pa.gov, Southeast Region, 2 East Main Street, Norristown, PA 19401, 484-250-5900. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

DETERMINATION OF APPLICABILITY FOR MUNICIPAL WASTE GENERAL PERMITS

Actions(s) Taken on Permit(s) Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Municipal Waste Regulations for Determination of Applicability for a General Permit to Operate Municipal Waste Processing Facilities and/or the Beneficial Use of Municipal Waste.

Southeast Region: Waste Management Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Mohamad Mazid, Chief, Technical Services, 484-250-5960, RA-EPWM-SERO-PERMITS@pa.gov.

WMGM065SE001. Ecoremedy, LLC, 960 Penn Avenue, Suite 400, Pittsburgh, PA 15222, Morrisville Borough, **Bucks County**. This action is based on the request by Ecoremedy, LLC, to terminate coverage pursuant to General Permit No. WMGM065SE001, which authorized the processing by drying and gasification, and beneficial use of sewage sludge, agricultural waste, food waste and wood waste as a soil amendment, as an ingredient in concrete, as a remediation/treatment medium, or as a fuel product at the Ecoremedy LLC Facility located at 95 Riverview Avenue in Morrisville Borough, Bucks County. Application received: March 27, 2026. Revoked: April 17, 2026.

Persons interested in reviewing the permit may contact Shawn Mountain, Waste Management Program Manager, phone 484-250-5960, or by e-mail at E-Mail Address: RA-EPWM-SERO-PERMITS@pa.gov, Southeast Region, 2 East Main Street, Norristown, PA 19401, 484-250-5900. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

Southwest Region: Waste Management Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Waste Management Program Manager.

WMGM044SW006. Steel City Resource Recovery and Transfer Station Inc., 200 Olivia Drive, New Kensington, PA 15068, Braddock Borough, **Allegheny County**. The Department of Environmental Protection Southwest Regional Office issued Permit ID No. WMGM044SW006 for the processing of unpainted and untreated wood waste, gypsum board, brick, block, and concrete waste at the Steel City Resource Recovery and Transfer Station, located at 215 Eleventh Street, Braddock, PA 15104, for use as mulch for landscaping purposes, soil erosion control material, aggregate material in construction, animal bedding, and alternative fuel distributed to wholesale outlets. Application received: May 27, 2025. GP coverage issued: March 31, 2026.

Persons interested in reviewing the permit may contact Regional Files, 412-442-4000, Southwest Region, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

DETERMINATION OF APPLICABILITY FOR RESIDUAL WASTE GENERAL PERMITS

Actions(s) Taken on Permit(s) Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Residual Waste Regulations for Determination of Applicability for a General Permit to Operate Residual Waste Processing Facilities and/or the Beneficial Use of Residual Waste Other than Coal Ash.

Southwest Region: Waste Management Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Waste Management Program Manager.

WMGR029SW004. Ernie's Waste Oil, LLC, 155 East Swiontek Road, Road No. 3, Aliquippa, PA 15001, Independence Township, **Beaver County**. The Department of Environmental Protection Southwest Regional Office issued Permit ID No. WMGR029SW004 for the processing of waste oil (including waste oil mixed with hazardous waste), spent antifreeze, used oil filters, and waste oil/water mixtures at the Ernie's Waste Oil facility prior to

beneficial use as recycled oil. The Ernie's Waste Oil facility currently operates under Permit ID No. WMGR029SW001 and will remain active under Permit ID No. WMGR029SW001 through June 30, 2026. On July 1, 2026, Permit ID No. WMGR029SW004 will become valid and the facility will operate under new ownership. Application received: August 21, 2025. GP coverage issued: April 21, 2026.

Persons interested in reviewing the permit may contact Regional Files, 412-442-4000, Southwest Region, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

OPERATE WASTE PROCESSING OR DISPOSAL AREA OR SITE

Actions(s) Taken on Permit(s) Under the Solid Waste Management Act of July 7, 1980 (P.L. 380, No. 97) (35 P.S. §§ 6018.101—6018.1003); the Municipal Waste Planning, Recycling and Waste Reduction Act (53 P.S. §§ 4000.101—4000.1904); and Regulations to Operate Solid Waste Processing or Disposal Area or Site.

Southeast Region: Waste Management Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Mohamad Mazid, Chief, Technical Services, 484-250-5960, RA-EPWM-SERO-PERMITS@pa.gov.

101237. Solid Waste Services, Inc. (d/b/a J. P. Mascaro and Sons), 109 Wile Road, Souderton, PA 18964, Franconia Township, **Montgomery County**. This approval is for a ten (10) year permit renewal to continue operations at the Mascaro Transfer Station Facility, a municipal waste transfer facility located at 109 Wile Road, Souderton, PA 18964, in Franconia Township, Montgomery County. Application received: July 24, 2025. Issued: April 21, 2026.

Persons interested in reviewing the permit may contact Shawn Mountain, Waste Management Program Manager, phone 484-250-5960, or by e-mail at E-Mail Address: RA-EPWM-SERO-PERMITS@pa.gov, Southeast Region, 2 East Main Street, Norristown, PA 19401, 484-250-5900. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

Southwest Region: Waste Management Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Sharon Svitek, Waste Program Manager.

300558. LBR Aquisition Company, LLC, 2717 North Highway 89, Suite 200, Pleasant View, UT 84404, Greene Township, Grant District, **Beaver County, Hancock County**, West Virginia. A bond reduction request for the Little Blue Run Waste Disposal Impoundment to account for closure of 759 acres of the 914-acre site was approved. The bond will be reduced by $16,083,383.00 leaving the total approved bond amount for the site to be $115,121,015.00. Application received: November 7, 2025. Approved: April 23, 2026.

Persons interested in reviewing the permit may contact Regional Files, (412-442-4100), Southwest Region, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000. TDD users may contact DEP through the Pennsylvania Hamilton Relay Service, 800-654-5984.

AIR QUALITY

Actions(s) Taken on General Plan Approval(s) and Operating Permit(s) Usage Authorized Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code Chapter 127 to Construct, Modify, Reactivate or Operate Air Contamination Sources and Associated Air Cleaning Devices.

Northcentral Region: Air Quality Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Muhammad Q. Zaman, Program Manager, 570-327-3648.

GP3-08-395B: Bishop Brothers Construction Company, Inc., 1376 Leisure Drive, Towanda, PA 18848, Sheshequin Township, **Bradford County**. The Department approved authorization to construct and operate one Powerscreen Premiertrak 400x portable crusher rated at 350 tons per hour (tph) throughput, one Cedar Rapids 380xhls portable crusher rated at 350 tph, one Powerscreen Chiefton 1200 vibratory screen rated at 300 tph, one Eagle 33D5500 portable crusher rated at 250 tpy, one Sandvic QE340 vibratory screen rated at 320 tph, one Powerscreen Warrior 2100 vibratory screen rated at 400 tph, and two radial stackers (manufacturer/model unidentified) each rated at 350 tph at the Byers 105 Quarry pursuant to the General Plan Approval and/or General Operating Permit for Portable Nonmetallic Mineral Processing Plants (BAQ-PGPA/GP-3). Application received: April 10, 2026. GP coverage issued: April 22, 2026. Expiration date: April 21, 2031.

GP9-08-395B: Bishop Brothers Construction Company, Inc., 1376 Leisure Drive, Towanda, PA 18848, Sheshequin Township, **Bradford County**. The Department has approved authorization to construct and operate one 440 brake-horsepower (bhp) Scania DC09 diesel engine, one 665 bhp Detroit 6064HU33 diesel engine, one 660 bhp Scania DC16084A diesel engine, one 110 bhp Caterpillar C4.4 diesel engine, one 92 bhp Deutz BF4L913 diesel engine, one 99.9 bhp Cat C4.4 diesel engine, and two 75 bhp diesel engines (manufacturer to be determined) to power portable non-metallic mineral processing plants and conveyors pursuant to the General Plan Approval and/or General Operating Permit for Diesel or No. 2 fuel-fired Internal Combustion Engines (BAQ-GPA/GP-9) at the Byers 105 Quarry facility. Application received: April 10, 2026. GP coverage issued: April 22, 2026. Expiration date: April 21, 2031.

Southwest Region: Air Quality Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Jesse Parihar, 412-442-4030.

GP21-63-01103A: Environmental Commodities Corporation, 1919 14th Street, Suite 700, Boulder, CO 80302, Morris Township, **Washington County**. On April 23, 2026, GP21-63-01103A was authorized for five (5) years to Environmental Commodities Corporation for the construction and operation of one (1) John Zink Hamworthy Enclosed Flare rated at 20 MMBtu/hr, and one (1) Perkins Diesel Engine rated at 24.7 bhp at their G6-1 site of the active Enlow Fork Mine located in Center Township, Washington County. Application received: April 8, 2026. Accepted: April 17, 2026. Approved: April 23, 2026.

Actions(s) Taken on Plan Approval(s) Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and Regulations in 25 Pa. Code Chapter 127, Subchapter B Relating to Construction, Modification and Reactivation of Air Contamination Sources and Associated Air Cleaning Devices.

Philadelphia: Air Management Services: Air Quality Program, 7801 Essington Avenue, Philadelphia, PA 19153-3240.

Contact: Maryjoy Ulatowski, Chief, Source Registration at 215-685-9476.

IP25-000210: Eco Materials Soil Wash Plant, 6110 Passyunk Ave, Philadelphia, PA 19153, City of Philadelphia, **Philadelphia County**. The City of Philadelphia, Air Management Services (AMS) issued a plan approval for the installation and temporary operation of a soil washing and sorting plant. The air emission sources that are part of the plan approval are one (1) jaw crusher with processing capacity of 325 tons per hour of masonry materials and concrete materials, equipped with a vibrating grizzly feeder, a conveyor, and water spray system to control fugitive PM emissions, and operated with a diesel-fired engine rated 225 horsepower, and stockpiles for various materials. Additionally, the washplant has various screens and conveyors that are electrically powered and only processes saturated materials. The plan approval contains work standards, testing, monitoring, recordkeeping, reporting requirements to ensure operation within all applicable air quality requirements. Application received: June 24, 2025. Issued: April 23, 2026.

Southwest Region: Air Quality Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Sheri Guerrieri, NSR Chief, 412-442-4174.

PA-04-00755: Cronimet Corporation, 1 Pilarsky Way, Aliquippa, PA 15001, City of Aliquippa, **Beaver County**. PA-04-00755: Cronimet Corporation, 1 Pilarsky Way, Aliquippa, PA 15001, City of Aliquippa, Beaver County. On April 28, 2026, the Department issued a Plan Approval Extension (PA-04-00755) to Cronimet Corporation ("Cronimet") for 180-days from April 28, 2026, to October 28, 2026, for temporary operation and shakedown of the sources which includes torch cutting operations and a dust collector at their existing scrap recycling Cronimet Terminal located in Aliquippa Borrow, Beaver County. Application received: April 13, 2025. Issued: April 28, 2025. Application received: April 13, 2026. Extension: April 28, 2026.

Plan Approval Revision(s) Issued Including Extension(s), Minor Modification(s) and Transfer(s) of Ownership Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code §§ 127.13, 127.13a and 127.32.

Northcentral Region: Air Quality Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Muhammad Q. Zaman, Program Manager, 570-327-3648.

08-00045C: Hamilton Liberty, LLC, 151 Liberty Lane, Towanda, PA 18848, Asylum Township, **Bradford County**. The Department extended the authorization to operate the sources pursuant to the plan approval from May 11, 2026, to November 7, 2026, at the Hamilton Liberty Generation Plant. The plan approval has been extended. Application received: April 13, 2026. Issued: April 21, 2026. New expiration date: November 7, 2026.

19-00006E: Post Pet Brands, 6670 Low Street, Bloomsburg, PA 17815, South Centre Township, **Columbia County**. The Department extended the authorization to operate the sources pursuant to the plan approval from April 28, 2026, to October 25, 2026. The plan approval has been extended. Application received: March 27, 2026. Issued: April 21, 2026. New expiration date: October 25, 2026.

49-00063B: Renewal Processing, LLC, 10705 State Route 44, Watsontown, PA 17777, Lewis Township, **Northumberland County**. The Department extended the authorization to operate the bakery waste rotary dryer while the facility works to complete the modification to add additional controls at their facility to achieve compliance. The plan approval is extended until October 25, 2026. Application received: April 9, 2026. Issued: April 23, 2026. New expiration date: October 25, 2026.

Southcentral Region: Air Quality Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Thomas Bianca, PE, West Permit Section Chief, 717-705-4863.

28-05051A: AJ Stove and Pellet, LLC, 8642 Molly Pitcher Highway, Greencastle, PA 17225, Antrim Township, **Franklin County**. For a wood pellet manufacturing plant with multi-clone emission control device. The plan approval was extended, with a compliance schedule. Application received: April 10, 2026. Issued: April 23, 2026.

01-05025E: New Enterprise Stone & Lime Co., Inc., 3912 Brumbaugh Rd, New Enterprise, PA 16664, Cumberland Township, **Adams County**. For the replacement of the tertiary crusher and removal of two baghouses at the Gettysburg Quarry and Asphalt Plant. The plan approval was extended. Application received: April 14, 2026. Issued: April 23, 2026.

67-03192A: Baltimore Fabrication, 101 Mundis Race Rd, York, PA 17406, Manchester Township, **York County**. For the fabricated structural steel production facility. The facility includes plasma cutting, spray coating, grinding, welding, and lubricated cutting and sawing of mild steel. The plan approval was extended. Application received: April 15, 2026. Issued: April 23, 2026.

Southwest Region: Air Quality Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Jesse Parihar, 412-442-4030.

PA-04-00699J: Gold Bond Building Product LLC, P.O. Box 346, Shippingport, PA 15077, Shippingport Borough, **Beaver County**. On April 22, 2026, plan approval extension was issued for 180 days to Gold Bond to allow time to obtain Title V Operating Permit (TVOP) application from the Department, which was received in the office on March 09, 2026, for their Wallboard Manufacturing Facility located in Shippingport Borough, Beaver County. Application received: April 16, 2026. Accepted: April 17, 2026. Issued: April 22, 2026.

Contact: Sheri Guerrieri, P.E., New Source Review Chief, 412-442-4174.

PA-11-00541A: Cleveland Brothers Equipment Company, Inc., 100 Commerce Drive, Ebensburg, PA 15931, Cambria Township, **Cambria County**. For plan approval extension, with expiration on October 28, 2026, to authorize continued temporary operation of sources and controls

at its industrial engine rebuilding facility. Application received: March 18, 2026. Issued: April 23, 2026. Effective: April 28, 2026.

PA-65-00890C: Basic Carbide Corporation, 900 Main Street, Lowber, PA 15660, Sewickley Township, **Westmoreland County**. The Department has issued a plan approval extension to allow continued construction of the equipment authorized under PA-65-00890C. The new expiration date is October 28, 2026. Application received: March 17, 2026. Issued: April 20, 2026. Effective: April 28, 2026.

Title V Operating Permit(s) Issued Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code Chapter 127, Subchapter G.

Southcentral Region: Air Quality Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Vincent Pascucci, PE, East Permit Section Chief, 717-705-4862.

36-05156: M. Simon Zook Co., d/b/a Golden Barrel Products, 388 East Main Street, Leola, PA 17540-1925, Upper Leacock Township, **Lancaster County**. For the liquid and dry bulk receiving and transfer operations, and landfill gas-to-energy plant. The Title V permit was renewed. Application received: December 1, 2025. Issued: April 21, 2026.

Operating Permit(s) for Non-Title V Facilities Issued Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code Chapter 127, Subchapter F.

Northeast Region: Air Quality Program, 2 Public Square, Wilkes-Barre, PA 18701-1915, 570-826-2511.

Contact: Norman Frederick, Facility Permitting Chief, 570-826-2409.

40-00059: Reilly Finishing Technologies, 130 Alden Road, Nanticoke, PA 18634-2118, City of Nanticoke, **Luzerne County**. The Department has issued a renewal State-Only (Natural Minor) Operating Permit for the Nanticoke facility. Sources at this facility include their nickel-chrome-zinc coating main line, copper and steel lines, aluminum anodizing process, two aluminum anodizing operation tanks, two burn off ovens, a paint booth, and sixteen metal-HAP tanks. Sources for this facility also include five wet scrubbers, an anodizing scrubber, and panel filters as control devices. The Operating Permit contains all applicable requirements for emission limitations, work practice standards, testing, monitoring, recordkeeping, and reporting standards used to verify facility compliance with Federal and State air pollution regulations. Application received: March 2, 2026. Accepted: March 2, 2026. Issued: April 22, 2026.

Contact: Norman Frederick, Facility Permitting Chief, 570-826-2409.

54-00063: Greater Pottsville Area Sewer Authority Pottsville, Rte 61, P.O. Box 1163, Pottsville, PA 17901-7163, City of Pottsville, **Schuylkill County**. The Department issued a State-Only (Natural Minor) Operating Permit for the operation of sources at the wastewater treatment facility located in the City of Pottsville, Schuylkill County. The sources include primary and finish solids processing, and digesters. The control devices include a solids wet scrubber and a burn off flare. The Operating Permit contains all applicable requirements for emission limitations, work practice standards, testing, monitoring, and reporting standards used to verify facility compliance with Federal and State air pollution regulations. Application received: January 27, 2026. Renewal issued: April 22, 2026.

Northwest Region: Air Quality Program, 230 Chestnut Street, Meadville, PA 16335-3481, 814-332-6945.

Contact: Matthew Williams, Facilities Permitting Manager, 814-332-6131.

61-00034: Franklin Industries Co., P.O. Box 671, Franklin, PA 16323, City of Franklin, **Venango County**. The Department has issued the renewal of the State Only Operating Permit for the facility located in the City of Franklin, Venango County. The primary sources at the facility include natural gas combustion for building heat; a combustion for scarfing activities; a 1.5 million Btu/hr natural gas fueled pre-heat oven; a 2.5 million Btu/hr natural gas fueled drying oven; a 4 million Btu/hr natural gas fueled drying oven; 2 dip coating lines; a flow coating line; and 5 cold degreasing parts washers. The facility is a Synthetic Minor due to the potential VOC emissions from the coating lines and the permit contains conditions for limiting those VOC emissions to not more than 47 tons per year. Potential emissions for all other criteria pollutants are below the major source thresholds. Actual 2024 emissions were as follows: 8.43 tons NO_x; 0.04 ton SO_x; and 30.170 tons VOC. The renewal permit contains emission restrictions, recordkeeping, work practice, and additional requirements to ensure compliance with the Clean Air Act and the Air Pollution Control Act. Application received: February 25, 2025. Renewal issued: April 22, 2026.

Southcentral Region: Air Quality Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Thomas Bianca, PE, West Permit Section Chief, 717-705-4863.

05-05026: Steckman Ridge, LP, 915 N. Eldridge Parkway, Suite 1100, Houston, TX 77079-2761, Monroe Township, **Bedford County**. For the natural gas compressor station. The State-only permit was renewed. Application received: November 21, 2025. Issued: April 23, 2026.

21-05030: Ahlstrom Filtration LLC, 122 West Butler Street, Mount Holly Springs, PA 17065-1218, Mount Holly Springs Borough, **Cumberland County**. For the specialty filter paper manufacturing facility. The State-only permit was renewed. Application received: November 21, 2025. Issued: April 23, 2026.

Contact: Vincent Pascucci, PE, East Permit Section Chief, 717-705-4862.

06-05158: Allan Myers, LP, 638 Lancaster Avenue, Malvern, PA 19355, Ontelaunee Township, **Berks County**. For the Reading Asphalt Plant. The State-only permit was renewed. Application received: January 28, 2026. Issued: April 22, 2026.

36-05111: Lippert Components, Inc., 3501 County Road 6 E, Elkhart, IN 46514, Brecknock Township, **Lancaster County**. For the chassis production facility. The State-only permit was renewed. Application received: October 9, 2025. Issued: April 24, 2026.

Southeast Region: Air Quality Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: James Beach, New Source Review Chief, 484-250-5920.

15-00162: Longwood Funeral Home & Cremation of Matthew Genereux, Inc., 913 E Baltimore Pike, Kennett Square, PA 19348-1835, East Marlborough Township, **Chester County**. This action is for the initial

issuance of a Natural Minor Operating Permit for the operation of a human crematory. Application received: January 21, 2026. Issued: April 24, 2026.

Operating Permit(s) Denied, Terminated, Suspended or Revoked Under the Air Pollution Control Act (35 P.S. §§ 4001—4015) and 25 Pa. Code §§ 127.431 and 127.461.

Southeast Region: Air Quality Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Janine Tulloch-Reid, Facilities Permitting Chief, 484-250-5920.

46-00128: Verizon Pennsylvania, Inc., 100 Greenwood Avenue, Jenkintown, PA 19046, Jenkintown Borough, **Montgomery County**. This action is for a revocation of the State Only Operating Permit (SOOP) for Verizon Pennsylvania, LLC's (Verizon PA's), Jenkintown Central Office facility. The SOOP revocation is based on Verizon PA removing the emergency generator set (the only source in the SOOP) from the facility, and DEP's December 26, 2025, determination in Request for Determination of Changes of Minor Significance and Exemption from Plan Approval/Operating Permit (RFD) No. 11420 that the replacement emergency generator set (rated at 750 ekW power output and equipped with a diesel fuel-fired engine) is exempt from Plan Approval requirements and the facility is exempt from Operating Permit requirements. Verizon PA shall operate the replacement emergency generator set and an exempt No. 2 fuel oil-fired boiler (rated at less than 1 mmBtu/hr heat input) at the facility in a manner consistent with good operating and maintenance practices. Moreover, while the facility is exempt from Operating Permit requirements, Verizon PA is required to comply with all applicable air quality regulations, including, but not limited to, 40 CFR Part 60, Subpart IIII, and 25 Pa. Code §§ 129.203—129.204 for the engine of the replacement emergency generator set, and 40 CFR Part 63, Subpart JJJJJJ, for the boiler. Application received: January 8, 2026. Revoked: April 27, 2026.

ACTIONS ON COAL AND NONCOAL APPLICATIONS

Actions on applications under the Surface Mining Conservation and Reclamation Act (52 P.S. §§ 1396.1—1396.31); the Noncoal Surface Mining Conservation and Reclamation Act (52 P.S. §§ 3301—3326); the Clean Streams Law (35 P.S. §§ 691.1—691.1001); the Coal Refuse Disposal Control Act (52 P.S. §§ 30.51—30.66); the Bituminous Mine Subsidence and Land Conservation Act (52 P.S. §§ 1406.1—1406.21). The final action on each application also constitutes action on the National Pollutant Discharge Elimination System (NPDES) permit application and, if noted, the request for a Section 401 Water Quality Certification. Mining activity permits issued in response to such applications will also address the application permitting requirements of the following statutes; the Air Quality Control Act (35 P.S. §§ 4001—4015); the Dam Safety and Encroachments Act (32 P.S. §§ 693.1—693.27); and the Solid Waste Management Act (35 P.S. §§ 6018.101—6018.1103). Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Coal Permits

California District Mining Office: 25 Technology Drive, Coal Center, PA 15423, 724-769-1100.

Contact: Lori Jenkins, Clerical Assistant 3.

Mining Permit No. 32220701. NPDES No. PA0236578. Rosebud Mining Company, 301 Market Street, Kittanning, PA 16201, Washington Township, **Indiana County**. To operate a new coal refuse disposal site and related NPDES permit adding four (4) new outfalls, affecting 85.5 coal refuse disposal acres and 19.6 coal refuse disposal support acres. In conjunction with this approval, the Department is granting 401 Water Quality Certification certifying that the approved activities will comply with the applicable provisions of sections 301—303, 306 and 307 of the Federal Water Pollution Control Act (33 U.S.C. § 1341) and will not violate applicable Federal and State water quality standards. Application received: February 23, 2024. Accepted: April 11, 2024. Issued: April 24, 2026.

Cambria District Mining Office: 286 Industrial Park Road, Ebensburg, PA 15931-4119, 814-472-1800.

Contact: RA-EPCAMBRIADMO@pa.gov.

Mining Permit No. 56110105. Fieg Brothers, P.O. Box 38, Berlin, PA 15530, Southampton Township, **Somerset County**. Revision to change the land use from woodland to pastureland or land occasionally cut for hay on a bituminous surface mine affecting 318.4 acres. Receiving streams: unnamed tributaries to the North Branch of Jennings Run; unnamed tributary to Rush Run, classified for the following uses: CWF & HQ-CWF. Application received: August 6, 2024. Permit issued: April 27, 2026.

Mining Permit No. 29240101. NPDES No. PA0279927. J & J Svonavec Excavating, Inc., 555 Philadelphia Street, Indiana, PA 15701, Wells Township, **Fulton County**. Revision to utilize Class A Exceptional Quality biosolids to enhance the reclamation of disturbed soils to provide for a post-mining use as forestland of a bituminous surface and sandstone mine affecting 96.0 acres. Receiving streams: Great Trough Creek classified for the following use: TSF. Application received: January 12, 2026. Permit issued: April 28, 2026.

Noncoal Permits

Knox District Mining Office: P.O. Box 669, 310 Best Avenue, Knox, PA 16232-0669, 814-797-1191.

Contact: Alicia Cook, Clerical Assistant 3, 814-343-3328.

Mining Permit No. 61242802. GP-104 No. PAM624005. **Ben Hal Mining, Inc.**, 389 Irishtown Road, Grove City, PA 16127, Irwin Township, **Venango County**. Renewal of coverage under the General NPDES Permit for Stormwater Discharges Associated with Mining Activities (BMP GP-104) for a industrial minerals surface mine site. There are no permitted point source discharges (the site is located in the North Branch Slippery Rock Creek watershed). Application received: February 5, 2026. Renewal issued: April 24, 2026.

Mining Permit No. 43060302. GP-104 No. PAM613011. **Doren, Inc.**, 2313 State Route 18, Wampum, PA 16157, Jefferson Township, **Mercer County**. Renewal of coverage under the General NPDES Permit for Stormwater Discharges Associated with Mining Activities (BMP GP-104) for a industrial minerals surface mine site. There are no permitted point source discharges (the site is

located in the Lackawannock Creek watershed). Application received: February 18, 2026. Renewal issued: April 24, 2026.

Mining Permit No. 37960303. GP-104 No. PAM612009. **B&P Slag Corporation**, 1504 Highland Avenue, New Castle, PA 16105, Union Township, **Lawrence County**. Renewal of coverage under the General NPDES Permit for Stormwater Discharges Associated with Mining Activities (BMP GP-104) for an industrial minerals surface mine site. There are no permitted point source discharges (the site is located in the Mahoning River watershed). Application received: January 20, 2026. Renewal issued: April 23, 2026.

Mining Permit No. 4379301. GP-104 No. PAM617031. **Shenango Valley Sand & Gravel, Inc.**, 204 East Main Street, Andover, OH 44003, Green Township, **Mercer County**. Renewal of coverage under the General NPDES Permit for Stormwater Discharges Associated with Mining Activities (BMP GP-104) for a industrial minerals surface mine site. There are no permitted point source discharges (the site is located in the Shenango River watershed). Application received: February 19, 2026. Renewal issued: April 24, 2026.

Pottsville District Mining Office: 5 West Laurel Boulevard, Pottsville, PA 17901, 570-621-3118.

Contact: RA-EPPottsvilleDMO@pa.gov.

Mining Permit No. 36080301. NPDES No. PA0224651. **Pierson Rheems, LLC**, 426 Swedesboro Road, Pilesgrove, NJ 08098, West Donegal Township and Mount Joy Township, **Lancaster County**. Renewal of an NPDES Permit for discharge of mine drainage from a quarry operation. Receiving stream: UNT to Donegal Creek. Application received: April 11, 2023. Issued: April 24, 2026.

Mining Permit No. 36080301. Pierson Rheems, LLC, 426 Swedesboro Road, Pilesgrove, NJ 08098, West Donegal Township and Mount Joy Township, **Lancaster County**. Correction to a quarry to increase permit acreage affecting 132.22 acres. Receiving stream: UNT to Donegal Creek. Application received: May 1, 2023. Issued: April 24, 2026.

Mining Permit No. 58250802. NPDES No. PA0226599. **S & M Blue Stone, LLC**, 528 College Avenue, Factoryville, PA 18419, Forest Lake Township, **Susquehanna County**. Commencement, operation and restoration of a quarry operation and NPDES Permit for discharge of treated mine drainage affecting 3.1 acres. Receiving stream: UNT to Silver Creek Watershed. Application received: November 3, 2025. Issued: April 27, 2026.

ACTIONS ON BLASTING ACTIVITY APPLICATIONS

Action(s) Taken on Application(s) Under the Explosives Acts of 1937 and 1957 and 25 Pa. Code § 211.124. Blasting Activity Performed as Part of a Coal or Noncoal Mining Activity will be Regulated by the Mining Permit for that Coal or Noncoal Mining Activity.

Blasting Permits

Knox District Mining Office: P.O. Box 669, 310 Best Avenue, Knox, PA 16232-0669, 814-797-1191.

Contact: Cayleigh Boniger, Clerical Supervisor 2.

Permit No. 37265101. Wampum Hdwr Co., 636 Paden Road, New Galilee, PA 16141-2018, North Beaver Township, **Lawrence County**. Blasting Activity Permit-By-Rule issued in North Beaver Township, Lawrence County for commercial development. This Blasting Activity Permit-By-Rule will expire on May 31, 2026. Application received: April 22, 2026. Issued: April 22, 2026.

FEDERAL WATER POLLUTION CONTROL ACT SECTION 401

The Department of Environmental Protection (DEP) has taken the following actions on previously received permit applications, requests for Environmental Assessment approval, and requests for Water Quality Certification under Section 401 of the Federal Water Pollution Control Act (FWPCA) (33 U.S.C. § 1341).

Except as otherwise noted, DEP has granted 401 Water Quality Certification certifying that the construction and operation described will comply with the applicable provisions of Sections 301—303, 306 and 307 of the FWPCA (33 U.S.C. §§ 1311—1313, 1316 and 1317), and that the construction will not violate applicable Federal and State Water Quality Standards.

Individuals aggrieved by these actions may appeal, pursuant to Section 4 of the Environmental Hearing Board Act, 35 P.S. § 7514, and the Administrative Agency Law, 2 Pa.C.S. Chapter 5A, to the Environmental Hearing Board, Second Floor, Rachel Carson State Office Building, 400 Market Street, P.O. Box 8457, Harrisburg, PA 17105-8457, 717-787-3483. Appeals must be filed with the Environmental Hearing Board within 30-days of publication of this notice in the *Pennsylvania Bulletin*, unless the appropriate statute provides a different time period. Copies of the appeal form and the Board's rules of practice and procedure may be obtained from the Board. The appeal form and the Board's rules of practice and procedure are also available in braille or on audiotape from the Secretary to the Board at 717-787-3483. This paragraph does not, in and of itself, create any right of appeal beyond that permitted by applicable statutes and decisional law.

If you want to challenge this action, your appeal must reach the Board within 30-days. You do not need a lawyer to file an appeal with the Board.

Individuals in need of accommodations should contact the Environmental Hearing Board through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Important legal rights are at stake, however, so you should show this notice to a lawyer at once. If you cannot afford a lawyer, you may qualify for free pro bono representation. Call the Secretary to the Board 717-787-3483 for more information.

WATER OBSTRUCTIONS AND ENCROACHMENTS

Action(s) Taken on Application(s) for the Following Activities Filed Under The Dam Safety and Encroachments Act (32 P.S. §§ 693.1—693.27), Section 302 of the Flood Plain Management Act (32 P.S. § 679.302) and the Clean Streams Law and Notice of Final Action for Certification Under Section 401 of the FWPCA.

Eastern District: Oil and Gas Management Program, 208 West Third Street, Williamsport, PA 17701-6448.

Contact: RA-EPEASTERNOGPRG@pa.gov.

E5729225-006. Appalachia Midstream Services LLC, 30351 Route 6, Wysox, PA 18854, Fox Township, **Sullivan County**. U.S. Army Corps of Engineers Baltimore District.

Application received: December 3, 2025. Issued: April 24, 2026.

To construct, operate, and maintain:

1. (Wetland W1) a temporary crossing using timber mats impacting 150 square feet of a palustrine emergent (PEM) wetland (Grover, PA Quadrangle 41.535751°, -76.793972°);

2. (Wetland W2) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 8,786 square feet of a palustrine emergent (PEM) wetland (Grover, PA Quadrangle 41.535674°, -76.792603°);

3. (Wetland W3) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 10,304 square feet of a palustrine emergent (PEM) wetland (Grover, PA Quadrangle 41.536764°, -76.790745°);

4. (Stream C1) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 50 linear feet of North Pleasant Stream (EV) (Grover, PA Quadrangle 41.537299°, -76.790513°);

5. (Stream C2, Wetland W5) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 1,719 square feet of an exceptional value palustrine emergent (EV-PEM) wetland and 50 linear feet of an unnamed tributary to Fall Run (EV) (Grover, PA Quadrangle 41.540253°, -76.779507°);

6. (Wetland W6) a temporary crossing using timber mats impacting 415 square feet of a palustrine emergent (PEM) wetland (Grover, PA Quadrangle 41.540534°, -76.776083°);

7. (Wetland W7) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 3,374 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Grover, PA Quadrangle 41.540475°, -76.774166°);

8. (Wetland W8) a temporary crossing using timber mats impacting 219 square feet of a palustrine emergent (PEM) wetland (Grover, PA Quadrangle 41.540365°, -76.771950°);

9. (Wetland W9) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 1,052 square feet of a palustrine emergent (PEM) wetland (Grover, PA Quadrangle 41.540005°, -76.771480°);

10. (Wetland W10) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 3,130 square feet of an exceptional value palustrine forested (EV-PFO) wetland and 3,862 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Grover, PA Quadrangle 41.538925°, -76.769549°);

11. (Stream C3, Wetland W10) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 1,776 square feet of an exceptional value palustrine forested (EV-PFO) wetland and 50 linear feet of an unnamed tributary to Fall Run (EV) (Grover, PA Quadrangle 41.538741°, -76.768477°);

12. (Wetland W10) a temporary crossing using timber mats and a 20-inch diameter natural gas pipeline impacting 3,019 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Grover, PA Quadrangle 41.538894°, -76.767820°);

13. (Wetland W11) a temporary crossing using timber mats and an anode impacting 3,073 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Grover, PA Quadrangle 41.538677°, -76.762456°).

The project will result in 35,973 square feet (0.826 acre) of temporary wetland impacts, 4,906 square feet (0.113 acre) of permanent wetland impacts 150 linear feet of temporary stream impacts all for the purpose of installing a 20-inch diameter natural gas pipeline and anode in Fox Township, Sullivan County. The permittee will provide 0.217 acre of onsite plantings to compensate for permanent impacts to forested wetlands.

E5729225-007. EXCO Resources PA LLC, 12377 Merit Dr, Suite 1700, Dallas, TX 75251, Davidson Township, **Sullivan County**. U.S. Army Corps of Engineers Baltimore District.

Application received: December 18, 2025. Issued: April 24, 2026.

To construct, operate, and maintain:

14. (Waived Stream 1) a 12-inch diameter HDPE temporary waterline impacting 2 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.31191°, -76.60320°);

15. (W2-T1) a temporary access road using timber mats and a 12-inch diameter HDPE temporary waterline impacting 42 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Sonestown, PA Quadrangle 41.31200°, -76.60292°);

16. (Waived Stream 2) a 12-inch diameter HDPE temporary waterline impacting 13 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.31279°, -76.60074°);

17. (S1-T1) a 12-inch diameter HDPE temporary waterline impacting 26 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.32057°, -76.59211°);

18. (S4-T1) a 12-inch diameter HDPE temporary waterline impacting 125 linear feet of Muncy Creek (EV) (Sonestown, PA Quadrangle 41.32795°, -76.59141°);

19. (Waived Stream 3) a 12-inch diameter HDPE temporary waterline impacting 18 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33168°, -76.59234°);

20. (Waived Stream 4) a 12-inch diameter HDPE temporary waterline impacting 19 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33467°, -76.59414°);

21. (Waived Stream 6) a 12-inch diameter HDPE temporary waterline impacting 17 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33733°, -76.59646°);

22. (W3-T3) a temporary access road using timber mats and a 12-inch diameter HDPE temporary waterline impacting 273 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Sonestown, PA Quadrangle 41.33736°, -76.59659°);

23. (Waived Stream 7) a 12-inch diameter HDPE temporary waterline impacting 14 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33761°, -76.59757°);

24. (Waived Stream 8) a 12-inch diameter HDPE temporary waterline impacting 16 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33845°, -76.60000°);

25. (Waived Stream 9) a 12-inch diameter HDPE temporary waterline impacting 17 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33857°, -76.60028°);

26. (Waived Stream 10) a 12-inch diameter HDPE temporary waterline impacting 12 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33858°, -76.60032°);

27. (W2-T3) a temporary access road using timber mats and a 12-inch diameter HDPE temporary waterline impacting 24 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Sonestown, PA Quadrangle 41.33868°, -76.60075°);

28. (W1-T3) a temporary access road using timber mats and a 12-inch diameter HDPE temporary waterline impacting 720 square feet of an exceptional value palustrine emergent (EV-PEM) wetland (Sonestown, PA Quadrangle 41.33866°, -76.60221°);

29. (Waived Stream 11) a 12-inch diameter HDPE temporary waterline impacting 23 linear feet of an unnamed tributary to Muncy Creek (EV) (Sonestown, PA Quadrangle 41.33865°, -76.60237°).

The project will result in 302 linear feet of temporary stream impacts and 1,059 square feet (0.024 acre) of temporary wetland impacts all for the purpose of installing a temporary waterline in Shrewsbury Township, Sullivan County.

Southeast Region: Waterways & Wetlands Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: RA-EP-WW-SERO-105@pa.gov.

E0901225-009. Darren Marino, 108 S. Lincoln Ave, Newtown, PA 18940, Newtown Borough, **Bucks County**. U.S. Army Corps of Engineers Philadelphia District.

Application received: July 1, 2025. Accepted: July 1, 2025. Issued: April 17, 2026.

Darren Marino and Sherri Marino propose to perform the following water obstruction and encroachment activities within Tributary 02562 to Newtown Creek (WWF/MF) and its floodway as part of the Marino Residence Project. The proposed work includes the following: to extend an existing 5-foot-wide by 3-foot-high arch corrugated metal pipe (CMP) culvert conveying Tributary 02562 to Newtown Creek by 13 feet at a slope of 0.50 percent; to construct and maintain a concrete collar at the connection to the existing pipe and a headwall at the end of the culvert extension; to construct and maintain retaining walls along the north and south sides downstream of the extended culvert; to place riprap for outlet protection; to place fill and grade within the floodway associated with stabilizing an existing foundation adjacent to the new culvert extension and stabilizing the streambanks downstream of the extended culvert; to construct and maintain two concrete pads and a paved walkway; to extend an existing driveway; and to install a stormwater management system with an outlet structure. The culvert extension, headwall, retaining walls, and riprap placement will result in 18.5 linear feet (377 square feet) of permanent watercourse impact. The remaining proposed work will result in 60 linear feet (877 square feet) of permanent watercourse impact and 3,869 square feet (0.089 acre) of permanent floodway impact. Temporary impacts associated with the proposed Best Management Practices (BMPs) to be used during construction, as well as the removal of accumulated debris from the stream, will result in 77.5 linear feet (658 square feet) of temporary watercourse impact and 3,669 square feet (0.084 acre) of temporary floodway impact. This project is located at 108 S. Lincoln Ave. in Newtown Borough, Bucks County (USGS PA Langhorne Quadrangle—Latitude: 40.227081° N, Longitude: 74.931969° W).

EA1501225-002. Brandywine Red Clay Alliance, 1760 Unionville-Wawaset Rd, West Chester, PA 19382, Kennett Twp, New Garden Twp, **Chester County**. U.S. Army Corps of Engineers Philadelphia District.

Brandywine Red Clay Alliance is proposing to rehabilitate and restore an approximately 2,108 linear foot impaired reach of the Lower West Branch Red Clay Creek (TSF/MF) and it's tributaries. The LWBRC 25-29 project includes streambank stabilization, wetland creation, floodplain connection, in-stream habitat improvements and riparian buffer enhancements. This activity will result in 521 linear feet (0.03 acre) of permanent watercourse impact, 2,180 linear feet (1.25 acres) of temporary watercourse impact, and 2,108 linear feet (1.83 acres) of temporary floodway impact. This project is associated with the PA DEP Growing Greener Grant Program and a NFWF Grant and is located at 79 Scarlet Road in Kennett Township and New Garden Township, Chester County (USGS PA Kennett Square Quadrangle—Latitude: 39.831881° N, Longitude: 75.722639° W). Application received: May 27, 2025. Accepted: May 27, 2025. Issued: April 22, 2026.

ENVIRONMENTAL ASSESSMENTS

Central Office: Waterways & Wetlands Program, Rachel Carson State Office Building, 400 Market Street, Harrisburg, PA 17101, 717-787-3411.

Contact: Andrew Foley, Water Program Specialist, 484-250-5813.

EA3615226-001 & GP063615226-001 & GP063615226-002. HGS, LLC, 317 East Carson Street, Pittsburgh, PA 15219, Upper Leacock Township, **Lancaster County**. U.S. Army Corps of Engineers Baltimore District.

The Department has reviewed and approved a restoration plan to restore three unnamed tributaries to the Conestoga River (WWF, MF) by removing approximately 12,000 cubic yards of legacy sediment and other historic floodplain fills. The project will restore approximately eight acres of integrated wetland, stream and floodplain areas; and approximately 2,600 linear feet of stream channels. Restoration efforts will utilize a combination of floodplain grading, channel relocation, subsurface grade control structures, and habitat structural improvements to restore natural floodplain wetland characteristics and processes. This approval includes the registration of use for two General Permit BWEW-GP-06 Agricultural Crossings and Ramps (GP063615226-001 and GP063615226-002). Additional restoration activities proposed include placing rock stream and valley grade control structures; placing log sills, woody debris, root wads, and other aquatic habitat structures within the restoration areas; constructing temporary stream crossings, rock construction entrances, and other erosion controls during restoration activities. The project is located within a privately owned parcel in Upper Leacock Township, Lancaster County, approximately two miles west of Leola, accessible from Geist Road. Latitude: 40.079167°, Longitude: -76.221111°. Application received: January 17, 2026. Approved: April 24, 2026.

EROSION AND SEDIMENT CONTROL

The following Erosion and Sediment Control permits have been issued.

Persons aggrieved by an action may appeal that action to the Environmental Hearing Board (Board) under section 4 of the Environmental Hearing Board Act and 2 Pa.C.S. §§ 501—508 and 701—704. The appeal should be sent to the Environmental Hearing Board, Second

Floor, Rachel Carson State Office Building, 400 Market Street, P.O. Box 8457, Harrisburg, PA 17105-8457, 717-787-3483. Appeals must be filed with the Board within 30-days of publication of this notice in the *Pennsylvania Bulletin* unless the appropriate statute provides a different time period. Copies of the appeal form and the Board's rules of practice and procedure may be obtained from the Board. The appeal form and the Board's rules of practice and procedure are also available in Braille or on audiotape from the Secretary to the Board at 717-787-3483. This paragraph does not, in and of itself, create a right of appeal beyond that permitted by applicable statutes and decisional law.

For individuals who wish to challenge an action, the appeal must reach the Board within 30-days. A lawyer is not needed to file an appeal with the Board.

Individuals in need of accommodations should contact the Environmental Hearing Board through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Important legal rights are at stake, however, so individuals should show this notice to a lawyer at once. Persons who cannot afford a lawyer may qualify for free pro bono representation. Call the Secretary to the Board at 717-787-3483 for more information.

Eastern District: Oil and Gas Management Program, 208 West Third Street, Williamsport, PA 17701-6448.

Contact: RA-EPEASTERNOGPRG@pa.gov.

ESCGP # 4 **ESG290826005-00**
Applicant Name **Expand Operating LLC**
Contact Person Eric Haskins
Address 14 Chesapeake Lane
City, State, Zip Sayre, PA 18840
Township(s) Burlington Township
County **Bradford County**
Receiving Stream(s) and Classification(s) UNT to Bailey Run (WWF, MF)
Application received: January 20, 2026
Issued: April 28, 2026

ESCGP # 4 **ESG290826017-00**
Applicant Name **Appalachia Midstream Svc LLC**
Contact Person Adam Weightman
Address 30351 Route 6
City, State, Zip Wysox, PA 18854
Township(s) Wyalusing Township
County **Bradford County**
Receiving Stream(s) and Classification(s) Unnamed Tributary to Susquehanna River (CWF, MF), Susquehanna River (WWF, MF)
Application received: February 26, 2026
Issued: April 24, 2026

CORRECTIVE ACTION UNDER ACT 32, 1989

PREAMBLE 2

The Following Plan(s) and Report(s) Were Submitted Under the Storage Tank and Spill Prevention Act (35 P.S. §§ 6021.101—6021.2104).

Provisions of 25 Pa. Code Chapter 245, Subchapter D, Administration of the Storage Tank and Spill Prevention Program, require the Department of Environmental Protection (DEP) to publish in the *Pennsylvania Bulletin* a notice of submission of plans and reports. A remedial action plan is submitted to summarize the site characterization, document the design and construction details for the remedial action, and describe how the remedial action will attain the selected remediation standard. The remedial action plan also provides results of studies performed and data collected to support the remedial action and a description of postremediation care requirements. A remedial action completion report is submitted to document cleanup of a release of a regulated substance at a site to the selected remediation standard. A remedial action completion report provides a description of the site investigation to characterize the nature and extent of contaminants in environmental media, the basis of selecting the environmental media of concern, documentation supporting the selection of residential or nonresidential exposure factors, a description of the remediation performed and summaries of sampling methodology and analytical results which demonstrate that the remediation has attained the cleanup standard selected.

For further information concerning plans or reports, please contact the Regional Office Program Manager previously listed in the notice.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

DEP has received the following plans and reports.

Northwest Region: Environmental Cleanup & Brownfields Program, 230 Chestnut Street, Meadville, PA 16335-3481, 814-332-6945.

Contact: David Hall, EGM, 814-332-6196

Purvis Bros, Storage Tank Facility ID # **10-20084**, 321 Mars Valencia Road, Mars, PA 16046, Adams Township, **Butler County**. CORE Environmental Services, Inc., 6000 Brooktree Road, Suite 110, Wexford, PA 15090, on behalf of Purvis Brothers Inc., P.O. Box 957, Mars, PA 16046, submitted a Combined Remedial Action Plan and Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with petroleum. The combined plan and report is intended to document the remedial actions for meeting nonresidential Statewide health and site-specific standards.

Southcentral Region: Environmental Cleanup & Brownfields Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Cherie Campbell, Acting Environmental Group Manager, 717-705-4705.

Keneco Oil Bulk Plt, Storage Tank Facility ID # **01-37038**, 6169 Baltimore Pike, Littlestown, PA 17340-9504, Germany Township, **Adams County**. Mountain Research, LLC, 825 25th Street, Altoona, PA 16602, on behalf of Ejays Financial Group, 9 Westminster S/C # 371, Westminster, MD 21157, submitted a Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with petroleum constituents. The report is intended to document the remedial actions for meeting residential Statewide health and site-specific standards.

Contact: Cherie Campbell, Soil Scientist, 717-705-4705.

Keneco Oil Bulk Plant, Storage Tank Facility ID # **01-37038**, 6169 Baltimore Pike, Littlestown, PA 17340-9504, Germany Township, **Adams County**. Mountain Research, LLC, 825 25th Street, Altoona, PA 16602, on behalf of Ejays Financial Group, 9 Westminster S/C # 371, Westminster, MD 21157-4835, submitted a Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with petroleum con-

stituents. The report is intended to document the remedial actions for meeting residential Statewide health and site-specific standards.

Southeast Region: Environmental Cleanup & Brownfields Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Richard M. Staron, Professional Geologist Manager, 484-250-5717.

CMD SVC, Storage Tank Facility ID # **46-41473**, 902 Farmington Ave, Pottstown, PA 19464, Upper Pottsgrove Township, **Montgomery County**. Center Point Tank Services, Inc., 536 E. Benjamin Franklin Highway, Douglasville, PA 19518, on behalf of CMD Services, Inc., 902 Farmington Avenue, Pottstown, PA 19464, submitted a Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with unleaded gasoline. The report is intended to document the remedial actions for meeting residential Statewide health standards.

CORRECTIVE ACTION UNDER ACT 32, 1989

PREAMBLE 3

Action(s) Taken on the Following Plans and Reports Under the Storage Tank and Spill Prevention Act (35 P.S. §§ 6021.101—6021.2104).

Provisions of 25 Pa. Code Chapter 245, Subchapter D, Administration of the Storage Tank and Spill Prevention Program, require the Department of Environmental Protection (DEP) to publish in the *Pennsylvania Bulletin* a notice of its final actions on plans and reports.

A remedial action plan is submitted to summarize the site characterization, document the design and construction details for the remedial action, and describe how the remedial action will attain the selected remediation standard. The remedial action plan also provides results of studies performed and data collected to support the remedial action and a description of postremediation care requirements. A remedial action completion report is submitted to document cleanup of a release of a regulated substance at a site to the selected remediation standard. A remedial action completion report provides a description of the site investigation to characterize the nature and extent of contaminants in environmental media, the basis of selecting the environmental media of concern, documentation supporting the selection of residential or nonresidential exposure factors, a description of the remediation performed and summaries of sampling methodology and analytical results which demonstrate that the remediation has attained the cleanup standard selected.

DEP may approve or disapprove plans and reports submitted. This notice provides DEP's decision and, if relevant, the basis for disapproval.

For further information concerning plans or reports, please contact the Regional Office Program Manager previously listed in the notice.

Individuals in need of accommodations should contact DEP through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

DEP has received the following plans and reports.

Southcentral Region: Environmental Cleanup & Brownfields Program, 909 Elmerton Avenue, Harrisburg, PA 17110-8200, 717-705-4700.

Contact: Michael Stefanic, P.G., Licensed Professional Geologist.

Exit 77 Travel Plaza, Storage Tank Facility ID # **22-05721**, 7800 Linglestown Road, Harrisburg, PA 17112, West Hanover Township, **Dauphin County**. Letterle & Associates, Inc., 2022 Axemann Road, Suite 201, Bellefonte, PA 16823, on behalf of HRC Holding LP, 7800 Linglestown Road, Harrisburg, PA 17112, submitted a Remedial Action Completion Report concerning remediation of soil contaminated with petroleum constituents. The report was acceptable to meet the residential Statewide health standards and was approved by DEP on April 23, 2026.

Southeast Region: Environmental Cleanup & Brownfields Program, 2 East Main Street, Norristown, PA 19401, 484-250-5900.

Contact: Richard M. Staron, Professional Geologist Manager, 484-250-5717.

Downingtown Mobil, Storage Tank Facility ID # **15-24370**, 47 West Lancaster Avenue, Downingtown, PA 19335, Downingtown Borough, **Chester County**. Groundwater & Environmental Services, Inc., 410 Eagleview Boulevard, Suite 110, Exton, PA 19341, on behalf of Exxon Mobil Environmental and Property Solutions Company, 100 Walnut Avenue, Suite 210, Clark, NJ 07066, submitted a Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with unleaded gasoline. The report demonstrated attainment of the residential Statewide health standards and was approved by DEP on April 21, 2026.

80023 Telford Fuels, Storage Tank Facility ID # **09-00236**, 4802 Bethlehem Pike, Telford, PA 18969, Hilltown Township, **Bucks County**. Petrodi, LLC, 543 Oakshade Road, Shamong, NJ 08088, on behalf of Ramoco Marketing Group, P.O. Box 2218, Princeton, NJ 08540, submitted a Combined Remedial Action Plan and Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with unleaded gasoline, diesel fuel, and kerosene. The combined plan and report did not demonstrate attainment of the residential Statewide health standards and was approved by DEP on April 22, 2026.

Southwest Region: Environmental Cleanup & Brownfields Program, 400 Waterfront Drive, Pittsburgh, PA 15222-4745, 412-442-4000.

Contact: Janelle Hromyak, Clerical Assistant, 412-442-4091.

Former Sunoco # 0364-0653, Storage Tank Facility ID # **02-30668**, 5600 William Flynn Highway, Gibsonia, PA 15044, Richland Township, **Allegheny County**. EnviroTrac, Ltd., 176 Thorn Hill Road, Warrendale, PA 15086, on behalf of Evergreen Resource Group, LLC, 2 Righter Parkway, Suite 120, Wilmington, DE 19803, submitted a Remedial Action Completion Report concerning remediation of soil and groundwater contaminated with unleaded gasoline, leaded gasoline, diesel fuel, and crude oil. The report demonstrated attainment of the nonresidential Statewide health standards and was approved by DEP on April 20, 2026.

Greensburg Catholic Cemetary, Storage Tank Facility ID # **65-10207**, 179 Donohoe Road, Greensburg, PA 15601, Hempfield Township, **Westmoreland County**. DMS Environmental Services, LLC, 103 South Spring Street, Bellefonte, PA 16823, on behalf of Msgr. Raymond Riffle, Roman Catholic Diocese of Greensburg, 179 Donohoe Road, Greensburg, PA 15601, submitted a Remedial

Action Completion Report concerning remediation of soil and groundwater contaminated with unleaded gasoline. The report demonstrated attainment of the nonresidential Statewide health standards and was approved by DEP on April 23, 2026.

SPECIAL NOTICES

WATER PROGRAM

Applications Received under the Dam Safety and Encroachments Act (32 P.S. §§ 693.1—693.27) and section 302 of the Flood Plain Management Act (32 P.S. § 679.302) and Requests for Certification under section 401(a) of the FWPCA.

Major Projects Permitting Division, 400 Market Street, Harrisburg, PA 17101, Kevin White, PE, Program Manager, 717-772-5987.

FEDERAL WATER POLLUTION CONTROL ACT, SECTION 401

The following permit applications, requests for Environmental Assessment approval and requests for 401 Water Quality Certification have been received by the Department. Section 401 of the Federal Water Pollution Control Act (FWPCA) (33 U.S.C. § 1341) requires the Commonwealth to certify that the involved projects will not violate the sections 301—303, 306 and 307 of the FWPCA (33 U.S.C. §§ 1311—1313, 1316 and 1317) as well as relevant State requirements. Persons objecting to approval of a request for certification under section 401 of the FWPCA, the issuance of a Dam Permit or Water Obstruction and Encroachment Permit or the approval of an Environmental Assessment shall submit comments, suggestions or objections within 30 days of the date of this notice as well as any questions to the Regional Permit Coordination Office as noted before the application. Comments should contain the name, address and telephone number of the person commenting, identification of the certification request to which the comments or objections are addressed and a concise statement of comments, objections or suggestions including the relevant facts upon which they are based.

The Department may conduct a fact-finding hearing or an informal conference in response to comments if deemed necessary. Each individual will be notified, in writing, of the time and place of a scheduled hearing or conference concerning the certification request to which the comment, objection or suggestion relates.

More information regarding the permit applications related to this proposed project may be available online (dep.pa.gov/pipelines) or in the Department's Regional Permit Coordination Office. The Department's Major Projects Permitting Division can be contacted at 717-772-5987 or RA-EPMAJORPROJECTSPERMITTING@pa.gov.

Comments on the applications can be emailed or sent via postal mail to the Department of Environmental Protection, Major Projects Permitting Division: 400 Market Street, Harrisburg, PA 17101; Email: RA-EPMAJORPROJECTSPERMITTING@pa.gov.

Persons with a disability that require an auxiliary aid, service or other accommodation should contact the specified Department office. TDD users may contact the Department through the Pennsylvania Hamilton Relay Service at (800) 654-5984.

E6583226-004. Eastern Gas Transmission and Storage, Inc., 10700 Energy Way, Glen Allen, VA 23060, Salem Township, **Westmoreland County**, U.S. Army Corps of Engineers, Pittsburgh District. Project: Rock Springs to Oakfield Jumper Project.

To install and maintain an approximately 2,000-foot-long, 20-inch diameter steel pipeline for the purpose of connecting the existing Rock Springs Compressor Station and TL-574 natural gas transmission line to the existing TL-591 natural gas transmission line. The project includes a total of 20 linear feet of permanent stream impacts to Beaver Run (HQ-CWF), 0.05 acre of permanent impact to the floodway, and 0.10 acre of permanent impacts to PEM wetlands (EV). The proposed project impacts include 84 linear feet of temporary impacts to Beaver Run (HQ-CWF), 0.19 acre of temporary impacts to the floodway, and 0.15 acre of temporary impacts to PEM wetlands (EV). There is no loss of wetlands.

The project is located off Rock Springs Road (Latitude: 40.40456°; Longitude: -79.55642°) and extends along an existing gas right of way and maintained lawn on EGTS property in Salem Township, Westmoreland County.

ACTIVE AND ABANDONED MINE OPERATIONS

Notice of Informal Public Conference.

California District Mining Office: California District Mining Office, 25 Technology Drive, Coal Center, PA 15423, 724-769-1100.

Contact: Lori Jenkins, Clerical Assistant 3.

Notice is hereby given that the Pennsylvania Department of Environmental Protection, District Mining Operations, has received an application from Rosebud Mining Company, 301 Market Street, Kittanning, PA 16201 to operate a new underground bituminous coal mine named Clymer A Mine, Proposed Permit No. 32251301. The proposed mine is located in Cherryhill Township, Indiana County and will encompass 4,342 acres of underground permit and subsidence control plan area and 74.8 acres of surface activity area. The Clymer A Mine proposes to extract coal from the Brookville seam by room and pillar mining with no retreat mining for an estimated lifespan of seventeen (17) years.

The Department will hold an Informal Public Conference at the Clymer Volunteer Fire Company, 550 Sherman Street, Clymer, PA 15728, on Tuesday, June 2, 2026, beginning at 6:00 p.m.

Department staff will provide a brief presentation regarding the proposed activities in the application. Immediately following the presentation, the Department will hold an open forum with attendees to answer general questions regarding the permit application and permitting process. Mapping will be available for attendees review with Department staff to assist with questions. Department staff will be available to receive both written and oral testimony regarding the application. Testimony will be placed into public record for the application and considered by Department staff in the application review process.

The California District Mining Office will accept additional written comments prior to and up to two (2) weeks after the date of the proceeding until June 16, 2026.

If you are a person with a disability wishing to attend this open house and require an auxiliary aid, service or other accommodation to participate in the proceedings, please contact Lori Jenkins at (724) 769-1023 to discuss how we may accommodate your needs. If necessary, you may use the Pennsylvania Hamilton Relay Service by

calling 1-800-654-5984 (TDD Users) or 1-800-654-5988 (Voice users) and request that your call be relayed to Lori Jenkins at (724) 769-1023.

Copies of the application are on file for public review by appointment at Department of Environmental Protection, District Mining Operations, California District Office, 25 Technology Drive, California Technology Park, Coal Center, PA 15423, and the Indiana County Courthouse, Recorder of Deeds Office, 825 Philadelphia Street, Indiana, PA 15701. Please call or email Lori Jenkins (724-769-1023 or lorjenkins@pa.gov) to inquire about electronic application review options.

WASTE, AIR, RADIATION AND REMEDIATION

Notice of Public Hearing.

Northcentral Region: Waste Management Program, 208 W. 3rd Street, Suite 101, Williamsport, PA 17701-6448, 570-327-3636.

Contact: Lisa D. Houser, P.E., Environmental Program Manager, 570-327-3752.

The Pennsylvania Department of Environmental Protection (DEP) will host a public hearing to obtain public comments regarding 22 Transfer LLC's municipal waste application for a permit to construct the proposed Municipal Waste Transfer Station in Cooper Township, **Montour County**, PA. The hearing will be held Monday, June 15, 2026, from 6:00 p.m. until 8:00 p.m. at the Montour County Administration Center, 435 East Front Street, Danville, PA 17821.

The proposed site is located on a 47-acre parcel approximately three miles southwest of Bloomsburg located on the west side of Grovania Drive. The site is proposed to be used for a municipal waste transfer station, a recycling center, and maintenance and operation of a waste hauling operation. If granted, the transfer station would provide waste processing of approximately 500 tons per day.

Individuals may present up to three (3) minutes of oral testimony at the hearing. Comments must address the permit application submitted to DEP. Relinquishing of time to other speakers is prohibited. The testimony will be recorded by a court reporter and transcribed into a written document.

Those wishing to present comments at the hearing should register in advance with DEP by contacting Megan Lehman at meglehman@pa.gov or 570.327.3659, no later than 4:00 p.m. on June 12, 2026. Time permitting, those who did not register in advance but who register onsite prior to the start of the hearing will also be given the opportunity to testify. Individuals will be called to testify in the order they registered. The hearing may conclude earlier if all testifiers in attendance have spoken prior to the designated end time.

Written comments of any length may also be submitted to DEP by 4:00 p.m. on June 24, 2026. Comments should be mailed to Lisa Houser, P.E., DEP Waste Management Program, 208 West Third Street, Suite 101, Williamsport, PA 17701, or emailed to lhouser@pa.gov. All relevant comments, oral and written, that are submitted by the deadline will be given equal consideration by DEP during its review of the permit application. DEP will create a written response to all relevant comments provided at the hearing and in writing by the deadline.

The permit application is available for public review by DEP Northcentral Regional Office, 208 West Third Street, Suite 101, Williamsport, PA 17701. Please call 570.327.3636 to coordinate.

Persons with a disability who wish to attend the hearing and require auxiliary aid, service, or other accommodations to participate in the proceedings should contact Megan Lehman at meglehman@pa.gov or 570.327.3659, or through the Pennsylvania Hamilton Relay Service at 1.800.654.5984 (TDD), to discuss how the Department may accommodate their needs.

[Pa.B. Doc. No. 26-658. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Bid Opportunity

OOGM FS26-3, Cleaning Out and Plugging One Abandoned Gas Well, Moon Township, Allegheny County. The principal items of work and approximate quantities include the following: clean out and plug one abandoned gas well, estimated to be approximately 2,000 feet in depth, to Department of Environmental Protection (Department) specifications; prepare and restore well site; and mobilize and demobilize plugging equipment.

This bid issued on May 8, 2026, and bids will be opened on June 18, 2026, at 2 p.m. Bid documents may be downloaded for free beginning on the issue date from the Department by going to infotechinc.com/bidexpress/. A mandatory prebid conference is scheduled for May 13, 2026, at 10 a.m. at Robert Morris University, Parking Area on Colonial Way (next to the baseball field) and at coordinates 40.523194, -80.210583. Failure to attend the prebid conference will be cause for rejection of the bid. Contact the Construction Contracts Section at (717) 787-7820 or RA-ConstructionContr@pa.gov for more information on this bid. Note this is a Small Construction Business Program bid opportunity.

JESSICA SHIRLEY,
Secretary

[Pa.B. Doc. No. 26-659. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Bid Opportunity

OSM 61(0807,6967)101.1, Abandoned Mine Reclamation Project, Smith Corners, Clinton Township, Venango County. The principal items of work and approximate quantities include: implementation of the erosion and sediment pollution control plan—rock construction entrance, 3 each; implementation of the erosion and sediment pollution control plan—compost filter sock (32″ diameter), 4,650 linear feet; implementation of the erosion and sediment pollution control plan—weighted sediment filter tube, 145 linear feet; clearing and grubbing, 23.1 acres; grading—grading Area 1, 24,450 cubic yards; grading—grading Area 2, 141,209 cubic yards; grading—grading Area 3, 13,626 cubic yards; grading—

ripping, 15.2 acres; planting—planting preparation, 23.1 acres; planting—tree seedlings, 10,345 each; planting—grass seed, 240 pounds; subsurface drain, 1,990 linear feet; permanent channel excavation, 208 cubic yards; erosion matting, 767 square yards; selective grading, 200 acres; and implementation of the traffic control plan, 1 lump sum.

This bid issued on May 8, 2026, and bids will be opened on June 4, 2026, at 2 p.m. Bid documents, including drawings in PDF format and AutoCAD Map 3D format, may be downloaded for free beginning on the issue date from the Department of Environmental Protection by going to infotechinc.com/bidexpress/. This project is financed by the Federal government under the authority given it by the Surface Mining Control and Reclamation Act of 1977 (act) (30 U.S.C. §§ 1201—1328) and is subject to the act and to the Federal grant for this project. Contact the Construction Contracts Section at (717) 787-7820 or RA-ConstructionContr@pa.gov for more information on this bid.

JESSICA SHIRLEY,
Secretary

[Pa.B. Doc. No. 26-660. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Climate Change Advisory Committee Meeting Reschedule and Cancellation

The Climate Change Advisory Committee (Committee) meeting scheduled for June 23, 2026, is rescheduled for July 21, 2026, and the meeting scheduled for August 25, 2026, is cancelled. The next Committee meeting scheduled for Tuesday, July 21, 2026, will begin at 9 a.m. in Room 105, Rachel Carson State Office Building, 400 Market Street, Harrisburg, PA. Individuals may attend the meeting in person or remotely.

Information on how to join the meeting, as well as agenda and meeting materials, will be available on the Committee's webpage, found through the Public Participation tab on the Department of Environmental Protection's (Department) website at pa.gov/agencies/dep (select "Public Participation," then "Advisory Committees," then "Climate Change," then "Climate Change Advisory Committee").

Individuals are encouraged to visit the Committee's webpage to confirm meeting date, time and location prior to each meeting. Questions concerning the July 21, 2026, meeting can be directed to Lindsay Byron at lbyron@pa.gov or (717) 772-8951.

Persons in need of accommodations as provided for in the Americans with Disabilities Act of 1990 should contact the Department at (717) 772-5985, or through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users), or (800) 654-5988 (voice users) to discuss how the Department may accommodate their needs.

JESSICA SHIRLEY,
Secretary

[Pa.B. Doc. No. 26-661. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Interstate Pollution Transport Reduction: Final 2026 Ozone Season Nitrogen Oxide Emission Limits for Nonelectric Generating Units

The Department of Environmental Protection (Department) is providing notice for the final Nonelectric Generating Unit (non-EGU) 2026 Ozone Season (OS) Nitrogen Oxide (NO_x) emission limitations established under 25 Pa. Code § 145.8(d) (relating to transition to CAIR NO_x trading programs).

Notice of the proposed NO_x emission limitations was published at 56 Pa.B. 1358 (March 7, 2026) to allow for a 21-day public comment period, which closed on March 28, 2026. No comments were received.

Specifically, 25 Pa. Code § 145.8(d) establishes a non-EGU NO_x Trading Program budget of 3,619 tons of NO_x, less a specified adjustment amount, to serve as a Statewide OS NO_x emissions cap for new and existing non-EGUs. This NO_x emissions cap also applies to Clean Air Interstate Rule (CAIR) exempt EGUs that are subject to the NO_x Budget Trading Program. If the total emissions from all the units exceed the Statewide NO_x emission cap of 3,438 tons, the owners and operators of non-EGUs must comply with the NO_x emission limitations established under 25 Pa. Code § 145.8(d). The proposed NO_x emissions limitations for individual units ensure that non-EGUs in this Commonwealth continue to meet the emission limits of the NO_x Budget Trading Program.

The Statewide cap for 2025 was not exceeded. Therefore, the owners and operators of non-EGUs do not need to purchase allowances to meet their 2025 OS NO_x emission limitations established under 25 Pa. Code § 145.8(d). The NO_x emissions for the 2025 OS (May through September) reported to the United States Environmental Protection Agency (EPA) by the owners and operators of the affected non-EGUs are 576 tons. The Department's permanent retirement of 3,438 NO_x allowances under 25 Pa. Code § 145.8(b) covers all the NO_x emissions from the affected non-EGUs in 2025.

In addition to the 3,438-ton non-EGU cap previously described, 25 Pa. Code § 145.8(d)(12) provides 181 tons of NO_x emissions annually for non-EGUs and the other units that need to address their limits or emissions through accounting adjustments, including units that previously participated in the NO_x Budget Trading Program. The Department may use a portion of the 181 tons of the budgeted NO_x emissions, if necessary, to address rounding issues, mistakes or miscalculations. This year, the Department is not proposing to use any of the 181 tons of NO_x for accounting adjustments or to make corrections.

The "Final Non-EGU 2026 Ozone Season NO_x Emission Limits" in Table 1 lists the following: the 'facility name,' 'ORIS code,' the 'unit ID' for each non-EGU unit, the '2025 OS NO_x Mass' for the 2025 OS emissions, the '2025 OS heat input' for the 2025 OS, the 'county' location of the facility, the calculated '2026 rate,' and the '2026 OS limit.'

Questions concerning this notice should be directed to Joseph Martini at (717) 772-5619 or martjos@pa.gov. Persons with a disability may contact the Department through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD users) or (800) 654-5988 (voice users).

Table 1: Final Non-EGU 2026 OS NO_x Emission Limits

Facility Name	*ORIS Code*	*Unit ID*	*2025 OS NO_x Mass (tons)*	*2025 OS Heat Input (MMBtu)*	*County*	*2026 Rate (lbs/MMBtu)*	*2026 OS Limit (tons NO_x)*
AdvanSix Resins & Chemicals, LLC	880007	52	29.573	836,551.60	Philadelphia	0.36	149
Armagh Compressor Station	880071	31301			Indiana	0.36	0
Domtar Paper Company, LLC	54638	40	14.866	776,607.20	Elk	0.36	139
Domtar Paper Company, LLC	54638	41	16.349	856,001.10	Elk	0.36	153
Entriken Compressor Station	880072	31601			Huntingdon	0.36	0
ETMT Marcus Hook Terminal	880107	AB01	5.766	331,069.60	Warren	0.36	59
ETMT Marcus Hook Terminal	880107	AB03	4.71	426,724.10	Delaware	0.36	76
ETMT Marcus Hook Terminal	880107	AB04	3.684	220,487.70	Delaware	0.36	39
Merck & Company—West Point	52149	39	13.385	303,487.70	Montgomery	0.36	54
Merck & Company—West Point	52149	40	16.976	1,254,588	Montgomery	0.36	224
Pixelle Specialty Solutions	50397	36	135.548	957,853.50	York	0.36	171
Pixelle Specialty Solutions	50397	38	8.913	601,566	York	0.36	107
Pixelle Specialty Solutions	50397	39	9.955	602,840.70	York	0.36	108
Procter & Gamble Paper Products	50463	328001	97.41	1,742,605	Wyoming	0.36	311
Procter & Gamble Paper Products	50463	328002	5.995	1,485,605	Wyoming	0.36	265
Trainer Refinery	880025	34	1.209	550,550.30	Delaware	0.36	98
Trainer Refinery	880025	35	1.001	406,591.20	Delaware	0.36	73
Trainer Refinery	880025	53	1.428	685,424.10	Delaware	0.36	122
US Steel (Clairton Coke)	50729	CLBLR1	108.722	1,546,098	Allegheny	0.36	276
US Steel (Clairton Coke)	50729	CLBLR2	39.905	772,793.30	Allegheny	0.36	138
US Steel (Edgar Thomson)	50732	ETBLR1	18.877	1,605,824	Allegheny	0.36	287
US Steel (Edgar Thomson)	50732	ETBLR2	22.103	1,689,800	Allegheny	0.36	302
US Steel (Edgar Thomson)	50732	ETBLR3	19.144	1,492,821	Allegheny	0.36	267
Vicinity Energy Philadelphia—Edison Station	880006	1			Philadelphia	0.36	0
Vicinity Energy Philadelphia—Edison Station	880006	2			Philadelphia	0.36	0
Vicinity Energy Philadelphia—Edison Station	880006	3	0.132	2,120.20	Philadelphia	0.36	1
Vicinity Energy Philadelphia—Edison Station	880006	4	0.115	2,131.50	Philadelphia	0.36	1
Vicinity Energy Philadelphia—Schuylkill	50607	23			Philadelphia	0.36	0
Vicinity Energy Philadelphia—Schuylkill	50607	26			Philadelphia	0.36	0
Vicinity Energy Philadelphia—Schuylkill	50607	RSB1	0.222	39,729.43	Philadelphia	0.36	7
Vicinity Energy Philadelphia—Schuylkill	50607	RSB2	0.216	48,575.26	Philadelphia	0.36	9
Totals:			576	19,238,445			3,438

JESSICA SHIRLEY,
Secretary

[Pa.B. Doc. No. 26-662. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF ENVIRONMENTAL PROTECTION

Water Quality Certification under Section 401 of the Federal Clean Water Act for the Christopher M. Crane Clean Energy Center Restart

The Christopher M. Crane Clean Energy Center (Crane Clean Energy Center) is an existing nuclear-fueled pressurized water reactor electric power generating facility located on Three Mile Island in the Susquehanna River in Londonderry Township, Dauphin County. The Crane Clean Energy Center is owned and operated by Constellation Energy Generation, LLC (Constellation). Constellation has submitted a License Amendment Request to the United States Nuclear Regulatory Commission for a proposed recommissioning and restart of the facility.

Impacts to aquatic resources associated with resumed operation of the facility include water withdrawal from the Susquehanna River, consumptive use and the thermal impacts of the heated water discharges back to the Susquehanna River which has a designated use of Warm Water Fishes, Migratory Fishes. Water is proposed to be withdrawn at an amount up to 73.200 million gallons per day (MGD) (peak day) from the Susquehanna River, with a proposed consumptive use of up to 21.000 MGD. Impingement and entrainment effects on the migratory and resident fish as well as other aquatic species are anticipated to be minimized through the facilities continued operation and use of closed cycle cooling technologies. Discharge temperatures will be a maximum of 110°F. Additionally, operation, maintenance, repair and replacement of existing water obstructions and encroachments, such as existing bridges at the site, will continue to occur as necessary.

The Department of Environmental Protection (Department), by this notice, proposes to certify that the restart, operation and maintenance of the facility complies with the applicable provisions of sections 301—303, 306, 307 and 316 of The Federal Clean Water Act (33 U.S.C.A. §§ 1311—1313, 1316, 1317 and 1326) and appropriate requirements of State law. The Department further proposes to certify that the restart, operation and maintenance of the facility complies with applicable water quality standards in this Commonwealth and that the construction, operation and maintenance of the facility complies with water quality standards in this Commonwealth provided that the construction, operation and maintenance of the facility complies with the conditions proposed for this certification, including the criteria and conditions of the following:

1. *Discharge Permit*—Constellation shall obtain and comply with the Department National Pollutant Discharge Elimination System (NPDES) permit for the discharge of pollutants under Pennsylvania's Clean Streams Law (35 P.S. §§ 691.1—691.1001) and all applicable implementing regulations (25 Pa. Code Chapters 91, 92a, 93 and 96).

2. *Erosion and Sediment Control Permit*—Constellation shall obtain and comply with the Department's Chapter 102 Erosion and Sediment Control and NPDES Permit for Stormwater Discharges Associated with Construction Activity under Pennsylvania's Clean Streams Law and Storm Water Management Act (32 P.S. §§ 680.1—680.17) and all applicable implementing regulations (25 Pa. Code Chapters 92a and 102 (relating to National Pollutant Discharge Elimination System permitting, monitoring and compliance and erosion and sediment control)) for any earth disturbance activities that require this permit.

3. *Erosion and Sediment Control Plan*—Constellation shall develop an Erosion and Sediment Control Plan that is consistent with the requirements identified in 25 Pa. Code Chapter 102, for any proposed earth disturbance activities at the site which do not require a permit under Condition 2, as previously listed. Constellation shall obtain approval of the E&S Control Plans for the project from the Dauphin County Conservation District or the Department prior to the beginning of earth disturbance activities for the project. Constellation shall implement the approved Erosion and Sediment Control Plans and the best management practices to minimize the potential for accelerated erosion and sedimentation from the project and to protect, maintain, reclaim and restore water quality and the existing and designated uses of waters of this Commonwealth and comply with all applicable implementing regulations (25 Pa. Code Chapter 102) under Pennsylvania's Clean Streams Law.

4. *Water Obstruction and Encroachment Permits*—Constellation shall obtain and comply with the Department Chapter 105 Water Obstruction and Encroachment Permit or Dam Permit for the construction, operation and maintenance of all dams, water obstructions or encroachments associated with the project under The Pennsylvania's Clean Streams Law, Dam Safety and Encroachments Act (32 P.S. §§ 693.1—693.27) and Flood Plain Management Act (32 P.S. §§ 679.101—679.601) and all applicable implementing regulations (25 Pa. Code Chapters 93, 96, 105 and 106). Constellation shall implement the project in accordance with the information, plans and specifications included within water obstruction and encroachment permits and all applicable implementing regulations.

a. Within 12 months after issuance of this certification, Constellation shall obtain Chapter 105 (relating to dam safety and waterway management) authorizations for operation and maintenance of existing water obstructions or encroachments at the site which do not have an existing water obstruction or encroachment permit.

b. Constellation shall complete a wetland delineation for the entire project site by September 30, 2026.

5. *Impingement/Entrainment Monitoring*—Within 180 days after issuance of this certification, Constellation shall submit a plan for review and approval by the Department to conduct intake strainer/bar screen surveys to characterize the number and species diversity of any fish captured on the intake screens. Constellation shall implement the approved plan.

6. *Susquehanna River Basin Commission*—Constellation shall mitigate consumptive use as approved and conditioned by the Susquehanna River Basin Commission including any future amendments to that plan.

7. *Water Quality Monitoring*—The Department retains the right to specify additional studies or monitoring to ensure that the receiving water quality is not adversely impacted by any operational and construction process that may be employed by Constellation.

8. *Operation*—For the restart under this certification, Constellation shall at all times properly operate and maintain the Constellation facilities and systems of treatment and control (and related appurtenances) which are installed to achieve compliance with the terms and conditions of this Certification and all required permits. Proper operation and maintenance includes adequate

laboratory controls, appropriate quality assurance procedures, and the operation of backup or auxiliary facilities or similar systems installed by Constellation.

9. *Inspection*—The Crane Clean Energy Center, including all relevant records, are subject to inspection at reasonable hours and intervals by an authorized representative of the Department to determine compliance with this certification, including all required State water quality permits, conditions of this certification, appropriate requirements of State law and Pennsylvania's State Water Quality Standards. A copy of this certification shall be available for inspection by the Department or an authorized representative thereof, during inspections of the Crane Clean Energy Center facility.

10. *Transfer of Projects*—If Constellation intends to transfer any legal or equitable interest in the Crane Clean Energy Center, they shall serve a copy of this certification upon the prospective transferee of the legal and equitable interest at least 30 days prior to the contemplated transfer and shall simultaneously inform the Department Regional Office of this intent. Notice to the Department shall include a transfer agreement signed by the existing and new owner containing a specific date for transfer of certification responsibility, permits, coverage and liability between them.

11. *Correspondence*—Correspondences with and submittals to the Department concerning this certification shall be addressed to:

Department of Environmental Protection
Southcentral Regional Office
Waterways and Wetlands Program Manager
909 Elmerton Avenue
Harrisburg, PA 17110-8200

12. *Reservation of Rights*—The Department may suspend or revoke this certification if it determines that Constellation has not complied with the terms and conditions of this certification. The Department may require additional measures to achieve compliance with applicable law, subject to Constellation's applicable procedural and substantive rights.

13. *Other Laws*—Nothing in this certification shall be construed to preclude the institution of any legal action or relieve Constellation from any responsibilities, liabilities, or penalties established under any applicable Federal or State law or regulation.

14. *Severability*—The provisions of this certification are severable and should any provision of this certification be declared invalid or unenforceable, the remainder of the certification shall not be affected thereby.

15. *Time Period*—This certification shall remain in effect during the term established by the Nuclear Regulatory Commission (NRC) in the License Amendment for the restart of the facility as Crane Clean Energy Center, and as long as Constellation remains in compliance with this Certification and all applicable State water quality permits, and as long as Constellation operates the facility at its current energy generation rating, and does not significantly modify operations that may change the nature or characteristics of discharges from the facility or otherwise impact water quality standards from the facility's operation, and as long as the Department has not exercised its rights of paragraph 7 of this Certification herein.

In the event Constellation seeks renewal of their NRC license related to operation of the facility, seeks an energy generation uprate from the NRC, proposes facility changes that significantly modify operations that may change the nature or characteristics of discharges from the facility or otherwise impacts water quality standards from the facility's operation, or terminates operation as an energy generation facility and seeks to recommission and restart energy generation, Constellation shall request a new water quality certification from the Department.

Constellation's request to the Department for Water Quality Certification, File No. WQC2203225-001 can be reviewed on the Department's website for the Southcentral Regional Office on the Community Information Page for the Crane Clean Energy Center Project. Constellations Certification request to the Department can also be reviewed at the Department Southcentral Regional Office (SCRO), located at the previously listed address. Contact the Department SCRO file room at (717) 705-4732 to schedule a review of this file.

Prior to final action on the proposed section 401 Water Quality Certification, consideration will be given to any comments, suggestions or objections which are submitted in writing within 30 days of this notice. Comments concerning the proposed section 401 Water Quality Certification should be directed to the Department Southcentral Region Waterways and Wetlands Program Manager at the previously listed address, RA-EPWW-SCRO@pa.gov or through the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TDD). Comments must be submitted in writing and contain the name, address, email address and telephone number of the person commenting and a concise statement of comments, objections or suggestions on this proposal. Comments submitted by facsimile or left by voice mail will not be accepted. The Department will consider all relevant and timely comments received. Comments must be submitted within 30 days of this notice.

JESSICA SHIRLEY,
Secretary

[Pa.B. Doc. No. 26-663. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF GENERAL SERVICES

Exempt Machinery and Equipment Steel Products

The Department of General Services (Department) has reviewed all comments and supporting documentation received prior to the end of the 30-day comment period and presents here its annual list of exempt machinery and equipment steel products. Contractors, subcontractors, suppliers, bidders, offerors and public agencies may rely on the list of exempt steel products in preparing bids and contracts for any project that is subject to the Steel Products Procurement Act (act) (73 P.S. §§ 1881—1889).

Under the Department's Statement of Policy and the act, the Department will not make any changes to this list during the calendar year for which it was created. In early 2027, the Department will identify, from ST-4 waivers approved in Calendar Year 2026, specific machinery and equipment steel products that have been recognized as not being produced in the United States in sufficient quantities to meet the 2026 contract requirements. Those items will be added to the following list and the resultant list will be published in the *Pennsylvania Bulletin* for a 30-day public comment period at that time.

Exempt Machinery and Equipment Steel Products

Air Conditioning Units
Air Duct Housing with Sample Tubes
Air Handling Units
Anchor Bolt
Audio RA Station
Annunciator Panel
AV Rack Kit
Back Box
Backflow Preventer
Battery Cabinet
Blank Filler Plate for Fiber (for rackmount and wall mount enclosures)
Blank Metal Door
Blank Plate for Outer Door
Bottom Dead Front Panel
Bridge for Cameras
Cabinet
Cardcage
Cast Iron Inverted Bucket Traps
Cast Steel Gate Valve
CCTV Power Supply
Ceiling Flange
Central Control Unit
Centrifugal Pumps
Channel Video
Circulating Pump
Closers
Color Monitor
Combination Round Head Steel Zinc-Plated Toggle Bolts
Condensing Boilers
Conduit Fittings
Control Module Plate
Control Panel
Control Valve
Data Converter Unit
Deck Inserts
Deck and Rub Rail Fasteners
Digital Communicators
Digital Record
Door Protection
Door Trim/Handles
Drinking Fountain
Drip Pan ELL
Drop-In Anchors
Dry Tape Transformer
Drywall Screws
Dual Interface Module
Duct Detector with Relay
Duct Housing
Ductless Split System
DVR Rack
Electric Traction Elevators
Electric Water Cooler
Electronically Operable Panel Partitions
Elevator Controller
Elevator Hoistway
Encl. for Annunciator
Exit Devices
Exp Cage
Fence System Nuts and Bolts
Fire Alarm NAC Extender
Fire Alarm Peripherals
Flexible Drops
Full Blank Plate
Galvanized Carriage Bolts
Garage Door Tracking
Gas Furnace
Gas Piping Butt Weld Tees
Generator
Globe Valve (Steam)
Hand Dryer
Hanger Mounting Plates
Hangermates
Hangers Supports
Horn/Strobe
Inclined Platform Wheelchair Lifts
Inner and Outer Door
Inner Door Blank Plate
Interface Module
Lag Bolts
Large Remote Cab
Lighting Fixtures, Interior/Recessed
Lighting Fixtures, Surface Wrap
Lighting Fixtures, Track Head
Lock Cylinders
Locknuts
Locksets
Low Temp. Detection Thermostats
Lubrication Unit
Machine Screws
Main Control Board
Metal Lockers
Manual Pull Station
Med. Enclosure
Middle Dead Front
Mini-Interface Module
Monitor Mount
Monitor Wall Brk
Mounting Plate
Network Fiber Switch
Overhead Door
Overhead Stops
Patient Wandering Alarm
Pipe Clamps
Pivots
Power Supply
Pull Station Box
RA Annunciator Panel
Rack Mount Card Cage
Rack Mount Kit
Radiant Panels
Reader Interface
Relay Module
Remote Chiller
Roof Drains Rings and Strainers (New)
Round Head Machine Screw
Safety Relief Valve
Sampling Tube
Security Panel
Security Unit
Security/CCTV Camera Housing
Self-Turn/Self Tapping Screw
Shower/Eye Washers
Signal Extender Module
Single Blank
Smoke Detector Wire
Speaker
Speaker/Strobe
Split HVAC System
Split Ring Hangers
Split Rings
Split System Air Conditioning
SSD-C Remote Display with Control
SSD-C-REM Rem Display
Stainless Flat Bars
Stainless Steel Cable
Strobe
Submersible Pump
Sump Pump

Surface Mount Speaker
Surface Station Box
Surge Arrester
Surge Protector
T8 Light Troffer
Tamper Proof Screws and Nuts
Threaded Rod Hanger
Tie Wire 21 Gauge
Tie Wire Anchor
Toggle Wing
Transformer
Tube Steel (New)
Turbine Pumps
Uninterruptible Power Supply
VRV Fan Coils/Cond. Units
Wall Mounted Boiler
Wall Mounted Fountain
Water Coolers
Water Fountain Mounting Frame
Water Heater
Wing Toggle

REGGIE McNEIL,
Secretary

[Pa.B. Doc. No. 26-664. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF HEALTH

Ambulatory Surgical Facilities; Requests for Exceptions

The following ambulatory surgical facilities (ASF) have filed requests for exceptions under 28 Pa. Code § 51.33 (relating to requests for exceptions) with the Department of Health (Department), which has authority to license ASFs under the Health Care Facilities Act (35 P.S. §§ 448.101—448.904b). The following requests for exceptions relate to regulations governing ASF licensure in 28 Pa. Code Chapters 29, 51 and 551—571 (relating to miscellaneous health provisions; general information; and ambulatory surgical facilities).

Facility Name	*Regulation section and relating to*
Cardiovascular Experts, LLC	28 Pa. Code § 569.35(7) (relating to general safety precautions)
Delaware County Women's Center, Inc.	28 Pa. Code § 29.33(6) (relating to requirements for abortion)
Nera Pain Center at Montage	28 Pa. Code § 569.35(7)
Philadelphia Women's Center, Inc.	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—Allentown	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—Bensalem	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—Harrisburg	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—Lancaster	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—Reading	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—Wilkes-Barre	28 Pa. Code § 29.33(6)
Planned Parenthood Keystone—York	28 Pa. Code § 29.33(6)

The following ASF has filed a request for exception under 28 Pa. Code § 571.1 (relating to minimum standards). Requests for exceptions under this section relate to *Guidelines for Design and Construction of Hospitals and of Outpatient Facilities*, as published by the Facility Guidelines Institute (FGI *Guidelines*). The following list includes the citation to the section of the FGI *Guidelines* for which the hospital is seeking an exception and the year of publication.

Facility Name	*Guidelines section and relating to*	*Yr*[1,2]
OSS Health Ambulatory Surgery Center	2.1-3.2.4.2(1)(c) space requirements	22-O

[1] *2018 Year FGI Regulations for Outpatient Facilities are indicated by "-O."*

[2] *2022 Year FGI Regulations for Outpatient Facilities are indicated by "-O."*

The previously listed requests are on file with the Department. Persons may receive a copy of a request for exception by requesting a copy from the Department of Health, Division of Acute and Ambulatory Care, CoPA HUB, 2525 North 7th Street, Suite 210, Harrisburg, PA 17110, (717) 783-8980, ra-paexcept@pa.gov. Persons who wish to comment on an exception request may do so by sending a letter by mail, email or phoning the Division at the previously listed contact information. Comments received by the Department within 14 days after the date of publication of this notice will be reviewed by the Department before it decides whether to approve or disapprove the request for exception.

Persons with a disability who wish to obtain a copy of a request and/or provide comments to the Department and require an auxiliary aid, service or other accommodation to do so should contact the Director, Division of Acute and Ambulatory Care at (717) 783-8980, or for persons who need assistance with speech and/or deaf or hard of hearing persons, call the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TTY users) or (800) 654-5988 (voice users).

DR. DEBRA L. BOGEN,
Secretary

[Pa.B. Doc. No. 26-665. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF HEALTH

Decisions on Requests for Exceptions to Health Care Facility Regulations

Under 28 Pa. Code § 51.33 (relating to requests for exceptions), effective June 6, 1998, the Department of Health (Department) has published in the *Pennsylvania Bulletin* all requests by entities licensed under the Health Care Facilities Act (35 P.S. §§ 448.101—448.904b), for exceptions to regulations contained in 28 Pa. Code Part IV Subparts B—G.

Section 51.33(d) of 28 Pa. Code provides that the Department will publish notice of all approved exceptions on a periodic basis. The Department has determined that it will publish notice of all exceptions, both approved and denied. The following list contains the decisions made on exception requests from March 1, 2026, through April 30, 2026. Future publications of decisions on exception requests will appear on a monthly basis.

Requests for additional information on the exception request and the Department's decision should be made to the relevant division of the Department. Inquiries regarding hospitals, abortion facilities and ambulatory surgical facilities shall be addressed to Garrison E. Gladfelter, Jr., Director, Division of Acute and Ambulatory Care, CoPA HUB, 2525 North 7th Street, Suite 210, Harrisburg, PA 17110, (717) 783-8980. Inquiries regarding long-term care facilities shall be addressed to Susan Williamson, Director, Division of Nursing Care Facilities, CoPA HUB, Suite 210, 2525 North 7th Street, Harrisburg, PA 17110, (717) 787-1816.

Ambulatory Surgical Facilities

Facility Name	*Regulation and relating to*	*Dec. Date*	*Decision*
Christianacare Surgery Center at Havertown	28 Pa. Code § 571.1 (relating to minimum standards); 2.1-7.2.3.1(6)(a)(i) and (viii) flooring and wall bases	04/21/2026	Granted
New Britain Surgery Center, LLC	28 Pa. Code § 571.1; 2.1-3.2.4.2(1)(c) space requirements	04/13/2026	Rejected
Plaza Surgical Center, Inc.	28 Pa. Code § 555.31(a) (relating to principle)	04/14/2026	Denied
Susquehanna Valley Surgery Center	28 Pa. Code § 555.32(a) (relating to administration of anesthesia)	03/30/2026	Granted w/conditions
UPMC Altoona Surgery Center	28 Pa. Code § 555.32(a)	04/10/2026	Granted w/conditions
UPMC Community Surgery Center	28 Pa. Code § 555.32(a)	03/30/2026	Granted w/conditions
UPMC Saint Margaret Harmar Outpatient Center	28 Pa. Code § 555.32(a)	03/30/2026	Granted w/conditions
UPMC South Surgery Center	28 Pa. Code § 555.32(a)	03/30/2026	Granted w/conditions
UPMC Specialty Care York Endoscopy	28 Pa. Code § 555.32(a)	04/10/2026	Granted w/conditions
UPMC Surgery Center	28 Pa. Code § 555.32(a)	03/30/2026	Granted w/conditions
UPMC Surgery Center Lewisburg	28 Pa. Code § 555.32(a)	03/30/2026	Granted w/conditions
UPMC West Mifflin Surgery Center	28 Pa. Code § 555.32(a)	03/30/2026	Granted w/conditions

Hospitals

Facility Name	*Regulation and relating to*	*Dec. Date*	*Decision*
The Children's Hospital of Philadelphia	28 Pa. Code § 101.31(5) (relating to hospital requirements)	03/30/2026	Granted
	28 Pa. Code § 103.4(1) (relating to functions)	03/30/2026	Granted
The Lancaster General Hospital	28 Pa. Code § 153.1(a); 2.1-3.5.2.2(1)(b)(i) space requirements	03/30/2026	Granted
	28 Pa. Code § 153.1(a); 2.1-3.5.2.4(1)(a)(i) and (ii) other design elements	03/30/2026	Granted Temporary
	28 Pa. Code § 153.1(a); 2.1-3.5.2.4(1)(b)(i) and (ii)	03/30/2026	Granted Temporary
	28 Pa. Code § 153.1(a); 2.1-3.5.2.4(2)(a)—(c)	03/30/2026	Granted w/Conditions
	28 Pa. Code § 153.1(a); 2.1-3.5.7.3(6)(c) positron emission tomography (PET) facilities	03/30/2026	Granted w/Conditions

Facility Name	*Regulation and relating to*	*Dec. Date*	*Decision*
	28 Pa. Code § 153.1(a); 2.1-3.5.8.15(1) pre- and post-procedure patient care area	03/30/2026	Granted w/Conditions
	28 Pa. Code § 153.1(a); 2.1-3.5.8.15(1)	03/30/2026	Granted w/Conditions
	28 Pa. Code § 153.1(a); 2.1-3.5.9.2(1) staff toilet room	03/30/2026	Granted w/Conditions
	28 Pa. Code § 153.1(a); 2.1-3.5.9.4(1) staff changing area	03/30/2026	Granted
	28 Pa. Code § 153.1(a) (relating to minimum standards); 2.1-3.5.10.4(1)(a)—(c) patient waiting room or area	03/30/2026	Granted Temporary
	28 Pa. Code § 153.1(a); 2.1-6.2.3.3(1) and (2) public toilet room	03/30/2026	Granted Temporary
	28 Pa. Code § 153.1(a); 2.1-8.2.1.3 general	03/30/2026	Granted Temporary
Lower Bucks Hospital	28 Pa. Code § 107.61 (relating to written orders)	03/30/2026	Granted w/Conditions
Meadville Medical Center	28 Pa. Code § 153.1(a); 2.1-3.7.2.2(2)(b)(i) space requirements	04/23/2026	Rejected
Regional Hospital of Scranton	28 Pa. Code § 103.31 (relating to the chief executive officer)	04/21/2026	Denied
Saint Mary Medical Center	28 Pa. Code § 153.1(a); 2.2-3.4.3.2(2)(a)(ii) space requirements	03/30/2026	Granted
UPMC Memorial	28 Pa. Code § 138.18(b) (relating to EPS studies)	03/30/2026	Granted w/Conditions
UPMC Passavant	28 Pa. Code § 153.1(a); 2.2-3.5.2.5(1)(c) system component room	03/30/2026	Granted
Wilkes-Barre General Hospital	28 Pa. Code § 103.31	03/30/2026	Denied

Nursing Care Facilities

Facility Name	*Regulation and relating to*	*Dec. Date*	*Decision*
Messiah Lifeways at Messiah Village	28 Pa. Code § 204.3(b) and (c) (relating to buildings and grounds; general)	04/13/2026	Granted

Persons with a disability who require an alternative format of this notice (for example, large print, audiotape, Braille) should contact the Division of Acute and Ambulatory Care or the Division of Nursing Care Facilities at the previously referenced address or telephone number, or for persons who need assistance with speech and/or deaf or hard of hearing persons, call the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TTY users) or (800) 654-5988 (voice users).

DR. DEBRA L. BOGEN,
Secretary

[Pa.B. Doc. No. 26-666. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF HEALTH

Hospitals; Requests for Exceptions

The following hospitals have filed requests for exceptions under 28 Pa. Code § 51.33 (relating to requests for exceptions) with the Department of Health (Department), which has authority to license hospitals under the Health Care Facilities Act (35 P.S. §§ 448.101—448.904b). The following requests for exceptions relate to regulations governing hospital licensure in 28 Pa. Code Chapters 51 and 101—158 (relating to general information; and general and special hospitals).

Facility Name	*Regulation and relating to*
AHN Wexford Hospital	28 Pa. Code § 103.31 (relating to the chief executive officer)
Barnes-Kasson County Hospital	28 Pa. Code § 117.14(c) (relating to required minimal services)
Grove City Hospital	28 Pa. Code § 103.31

Facility Name	*Regulation and relating to*
Penn State Health Hampden Medical Center	28 Pa. Code § 103.31
	28 Pa. Code § 107.64 (relating to administration of drugs)
	28 Pa. Code § 109.2(b) (relating to director of nursing services)
Penn State Health Holy Spirit Medical Center	28 Pa. Code § 103.31
	28 Pa. Code § 107.64
	28 Pa. Code § 109.2(b)
UPMC Altoona	28 Pa. Code § 51.23 (relating to positron emission tomography)

The following hospitals have filed requests for exceptions under 28 Pa. Code § 153.1 (relating to minimum standards). Requests for exceptions under this section relate to minimum standards that hospitals must comply with under the *Guidelines for Design and Construction of Hospitals—2018 Edition, Guidelines for Design and Construction of Outpatient Facilities—2018 Edition* or the *Guidelines for Design and Construction of Hospitals—2022 Edition, Guidelines for Design and Construction of Outpatient Facilities—2022 Edition.* The following list includes the citation to the section under the *Guidelines* that the hospital is seeking an exception.

Facility Name	*FGI Guidelines Section and relating to*	*Yr*[1,2]
The Children's Home of Pittsburgh	2.2-2.12.2.1(1) capacity	22
Saint Clair Hospital	2.2-3.6.2.3(1)(a) support area for the external beam radiation therapy suite	22
Titusville Area Hospital	2.1-3.8.8.1(1)(b) general	22-O
	2.1-3.8.8.2(1)(a)(iii) and (v) work areas for preparing, dispensing and administering medications	22-O
	2.1-7.2.2.1(1) and (2) corridor width	22-O
Uniontown Hospital	2.13-1.1.1.1(2) temporary basis	22-O
UPMC Altoona	2.7-1.3.3.2(3) unit Access from the site	22
UPMC Magee-Womens Hospital	2.1-7.2.2.1(1) and (2) corridor width	22-O
Wellspan York Hospital	2.1-3.8.7.2(1) design requirements	22-O
	2.1-3.8.7.2(1) and (2)	22-O
	2.6-3.1.2.2(1)(a)—(c) space requirements	22-O

[1] *2018 Year FGI Regulations for Outpatient Facilities are indicated by "-O."*

[2] *2022 Year FGI Regulations for Outpatient Facilities are indicated by "-O."*

The previously listed requests are on file with the Department. Persons may receive a copy of a request for exception by requesting a copy from the Department of Health, Division of Acute and Ambulatory Care, CoPA HUB, 2525 North 7th Street, Suite 210, Harrisburg, PA 17110, (717) 783-8980, ra-paexcept@pa.gov. Persons who wish to comment on an exception request may do so by sending a letter by mail, email or phoning the Division at the previously listed contact information. Comments received by the Department within 14 days after the date of publication of this notice will be reviewed by the Department before it decides whether to approve or disapprove the request for exception.

Persons with a disability who wish to obtain a copy of a request and/or provide comments to the Department and require an auxiliary aid, service or other accommodation to do so should contact the Director, Division of Acute and Ambulatory Care at (717) 783-8980, or for persons who need assistance with speech and/or deaf or hard of hearing persons, call the Pennsylvania Hamilton Relay Service at (800) 654-5984 (TTY users) or (800) 654-5988 (voice users).

DR. DEBRA L. BOGEN,
Secretary

[Pa.B. Doc. No. 26-667. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF HUMAN SERVICES

Payments to Nonpublic and County Nursing Facilities; Final Rates for State Fiscal Year 2025-2026

This notice announces the Department of Human Services (Department) final annual case-mix per diem payment rates for State Fiscal Year (SFY) 2025-2026 for nonpublic and county nursing facilities that participate in the Medical Assistance (MA) Program.

Nonpublic Nursing Facility Per Diem Rates

As required by the case-mix payment methodology in 55 Pa. Code, Chapter 1187, Subchapter G (relating to rate setting), the Department sets an annual MA per diem rate for each nonpublic nursing facility provider. Each facility's annual per diem rate comprises of four components: resident care, other resident related, administrative and capital. For each quarter of SFY 2025-2026, the Department will adjust the resident care component of each facility's rate by multiplying the resident care component by the facility's MA case-mix index for the appropriate picture date.

The Centers for Medicare & Medicaid Services (CMS) approved State Plan Amendment (SPA) 22-0023 on November 23, 2022, which includes the budget adjustment factor (BAF) formula the Department will use for nonpublic nursing facilities in SFY 2025-2026.[1] SPA 22-0023 provides that the BAF will limit the estimated Statewide day-weighted average payment rate for MA nursing facility services for county and nonpublic nursing facilities so that the average payment rate in effect for the fiscal year is limited to the amount permitted by the funds appropriated by the General Appropriations Act for the fiscal year. For SFY 2025-2026, the Department will calculate a BAF for nonpublic nursing facilities for each rate quarter. The formula the Department uses to determine the quarterly BAF equals the annual target rate divided by the weighted average quarterly rate at 100%. If the quarterly BAF as calculated is greater than 1.0, the quarterly BAF will equal 1.0. The quarterly BAF for each calendar quarter will be in the rate file that will be posted on the Department's website.

County Nursing Facility Per Diem Rates

As required by the rate methodology in 55 Pa. Code, Chapter 1189, Subchapter D (relating to rate setting), the Department sets an annual MA per diem rate for each county nursing facility provider. As specified in 55 Pa. Code § 1189.91(b) (relating to per diem rates for county nursing facilities), for each rate year beginning on or after July 1, 2007, the per diem rate paid to a county nursing facility for a rate year will be the facility's prior rate year per diem multiplied by a BAF.

In addition, as required by 55 Pa. Code § 1189.91(d), the Department will use the formula set forth in the Commonwealth's approved State Plan to determine the BAF for county nursing facilities. CMS approved SPA 22-0024 on November 23, 2022, which includes the BAF formula the Department will use for county nursing facilities in SFY 2025-2026.

SPA 22-0024 provides that for rate setting year 2025-2026, the BAF shall limit the estimated Statewide day-weighted average payment rate for MA nursing facility services for county and nonpublic nursing facilities so that the average payment rate is limited to the amount permitted by the funds appropriated by the General Appropriation Act of 2024.[2] The BAF as it applies to county nursing facilities is 1.0.

The final annual per diem rates for SFY 2025-2026 rate year are available on the Department's website at https://www.dhs.pa.gov/providers/Providers/Pages/Rates-Nursing%20Facilites.aspx and at local county assistance offices throughout this Commonwealth.

Public Process

The Department published the notice, Payments to Nonpublic and County Nursing Facilities; Proposed Rates for State Fiscal Year 2025-2026, at 55 Pa.B. 4303 (June 21, 2025) announcing the proposed annual per diem rates for nonpublic and county nursing facilities for SFY 2025-2026. The notice invited public comments. No public comments were received.

Appeals

Following publication of this notice, the Department will send rate letters to each MA nursing facility to notify the facilities of their final rates for SFY 2025-2026. The rate letter will also advise each facility that it may file an administrative appeal if the facility believes that the Department made any errors or otherwise disagrees with its final rates for SFY 2025-2026. A provider's appeal must be in writing and filed with the Department's Bureau of Hearings and Appeals, 2330 Vartan Way, Second Floor, Harrisburg, PA 17110-9721, within 33 days of the date of the Department's letter notifying the facility of its final rates. Facilities should refer to 67 Pa.C.S. Chapter 11 (relating to Medical Assistance hearings and appeals), and to the Department's regulations in 55 Pa. Code Chapter 41 (relating to Medical Assistance provider appeal procedures), for more detail regarding their appeal rights and the requirements related to written appeals.

Fiscal Impact

There is no fiscal impact associated with this change.

Public Comment

Interested persons are invited to submit written comments regarding this notice to the Department of Human Services, Office of Long-Term Living, Bureau of Policy Development and Communications Management, Attention: Benjamin Spager, P.O. Box 8025, Harrisburg, PA 17105-8025, RA-PWOLTLNFPUBLICCOM@pa.gov. Comments received within 30 days will be reviewed and considered for any subsequent revision of the notice.

Persons with a disability who require an auxiliary aid or service may submit comments using the Pennsylvania Hamilton Relay Service by dialing 711 or by using one of the following toll-free numbers: (800) 654-5984 (TDD users), (800) 654-5988 (voice users), (844) 308-9292 (Speech-to-Speech) or (844) 308-9291 (Spanish).

VALERIE A. ARKOOSH,
Secretary

Fiscal Note: 14-NOT-1723. No fiscal impact; recommends adoption.

[Pa.B. Doc. No. 26-668. Filed for public inspection May 8, 2026, 9:00 a.m.]

[1] SPA 22-0023 approved the continued use of the BAF for nonpublic nursing facility payment rates for the 2022-2023 through 2025-2026 rate years.

[2] SPA 22-0024 approved the continued use of the BAF for county nursing facility payment rates for the 2022-2023 through 2025-2026 rate years.

DEPARTMENT OF HUMAN SERVICES

Peer Groups, Peer Group Medians and Peer Group Prices for Nonpublic Nursing Facilities Including Hospital-Based Nursing Facilities and Special Rehabilitation Facilities for State Fiscal Year 2025-2026

The purpose of this notice is to announce the Department of Human Services' (Department) peer groups, peer group medians and peer group prices for nonpublic nursing facilities including hospital-based nursing facilities and special rehabilitation facilities (SRF) codified in 55 Pa. Code Chapter 1187, Appendix B (relating to medians and prices for 2024-2025) under 55 Pa. Code § 1187.95(a)(4) (relating to general principles for rate and price setting). The Department used the peer groups, peer group medians and peer group prices to determine case-mix rates for nonpublic nursing facilities for State Fiscal Year (SFY) July 1, 2025, through June 30, 2026. The Department calculated the peer groups, peer group medians and peer group prices announced in this notice in accordance with 55 Pa. Code Chapter 1187 (relating to nursing facility services). The data that the Department

used to determine the peer group medians and prices is available on the Department's website at pa.gov/agencies/dhs/resources/for-providers/ltc-providers/long-term-nursing-facilities.

To establish the database for the calculation of peer group medians and prices, the Department used each nursing facility's three most recent audited cost reports that were issued by the Department on or before March 31, 2025, and indexed the costs for each report forward to the common date of December 31, 2025, using the Centers for Medicare & Medicaid Services' Nursing Home Without Capital Market Basket Index. The following is a listing, by group, of the number of nursing facilities with a particular year-end and the inflation factor used to roll the costs of each facility forward to the common date of December 31, 2025.

Special Rehab Facilities

Facility Year End	*Number of Facilities**	*Inflation Factor*
December 31, 2019	1	1.2921
December 31, 2020	3	1.2500
June 30, 2021	6	1.2234
December 31, 2021	3	1.1856
June 30, 2022	6	1.3860
December 31, 2022	2	1.0580

Hospital-Based Nursing Facilities

Facility Year End	*Number of Facilities**	*Inflation Factor*
June 30, 2020	2	1.2778
June 30, 2021	8	1.2234
June 30, 2022	10	1.3860
June 30, 2023	10	1.0849

Nonpublic Nursing Facilities (other than hospital-based and special rehabilitation facilities)

Facility Year End	*Number of Facilities**	*Inflation Factor*
June 30, 2018	1	1.3372
December 31, 2018	2	1.3218
June 30, 2019	7	1.3068
December 31, 2019	47	1.2921
June 30, 2020	40	1.2778
December 31, 2020	349	1.2500
June 30, 2021	196	1.2234
December 31, 2021	349	1.1856
June 30, 2022	187	1.1386
December 31, 2022	348	1.1058
June 30, 2023	195	1.0849

*As a result of using the three most recent audited cost reports as of March 31, 2025, the "Number of Facilities" column reflects a number in excess of actual enrolled nursing facilities.

After the database was inflated using the inflation values, the Department grouped the facilities in the correct geographic and bed size groupings. In accordance with 55 Pa. Code § 1187.94 (relating to peer grouping for price setting), to establish peer groups, the Department used the Metropolitan Statistical Areas (MSA) group classification published in the Federal Office of Management and Budget Bulletin No. 99-04, regarding revised statistical definitions of Metropolitan Areas and guidance on uses of Metropolitan Area definitions, to classify each nursing facility into one of three MSA groups or one non-MSA group. The Department then used the bed complement of the nursing facility on the final day of the reporting period of the most recent audited MA-11 in the Nursing Information System database to classify nursing facilities into one of three bed complement groups. These groups are 3—119 beds, 120—269 beds, and 270 beds and over. Peer groups 7 and 10 have been collapsed in accordance with 55 Pa. Code § 1187.94(1)(iv). Peer group 13 is designated for SRFs only and peer group 14 is designated for hospital-based nursing facilities only, regardless of geographic location or bed-size.

After the database was established and the peer groups determined, the Department calculated the medians and prices for each peer group. For peer group 13, the Department arrayed the SRFs classified on or before July 1, 2000, to set the peer group median and prices for those facilities. The Department arrayed any SRFs classified after July 1, 2000, with all other SRFs to set their peer group medians and prices.

To calculate the resident care cost medians, the Department divided the inflated audited allowable resident care costs for each cost report by the total facility case-mix index from the available February 1 picture date closest to the midpoint of the cost report period to obtain case-mix neutral total resident care cost for the cost report year. The Department then divided the case-mix neutral total resident care cost for each cost report by the total audited actual resident days for the cost report year to obtain the case-mix neutral resident care cost per diem for the cost report year. The Department calculated the 3-year arithmetic mean of the case-mix neutral resident care cost per diem for each nursing facility to obtain the average case-mix neutral resident care cost per diem of each facility. The Department arrayed the average case-mix neutral resident care cost per diem for each nursing facility within the respective peer groups and determined a median for each peer group.

To calculate the other resident related cost medians, the Department first divided the inflated audited allowable other resident related costs for each cost report by the total audited actual resident days for the cost report year to obtain the other resident related cost per diem for the cost report year. The Department calculated the three-year arithmetic mean of the other resident related cost for each nursing facility to obtain the average other resident related cost per diem of each facility. The Department arrayed the average other resident related cost per diem for each nursing facility within the respective peer groups and determined a median for each peer group.

To calculate the administrative cost medians, the Department adjusted, as appropriate, the total audited actual resident days for each cost report to a minimum 90% occupancy in accordance with 55 Pa. Code § 1187.23 (relating to nursing facility incentives and adjustments). The Department then divided the inflated audited allowable administrative cost for each cost report by the total audited actual resident days, adjusted to 90% occupancy, if applicable, to obtain the administrative cost per diem for the cost report year. The Department calculated the three-year arithmetic mean of the administrative cost for

each nursing facility to obtain the average administrative cost per diem of each facility. The Department arrayed the average administrative cost per diem for each nursing facility within the respective peer groups to determine a median for each peer group.

After the medians were determined for each peer group, the Department set prices using the medians. To set peer group prices, the Department multiplied the resident care cost median of each peer group by 1.17 to obtain the resident care cost peer group price; multiplied the other resident related cost median of each peer group by 1.12 to obtain the other resident related peer group price; and multiplied the administrative cost median of each peer group by 1.04 to obtain the administrative cost peer group price.

The peer groups, peer group medians and peer group prices for nonpublic nursing facilities including hospital-based and SRFs are in the list of Medians and Prices for 2025-2026.

A Medical Assistance nursing facility provider may file an administrative appeal if the facility believes that the Department made any errors, or the provider otherwise disagrees with the peer group prices that the Department established for its peer group. A provider's appeal must be in writing and filed with the Department's Bureau of Hearings and Appeals, 2330 Vartan Way, Second Floor, Harrisburg, PA 17110-9721, within 30 days of the date of this notice. If a provider chooses to appeal, the provider will be afforded the opportunity for a de novo hearing before the Bureau of Hearings and Appeals. The peer group prices applied in setting the facility's rates may be changed as a result of the final adjudication of the facility's peer group price appeal. Facilities should refer to 67 Pa.C.S. Chapter 11 (relating to Medical Assistance hearings and appeals), and to the Department's regulations in 55 Pa. Code Chapter 41 (relating to Medical Assistance provider appeal procedures), for more detail regarding their appeal rights and the requirements related to their written appeals.

Fiscal Impact

There is no fiscal impact associated with this change in SFY 2025-2026.

Public Comment

Interested persons are invited to submit written comments regarding these peer groups, peer group medians and peer group prices to the Department of Human Services, Office of Long-Term Living, Bureau of Policy Development and Communications Management, Attention: Benjamin Spager, P.O. Box 8025, Harrisburg, PA 17105-8025, RA-PWOLTLNFPUBLICCOM@pa.gov. Comments received within 30 days will be reviewed and considered for any subsequent revision of the notice.

Persons with a disability who require an auxiliary aid or service may submit comments using the Pennsylvania Hamilton Relay Service by dialing 711 or by using one of the following toll-free numbers: (800) 654-5984 (TDD users), (800) 654-5988 (voice users), (844) 308-9292 (Speech-to-Speech) or (844) 308-9291 (Spanish).

VALERIE A. ARKOOSH,
Secretary

Fiscal Note: 14-NOT-1722. No fiscal impact; recommends adoption.

Appendix B
Medians and Prices for 2025-2026

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
1	BRIGHTON REHABILITATION & WELLNESS CTR	12/31/2022	12/31/2021	12/31/2020
1	CARE PAVILION NURSING AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
1	HORSHAM CENTER FOR JEWISH LIFE	12/31/2022	12/31/2021	6/30/2020
1	IMMACULATE MARY CTR FOR REHAB & HLTHCARE	6/30/2023	6/30/2022	6/30/2021
1	PARKHOUSE REHABILITATION AND NURSING CTR	12/31/2022	12/31/2021	12/31/2020
1	PINE VIEW HEALTHCARE AND REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
1	PREMIER WASHINGTON REHAB AND NURSING CTR	6/30/2023	6/30/2022	6/30/2021
1	ST. FRANCIS CENTER FOR REHAB & HLTH CARE	6/30/2023	6/30/2022	6/30/2021
1	ST. JOSEPHS MANOR A D-B-A ENTITY OF HRHS	6/30/2023	6/30/2022	6/30/2021

PG 1 Median	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$162.73	$63.52	$25.10

PG 1 Price	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$190.39	$71.14	$26.10

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
2	ACCELA REHAB AND CARE CENTER AT SOMERTON	6/30/2023	6/30/2021	6/30/2020
2	ACCELA REHAB AND CARE CENTER AT SPRINGFI	6/30/2023	6/30/2021	6/30/2020
2	ASBURY HEALTH CENTER	12/31/2022	12/31/2021	12/31/2020
2	AVENTURA AT PEMBROOKE	6/30/2023	6/30/2022	6/30/2021
2	AVENTURA AT PROSPECT	6/30/2023	6/30/2022	6/30/2021
2	BEAVER VALLEY REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	BRIDGEVILLE REHAB AND CARE CENTER	6/30/2023	6/30/2022	6/30/2021
2	BRISTOL HEALTH & REHAB CENTER	6/30/2023	6/30/2022	6/30/2020
2	BROOKSIDE HEALTHCARE AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	BRYN MAWR EXTENDED CARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	BUCKINGHAM VALLEY NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	BURGH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	CARING HEART REHAB AND NURSING CENTER	6/30/2023	6/30/2022	6/30/2021
2	CARNEGIE PARK POST ACUTE	12/31/2022	12/31/2021	12/31/2020
2	CEDAR HILL HEALTHCARE AND REHAB CENTER	6/30/2023	6/30/2021	6/30/2020
2	CENTENNIAL HEALTHCARE & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	CHAPEL MANOR	6/30/2023	6/30/2022	6/30/2021
2	CHESTNUT HILL LODGE HEALTH AND REHAB CTR	12/31/2022	12/31/2021	12/31/2020
2	CLIVEDEN NSG & REHAB CTR	6/30/2023	6/30/2022	6/30/2021
2	COMPLETE CARE AT HARSTON HALL LLC	12/31/2022	6/30/2020	6/30/2019
2	CONCORDIA AT VILLA ST. JOSEPH	6/30/2023	6/30/2022	6/30/2021
2	CONCORDIA LUTHERAN HEALTH AND HUMAN CARE	6/30/2023	6/30/2022	6/30/2021
2	CORNER VIEW NURSING AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	CRANBERRY PLACE	6/30/2023	6/30/2022	6/30/2021
2	CRESTVIEW CENTER	6/30/2023	6/30/2022	6/30/2021
2	DEER MEADOWS REHABILITATION CENTER	6/30/2023	6/30/2022	6/30/2021
2	EAST END HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	EDENBROOK OF YEADON	6/30/2023	6/30/2022	12/31/2020
2	ELKINS CREST HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	FAIRVIEW NURSING AND REHABILITATION CTR	6/30/2023	6/30/2022	6/30/2021
2	GARDEN SPRING NURSING & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
2	GERMANTOWN HOME	6/30/2023	6/30/2022	6/30/2021
2	GRADUATE POST ACUTE	12/31/2022	6/30/2020	6/30/2019
2	GREEN MEADOWS NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	GREENERY CENTER FOR REHAB & NURSING	12/31/2022	12/31/2021	12/31/2020
2	GWYNEDD HEALTHCARE & REHABILITATION CTR	12/31/2022	12/31/2021	12/31/2020
2	HARBORVIEW REHAB & C C AT DOYLESTOWN	12/31/2022	12/31/2021	12/31/2020
2	HARBORVIEW REHAB & CARE CTR AT LANSDALE	12/31/2022	12/31/2021	12/31/2020
2	HARMAR VILLAGE HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	HEMPFIELD MANOR	12/31/2022	12/31/2021	12/31/2020
2	HERITAGE CARE CENTER	6/30/2023	6/30/2022	6/30/2021
2	HERITAGE POINTE REHAB AND HEALTHCARE CTR	6/30/2023	6/30/2021	6/30/2020
2	HIGHLAND HILLS POST ACUTE	12/31/2022	12/31/2021	12/31/2020
2	HILLCREST CENTER	6/30/2023	6/30/2022	6/30/2021
2	HUNTINGDON SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
2	INDEPENDENCE REHAB AND NURSING	6/30/2023	6/30/2022	6/30/2021

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
2	IVORY WELLNESS CENTER	12/31/2022	12/31/2021	12/31/2020
2	IVY HILL POST ACUTE NURSING & REHAB	12/31/2021	12/31/2019	12/31/2018
2	IVY PARK POST ACUTE	6/30/2022	6/30/2021	6/30/2020
2	KADIMA REHABILITATION & NSG AT CHESWICK	12/31/2022	12/31/2021	12/31/2020
2	KADIMA REHABILITATION & NURSING AT IRWIN	6/30/2023	6/30/2022	6/30/2021
2	KING OF PRUSSIA SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
2	LAFAYETTE-REDEEMER (DBA ENTITY OF HRHS)	6/30/2023	6/30/2022	6/30/2021
2	LGAR HEALTH AND REHABILITATION CENTER	12/31/2022	12/31/2021	12/31/2020
2	LIBERTY POINTE REHAB & HEALTHCARE CENTER	6/30/2023	6/30/2021	6/30/2020
2	LIFEQUEST NURSING CENTER	6/30/2023	6/30/2022	6/30/2021
2	LITTLE FLOWER MANOR	6/30/2023	6/30/2022	6/30/2021
2	LOYALHANNA CARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	LUTHER WOODS NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	MAJESTIC OAKS REHAB & NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
2	MANATAWNY CENTER FOR REHAB AND NURSING	6/30/2023	12/31/2020	12/31/2019
2	MAPLEWOOD NURSING AND REHABILITATION CTR	6/30/2023	6/30/2022	6/30/2021
2	MARKLEY REHABILITATION & HEALTHCARE CTR	12/31/2022	12/31/2021	6/30/2020
2	MASONIC VILLAGE AT SEWICKLEY	12/31/2022	12/31/2021	12/31/2020
2	MEADOWVIEW REHAB & NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
2	MONROEVILLE POST ACUTE	12/31/2022	12/31/2021	12/31/2020
2	MONTGOMERYVILLE SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
2	MONUMENTAL POST ACUTE CARE AT WOODSIDE PK	6/30/2023	6/30/2022	6/30/2021
2	MOUNT MACRINA MANOR NURSING HOME	6/30/2023	6/30/2022	6/30/2021
2	OAKWOOD HEALTHCARE & REHABILITATION CTR	6/30/2023	6/30/2022	6/30/2021
2	OXFORD REHAB AND HEALTHCARE CENTER	12/31/2022	12/31/2020	12/31/2019
2	PENNSBURG MANOR	6/30/2023	6/30/2022	6/30/2021
2	PERRY HEALTH & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
2	PETERS TOWNSHIP POST ACUTE	12/31/2022	12/31/2021	12/31/2020
2	PHOEBE RICHLAND HCC	6/30/2023	6/30/2022	6/30/2021
2	POTTSTOWN SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
2	PROVIDENCE HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
2	PROVIDENCE REHAB & HCC MERCY FITZGERALD	12/31/2022	12/31/2021	12/31/2020
2	QUAKERTOWN CENTER	6/30/2023	6/30/2022	6/30/2021
2	QUALITY LIFE SERVICES—APOLLO	6/30/2023	6/30/2022	6/30/2021
2	REHAB & NURSING CTR GREATER PITTSBURGH	12/31/2022	12/31/2021	12/31/2020
2	RENAISSANCE HEALTHCARE & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
2	RIVER'S EDGE REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	ROOSEVELT REHAB AND HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	ROSE MEADOWS HEALTH & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
2	ROSEWOOD GARDENS REHAB AND NURSING CTR	12/31/2022	12/31/2021	12/31/2020
2	SANATOGA CENTER	6/30/2023	6/30/2022	6/30/2021
2	SAUNDERS NURSING & REHABILITATION CENTER	6/30/2022	6/30/2021	6/30/2020
2	SENECA PLACE	6/30/2023	6/30/2022	6/30/2021
2	SILVER STREAM NURSING & REHAB CENTER	6/30/2023	6/30/2022	6/30/2020
2	SIMPSON HOUSE, INC	12/31/2022	12/31/2021	12/31/2020
2	SOUTH HILLS POST ACUTE	12/31/2022	12/31/2021	12/31/2020

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
2	SOUTHMONT OF PRESBYTERIAN SENIORCARE	12/31/2022	12/31/2021	12/31/2020
2	SQUIRREL HILL WELLNESS & REHAB CENTER	12/31/2022	12/31/2020	12/31/2019
2	ST. ANNE HOME	6/30/2023	6/30/2022	6/30/2021
2	ST. JOHN NEUMAN CTR FOR REHAB & HLTHCARE	6/30/2023	6/30/2022	6/30/2021
2	ST. JOHN SPECIALTY CARE CENTER	6/30/2023	6/30/2022	6/30/2021
2	ST. MARTHA CENTER FOR REHAB & HEALTHCARE	6/30/2023	6/30/2022	6/30/2021
2	ST. MARY CENTER FOR REHAB & HEALTHCARE	6/30/2023	6/30/2022	6/30/2021
2	ST. MONICA CENTER FOR REHAB & HEALTHCARE	6/30/2023	6/30/2022	6/30/2021
2	STERLING HEALTH CARE AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
2	SUNNYVIEW NURSING AND REHABILITATION CTR	12/31/2022	12/31/2021	12/31/2020
2	THE BELVEDERE CENTER, GENESIS HEALTHCARE	6/30/2023	6/30/2022	6/30/2021
2	THE PHOENIX CENTER FOR REHAB AND NURSING	12/31/2022	12/31/2021	12/31/2020
2	TRANSITIONS HEALTHCARE NORTH HUNTINGDON	12/31/2022	12/31/2021	12/31/2020
2	TRANSITIONS HEALTHCARE WASHINGTON PA	12/31/2022	12/31/2021	12/31/2020
2	TUCKER HOUSE NSG & REHAB CTR	6/30/2023	6/30/2022	6/30/2021
2	TWIN LAKES REHAB AND HEALTH CENTER	12/31/2022	12/31/2021	12/31/2020
2	UNIONTOWN NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
2	UNIVERSITY CITY REHAB & HEALTHCARE CTR	6/30/2023	12/31/2021	12/31/2020
2	VALLEY MANOR REHAB AND HEALTHCARE CTR	12/31/2022	12/31/2021	12/31/2020
2	VINCENTIAN HOME	6/30/2023	6/30/2022	6/30/2021
2	WALLINGFORD SKILLED NURSING & REHAB CTR	6/30/2022	6/30/2021	6/30/2020
2	WECARE AT MONROEVILLE REHAB AND NSG CTR	12/31/2022	12/31/2021	12/31/2020
2	WECARE AT MT. LEBANON REHAB AND NSG CTR	12/31/2022	12/31/2021	12/31/2020
2	WECARE AT MURRYSVILLE REHAB AND NSG CTR	12/31/2022	12/31/2021	12/31/2020
2	WESLEY ENHANCED LIVING AT STAPELEY	6/30/2023	6/30/2022	6/30/2021
2	WESLEY ENHANCED LIVING PENNYPACK PARK	12/31/2022	12/31/2021	12/31/2020
2	WEST CHESTER REHAB & HEALTHCARE CENTER	6/30/2022	6/30/2021	6/30/2020
2	WEST PARK REHABILITATION & NURSING CTR	6/30/2023	6/30/2022	6/30/2021
2	WHITEHALL BOROUGH POST ACUTE	12/31/2022	12/31/2021	12/31/2020
2	WILLIAM PENN CARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	WILLOW TERRACE	6/30/2023	6/30/2022	6/30/2021
2	WILLOWS OF PRESBYTERIAN SENIORCARE, THE	12/31/2022	12/31/2021	12/31/2020
2	YARDLEY REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
2	YORK NURSING AND REHABILITATION CENTER	6/30/2023	6/30/2022	6/30/2021

PG 2 Median		Other Resident Reltd	Administrative
	$171.15	$55.25	$28.96

PG 2 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$200.25	$61.88	$30.12

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
3	ADVANCED CARE CENTER OF BUTLER	6/30/2023	6/30/2022	
3	AMBLER EXTENDED CARE CENTER	12/31/2022	12/31/2021	12/31/2020

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
3	ANN'S CHOICE	12/31/2022	12/31/2021	12/31/2020
3	ARTMAN LUTHERAN HOME	6/30/2023	6/30/2022	6/30/2021
3	BARCLAY FRIENDS	12/31/2022	12/31/2021	12/31/2020
3	BEAVER HEALTHCARE AND REHABILITATION CTR	12/31/2021	12/31/2020	12/31/2019
3	BELLE TERRACE	12/31/2021	12/31/2020	12/31/2019
3	BETHLEN HM OF THE HUNGARIAN RFRMD FED	12/31/2022	12/31/2021	12/31/2020
3	BRINTON MANOR NURSING & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
3	BROOMALL MANOR	12/31/2022	12/31/2021	12/31/2020
3	CANTERBURY PLACE	12/31/2022	12/31/2021	12/31/2020
3	CARING HEIGHTS COMMUNITY CARE & REHAB	12/31/2022	12/31/2021	12/31/2020
3	CATHEDRAL VILLAGE	6/30/2023	6/30/2022	6/30/2021
3	CHANDLER HALL HEALTH SERVICES INC	12/31/2022	12/31/2021	12/31/2020
3	CONCORDIA AT THE CEDARS	12/31/2022	12/31/2021	12/31/2020
3	CONTINUING CARE AT MARIS GROVE	12/31/2022	12/31/2021	12/31/2020
3	DOCK TERRACE	6/30/2023	6/30/2022	6/30/2021
3	DRESHER HILL HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	EDGEHILL NURSING AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
3	ELDERCREST REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	ELM TERRACE GARDENS	6/30/2023	6/30/2022	6/30/2021
3	EMBASSY OF SAXONBURG	12/31/2022	12/31/2021	12/31/2020
3	FREDERICK LIVING—CEDARWOOD	12/31/2022	12/31/2021	12/31/2020
3	FRIENDSHIP VILLAGE OF SOUTH HILLS	12/31/2022	12/31/2021	12/31/2020
3	GREENE HEALTH AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	HARMON HOUSE HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	HARMONY HILLS HEALTHCARE AND REHAB CTR	6/30/2023	6/30/2021	6/30/2020
3	HAVENCREST REHAB AND HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	HICKORY HOUSE NURSING HOME	12/31/2022	12/31/2021	12/31/2020
3	HILLCREST REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	HOLY FAMILY HOME	12/31/2022	12/31/2021	12/31/2020
3	HOPKINS CENTER	6/30/2023	6/30/2022	6/30/2021
3	HUMANGOOD PENNSYLVANIA	12/31/2022	12/31/2021	12/31/2020
3	KADIMA REHAB & NURSING AT NORTH STRABANE	12/31/2022	12/31/2021	12/31/2020
3	KADIMA REHAB & NURSING AT POTTSTOWN	12/31/2022	12/31/2021	12/31/2020
3	KADIMA REHAB & NURSING AT WASHINGTON	6/30/2023	6/30/2022	6/30/2021
3	KADIMA REHABILITATION & NSG AT HARMONY	6/30/2023	6/30/2022	6/30/2021
3	KADIMA REHABILITATION & NSG AT LATROBE	12/31/2022	12/31/2021	12/31/2020
3	KEARSLEY REHAB AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
3	LAFAYETTE MANOR, INC	12/31/2022	12/31/2021	12/31/2020
3	LANGHORNE GARDENS HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	LAUREL RIDGE CENTER	6/30/2023	6/30/2022	6/30/2021
3	LAUREL SQUARE HEALTHCARE & REHAB CTR	6/30/2023	6/30/2022	6/30/2021
3	LIBERTY CENTER FOR REHAB AND NURSING	12/31/2022	12/31/2021	12/31/2020
3	LITTLE SISTERS OF THE POOR	12/31/2022	12/31/2021	12/31/2020
3	LOGAN SQUARE REHAB AND HEALTHCARE CENTER	12/31/2021	12/31/2020	12/31/2019
3	LUTHERAN COMMUNITY AT TELFORD	6/30/2023	6/30/2022	6/30/2021
3	MASONIC VILLAGE AT LAFAYETTE HILL	12/31/2022	12/31/2021	12/31/2020

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
3	MASONIC VILLAGE AT WARMINSTER	12/31/2022	12/31/2021	12/31/2020
3	MCMURRAY HILLS MANOR	6/30/2023	6/30/2022	6/30/2021
3	MEADOWCREST REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	MON VALLEY CARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	NAAMANS CREEK COUNTRY MANOR	6/30/2023	6/30/2022	6/30/2021
3	NORRITON SQUARE NURSING & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
3	OAK HILL REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	ONYX WELLNESS CENTER	12/31/2022	12/31/2021	12/31/2020
3	OXFORD HEALTH CENTER	12/31/2022	12/31/2021	12/31/2020
3	PASSAVANT RETIREMENT AND HEALTH CENTER	6/30/2023	6/30/2022	6/30/2021
3	PAUL'S RUN	12/31/2022	12/31/2021	12/31/2020
3	PENNYPACK NURSING & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
3	PETER BECKER COMMUNITY	6/30/2023	6/30/2022	6/30/2021
3	PHILADELPHIA PROTESTANT HOME	12/31/2022	12/31/2021	12/31/2020
3	PICKERING MANOR HOME	6/30/2023	6/30/2022	6/30/2021
3	PINE RUN HEALTH CENTER	6/30/2023	6/30/2022	6/30/2021
3	PLATINUM RIDGE CTR FOR REHAB & HEALING	12/31/2022	12/31/2021	12/31/2020
3	QUALITY LIFE SERVICES—CHICORA	6/30/2023	6/30/2022	6/30/2021
3	QUALITY LIFE SERVICES—HENRY CLAY	6/30/2023	6/30/2022	6/30/2021
3	QUALITY LIFE SERVICES—MARKLEYSBURG	6/30/2023	6/30/2022	6/30/2021
3	QUALITY LIFE SERVICES—SARVER	6/30/2023	6/30/2022	6/30/2021
3	REDSTONE HIGHLANDS HEALTH CARE CENTER	6/30/2023	6/30/2022	6/30/2021
3	REFORMED PRESBYTERIAN HOME	12/31/2022	12/31/2021	12/31/2020
3	REHAB CENTER AT JEFFERSON HILLS, THE	6/30/2023	6/30/2022	6/30/2021
3	RICHBORO REHABILITATION & NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
3	RIVERSIDE HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	ROCHESTER RESIDENCE AND CARE CENTER	12/31/2022	12/31/2020	12/31/2019
3	ROSEMONT CENTER	12/31/2022	12/31/2021	12/31/2020
3	SAINT JOSEPH VILLA	6/30/2023	6/30/2022	6/30/2021
3	SCOTTDALE HEALTHCARE & REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
3	SHERWOOD OAKS	6/30/2023	6/30/2022	6/30/2021
3	SOUDERTON MENNONITE HOMES	6/30/2023	6/30/2022	6/30/2021
3	SOUTHWESTERN NURSING & REHAB CENTER	12/31/2022	12/31/2020	12/31/2019
3	SPRING HILL REHABILITATION & NURSING CTR	12/31/2022	6/30/2021	6/30/2020
3	SPRINGFIELD REHAB AND HEALTHCARE CENTER			
3	ST. BARNABAS NURSING HOME	12/31/2022	12/31/2021	12/31/2020
3	STATESMAN HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	SUBURBAN WOODS HEALTH AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	TEL HAI RETIREMENT COMMUNITY	6/30/2023	6/30/2022	6/30/2021
3	TERRACE HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2019
3	THE COMMUNITY AT ROCKHILL	6/30/2023	6/30/2022	6/30/2021
3	TOWNVIEW HEALTH AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
3	TRANSITIONS HEALTHCARE AUTUMN GROVE C C	6/30/2023	6/30/2022	6/30/2021
3	TWIN PINES HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
3	WAYNE CENTER	6/30/2023	6/30/2022	6/30/2021
3	WECARE AT SOUTH HILLS REHAB AND NSG CTR	12/31/2022	12/31/2021	12/31/2020

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
3	WESLEY ENHANCED LIVING MAIN LINE REHAB	12/31/2022	12/31/2021	12/31/2020
3	WESLEY ENHANCED LIVING—DOYLESTOWN	12/31/2022	12/31/2021	12/31/2020
3	WESTGATE HILLS REHAB AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
3	WILLOW GROVE POST ACUTE	12/31/2022	6/30/2020	6/30/2019
3	WILLOWBROOKE CT SCC AT BRITTANY POINTE	12/31/2022	12/31/2021	12/31/2020
3	WOODHAVEN HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
3	WYNCOTE CARE CENTER	6/30/2023	6/30/2022	6/30/2021
3	WYNDMOOR HILLS REHAB & NURSING CENTER	6/30/2023	6/30/2022	6/30/2021

PG 3 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$192.81	$63.54	$34.25

PG 3 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$225.59	$71.16	$35.62

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
4	AVENTURA AT TERRACE VIEW	06/30/2023	06/30/2021	06/30/2020
4	ALLIED SERVICES SKILLED NURSING CENTER	6/30/2023	6/30/2022	6/30/2021
4	CEDAR HAVEN HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
4	CLAREMONT NURSING & REHAB CENTER	6/30/2023		
4	CROSS KEYS VILLAGE—BRETHREN HM COMM, THE	6/30/2023	6/30/2022	6/30/2021
4	LANCASTER NURSING AND REHAB CENTER	12/31/2022	12/31/2020	12/31/2019
4	MAPLE HEIGHTS HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
4	MASONIC VILLAGE AT ELIZABETHTOWN	12/31/2022	12/31/2021	12/31/2020
4	MOUNTAIN CITY NURSING AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
4	MOUNTAIN VIEW REHAB & SENIOR LIVING CTR	12/31/2022	12/31/2021	12/31/2020
4	PHOEBE ALLENTOWN HEALTH CARE	6/30/2023	6/30/2022	6/30/2021
4	PLEASANT ACRES REHAB AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
4	SPRING CREEK REHAB AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2019
4	THE GARDENS AT WEST SHORE	12/31/2022	12/31/2021	12/31/2020
4	YORKVIEW NURSING AND REHABILITATION	6/30/2023	12/31/2020	12/31/2019

PG 4 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$183.07	$63.78	$25.23

PG 4 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$214.19	$71.43	$26.24

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
5	ABBEYVILLE SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	ALLIED SERVICES MEADE STREET SKILLED NSG	6/30/2023	6/30/2022	6/30/2021

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
5	BETHLEHEM NORTH SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	BETHLEHEM SOUTH SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	BIRCHWOOD REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
5	BRETHREN VILLAGE	6/30/2023	6/30/2022	6/30/2021
5	CAMP HILL SKILLED NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	CAPITOL REHAB AND HEALTHCARE CENTER	6/30/2023	6/30/2021	6/30/2020
5	CARLISLE SKILLED NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	CEDAR CREST POST ACUTE	12/31/2022	12/31/2021	12/31/2020
5	COMPLETE CARE AT BERKSHIRE LLC	12/31/2022	6/30/2020	6/30/2019
5	COMPLETE CARE AT LEHIGH LLC	12/31/2022	6/30/2020	6/30/2019
5	CORRY MANOR	12/31/2022	12/31/2021	12/31/2020
5	EASTON SKILLED NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	EDENBROOK ON SECOND AVE	6/30/2023	6/30/2022	12/31/2020
5	EDINBORO MANOR	12/31/2022	12/31/2021	12/31/2020
5	ELAN SKILLED NURSING AND REHABILITATION	12/31/2022	12/31/2021	12/31/2020
5	EMBASSY OF EAST MOUNTAIN	12/31/2022	12/31/2021	12/31/2020
5	EMBASSY OF SCRANTON	12/31/2022	12/31/2021	12/31/2020
5	EMBASSY OF TUNKHANNOCK	12/31/2022	12/31/2021	12/31/2020
5	EMBASSY OF WYOMING VALLEY	12/31/2022	12/31/2021	12/31/2020
5	EPHRATA MANOR	12/31/2022	12/31/2021	12/31/2020
5	FAIRLANE GARDENS NSG & REHAB AT READING	12/31/2022	12/31/2021	12/31/2020
5	FAIRVIEW MANOR	12/31/2022	12/31/2021	12/31/2020
5	FELLOWSHIP MANOR	6/30/2023	6/30/2022	6/30/2021
5	FOREST HILLS REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
5	GLEN BROOK REHAB & HEALTHCARE CENTER II	6/30/2020	6/30/2019	6/30/2018
5	GREENFIELD HEALTHCARE & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	HANOVER HALL FOR NURSING AND REHAB	6/30/2023	12/31/2020	12/31/2019
5	HIGHLAND MANOR REHAB & NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
5	HOLY FAMILY MANOR	12/31/2022	12/31/2021	12/31/2020
5	HOMEWOOD LIVING PLUM CREEK, INC.	12/31/2022	12/31/2021	12/31/2020
5	INNERS CREEK SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	JEWEL HEALTHCARE AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
5	KINGSTON COURT SKD NSG & REHAB CTR	6/30/2022	6/30/2021	6/30/2020
5	LAUREL CENTER	6/30/2023	6/30/2022	6/30/2021
5	LAURELDALE SKILLED NSG & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	LEBANON SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	LECOM AT PRESQUE ISLE, INC.	6/30/2023	6/30/2022	6/30/2021
5	LUTHERAN HOME AT TOPTON	12/31/2022	12/31/2021	12/31/2020
5	MAHONING OPERATING LLC	12/31/2022	12/31/2021	12/31/2020
5	MEADOWS NURSING AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
5	MIFFLIN CENTER	6/30/2023	6/30/2022	6/30/2021
5	MILLCREEK MANOR	6/30/2023	6/30/2022	6/30/2021
5	MYERSTOWN NURSING AND REHAB LLC	12/31/2022	12/31/2021	12/31/2020
5	NEFFSVILLE NURSING AND REHABILITATION	6/30/2023	12/31/2020	12/31/2019
5	NEWPORT MEADOWS HEALTH AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
5	NIGHTINGALE NURSING AND REHAB CENTER	12/31/2022	12/31/2020	12/31/2019

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
5	NORTHAMPTON POST ACUTE	12/31/2022	12/31/2021	12/31/2020
5	NORTHERN DAUPHIN NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	OAK HILL CENTER FOR REHAB AND NURSING	6/30/2023	12/31/2020	12/31/2019
5	OAK RIDGE REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
5	QUARRYVILLE PRESBYTERIAN RETIREMENT COMM	6/30/2023	6/30/2022	6/30/2021
5	REST HAVEN—YORK	6/30/2023	6/30/2022	6/30/2021
5	RIVER VIEW NURSING AND REHAB CENTER	12/31/2022	12/31/2020	12/31/2019
5	RIVER'S BEND HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	RIVERSTREET MANOR	6/30/2023	6/30/2022	6/30/2020
5	ROSE CITY NURSING AND REHAB AT LANCASTER	12/31/2022	12/31/2021	12/31/2020
5	SHIPPENSBURG REHAB & HEALTH CARE CENTER	12/31/2021	12/31/2020	12/31/2019
5	SINKING SPRING SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	SPRUCE MANOR NURSING AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
5	SUSQUEHANNA REHAB & WELLNESS CENTER	6/30/2023	6/30/2022	6/30/2020
5	THE GARDENS AT EASTON	6/30/2023	6/30/2022	6/30/2021
5	THE PAVILION AT ST LUKE VILLAGE	12/31/2022	12/31/2021	12/31/2020
5	TRILLIUM PLACE	6/30/2023	6/30/2022	6/30/2021
5	WESLEY VILLAGE	12/31/2022	12/31/2021	12/31/2020
5	WEST READING SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
5	WILLOW BROOK REHAB AND HEALTHCARE CENTER	6/30/2023	6/30/2021	6/30/2020
5	YORK NORTH SKILLED NURSING & REHAB CTR	6/30/2022	6/30/2021	6/30/2020
5	YORK SOUTH SKILLED NSG & REHAB CTR	6/30/2022	6/30/2021	6/30/2020

PG 5 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$180.42	$53.17	$29.68

PG 5 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$211.09	$59.55	$30.87

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
6	ABINGTON MANOR	6/30/2023	6/30/2022	6/30/2020
6	ALLIED SERVICES CENTER CITY SKILLED NSG	6/30/2023	6/30/2022	6/30/2021
6	ALPINE VALLEY POST ACUTE & HLTH CARE CTR	12/31/2022	12/31/2021	12/31/2020
6	AMOROSO HEALTHCARE & REHAB WOODRIDGE	12/31/2022	12/31/2021	12/31/2020
6	AVENTURA AT CREEKSIDE	6/30/2023	6/30/2022	6/30/2021
6	BALL PAVILION, THE	6/30/2023	6/30/2022	6/30/2021
6	BETHANY VILLAGE RETIREMENT CENTER	12/31/2022	12/31/2021	12/31/2020
6	BONHAM NURSING AND REHABILITATION CENTER	12/31/2022	12/31/2021	12/31/2020
6	CARBONDALE REHAB AND HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	CHAPEL POINTE AT CARLISLE	12/31/2022	12/31/2021	12/31/2020
6	CORNWALL MANOR	12/31/2022	12/31/2021	12/31/2020
6	COURTYARD GARDENS NURSING AND REHAB CTR	12/31/2022	12/31/2021	12/31/2020
6	CUMBERLAND CROSSINGS RETIREMENT COMM	12/31/2022	12/31/2021	12/31/2020
6	DELAWARE VALLEY SKILLED NSG & REHAB CTR	12/31/2022	12/31/2021	

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
6	DUNMORE HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	EDENBROOK AT HAMPTON	6/30/2023	6/30/2022	6/30/2020
6	ELIZABETHTOWN NURSING AND REHABILITATION	12/31/2022	12/31/2021	12/31/2019
6	EMERALD NURSING AND REHABILITATION	12/31/2022	12/31/2021	12/31/2019
6	FAIRMOUNT HOMES	6/30/2023	6/30/2022	6/30/2021
6	FOREST PARK NURSING AND REHABILITATION	12/31/2021	12/31/2020	12/31/2019
6	FORESTVIEW	12/31/2022	12/31/2021	12/31/2020
6	GARDEN SPOT VILLAGE	6/30/2023	6/30/2022	6/30/2021
6	GREEN RIDGE CARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	HAMILTON ARMS CENTER	6/30/2023	6/30/2022	6/30/2020
6	HOMELAND CENTER	6/30/2023	6/30/2022	6/30/2021
6	HOMESTEAD VILLAGE, INC	6/30/2023	6/30/2022	6/30/2021
6	KADIMA REHAB & NURSING AT CAMPBELLTOWN	12/31/2022	12/31/2021	12/31/2020
6	KADIMA REHAB & NURSING AT LUZERNE	12/31/2022	12/31/2021	12/31/2020
6	KADIMA REHAB & NURSING AT PALMYRA	12/31/2022	12/31/2021	12/31/2020
6	KADIMA REHAB AND NURSING AT LAKESIDE	12/31/2022	12/31/2021	12/31/2020
6	KADIMA REHAB AND NURSING AT LITITZ	12/31/2022	12/31/2021	12/31/2020
6	LAKEWOOD REHABILITATION & HEALTHCARE CTR	12/31/2022	12/31/2021	12/31/2020
6	LANDIS HOMES	6/30/2023	6/30/2022	6/30/2021
6	LEBANON VALLEY BRETHREN HOME	12/31/2022	12/31/2021	12/31/2020
6	LEBANON VALLEY HOME THE	12/31/2022	12/31/2021	12/31/2020
6	LECOM AT ELMWOOD GARDENS LLC	12/31/2022	12/31/2021	12/31/2020
6	LECOM AT VILLAGE SQUARE LLC	6/30/2023	6/30/2022	6/30/2021
6	LETORT SPRING NURSING AND REHAB LLC	12/31/2022	12/31/2021	12/31/2020
6	LINWOOD NURSING AND REHABILITATION CTR	6/30/2023	6/30/2022	6/30/2021
6	LUTHER ACRES MANOR	12/31/2022	12/31/2021	12/31/2020
6	LUTHER CREST NURSING FACILITY	12/31/2022	12/31/2021	12/31/2020
6	MANCHESTER COMMONS OF PRESBY SR. CARE	12/31/2022	12/31/2021	12/31/2020
6	MAPLE FARM	6/30/2023	6/30/2022	6/30/2021
6	MAPLE RIDGE REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	MARYWOOD HEIGHTS	12/31/2022	12/31/2021	12/31/2020
6	MESSIAH LIFEWAYS AT MESSIAH VILLAGE	6/30/2023	6/30/2022	6/30/2021
6	MID VALLEY HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	MILFORD HEALTHCARE AND REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
6	MISERICORDIA NURSING & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
6	MORAVIAN HALL SQ. HLTH AND WELLNESS CTR	6/30/2023	6/30/2022	6/30/2021
6	MORAVIAN MANOR	12/31/2022	12/31/2021	12/31/2020
6	MOSSER NURSING HOME	6/30/2023	6/30/2022	6/30/2021
6	MOUNT HOPE NAZARENE RETIREMENT COMMUNITY	6/30/2023	6/30/2022	6/30/2021
6	MOUNTAIN TOP REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	NEW EASTWOOD HEALTHCARE AND REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
6	NORMANDIE RIDGE	12/31/2022	12/31/2021	12/31/2020
6	PHOEBE BERKS HEALTH CARE CENTER, INC	6/30/2023	6/30/2022	6/30/2021
6	PLEASANT VIEW RETIREMENT COMMUNITY	12/31/2022	12/31/2021	12/31/2020
6	PREMIER AT PERRY VLG FOR NURSE AND REHAB	12/31/2022	12/31/2021	12/31/2020
6	RIVERTON REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2020	12/31/2019

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
6	SAINT MARY'S AT ASBURY RIDGE	12/31/2022	12/31/2021	12/31/2020
6	SARAH A TODD MEMORIAL HOME	12/31/2022	12/31/2021	12/31/2020
6	SARAH REED SENIOR LIVING	6/30/2023	6/30/2022	6/30/2021
6	SCRANTON HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
6	SLATE BELT HEALTH AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
6	SPIRITRUST LUTHERAN VLG AT SPRENKLE DRIVE	12/31/2022	12/31/2021	12/31/2020
6	SPIRITRUST LUTHERAN VLG AT UTZ TERRACE	12/31/2022	12/31/2021	12/31/2020
6	ST. ANNES RETIREMENT COMMUNITY	6/30/2023	6/30/2022	6/30/2021
6	ST. MARYS VILLA NSG HOME INC	12/31/2022	12/31/2021	12/31/2020
6	STONEBRIDGE HEALTH & REHAB CENTER, LLC	12/31/2022	12/31/2021	12/31/2020
6	STONERIDGE POPLAR RUN	12/31/2022	12/31/2021	12/31/2020
6	SUNSET RIDGE REHAB AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
6	SWAIM HEALTH CENTER	12/31/2022	12/31/2021	12/31/2020
6	THE GARDENS AT CAMP HILL	12/31/2022	12/31/2021	12/31/2020
6	THE GARDENS AT MILLVILLE	6/30/2023	6/30/2022	6/30/2021
6	THE GARDENS AT ORANGEVILLE	6/30/2023	6/30/2022	6/30/2021
6	THE GARDENS AT STEVENS	6/30/2023	6/30/2022	6/30/2021
6	THE GARDENS FOR MEMORY CARE AT EASTON	6/30/2023	6/30/2022	6/30/2021
6	THE MANOR AT ST LUKE VILLAGE	12/31/2022	12/31/2021	12/31/2020
6	THIRD AVENUE HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
6	THORNWALD HOME	12/31/2022	12/31/2021	12/31/2020
6	TRANSITIONS HEALTHCARE ALLENS COVE	6/30/2022	6/30/2021	6/30/2020
6	TUNKHANNOCK REHAB & HEALTH CARE CENTER			
6	TWINBROOK HEALTHCARE & REHAB CENTER	12/31/2022	12/31/2020	12/31/2019
6	UNITED ZION RETIREMENT COMMUNITY	12/31/2022	12/31/2021	12/31/2020
6	WALNUT CREEK NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
6	WYOMISSING HEALTH AND REHABILITATION CTR	12/31/2022	12/31/2021	12/31/2020
6	ZERBE SISTERS NURSING CENTER, INC.	6/30/2023	6/30/2022	6/30/2021

PG 6 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$201.77	$65.62	$34.65

PG 6 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$236.07	$73.49	$36.04

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
8	ARBUTUS PARK MANOR	6/30/2023	6/30/2022	6/30/2021
8	CENTRE CARE REHAB AND WELLNESS SERVICES	12/31/2022	12/31/2021	12/31/2020
8	EDENBROOK NORTH	6/30/2023	6/30/2022	12/31/2020
8	EMBASSY OF HEARTHSIDE	12/31/2022	12/31/2021	12/31/2019
8	GARVEY MANOR	12/31/2022	12/31/2021	12/31/2020
8	HILLTOP HEALTHCARE & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
8	HILLTOP HEIGHTS HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
8	HOMEWOOD LIVING MARTINSBURG INC.	12/31/2022	12/31/2021	12/31/2020

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
8	JERSEY SHORE SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
8	KADIMA REHAB AND NSG AT GREENVILLE	6/30/2023	6/30/2022	6/30/2021
8	MAYBROOK HILLS REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
8	MEADOW VIEW NURSING CENTER	6/30/2023	6/30/2022	6/30/2021
8	MIDTOWN OAKS HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
8	MORRISONS COVE HOME	12/31/2022	12/31/2021	12/31/2020
8	ORCHARD MANOR	6/30/2023	6/30/2022	6/30/2021
8	ROSE VIEW NURSING & REHAB CENTER	6/30/2023	6/30/2022	6/30/2021
8	SOMERSET HEALTHCARE & REHABILITATION CTR	12/31/2022	12/31/2021	12/31/2020
8	ST. PAUL HOMES	12/31/2022	12/31/2021	12/31/2020
8	VALLEY VIEW REHAB AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
8	WECARE AT SYCAMORE REHAB & NURSING CTR	12/31/2021	12/31/2019	12/31/2018
8	WILLIAMSPORT HOME, THE	12/31/2022	12/31/2021	12/31/2020
8	WINDBER WOODS SENIOR LIVING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020

PG 8 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$167.86	$62.07	$28.16

PG 8 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$196.40	$69.52	$29.29

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
9	AVALON SPRINGS CARE CENTER	12/31/2022	12/31/2021	12/31/2020
9	CASSELMAN HEALTHCARE & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
9	CEDARWOOD REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
9	CLEPPER MANOR	12/31/2022	12/31/2021	12/31/2019
9	EDENBROOK SOUTH	6/30/2023	6/30/2022	12/31/2020
9	GROVE MANOR	6/30/2023	6/30/2022	6/30/2021
9	HAIDA NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
9	HERITAGE RIDGE SR LIVING AT JOHNSTOWN	12/31/2022	12/31/2021	12/31/2020
9	HERITAGE RIDGE SR LIVING AT WINDY HILL	12/31/2022	12/31/2021	12/31/2020
9	HERMITAGE NURSING AND REHABILITATION	12/31/2022	12/31/2021	12/31/2019
9	LAUREL VIEW VILLAGE	6/30/2023	6/30/2022	6/30/2021
9	LUTHERAN HOME AT HOLLIDAYSBURG, THE	12/31/2022	12/31/2021	12/31/2020
9	MAPLE WINDS HEALTHCARE & REHAB CTR, LLC	12/31/2022	12/31/2021	12/31/2020
9	PATRIOT VILLAGE	12/31/2022	12/31/2021	12/31/2020
9	PRESBYTERIAN HOMES-PRESBYTERY—HUNTINGDON	12/31/2022	12/31/2021	12/31/2020
9	QUALITY LIFE SERVICES—GROVE CITY	6/30/2023	6/30/2022	6/30/2021
9	QUALITY LIFE SERVICES—MERCER	6/30/2023	6/30/2022	6/30/2021
9	QUALITY LIFE SERVICES—WESTMONT	6/30/2023	6/30/2022	6/30/2021
9	RICHLAND NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
9	SAINT JOHN XXIII HOME	12/31/2022	12/31/2021	12/31/2020

PG 9 Median	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$159.79	$58.05	$27.99

PG 9 Price	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$186.95	$65.02	$29.11

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
11	BRADFORD HILLS NURSING & REHAB CENTER			
11	BROAD ACRES HEALTH AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
11	CHAMBERSBURG SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
11	CHRIST THE KING MANOR	06/30/2023	6/30/2022	6/30/2021
11	CRAWFORD CARE CENTER			
11	DUBOIS NURSING HOME	06/30/2023	6/30/2022	6/30/2021
11	EDENBROOK OF GREEENWOOD HILL	06/30/2023	6/30/2022	12/31/2020
11	ELK HAVEN NURSING HOME	06/30/2023	6/30/2022	6/30/2021
11	ELLEN MEMORIAL REHAB AND HEALTHCARE CTR	12/31/2022	12/31/2021	12/31/2020
11	EMBASSY OF PARK AVENUE	12/31/2022	12/31/2021	12/31/2019
11	EMBASSY OF WOODLAND PARK	12/31/2022	12/31/2021	12/31/2019
11	FOREST CITY NURSING AND REHAB CENTER	06/30/2023	6/30/2022	6/30/2021
11	GRANDVIEW NURSING AND REHABILITATION	12/31/2022	12/31/2021	12/31/2020
11	GREEN HOME, INC, THE	06/30/2023	6/30/2022	6/30/2021
11	GREENWOOD CENTER FOR NURSING & REHAB	12/31/2022	12/31/2021	12/31/2020
11	GREENWOOD CENTER FOR REHAB AND NURSING	06/30/2023	12/31/2020	12/31/2019
11	HIGHLANDS REHABILITATION AND HEALTHCARE	12/31/2022	12/31/2021	12/31/2020
11	LAUREL LAKES REHAB & WELLNESS CENTER	12/31/2022	12/31/2021	12/31/2020
11	LOCK HAVEN REHABILITATION & SENIOR LIV			
11	MILTON REHABILITATION AND NURSING CENTER	12/31/2022	12/31/2021	12/31/2020
11	MOUNTAIN LAUREL HEALTHCARE & REHAB CTR	12/31/2022	12/31/2020	12/31/2019
11	NOTTINGHAM VILLAGE	12/31/2022	12/31/2021	12/31/2020
11	OAK GLEN HEALTHCARE AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
11	ORWIGSBURG NURSING & REHAB CENTER	06/30/2023	6/30/2022	6/30/2021
11	PENN HIGHLANDS JEFFERSON MANOR	06/30/2023	6/30/2022	6/30/2021
11	PENNKNOLL VILLAGE	12/31/2022	12/31/2021	12/31/2020
11	QUALITY LIFE SERVICES—NEW CASTLE	06/30/2023	6/30/2022	6/30/2021
11	RIDGEVIEW HEALTHCARE & REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
11	ROLLING FIELDS, INC	12/31/2022	12/31/2021	12/31/2020
11	ROSEWOOD REHABILITATION & NURSING CENTER	06/30/2023	6/30/2022	6/30/2021
11	SAPPHIRE CARE AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
11	SCHUYLKILL CENTER	06/30/2023	6/30/2022	6/30/2020
11	SENA KEAN NURSING AND REHAB CENTER	12/31/2022	12/31/2020	12/31/2019
11	SETON MANOR NURSING & REHABILITATION CTR	06/30/2023	6/30/2022	6/30/2021
11	SHIPPENVILLE NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
11	STROUDSBURG POST ACUTE NURSING & REHAB			
11	SUGAR CREEK CARE CENTER	12/31/2022	12/31/2021	12/31/2020
11	SUNBURY SKILLED NURSING & REHAB CTR	12/31/2022	12/31/2021	12/31/2020
11	SWEDEN VALLEY MANOR	12/31/2022	12/31/2021	12/31/2020
11	THE MANOR AT PENN VILLAGE	12/31/2022	12/31/2021	12/31/2020

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
11	TRANSITIONS HEALTHCARE GETTYSBURG	12/31/2022	12/31/2021	12/31/2020
11	TREMONT HEALTH & REHABILITATION CENTER	12/31/2022	12/31/2021	12/31/2020
11	VALLEY VIEW HAVEN, INC	12/31/2022	12/31/2021	12/31/2020
11	WARREN MANOR	12/31/2022	12/31/2021	12/31/2020
11	WATSONTOWN REHABILITATION AND NRSG CTR	12/31/2022	12/31/2021	12/31/2020
11	WECARE AT ROLLING MEADOWS REHAB & NSG CT	12/31/2022	6/30/2020	6/30/2019
11	WESBURY UNITED METHODIST COMMUNITY	12/31/2022	12/31/2021	12/31/2020
11	WILLIAM PENN NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020

PG 11 Median	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$158.82	$50.67	$26.53

PG 11 Price	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$185.82	$56.75	$27.59

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
12	ARMSTRONG REHAB & NSG CENTER	12/31/2022	12/31/2020	12/31/2019
12	ATHENS NURSING AND REHABILITATION CENTER	12/31/2022	6/30/2021	6/30/2020
12	AVALON CARE CENTER	6/30/2023	6/30/2022	6/30/2021
12	BEACON RIDGE	12/31/2022	12/31/2021	12/31/2020
12	BEDFORD POST ACUTE	6/30/2022	6/30/2021	6/30/2020
12	BRADFORD ECUMENICAL HOME, INC	12/31/2022	12/31/2021	12/31/2020
12	BRADFORD MANOR	12/31/2022	12/31/2021	12/31/2020
12	BROAD MOUNTAIN HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	BROOKLINE NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
12	BROOKMONT HEALTHCARE & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	BROOKVIEW HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
12	BUFFALO VALLEY LUTHERAN VILLAGE	12/31/2022	12/31/2021	12/31/2020
12	CARING PLACE, THE	6/30/2023	6/30/2022	6/30/2021
12	CHAMBERS POINTE HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
12	CLARION NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
12	DARWAY HEALTHCARE & REHABILITATION CTR	12/31/2021	12/31/2020	12/31/2019
12	DR ARTHUR CLIFTON MCKINLEY HEALTH CENTER	6/30/2023	6/30/2022	6/30/2021
12	EDISON MANOR NURSING AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	EMBASSY OF HILLSDALE PARK	12/31/2022	12/31/2021	12/31/2019
12	EMBASSY OF HUNTINGDON PARK	12/31/2022	12/31/2021	12/31/2019
12	EMMANUEL CENTER FOR NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
12	GETTYSBURG CENTER	6/30/2023	6/30/2022	6/30/2021
12	GREEN VALLEY SKILLED NSG & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	GUY AND MARY FELT MANOR, INC	6/30/2023	6/30/2022	6/30/2021
12	HAVEN CONVALESCENT HOME, INC	12/31/2022	12/31/2021	12/31/2020
12	HIGHLAND VIEW REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
12	JAMESON NURSING AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	JULIA POUND CARE CENTER	12/31/2022	12/31/2021	12/31/2020

Peer Group	*Current Provider Name*	*Most Recent Cost Report End Date*	*Second Most Recent Cost Report End Date*	*Third Most Recent Cost Report End Date*
12	JULIA RIBAUDO EXTENDED CARE CENTER	12/31/2022	12/31/2021	12/31/2020
12	KADIMA REHAB & NSG AT NEW CASTLE	6/30/2023	6/30/2022	6/30/2021
12	KADIMA REHAB & NSG AT NEW WILMINGTON	6/30/2023	6/30/2022	6/30/2021
12	KINZUA NURSING AND REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	KITTANNING HEALTH & REHAB CENTER	12/31/2022	12/31/2021	12/31/2020
12	LAKEVIEW HEALTHCARE & REHAB	12/31/2021	12/31/2020	12/31/2019
12	LOCUST GROVE RETIREMENT VILLAGE	12/31/2022	12/31/2021	12/31/2020
12	LUTHERAN HOME AT KANE, THE	12/31/2022	12/31/2021	12/31/2020
12	MEADOW VIEW REHAB & HEALTHCARE CENTER	12/31/2022	12/31/2021	12/31/2020
12	MOUNT CARMEL SENIOR LIVING COMMUNITY	12/31/2022	12/31/2021	12/31/2020
12	MULBERRY HEALTHCARE & REHAB CTR	12/31/2021	12/31/2020	12/31/2019
12	NURSING & REHABILITATION AT THE MANSION	12/31/2022	12/31/2021	12/31/2020
12	OAKWOOD HEIGHTS VILLAGE	12/31/2022	12/31/2021	12/31/2020
12	OIL CITY NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
12	PARAMOUNT NURSING & REHAB AT FAYETTEVILLE	12/31/2022	12/31/2021	12/31/2020
12	QUALITY LIFE SERVICES—SUGAR CREEK	6/30/2023	6/30/2022	6/30/2021
12	QUINCY RETIREMENT COMMUNITY	12/31/2022	12/31/2021	12/31/2020
12	RICHFIELD HEALTHCARE AND REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
12	RIDGEVIEW HEALTHCARE & REHAB CENTER	12/31/2022	12/31/2021	12/31/2019
12	ROLLING HILLS HEALTHCARE & REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
12	SAYRE HEALTH CARE CENTER, LLC	6/30/2023	6/30/2022	6/30/2021
12	SCENERY HILL HEALTHCARE & REHAB CENTER	12/31/2021	12/31/2020	12/31/2019
12	SHENANDOAH SENIOR LIVING COMMUNITY	12/31/2022	12/31/2021	12/31/2020
12	SHENANGO PRESBYTERIAN SENIORCARE	12/31/2022	12/31/2021	12/31/2020
12	SNYDER MEMORIAL HEALTH CARE CENTER	12/31/2022	12/31/2021	12/31/2020
12	SPIRITRUST LUTHERAN VLG AT GETTYSBURG	12/31/2022	12/31/2021	12/31/2020
12	SPIRITRUST LUTHERAN VLG AT LUTHER RIDGE	12/31/2022	12/31/2021	12/31/2020
12	THE GARDENS AT GETTYSBURG	12/31/2022	12/31/2021	12/31/2020
12	THE GARDENS AT YORK TERRACE	12/31/2022	12/31/2021	12/31/2020
12	THE PAVILION AT BRMC	6/30/2023	6/30/2022	6/30/2021
12	TITUSVILLE NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
12	TRANSITIONS HEALTHCARE SHOOK HOME	12/31/2022	12/31/2021	12/31/2020
12	WAYNE WOODLANDS MANOR	6/30/2023	6/30/2022	6/30/2021
12	WAYNESBURG NURSING AND REHAB	12/31/2022	12/31/2021	12/31/2020
12	WESTMINSTER WOODS AT HUNTINGDON	12/31/2022	12/31/2021	12/31/2020
12	WHITESTONE CARE CENTER	12/31/2022	12/31/2021	12/31/2020

PG 12 Median	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$162.53	$57.59	$28.91

PG 12 Price	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$190.16	$64.50	$30.07

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
13	ARISTACARE AT EAST FALLS	12/31/2022	12/31/2021	12/31/2020
13	ARISTACARE AT MEADOW SPRINGS	6/30/2023	6/30/2022	6/30/2021
13	FOX SUBACUTE AT MECHANICSBURG	6/30/2023	6/30/2022	6/30/2021
13	FOX SUBACUTE AT SOUTH PHILADELPHIA	12/31/2022	12/31/2021	12/31/2020
13	GOOD SHEPHERD HOME RAKER CENTER	6/30/2023	6/30/2022	6/30/2021
13	GOOD SHEPHERD HOME—BETHLEHEM	6/30/2023	6/30/2022	6/30/2021
13	INGLIS HOUSE	6/30/2023	6/30/2022	6/30/2021
13	MARGARET E. MOUL HOME	6/30/2023	6/30/2022	6/30/2021
13	MONTGOMERY SUBACUTE AND RESPIRATORY CTR	12/31/2021	12/31/2020	12/31/2019

PG 13 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$296.40	$78.50	$61.33

PG 13 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$346.79	$87.92	$63.78

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
13	GOOD SHEPHERD HOME RAKER CENTER	6/30/2023	6/30/2022	6/30/2021
13	GOOD SHEPHERD HOME—BETHLEHEM	6/30/2023	6/30/2022	6/30/2021
13	INGLIS HOUSE	6/30/2023	6/30/2022	6/30/2021
13	MARGARET E. MOUL HOME	6/30/2023	6/30/2022	6/30/2021

PG 13 Median	Resident Care 5.12	Other Resident Reltd	Administrative
	$315.60	$126.04	$59.65

PG 13 Price	Resident Care 5.12	Other Resident Reltd	Administrative
	$369.25	$141.16	$62.04

Peer Group	Current Provider Name	Most Recent Cost Report End Date	Second Most Recent Cost Report End Date	Third Most Recent Cost Report End Date
14	BARNES-KASSON COUNTY HOSPITAL SNF	6/30/2023	6/30/2022	6/30/2021
14	COLE PLACE	6/30/2023	6/30/2022	6/30/2021
14	FULTON COUNTY MEDICAL CENTER LTCU	6/30/2023	6/30/2022	6/30/2021
14	HAVEN PLACE REHAB AND NURSING CENTER	6/30/2023	6/30/2022	6/30/2021
14	MUNCY PLACE	6/30/2023	6/30/2022	6/30/2021
14	PINECREST MANOR	6/30/2023	6/30/2022	6/30/2021
14	ROBERT PACKER HOSP SKD CARE & REHAB CTR	6/30/2023	6/30/2022	6/30/2020
14	ST. LUKES REHAB AND NURSING CENTER	6/30/2023	6/30/2022	6/30/2021
14	THE SUMMIT AT BLUE MOUNTAIN NSG & REHAB	6/30/2023	6/30/2022	6/30/2020
14	WILLOWCREST	6/30/2023	6/30/2022	6/30/2021

PG 14 Median	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$267.68	$113.55	$45.93

PG 14 Price	*Resident Care 5.12*	*Other Resident Reltd*	*Administrative*
	$313.19	$127.18	$47.77

[Pa.B. Doc. No. 26-669. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF TRANSPORTATION

Public-Private Partnerships Board Meeting

The Public-Private Partnerships Board will hold a meeting on Tuesday, June 9, 2026, at 1 p.m. in the Keystone Building, 8N1, 400 North Street, Harrisburg, PA and by means of Microsoft Teams. For more information, contact Maddie Vergos, mvergos@pa.gov.

MICHAEL CARROLL,
Secretary

[Pa.B. Doc. No. 26-670. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF TRANSPORTATION

State Transportation Commission Meeting

The State Transportation Commission (Commission) will hold a meeting on Wednesday, May 13, 2026, from 10 a.m. to 12 p.m. This meeting will be held at the York County History Center, 121 North Pershing Avenue, York, PA and by means of Microsoft Teams. The meeting information, including the agenda, is available at https://bit.ly/STCMay2026.

Individuals may join the meeting at https://teams.microsoft.com/l/meetup-join/19%3ameeting_MWQyZGY0MzMtNTZhNi00MGJlLTljYmUtZDNjOGFhOGM1MGE3%40thread.v2/0?context=%7b%22Tid%22%3a%22418e2841-0128-4dd5-9b6c-47fc5a9a1bde%22%2c%22Oid%22%3a%225254d3e7-0194-4a47-999f-79cb74a9b0ae%22%7d. The meeting ID is 239 064 619 532 23. The passcode is N6z9PW7f.

To call into the meeting, dial (267) 332-8737 and enter 331 932 770# as the conference ID. To find a local number, go to https://dialin.teams.microsoft.com/783683fb-6d69-4e8b-aa52-814e500ad7b8?id=331932770.

For more information, contact the Office of the Commission, (717) 787-2913, RA-PennDOTSTC@pa.gov.

MICHAEL CARROLL,
Secretary

[Pa.B. Doc. No. 26-671. Filed for public inspection May 8, 2026, 9:00 a.m.]

DEPARTMENT OF TRANSPORTATION

Technical Guidelines for the Use of Illuminated Signs on Public Transportation Vehicles

As authorized under section 1601-Q.2 of The Fiscal Code (act) (72 P.S. § 1601-Q.2), the Department of Transportation issues the following technical guidelines for the use of illuminated signs on public transportation vehicles. An illuminated sign on the rear or side of a public transportation vehicle should meet all of the following criteria:

(1) The following placement criteria for a sign:

(i) The sign does not interfere with the public transportation vehicle driver's line of sight, including the mirror field of vision or rear backup camera, if equipped.

(ii) The sign does not cover any portion of the license plate of the vehicle or any vehicle identifiers, signs or markings required by law or regulation.

(iii) The sign does not extend out from the body of the vehicle.

(iv) The sign is securely mounted or affixed to the vehicle to ensure that the sign does not become dislodged or detached from the vehicle during operation.

(v) For signs on the side of a bus, the sign is placed in the space under the window line and between the front and rear wheel wells.

(2) The following display criteria for a sign:

(i) The display does not use sound, animation, scrolling, video, flashing or pulsing lights, moving or simulated motion, or rapid brightness changes.

(ii) The display emits diffused nonglaring light.

(iii) The display can make time of day adjustments and can be dimmed.

(iv) The display freezes on a single image or turns off if an error occurs.

(v) The display can quickly be disabled.

(vi) The display does not include any of the following:

(A) Arrows or directional instructions, except as permitted under section 1601-Q.2 of the act.

(B) Symbols resembling traffic signs or signals.

(C) Emergency vehicle lighting patterns.

(D) Law enforcement or first responder identifiers, unless authorized or requested by those entities.

(E) License plates, including layouts, color schemes or alphanumeric formats that could be mistaken for a vehicle registration.

(F) Phrasing that could be interpreted as traffic or directional guidance.

MICHAEL CARROLL,
Secretary

[Pa.B. Doc. No. 26-672. Filed for public inspection May 8, 2026, 9:00 a.m.]

FISH AND BOAT COMMISSION

Changes to List of Class A Wild Trout Streams; April 2026

The Fish and Boat Commission (Commission) approved the addition of 28 stream sections to its list of Class A wild trout streams as set forth at 56 Pa.B. 975 (February 14, 2026). Under 58 Pa. Code § 57.8a (relating to Class A wild trout streams), it is the Commission's policy to manage self-sustaining Class A wild trout populations as a renewable natural resource to conserve that resource and the angling it provides. Class A wild trout populations represent the best of this Commonwealth's naturally reproducing trout fisheries.

TIMOTHY D. SCHAEFFER,
Executive Director

[Pa.B. Doc. No. 26-673. Filed for public inspection May 8, 2026, 9:00 a.m.]

FISH AND BOAT COMMISSION

Changes to List of Wild Trout Streams; April 2026

The Fish and Boat Commission (Commission) approved revisions to its list of wild trout streams, which include 39 new waters and listing or limit changes to six waters that are currently listed. The revisions were set forth at 56 Pa.B. 978 (February 14, 2026). Under 58 Pa. Code § 57.11 (relating to listing of wild trout streams), it is the policy of the Commission to accurately identify and classify stream sections supporting naturally reproducing populations of trout as wild trout streams. The listing of a stream section as a wild trout stream is a biological designation that does not determine how it is managed. The Commission relies upon many factors in determining the appropriate management of streams. The Commission's Fisheries Management Division maintains the complete list of wild trout streams, and it is available on the Commission's website at https://www.pa.gov/agencies/fishandboat/fishing/all-about-fish/catch-pa-fish/trout/trout-water-classifications.html.

TIMOTHY D. SCHAEFFER,
Executive Director

[Pa.B. Doc. No. 26-674. Filed for public inspection May 8, 2026, 9:00 a.m.]

FISH AND BOAT COMMISSION

Special Regulation Designation; Addition of Hammond Lake Panfish Enhancement Program for Crappies

The Fish and Boat Commission (Commission) took the following action with respect to a water subject to special fishing regulations under 58 Pa. Code Chapter 65 (relating to special fishing regulations), effective upon publication in the *Pennsylvania Bulletin*.

58 Pa. Code § 65.11. Panfish enhancement

The Commission will add the following water to its list of panfish enhancement waters regulated and managed under 58 Pa. Code § 65.11 (relating to panfish enhancement):

County	*Water*	*Species*
Tioga	Hammond Lake	Crappie

TIMOTHY D. SCHAEFFER,
Executive Director

[Pa.B. Doc. No. 26-675. Filed for public inspection May 8, 2026, 9:00 a.m.]

INDEPENDENT REGULATORY REVIEW COMMISSION

Actions Taken by the Commission

The Independent Regulatory Review Commission met publicly at 10 a.m., Thursday, April 23, 2026, and announced the following:

Actions Taken—Regulations Approved:

Environmental Quality Board # 7-583: Water Quality Standards—Class A Stream Redesignations (amends 25 Pa. Code, Chapter 93)

Department of Labor and Industry # 12-123: Elevator Safety Standards Under the Uniform Construction Code (amends 34 Pa. Code Part XIV, Chapter 401 and 405)

Pennsylvania Gaming Control Board # 125-259: Updates Related to W-2G Reference (amends 58 Pa. Code § 465a.26)

Approval Order

Public Meeting Held
April 23, 2026

Commissioners Voting: George D. Bedwick, Chairperson; John F. Mizner, Esq., Vice Chairperson; John J. Soroko, Esq.; Murray Ufberg, Esq.; Dennis A. Watson, Esq.

Environmental Quality Board—
Water Quality Standards: Class A Stream Redesignations
Regulation No. 7-583 (# 3423)

On December 17, 2024, the Independent Regulatory Review Commission (Commission) received this proposed regulation from the Environmental Quality Board (Board). This rulemaking amends 25 Pa. Code, Chapter 93. The proposed regulation was published in the February 1, 2025 *Pennsylvania Bulletin* with a public comment period ending on March 18, 2025. The final-form regulation was submitted to the Commission on March 13, 2026.

This final regulation updates and revises stream-use designations in 16 drainage lists, redesignating more than 530 stream miles in the Delaware, Susquehanna, Ohio, Lake Erie, and Potomac River basins as High Quality Waters based upon their classifications as Class A wild trout streams by the Pennsylvania Fish and Boat Commission. In addition, the Board is making non-

substantive amendments to correct minor errors and reformat portions of drainage lists by consolidating individual entries in large stream basins that have the same designated use.

We have determined this regulation is consistent with the statutory authority of the Board (35 P.S. §§ 691.5(b)(1) and 691.402; 33 U.S.C. §§ 1251(a)(2) and 1313(c)(2)(A)) and the intention of the General Assembly. Having considered all of the other criteria of the Regulatory Review Act, we find promulgation of this regulation is in the public interest.

By Order of the Commission:

This regulation is approved.

Approval Order

Public Meeting Held
April 23, 2026

Commissioners Voting: George D. Bedwick, Chairperson; John F. Mizner, Esq., Vice Chairperson; John J. Soroko, Esq.; Murray Ufberg, Esq.; Dennis A. Watson, Esq.

Department of Labor and Industry—
Elevator Safety Standards under the
Uniform Construction Code
Regulation No. 12-123 (# 3451)

On July 28, 2025, the Independent Regulatory Review Commission (Commission) received this proposed regulation from the Department of Labor and Industry (Department). This rulemaking amends 34 Pa. Code, Part XIV, Chapters 401 and 405. The proposed regulation was published in the August 9, 2025 *Pennsylvania Bulletin* with a public comment period ending on September 8, 2025. The final-form regulation was submitted to the Commission on March 12, 2026.

This final-form regulation updates the Uniform Construction Code for the construction, repair, maintenance and inspection of all elevators and other lifting devices in the Commonwealth.

We have determined this regulation is consistent with the statutory authority of the Department (35 P.S. § 7210.105(c)(2)) and the intention of the General Assembly. Having considered all of the other criteria of the Regulatory Review Act, we find promulgation of this regulation is in the public interest.

By Order of the Commission:

This regulation is approved.

Approval Order

Public Meeting Held
April 23, 2026

Commissioners Voting: George D. Bedwick, Chairperson; John F. Mizner, Esq., Vice Chairperson; John J. Soroko, Esq.; Murray Ufberg, Esq., recused; Dennis A. Watson, Esq.

Pennsylvania Gaming Control Board—
Updates Related to W-2G Reference
Regulation No. 125-259 (# 3478)

On February 24, 2026, the Independent Regulatory Review Commission (Commission) received this regulation from the Pennsylvania Gaming Control Board (Board). This rulemaking amends 58 Pa. Code § 465a.26. Notice of proposed rulemaking was omitted for this regulation; it will become effective upon publication in the *Pennsylvania Bulletin*.

This regulation aligns the Board's jackpot and credit meter payout rules with the Internal Revenue Service's threshold for issuance of a W-2G form.

We have determined this regulation is consistent with the statutory authority of the Board (4 Pa.C.S. §§ 1202, 1207, and 1322) and the intention of the General Assembly. Having considered all of the other criteria of the Regulatory Review Act, we find promulgation of this regulation is in the public interest.

By Order of the Commission:

This regulation is approved.

GEORGE D. BEDWICK,
Chairperson

[Pa.B. Doc. No. 26-676. Filed for public inspection May 8, 2026, 9:00 a.m.]

INDEPENDENT REGULATORY REVIEW COMMISSION

Notice of Comments Issued

Section 5(g) of the Regulatory Review Act (71 P.S. § 745.5(g)) provides that the Independent Regulatory Review Commission (IRRC) may issue comments within 30 days of the close of the public comment period. IRRC comments are based upon the criteria contained in section 5.2 of the Regulatory Review Act (71 P.S. § 745.5b).

IRRC has issued comments on the following proposed regulation. The agency must consider these comments in preparing the final-form regulation. The final-form regulation must be submitted within 2 years of the close of the public comment period or it will be deemed withdrawn.

Reg. No.	*Agency / Title*	*Close of the Public Comment Period*	*IRRC Comments Issued*
16A-6923	State Board of Social Workers, Marriage/Family Therapists and Professional Counselors General Revisions 56 Pa.B. 1115 (February 28, 2026)	03/30/26	04/29/26

State Board of Social Workers, Marriage/Family Therapists and Professional Counselors Regulation # 16A-6923 (IRRC # 3475)

General Revisions

April 29, 2026

We submit for your consideration the following comments on the proposed rulemaking published in the February 28, 2026 *Pennsylvania Bulletin*. Our comments are based on criteria in Section 5.2 of the Regulatory Review Act (71 P.S. § 745.5b). Section 5.1(a) of the Regulatory Review Act (71 P.S. § 745.5a(a)) directs the State Board of Social Workers, Marriage/Family Therapists and Professional Counselors (Board) to respond to all comments received from us or any other source.

1. Section 47.1a. Qualifications for supervisors of individuals pursuing a clinical social work license.—Implementation procedures; Clarity.

Subsection (a)(3) of this section provides for criteria that an individual seeking to qualify as a supervisor must meet if his or her education and experience occurred before January 1, 2006. Because these criteria are effective only until January 1, 2006, we ask that the Board clarify this subsection by adding "met" before the phrase "the following criteria" in paragraph (3). We also ask that the Board change "meet" to "met" in Sections 48.3(a)(3) and 49.3(a)(3) to clarify that the criteria in those subsections are effective only to the date listed in each subsection.

Under Subsection (b), a supervisor will be required to complete supervisor education training in order to serve as a supervisor, and that training must be completed within two years of the effective date of this new subsection. Can training that occurred before the effective date of this subsection count towards the training requirements? In the Preamble to the final-form regulation, we ask the Board to explain how this provision will be implemented, and if necessary, to amend the regulation to account for training that takes place before the effective date. We have similar concerns with Subsections 48.3(b)(1) and 49.3(b)(1).

2. Section 47.12c. Licensed clinical social worker.—Clarity.

Under Subsection (b)(6), a supervisor can provide supervised clinical experience to no more than a total of six supervisees "at the same time." Does "at the same time" mean active supervision at a particular moment or does it mean that a supervisor can only have up to six supervises under their general direction? We ask the Board to how this provision will be implemented in the Preamble to the final-form regulation.

3. Section 47.12f. Electronic supervision.—Clarity.

Subsection (a) states that a supervisor and supervisee may elect to engage in electronic supervision. However, the Preamble states that the decision to engage in electronic supervision is at the discretion of the supervisor. If the statement in the Preamble is accurate, the Board should delete "supervisee" from this subsection. We have similar concerns with Subsections 48.14a(a) and 49.14a(a).

Under Subsection (c), a supervisor must hold an active license to engage in electronic supervision. Since an active license is not the only requirement for a supervisor to engage in electronic supervision, we recommend that the final-form regulation be amended to include a reference to the section of the regulation that sets forth the full requirements to become a supervisor. We have similar concerns with Subsections 48.14(a)(c) and 49.14(a)(c).

4. Section 47.35a. Preapproved providers of continuing education courses and programs for licensed social workers, licensed clinical social workers, and licensed bachelor social workers.—Reasonableness.

Subsection (b) allows organizations to apply to become a Board-approved provider of continuing education. It states, in part, the following, "Approvals are valid for the biennial period in which the application is approved." Would this provision prohibit an organization from applying to become a Board-approved provider prior to the upcoming biennial renewal period? If so, what is the rationale for it? We have similar concerns with Subsections 48.36a(b) and 49.36a(b).

5. Section 47.36a. Other sources of continuing education.—Reasonableness.

Subsection (a)(3) allows a licensee to accrue up to a total of 15 clock hours of continuing education per biennium by writing articles for a professional journal, a chapter in a professional text or an entire professional text that are published during the current biennium or the preceding biennium. What is the justification for allowing credits for actions taken during the preceding biennium? We ask the Board to explain its rationale for these provisions in the Preamble to the final-form regulation. We have similar concerns with Subsections 48.37(a)(3) and 49.37(a)(3).

6. Section 48.36a. Preapproved providers of continuing education course and programs for marriage and family therapists.—Reasonableness; Clarity.

Subsection (a)(2) lists entities that are preapproved providers that may provide, sponsor, co-sponsor, or approve continuing education courses programs or workshops. Subsection (a)(3) lists entities, and their regional, state, and local affiliates that are preapproved providers that may sponsor or co-sponsor continuing education courses and programs. The American Association for Marriage and Family Therapy (AAMFT) and the Pennsylvania Association for Marriage Family Therapy submitted a comment suggesting that AAMFT be added to the preapproved providers list under Subsection (a)(2). We note that AAMFT is listed as a preapproved provider under Subsection (a)(3). What is the rationale for not including AAMFT under Subsection (a)(2)? In addition, why does Subsection (a)(3) not include workshops as a type of continuing education that is subject for approval by the entities?

7. Section 48.71. Code of ethical practice and professional conduct.—Reasonableness; Clarity.

This section states that marriage and family therapist licensees must adhere to the AAMFT Code of Ethics of 2015. AAMFT submitted a comment that states its Code of Ethics was recently updated that the effective date of the Code of Ethics is January 2026. We ask the Board to review the January 2026 AAMFT Code of Ethics and, if appropriate, to update the final-form regulation to reflect this version of the Code.

GEORGE D. BEDWICK,
Chairperson

[Pa.B. Doc. No. 26-677. Filed for public inspection May 8, 2026, 9:00 a.m.]

INSURANCE DEPARTMENT

Appeal of D.K. under the Quality Health Care Accountability and Protection Article; UPMC Community HealthChoices; Doc. No. HC26-03-016

Under Article XXI of The Insurance Company Law of 1921, referred to as the Quality Health Care Accountability and Protection Article (40 P.S. §§ 991.2101—991.2194), notice is hereby given that the appellant in this action has requested a hearing, in connection with the appellant's managed health care plan. The proceedings in this matter will be governed by 2 Pa.C.S. §§ 501—508 and 701—704 (relating to Administrative Agency Law), §§ 561—588 (relating to administrative proceeding interpreters for persons with limited English proficiency; and administrative proceeding interpreters for persons who are deaf), 1 Pa. Code Part II (relating to General Rules of Administrative Practice and Procedure) and 31 Pa. Code §§ 56.1—56.3 (relating to Special Rules of Administrative Practice and Procedure).

A prehearing telephone conference initiated by this office is scheduled for May 27, 2026, at 11 a.m. Each party shall provide a telephone number to be used for the telephone conference to the Hearings Administrator on or before May 26, 2026. A date for a hearing shall be determined, if necessary, at the prehearing/settlement conference.

Protests, petitions to intervene or notices of intervention, if any, must be electronically filed on or before May 13, 2026, with the Administrative Hearings Office. The email address to be used for the Administrative Hearings Office is ra-hearings@pa.gov. Answers to protests, petitions to intervene or notices of intervention, if any, must be electronically filed on or before May 26, 2026.

Persons with a disability who wish to attend the previously referenced administrative hearing and require an auxiliary aid, service or other accommodation to participate in the hearing, contact Nicole Sites Heaton, (717) 787-5790, nsitesheat@pa.gov.

MICHAEL HUMPHREYS,
Insurance Commissioner

[Pa.B. Doc. No. 26-678. Filed for public inspection May 8, 2026, 9:00 a.m.]

INSURANCE DEPARTMENT

Appeal of D.K. under the Quality Health Care Accountability and Protection Article; UPMC Community HealthChoices; Doc. No. HC26-03-017

Under Article XXI of The Insurance Company Law of 1921, referred to as the Quality Health Care Accountability and Protection Article (40 P.S. §§ 991.2101—991.2194), notice is hereby given that the appellant in this action has requested a hearing, in connection with the appellant's managed health care plan. The proceedings in this matter will be governed by 2 Pa.C.S. §§ 501—508 and 701—704 (relating to Administrative Agency Law), §§ 561—588 (relating to administrative proceeding interpreters for persons with limited English proficiency; and administrative proceeding interpreters for persons who are deaf), 1 Pa. Code Part II (relating to General Rules of Administrative Practice and Procedure) and 31 Pa. Code §§ 56.1—56.3 (relating to Special Rules of Administrative Practice and Procedure).

A prehearing telephone conference initiated by this office is scheduled for May 27, 2026, at 11 a.m. Each party shall provide a telephone number to be used for the telephone conference to the Hearings Administrator on or before May 26, 2026. A date for a hearing shall be determined, if necessary, at the prehearing/settlement conference.

Protests, petitions to intervene or notices of intervention, if any, must be electronically filed on or before May 13, 2026, with the Administrative Hearings Office. The email address to be used for the Administrative Hearings Office is ra-hearings@pa.gov. Answers to protests, petitions to intervene or notices of intervention, if any, must be electronically filed on or before May 26, 2026.

Persons with a disability who wish to attend the previously referenced administrative hearing and require an auxiliary aid, service or other accommodation to participate in the hearing, contact Nicole Sites Heaton, (717) 787-5790, nsitesheat@pa.gov.

MICHAEL HUMPHREYS,
Insurance Commissioner

[Pa.B. Doc. No. 26-679. Filed for public inspection May 8, 2026, 9:00 a.m.]

INSURANCE DEPARTMENT

Appeal of L.V. under the Quality Health Care Accountability and Protection Article; Capital Blue Cross; Doc. No. HC26-04-008

Under Article XXI of The Insurance Company Law of 1921, referred to as the Quality Health Care Accountability and Protection Article (40 P.S. §§ 991.2101—991.2194), notice is hereby given that the appellant in this action has requested a hearing, in connection with the appellant's managed health care plan. The proceedings in this matter will be governed by 2 Pa.C.S. §§ 501—508 and 701—704 (relating to Administrative Agency Law), §§ 561—588 (relating to administrative proceeding interpreters for persons with limited English proficiency; and administrative proceeding interpreters for persons who are deaf), 1 Pa. Code Part II (relating to General Rules of Administrative Practice and Procedure) and 31 Pa. Code §§ 56.1—56.3 (relating to Special Rules of Administrative Practice and Procedure).

A prehearing telephone conference initiated by this office is scheduled for May 14, 2026, at 10 a.m. Each party shall provide a telephone number to be used for the telephone conference to the Hearings Administrator on or before May 12, 2026. A date for a hearing shall be determined, if necessary, at the prehearing/settlement conference.

Protests, petitions to intervene or notices of intervention, if any, were to be electronically filed on or before April 30, 2026, with the Administrative Hearings Office. The email address to be used for the Administrative Hearings Office is ra-hearings@pa.gov. Answers to protests, petitions to intervene or notices of intervention, if any, must be electronically filed on or before May 12, 2026.

Persons with a disability who wish to attend the previously referenced administrative hearing and require

an auxiliary aid, service or other accommodation to participate in the hearing, contact Nicole Sites Heaton, (717) 787-5790, nsitesheat@pa.gov.

MICHAEL HUMPHREYS,
Insurance Commissioner

[Pa.B. Doc. No. 26-680. Filed for public inspection May 8, 2026, 9:00 a.m.]

INSURANCE DEPARTMENT

Application for Merger of West Branch Mutual Insurance Company with and into Millville Mutual Insurance Company

An application has been received requesting approval of the merger of West Branch Mutual Insurance Company with and into Millville Mutual Insurance Company, both mutual casualty insurance companies organized under the laws of the Commonwealth. The filing was made under Article XIV of The Insurance Company Law of 1921 (40 P.S. §§ 991.1401—991.1414).

Persons wishing to comment on the grounds of public or private interest in this merger are invited to submit a written statement to the Insurance Department (Department) within 15 days from the date of publication of this notice in the *Pennsylvania Bulletin*. Each written statement must include name, address and telephone number of the interested party; identification of the application to which the statement is addressed; and a concise statement with sufficient detail and relevant facts to inform the Department of the exact basis of the statement. Written statements should be directed to Lori Rumpf, Company Licensing Division, Insurance Department, 1345 Strawberry Square, Harrisburg, PA 17120, lrumpf@pa.gov.

MICHAEL HUMPHREYS,
Insurance Commissioner

[Pa.B. Doc. No. 26-681. Filed for public inspection May 8, 2026, 9:00 a.m.]

PENNSYLVANIA PUBLIC UTILITY COMMISSION

Service of Notice of Motor Carrier Applications

The following temporary authority and/or permanent authority applications for the right to render service as a common carrier or contract carrier in this Commonwealth have been filed with the Pennsylvania Public Utility Commission (Commission). Formal protests, petitions to intervene and answers must be filed in accordance with 52 Pa. Code (relating to public utilities) on or before May 26, 2026. Filings are recommended to be made electronically through the Commission's eFiling system addressed to the Secretary, Pennsylvania Public Utility Commission, 400 North Street, Harrisburg, PA 17120, with a copy served on the applicant by May 26, 2026. Individuals can sign up for a free eFiling account at https://www.puc.pa.gov/efiling/Default.aspx. A protest shall indicate whether it applies to the temporary authority application, the permanent authority application, or both. Protests may only be filed if there is evidence that the applicant lacks fitness. Protests based on endangering or impairing operations of an existing carrier will not be honored. The documents filed in support of the application are only available for inspection through the Commission's website at www.puc.pa.gov by searching under the docket number as follows or by searching the applicant's website.

Applications of the following for approval to *begin* operating as *common carriers* for transportation of *persons* as described under each application.

A-2026-3061395. Above & Beyond Transportation Services (ABT), LLC (413 Mary Street, Latrobe, Westmoreland County, PA 15650) to transport, as a common carrier, by motor vehicle, persons in paratransit service, from points in Westmoreland County, to points in Pennsylvania, and return.

A-2026-3061678. Majic Courier Care, LLC (628 East Chestnut Street, # 2, Coatesville, Chester County, PA 19320) to transport, as a common carrier, by motor vehicle, persons in paratransit service, from points in Chester County, to points in Pennsylvania, and return.

A-2026-3061699. Wellspan EMS, LLC (45 Monument Road, York, York County, PA 17403) for the right to begin to transport, as a common carrier, by motor vehicle, persons in paratransit service in wheelchair vans, from points in the Counties of Adams, Franklin, Lancaster, Lebanon, Northumberland, Snyder, Union and York, to points in Pennsylvania, and return. *Attorney*: Kenneth R. Stark, Esquire, McNees Wallace & Nurick, LLC, 100 Pine Street, P.O. Box 1166, Harrisburg, PA 17108-1166; Victoria Geddis, Esquire, McNees Wallace & Nurick, LLC, 170 North Radnor-Chester Road, Suite 350, Radnor, PA 19087.

A-2026-3061859. Carefully Caring Transport, LLC (7275 Cornelius Street, Philadelphia, Philadelphia County, PA 19138) to transport, as a common carrier, by motor vehicle, persons in paratransit service, from points in the Counties of Berks, Bucks, Delaware and Montgomery, and the City and County of Philadelphia, to points in Pennsylvania, and return. *Attorney*: Brian T. Boyle, Esq., Two Bala Plaza, Suite 300, Bala Cynwyd, PA 19004.

A-2026-3062005. Serene Transport Services, LLC (857 South Arlington Avenue, Harrisburg, Dauphin County, PA 17109) to transport, as a common carrier, by motor vehicle, persons in paratransit service, from points in the Counties of Allegheny, Armstrong, Beaver, Butler, Fayette, Washington and Westmoreland, to points in Pennsylvania, and return. *Attorney*: Seth A. Mendelsohn, Esq., Saxton & Stump, 4250 Crums Mill Road, Suite 201, Harrisburg, PA 17112.

Application of the following for the approval of the right and privilege to *discontinue/abandon* operating as *common carriers* by motor vehicle and for cancellation of the certificate of public convenience as described under the application.

A-2026-3061934. Golden Care Transportation, LLC (471 Pheasant Lane, Fairless Hills, Bucks County, PA 19030) for the discontinuance of service and cancellation of its certificate, to transport, as a common carrier, by motor vehicle, persons in paratransit service, from points in Philadelphia County, to points in Pennsylvania, and return; and from points in the Counties of Bucks and Montgomery, to the facilities of SAI Adult Daycare Center Corporation in Bristol Township, Bucks County, and return.

MATTHEW HOMSHER,
Secretary

[Pa.B. Doc. No. 26-682. Filed for public inspection May 8, 2026, 9:00 a.m.]

PENNSYLVANIA PUBLIC UTILITY COMMISSION

Service of Notice of Motor Carrier Formal Complaints

Formal complaints have been issued by the Pennsylvania Public Utility Commission. Answers must be filed in accordance with 52 Pa. Code Chapter 5 (relating to formal proceedings). Answers are due May 25, 2026, and must be made with the Secretary, Pennsylvania Public Utility Commission, 400 North Street, Harrisburg, PA 17120, with a copy to the assigned Prosecutor, Pennsylvania Public Utility Commission.

Pennsylvania Public Utility Commission; Bureau of Investigation and Enforcement v. WHC PA, LLC; Docket No. C-2026-3058686

NOTICE OF COMPLAINT

A. You must file an Answer within twenty (20) days of the date of service of this Complaint. The date of service is the mailing date as indicated at the top of the Secretarial Letter for this Complaint and Notice, 52 Pa. Code § 1.56(a). An Answer is a written explanation of circumstances wished to be considered in determining the outcome. The Answer shall raise all factual and legal arguments that you wish to claim in your defense and must include the reference number of this Complaint. Your Answer must be verified, and the original shall be mailed to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

Or you may eFile your Answer using the Commission's website at www.puc.pa.gov. The link to eFiling is located under the Filing and Resources tab on the homepage. If your Answer exceeds 250 pages, you must also file a paper copy with the Secretary's Bureau.

In addition to filing your Answer with the Commission's Secretary, a copy should either be:

Mailed to: Pennsylvania Public Utility Commission
Bureau of Investigation and Enforcement
Commonwealth Keystone Building
400 North Street, 3W
Harrisburg, PA 17120

Or, E-mailed to: RA-PCCmplntResp@pa.gov

B. If you fail to answer this Complaint within twenty (20) days, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a penalty. The penalty could include a civil penalty, the suspension or revocation of your operating authority or other such remedy.

C. You may elect not to contest this complaint by paying the civil penalty requested in this Complaint by certified check or money order. Payment must be made to "Commonwealth of Pennsylvania" and should be forwarded to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

D. Your payment is an admission that you committed the alleged violation and an agreement to cease and desist from further violations. Upon receipt of your payment, the Complaint proceeding shall be closed.

E. If you file an Answer, which admits or fails to deny the allegations of the Complaint, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a civil penalty and/or other such remedy.

F. If you file an Answer which contests the Complaint, the matter will be assigned to an Administrative Law Judge (ALJ) for hearing and decision. The ALJ is not bound by the requested civil penalty.

G. Alternative formats of this material are available for persons with disabilities by contacting the Commission's ADA Coordinator at 717-787-8714.

COMPLAINT

The Pennsylvania Public Utility Commission (Commission or "PUC") is a duly constituted agency of the Commonwealth of Pennsylvania empowered to regulate public utilities within the Commonwealth. The Commission has delegated its authority to initiate proceedings which are prosecutory in nature to the Bureau of Investigation and Enforcement and other bureaus with enforcement responsibilities. Pursuant to that delegated authority and Section 701 of the Public Utility Code, the Bureau of Investigation and Enforcement—Motor Carrier Division hereby represents as follows:

1. That WHC PA, LLC, Respondent, maintains its principal place of business at 1101 Beaver Avenue, Pittsburgh, PA 15233.

2. That Respondent was issued certificates of public convenience by this Commission for taxi and limousine authority on December 3, 2019, paratransit authority on May 4, 2020, Transportation Network Company service on February 2, 2022, and group and party 15 or less authority on December 12, 2023, at PUC Utility Code 6322525.

3. That on or about December 2, 2025, PUC Motor Carrier Enforcement Officer Joseph Zalar was assigned to investigate a customer complaint concerning a taxi ride that took place November 15, 2025, to which the customer alleged a fare overcharge by Respondent.

4. That on or about December 11, 2025, Respondent's general manager, Chad Stepanik, provided Officer Zalar a copy of Respondent's tariff[1] and the customer's trip sheet, which indicated that the customer's trip from the Pittsburgh International Airport, 1000 Airport Boulevard, Pittsburgh, Allegheny County to 89 Kensington Drive, Pittsburgh, Allegheny County was 17.86 miles, approximately 35 minutes long, and the customer was charged $53.95.

5. That Respondent's tariff on file with the Commission, docketed at A-2019-3012496, provides for a metered rate of $4.00 for the first 1/10 mile or fraction thereof, $0.19 for each additional 1/10 mile up to 20 miles, $.33 for each 1/10 more each additional 1/10 mile over 20 miles, and $0.554 for each one minute of fraction thereof for waiting time, Additionally, a $1.25 surcharge is appli-

[1] The tariff produced by Mr. Stepanik on or about December 11, 2025, provides for a metered rate of $5.00 for the first 1/10 mile, $0.20 for each additional 1/10 mile up to 20 miles, $0.33 for each additional 1/10 mile over 20 miles, and $0.55 for each one minute for waiting time. Additionally, a $6.25 surcharge is applicable for pick up and drop off at the Pittsburgh International Airport, and a $1.25 surcharge is applicable for trips occurring on all Sundays and holidays. This produced tariff is not Respondent's official tariff on file with the PUC. Officer Zalar noted the discrepancy, to which Mr. Stepanik claimed that the produced tariff was indeed filed with the PUC.

cable for trips occurring on all Sundays and holidays, and a $5.00 surcharge is applicable when departing the Pittsburgh International Airport.

6. That by using Respondent's tariff on file with the PUC and the details of the customer's trip, the trip should have cost $42.74. Therefore, Respondent overcharged the customer $11.21 for the trip on November 15, 2025, violating 52 Pa. Code §§ 29.305, 29.314(b)(6); 52 Pa. Code § 316(a). The penalty for this violation is $250.

Wherefore, the Bureau of Investigation and Enforcement hereby requests that the Commission impose a civil penalty of two hundred fifty dollars ($250.00) upon WHC PA, LLC for the violation described in this Complaint and order such other remedy as the Commission may deem to be appropriate. If payment of the civil penalty is not made, the Bureau of Investigation and Enforcement requests that the Bureau of Administration, Financial & Assessments Office, be directed to refer the matter to the Pennsylvania Office of Attorney General for collection of the civil penalty.

Respectfully submitted,
Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement
400 North Street
Harrisburg, PA 17120

VERIFICATION

I, Brian B. Mehus, hereby state that the facts above set forth are true and correct to the best of my knowledge, information, and belief and that I expect that the Bureau will be able to prove same at any hearing held in this matter. I understand that the statements herein are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities.

Date: 25 March 2026

Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement

Pennsylvania Public Utility Commission; Bureau of Investigation and Enforcement v. Lyft, Inc.; Docket No. C-2026-3061057

NOTICE OF COMPLAINT

A. You must file an Answer within twenty (20) days of the date of service of this Complaint. The date of service is the mailing date as indicated at the top of the Secretarial Letter for this Complaint and Notice, 52 Pa. Code § 1.56(a). An Answer is a written explanation of circumstances wished to be considered in determining the outcome. The Answer should raise all factual and legal arguments that you wish to claim in your defense and must include the reference number of this Complaint. Your Answer must be verified and the original mailed to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

Or you may eFile your Answer using the Commission's website at www.puc.pa.gov. The link to eFiling is located under the Filing and Resources tab on the homepage. If your Answer exceeds 250 pages, you must also file a paper copy with the Secretary's Bureau.

In addition to filing your Answer with the Commission's Secretary, a copy should either be

Mailed to: Pennsylvania Public Utility Commission
Bureau of Investigation and Enforcement
Commonwealth Keystone Building
400 North Street, 3W
Harrisburg, PA 17120

Or, E-mailed to: RA-PCCmplntResp@pa.gov

B. If you fail to answer this Complaint within twenty (20) days, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a penalty. The penalty could include a civil penalty, the suspension or revocation of your operating authority, or other such remedy.

C. You may elect not to contest this Complaint by paying the civil penalty requested in this Complaint by certified check or money order. Payment must be made to "Commonwealth of Pennsylvania" and should be forwarded to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

D. Your payment is an admission that you committed the alleged violation and an agreement to cease and desist from further violations. Upon receipt of your payment, the Complaint proceeding shall be closed.

E. If you file an Answer, which admits or fails to deny the allegations of the Complaint, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a civil penalty and/or other such remedy.

F. If you file an Answer which contests the Complaint, the matter will be assigned to an Administrative Law Judge (ALJ) for hearing and decision. The ALJ is not bound by the requested civil penalty.

G. Alternative formats of this material are available for persons with disabilities by contacting the Commission's ADA Coordinator at 717-787-8714.

COMPLAINT

The Pennsylvania Public Utility Commission ("Commission" or "PUC") is a duly constituted agency of the Commonwealth of Pennsylvania empowered to regulate public utilities within the Commonwealth. The Commission has delegated its authority to initiate proceedings which are prosecutory in nature to the Bureau of Investigation and Enforcement and other bureaus with enforcement responsibilities. Pursuant to that delegated authority and Section 701 of the Public Utility Code, the Bureau of Investigation and Enforcement—Motor Carrier Division hereby represents as follows:

1. That Lyft, Inc., Respondent, maintains its principal place of business at 185 Berry Street, Suite 400, San Francisco, CA, 94107.

2. That Respondent was issued a license by this Commission on February 9, 2017, at Application Docket No. A-2017-2583947, PUC Utility Code 6416471, authorizing transportation of persons for compensation within Pennsylvania in Transportation Network Company ("TNC") service.

3. That Respondent, on March 12, 2026, permitted a certain 2024 Nissan station wagon bearing PA registra-

tion number KWP8705 and having vehicle identification number ending in the last 4 digits 5966 to be operated by driver Stephen J. Treglia.

4. That the vehicle described in numbered paragraph 3, above, was inspected on that date by PUC Motor Carrier Enforcement Officer Jeremy Smith on Fox Hill Road, Benner Township, Centre County. Officer Smith determined that at the time of the inspection, the vehicle in question failed to display the decal of the TNC Service while logged on to the TNC's digital network or offering or providing a prearranged ride.

5. That Respondent, by allowing a vehicle to be operated without displaying the decal associated with the TNC Service, violated 66 Pa.C.S. § 2605(b)(8). The penalty for this violation is $50.

Wherefore, the Bureau of Investigation and Enforcement hereby requests that the Commission impose a civil penalty of fifty dollars ($50.00) upon Lyft, Inc. for the violations described in this Complaint and order such other remedy as the Commission may deem to be appropriate. If payment of the civil penalty is not made, the Bureau of Investigation and Enforcement requests that the Bureau of Administration, Financial & Assessments Office, be directed to refer the matter to the Pennsylvania Office of Attorney General for collection of the civil penalty.

Respectfully submitted,
Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement
400 North Street, 2nd Floor
Harrisburg, PA 17120

VERIFICATION

I, Brian B. Mehus, hereby state that the facts above set forth are true and correct to the best of my knowledge, information and belief and that I expect that the Bureau will be able to prove same at any hearing held in this matter. I understand that the statements herein are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities.

Date: 27 March 2026

Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement

Pennsylvania Public Utility Commission; Bureau of Investigation and Enforcement v. Keystone Transportation, LLC; Docket No. C-2026-3060658

NOTICE OF COMPLAINT

A. You must file an Answer within twenty (20) days of the date of service of this Complaint. The date of service is the mailing date as indicated at the top of the Secretarial Letter for this Complaint and Notice, 52 Pa. Code § 1.56(a). An Answer is a written explanation of circumstances wished to be considered in determining the outcome. The Answer should raise all factual and legal arguments that you wish to claim in your defense and must include the reference number of this Complaint. Your Answer must be verified, and the original mailed to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

Or you may eFile your Answer using the Commission's website at www.puc.pa.gov. The link to eFiling is located under the Filing and Resources tab on the homepage. If your Answer exceeds 250 pages, you must also file a paper copy with the Secretary's Bureau.

In addition to filing your Answer with the Commission's Secretary, a copy should either be

Mailed to: Pennsylvania Public Utility Commission
Bureau of Investigation and Enforcement
Commonwealth Keystone Building
400 North Street, 3W
Harrisburg, PA 17120

Or, E-mailed to: RA-PCCmplntResp@pa.gov

B. If you fail to answer this Complaint within twenty (20) days, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a penalty. The penalty could include a civil penalty, the suspension or revocation of your operating authority or other such remedy.

C. You may elect not to contest this Complaint by paying the civil penalty requested in this Complaint by certified check or money order. Payment must be made to "Commonwealth of Pennsylvania" and should be forwarded to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

D. Your payment is an admission that you committed the alleged violation and an agreement to cease and desist from further violations. Upon receipt of your payment, the Complaint proceeding shall be closed.

E. If you file an Answer, which admits or fails to deny the allegations of the Complaint, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a civil penalty and/or other such remedy.

F. If you file an Answer which contests the Complaint, the matter will be assigned to an Administrative Law Judge (ALJ) for hearing and decision. The ALJ is not bound by the requested civil penalty.

G. Alternative formats of this material are available for persons with disabilities by contacting the Commission's ADA Coordinator at 717-787-8714.

COMPLAINT

The Pennsylvania Public Utility Commission (Commission or "PUC") is a duly constituted agency of the Commonwealth of Pennsylvania empowered to regulate public utilities within the Commonwealth. The Commission has delegated its authority to initiate proceedings which are prosecutory in nature to the Bureau of Investigation and Enforcement and other bureaus with enforcement responsibilities. Pursuant to that delegated authority and Section 701 of the Public Utility Code, the Bureau of Investigation and Enforcement—Motor Carrier Division hereby represents as follows:

1. That Keystone Transportation, LLC, Respondent, maintains its principal place of business at 2304 Walnut Street, Harrisburg, PA 17103.

2. That on November 13, 2020, Respondent was issued a certificate of public convenience by this Commission for

paratransit authority among various counties in Pennsylvania to points in Pennsylvania and return, at PUC Utility Code 6418669.

3. That on February 24, 2026, PUC Motor Carrier Enforcement Officer Travis Griffith conducted a random inspection on South 13th Street and Derry Street, Harrisburg, Dauphin County, of a 2013 Dodge van, bearing PA registration number BA92600, and having vehicle identification number ending in the last 4 digits 2519, operated by driver, Jose Vega. At the time of inspection, the vehicle displayed a dome light affixed to the top of the vehicle displaying "TAXI" and was equipped with an operable meter. The following violations were found:

a. Vehicle failed to legibly display Respondent's name and associated PUC certificate of convenience number, as the black markings appear indistinguishable against the vehicle's dark blue paint, violating 52 Pa. Code § 29.71(a). The penalty for this violation is $50.

b. Vehicle had an inoperable parking brake, violating 52 Pa. Code § 29.402(1); 67 Pa. Code § 175.64(c). The penalty for this violation is $50.

c. Vehicle was equipped with a dome light, violating 52 Pa. Code § 29.402(1); 67 Pa. Code § 175.66(h). The penalty for this violation is $50.

Wherefore, the Bureau of Investigation and Enforcement hereby requests that the Commission impose a civil penalty of one hundred fifty dollars ($150.00) upon Keystone Transportation, LLC for the violations described in this Complaint and order such other remedy as the Commission may deem to be appropriate. If payment of the civil penalty is not made, the Bureau of Investigation and Enforcement requests that the Bureau of Administration, Financial & Assessments Office, be directed to refer the matter to the Pennsylvania Office of Attorney General for collection of the civil penalty.

Respectfully submitted,
Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement
400 North Street, 2nd Floor
Harrisburg, PA 17120

VERIFICATION

I, Brian B. Mehus, hereby state that the facts above set forth are true and correct to the best of my knowledge, information, and belief and that I expect that the Bureau will be able to prove same at any hearing held in this matter. I understand that the statements herein are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities.

Date: 30 March 2026

Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement

Pennsylvania Public Utility Commission; Bureau of Investigation and Enforcement v. LC Transportation, LLC; Docket No. C-2026-3059196

NOTICE OF COMPLAINT

A. You must file an Answer within twenty (20) days of the date of service of this Complaint. The date of service is the mailing date as indicated at the top of the Secretarial Letter for this Complaint and Notice, 52 Pa. Code § 1.56(a). An Answer is a written explanation of circumstances wished to be considered in determining the outcome. The Answer should raise all factual and legal arguments that you wish to claim in your defense and must include the reference number of this Complaint. Your Answer must be verified and the original mailed to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

Or you may eFile your Answer using the Commission's website at www.puc.pa.gov. The link to eFiling is located under the Filing and Resources tab on the homepage. If your Answer exceeds 250 pages, you must also file a paper copy with the Secretary's Bureau.

In addition to filing your Answer with the Commission's Secretary, a copy should either be

Mailed to: Pennsylvania Public Utility Commission
Bureau of Investigation and Enforcement
Commonwealth Keystone Building
400 North Street, 3W
Harrisburg, PA 17120

Or, E-mailed to: RA-PCCmplntResp@pa.gov

B. If you fail to answer this Complaint within twenty (20) days, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a penalty. The penalty could include a civil penalty, the suspension or revocation of your operating authority, or other such remedy.

C. You may elect not to contest this Complaint by paying the civil penalty requested in this Complaint by certified check or money order. Payment must be made to "Commonwealth of Pennsylvania" and should be forwarded to:

Matthew L. Homsher, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

D. Your payment is an admission that you committed the alleged violation and an agreement to cease and desist from further violations. Upon receipt of your payment, the Complaint proceeding shall be closed.

E. If you file an Answer, which admits or fails to deny the allegations of the Complaint, the Bureau of Investigation and Enforcement will request that the Commission issue a Secretarial Letter imposing a civil penalty and/or other such remedy.

F. If you file an Answer which contests the Complaint, the matter will be assigned to an Administrative Law Judge (ALJ) for hearing and decision. The ALJ is not bound by the requested civil penalty.

G. Alternative formats of this material are available for persons with disabilities by contacting the Commission's ADA Coordinator at 717-787-8714.

COMPLAINT

The Pennsylvania Public Utility Commission ("Commission" or "PUC") is a duly constituted agency of the Commonwealth of Pennsylvania empowered to regulate public utilities within the Commonwealth. The Commission has delegated its authority to initiate proceedings which are prosecutory in nature to the Bureau of Investigation and Enforcement and other bureaus with enforcement responsibilities. Pursuant to that delegated author-

ity and Section 701 of the Public Utility Code, the Bureau of Investigation and Enforcement—Motor Carrier Division hereby represents as follows:

1. That LC Transportation, LLC, Respondent, maintains its principal place of business at 1824 Church Road, York, PA 17408.

2. That a certificate of public convenience issued by this Commission is required to transport, as a motor carrier, property between points in Pennsylvania for compensation. Based on review of records maintained by the Commission, Respondent applied for a certificate of public convenience to transport, property, excluding household goods in use, on April 3, 2025, at Application Docket No. A-2025-3054405. Respondent's application was conditionally approved upon submittal of insurance filings within sixty days of April 8, 2025, to which Respondent failed to comply, and Respondent's application was dismissed by the Commission on June 17, 2025. Respondent subsequently applied for a certificate of public convenience to transport property, excluding household goods in use, on December 17, 2025, at Application Docket No. A-2025-3059363, Respondent's application was conditionally approved upon submittal of insurance filings within sixty days of December 22, 2025, to which Respondent failed to comply, and Respondent's application was dismissed by the Commission on March 5, 2026.

3. That on December 10, 2025, PUC Motor Carrier Enforcement Supervisor Ernest Smith and Officer Joshua Corney conducted an inspection of a 2026 Hino truck, bearing NY registration number 36270NG and having vehicle identification number ending in the last 4 digits 1529, operated by Braillian Lopez Mejia. Supervisor Snyder found Respondent in violation of transporting property between points in the Commonwealth for compensation without a certificate of public convenience granted by this Commission, as Respondent was transporting various tool sets and appliances from Harrisburg, Dauphin County, to various stops within Pennsylvania for $850.00. Respondent was issued a Driver/Vehicle Compliance Report ("DVCR") and, in accordance with Pennsylvania's Motor Carrier Safety Assistance Program, a commercial motor vehicle inspection report.

4. That Respondent, by providing transportation services by vehicle for compensation on December 10, 2025, without first obtaining/holding a certificate/authority from the Commission, has violated 66 Pa.C.S. §§ 1101 and 1102(a). The penalty for this violation is $1,000.

Wherefore, the Bureau of Investigation and Enforcement hereby requests that

1. LC Transportation, LLC, be ordered to pay a civil penalty of one thousand dollars ($1,000.00) for the violations set forth in this Complaint and order such other remedy as the Commission may deem to be appropriate.

2. Respondent be directed to cease and desist from transporting property between points in Pennsylvania for compensation until such time as the proper authority has been granted by the Commission.

3. If payment of the civil penalty is not made, the Bureau of Investigation and Enforcement requests that:

a. The Commission certify Respondent's motor vehicle registrations to the Pennsylvania Department of Transportation for suspension or revocation, pursuant to 75 Pa.C.S. § 1375; and

b. The matter be referred to the Pennsylvania Office of Attorney General for appropriate action.

Respectfully submitted,
Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement
400 North Street, 2nd Floor
Harrisburg, PA 17120

VERIFICATION

I, Brian B. Mehus, hereby state that the facts above set forth are true and correct to the best of my knowledge, information, and belief and that I expect that the Bureau will be able to prove the same at any hearing held in this matter. I understand that the statements herein are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities.

Date: 30 March 2026

Brian B. Mehus, Chief
Motor Carrier Enforcement
Bureau of Investigation and Enforcement

MATTHEW HOMSHER,
Secretary

[Pa.B. Doc. No. 26-683. Filed for public inspection May 8, 2026, 9:00 a.m.]

PENNSYLVANIA PUBLIC UTILITY COMMISSION

Water Service; Telephonic Prehearing Conference

A-2025-3055741. Pennsylvania-American Water Company. Application of Pennsylvania-American Water Company under 66 Pa.C.S. §§ 1102(a) and 1329 (relating to enumeration of acts requiring certificate; and valuation of acquired water and wastewater systems) for the approval of: (1) the transfer, by sale, to Pennsylvania-American Water Company, of substantially all of the assets, properties and rights related to the water treatment and distribution system owned and operated by the Indian Creek Valley Water Authority; and (2) the rights of Pennsylvania-American Water Company to begin to offer or furnish water service to the public in all of the Borough of Ohiopyle and portions of the Townships of Bullskin, Connellsville, Saltlick, Springfield and Stewart, Fayette County and all of the Borough of Donegal and portions of the Townships of Donegal and Mount Pleasant, Westmoreland County.

Formal protests and petitions to intervene must be filed in accordance with 52 Pa. Code (relating to public utilities) on or before May 26, 2026. Filings must be made with the Secretary, Pennsylvania Public Utility Commission, 400 North Street, 2nd Floor, Harrisburg, PA 17120, with a copy served on the applicant. The documents filed in support of the application are available only online for inspection and copying on the Pennsylvania Public Utility Commission's (Commission) website at www.puc.pa.gov, and at the applicant's business address. Parties to proceedings pending before the Commission must open and use an eFiling account through the Commission's website at www.puc.pa.gov or individuals may submit the filing by overnight delivery to the Secretary, Pennsylvania Public Utility Commission, 400 North Street, Harrisburg, PA 17120. If a filing contains confidential or proprietary material, the filing is required to be submitted by overnight delivery. Large filings containing confidential or

proprietary material may be submitted through the Commission's SharePoint file system with advanced notice to the Commission prior to submittal.

Applicant: Pennsylvania-American Water Company, 852 Wesley Drive, Mechanicsburg, PA 17055

Through and By Counsel for: Elizabeth Rose Triscari, Esquire, Pennsylvania-American Water Company, 852 Wesley Drive, Mechanicsburg, PA 17055, (717) 550-1574, elizabeth.triscari@amwater.com

Telephonic Prehearing Conference

A telephonic prehearing conference on the previously captioned case will be held as follows:

Date:	Thursday, May 28, 2026
Time:	9 a.m.
Presiding:	Administrative Law Judge Katrina L. Dunderdale Administrative Law Judge Ann Quimby (412) 565-3550 Fax: (717) 231-4765

At the previously listed date and time, individuals must call into the conference. Individuals will not be called by the Presiding Officers.

To participate in the prehearing conference, individuals must:

- Dial the following toll-free bridge number.
- Enter the following passcode number when instructed to do so.
- Speak the individual's name when prompted.

The telephone system will connect individuals to the telephonic prehearing conference.

Toll-free bridge number: (866) 675-4411

Passcode number: 23464163

Individuals representing themselves are not required to be represented by an attorney at the telephonic prehearing conference. Others, including a partnership, corporation, limited liability company, trust, association or governmental agency or subdivision, must be represented by an attorney licensed to practice law in this Commonwealth or admitted pro hac vice. An attorney representing you should file a notice of appearance before the scheduled conference date.

Individuals who require accommodation for a disability to participate in the conference may request one. Call the Scheduling Office at the number that follows at least 5 business days prior to the conference to submit a request.

If individuals require an interpreter to participate in the conference, call the Scheduling Office at least 10 business days prior to the conference to submit a request.

Scheduling Office: (717) 787-1399

TTY-based Telecommunications Relay Service number: 711

The Commission offers a free eFiling Subscription Service, which allows users to automatically receive an email notification whenever a document is added, removed or changed on the Commission's website regarding a specific case. Instructions for subscribing to this service are on the Commission's website at puc.pa.gov/Documentation/eFiling_Subscriptions.pdf.

MATTHEW HOMSHER,
Secretary

[Pa.B. Doc. No. 26-684. Filed for public inspection May 8, 2026, 9:00 a.m.]

END OF ISSUE